

DOMESTIC  
ANNALS of SCOTLAND

BY ROBERT CHAMBERS,  
F.R.S.E., F.S.A.Sc., &c.



SECOND  
EDITION.

VOLUME I.



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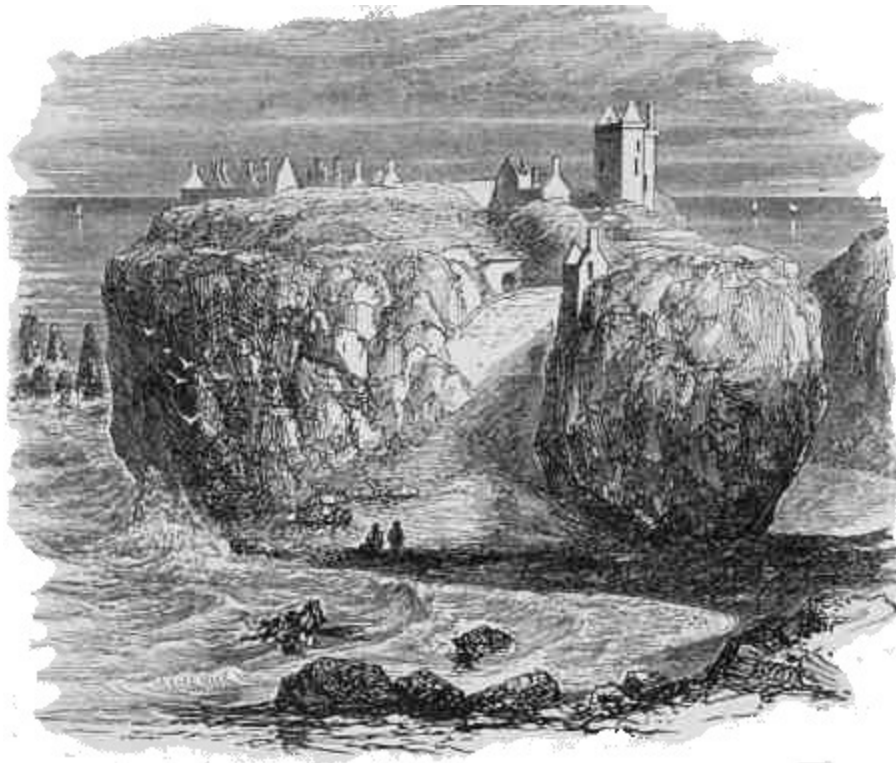
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VOLUME II.



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# **DOMESTIC ANNALS OF SCOTLAND.**



## **REIGN OF CHARLES I.: 1625-1637.**

James I. was peaceably succeeded on the throne by his son Charles I., then in the twenty-fifth year of his age. The administration of Scottish affairs continued to be conducted by the Privy Council in Edinburgh. For the endowment of the Episcopal Church now established, the king (1625) attempted a revocation of the church-lands from the lay nobles and others into whose hands they had fallen; but this excited so strong a spirit of resistance, that he was obliged to give it up. He ended by issuing (1627) a commission to receive the surrender of impropriated tithes and benefices, and out of these, and the superiorities of the church-lands, to increase the provisions of the clergy. These proceedings, though legal, were unpopular. The nobles, alarmed for their property, began to lean towards the middle and humbler classes, who objected to a hierarchy on religious grounds solely. While all was smooth on the surface, while the lords of the Privy Council were full of expressions of servile obedience, while they, as well as all judges and magistrates, gave most loyal and regular attendance at church, and duly knelt at the communion—a strong spirit of discontent ran through society. The more zealous Presbyterians formed the habit of meeting in private houses for prayer and worship. They beheld with apprehension the tendency to medieval ceremonies which Charles, and his favourite councillor, Laud, Archbishop of Canterbury, were manifesting in England. That leaning to Arminianism which the English Church was also accused of—modifying Calvinism so far as to say that the perdition of sinners had been only foreseen, not decreed, and that God's wrath against them was not to last for ever—was viewed with the utmost alarm in Scotland. The only means the king had of giving reassurance was to make a loud profession of horror for popery, and to practise all possible severities upon its adherents. That the king and his Council availed themselves of this chance, will be found abundantly evidenced in our chronicle.

It is rather remarkable, that the adjustment of the tithes by King Charles in 1627 has proved a most useful practical measure, in annulling a certain class of disputes between the clergy and their flocks; anticipating, in short,

the valuable commutation acts of England and Ireland by upwards of two centuries.

During the first few years of the reign, large bodies of troops were raised in Scotland, and conducted by native officers to serve the Protestant powers of the continent, engaged in the great thirty years' struggle with Catholic Germany.

The king paid a visit to Scotland in 1633, in order to be crowned as its sovereign, and to see what further could be done for perfecting the Episcopal system. His reception was respectful, but not so affectionate as that experienced by his father. He wanted the good-humour of James; he treated all difficulties in a stern and imperious manner. The people were overborne by his power and his obduracy, but left unconvinced, unreconciled. In the subsequent year, he lost additional ground by a tyrannical and unjust trial of the Lord Balmerino on a charge of treason, for merely having in his possession the scroll of a petition against the royal measures. At the same time, the Scotch people knew of the king's quarrels with the English patriots Elliot, Pym, and others; they knew that he had resolved on calling no more parliaments; they heard of Strafford's despotic government in Ireland; they sympathised with the Puritans who were now and then pilloried and cropped of their ears, or driven in multitudes to Holland and America. Although, then, there was a strong prepossession for the institution of monarchy, there was also a steady muster of irritation and fear against the government of this particular monarch. It might have been evident to any dispassionate observer, that, if the present system were persevered in, an explosion would sooner or later take place.

There was this further difference between the late and present king, that while James was only anxious for a church polity which would work harmoniously with his doctrines of state, Charles—who, unlike his father, was an earnestly religious man—deemed Episcopacy a necessary part of faith. The struggle was now, therefore, between a people fanatic for one system, and a king fanatic for another. One thing Charles had long considered as necessary to complete his favourite project in Scotland—the introduction of a liturgy into the ordinary worship. He thought the proper time was now come, because he everywhere saw external obedience. A service-book being accordingly prepared by Laud, on the basis of that commonly used in England, but with a few innovations relishing of popery

and Arminianism, an order of Privy Council was given for its being read in the churches. This was precisely what was necessary to exhaust the popular powers of endurance. It seemed to the multitude as if popery, almost undisguised, were once more about to be introduced. When the dreaded book was opened in St Giles's Church (July 1637), the congregation rose in violent agitation to protest against it. It was hooted as a mass in disguise, and a stool was thrown at the head of the reader. Similar scenes occurred elsewhere; but the clergy in general had declined to bring the book forward. The state-officers and bishops now found themselves objects of popular hate to such an extent that they could not present themselves in public. The service-book was not merely a failure in itself, but it had produced a kind of rebellion. Charles discovered, when too late, that, as usually happens with men of headstrong temper, the truth had been concealed from him. The general obedience had been a hypocrisy. Nineteen-twentieths of the people were in their hearts opposed to his measures, and now he had given them occasion to declare themselves and enter at all hazards upon a course of resistance.

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This is the date of the patent of Charles I., conferring on Sir Robert Gordon of Gordonstown the dignity of a baronet of Nova Scotia, being the first patent of the kind granted. Gordon of Cluny and Gordon of Lesmoir also got similar patents during the same year, and Lesmoir's eldest son, being of full age, was at the same time made a knight; such being the original design regarding this honour. The order of baronets of Nova Scotia, which still holds an honourable place in Scottish society, was projected by King James, as an encouragement to gentlemen of property in his native kingdom to enter into the scheme of Sir William Alexander (subsequently Earl of Stirling) to plant Nova Scotia. In the patent of each, a certain portion of land in that country is assigned along with the honour, the infeoffment being executed on the Castle Hill of Edinburgh; but this, as is well known, has never been otherwise than an ideal advantage. 'His majesty, the more to encourage the baronets in that heroic enterprise [of planting Nova Scotia], besides other privileges, did augment every one of their coats of arms by joining thereto a

1625. MAY 28.

saltire azure, or a blue St Andrew's cross, set in a white field, with another scutcheon in the middle of the blue cross, comprehending a red rampant lion in a yellow field, with a red tressure of fleur-de-luces about the lion, with an imperial crown above the scutcheon, being the arms of New Scotland. The crest of the arms of New Scotland is two hands joined together, the one armed, the other unarmed, holding a laurel and a thistle twisted, issuing out of them, with this motto, "*Munit hæc, et altera vincit.*" The supporters are a unicorn upon the right side, and a savage man upon the left.'—*G. H. S.*

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The town-council of Aberdeen at this time anticipated the wisdom and good manners of a later age, by ordaining that 'no person should, at any public or private meeting, presume to compel his neighbour, at table with him, to drink more wine or beer than what he pleased, under the penalty of forty pounds.'<sup>1</sup>

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Thomas Crombie, burgess of Perth, was 'summoned to underlie the law, for the alleged slaughter of ane William Blair, a westland gentleman, wha notwithstanding had done the same negligently to himself. Being of intention to have struck the said Thomas with ane whinger, he hurt himself in the arm, whereof he died twenty days after. The said Thomas compeared with eighty burgesses of Perth, besides five earls, six lords, and twenty-six barons, upon the burgh of Perth's desire to back him, [and] was clengit and freed therefrae.'—*Chron. Perth.*

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JUNE 12.

By the royal command, a fast was held throughout Scotland, in consequence of the heavy rains which had prevailed since the middle of May, threatening the

JULY 20.

destruction of the fruits of the earth. It was a time of calamity. The marriage of the king to the Princess Henrietta Maria of France (June 16th), had of course brought the mass into London, and ‘no sooner was the queen’s mass, the plague of the soul, received, than a raging pestilence broke out in the city of London and parts adjoining, which in a short time cut off above 40,000 persons.’—*Stevenson’s Hist. C. Scot.*

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The government was incensed by *bruits* set in circulation by a set of ‘restless and unquiet spirits,’ to the effect that the king designed some change in the kirk and its canons. The king issued a proclamation denouncing these injurious rumours as troublesome to the commonwealth, and protesting that so well was he pleased with the existing arrangements, that, if he had not found them established by his late dear father, he would himself have never rested till they were perfected as they now stood. It may be suspected that this proclamation did not put an end to the *bruits*, for in October the king discovered that a number of Catholic noblemen and gentlemen were bringing up their children in popish seminaries abroad, and at the same time entertaining popish priests at home; wherefore it had become necessary that some suitable anti-papist edicts should be published. The parents of children educated abroad were ordered to have them brought home before a certain day, under severe penalties. Great pains were threatened against those who should give entertainment or shelter to popish priests after a certain day. Finally, the proclamation charged ‘all our subjects, of whatsoever rank or degree, to conform themselves to the publick profession of the true religion, prohibiting the exercise of any contrary profession, under the pains conteinit in the laws made thereanent.’—*P. C. R.*

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JULY 26.

1625.

A proclamation was resolved on for a strict execution of the laws against the selling of tallow out of the country. Contrary to the views of modern mercantile men, there

AUG. 30.



was a general fear and dislike in those days regarding export trade. It was always thought to have a bad effect in making things scarce and dear at home. No one seems ever to have dreamed of the profitable *quid pro quo* without which the trade could not have been carried on. We require to have a full conception of this universal delusion, before we can understand the frame of mind under which the Privy Council of the day could speak of the transport of tallow as ‘a crime most pernicious and wicked,’ perpetrated by a set of ‘godless and avaritious persons,’ acting ‘without regard of honesty or of those common duties of civil conversation whilk in a good conscience they ought to carry in the estate.’

It was, to all appearance, under a sincere horror for ‘this mischeant and wicked trade,’ which threatened to leave not enough of tallow to supply the needs of the population, that the lords announced their resolution to punish it with confiscation of all the remaining movable goods of the guilty parties.  
—P. C. R.

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John Gordon of Enbo, having suffered some injury at the hands of Sutherland of Duffus, longed for revenge, but for some time in vain. At length, riding with a single friend between Sideray and Skibo, he encountered Duffus’s brother, the Laird of Clyne, also attended by a single friend on horseback. Gordon, with a cudgel in his hand, assaulted Clyne, and gave him many blows. ‘Then they drew their swords, and, with their seconds, fell to it eagerly.’

Clyne, after being sorely wounded in the head and hand, was suffered by Eubo to escape with his life.

1625.

The curious part of the affair is to come. Enbo was prosecuted by Duffus before the Privy Council, and committed to the Castle of Edinburgh. The Duffus party were full of triumph, making sure of ample retribution. At that crisis arrives the sage and courteous Sir Robert Gordon of Gordonstown, who had heretofore made so many rough matters smooth in the north. He first dealt with Duffus, to induce him to withdraw the prosecution, which he apparently looked on in no other light than as a species of unrighteous revenge. Duffus proved obdurate, ‘thinking to get great sums of money

decerned to him by the lords from John Gordon, for satisfaction of the wrong done to his brother, whereby he might undo John Gordon's estate.' Feeling now relieved from all ties towards Duffus, Sir Robert 'dealt by all means for John Gordon's relief and mitigation of his fine.' Very much by the interest of the Lord Gordon, then in Edinburgh with the French commissioners, he succeeded in inducing the Privy Council to let John Gordon off with a fine of a hundred pounds Scots, equal to £8, 6s. 8d. sterling!—'and nothing to the party.' Duffus left Edinburgh in sad discomfiture, to meet the blame of his friends for not having accepted the better conditions offered at first by Sir Robert Gordon. The proto-baronet at the same time returned to the north, bringing John Gordon of Enbo along with him, 'beyond the expectation of all his friends and foes in those parts, who thought that he should not have been released so soon, nor fined at so small a rate, *wherein Sir Robert purchased himself great credit and commendation.*' So Sir Robert calmly assures us in his own narrative of the transaction.—G. H. S.

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A convention of Estates was held, under the Earl of Nithsdale as commissioner, to treat regarding the revocation of the church-lands. Those whose fortunes were thus threatened were greatly alarmed and incensed by the urgency of the king. The suspicion of the Earl of Nithsdale being a papist must have added to the unpopularity of the affair. If we are to believe a story which Burnet reports from Sir Archibald Primrose, they held a private meeting to consult how they might best protect their own interests, and it was agreed by them that, when assembled, 'if no other argument did prevail to make the Earl of Nithsdale desist, they would fall upon him and all his party in the old Scots manner, and knock them on the head.... One of these lords, Belhaven, of the name of Douglas, who was blind, bid them set him by one of the party, and he would make sure of *one*. So he was set next the Earl of Dumfries. He was all the while holding him fast. And when the other asked him what he meant by that, he said, ever since the blindness was come on him, he was in such fear of falling, that he could not help the holding fast to those who were next to him. He had all

OCT. 27.

1625.

the while a poniard in his other hand, with which he had certainly stabbed Dumfries, if any disorder had happened. The appearance at that time was so great, and so much heat was raised upon it, that the Earl of Nithsdale would not open all his instructions, but came back to court, looking on the service as desperate.’

It is much to be desired for this anecdote that it had some support in other authority. The Lord Belhaven pointed to was then a man little over fifty, and his epitaph in Holyrood Abbey describes him as kind to his relations, charitable to the poor, moderate in prosperity, and constant under adversity—though, to be sure, posthumous certificates of that kind do not generally rank as evidence of the first class.<sup>2</sup>

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A taxation was granted to the king by the Scottish parliament, amounting to £40,000 Scots. Some of the burghs came to an agreement with the lords of the Privy Council for certain proportions of this taxation, to be paid annually while it continued; and we are thus supplied with a means of estimating the comparative importance and wealth of some of the principal towns in the kingdom. We find the following towns set down, with the annexed sums at their names: Glasgow, £815, 12s. 6d.; Linlithgow, £163, 2s. 6d.; Stirling, £422, 17s. 9d.; St Andrews, £490; Dunbar, £90, 15s.; Culross, £84, 10s.; Canongate, £100; Hamilton, 100 merks.

OCT.

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Paisley, now a huge city of the industrious, was, in the reign of Charles I., only a village surrounding the ruins of an ancient abbey. The dominant personage of the place was the Earl of Abercorn, a cadet of the Hamilton family, enriched by the possession of the abbey-lands. Through the influence of the earl’s mother, who had become a Catholic, the town was described as ‘a nest of papists.’ Nevertheless, the interest of Lady Abercorn’s relative, Lord Boyd, had procured a presentation to the parish church in favour of Mr Robert

1626. APR.

Boyd of Trochrig, recently principal of the Edinburgh University—one of a group of men deep in theological learning, adepts in Latin versifying, who then threw a lustre upon Scotland—but at the same time a zealous protester against the late Episcopalian innovations in the church. Being thus obnoxious to Lady Abercorn, albeit her ladyship's relation, his settling in Paisley was viewed by her, her sons, and her friends, with great disrelish, and the consequence was a material resistance to the presentee, being perhaps the first occurrence of the kind in our country, the precursor of many.

‘He was ordained to have his manse in the fore-house of the abbey, as the most convenient place for that use. And having put his books and a bed thereintill; one Sunday, he being preaching, in the afternoon, the Master of Paisley,<sup>3</sup> being the Earl of Abercorn's brother, with some others, came to the minister's house, none being thereintill, and cast all his books on the ground, and thereafter locked the door.’ On a complaint from Boyd to the Privy Council, the Master was brought to penitence for this outrage, and it was then hoped that matters would go on smoothly. On his returning, however, to his manse, he found the locks of the doors stopped up with stones, so that he could not get in without force, which he was not permitted to use. As he was going away, ‘the rascally women of the town, coming to see the matter—for the men purposely absented themselves—not only upbraided Mr Robert with opprobrious speeches, and shouted and hoyed him, but likewise cast dirt and stones at him; so that he was forced to leave the town and go to Glasgow.’

Being a man of a gentle nature, Boyd withdrew to his house of Trochrig in Ayrshire, without making any complaint as to his late ill-usage. The case, however, being taken up by the Archbishop of Glasgow, and brought before the Privy Council, Lady Abercorn, the earl her son, and the Master her second son, all came to Edinburgh in the earl's ‘gilded carroch,’ accompanied in the usual manner with their friends, to answer for the outrages which had been committed. An order was given for the replacement of Boyd in his parish; but, meanwhile, he sunk under a weakly and reduced constitution, and died, January 5, 1627, at the age of forty-nine.<sup>4</sup>

‘Betwixt the hours of eight and nine in the morning, there appeared a phenomenon in the open firmament, which was looked on by many as a

presage of some future calamity. The sun shining bright, there appeared, to the view of all people, as it were three suns; one be-east, and the other south-be-west the true sun, and in appearance not far from it. From that which lay south-west, there proceeded a luminary in the form of a horn, that pointed north-west, and carried as it were a rainbow, in colour gray, but clearer than the rest of the sky. Whether these signs were ominous or not, manifold were the calamities which then prevailed.<sup>5</sup>

1626. JUNE 15.

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Just before this time, a large body of men, variously stated at 3000 and 4400, was raised in Scotland by Sir Donald M'Kay of Strathnaver, 'a gentleman of a stirring spirit,' and Sir James Leslie—supposed to have been of the Lindores family—to assist Ernest Count Mansfeldt in the Bohemian army against the Emperor of Germany. This being the Protestant cause, and likewise the cause of the king's brother-in-law, the Elector Palatine, who had accepted the crown of Bohemia, the enlistment received the royal sanction and patronage, £2000 being disbursed to Sir Donald, and £600 to Sir James, while a further sum of £400 was promised to be at the service of the troops on their landing in Hamburg.<sup>6</sup> The movement harmonised with the feelings of the people of Scotland, to many of whom an honourable military service with pay was convenient and agreeable on less exalted considerations than that of religious sympathy, as the industry of the country was then too little advanced to hold out a gainful occupation to all who were anxious for it. The estates and influence of Sir Donald being in Sutherlandshire, it naturally fell out that a large portion of the officers of the corps were from that county and the adjacent districts of Ross and Caithness—Monroes, Mackenzies, Rosses, Gordons, Sinclairs, and Gunns. The greater number of the recruits embarked at Cromarty in October, and had a prosperous voyage to the Elbe; but their commander, Sir Donald, was detained by sickness till the spring of the ensuing year. Owing to the death of Count Mansfeldt, the corps took a new destination, though adhering to the same cause, for they entered the service of the King of

JUNE.

OCT. 10.

Denmark, their own king's uncle, who had engaged in the war against the emperor.

The exploits of these Scottish levies have been recorded in a curious but confused narrative, the production of one of the officers, and now a great rarity, entitled *Monro his Expedition, with the worthy Scots Regiment called M'Kay's Regiment, &c.*<sup>7</sup> The author, Colonel Robert Monro, states that he composed it at his spare hours, 'for the use of all worthy cavaliers favouring the laudable profession of arms.' He gives a long list of officers, all bearing familiar Scottish names—as Forbes, Monro, M'Kay, Sinclair, Ross, Gordon, Stewart, Innes, Seton, Dunbar, Hay, and Gunn. In the ranks were included a small band of Macgregors, who had been lying for some time in the Tolbooth of Edinburgh, on account of their irregularities, and who are said to have proved good soldiers under regular discipline and with a legitimate outlet for their inherent turbulence and courage.

1626.

One portion of the Scots Regiment was sent to join the English auxiliaries under General Morgan. Another was put to a severe duty in defending the Pass of Oldenburg against Tilly's army. The latter are described as shewing a remarkable degree of firmness and gallantry in that trying situation, from which they had to retire, after a loss of four hundred men. Another party, of four companies, under Major Dunbar, defended the Castle of Brandenburg in Holstein against 10,000 men under Tilly, with such desperate and sanguinary pertinacity, that, on the place being ultimately taken, they were all put to the sword. On many other occasions, these valiant Scotsmen distinguished themselves greatly, insomuch that they came to be called the Invincible Regiment. It was greatly owing to them that Stralsund made such an obstinate defence against Wallenstein. Here they lost 500 men in seven weeks, only about 400 being now left. When the Danish king was forced to evacuate Pomerania, the Scots defended the bridge at Wolgast, till he was safe. So early as January 1628, Sir Donald M'Kay had to go home for fresh levies. He returned in July with as many as raised the corps to 1400 effective men. But before any further remarkable service had been performed by the regiment, the King of Denmark was glad to make peace.

The regiment then transferred itself to the service of Gustavus Adolphus of Sweden, who had now put himself at the head of the Protestant interest against

1626.



Catholic Germany. Throughout his remarkable campaign in Pomerania and Mecklenburg, our brave Scots were on incessant service, and were usually employed on posts of peculiar difficulty or danger. The waste of men was enormous; and in February 1631, Lord Reay—for so Sir Donald M'Kay was now styled—returned home once more for fresh levies. He was detained in England by some circumstances of an unpleasant nature, which enter into our national history; but the levies were sent out notwithstanding, and the efficiency of the Scots Regiment, or rather regiments, never for a moment flagged. At the brilliant capture of Frankfort-on-the-Oder, when so many of the imperialists perished, and so much of their wealth fell into the hands of the Swedish king, our countrymen had a distinguished part. In the subsequent transactions ending with the splendid victory of Leipsic, by which the Protestant world was for the time liberated, they were ever in the front, doing and suffering much. And so it went on, even after the death of the king at Lutzen in 1633, their great losses being continually made up again by the arrival of fresh levies from Scotland. Amongst many gallant officers who received their training in these wars, were two men destined to take prominent parts in the history of their country—namely, Colonels Alexander and David Leslie.<sup>8</sup>

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Amongst the preparations for war at this time, the Privy Council, reflecting on the inconveniences of being wholly dependent on foreign countries for gunpowder, empowered Sir James Baillie of Lochend, knight, to see if he could induce some Englishmen to come and settle in Scotland for the manufacture of that article.—*P. C. R.*

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JULY 19.

Mr Thomas Ramsay, minister of Dumfries, was unusually zealous against popery, probably by reason of its peculiar abundance within the bounds of his cure. One day, as he and some co-presbyters were passing along the bridge over the Nith, they encountered a

SEP.

1626.

person on horseback whom they recognised to be ‘ane mess priest by whom numbers of the country people are pervertit not only in their religion, but in their allegiance to the king’s majesty.’ ‘Having used their best endeavours to have apprehendit the priest, it fell out that, by the help of some excommunicat papists, who was in company with him, he escaped.’ They, however, secured ‘his horse and cloak-bag, wherein there was a number of oisties, superstitious pictures, priests’ vestments, altar, chalice, plate-boxes with oils and ointments, with such other trash as priests carry about with them for popish uses.’

Mr Thomas Ramsay and his friends immediately came to Edinburgh, and presented themselves before the Privy Council, who, according to their wishes, passed an act of approbation in their favour, and ordered them to make a bonfire at the market-cross of Dumfries, and there burn all the popish ‘trash’ excepting the silver articles, which were to be melted down for the benefit of the poor.—*P. C. R.*

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Four of the bishops, and a number of commissioners from presbyteries, met in Edinburgh to deliberate on church matters, being the nearest approach to a General Assembly which could now be permitted. Amongst the matters discussed were the increase of papistry and sin, the persecutions of the Protestants in Germany, and the war against France. Anxiety was also expressed regarding the prospects of the harvest. ‘Because of the extraordinar rains, which now threaten rotting of the fruits of the ground before they be ripe, and so a fearful famine upon this land in so dangerous a time, when the seas are closed by the enemies, and no hope of help from other countries if God shall send a famine, [it was resolved] to entreat the Lord that he wold cause the heaven answer the earth, and the earth answer the corn, and the corns to answer our necessity, and us to answer His will, in faith, repentance, and obedience.’<sup>9</sup>

1627. JULY 17.

At this time, Great Britain might be said to be drifting towards a war with France. The king having offended Louis XIII. by turning off all the Catholic priests who had come over in attendance upon his queen, the French monarch retaliated by ordering the seizure of British vessels within his ports. There were a hundred and twenty English and Scottish ships in those ports, chiefly loading with wine, and the whole were seized. The Scotch, however, contrived to make themselves appear as still connected with France by an ancient league—a league which, it is to be feared, only existed as a friendly illusion common to the two nations. Out of deference to this notion, the Scotch vessels were all dismissed, while the English were retained.—*Bal.*

1627.

‘There was a warrant from the king’s majesty and his Council, for listing in Scotland 9000 men, to go to serve under the king of Denmark, in the German wars for renewing the palatinate and Bohemia.... There was many forcit, as beggars, idle men, and [those wanting] competent means to live upon, under the conduct of the Earl of Nithsdale, my Lord Spynie, and the Laird of Murkle (Sinclair), as colonels.

‘There was the same year 2000 gentlemen, landed men, barons, lords, and others of guid sort, levanted from Scotland under the Earl of Morton, for helping to take the Isle of [Ré] in France. But the isle was recovered by the French frae the English.’—*Chron. Perth.*

The recruiting of these German legions does not appear to have been conducted in a very scrupulous manner. Some of the circumstances afford a rich illustration of the social condition of Scotland at that time. On the 1st of November 1627, Robert Scott, bailie of Hawick, reported to the Privy Council a number of ‘idle and masterless men, fit to be employed in the wars’—namely, ‘Allan Deans, miller; Allan Wilson; George Dickson, callit *the Wran*; John Rowcastle; Walter Scott, maltman; John Tait, piper; William Beatson; Robert Lidderdale, callit *the Corbie*; Robert Langlands; James Waugh, officiar; James Towdop; William Scott, callit *Young Gillie*; John Laing, piper; William M‘Vitie; Walter Fowler; and Andrew Deans.’ This proceeding of Bailie Scott was in obedience to an act of Estates. The lords, having narrowly examined these men, liberated seven as ‘not fit persons to be employed in the wars.’ Two were set free, under surety to appear again when called upon. The remaining persons they ordained to be delivered to the Earl of Nithsdale, ‘to be sent by him with the rest of his company to the

wars in Germany.’ Seeing, however, that ‘the said persons are men and servants to William Douglas of Drumlanrig, and that reason and equity craves that they should be rather delivered to Sir James Douglas of Mowsill, brother to the said Laird, nor to any other colonel or captain whatsoever,’ they ordained accordingly, provided that Sir James should satisfy the Earl for his expenses. The men thus dealt with were to be lodged in the Tolbooth, until the ship should be ready to carry them abroad, the Earl undertaking to satisfy Andrew White the jailer, ‘for their expenses during the time of their remaining in ward.’—*P. C. R.*

In the exigencies of the unfortunate wars in which the king became involved with Spain and France, he was led to the strange idea of raising a small troop of Highland bowmen. This weapon, which had long since declined in most European countries before the advance of firearms, was still in use in the north of Scotland—indeed, continued partially so for sixty years yet to come. Most probably it was the chief of the MacNaughtans, now a gentleman of the Privy Chamber, who had suggested such a levy to the king, for he it was who undertook to raise and command the corps. At the date noted, Charles wrote to the Privy Council of Scotland, to the Earl of Morton, and the Laird of Glenurchy, asking assistance and co-operation for MacNaughtan in his endeavours to raise the men, it being declared that they should have ‘as large privileges as any has had heretofore in the like kind.’

1627. AUG. 12.

It appears that MacNaughtan came to the Highlands in the course of the autumn, and engaged upwards of one hundred men for this extraordinary service. ‘George Mason’s ship’ was placed at Lochkilcheran, to receive the men as they were engaged, and carry them to their field of action. It seems to have been designed that they should join a regiment commanded by the Earl of Morton, which was now lying at the Isle of Wight, designed to support the Duke of Buckingham in the dismally unfortunate expedition he had made for the relief of Rochelle. It was not till some weeks after that affair was concluded by his Grace’s evacuation of the Isle of Ré, that the bowmen, to the stunted number of one hundred, left their native shores. Departing in the very middle of winter, the ship encountered weather unusually tempestuous, was chased by the enemy, and obliged to put into Falmouth. There MacNaughtan wrote to the Earl of Morton—‘Our bagpipers and marlit plaids served us to guid wise in the pursuit of ane

man-of-war that hetly followit us.’ He told his lordship he would come on with his men to the Isle of Wight as soon as possible, *being afraid of a lack of victuals where he was*; and meanwhile he entreated that his lordship would prepare clothes for the corps, ‘for your lordship knows, although they be men of personages, they cannot muster before your lordship in their plaids and blue caps.’

What came of these ‘poor sojourns, quho ar far from thair owin countrie,’ we nowhere learn.<sup>[10](#)</sup>

‘... there being upon the coast of Zetland about the number of 250 Fleming busses at the herring-fishing, attended with nine waughters ... there cam upon them fourteen great Biscayen Spanish ships, in whilk there were 4000 soldiers, with ane great sum of money for the payment of the Spanish army in Germany; whilk ships, being bound for Dunkirk, cam that north way for their safest passage, till keep themselves free from the harm of Flemish or English ships. But, approaching to the said coast, they set upon the Hollanders, and, sinking three of the waughters, the haill busses took the flight, some till little creeks in Zetland, where the Spaniard did sink a number of their busses, and taking their master, did put the rest of their company to the edge of the sword, with some also of the country people, inhabitants thereof, resisting their tyranny.’

1627. AUG.

The Privy Council, duly apprised of these outrages on the 13th of the month, were taking measures for their correction, when, on the 16th, ‘there arase a great fray in the town of Edinburgh, for, the busses having left the waughters combating with the Dunkirkers, and having fled away therefrae, there cam of them the number of threescore all together in form of ane half-moon, up the Firth of Forth; where, at the first perceiving afar off of such a number of ships in the form foresaid, as if they had been in battle or onset thereof, the haill people thought they had been ane army of Spaniards and Dunkirkers assuredly. Whereupon the Privy Council caused mak a proclamation, that all manner of men, offensive and defensive, under the pain of death, should all in arms to the sea-shore, upon the first touk of the drum. All this day, the Lords of Council held their council at Leith, where also David Aikenhead, provost of Edinburgh, with some of the bailies and council thereof, attended the event of the said ships, till advertise the people of the town what they sould do thereanent. About eight hours at night, by

command of the Privy Council, the cannons were trailed down with furnishing thereto from the Castle of Edinburgh till Leith, and the town of Edinburgh were put in arms under ten handseignies, every man better resolved than another to abide the worst till death, or they to put the enemies to destruction.... About ten hours at night certain word cam, by two boats that was sent from Leith, to the effect that they were our friends and only a number of busses fled from the tyranny of the Dunkirkers ... and then the cannons were trailed back again to the Castle, and the people were commanded to their rest.’—*Jo. H.*

As the Privy Council was sitting in its chamber in Holyrood Palace, an outrage took place, recalling the wild acts of thirty years since. One John Young, poultry-man, attacked Mr Richard Bannatyne, bailie-depute of the regality of Broughton, at the council-room door, and struck him in the back with a whinger, to the peril of his life. The Council, in great indignation, immediately sent off Young to be tried on the morrow at the Tolbooth, with orders, ‘if he be convict, that his majesty’s justice and his depute cause doom to be pronounced against him, ordaining him to be drawn upon ane cart backward frae the Tolbooth to the place of execution at the Mercat Cross of Edinburgh, and there hangit to the deid and quartered, and his head to be set upon the Nether Bow, and his hand to be set upon the Water Yett.’—*P. C. R.*

1627. OCT. 10.

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A warrant was granted by the Privy Council regarding Alexander Robison, a Jesuit lately taken and put into the Tolbooth of Edinburgh, ‘where he has remained divers months bygane’ [since the 20th September of preceding year]. As his staying in the country could not but lead to the corruption of the people in their religious opinions and their allegiance to the king, the Council deemed it expedient that Robison be ‘sent away out of the country nor unnecessarily halden within the same.’ He was therefore to be called before a justice court in the Tolbooth, where, ‘after acknowledging of his offence in transgressing of his majesty’s laws made against the resorting and remaining of Jesuits within this kingdom,’ they were to ‘take him solemnly sworn and judicially

Nov. 27.

acted, that he sall depairt and pass furth of this kingdom with the first commodity of a ship going toward the Low Countries, and that he sall not return again within the same without his majesty's licence ... under pain of deid.'—*P. C. R.*

Two days after, the Council took into consideration certain petitions of Alexander Robison, 'heavily regretting the want of means to entertein him in ward and satisfy his bypast charges therein.' 'Seeing it accords not with Christian charity to suffer him to starve for hunger, he being his majesty's prisoner,' the lords agreed that he should have 13s. 4d. [that is, 1s. 1-1/3d. sterling] per day, counting from the 20th of September last.

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The latter part of this year, marked by a military disaster and disgrace nearly unexampled in British annals<sup>11</sup>, was made further memorable by a tempest of extraordinary violence, which destroyed a vast quantity of mercantile shipping, including many collier vessels carrying their commodity to the Thames. At one part of the coast of Scotland, a high tide, assisted by the storm, produced an inundation over a large tract of low land. It came upon the Blackshaw in Carlsruverock parish, and upon certain parts of the parish of Ruthwell 'in such a fearful manner as none then living had ever seen the like. It went at least half a mile beyond the ordinary course, and threw down a number of houses and bulwarks in its way, and many cattle and other bestial were swept away with its rapidity; and, what was still more melancholy, of the poor people who lived by making salt on Ruthwell sands seventeen perished; thirteen of these were found next day, and were all buried together in the churchyard of Ruthwell, which no doubt was an affecting sight to their relations, widows, and children, &c., and even to all that beheld it. One circumstance more ought not to be omitted. The house of Old Cockpool being environed on all hands, the people fled to the top of it for safety; and so sudden was the inundation upon them, that, in their confusion, they left a young child in a cradle exposed to the flood, which very speedily carried away the cradle; nor could the tender-hearted beholders save the child's life without the manifest danger of their own. But, by the good providence of God, as the cradle, now afloat, was going



forth of the outer door, a corner of it struck against the door-post, by which the other end was turned about; and, going across the door, it stuck there till the waters were assuaged.

‘Upon the whole, that inundation made a most surprising devastation in those parts; and the ruin occasioned by it had an agreeable influence on the surviving inhabitants, convincing them, more than ever, of what they owed to divine Providence; and for ten years thereafter, they had the holy communion about that time, and thereby called to mind even that bodily deliverance.’<sup>12</sup>

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There now being much anxiety about foreign invasion, some care was taken to ascertain the state of the national defences, and there was also a proposal to fortify various places, of which, it may be remarked, Leith was one. Sir John Stewart of Traquair had been sent to inquire into the condition of Dumbarton Castle, and now reported as follows: ‘At his entry within the castle, he found only three men and a boy in ordinar guarding the same. The walls in the chief and most important parts were ruinous and decayed; the house wanting doors, locks, or bolts, and nather wind nor water tight; the ordnance unmounted, and little or no provision of victuals and munition (except some few rusty muskets) within the same.’

DEC. 25.

1627.

The description, it is to be feared, was generally characteristic. In those days, which we look back upon as so romantic, there was one thing wanting—revenue. In Scotland, owing to the poverty of the government, national buildings alternated between long periods of neglect and decay, and abrupt attempts at repair when there was a pressing need. As to the case of Dumbarton, Sir John Stewart was empowered to get it put into proper order, with a promise of reimbursement.—*P. C. R.*

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The Privy Council took energetic measures against certain persons of the south-western province, including

1629. MAR. 11.

Herbert Maxwell of Kirkconnel, Charles Brown in New Abbey, Barbara Maxwell Lady Mabie, John Little, master of household to the Earl of Nithsdale, John Allan in Kirkgunzeon, John Williamson in Lochrutton, and many others, all apparently people in respectable circumstances. It was found that these individuals proudly and contemptuously disregarded both the excommunication and the horning which they had brought upon themselves by persisting in their ‘obdured and popish opinions and errors,’ haunted and frequented all public parts of the country, ‘as if they were free and lawful subjects,’ and were ‘reset, supplied, and furnished with all things necessar and comfortable unto them,’ a great encouragement to them to continue in their erroneous opinions, ‘whereas if this reset, supply, and comfort were refused unto them, they might be reclaimed from their opinions, to the acknowledgment of their bypast misdemeanours.’ As if to mark more effectually the infamy of these recusants, a pair who had been excommunicated for adultery were classed with them. A commission was issued for the apprehension and trial of all persons ‘who are suspect guilty of the reset and supply of the said excommunicat rebels.’

Two of the commissioners—Sir William Grier of Lag and Sir John Charteris of Amisfield—went very promptly to that peculiar nest of papists, New Abbey, and there apprehended Charles and Gilbert Brown, two of the ‘excommunicat rebels.’ Enraged by this act, the wife of Charles Brown, and a number of other women, raised a mob against the minister and schoolmaster of the parish, ‘whose wives and servants they shamefully and mischantly abused, and pursued with rungs [sticks] and casting of stones.’ This being held as a great insolency, and likely to prove an evil example if unpunished, the Council ordered the commissioners to hold a court at Dumfries for the trial and punishment of the offenders.—*P. C. R.*

1628.

A few weeks afterwards, one of the excommunicated ladies, Janet Johnston, spouse of Brown of Lochhill, was taken into custody; but being in a delicate state, she was allowed (June 26) to go home till the time of her *accouchement*, on condition that she gave caution for her living during the interval ‘without offence and scandal to the kirk,’ and ‘conform with the ministry for giving unto them satisfaction regarding her religion;’ failing which, immediately after her recovery, ‘she sall depairt furth of the

kingdom, and not return again within the same without his majesty's licence, under pain of ane thousand merks.'—*P. C. R.*

These proceedings were followed up by some sharp handling of the papists of Aberdeenshire and the priests trafficking there.

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The clergy of the city of Edinburgh, eight in number, were now disposed to sympathise in and support their flocks in the general repugnance to the new arrangements at the celebration of the communion. They had become sensible of the great inconvenience of dissent, and wished to bring the people back to the churches. There was, however, but a faint hope of prevailing with the king to sanction a return to the old simple forms. At the approach of the Easter celebration of the communion, 'there was in the Little East Kirk a private meeting of the ministers of Edinburgh, and a certain number of the citizens of the said town, to the end they might reconceile the hearts of the people to their pastors, to the end, if it might be possible, they might have acquired an dispensation from the king to celebrate the sacrament of the Lord's Supper without kneeling, after the ancient form of the discipline of the Kirk of Scotland.... The conveners, having met three or four times thereupon, thought best to send Mr William Livingstone to the king's majesty to deal for obtaining the said dispensation; but before he came to court, his majesty was informed of his message, and absolutely refused the same until he were further advised.'—*Jo. H.* The king afterwards sent an imperious order to the Archbishop of St Andrews, desiring him to see to the condign punishment of the authors of this movement. The people were silenced, but soured; and the course of things that led to the Civil War went on.

APR. 2.

1628.

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George Lauder of the Bass, and his mother, 'Dame Isobel Hepburn Lady Bass,' were at this time in embarrassed circumstances, 'standing at the horn at the

DEC. 2.

instance of divers of their creditors.' Nevertheless, as was complained of them, 'they peaceably bruik and enjoy some of their rents, and remain within the craig of the Bass, presuming to keep and maintein themselves, so to elude justice and execution of the law.' A Scotch laird and his mother holding out against creditors in a tower on that inaccessible sea-rock, form rather a striking picture to the imagination. But debt even then had its power of exorcising romance. The Lords of Council issued a proclamation, threatening George Lauder and his mother with the highest pains if they did not submit to the laws. A friend then came forward and represented to the lords 'the hard and desolate estate' of the two rebels, and obtained a protection for them, enabling them to come to Edinburgh to make arrangements for the settlement of their affairs.—*P. C. R.*

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Under encouragement, as was supposed, from the Duke of Buckingham, the Scottish Catholics had for some time been raising their heads in a manner not known for many years before. They began to indulge a hope that possibly a certain degree of toleration might be extended to them. Some impetuous spirits amongst them went so far in 'insolency' as to write pasquinades upon the Bishop of Aberdeen, and post them upon his own church doors. The Privy Council were too well aware of the unpopularity of the king on account of the episcopal innovations which he loved, to allow him to remain under any additional odium on account of a faith about which he was, at the best, indifferent. Besides, 'taking order' with popery was always a cheap and ready means of making political capital against Presbyterian opponents. We accordingly find the Council at this date issuing orders regarding a number of persons of consideration in the north, as well as the priests whom they entertained, but particularly against the Marquis of Huntly, whose protection they deemed to be the chief cause why popery was not better repressed in that quarter.

1628.

There was first a recital regarding a host of men who acted as officers, or lived as tenants, upon the extensive estates of the marquis—'Mr Robert Bisset of Lessendrum, bailie of Strabogie; Alexander Gordon of Drumquhaill, chamberlain of Strabogie; Patrick Gordon of Tilliesoul; John

Gordon, in Little-mill; Adam Smith, chamberlain of the Enzie; Robert Gordon, in Haddo; Barbara Law, spouse to the said Adam Smith; Margaret Gordon, good wife of Cornmellat; Malcolm Laing, in Gulburn; and Mr Adam Strachan, chamberlain to the Earl of Aboyne.’ It was stated of them, that they had remained indifferent under the ‘fearful sentence of excommunication,’ and the consequent process of horning—that is, rebellion—frequenting all parts of the country ‘as if they had been true and faithful subjects.’ They were alleged to be encouraged in their rebellious life by the marquis, who was properly answerable for them; so he was charged to present them on a certain day of February next, under pain of horning.

There was next a recital regarding a number of persons, including, besides several of the above, ‘Mr Alexander Irving, burgess of Aberdeen; Thomas Menzies of Balgownie; Walter Leslie, in Aberdeen; Robert Irwing, burgess there; John Gordon, appearand of Craig; James Forbes of Blackton; Robert Gordon, in Cushnie; James Philip, in Easton; James Con, in Knockie; John Gordon, in Bountie; Alexander Harvie, in Inverury; John Gordon, in Troups-mill; John Spence, notar in Pewsmill; Francis Leslie, brother to Capuchin Leslie; Alexander Leslie, brother to the Laird of Pitcaple; Thomas Cheyne, in Ranniston; William Seton of Blair; Thomas Laing, goldsmith, burgess of Aberdeen; Alexander Gordon, in Tilliegreg; Alexander Gordon, in Convach; Agnes Gordon his spouse; Margaret Gordon, spouse to Robert Innes, in Elgin;’ who had all been excommunicated and denounced rebels for the same reason: also seven men and two women, including, besides several of those formerly cited, Alexander Gordon, in Badenoch; Angus M’Ewen M’William there; and Alexander Gordon, ‘appearand’ of Cairnbarrow; and Helen Coutts his spouse; who had been put to the horn for not coming to answer for their ‘not conforming themselves to the religion presently professed within this kingdom, and for their scandalous behaviour otherwise, to the offence of God, disgrace of the Gospel, and misregard of his majesty’s authority.’ Having most ‘proudly and contemptuandly remained under excommunication this long time bygane,’ they went about everywhere as if they had been good subjects, ‘hunting and seeking all occasion where they may have the exercise of their false religion; for which purpose they are avowed reseters of Jesuits, seminary and mass priests, accompanying them through the country, armed with unlawful weapons.’ The Marquis of Huntly, as sheriff-principal of Aberdeen, and Lord Lovat, as

‘sheriff of Elgin and Forres,’ were charged to search for and capture these persons, in order that they might be punished.

There was, finally, an order regarding the priests, who, it was said, were not only corrupting the religion of the people, but perverting their loyalty —‘namely, Mr Andrew Steven, callit *Father Steven*; Mr John Ogilvie; Father Stitchill; Father Hegitts; Capuchin Leslie, commonly callit *The Archangel*; Father Ogilvie; Mr William Leslie, commonly callit *The Captain*; Mr Andrew Leslie; Mr John Leslie; ——— Christie, commonly callit *The Principal of Dowie*; with other twa Christies; Father Brown, son to umwhile James Brown at the Nether Bow of Edinburgh; Father Tyrie; three Robertsons, callit *Fathers*; Father Robb; Father Paterson; Father Pittendreich; Father Dumbreck; and Doctor William Leslie.’ The Marquis of Huntly, as the proper legal authority for the purpose, ‘and the special man of power, friendship, authority, and commandment in the north parts of the kingdom, and who for many other respects is obleist to contribute his best means for the furtherance and advancement of his majesty’s authority and service,’ was charged to hunt out and apprehend these pestilent men, that the laws might be executed upon them.

To these measures was added a proclamation, chiefly to the people of the northern districts, pointing out the priests by name, as the ‘most pernicious pests in this commonweal,’ and commanding ‘that nane presume nor take upon hand to reset, supply, nor furnish meat, drink, house, nor harboury’ to them, ‘nor keep company with them, nor convoy them through the country, nor to have no kind of dealing nor trafficking with them,’ under the penalties laid down in the acts of parliament. There was a like proclamation regarding the excommunicated laymen and women above mentioned. At the same time, the bishop and magistrates of Aberdeen were commissioned to go with armed bands, and endeavour to apprehend both the priests and their resetters.

While charging the Marquis of Huntly with some duty against the papists on his own estates and those throughout his jurisdiction, the Council were quite aware of their false position in regard to him, and they deemed it proper (December 4) to send a letter to the king on that special point. They expressed their belief that the chief cause of the late increase of popery and insolency of the papists lay in the fact, that the execution of the laws on

these matters was in the hands of notoriously avowed professors of the same faith—men of such power, that inferior officers, however well affected to their duty, were overawed. They in all grief and humility presented this case for his majesty's serious consideration, entreating that he would debar from the Council and from public employments all who were suspected of popery; manifestly pointing to the marquis. Meanwhile, they said, we have directed warrants to the sheriffs and other authorities, 'to apprehend the delinquents *if they can or darr.*'

The Marquis of Huntly, who had been last converted from popery a dozen years ago, and had since, as usual, relapsed, took little trouble with a commission which he felt to be so disagreeable. When the 3d of February arrived, his depute came before the Council, and made some excuse for him, on the ground that execution of the warrants had been delayed by the wintry weather until the delinquents had all escaped; adding a petition that they would not press him to remove his chamberlains till these men should have accounted to him for large sums which they owed to him. Feeling that the marquis had wilfully failed in his duty, they denounced him as a rebel.

On the 18th of June 1629, the Council issued a charge against Sir John Campbell of Caddell;<sup>13</sup> Mr Alexander Irving, burgess of Aberdeen; Thomas Menzies of Balgownie; Mr Robert Bisset of Lessendrum; John Gordon of Craig; James Forbes of Blackton; Thomas Cheyne of Ranniston; William Seton of Blair; Alexander Gordon of Tilliegreg; Patrick Gordon of Tilliesoul; and Margaret Gordon, goodwife of Cornmellat; representing that, notwithstanding all that had been lately done, they continue obdurate against kirk and law, going about as if nothing were amiss, and enjoying possession of 'their houses, goods, and geir, whilk properly belongs to his majesty as escheat.' Seeing that by the latter circumstance they are 'strengthened and fostered in their popish courses,' the Council ordained that officers-at-arms 'pass, pursue, and take the said rebels their houses, remove them and their families furth thereof, and keep and detein the same in his majesty's name;' also to search out, poind, and uplift all 'geir' of theirs wherever to be found, and bring it to the exchequer. All neighbours were commanded to assist in enforcing these orders.

It was ascertained that the acts against resetting of priests had been 'eluded by the wives of persons repute and esteemed to be sound in religion, who, pretending misknowledge of the actions of their wives in thir cases, thinks



to liberate themselves of the danger of the said resett, as if they were not to answer for their wives' doings.' Wherefore, the Council ordained that the husband shall be always, in such cases, answerable for the wife.

At the same time, to gratify the desire of his Scottish Council, the king sent an order that, for the detection of papists in high places, the communion should be administered to all his councillors and judges, all advocates, writers, and officers of the government, in his chapel at Holyroodhouse, and this to be repeated at least once a year. At his majesty's command, a kind of convention of dignitaries of church and state met at the same place to give the Council their assistance. The result was a commission issued (July 25, 1629) to a great number of nobles and gentlemen, in the several districts popishly affected, to search for and bring to justice those 'pernicious and wicked pests,' 'avowed enemies to God's truth and all Christian government,' the Jesuits, seminary and mass priests concealed throughout the country; also to seize all persons of whatever rank, 'whom they shall apprehend going in pilgrimage to chapels and wells, or whom they shall know themselves to be guilty of that crime,' that they may be punished according to act of parliament. Supposing the priests and other delinquents should fly to fortified places, then the commissioners were empowered and ordered to 'follow, hunt, and pursue them with fire and sword, besiege the said strengths and houses, raise fire, and use all other force and warlike engine that can be had for winning and recovery thereof, and apprehending of the said Jesuits and excommunicat papists being therein.' The commissioners at the same time received assurance that no act of bloodshed on either side, or any destruction of property occasioned in the execution of this order, should be imputed to them as a fault.

The dignitaries and ministers of the Established Church, without any appearance of unwillingness, took part in this persecution. Many of the bishops sat as members of the Privy Council, and we hear of the 'dioceses and presbyteries' helping the government to lists of avowed and suspected papists, against whom proceedings might be taken. None were more active than Spottiswoode, archbishop of St Andrews, and Forbes, bishop of Aberdeen. It was no blank fusillade for mere terror. A great number of the gentlemen and ladies aimed at in the fulminations of the Council were really struck in their persons and estates. We hear of many being thrown into prison, and kept there till they

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either professed conformity or gave caution that they would depart from the country. Their property was at the same time held as escheat to the crown.

Agreeably to the royal order, the communion was administered in the king's chapel at Holyroodhouse in July, 'by sound of trumpet,' to all such of his majesty's councillors, members of the College of Justice, and others, as were disposed thus to testify their worthiness of the royal favour. On the 6th of November, the king wrote a letter to his Scottish Council on this subject. 'Understanding,' he says, 'that some popishly affected have neglected this course, we, out of our care and affection for the maintenance of the professed religion, are pleased to will and require that you remove from our council-table all such who are disobedient in that kind.' This the Council (December 3) obediently resolved to do.

The Council was much importuned by the captive papists for relief; but it was pithily ordained that none now or hereafter 'sall be relieved out of ward, but upon obedience and conformity to the true religion, or else upon their *voluntary offer* of banishment furth of his majesty's whole dominions.'

1628.

One remarkable captive was the Marchioness of Abercorn, whom we have already seen manifesting some ultra-ardour on her own side. This lady had lain for a long time in the Tolbooth of Edinburgh—a lodging which was loathsome in the reign of George III., and may be presumed to have been still worse in that of Charles I. The confinement had procured her ladyship 'many heavy diseases, so as this whole last winter she was almost tied to her bed,' and she now 'found a daily decay and weakness in her person.' The severity of the fate of this, as of some other persons, may be measured by the mercy extended to her. It being represented to the king that her ladyship, being oppressed with sickness and disease of body, required the benefit of a watering-place, he, being inclined, on the one hand, to do nothing that would derogate from the authority of the church, but, on the other, being unwilling that the lady should be 'brought to the extremity of losing her life for want of ordinary remedies,' ordered (July 9, 1629) that she should have a licence to go to the baths of Bristol, but only on condition that she should not attempt to appear at court, and after her recovery, return and put herself again at the disposal of the Council.

Her ladyship, after all, did not go to the Bristol baths, but, after a further restraint of six months in the Canongate [jail?], was permitted to go to reside in the house of Duntarvie, on condition that ‘she sall contain herself [therein] so warily and respectively as she sall not fall under the break of any of his majesty’s laws;’ also that she should, while living there, have conference with the ministry, but allow none to Jesuits or mass priests. Her ladyship is found to have ‘contained herself’ in Duntarvie for a considerable time, but to have at length been under a necessity of resorting to Paisley for the ‘outred’ of some weighty affairs. In March 1631, when she had been under restraint about three years, she was formally licensed to go to Paisley, but only under condition that she should not, while there, ‘reset Thomas Algeo nor no Jesuits,’ and return by a certain day under penalty of five thousand merks.

Some, while preparing to pass into exile, were naturally concerned about the means of living abroad. These persons, therefore, petitioned that some portion of their confiscated fortunes might be granted to them for their subsistence. The king took these petitions into consideration, and ‘out of his gracious bounty and clemency, in hope of their timely reclaiming,’ ordained that the proceeds of their estates should be divided into three parts, ‘whereof twa sall wholly belong to his majesty, and the third part his majesty does freely bestow upon the said persons;’ this, however, to be wholly forfeited, if the inventory of their possessions rendered by them should prove to be untrue.

1628.

Even the princely Huntly was obliged to bow to the storm. Breaking through an order of the Scottish Privy Council, he proceeded direct to court, in the hope of gaining something from the royal favour. Having resigned into the king’s hands his sheriffship of Aberdeen, and made some excuses for his non-execution of the Council’s orders, he obtained certain ‘instructions for the clergy of Scotland,’ ordering them to use Huntly, Angus, Nithsdale, and Abercorn ‘with discretion,’ and not proceed further against them till he should be consulted; also commanding that papist peeresses be not excommunicated, provided their husbands be responsible for them, and that they reset no Jesuits.<sup>14</sup> Huntly then came (November 3) in humble form before the Council, made excuses for his non-execution of their orders, and besought them for a gift of his own confiscated property in behalf of some person whom he might nominate. Notwithstanding the

king's favourable letter, they demurred to this petition, and put him off for some weeks, at the same time taking caution that he should not pass north of the Tay. Coming again before them on the 8th of December, he was told that he could not be excused from 'exhibiting' the papists residing on his estates. He was also commanded to return on a certain day, when he might witness his daughters being 'sequestrat for their better breeding and instruction in the grounds of the true religion.'

Amongst the movements in this important cause was one regarding the children of noted papists. It was feared that the ordinances for having them brought up under Protestant tutors had been much disregarded. The Earl of Angus had been ordered to place his eldest son, James Douglas, under Principal Adamson of the Edinburgh University, to have remained with him some certain space, in order to have his doubts in religion resolved. The young man had given his tutor the slip. The earl was therefore called before the Council. He explained that he had no knowledge of what the youth had done till it was past, and he had since sent him to the Duke of Lennox, that he might be introduced to some English university. He was obliged to crave pardon of the Council for what he had done. The representative of the great Douglasses of the fifteenth century compelled, in the seventeenth, to give up the right to educate his own son, and confess himself a delinquent for even attempting such a thing! 'The Earl of Errol's twa daughters, the Laird of Dalgetty's bairns, and the bairns of Alexander Gordon of Dunkinty,' were said to be under 'vehement suspicion of being corrupted in their religion by remaining in their fathers' company.' So likewise were the daughters of the Marquis of Huntly, the children of Lord Gray, and many others. The Earl of Nithsdale was ordered to 'exhibit' his son, that the Council might see if he was right in the faith. Even Lord Gordon, who soon after undertook a commission for the government against the northern papists, was commanded to send his sons to a tutor approven of by the Archbishop of St Andrews.

We get a glimpse of some of the proceedings in regard to the estates of the Catholic gentlemen from a 1628. supplication presented to the Privy Council on the 15th of December 1629 by the commissioners of the diocese of Aberdeen. It proceeds to narrate that, it having pleased the Lords, 'to the glory of God and *comfort of all weel-affected subjects*, for purging the land of popery, to

grant sundry letters against excommunicat rebels, their persons, houses, and rents’—decreets, moreover, having been obtained in the Court of Session for poinding and arrestment—the officers had consequently dealt with certain friends of the victims, who had undertaken to labour the lands for the crop 1629, and to account for the result according to a valuation made ‘before the corns came to the hook;’ but there had been some slackness in the working out of these arrangements, ‘to the great hinder of his majesty’s service, and encouraging of these excommunicat rebels to continue in their obstinacy and disobedience.’ It was therefore necessary to take sharper methods; and a strict commission to the Bishop of Aberdeen was suggested. The Council accordingly ordered the bishop to call the officers before him, and have them ‘tried of their diligence’ and honest and dutiful carriage in this matter, and to see that they were prompted where necessary.

For further proceedings regarding the ‘excommunicat papists and rebels,’ see forward, under January 1630.

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On this day—an unusual season for thunder in our climate—a thunder-clap fell upon Castle-Kennedy, the seat of the Earl of Cassillis in Ayrshire—‘which, falling into a room where there were several children, crushed some dogs and furniture; but happily the children escaped. From thence descending to a low apartment, it destroyed a granary of meal. At the same time, a gentleman in the neighbourhood had about thirty cows, that were feeding in the fields, struck dead by the thunder.’<sup>15</sup>

1629. JAN. 26.

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The case of John Weir ‘in Clenochdyke,’ who had married Isobel Weddell, the relict of his grand-uncle, and thus been guilty of ‘incest,’ was under the consideration of the Privy Council. Weir had been three years under excommunication for this crime, which the Council deemed ‘fit to procure the wrath and displeasure of God to the

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whole nation.’ The king’s advocate was now ordered to proceed with his trial, and, in the event of his conviction, to cause sentence to be passed; but they superseded execution till July. Weir was actually tried on the 25th of April, found guilty, and sentenced to be beheaded at the Cross of Edinburgh.<sup>16</sup> After suffering a twelvemonth’s imprisonment under this sentence, he became a subject for the special mercy of the king, and was only banished the island for life.

Weir’s is not a solitary case. On the 19th of August in the same year, Henry Dick, ‘in Bandrum,’ was adjudged to lose his head for a transgression in connection with the sister of his wife, this offence being regarded as incest, and misinterpreted as a breach of a well-known text which is still the basis of an English law. In July 1649, Donald Brymer for the same offence was sentenced to the same punishment. It is worthy of notice that, in June 1643, Janet Imrie, who had been the paramour of two brothers, was for that reason condemned to be beheaded.

One of the most remarkable of a large class of cases of this kind was that of Alexander Blair, a tailor in Currie, who had married his *first wife’s half-brother’s daughter*.<sup>17</sup> For this offence, under reverence for the same misinterpreted text, he was condemned to lose his head! (September 9, 1630.)

It is deplorable to see these severe punishments inflicted for acts which neither interfere with any principle of nature, nor tend in any way to injure the rights of individuals or to trouble society. At the same time, the marriage of first-cousins, which tends to the deterioration of the race, was not forbidden.<sup>18</sup> And offences of real consequence, as affecting the condition of individuals, were visited with comparatively light penalties. Thus, on the same day when Alexander Blair, tailor in Currie, was sentenced to lose his head for marrying his first wife’s half-brother’s daughter, William Lachlane was adjudged to banishment for life for bigamy. The jurisprudence of the country on these points was mainly guided by a few semi-religious or rather superstitious views, while the voice of God through nature no one thought of listening to or applying.

Died Jean Gordon, remarkable in our history as the lady whom James Hepburn Earl of Bothwell divorced in 1567, in order to be enabled to ally himself to Queen

1629. MAY 14.

Mary. She survived that frightful time, in peace and honour, for sixty-two years, exemplifying how durable are calmness and prudence in comparison with passion and guilt. Since her separation from Bothwell, she had been the wife of two other husbands—first, Alexander Earl of Sutherland; and second, the Laird of Boyne. ‘A virtuous and comely lady, judicious, of excellent memory, and of great understanding above the capacity of her sex; in this much to be commended, that, during the continual changes and particular factions of the court in the reign of Queen Mary, and in the minority of King James VI., (which were many,) she always managed her affairs with so great prudence and foresight, that the enemies of her family could never prevail against her, nor move those that were the chief rulers of the state at the time, to do anything to her prejudice; a time indeed both dangerous and deceitful. Amidst all these troublesome storms, and variable courses of fortune, she still enjoyed the possession of her jointure, which was assigned unto her out of the earldom of Bothwell, and kept the same until her death, yea, though that earldom had fallen twice into the king’s hands by forfeiture in her time.... By reason of her husband Earl Alexander his sickly disposition, together with her son’s minority at the time of his father’s death, she was in a manner forced to take upon her the managing of all the affairs of that house a good while, which she did perform with great care, to her own credit, and the weal of that family.... She was the first that caused work the *coal heugh* beside the river of Brora, and was the first instrument of making salt there. This coal [now interesting chiefly in a geological point of view, as connected with the oolitic formation] was found before by Earl John, father of Earl Alexander; but he, being taken away by an untimely death, had no time to enterprise this work. This lady built the house of Cracock, where she dwelt a long time.’—G. H. S.

This character, though drawn by the partial hand of a son, may be accepted as on the whole a true, as it is certainly a pleasing description, of the *divorcée* of Bothwell. The lady was buried in Dornoch Cathedral

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A service to property depending at this time before the Court of Session between the Earl of Cassillis and the Earl of Wigton, these nobles appeared in Edinburgh,

JULY 18.

each with a multitude of followers, who paraded the streets in a tumultuous manner, and with such demonstrations of animosity as must have recalled the days of James VI. to many an anxious citizen. The Privy Council met in alarm, and appointed a committee to go and admonish the two litigant nobles about these unseemly appearances. It was enjoined that, while in town waiting on the service, they should not appear on the streets with more than twelve followers each, and that in peaceable manner, nor come to the bar with more than six, dismissing all others who had not known occasion to be present. At the same time, the noblemen who were the friends of the several parties were ‘to forbear the backing of them at this time,’ on pain of censure as ‘troublers of his majesty’s peace.’—*P. C. R.*

1629.

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Throughout the whole time of the papist persecution, the Scottish authorities found it necessary to give a good deal of attention to matters of diablerie. Either witches and warlocks were particularly rife at that time, or the same enlightened spirit which assailed the papists was particularly keensighted and zealous in finding out offenders connected with the other world.

On the 30th of October 1628, the Earl of Monteath, Lord Justice-general of the kingdom, reported to the Privy Council the case of Janet Boyd, spouse to Robert Neill, burgess of Dumbarton, who had freely confessed that she had entered in covenant with the devil, had received his mark, had renounced her baptism, and been much too intimate with the above grisly personage, through whose power she had laid diseases upon sundry persons. The Council approved of a commission for trying Janet and for ‘the punishing of so foul and detestable a crime.’—*P. C. R.*

In the course of 1629, Isobel Young, spouse to George Smith, portioner in East Barns in Haddingtonshire, was burnt for witchcraft. She had been accused of both inflicting and curing diseases; and it appears that she and her husband had sent to the Laird of Lee to borrow his *curing-stone* for their cattle, which had the ‘routing ill.’ This is interesting as an early reference to the well-known *Lee Penny*, which is yet preserved in the family of Lockhart of Lee, being an ancient precious stone or amulet, set in a silver penny. It is related that Lady Lee declined to lend the stone, but gave



flagons of water in which the penny had been steeped. This water, being drunk by the cattle, was believed to have effected their cure.

One Alexander Hamilton was apprehended as a notorious warlock, and put into the Tolbooth of Edinburgh—where he would have for a companion in captivity the Lady Abercorn, whose offence was not less metaphysical than his own. He ‘delated’ four women of the burgh of Haddington, and five other women of its neighbourhood, as guilty of witchcraft. The Privy Council sent orders (November 1629) to have the whole Circean nine apprehended; and as their poverty made it inconvenient to bring them to Edinburgh, the presbytery of Haddington was enjoined to examine them in their own district. What was done with them ultimately, we are not informed. Another woman, named Katherine Oswald, residing at Niddry near Edinburgh, was likewise accused by Hamilton, and taken into custody. This seems to have been considered an unusually important case, as four lawyers were appointed to act as assessors to the justices on her trial.—*P. C. R.* It was alleged of Katherine that she had that partial insensibility which was understood to be an undoubted proof of the witch quality. Two witnesses stated that they ‘saw ane preen put in to the heid, by Mr John Aird, minister, in the panel’s shoulder, being the devil’s mark, and nae bluid following, nor she naeways shrinking thereat.’<sup>19</sup>

Hamilton alleged that he had been with Katherine at a meeting of witches between Niddry and Edmondstone, where they met with the devil. It was also stated that she had been one of a witch-party who had met at Prestonpans, and used charms, on the night of the great storm at the end of March 1625. But the chief articles of her dittay bore reference to cures which she had wrought by sorcery. Katherine was convicted and burned.—*B. A.*

In November, the Privy Council issued a commission to the Bishop of Dumblane for the examination of John Hog and Margaret Nicolson his spouse, ‘upon their guiltiness of the crime of witchcraft, with power to confront them with others who best can give evidence.’ This pair were soon after brought to the Edinburgh prison, whence, however, they were speedily released on caution for reappearance. The Lords, on the same day, issued a charge against ‘Margaret Maxwell spouse to Nicol Thomson, and Jean Thomson her

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daughter, spouse to umwhile Edward Hamilton, in Dumfries,' who, it was said, had procured the death of the said Edward 'by the devilish and detestable practice of witchcraft.' Claud Hamilton of Mauchline-hole, brother of the deceased Edward, soon after (December 22, 1629) presented a petition to the Privy Council, claiming that they should order an examination of Geillie Duncan of Dumfries, now in hands there on suspicion of a concern in the fact. The Council accordingly commissioned the magistrates and ministers of Dumfries to effect this examination.

The warlock Alexander Hamilton also accused the Lady Home of Manderston, in Berwickshire, of having practised against the life of her husband by witchcraft. Patrick Abernethy, notar in Dunse, and William Mowat, a servant, were accordingly cited by the Council to come and give information regarding the case. The presence of Sir George himself was of course desirable; but Sir George, like many other good Scotch lairds, of that day and of later days, was under some danger of the law on account of his debts. It therefore became necessary to send him a protection, in order that he might be enabled to appear in the city. There does not seem to have been any other foundation for this charge than the fact, that Sir George Home and his wife did not live on amicable terms. Some months after (June 29, 1630), we find Sir George giving caution that he will not molest his wife or any of her tenants, 'in their bodies, lands, rooms, possessions, corns, cattle, guidis or geir, otherwise nor by order of law.'

Hamilton himself was tried (January 22, 1630), when it came out that he had begun his wicked career in consequence of meeting the devil in the form of a black man on Kingston Hills, in Haddingtonshire. Being engaged to serve the fiend, he was instructed to raise him by beating the ground thrice with a fir-stick, and crying: 'Rise up, foul thief!' He had consequently had him up several times for consultations; sometimes in the shape of a dog or cat, sometimes in that of a crow. By diabolic aid, he had caused a mill full of corn, belonging to Provost Cockburn, to be burned, merely by taking three stalks from the provost's stacks, and burning them on the Garleton Hills. He had been at many witch-meetings where the enemy of man was present. This wretched man was sentenced to be worried at a stake and burned.

On the 3d of July 1630, the Council took order in the case of Alie Nisbet, midwife, of Hilton (apparently in

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Berwickshire), and also in that of John Neill, John Smith, and Katharine Wilson, ‘concerning their practice of witchcraft.’ Nisbet was accused of curing a woman by taking a pail with hot water and bathing the patient’s legs. This may appear as a very natural and proper kind of treatment; but there was an addition: she put her fingers into the water, and ran three times round the bed *widdershins*, or contrary to the direction of the sun, crying: ‘The bones to the fire, and the soul to the devil!’ thereby putting the disease upon another woman, who died in twenty-four hours. Nisbet also had put some enchanted water under a threshold, for the injury of a servant-girl against whom she had a spite, and who passing over it was bewitched, and died instantly. She was ‘worried and burnt.’—*B. A.*

In March 1631, occurred a case which throws some light upon the affair in which Sir George Home of Manderston was the intended victim. John Neill, in Tweedmouth, was then brought forward and tried for sorcery and witchcraft. It was alleged of him that ‘he made a man’s wife wash her husband’s shirt in a south running water, and then put it on him; whereupon he recovered.’ He professed skill in both laying on and taking off diseases. Amongst other things laid to his charge was ‘meeting with the devil and other witches on Coldingham Law, and consulting how Sir George Home of Manderston might be destroyed, to that end getting ane enchanted dead foal, and putting it in Sir George’s stable, under his horse’s manger, and putting a dead hand enchanted by the devil in Sir George’s garden in Berwick; by which enchantments Sir George contracted a grievous disease, of which he could not be recovered till the said foal and hand were discovered and burnt.’ He was found guilty.<sup>20</sup>—*B. A.*

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At this time, the country was overrun by a multitude of ‘strong and sturdy Irish beggars,’ who went in troops, extorting alms where it was not freely given them.

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‘Where they perceive they can be masters, they commit sundry insolencies upon his majesty’s good subjects, who are not able to withstand them.’ Thus ‘the native poor are prejudged of their almous by the scoffery and oppression of thir sturdy beggars, who are an heavy and insupportable

burden to the country.’ An order was issued by the Privy Council for clearing the country of this nuisance.—*P. C. R.*

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Lady Jean Drummond, only daughter of the Earl of Perth, was married to the Earl of Sutherland, with a portion of 5000 merks, ‘the greatest portion that ever was given in Scotland before that time.’—*Hist. House of Seytoun*.

1629.

This notice may be held to imply that 5000 merks (£287, 17s. 4d.) was an uncommonly liberal portion for a woman of family in that age; but the writer is not correct in saying that it was unexampled till 1629. This will appear from the following notice, extracted from the Caldwell Papers, in which there are instances of equal or larger dowries before that time, as well as of some smaller: William Mure of Glanderston, marrying Elizabeth Hamilton, aunt to Gavin Commendator of Kilwinning, in 1559, received with her a dower of 400 merks, with a beneficial interest in two farms. In 1583, Lady Anne Montgomery of Eglintoun brought her husband, Lord Semple, 6000 merks. The dowry of Jean Hamilton, the vicar of Dunlop’s daughter, in 1613, was 5000 merks; that of Jean Knox of Ranfurly, 11,000 merks; Jean Mure of Glanderston, in 1671, 8000 merks; Margaret Mowat of Ingliston, in 1682, 12,000 merks.

When we turn back to an earlier age, we find what appears much greater simplicity on the point of tochering daughters. The Laird of Grant and Margaret Ogilvie, daughter of James Ogilvie of Deskford, were married in 1484. For a curious anecdote of their son, *Shemus nan Creagh*, see under February 7, 1592. ‘Their marriage-contract yet extant [dated 1484] gives account of the tocher, jointure, and friendship between these families. The tocher given by Sir James Ogilvie with his daughter to the Laird of Grant was *three hundred merks*, paid at five terms or years; that is, forty pounds Scots yearly; and the jointure given by Sir John to his lady, together with the provision of their children, was twenty merks’ worth of land yearly.’<sup>[21](#)</sup>

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In the fertile district between Falkirk and Stirling, there was a large moss with a little loch in the middle of it, occupying a piece of gradually rising ground; a highly cultivated district of wheat-land lay below. There had been a series of heavy rains, and the moss became overcharged with moisture. After some days, during which slight movements were visible on this quagmire, the whole mass began one night to leave its native situation, and slide gently down to the lower grounds. The people who lived on these lands, receiving sufficient warning, fled and saved their lives; but in the morning light they beheld their little farms, sixteen in number covered six feet deep with liquid moss, and hopelessly lost.<sup>22</sup>

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The singular nature of this calamity, and the sad case of the poor people who had by it lost their all, drew general attention. The Privy Councillors sent commissioners to the place to ‘give order where and in what places draughts shall be casten, levels and passages made, and what else is fitting to be done, for securing the neighbouring lands from inundation and skaith.’ There was also a general collection of money throughout the kingdom for the relief of the sufferers.—*P. C. R.*

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There is no room to doubt that the king, so far as he took any part in the prosecution of the northern papists, only had in view ‘the comfort of his weel-affected subjects,’ and was willing to make the papists suffer no more than was fairly necessary to maintain the reputation of his ecclesiastical policy. He must have strongly sympathised with the Catholic nobles, all of whom were his personal friends, and supporters of his government; nor could he have heard of even the sufferings of the middle-class gentry without some compunctious visitings. We find him in January 1630 venturing on a measure of lenient tendency. The Lord Gordon, eldest son of the Marquis of Huntly, had been, through the influence of the late king, brought up with Protestant leanings. To him King Charles thought of granting a commission for the execution of the laws against the excommunicated papists, no doubt calculating that he would use a humane

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discretion in the business. The Privy Council accordingly gave him such a commission, to last for four months, and to include the power of appropriating the rebels' rents to his own use. We learn from Sir Robert Gordon, that Lord Gordon was unwilling to accept this commission, lest he should offend his father and prejudice his position as commander of the King of France's Scots Guard. But he got over his scruples, and, as Sir Robert tells, performed his duty with a degree of 'dexterity and moderation' that gained him the approbation of all parties.

While Lord Gordon proceeded northward with this large commission, his father remained in restraint in Edinburgh, still under obligation to exhibit the rebels on his own property, if Lord Gordon should fail to do so; and his daughters rested there also, under 'sequestration,' that the ministers of the true gospel might have access to them and induce them to attend church.

Lord Gordon had scarcely been a fortnight in enjoyment of his commission, when he found occasion to petition the Privy Council regarding the escheats of the rebels. If they gave these men a third of their rents as a means of supporting them abroad, it would be a deduction so far from the remuneration held out to him. Was this just? They appear to have been sensible of the force of this appeal, for they immediately decreed that no such deduction should be made. Whether Lord Gordon actually meant to appropriate these rents wholly to himself, does not appear.

On the 1st of June, Lord Gordon came before the Council to report progress, and it appeared that he had really used some diligence. Mr Robert Bisset; Gordon of Tilliesoul; John Gordon at the Mill of Rathven; Gordon of Drumquhaill; Alaster Gordon, in Badenoch; Hugh Hill; John Spence and his spouse; John Gordon, in Troups-mill, and his spouse; and Alexander Gordon, had all 'given obedience and reconciled themselves to the kirk;' that is, had put a constraint upon their professions of belief, and conformed to what in their hearts they detested. Others as yet stood out in their 'obstinate disobedience to the church'—namely, Robert Bisset's spouse; Gordon of Cairnbarrow; Gordon of Letterfour; the goodwife of Cornmellat; Malcolm Laing; Adam Strachan; Angus M'Ewen; Gordon of Corrichie; Forbes of Blackton and his spouse; Robert Innes's spouse; Con, at Knockmill; Leslie, in Convach; the spouse of Thomas Menzies of Balgownie; and Alexander Irving, his wife, and brother. Gordon of Craig

and his eldest son offered caution to retire from the country. Margaret Gordon was confined in Banff, and Menzies of Balgownie was in exile.

Of nearly every one of the obdurate we have some account of what they afterwards did or suffered. Most of them appeared (July 20), and came under obligation either to conform before a certain day or straightway to leave the country. About the same time, Sir John Ogilvy of Craig, who had long been warded in Edinburgh Castle for his religion, and also Dr William Leslie, came under similar engagements. One of those who seemed least likely to succumb was John Gordon of Bountie. Living close to the gate of Viscount Melgum, the brother of Lord Gordon, he had been bold enough to allow a priest, Mr Robert Mortimer by name, to perform a mass before a large company in his house; and when two of the presbytery came to Lord Melgum's house to remonstrate, and John was called in to speak for himself, he broke forth in outrageous reviling speeches, saying he would leave the country, but before he went he would take the lives of these two ministers. But even this hot-headed gentleman was brought low. He was induced to make a humble supplication to the Bishop of Aberdeen for reconciliation with the church; and on an ample declaration of his repentance, he was absolved from excommunication. It is lamentable to think, of such a zealot being obliged, for the saving of his property and place in the country, to swear on his 'great oath' eternal allegiance to the Protestant Church, and, with a heart full of suppressed rage and indignation, sit down and eat and drink unworthily of the feast which symbolises the union of the heart to the religion of peace and love.

1630.

On the 27th of July, the Council received a petition from John Gordon of Craig, which, on account of its simple and touching expression, may be given entire.<sup>23</sup> It 'humbly sheweth that, for religion, order hath been given for banishing the petitioner's son, his wife and children, and confining himself—in respect of his great age—in a town within Scotland [Cupar], which order they have all humbly obeyed, his son, wife, and poor children having forthwith abandoned the kingdom. A two part of the poor estate which he hath being allotted for his son and his family, and a third part for himself, he now findeth that by such a mean proportion he cannot be able to live, being both aged and sickly. His humble suit is, that he may have leave to depart the kingdom to live with his son, because by their estate

undivided, they may all be more able to subsist than otherwise.’ It will probably surprise the reader, even after the preceding recital, to learn that the Council found the desire of the supplication ‘unreasonable,’ and ‘forder declare that the said John Gordon of Craig sall have no modification nor allowance of ane third part of his estate and living, except he remain within the kingdom and keep the bounds of his confinement.’

On the 7th of February 1630, it was found that, owing to Cupar being situated on a thoroughfare, old Craig was visited by a considerable number of persons ‘suspect in religion, with whom he has not only secret conference, but there is pregnant presumption that other practices are entertained amang them in hurt and prejudice to the true religion.’ This being in contravention of the agreement made with Craig, that he should have conference only with the ministry and not with papists, he was ordered to be removed to the out-of-the-way burgh of Crail, and to be confined there and within a mile thereof.

1630.

After the popish gentlemen had been thus dealt with, there remained a considerable number of ladies who as yet had not been much troubled. But these gentlewomen were not to escape. On the 23d of December 1630, the Privy Council adverted to ‘Madelen Wood, spouse to ——— Leslie of Kincraigie; Jonet Wood, spouse to John Gordon of Bountie; Marjory Malcolm, spouse to Matthew Alexander, in Turriff; Barbara Garden, spouse to ———]; ——— Gordon, spouse to Mr Robert Bisset of Lessendrum; Isobel Strachan, spouse to John Spence, in Brunstain; and ——— ———, spouse to John Gordon at the Mill of Rathven, who are not only professed and avowed papists, and excommunicat by orders of the kirk for that cause, but with that they are denounced his majesty’s rebels and contemptuously lies at the horn unrelaxt.’ It was further alleged of these ladies, that they ‘are common reseters, hoorders, and enterteiners of Jesuits, and mess priests, and trafficking papists—hears mess of them, and otherwise lives afir ane most scandalous and offensive manner.’ An order was issued that these women should appear personally with their husbands, ‘that order may be tane with them.’

As a specimen of the dealing of the authorities with the gentler and weaker sex:—On the 9th of September 1630, the Lords of Council received a petition from Elizabeth Garioch, setting forth her case as a sufferer for her ‘averseness and non-conformity to the religion presently professed.’ She



was an old decrepit woman, past threescore and ten years, bedrid for the present, and not likely long to live. She had lain for months in the Tolbooth of Aberdeen, with ‘no earthly means to entertein herself but ane croft of sax bolls sawing, and neither husband nor child to attend to the winning and ingathering thereof.’ The misery of her circumstances made her restraint, she said, the more grievous. Therefore she craved release from prison, professing, ‘for the eschewing of scandal, which her remaining in the country may breed or occasion,’ her willingness to give security that she should remove herself forth of the kingdom. The Lords mercifully remitted to the Bishop of Aberdeen to see to Elizabeth Garioch being liberated on her giving caution to the extent of a thousand merks for her self-banishment.

In November 1630, a curious circumstance is noted regarding the Dr William Leslie above named. Licence was granted to him by the Privy Council to return temporarily to medicate to the Marquis of Huntly, he being the person ‘whose judgment in matters of that kind the said marquis does only trust,’ it being provided ‘that the said Dr William shall behave himself modestly, without giving offence and scandal in matters concerning the religion.’—*P. C. R.*

1630.

It is remarkable that, while the histories of our country and its national church are careful to note every particular of the conflict between presbytery and episcopacy at this period, there is nowhere the slightest allusion to these sufferings of the remnant of Romanists, towards which Presbyterians and Episcopalians alike contributed. It is to be feared that the actual severities which were dealt upon the party were not the worst evils in the case. In the external conformity which was forced upon many—so many that only sixty avowed papists were thought to be left in Scotland—we cannot doubt that there was involved a hypocrisy which would be bitterly felt—always the more bitterly where there was an upright and honourable spirit—and which would in the long-run have the most demoralising effects.

A full history of the proceedings of the Romish priests in Scotland, during the reigns of James VI. and Charles I., would shew examples of heroic courage, self-devotion, and religious enthusiasm, equalling any that can be adduced from the

1630.

reformed denominations. ‘Capuchin Leslie, called the Archangel,’ appears, from his biography,<sup>24</sup> to have been a man of singular gifts and earnestness. The eldest son of the Laird of Monymusk, in Aberdeenshire, he had been brought up at Paris, and there converted to Romanism in his youth. Before attaining majority, he had gone to those heights in devotion and asceticism which produce hallucinative voices and lights. Making his way through unnumbered dangers to his native castle, he there set himself to the work of preaching. He collected the people in the woods, or beset them as they were leaving the parish church; addressed them in a style of burning eloquence, with threats of the fate reserved for heretics; and is said to have brought thousands into his views in a few weeks. His admiring biographer tells how he confounded the minister of Monymusk by asking him to exhibit any reference to the church of Geneva in the Bible, shewing him at the same time the Scriptural foundation of the *true* church, by pointing out Paul’s Epistle to the Romans! His mother and other relatives were brought over to the ancient faith. For two years he exposed his life in this manner, but was at length obliged to leave the district by one of these threatening edicts. Meanwhile, his family, being discovered to be Catholics, had their property confiscated, and his mother was obliged to retire to a hovel, where she endeavoured to support herself by spinning. It is related that Father Archangel, being resolved at all hazards to visit her, dressed himself like a gardener, and cried herbs through the village till he discovered his mother. After a hurried interview, he was obliged to leave her once more, and depart from the kingdom. He nevertheless returned and recommenced his labours; and this extraordinary man ultimately sunk at an early age, under a fever caught while making a skulking journey across the Border.

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John Hart, printer in Edinburgh, being about to bring out an edition of the Bible, the Town Council gave him formal permission to take a new apprentice ‘for the advancement of the said wark,’ ‘notwithstanding the time of three years be not past, since he replaced an apprentice last;’ ‘providing always it sall not be lawful to him to tak and have ane other prentice before the expiring of six years.’—*Ed. Coun. Reg.*

APR. 21.

As restrictions on the taking of apprentices still exist in various trades, we must not be too ready to smile at this as a peculiar trait of the barbarous political economy of a past age.

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On the birth of the prince, afterwards Charles II., which took place between eleven and twelve this forenoon, the Lyon King at Arms was despatched by the king from London, to carry the news to Scotland. The Lyon arrived in Edinburgh on the third day thereafter, June 1st, when immediately cannon were shot, bells rung, and a table spread in the High Street, between the Cross and the Tron, for two hundred persons, including the nobility, Privy Council, and judges, the company being waited on by the heralds and trumpeters in their official dress.—*Bal.*

MAY 29.

‘In this May were five Saturdays, five Mondays, twa changes of the moon, twa eclipses of the sun, ane other of the moon, all in our horizon.’—*Chron. Perth.*

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Writers of the religious history of Scotland during the seventeenth century, pause upon a remarkable administration of the communion which took place at this date in the Kirk of Shotts. The great attraction on the occasion was a young clergyman, afterwards famous, named John Livingstone. In consequence of the impression now made, a great portion of the assembled multitude remained at the place over the night; so it was necessary for the favourite preacher to hold forth next day. He did so with such power, and such a ‘down-pouring of the spirit,’ that the congregation was thrown into ‘unusual motion,’ and five hundred traced their conversion to that sermon alone. Amongst the hearers were three young men of Glasgow, who, journeying to Edinburgh on a pleasure-excursion, chanced to stop at the village for breakfast and the refreshment of their horses. So affected were they, that they entered into no amusements

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in Edinburgh, but speedily returned home, and were ever after noted as serious Christians. This is understood to have been the first instance of what has since been a common custom; that is, to have services on the Monday following the communion.—*Gillies*.

In this year and for some time afterwards, the parish of Stewarton, in Ayrshire, was the scene of ‘a very solemn and extraordinary out-letting of the spirit,’ few Sundays passing ‘without some one being converted, or some convincing proofs of the power of God accompanying his word.’... ‘Yea, many were so choked and taken by the heart, that, through terror, ... they have been made to fall over, and thus carried out of the church, who after proved most solid and lively Christians.’ The fervour spread from house to house along both sides of Stewarton Water. The profane called it the Stewarton Sickness.

‘The poor people, purely from conscience, were seized with such an apprehension of God’s wrath, and fear of eternal damnation because of their sins, that rest they could have none. This they were able to demonstrate to be no melancholy fancy, but a rational apprehension of their real danger, being at that time both ignorant, profane, and absolutely strangers to Jesus Christ, by [beside or apart from] whom they could have neither hope of mercy nor title to salvation; and this was beyond the reply of any divine. When by godly ministers ... they were directed to the performance of those duties which accomplish conversion from Satan to Christ, their peace became as strong as their terror had been troublesome....’<sup>25</sup> ‘The Countess of Eglintoun did much countenance them, and persuaded her noble lord to spare his hunting and hawking some days to confer with some of them whom she had sent for to that effect. Her lord, after conference with them, protested that he never spoke with the like of them, and wondered at the wisdom they manifested in their speech.’<sup>26</sup>

1630.

The Stewarton Sickness took its first rise in the ministrations of Mr David Dickson, minister of Irvine, afterwards a conspicuous figure in the time of the National Covenant. He was accustomed each Monday, being the market-day of the burgh, to give a sermon for the benefit of those who came there with their commodities for sale; and thus it was that the Stewarton people had opportunities of kindling under his eloquence. ‘At Irvine, Mr Dickson’s ministry was singularly countenanced of God. Multitudes were

convinced and converted; and few that lived in his day were more honoured to be instruments of conversion than he. People under exercise and soul-concern came from every place about Irvine and attended upon his sermons, and the most eminent and serious Christians from all corners of the church came and joined him at his communions, which were indeed times of refreshing from the presence of the Lord.’<sup>27</sup> ‘Yea, not a few came from distant places and settled at Irvine, that they might be under the drop of his ministry. Yet he himself observed that the vintage of Irvine was not equal to the gleanings of Ayr in Mr Welch’s time.’<sup>28</sup>

‘John Lockhart tells me (1727) that he was in company with an old Christian who was a young man in the time of the famous Stewarton Sickness.... In a great many, it came to a kindly conversion ... but in severals it came to nothing, and in a little time wore off, and the persons became just what they were formerly.’—Wodrow.<sup>29</sup>

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At this time there lived near the town of Dunse a poor woman generally believed to be possessed by an evil spirit. The Earl (afterwards Duke) of Lauderdale, when a prisoner in Windsor Castle in 1659, sent an account of her to Mr Richard Baxter, who has published it in his *Certainty of the World of Spirits*. The earl, then a boy at school, used to hear conversations about the possessed woman between his father and the minister of Dunse, who was fully convinced of the fact of the possession. This clergyman and some other clergymen proposed to the Privy Council a fast for her benefit; but it was not allowed by the bishops. ‘I will not,’ says the earl, ‘trouble you with many circumstances; one only I shall tell you, which I think will evince a real possession. The report being spread in the country, a knight of the name of Forbes, who lived in the north of Scotland, being come to Edinburgh, meeting there with a minister of the north, and both of them desirous to see the woman, the northern minister invited the knight to my father’s house (which was within ten or twelve miles of the woman), whither they came, and next morning went to see the woman. They found her a poor ignorant creature, and seeing nothing extraordinary, the minister says in Latin to the knight: “Nondum audivimus spiritum

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loquentem.” Presently a voice comes out of the woman’s mouth: “Audis loquentem, audis loquentem.” This put the minister into some amazement (which I think made him not mind his own Latin); he took off his hat, and said: “Misereatur Deus peccatoris!” The voice presently out of the woman’s mouth said: “Dic peccatricis, dic peccatricis;” whereupon both of them came out of the house fully satisfied, took horse immediately, and returned to my father’s house at Thirlstane Castle, in Lauderdale, where they related this passage. This I do exactly remember. Many more particulars might be got in that part of the country; but this Latin criticism, in a most illiterate ignorant woman, where there was no pretence to dispossessing, is enough, I think.’

It may be remarked that the speaking of various languages which they had never learned, was one of the marks required by the canons of the Romish Church to distinguish those under real possession. The Dunse demoniac was remarkably superior in this respect to her contemporaries, the nuns of Loudun, who, in their demonstrations of possession in the celebrated case of Urban Grandier, spoke very bad Latin, not to mention their utter inability to converse in Greek or Hebrew, and yet were held by the authorities as genuine vessels of diabolic influence.

The fact of there being a reputedly possessed woman in Dunse at this time, as the Earl of Lauderdale has stated, is verified by the Privy Council Record, which contains, under date July 13, 1630, an order for bringing before them Margaret Lumsden, ‘the possessed woman in Dunse,’ together with her brother and father-in-law, that order might be taken concerning them, ‘as the importance and nature of such a great cause requires.’

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Susanna Chancellor, daughter of the Laird of Shieldhill, was accused before the presbytery of Lanark of consulting with charmers, and ‘burying a child’s clothes betwixt [three] lairds’ lands, for health.’ By penitently presenting herself on her knees before the reverend brethren, she was saved from the due punishment.—*R. P. L.*

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SEP. 23.

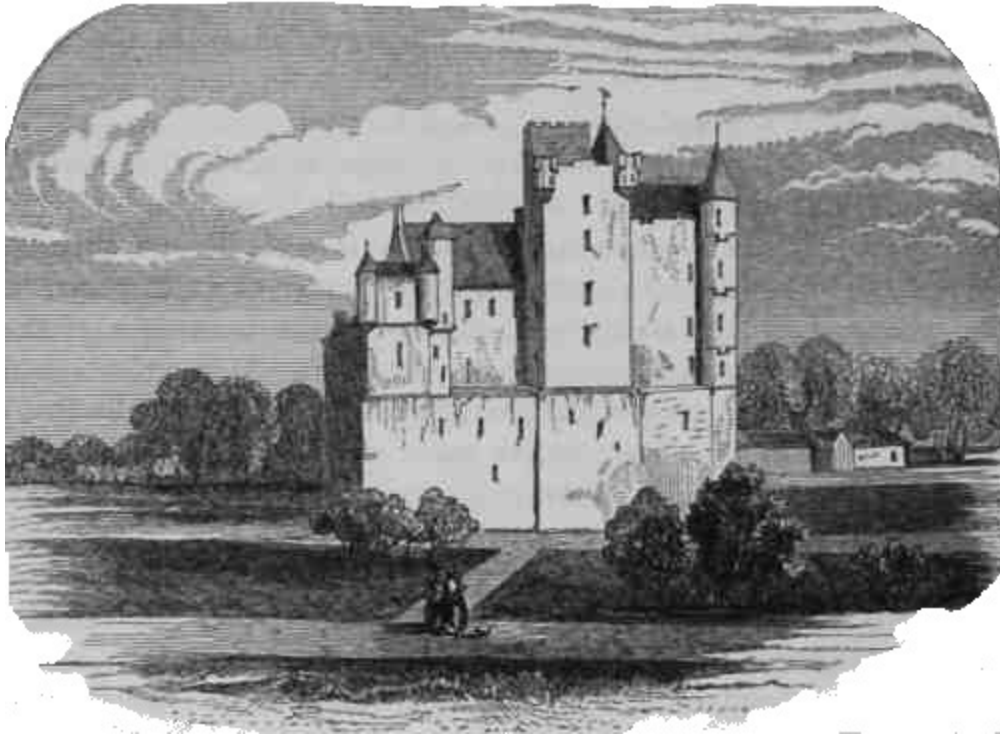
1630.

At no great distance from the Castle of Strathbogie—the modern Huntly—where the great marquis held state, dwelt two gentlemen of figure, Gordon of Rothiemay and Crichton of Frendraught. In consequence of a dispute about the salmon-fishings in the Doveran, these two gentlemen fell into litigation and bad blood; and at length, from finding Rothiemay obdurate, Frendraught had to get assistance from his neighbours to execute the laws upon his antagonist. On New-year's Day 1630, a bloody encounter took place between them, and Rothiemay was so severely wounded as to die three days after.

OCT.

Frendraught could plead that he had been only carrying out the behests of the law against one who set legal rights and decrees at defiance. But the Marquis of Huntly and other Gordons felt that it was a hard thing for Rothiemay to lose his life on such an account, and Frendraught accordingly fell under their displeasure. The young Laird of Rothiemay, calling in the assistance of the outlaw James Grant, laid waste the lands of Frendraught, who was driven in succession to the Earl of Moray, the king, and the Privy Council for the protection of the laws. It was found necessary by the Council to send a commission to allay the heats which this affair had called forth. When Sir Robert Gordon and other commissioners arrived on the ground in May, they found James Grant and two hundred Highlanders assembled at Rothiemay, ready to lay waste Frendraught's estate with fire and sword; and it was with no small difficulty that they were stayed. Sir Robert, as a connection of both Frendraught and the Gordon family, was well qualified to bring about a reconciliation, and this he effected with the assistance of the Marquis of Huntly. It was arranged that Frendraught should purchase the forgiveness of the Rothiemay family by paying a sum of money. 'And so, all parties having shaken hands in the orchard of Strathbogie, they were heartily reconciled,' says Sir Robert in his gossiping history. One cannot but see in this mode of stilling quarrels an encouragement to new ones. Frendraught, having acted all along under law, ought to have been protected by the law, instead of thus having to pay a fine of fifty thousand merks<sup>30</sup> to buy off the vengeance of a family by whom the law was disregarded and broken. But in those days the law could only be executed by favour of the leading men of the country. These leading men had their passions and their partialities. Sir Robert Gordon probably purchased Frendraught's safety on the best terms which, in the circumstances, could be obtained.

1630.



**Bog an Gicht Castle.**

These circumstances form merely the introduction to a long series of disastrous mischances which befell the Laird of Frendraught, and which have made his name memorable in Scottish tradition. In the course of autumn, a gentleman named John Meldrum, who had assisted him in the fray with Rothiemay, quarrelled with him for not being satisfactorily rewarded for his help on that occasion. To make matters right, this gentleman came and took two horses from Frendraught's lands! Frendraught, hearing that the culprit was harboured by a brother-in-law, Leslie of Pitcaple, came thither to seek back his property; but the encounter only led to one of his friends wounding a son of Pitcaple with a pistol-shot. Here was a new trouble for the unfortunate Frendraught. In great concern for what had taken place, he rode to the Marquis of Huntly at the Bog—the modern Gordon Castle—to beseech his intercession for the stanching of the quarrel. At the same time comes Pitcaple, full of designs of vengeance against Frendraught. The marquis was obliged to detain the latter as his guest, to save him from Pitcaple, who went away in great wrath.

1630.

Next day, when Frendraught proposed to go home, the marquis caused his son, Viscount Melgum, to accompany him with some other friends, in order to protect him from any attack which Pitcaple might make upon him by the



way. It chanced that the Laird of Rothiemay, so lately reconciled to Frendraught, was present on this occasion; he generously offered to be one of the escort. So Frendraught set out with his gallant company, and reached home in safety.

It was only in conformity with the customs of the age that the laird and his lady should invite Lord Melgum, Rothiemay, and the rest of the party to remain for the night. They did so. The gentlemen consented; and after a merry supper, were conducted to bedrooms in the tall narrow old tower, which, with a modern addition, formed the Castle of Frendraught. In the first floor, over a vault, through which there was a round hole, lay Melgum and two servants; in the second was Rothiemay, also with some servants; in the third, two gentlemen named Chalmers and Rollock, and some more servants, were accommodated.

About midnight, the tower took fire in a sudden manner, ‘yea, in ane clap,’ says Spalding, and involved the whole of the inmates in destruction, except Chalmers, Rollock, and a servant who slept beside Lord Melgum. Swift as the fire was, three persons escaped, and Lord Melgum might have also saved himself, if he had not, under a friendly impulse, run up stairs to rouse Rothiemay. While he was engaged in this act, ‘the timber passage and lofting of the chamber takes fire, so that none of them could win down stairs again.’ So they turned to a window looking towards the court-yard, where they were heard repeatedly calling: ‘Help, help, for God’s cause!’ The windows being stanchioned, and the access by the stair cut off by the flames, it was impossible to render any assistance, and accordingly the six persons enclosed in the burning tower were all piteously burnt to death. Melgum was but twenty-four years of age, and left a widow and child; Rothiemay was unmarried. It is stated by Lady Melgum’s chaplain, that in that last moment of extremity, Lord Melgum induced Rothiemay to make open profession of the Catholic faith; and so, ‘they two being at a window, and whilst their legs were burning, did sing together *Te Deum*; which ended, they did tell at the window that their legs were consumed, recommending their souls to God, and the nobleman his wife and child, first to God, and then to the king.’<sup>31</sup> A popular ballad of the day speaks of their being called on to leap from the window:

OCT. 8.

1630.

‘How can I leap, how can I win,  
How can I leap to thee?  
My head’s fast in the wire-window,  
My feet burning from me.’

He’s ta’en the rings from aff his hands,  
And thrown them o’er the wall;  
Saying: ‘Give them to my lady fair,  
Where she sits in the hall.’

This dismal event created a universal feeling of horror, and plunged the friends of the deceased into the greatest grief. The Laird and Lady of Frendraught were, to all appearance, deeply concerned for what had taken place. On the morning after the fire, the lady, ‘busked in a white plaid, and riding on a small nag, having a boy leading her horse, without any more in her company, in this pitiful manner she came weeping and mourning to the Bog, desiring entry to speak with my lord; but this was refused; so she returned back to her own house, the same gate she came, comfortless.’—*Spalding*. Her repulse was the more remarkable, as Lady Frendraught was a cousin of the marquis, and brought into bonds of sympathy with him and his family by being a Catholic. A fixed suspicion that she and her husband were the authors of the fire, had taken possession of the Huntly and Rothiemay families, as well as of the populace generally, though not the slightest evidence of guilt has ever been brought against them, and their loss of valuable papers, and of gold and silver articles, to the value, it was alleged, of a hundred thousand marks, rendered any concern of theirs in the fire-raising the very reverse of probable. The laird himself acted in the manner of an innocent man anxious to clear himself of suspicion. He came immediately to the Chancellor Lord Dupplin at Perth, desiring his protection, and offering to submit to trial. The Privy Council do not seem ever to have felt that there were any grounds for charging him with the guilt popularly imputed to him.

1630.

More particular suspicions fell upon John Meldrum of Redhill, the *quondam* adherent of Frendraught, but who had latterly fallen into such bad terms with him; likewise upon John Tosh, the master-household of Frendraught. These persons were accordingly apprehended, brought to Edinburgh, and examined. A servant-girl called Wood was also seized and

subjected to torture, with a view to extracting her knowledge of the circumstances; but this only produced prevarications, making her evidence of no avail,<sup>32</sup> and for which she was scourged and banished the kingdom.

In March 1631, the Marquis of Huntly, having resolved ‘not to revenge himself by way of deed,’ as his panegyrist Spalding does not fail to tell us—as if it were a great merit—proceeded to Edinburgh in order to lay his wrongs before the Privy Council. Four commissioners appointed by this body soon after proceeded to Frendraught, which they examined with great care, in company with several noblemen and gentlemen of the district. They found evidence that the fire had originated in the ground-vault of the tower, where there were marks of it in three several places, one of these being directly under the round hole in the roof which communicated with Melgum’s apartment above. They could not determine whether it was accidental; but they felt assured that ‘no hand without could have raised the fire without aid from within.’<sup>33</sup>

While these matters were pending, there occurred an incident in itself of little importance, but which marks the spirit of the time. The young Earl of Sutherland, brother to Lady Frendraught, and whose late father was cousin-german to Huntly, in the course of a journey to Edinburgh, resolved to spend a night with the marquis, and for that purpose sent forward his message from Elgin. When he arrived in the evening at Bog of Gight, the marquis gave him a cold reception, and told him that he must either break with his brother-in-law Frendraught, or with himself, as he could no longer be the friend of both. The earl answered that he would prefer the marquis to Frendraught, but that he could not with honour throw off his sister’s husband as long as he was *law-free*. Huntly immediately answered: ‘Then God be with you, my lord,’ and turned away. The Earl of Sutherland lodged that night at a neighbouring hostelry, and in the morning pursued his way south. The singularity of such an event, in an age when it was disrespectful to pass a friend’s door without partaking of his hospitality, gives it great significance.

1630.

John Tosh, after submitting to examinations by torture, and denying all guilt, was charged (August 3, 1632) with the offence of setting fire to the tower from within; but the charge was never brought before an assize, the assessors finding that an insuperable bar lay in his having passed through the ordeal of torture without confession. There were some suspicious

circumstances against him, chiefly of the nature of inconsistencies in his own declarations; but it was certainly possible to account for these upon a different theory from that of his being guilty.

John Meldrum was tried a twelvemonth later, and as it clearly appeared that he had uttered deadly threatenings against Frendraught's life, even specifying burning as the means, he was found guilty, and executed. The theory of his guilt seems to have been, that he had set fire to the tower, in the belief that the laird slept there, and effected his purpose by thrusting combustibles and fire through three slits in the wall. It must be admitted that Meldrum was the only man, of all concerned, in whom motive for murder appears; but his guilt is, after all, far from being clear. The wall was ten feet thick, and the commission had decidedly pointed to an origin within. No trace of combustibles was ever adduced, and it was proven that he had been at Pitcaple, ten or twelve miles off, that night. On the whole, when the matter is viewed without the passions of the time, it seems most likely that the fire was accidental.

As for the Gordon family, it remained fully convinced of the guilt of the Laird and Lady of Frendraught; and since full retribution could not be obtained by the law, they behoved to have it in some other way. How they proceeded, will be hereafter described.

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At Carron, on Speyside, dwelt a branch of the family of the Grants of Glenmorrison, and near by, at Ballindalloch, was a more important family of the same name. In consequence of a homicide which James Grant of the Carron family had committed some years before, there was a fierce feud between these two families. James, finding his enemies irreconcilable, and seeing no prospect of peace, became lawless and desperate. The power of the Earl of Moray proved ineffectual to repress his constant incursions upon the lands of Ballindalloch, or to obtain possession of his person. Ballindalloch himself consequently became desperate. One day, learning that John Grant of Carron and some of his people were in the forest of Abernethy cutting timber, he set upon him with

DEC.

1630.

a party, and killed him, but not without loss of life on his own side. He did this on the presumption that Carron aided his relative the outlaw.—*G. H. S.*

The Earl of Moray interposing his power as lord-lieutenant for the protection of Ballindalloch, James Grant vowed to be avenged by his own hand. On the day here noted, he came with a number of associates to Pitchass, the residence of his enemy, who, for his part, had also a number of friends attending him. ‘To train him out, he sets his corn-yard on fire, and haill laigh bigging, barns, byres, stables, wherein many horse, nolt, and sheep were burnt; and sic bestial as was not burnt, they slew and destroyed. But young Ballindalloch kept the house and durst not come out and make any defence. In like manner, James Grant, with his complices, passed to the town and lands of Tulchin, pertaining to old Ballindalloch, and burnt up and destroyed the haill bigging thereof, corns, cattle, goods and geir, and all which they could get, and to the hills goes he.’

DEC. 3.

The Earl of Moray, unable to see any better mode of dealing with this case than to ‘gar one devil ding another,’ made a paction with three broken men, the principal of whom was brother to the late chief of the Clan Mackintosh; who undertook to bring James Grant to him dead or alive. ‘They find him in the town of Auchnachill, at the head of Strathaven, within a house, and ten men with him.... James and his men wins out and takes to flight. They follow sharply, slew four of his men, wounded himself with arrows in eleven parts of his body, and when he could do no more, he was taken, and his six other men.’ As soon as his wounds were cured, he was conducted to Edinburgh, and imprisoned in the Castle, being ‘admired and looked upon as a man of great vassalage;’ but his six men were all hanged.—*Spal.*

DEC. 13.

Grant lay a prisoner in Edinburgh Castle for nearly two years. It is related that, a former neighbour, Grant of Tomnavoulen, passing one day under his prison windows, he called to him, asking, ‘what news from Speyside?’ ‘None very particular,’ rejoined his acquaintance; ‘the best is that the country is rid of you.’ ‘Perhaps we shall meet again,’ said James.<sup>34</sup>

1630.

His wife having conveyed to him some ropes in what was believed to be a cask of butter, Grant came over the walls of the Castle (October 15, 1632)

at night, and being received into the arms of his bastard son, immediately left town by a western road. For nine days he lay sick in the woods of Herbertshire, near Denny, and then vanished into the Highlands. The Privy Council, exasperated at his escape, offered a large reward for his apprehension, but in vain. He remained quiet till November 1633, when he began to resume the offensive, 'partly travelling through the country, sometimes on Speyside, sometimes here, sometimes there, without fear or dread.' His wife having retired in a delicate condition to a small lodging at Carron on Speyside, where Grant was known to visit her occasionally, young Ballindalloch hired a party of the broken Clan Macgregor, under a renowned outlaw of their tribe, named Patrick Dhu Ger, to beset him there. Grant being at Carron one night with only his bastard son and a single attendant, the Macgregors surrounded the house, and began to uncover it, in order to get at their victim. 'James Grant, hearing the noise, and seeing himself so beset, that he was not able to keep that house nor win away, resolved to keep the door with the other two as long as they might, and shot out arrows at two windows, [so] that few did venture to come near the door, except their captain ... whilk James Grant perceiving, and knowing him well, presently bends a hagbut, and shoots him through both the thighs, and to the ground falls he. His men leave the pursuit, and loup about to lift him up again; but as they are at this work, James Grant, with the other two, louns frae the house and flies, leaving his wife behind him. He is sharply pursued, and many arrows shot at him; yet he wan away safely to a bog near by with his two men. Patrick Ger died of the shot, within short while, a notable thief, robber, and briganer, oppressing the people wherever he came, and therefore they rejoiced at his death.'—*Spal*.

Another year elapsed, during which there had been some abortive attempts at a paction between Grant and young Ballindalloch. One evening in the depth of winter (December 7, 1634), as the latter was sitting at supper in his house of Pitchass, Grant's wife came in and whispered something in his ear. He rose, took his wife's plaid about him, and his sword and target in his hand, and went out with the lady, his wife following under anxiety about his welfare. He thus easily fell into an ambuscade which James Grant had set for him, and was hurried off during the night, over moss and muir, to a kiln in the low country near Elgin, where he was kept in bonds under a strong guard, without any of the comforts of life, for three weeks. From this miserable

1630.

condition, he escaped by the aid of one of his guards named Leonard Leslie, and got in safety to Innes House, where he was kindly entertained. By his own exertions, one Thomas Grant, the owner of the kiln, was hanged next summer for harbouring the outlaw James; two other men were banished for the same offence. Meanwhile, the Macgregors were active in despoiling and laying waste the lands of Corse and Craigievar, in professed revenge for the slaughter of Patrick Ger; but in February 1636, by the exertions of Stewart of Craigievar, seven of them were taken and hanged at the Cross of Edinburgh. This, again, brought into prominence a lawless Macgregor, known popularly under the name of Gilderoy, who, desiring vengeance on the Stewarts, burned some of their lands in Athole. Thus it was that wickedness continued its own existence in those days when public justice was weak.

One Thomas Grant, believed to be the same person who had thrown a taunt at James in Edinburgh Castle, was reputed to have undertaken, for Ballindalloch, to bring the outlaw to him dead or alive. James, hearing of this, came to Thomas's house, and, missing him, killed sixteen of his cattle. Lighting upon Thomas lying in bed at a friend's house near by, with his bastard brother, the pitiless outlaw took them both out naked and killed them (April 5, 1636). A few days after, he came with four men to Strathbogie, and by chance craved food at the hangman's house. The hangman, frightened at the appearance of his visitors, stole away and gave information to the bailie, who presently came with an armed party and surrounded the house. Then a desperate and bloody conflict took place, in the course of which the bailie lost two of his men. Grant after all got clear of his assailants under cloud of night; leaving, however, his bastard son and two of his men a prey to justice. Very soon after (July 27), Gilderoy and some of his associates were likewise brought to Edinburgh, and hanged.

Notwithstanding the accumulated guilt of James Grant, he subsequently obtained a remission, and lived to take part in the troubles attending the introduction of the Covenant.

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1630.

The Privy Council issued a thundering order for the putting down of those ‘vagabonds, thieves, and limmers,’ the Egyptians, of whom large bands were going about in the north parts of the kingdom, armed, extorting whatever they needed from such of the lieges as were not able to resist them.

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DEC. 14.

We get some idea of the difficulties which beset the people of a country before time and means have been obtained for forming roads, bridges, and other public works of utility, from a petition presented to the Privy Council by the minister of Rattray regarding the river Ericht, a well-known stream which debouches from the Highlands in his neighbourhood, amidst a scene truly romantic to the gaze of the modern tourist, but formerly pregnant with trouble to the people of the country. A much-frequented road or line of communication between the north and south parts of the kingdom crossed this stream at Craighall without a bridge. In a time of stormy weather, this river runs with such force that there is no ford, ‘and very oft for the space of aucht days together all passage at that water, either by coble, horse, or foot, is interrupted, to the great hinder of his majesty’s subjects, and to the extreme hazard of many of their lives, of whom, during the short time the supplicant has attended the kirk of Rattray, auchteen persons to his knowledge have perished in that water.’ An order was given for a general subscription to build a bridge.—P. C. R.

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1631. JAN. 11.



There being a scarcity at this time on the continent, while Scotland possessed a considerable quantity of wheat, the Privy Council, considering these facts, and, moreover, that wheat is not ‘the common grain wherewith the whole lieges are ordinarily fed,’ granted licence for the exporting of 4000 bolls.—*P. C. R.*

MAR. 31.

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The Town Council of Edinburgh forbade the wearing of plaids by women in the streets, under pain of corporal punishment. The plaid was the Scottish *mantilla*, and, serving to hide the face, was supposed to afford a protection to immodest conduct. A few years later (1636), the Council found that women were still addicted to the use of the plaid, or went about with their skirts over their heads, ‘so that the same is now become the ordinar habit of all women within the city, to the general imputation of their sex, matrons not being able to be discerned from loose-living women, to their awn dishonour and scandal of the city.’ For these faults, heavy fines were announced.

APR. 10.

1631.

It is amusing to find ladies subjecting themselves to false imputations, by following this denounced fashion, when they had only to walk about with their faces exhibited in order to refute or repel all scandal.

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Died this day Francis, eighth Earl of Errol, noted about forty years before for his concern in the various papist rebellions, by which the reign of King James was so much troubled. ‘He was buried in the church of Slaines, in the night, convoyed quietly with his own domestics and country friends with torch-light. It was his will to have no gorgeous burial, nor to convocate his noble friends with making great charges and expenses, but to be buried quietly, and such expenses as should be wared prodigally upon his burial, to give the same to the poor. This was a noble man, of a great and courageous

JULY 16.

spirit, who had great troubles in his time, which he stoutly and honourably still carried, and now in favour died in peace with God and man, and a loyal subject to the king, to the great grief of his kin and friends.’—*Spal.*

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When word came to Scotland regarding the seven hundred Protestants expelled from the Palatinate, and who had arrived in Nuremberg in great distress, there was a strong feeling excited in their behalf, and a collection for their relief was resolved on. It appears that, within a twelvemonth, one thousand pounds sterling was collected and sent to London; to which was afterwards added five hundred more. A considerable sum, considering the time, means of the people, and the object.—*P. C. R.*

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JULY.

A levy of 6000 Scots passed to Germany for the assistance of Gustavus Adolphus of Sweden against the emperor. They were under the command of James Marquis of Hamilton, who appeared to have raised them on his own account, and without any sanction from the king, though in reality Charles was interested in the expedition, as calculated to favour the restoration of his brother-in-law the Elector Palatine of the Rhine. This body of troops contributed to the great victory of Leipzig, which threw the whole of Northern Germany into the power of Gustavus, and it afterwards helped in the recovery of Magdeburg; but bravery and zeal could not save it from the diseases which afflicted a country reduced by war to the last extremity of wretchedness. A year saw it the mere shadow of what it originally was, while the marquis was recalled in disgust to his own country. Nevertheless, the remains of the force adhered to the Swedish service.

AUG.

1631.

Monro, in his confused way, gives a list of the Scottish officers who were under the command of Gustavus in the latter part of 1632, adding in some instances particulars of their subsequent career. It may be transferred to

these pages, as the memorial of a brave and honourable movement of the Scottish nation, and because the very names of these Monroes, Leslies, and Ramsays of two hundred years ago, can scarcely be read in such an association of ideas without exciting some interest in a Scottish bosom.<sup>35</sup>

*'Field Officers.*—The Marquis of Hamilton, general of the British army; Sir James Spence, general over Scots;<sup>36</sup> Sir Patrick Ruthven, governor of Ulm, and since general;<sup>37</sup> Sir Alexander Leslie, governor over the cities along the Baltic coast, and since field-marshal over the army in Westphalia [subsequently Earl of Leven]; Major-general James King, since lieutenant-general;<sup>38</sup> Sir David Drummond, general-major and governor of Stettin, in Pomerania;<sup>39</sup> Sir James Ramsay, general-major, had a regiment of Scots, and since was governor of Hanau.<sup>40</sup>

*'Colonels that served then of Scots.*—My Lord of Reay (M'Kay), colonel to a brigade of Scots; Sir John Hepburn, colonel, succeeded to command the Scottish brigade, and since was slain in France; Sir John Ruthven, colonel to a brigade of Dutch, and since general-major; Sir James Lumsden, colonel to a regiment of Scots; Alexander Ramsay, colonel and governor of Creutzenach; Robert Leslie, colonel to a regiment of Scots; Robert Monro, baron of Foulis, colonel of horse and foot over Dutch, and since died of his wounds at Ulm; John Monro of Obstell, colonel to a regiment of Scots, and since slain on the Rhine at Weteraw; Ludovick Leslie, colonel to a regiment of Scots, which was Sir John Hamilton's; Robert Monro, colonel to a regiment of Scots, which was my Lord of Reay's; James Kerr, colonel to a regiment of Scots, and since general-major; Sir Frederick Hamilton, colonel to a regiment of Scots and Irish; the Master of Forbes, colonel to a regiment of Scots;<sup>41</sup> Alexander Hamilton, colonel to a regiment of Scots;<sup>42</sup> the Earl of Crawford-Lindsay, colonel to a foot-regiment of Dutch, and since slain;<sup>43</sup> William Baillie, colonel to a regiment of foot of Dutch; Sir William Ballantyne, colonel to a foot-regiment of English; Sir James Ramsay, colonel to a foot-regiment of English, and since died at London; Alexander Forbes, called Finnesse Forbes, colonel to a regiment of Finnes; Walter Leckie, colonel to foot.

*'Scots Colonels that served this time in Sweden, Liefland, and Spruce.*—James Seaton, colonel to foot of Swedes; Colonel Kinninmond, colonel to

foot of Swedes, since dead; Colonel Thomson, colonel to foot of Swedes, since dead; Colonel Scott, colonel to foot of Finnes, since dead; William Cunningham, colonel to foot of Scots, in Spruce; Francis Ruthven, colonel to foot of Dutch, in Spruce; Sir John Meldrum, colonel in Spruce to foot.

*‘Lieutenant-colonels.*—Thomas Hume of Carolside, — Douglas, Henry Muschamp, Alexander Leslie, Alexander Cunningham, — Vavasour, William Gunn, John Leslie, Finnesse Forbes, Alexander Forbes, called the Bald, Robert Stewart, Hector Monro, Sir George Douglas, George Leslie, John Lindsay of Bainshow, — Monypenny, Alexander Lindsay, John Sinclair, William Stewart, Henry Lindsay, William Lindsay, James Henderson, Sir Arthur Forbes, Robert Weir, John Lyell, James Dickson, — Sandilands, William Borthwick, — Macdowgal, James Hepburn, Robert Hannan, John Monro, Robert Lumsden, William Herring, Sir James Cunningham, William Spence, John Ennis, Poytaghee Forbes, John Forbes of Tulloch, George Forbes, Alexander Hay, David Leslie [Lord Newark].’

The persecution of the Catholics had, in 1629, reached a pitch of keenness which it was not possible to maintain. The king occasionally ventured to interfere with special letters in favour of certain Romanists of rank, his personal friends, allowing them to stay in the country on hope of conversion, or else permitting them a temporary return from exile to see after their private affairs. The Privy Council itself could not always keep up the proper degree of severity. Being partly a lay-body, it would now and then take a mild view of a case, though in a hesitating manner.

SEP.

1631.

Sir John Ogilvy of Craig, after enduring imprisonment for a time in Edinburgh Castle, was allowed to live in Edinburgh and in St Andrews under a modified restraint. Finally, he was permitted to go home to his dwelling-house of Craig, ‘upon promise of ane sober and modest behaviour without scandal or offence to the kirk.’ ‘Nevertheless,’ as the Council proceeds to remark, ‘Sir John, since his going home, has behaved himself very scandalously, daily conversing with excommunicat persons, privately resetting seminary and mass priests, and restraining his bairns and servants from coming to the kirk, to the heigh offence of God and disgrace of his

majesty's government.' For this reason, he was ordered (September 22) to go into ward in St Andrews, 'until he be freed and relaxed by the Lords.'

A supplication presented by Sir John, some weeks later, to the Council, complained of his having been condemned without a hearing, and while he was 'innocent of these imputations.' He went on to say that he had nevertheless done his best to yield obedience to their order. He 'took journey from his awn house [in Forfarshire] toward St Andrews, being heavily diseased by reason of a dizziness in his head, so that he was not able to travel on horseback for fear of falling from his horse, and therefore was compelled, although with great pain and travel, to make journey upon his foot, being led all the way with two men. At last he attained with great trouble to the town of Dundee,' where, however, sickness stopped him. He petitioned, for the sake of his health, to be allowed to return to Craig, 'where, if he die, he may have the presence and comfort of his wife and children.' The Lords yielded to this supplication, on condition of his giving a bond that 'he sall cause his eldest son and the remanent of his children and domestics, resort to the kirk every Sabbath when possibly they may; that he sall not travel on the Sabbath from his own house, or profane the same by any slanderous behaviour in his own person, nor in any that is in his power; that he sall remain in his awn house and twa mile about the same; and that he sall not reset priests, nor be found reasoning against the religion presently professed.'

1631.

On the 17th of November 1631, the Privy Council, considering that the Earl of Nithsdale is 'vehemently suspected in his religion, and that the remaining of Lord Maxwell, his son, in his company, may prove very dangerous to the youth, and now in his tender years infect and poison him with opinions wherefra it will be difficult thereafter to reclaim him,' ordered his lordship to 'exhibit' his son, that 'direction may be given for his breeding and education in the true religion.'—*P. C. R.* When we remember that the Earl of Nithsdale was the most powerful man in the southern part of the kingdom, and had so lately as 1625 acted as the royal commissioner to parliament, and since conducted a large auxiliary force for the service of the king's brother-in-law in Germany, the character of this interference with his domestic arrangements becomes the more noticeable.

Patrick Con of Achry, having early yielded to the orders of Council, and retired from the country, was nevertheless excommunicated by the presbytery of Aberdeen; in consequence of which, those left in charge of his estate appropriated it and threw him into destitution. He presented a petition to the king for permission to return for a time, and to have the benefit of a temporary relaxation of the pains of excommunication, in order that he might recover his property; and this permission, extending to a twelvemonth, was granted, on condition 'that, during the said space, he give no scandal or just offence to the kirk nor government.' We shall presently see something more of Patrick.

In February 1632, Gordon of Craig petitioned the king for what the Council had some time before refused; and his majesty, 'conceiving his demand to be very reasonable, and (in respect of his age and infirmity of body) to require our princely commiseration,' enjoined the Council either to allow him to join his son abroad or live in such part of Scotland as he himself chose. The Lords found it 'no ways fitting' that Gordon should be allowed to leave the country, but gave him a licence to take his choice of a place of residence within the country.

At length the interferences of the king in behalf of the proscribed papists produced in his Scottish councillors a degree of disapprobation which could no longer be repressed. A diocesan assembly met at Aberdeen, and elected Mr William Gould as a commissioner to proceed to lay their views before the Privy Council (July 1632). It was represented by this venerable person, that, when the exiled papists were allowed to return temporarily, all of their profession were 'thereby encouraged, upon expectation of finding the like liberty, to return to the country when they shall be reduced to the same extremity.' Some who had been brought to the point of yielding obedience, were now become once more 'so obstinate that they will abide the last dint of excommunication.' The returned exiles had 'come not alone;' but through their means, priests were introduced in great numbers, and 'going about the houses of simple ones, perverts them.' The hands and hearts of pastors were much discouraged when they found that, after their great trouble with the process of excommunication, and in urging the Council to the execution of the laws, all ended in a licence to return from banishment, 'in an increase of obstinacy.' The petition concluded with a wish that the Council would lay

their grievances before the king, with a view to inducing him to be more strict with the papists. The Council complied with this request, and at the same time (July 12, 1632) caused two of the returned exiles, Dr William Leslie and Mr Robert Irving, to be brought before them to exhibit their licences—a movement, however, which was not attended with any remarkable result.

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The Privy Council heard of the apprehension of one Andrew Anderson, ‘are busy and trafficking papist,’ believed to be engaged at and about Dumfries in arranging for the conducting of gentlemen’s sons beyond sea, that they might be educated in the popish religion. Immediately on his apprehension, he had been committed to the Pledge-chamber in Dumfries. The Lords sent for him, that he might be subjected to examination in Edinburgh; but before any progress had been made in his case, he died in the Tolbooth. The Council could only issue an order to the provost and bailies to inquire into the ‘form, manner, and cause of his death.’—*P. C. R.*

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Nov. 17.

Serious people in Scotland were at this time much scandalised by reports from England, regarding clergymen who openly preached Arminianism, and others who wrote in favour of a lax observance of the Sabbath. At home, the bishops and other leaders of the church were manifestly departing from the old Scottish observances. ‘The house of one Dickson in the Potterrow, in the suburbs of Edinburgh, was, to some of them, their place of recreation on Sabbath afternoons. It was remarked of Spottiswoode, and some other of the bishops, that they sojourned [travelled] more on that than on other days. And Mr Thomas Foster, minister at Melrose, having but one hutt of corn in his barn-yard, would needs shew his Christian liberty, by causing his servants cast it in upon that holy day. Thus fast were we hastening to destruction.’<sup>44</sup>

1631.

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Witches being so numerous at this time, it was not surprising that ‘John Balfour in Corshouse’ took upon him the profession of a discoverer of witches, ‘by remarking the devil’s mark upon some part of their persons, and thristing of preens in the same.’ ‘Upon the presumption of this knowledge,’ say the Privy Council, he ‘goes athort the country abusing simple and ignorant people for his private gain and commoditie.’ Measures were taken for looking into John’s pretensions to such knowledge, ‘and how and by what means he has the same.’—*P. C. R.*

1632.

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‘There began a great storm of snow, with horrible high winds, whilk were noted to be universal through all Scotland.... The like had never been seen in these parts, for it would overturn countrymen’s houses to the ground, and some persons suddenly smo’ered within, without relief. It also threw down the stately crown bigged of curious ashler wark, off the steeple of the King’s College of Old Aberdeen. This outrageous storm stopped the ordinary course of ebbing and flowing on sundry waters, by the space of twenty-four hours, such as the waters of Leith, Dundee, Montrose, and other ports—whilk signified great troubles to be in Scotland, as after ye sall hear how truly came to pass.’—*Spal.*

1633. FEB. 7.

An irregular tide on the east coast of Scotland is no unexampled phenomenon, and could easily be explained; but it would probably defy a Humboldt or a Whewell to explain another wonder which a grave church historian of the eighteenth century—a ‘writer’ in Edinburgh, too—sets down as occurring at the same time. ‘What was yet more marvellous,’ says he, ‘the moon, though in her first quarter, set not, but was seen from the Wednesday to the Thursday at even.’<sup>45</sup>

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George Nicol, the son of a tailor in Edinburgh, and who had been secretary or clerk to Sir Archibald Acheson, under an unlucky zeal for the public good, resolved to expose some malpractices of the Scottish rulers which had fallen under his attention, or which he believed to exist. Being in London, he presented to the king some information against the Chancellor, the Earls of Morton and Stratherne, the Lord Traquair, the Lord Advocate, &c., for mismanagement of the treasury. These officers were summoned to London to meet the charges brought against them, when it soon appeared that Nicol had advanced what he could not prove.

1633.

He was returned to Scotland under the power of the men whom he had accused, and was adjudged by the Privy Council guilty of *leasing-making*, and to stand at the entry of the session-house for an hour, and two hours at the Cross, with a paper on his head bearing, '*Here stands Mr George Nicol, who is tried, found, and declared to be a false calumnious liar,*' and thereafter to receive six stripes on his naked back by the hand of the hangman, and then to be led back to the Tolbooth with his shoulders still exposed.<sup>46</sup>

MAR. 5.

This prototype of Scottish political reformers met 'with much compassion from the promiscuous beholders, who generally believed he suffered wrongfully.' He was afterwards deported to Flanders.

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Colin Campbell, Laird of Glenurchy, who had succeeded his father Duncan in 1631, seems to have outrivalled him in his taste for elegant things. In the quaint memoir of his family written about this time, it is stated: 'The said Sir Colin bestowit and gave to ane German painter, whom he entertaint in his house aucht month, and that for painting of thretty brods of the kings of Scotland, and of Great Britain, France, and Ireland, and twa of their majesties' queens of guid memory, and of the said Sir Colin his awn and his predecessors' portraits, whilk portraits are set up in the hall and chalmer of dais of the house of Balloch, the soum of ane thousand pounds.'<sup>47</sup>

He also patronised the portrait-painter, George Jameson, now in the zenith of his fame, and settled in Edinburgh. From a letter written by this

distinguished person to Sir Colin, June 23, 1635, it appears that he charged for his portraits twenty merks each, he furnishing ‘claith and colours.’ The laird had given an order for pictures of a considerable number of his friends, and Jameson promised, if he began in July, to have sixteen ready in September.<sup>48</sup>

His labours are thus spoken of in the family chronicle: ‘Sir Colin gave unto George Jameson, painter in Edinburgh, for King Robert and King David Bruces, kings of Scotland, and Charles I., king of Great Britain, and his majesty’s queen, and for nine more of the queens of Scotland their portraits, whilk are set up in the hall of Balloch, the soum of twa hundred threescore pounds.’... ‘For the knight of Lochow’s lady, and the first Countess of Argyle, and six of the ladies of Glenurchy their portraits, and Sir Colin his awn portrait, whilk are set up in the chalmer of dais of Balloch, [he gave] ane hundred fourscore pounds.’<sup>49</sup> If we are to presume that Scots money is meant in all these instances, it would appear that this eminent artist was content to execute a bust portrait at a pound sterling!

1633.

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The king arrived in Edinburgh, accompanied by the Duke of Lennox, the Marquis of Hamilton, and divers other Scotch and English lords and gentlemen, to the number of about five hundred. His furniture and plate were carried about with him in princely form. He, riding on horseback, was received at the West Port in a theatrical manner, after the fashion of the allegorical entertainments with which Ben Jonson has made us familiar. There was a kind of theatre under an arch, where a nymph representing Edinburgh appeared on a mountain, which was so arranged as to move at the approach of majesty. The nymph was attired in a sea-green velvet mantle, with sleeves and under-robe of blue tissue, and blue buskins on her feet: about her neck she wore a chain of diamonds; her head-dress represented a castle with turrets, and her locks dangled about her shoulders.

JUNE 13.

A speech of welcome was delivered by this fair lady, together with the keys of the city. Meanwhile, the provost, Alexander Clark, and the bailies, in

furred red robes, with about threescore councillors and others, in black velvet gowns, had taken up a position on a wooden stand at the other side of the gate. Thence the provost addressed the king in a brief speech, presenting him at the same time with a gold basin worth five thousand merks, into which were shaken out of an embroidered purse a thousand golden double angels, as a token of the town's love and service. 'The king looked gladly upon the speech and gift both; but the Marquis of Hamilton, master of his majesty's horse, hard beside, meddled with the gift, as due to him by virtue of his office.'

The provost then mounted his own horse, which was sumptuously attired, and, followed by the councillors and others on foot attended his majesty along the Grassmarket. Here appeared 'a brave company of town's soldiers all clad in white satin doublets black velvet breeches, and silk stockings, with hats, feathers, scarfs, bands, and the rest correspondent. These gallants had dainty muskets, pikes, and gilded partisans, and such like,' and attended his majesty as a guard. At the gate in the middle of the West Bow, there was another theatre, presenting a Highland scene, labelled with the word GRAMPIUS, and from which a female, representing the genius of Caledonia, welcomed his majesty in verse. Coming to the west end of the Tolbooth, he there found an arch across the narrowed street, surmounted by a crown; Mars, as the protecting deity of the country, on one side, and Minerva on the other. Here, on the withdrawal of a curtain, Mercury appeared, as just arrived from the Elysian fields with his majesty's deceased progenitors. This was a part of the spectacle really interesting to the king, for the portraits struck his tasteful eye as well executed; and so they were, being the work of George Jameson of Aberdeen.<sup>50</sup> Here there was a fourth speech.

1633.

'At the Mercat Cross, he had a fifth speech, where his majesty's health was drunk by Bacchus on the Cross, and the haill stroups [spouts] thereof running over with wine in abundance. At the Tron, Parnassus hill was erected curiously, all green with birks, where nine pretty boys, representing the nine nymphs or muses, was nymph-like clad [in varying taffetas, cloth of silver, and purple].' Amidst the trees, appeared Endymion, like a shepherd, in a long coat of crimson velvet, with gilt leather buskins, telling the king, in William Drummond's verse, that he had been despatched by Cynthia to celebrate the day.

‘Roused from the Latmian cave, where many years  
That empress of the lowest of the spheres,  
Who cheers the night, and kept me hid, apart  
From mortal wights, to ease her love-sick heart;  
As young as when she did me first enclose,  
As fresh in beauty as the Maying rose,  
Endymion, that whilom kept my flocks  
Upon Ionia’s flowery hills and rocks,  
And sweet lays warbling to my Cynthia’s beams,  
O’ersang the swannets of Meander’s streams,’ &c.

At the Nether Bow, where he made his exit from the city, another speech was addressed to him. ‘Whilk haill orations his majesty, with great pleasure and delight, sitting on horseback, as his company did, heard pleasantly; syne rode down the Canongate to his own palace of Holyroodhouse, where he stayed that night. The provost with the rest returned home.’—*Spal.* <sup>51</sup>

1633.

Next day (Sunday) the king received Cornelius Smoski, the Polish ambassador, in great state, in his privy chamber at Holyrood; and on the ensuing day, the Prince Shemei and his brother, two proper gentlemen, sons of the Duke de Arscotte, had audience in the same place. The ambassador was entertained, while in Scotland, ‘upon his majesty’s charges.’—*Bal.*

On the same day, the king made a procession in his coach to the Castle, where he was magnificently banqueted, ‘served with his awn official’s and with his awn provision, vessels, and plate.’ Thence he returned next day, conducted by his nobility in state, in his royal robes, to the Abbey Kirk of Holyrood, and there was solemnly crowned by the Bishop of Brechin. ‘It is markit that there was are four-nuikit table in manner of ane altar, having standing thereon twa books called *blind books*, with twa chandlers, and twa wax-candles, whilks were unlichtit, and are basin wherein there was nothing. At the back of this altar there was ane rich tapestry, wherein the crucifix was curiously wrought; and as thir bishops who was in service passed by this crucifix, they were seen to bow their knee and beck, which with their habit was noted, and bred grit fear of inbringing of popery.’—*Spal.*

On the 20th, the Estates sat down, after one of those formal processions so often alluded to in Scottish history as the *Riding of the Parliament*. Such had been the custom from an early period; but latterly the riding was an affair of greatly increased splendour, and never had it been so grand as on this occasion. The procession started at the Abbey Close, or court in front of the palace, and extended along the principal street of the city to the Tolbooth, where the parliament was to be held. First went the commissioners for burghs, ‘ilk ane in their awn places, weel clad in cloaks, having on their horses black velvet footmantles.’ Then in order went the commissioners for barons or minor gentry, the lords of spirituality, and the bishops, the latter being all present but the Bishop of Aberdeen, who lay sick at home. The temporal lords, the viscounts, and earls followed in order of rank and date, the Earl of Buchan carrying the sword, and Rothes the sceptre; after whom came the Marquis of Douglas (lately Earl of Angus) bearing the crown, and with the Duke of Hamilton on his right hand, and the Marquis of Hamilton on his left. All the nobles rode in scarlet furred robes, with footmantles. ‘Then cam his majesty riding upon ane gallant chestnut-coloured horse having in his head ane fair bunch of feathers, with ane foot-mantle of purpoure velvet. His majesty made choice to ride in King James IV.’s robe-royal, whilk was of purpoure velvet, richly furrit and lacit with gold, hanging over his horse-tail ane great deal,’ and borne by five grooms in a line. The king ‘had upon his head ane hat and ane rod in his hand. The lion heralds, pursuivants, macers, and trumpeters followed his majesty in silence.’ At the Nether Bow, where he entered the bounds of the city, the king was saluted by the provost, who attended him closely the rest of the way. Within the city there was a space of the street staked off, sanded, and lined with a guard of armed citizens. At a style or passage in the Luckenbooths, the king lighted, and was conducted by the Lord High Constable, the Earl of Errol, to ‘the outer door of the Heich Tolbooth,’ where ‘the Earl Marischal, as Marischal of Scotland, with all humility received him, and convoyed him to his tribunal.’ On the second day of the parliament, the king went in his coach, and after the business was ended, walked back to the palace, moving so swiftly as to throw his foot-guard into a perspiration, ‘being ane able footman as was within, the town.’—*Spal*. The whole reception of King Charles was magnificent to a degree unprecedented. The people viewed their sovereign as a stranger of great distinction, and were more awed than won by his grandeur, while

under all lurked the dread of that constant tampering with the national church and worship which for some years had been so conspicuous.

(Sunday) ‘the king came to St Giles’s Church to hear sermon, and after he was set down in his awn place, the ordinary reader being [engaged in] reading the word and singing psalms, before sermon, Mr John Maxwell, minister of Edinburgh, came down from the king’s loft, caused the reader remove from his place, and set down there two English chaplains, clad with surplices, who with the help of other chaplains and bishops there present, acted their English service. This being ended, in came Mr John Guthrie, Bishop of Moray, clad also with a surplice, went up to the pulpit, and taught a sermon. At thir things many marvelled.

JUNE 23.

1633.

‘Sermon being ended, the king and all his nobles goes into the banqueting-house, prepared by the town of Edinburgh, that they might feast him. The banqueting-house was so near the kirk, and so great noise in it of men, musical instruments, trumpets, playing, singing, also shooting of cannon, that no service was had in the afternoon, either in the greater or lesser kirk of St Giles.’—*Row.*

Another contemporary says: ‘The people of Edinburgh, seeing the bishop teach in his rochet, whilk was never seen in St Giles’s Kirk sin’ the Reformation, and by him who sometime was are of their awn town’s puritan ministers, were grievit, thinking the same smellit of popery.’ Here lay the canker of this flowery scene. Could any one have foretold that, in the course of a series of circumstances flowing from these matters of dress and ceremonial, the youthful king now present in such grandeur would perish on a scaffold; that Bishop Guthrie would, for what he did this very day, be deposed and excommunicated; and that Maxwell, who was now on the eve of being made a bishop, would be deposed and frightened out of his country, be half cut to pieces in a massacre in Ireland, and finally die of grief on account of his sovereign’s irretrievable misfortunes—how strange it would have appeared!

This day, being St John’s Day, the king went in state to the Chapel Royal, Holyroodhouse, and there, after a solemn offertory, touched about a hundred persons for

JUNE 24.

the king's evil, 'putting about every one of their necks a piece of gold, coined for the purpose, hung at a white silk riband.'—*Bal.*

On the same day, the city gave a banquet to the English nobility, 'with music and much merriment. After dinner, the provost, bailies, and councillors, ilk are in others' hands, with bare heads, cam dancing down the High Street with all sort of music, trumpeters, and drums. The nobles went to the king, and told him their entertainment, joy, and gladness, whereat the king was weel pleasit.'—*Spal.*

After a sporting tour by Linlithgow, Dunfermline, and Falkland, 'his majesty came to Perth, and was weel receivit with tenscore of men for guard, all in white doublets and red breeks, with partisans. Mr William Bell delivered him a speech.... There was are sword-dance dancit to his majesty the morn after his coming, upon an island made of timmer on the water of Tay, and certain verses spoken to his majesty by ane boy, representing the person of the river Tay, and some conference in his majesty's praise betwixt Tay and another representing Perth, made by Andrew Wilson, bailie.'—*Chron. Perth.*

JULY 8.

1633.

The king on this occasion lodged in the house which had belonged to the late Earl of Gowrie, and where his father had had a memorable adventure in 1600. The arrangement for the sword-dance is more particularly described in the record of the corporation of glovers. His majesty 'went down to the garden, and being set upon the wall next the water of Tay, whereupon was ane fleeting stage of timber clad about with birks, upon the whilk thirteen of this our calling of glovers, with green caps, silver strings, red ribbons, white shoes, and bells about their legs, shewing rapiers in their hands, and all other abulyement, dancit our sword-dance, with mony difficile knots, five being under and five above, upon their shoulders, three of them dancing through their feet and about them, drinking wine and breaking glasses. Whilk, God be praisit, was actit and done without hurt or skaith till any. Whilk drew us till great charges and expenses, amounting to the sum of 350 merks.'<sup>52</sup>

We have no actual account of Highlanders present on this occasion; but it fully appears that Charles, ten days before, caused a letter to be sent to the Laird of Glenurchy, desiring that there might be a 'show and muster' of that

class of his subjects at Perth, ‘in their country habit and best order.’ The laird was requested to ‘single out and convene a number of [his] friends, followers, and dependers, men personable for stature, and in their best array and equipage, with trews, bows, dorlochs [swords], and others their ordinary weapons and furniture, and to send them to the burgh of Perth,’ for the king’s contentment.<sup>53</sup>

If these mountaineers made their appearance as requested, there must have been precisely the same mixture of Highland and more civilised costumes at Perth on this occasion, as was presented in Edinburgh at the visit of George IV. in 1822.

On his return to Edinburgh, the king crossed the Firth of Forth, in fair weather; nevertheless, a boat perished in his sight, containing thirty-five of his domestics, all of whom excepting two were drowned.<sup>54</sup> ‘His majesty’s silver plate and household stuff perished with the rest; a pitiful sight, no doubt, to the king and the haill beholders ... betokening great troubles to fall betwixt the king and his subjects, as after does appear.’—*Spal*.

JULY 10.

1633.

The aged Marquis of Huntly desired to take advantage of the king’s presence in Scotland to interest him in the affair of Frendraught; but in his journey from the north to Edinburgh he fell sick at Candechyll, a country-house he had on Deeside, and could go no further. ‘He sent his lady with the Lady Aboyne [his daughter-in-law] to complain unto his majesty anent the fire of Frendraught; who took their own time as commodiously as they could, and, accompanied with some other ladies in mourning weed, pitifully told the king of the murder ... humbly craving at his hands justice. The king with great patience heard this complaint, whilk he bewailed, comforted the ladies the best way he could, and promised justice.’ They could get no more for the present, but humbly took their leave at the king, and returned to their lodgings.—*Spal*.

JULY 12.

This mourning procession for justice was in imitation of similar incidents which took place while James lived in Holyrood. The two ladies were not altogether unsuccessful, as they did not return from Edinburgh till they had urged on the trial of John Meldrum, and seen him executed. He ‘died but any certain or real confession, as was said, anent this doleful fire.’—*Spal*.



The king left Edinburgh on the 13th of July, on his journey to London. ‘It is said his majesty commendit our Scottish entertainment and brave behaviour, albeit some lords grudgit with him.’—*Spal.*

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Licence was given to one Edward Graham to have the keeping of a camel belonging to the king, and to take the animal throughout the kingdom that it might be shewn to the people, ‘by tuck of drum or sound of trumpet, from time to time, without trouble or let,’ he and his servants engaging to behave themselves modestly, and not exhibit the camel on the Sabbath-day.—*P. C. R.*

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JULY 30.

The moral wildness which still clung to the Highlands was evinced by a rude incident which happened in the course of a deer-stalking adventure of Alexander Gordon of Dunkintie and his eldest son. Having gone into the savage wilderness at the head of Strathaven, the two gentlemen suddenly lighted upon a party of natives, believed to be of the Clan Chattan, who were sleeping upon the hillside. Suspecting these men to be rogues, the two gentlemen shot at them, and wounded one. The men then set upon Gordon and his son, and killed both, but not before two more of their party had fallen. The servants of the Gordons then retreated to give an alarm.

Aug. 19.

1633

When Dunkintie’s second son soon after came to the spot with a few friends, he found his father’s and brother’s bodies lying on the ground, beside one of the slain Highlanders, while the other two slain men were very cunningly buried in one hole. The young man piously disposed the bodies of his father and brother in two chests, to be taken to Elgin for interment. Then cutting off the head of one of the Highlanders, he caused it to be erected on a pointed stick, and carried before the coffins on their way to the grave. ‘Upon the 22d day of August, with great lamentation, they were buried within the Marquis’s Aisle, and immediately thereafter this

limmer's head was set up on ane iron stob, upon the end of the Tolbooth of Elgin, in example of others to do the like.'

The Marquis of Huntly took the death of these his near relatives greatly to heart, and used his utmost influence to detect the offenders and bring them to justice, but in vain: 'some thought this strange that the great marquis should see his blood destroyed without trial or reparation.'—*Spal*.

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The parish of Duddingstone, near Edinburgh, had for its pastor Mr Robert Monteath, who came to have a strange history. Of Arminian tendencies, and perhaps further infected with Romanism from his parishioner the Marchioness of Abercorn, he incurred the enmity of the Calvinists in consequence of pasquinading them. Such a walk as his would have required great circumspection; he, on the contrary, fell under the serious blame of adultery with the wife of another parishioner, Sir James Hamilton of Priestfield. The unfortunate minister fled to France, there joined the Catholic church, and attached himself to the service, first of M. de la Porte, Grand Prior of France, and afterwards of the famous Cardinal du Retz, who, forming a high opinion of his talents, bestowed on him a canonry in Notre Dame. He wrote *Histoire des Troubles de la Grande Brétagne depuis l'an 1633 jusques 1649* (Paris, fol. 1661), of which an English translation appeared in 1735, bearing the words 'by Robert Monteth of Salmonet.' It is told of him that, on arriving in France, being asked of what family he was, and finding that 'blood' was essential to his prospering there, he described himself as one of the Monteaths of *Salmonet*—a word that sounded well, while the fact was that his father was a mere fisherman (user of a *salmon-net*) on the Forth at Stirling; but another account denies this story, and makes Salmonet a real house of that age, and one in tolerable esteem, being a branch of the Monteaths of Kerse.

Nov.

1633.

William Coke and Alison Dick were burnt for witchcraft on the sands of Kirkcaldy. An account, which has been preserved in the session records of the parish, of the expenses incurred on the occasion, reveals some parts of the process of witch-prosecution, including the lamentable fact of the concern borne in such matters by the ministers of religion. There is first paid, *for the kirk's part*, £17, 10s., composed as follows: Mr John Miller, when he went to Preston for a man to try them, £2, 7s.; to the man of Culross, when he went away the first time [probably a pricker], 12s.; for coals for the witches, £1, 4s.; in purchasing the commission, £9, 3s.; for one to go to Finmouth for the laird to sit upon their assize as judge, 6s.; for harden to be jumps to them, £3, 10s.; for making of them, 8s. Then, of the town's part, for ten loads of coal to burn them, 5 merks, £3, 6s. 8d.; for a tar-barrel, 14s.; for tows, 6s.; to him that brought the executioner, £2, 18s.; to the executioner for his pains, £8, 14s.; for his expenses here, 16s. 4d.; for one to go to Finmouth for the laird, 6s.; in all, £17, 1s. Sum of the expense, £34, 11s. Scots.

James Smith, 'servitor to the Earl of Winton,' having to build some houses in the village of Seaton, found that he could not obtain the proper timber required without sending for it to Norway. It occurred to him that the wood might most conveniently be paid for by sending thirty-six bolls of wheat of his own growth, the one article to be exchanged against the other. This was a very rational idea; but how to carry it out? In those days, exportation, as already explained, was a thing generally unpopular, as being supposed to cause scarcity at home; and the sending out of corn was forbidden by particular laws. It affords a curious idea of the difficulties which might then attend the simplest movements in life, through the efficacy of erroneous doctrines in political economy, that James Smith had to petition the government before he could get the Norwegian timber for those houses about to be built at Seaton. By favour probably of the Earl of Winton, who sat in the Council, he was permitted to export the thirty-six bolls of wheat to 'Birren [Bergen] in Norway.'—*P. C. R.*

1634. MAR. 25.

Thomas Menzies, burgess of Aberdeen, who had been driven into exile on account of popery some years before, now petitioned the king for leave to return for a few months, to dispose of his estate and recover some money owing to him, in order 'that he may abandon the kingdom, without staying any longer to give offence to the present professed religion.' The king, seeing that Thomas had comported himself modestly during his exile, was pleased to recommend the case to his Scottish Council, by whom the necessary permission and protection were granted.—*P. C. R.*

MAR.

A fulmination took place in the Privy Council concerning the south-country papists. They gave final decision in the case of Robert Rig, wright at the Brig-end of Dumfries, who had been more than once before the presbytery of that district for marrying Elspeth Maxwell, 'ane excommunicat papist.' Robert, on being questioned, owned that 'he was married by a popish priest, upon the 17th of November last, being Sunday, at night, with candle-light, above the bridge of Cluden, in the fields, and that four were present at the marriage, beside the priest, whereof some were men and some were women, whom he knew not, because they had their faces covered.' Mr Thomas Ramsay, minister of Dumfries, was present to support the proceedings of the presbytery in the case. Robert himself was full of contrition, and humbly craved pardon for his offence. The lords, having fully considered everything, found that 'Robert Rig has violat and contravened the laws of this kingdom, in marrying ane excommunicat woman, by a priest who has no power to exerce any function within this kingdom,' and they sentenced him to be imprisoned during their pleasure in the Tolbooth of Edinburgh; 'no person from the said Elspeth Maxwell, his wife, to have access to him by word or write.'

JUNE 3.

The Council, soon after, had in hands the case of Elspeth herself, who for some time had been expiating her candle-light nuptials by imprisonment in Dumfries jail.

1634.

A group of people, fourteen of them women, mostly wives of tradesmen in Dumfries, were also now or had lately been, prisoners in the same jail, 'for

hearing of mass and being present thereat sundry times within thir twelvemonths bygane, as their confessions bears.’ The Council ordered that all these people should be ‘exhibit’ before them, on a certain day, ‘to the intent such order may be ta’en with them as may give terror to others to commit the like.’

In obedience to the charge of the Council, Mr Thomas Ramsay, minister of Dumfries, and John Williamson, one of the bailies, appeared on the 3d of July, and *exhibited* nearly the whole of these delinquents. Eight ‘declared that they were heartily sorrowful for the scandal they had given to the kirk by hearing of mass, and craved pardon for the same;’ adding a faithful promise ‘in all time coming to obey the laws, and for that effect to resort to the kirk, hear preachings and to communicate, and that they should not hear mass nor reset Jesuits.’ These were commanded to remain in their lodgings in Edinburgh till further orders. Seven, wholly women, ‘refused to conform to the religion presently professed within the kingdom; in respect whereof, the Lords ordains them to be committed to ward within the Tolbooth of Edinburgh, therein to remain upon their awn expenses till they be freed and relieved by the said Lords.’ Five days after, the whole were committed to the hands of Patrick, Archbishop of Glasgow, to be dealt with as he might think fit.’—*P. C. R.*

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Walter, first Earl of Buccleuch, who had died in London towards the close of the preceding year, was buried in the magnificent manner then customary. His body, having been embalmed, was sent down to Scotland ‘in one John Simpson’s ship of Kirkcaldy;’ but the ship, meeting a storm, was driven to the coast of Norway, and only with great difficulty, and after a long delay, reached Leith. After resting twenty days in the church there, the corpse ‘were thence, by his honourable friends, transported to his awn house of Branxholm, where they remained till the 11th of June,’ when the funeral was at length solemnly effected at Hawick.

JUNE 11.

A striking sight it must have been, that long heraldic procession which went before the body of the deceased noble, along the banks of the Teviot, on that bright June

1634.

day. First were forty-six *saulies* in black gowns and hoods, with black staves in their hands, headed by one called a conductor, who was attended by an old man in a mourning-gown; a trumpeter in the Buccleuch livery following, and sounding his trumpet. Next came Robert Scott of Howshaw, fully armed, riding on a fair horse, and carrying on the point of a lance a little banner of the defunct's colours, azure and or. Then a horse in black, led by a lackey in mourning, a horse with a crimson velvet foot-mantle, and 'three trumpets in mourning on foot, sounding sadly.' Then, the great gumpheon of black taffeta carried on a lance, the deceased's spurs carried by Walter Scott of Lauchope, his sword borne by Andrew Scott of Broadmeadows, his gauntlets by Francis Scott of Castleside, and his coat of honour by Mr Lawrence Scott.

The next great section of the procession was a purely heraldic display. Eight gentlemen of the Clan Scott bore each the coat of arms of one of the various paternal and maternal ancestors of the defunct. Other gentlemen of the name—Scott of Harden, Scott of Scotstarvet, &c.—carried the great pencil, the deceased's standard, his coronet, and his 'arms in metal and colour.' Near whom were three more trumpets, and three pursuivants, all in mourning. 'Last of all cam the corps, carried under a fair pall of black velvet, decked with arms, larmes [tears], and cipress of sattin, knopt with gold, and on the coffin the defunct's helmet and coronet, overlaid with cipress, to shew that he was a soldier. And so in this order, with the conduct of many honourable friends, marched they from Branhholm to Hawick Church, where, after the funeral-sermon ended, the corps were interred amongst his ancestors.'

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An arrangement was made by royal authority for putting the sale of tobacco under some restriction, so as to insure that only a good and wholesome article should be presented to the public. Sir James Leslie, knight, and Thomas Dalmahoy, servant to the Marquis of Hamilton, were to sell licences to retailers, and account to the royal revenue for the proceeds, as might be arranged between the parties. Thus it was hoped that the great abuses from 'the ungoverned sale and immoderate use of tobacco' might be abated.—*P. C. R.* Numberless

JUNE 14.

entries in the Record shew that great difficulty was experienced in carrying out this arrangement.

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The Privy Council had under its consideration a supplication from the Bishops of Orkney and Caithness, setting forth the miserable condition to which those districts were like to be reduced by famine. Owing to tempestuous weather, the corns of the bypast year had not filled, or proved answerable to the people's expectation, 'the boll of aits in many parts not giving ane peck of meal.' In the consequent deficiency of seed, 'the thrid rig lyeth unsown, and in many parts the half is not sown.' Even now, from the scarcity of victual, 'multitudes die in the open fields, and there is none to bury them, but where the minister goeth furth with his man to bury them where they are found. The ground,' it was said, 'yields them no corns, and the sea affords no fishes unto them as it wont to do. The picture of Death is seen in the faces of many. Some devour the sea-ware, some eat dogs, some steal fowls. Of nine in a family, seven at once died, the husband and wife expiring at one time. Many are reduced to that extremity that they are forced to steal, and thereafter are execut, and some have desperately run in the sea and drowned themselves. So great is the famine, that the people of mean estate have nothing, and those of greater rank nothing that they can spare.'

JUNE 19.

1634.

The lords recommended the case of these poor people to the charity of their countrymen generally.—*P. C. R.* Supplies of food were soon after sent, but not in time or quantity to save a deplorable mortality.

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A project was submitted to the government by Colonel Robert Monro, for erecting in Scotland an hospital for the reception of disabled Scottish soldiers. It received some encouragement, and a general contribution was authorised under the

JULY.

colonel's care; but it does not appear that the scheme was ever in any degree realised.—*P. C. R.*

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‘About this time, a pot [eddy-pool] of the water of Brechin, called South Esk, became suddenly dry, and for a short space continued so, but bolts up again, and turns to its own course; which was thought to be an ominous token for Scotland, as it so fell out.’

A sudden desiccation or stoppage of the flow of rivers, is a phenomenon not unknown to modern science. The rivers Teviot, Clyde, and Nith, were all of them reduced, on the 27th of November 1838, to such a smallness that the mills everywhere ceased to work. The small feeding-streams were observed on this occasion to be completely dried up. The phenomenon was variously attributed to an earthquake (though none was felt), to a high wind obstructing the current, and to a frost. Mr David Milne made some careful inquiries into the subject, and ascertained that on the previous evening the thermometer had suddenly sunk to 26 degrees all over the south of Scotland, producing a very low temperature. He considered the depletion to be caused by the frost, arresting the small rills in the upper parts of the rivers, and yet not sufficient to prevent the water further down from flowing away.<sup>56</sup>

1634.

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Tired of the slow march of legal vengeance, and enraged that only John Meldrum could be brought to death for the Frendraught tragedy, the Gordons commenced this year to execute what they called *justice* with their own hand. The plan they followed was to take advantage of the propensity of the neighbouring Highland clans to despoil the country of Moray. The broken men of the Clan Gregor, the Clan Cameron under its chief Allan M'Ian Dhui, the Macdonalds of Glengarry and Clanranald, the Clan Lachlan, were all ready instruments to their hands; and bands of them, to the amount of several hundreds, were easily mustered. ‘They came to the



house of Chalmers of Ormiston, bound himself and his wife hand and foot, spoiled his house, and reft and away took ane thousand pounds or thereby.... They in like manner spoiled and herried the house of Andrew Geddes in Gairmouth.... They came to the house of John Mair in Braemurray, and robbed and spoiled the said John of his goods, and gave Mr James Cumming (being in the house for the time) eleven wounds with his own durk.... They violently lifted and took away ane *herchip* of fifty head of oxen off the mount of Dallas.... They stole three mares from Thomas Gilyean in Halton, together with ane black horse, and ... they violently drove away eleven horse and mares belonging to John Hay in Orton; ... by the whilk and many more grievous oppressions and depredations, committed upon his majesty's good subjects in the in-country of Moray by thir broken limmers and sorners, who go about the country in great troops and companies, with unlawful weapons, the *haill inhabitants in these bounds are in continual fear of their lives and spoiling of their goods*, and dare not keep their horse or cattle in the country.'

A gentleman having come from Moray to Edinburgh, on purpose to give information of these outrages, the Privy Council granted a commission to fifteen men of name in the country, *not one of them a Gordon*, to raise armed forces for the purpose of pursuing the 'limmers' and bringing them to justice.

SEP. 25.

1634.

It soon after appears, from the proceedings of the Privy Council, that the real authors of these disorders were believed to be the Marquis of Huntly and a certain number of men of his house, lairds respectively of Buckie, Carnbarrow, Tulloch, Lesmore, Letterfour, Ardlogie, Innermarky, Park, Cluny, &c.; together with the Earl of Athole, Lord Lovat, Innes of Balveny, the *Lady Rothiemay*, and a few other persons. And the grand aim of the outbreak had developed itself in an attack upon the lands of Frendraught. These lands had been visited with fire and sword, and swept of all cattle and other 'geir' that could be carried away, The act of Council speaks also of the laird's servants killed and maimed, his tenants and domestics frightened away from him, and himself at the hazard of his life stealing away under night to claim the protection of the Council in Edinburgh. The disorders of the country, it further says, are come to such a height, 'that almost nowhere in the north

Nov. 13.

country can his majesty's subjects promise safety to their persons or means ... the very burghs and towns themselves are in continual fear of some sudden surprise, by fire or otherwise, from thir broken men.'

It appears, however, that Frendraught had not passively yielded to these assaults. On a hership of goods being taken away in September, 'he with some horsemen followed sharply, and brought back his haill goods again but strake of sword.' In October, a hership of threescore nolt and elevenscore sheep was successfully taken away; but shortly thereafter, on six hundred of the limmers coming into his neighbourhood, he raised a force of two hundred foot and a hundred and forty horsemen, and falling upon them by surprise, dispersed them in flight. It was in November that, seeing the overpowering force which was mustering against him, he went to claim the protection of the Council. While the law was there issuing writs in his favour, the Gordons openly broke out and took away another large hership of cattle and sheep. 'To hold siller among their hands,' they took their prey to a fair, and sold it, accepting a dollar for each cow, and a groat for each sheep. Among other violent acts, finding one of Frendraught's men on the outlook for information, they hanged him as a spy. The quantity of plunder they took from Frendraught almost reaches a fabulous amount. After all they had already done, they 'raised out of the ground thirteenscore of nolt and eighteenscore of sheep,' which they took and stored in the Castle of Strathbogie, with a view to obtaining the protection of the marquis for their misdeeds. They also burnt fourscore stacks on his home-farm.—*Spal*.

1634.

It was fully believed in the country that these violences were committed under the sanction of the Lady Rothiemay, who had the death of both a husband and a son to avenge upon Frendraught. At her trial in Edinburgh, two years after, it was charged against her, that she had received and entertained the Highlanders and their leaders, on their coming to make the attack on Frendraught. Certain it is, they now came with their prey to Rothiemay, entered the house, and began to live in riotous style upon Frendraught's bestial, killing at once threescore bullocks and a hundred sheep. 'Some they salted, some they roasted, and some they ate fresh.' They also compelled Frendraught's tenants to supply them with meal, malt, and poultry. According to Spalding, there was an appearance of force exercised on the lady and her two daughters, who were thrust into a kiln-barn to be

out of the way of the depredators. But no one doubted that, in reality, the lady was happy to see them in her house. In her dittay, it is alleged that, on their return from the first day's adventures, she had tables spread for them, and she and her daughters received them with salutations. On the evening of the day when they burned Frendraught's stackyard, with twelvescore bolls of corn, the lady expressed herself as well pleased with their success; and at Christmas 'she dancit with the licht horsemen in the place of Rothiemay, the *cushion-dance*, [bearing the cushion] upon her shoulder.' Till the house, indeed, was summoned and rendered to the sheriff of Banff, in January 1635, she had given no token of disrelish for any of the proceedings of the depredators.

In November, a herald with a trumpeter, sent by the Privy Council, came to summon the misdoers at the market-crosses of the northern burghs. Between Banff and Elgin, 'he meets with Captain Gordon [brother to the Laird of Park, and one of the chief delinquents], to whom he told his commission, and made intimation of his charges ... *who at the giving thereof was weel fearit of his life*. Captain Gordon discreetly answered, their blood was taken maist cruelly within the house of Frendraught—justice is sought, but none found; whilk made them desperately to seek revenge upon the Laird of Frendraught, his men, tenants, and servants, at their own hands; but as to the rest of the king's lieges they would offer no injury.... The herald, glad of this answer, *and blyth to win away with his life*, took his leave, and the trumpeter sounded ... to whom the captain gave five dollars of wages.' The herald also went to the Bog to summon the marquis, an extraordinary piece of audacity: however, the marquis, who, in reality, had taken no active part in the business, entertained the poor man civilly, and allowed him to go on to Elgin, Forres, and Inverness, for the fulfilment of his mission, as well as to return peaceably through Moray when all was done.

1634.

The marquis represented to the Council that, from age and infirmity, he was unable to obey their summons; but he sent several of the gentlemen of his house who had been called upon to appear, and these were all put into the Tolbooth of Edinburgh. The Council at the same time caused the sheriff of Aberdeen to raise two hundred men and proceed to the disturbed country. This officer found no violators of the law in his own county, but learned that there was a

DEC. 30.

host of them at Rothiemay, in the county of Banff. These, being beyond his own bounds, he was obliged to leave to the sheriff of Banff. The latter officer soon after went in similar force to the place of Rothiemay, and, past expectation, ‘found open yetts, enterit the place, sought the hail rooms, but no man was there, for they had fled about twa hours before the sheriff’s coming; whereupon he disbanded the gentlemen.... But the sheriff was no sooner gone, but they came all back again to Rothiemay, where they held house in wonted form.’

It is briefly noted in a manuscript written about 1720, that the family of Frendraught, which once possessed three parishes (Forgue, Inverkeithny, and Aberchirder), was by these inroads of their enemies reduced to poverty, and in seventy years, was ‘stripped of all, and extinguished.’<sup>57</sup>

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The spring of this year was cold and dry. During the months of April and May, there was no rain for seven weeks; consequently, the seed in some places never germinated. The summer, however, proved so fine, that after all there was a tolerable harvest.

‘The gose-summer<sup>58</sup> was matchless fair in Moray, without winds, wet, or any storm; the corn was well won; the garden herbs revived, July flowers and roses springing at Martinmass, whilk myself pulled. The kale shot and came to seed, and the March violets were springing as in April.’—*Spal*.

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A specimen of religious courtship of this age is given by Mr John Livingstone in his Memoirs. The lady was daughter to Bartholomew Fleming, merchant in Edinburgh. ‘When I went a visit to Ireland in February 1634, Mr Blair propounded to me that marriage. I had seen her before several times in Scotland, and heard the testimony of many of her gracious disposition, yet I was for nine months seeking, as I could, direction from God about that business; during which time I did not offer to speak to her, who, I believe, had not heard anything of the matter, only for

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want of clearness in my mind, although I was twice or thrice in the house, and saw her frequently at communions and public meetings, and it is like I might have been longer in such darkness, except the Lord had presented me an occasion of our conferring together; for in November 1634, when I was going to the Friday meeting at Ancrum, I met with her and some others going thither, and propounded to them by the way to confer upon a text whereupon I was to preach the day after at Ancrum, wherein I found her conference so judicious and spiritual, that I took that for some answer to my prayer to have my mind cleared, and blamed myself that I had not before taken occasion to confer with her. Four or five days after, I propounded the matter to her, and desired her to think upon it; and after a week or two, I went to her mother's house, and being alone with her, desiring her answer, I went to prayer, and urged her to pray, which at last she did; and in that time I got abundance of clearness that it was the Lord's mind that I should marry her, and then propounded the matter more fully to her mother. And although I was fully cleared, I may truly say it was above a month before I got marriage affection to her, although she was for personal endowments beyond many of her equals; and I got it not till I obtained it by prayer. But thereafter I had a great difficulty to moderate it.'

From this union proceeded a family which has made a distinguished figure in the United States of America.

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The patent granted to Mr Nathaniel Uddart for twenty-one years, for the sole making of soap within the kingdom, was now drawing near to expiration; and by the king's favour, a new one, to commence with the close of the old, was granted to his 'daily servitor, Patrick Mauld of Panmure.' The royal letter, recommending this matter to the Privy Council, proceeds on the consideration how 'necessar it is, for the guid of his majesty's ancient kingdom, that the same be furnished with good soaps at reasonable prices within the self'—that is, within the kingdom itself: further, that soap-making 'is not a trade of such a nature as can be communicat to all his majesty's lieges, and that *the publict would suffer if the same were left indifferently to all;*' while it is equally true, that, such being the case, 'the

choice of the person pertains to his majesty, as a part of his sovereign prerogative.'

Seeing that 'Patrick Mauld is willing to undergo the said wark, and to provide for all necessaries for continuing the same,' his majesty granted to him and his representatives for thirty-one years 'the sole and full licence to make and cause to be made, within the said kingdom, soap for washing of clothes, of all such colours and quantity as they shall think good.' Any quantity made beyond what was required for the country, might be exported upon payment of a duty equal to that paid on soap imported from abroad. Foreigners might be introduced to work for Mauld; but were strictly forbidden to make soap for any other person. As necessarily connected with this patent, the king granted to Mauld, for the same time, 'licence to fish and trade in the country and seas of Greenland, and in the isles and other parts adjacent thereto, and that for provision of the said soap-works with oils and other materials necessary thereto,' but solely so, free from all challenge or hinderance on the part of any others of his majesty's subjects. Considering that there are certain ingredients necessary for the making of soap, and which it would be well to obtain within the kingdom itself, the king further gave Mauld sole licence 'to make potasses of all sorts, of such wood within the said kingdom, as is most fit for that purpose, and that can be most conveniently spared;' likewise 'of all sorts of ferns and other vegetable things whatsoever, fit for the purpose.' Mauld was only to pay twenty pounds sterling per annum for his privileges.—*P. C. R.*

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A proclamation was made by the king regarding 'an abuse that has of late years prevailed in the kingdom, by the disorderly behaviour of some disobedient people, who ordinarily, when the communion is administered in their parishes, and at all other times when their occasions and humours serve them, run to seek the communion at the hands of such ministers as they know to be disconform to all good order.' Punishment was threatened according to act of parliament.—*P. C. R.*

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Nov. 25.

John Urquhart of Craigston, in Aberdeenshire, had raised a handsome estate, ‘but court or session’—that is to say, without court favour or by legal oppression—and built himself a beautiful semi-castellated house, the elegance of which is still calculated to impress those who visit it. As grand-uncle of the well-known Sir Thomas Urquhart of Cromarty, he had taken charge of that gentleman’s affairs, and thus came to be generally recognised as the Tutor of Cromarty. His death in November 1631 was bewailed by the elegant Aberdeenshire poet, Arthur Johnston, who says of him, in his epitaph in Kinedart church:

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1634.

‘Posteritas, cui liquit agros et prædia, disce  
Illius exemplo vivere, disce mori.’

The son of the Tutor, John Urquhart of Laithers, being deep in debt—to the extent of £40,000 Scots—his father settled the estate upon the next generation, now a boy. As John Urquhart was returning from his father’s funeral, he took sickness suddenly by the way, and soon found himself upon his death-bed. It was a bitter moment for the spendthrift, for he knew that his death would occasion severe losses to many gentlemen who stood as cautioners for his debts, and leave his own widow unprovided for. He could only call the boy to his bedside, and desire him to be good to his step-mother, and pay his father’s debts out of the large estate which would shortly be his. ‘The young boy passed his mourning promise so to do. Then he desires the Laird of Cromarty, who was present, to be nae waur tutor to his son nor his father was to him, and to help to see his debts paid.’

It seems to have been impossible in that age for either boy or girl to be left as this boy was, without becoming the subject of sordid speculations amongst those who had any access to or influence over them. The Laird of Innes, who was brother-in-law to the deceased Laithers, immediately ‘gets the guiding of this young boy, and, but advice of his friends, shortly and quietly marries him upon his awn eldest dochter, Elizabeth Innes.’ Such an outrage to the decency of nature for the sake of rich connection, does not seem to have been thought more than dexterous in those days. Innes, who was one of the first baronets of Nova Scotia, is described as ‘a man of great worth and honour.’ As a member of the Committee of Estates, he took a

prominent part in the war which was some years afterwards commenced for the defence of the national religion.

To the boy the affair became sadly tragical. When craved by the cautioners for his father's debts, he was willing to comply; but the selfish father-in-law would not listen to any such proposition. The unfortunate gentlemen had to pay, in some instances to the wreck of their own estates. The many maledictions which they consequently launched at the youth, affected him greatly in his conscience and feelings. 'And so, through melancholy, as was thought, he contracts an consuming sickness, whereof he died, leaving behind him an son called John in the keeping of his mother.'—*Spal*.

1634. Nov. 30.

The singular fortunes of this boy of sixteen—for he is said to have been no older at his death—became the subject of a ballad containing some stanzas of a more poetical character than are usually found in that class of compositions.<sup>[59](#)</sup>

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Died at Stirling, the Earl of Mar, Lord-treasurer of Scotland, the school-friend of King James VI., and a most respectable nobleman. Scott of Scotstarvet, who seems to have had rather more than the usual relish for the misfortunes of his neighbours, says of Lord Mar: 'His chief delight was in hunting; and he procured by acts of parliament, that none should hunt within divers miles of the king's house; yet often that which is most pleasant to a man is his overthrow; for, walking in his own hall, a dog cast him off his feet, and lamed his leg, of which he died; and at his burial, a hare having run through the company, his special chamberlain, Alexander Stirling, fell off his horse and broke his neck.'<sup>[60](#)</sup>

DEC. 14.

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The winter 1634-5 is described by a contemporary as 'the most tempestuous and stormy that was seen in Scotland these sixty years past, with such abundance of

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snow and so rigid a frost, that the snow lay in the plains from the 9th of December to the 9th of March.’—*Bal.* Another chronicler says that between the 26th of January and the 16th of February, ‘there fell furth ane huge snow, that men nor women could not walk upon our streets [Perth]. It was ten quarter or twa ell heich through all the town. Tay was thirty days frozen ower. There was are fast appointit, and there came a gentle thow, blissit be God.’ From the long stoppage of running waters everywhere, it became impossible to get corn ground, and a scarcity began to be felt. Ale became equally scarce, and no wonder—‘they knockit malt in knocking stanes.’—*Chron. Perth.* Owing also to the depth of the snow and its lying so long, ‘many bestial, both wild and tame, died; the flocks of sheep in the Lowlands, and the goats in the mountains, went all in effect to destruction.’—*Bal.*

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The excuse of the Marquis of Huntly not being held sufficient by the Privy Council, he was obliged to proceed to Edinburgh to answer for the Frendraught outrages. He commenced his journey on the 9th of January, and came by short stages to Aberdeen. In ten days, he had only reached Fettercairn in Forfarshire. Thence, after being storm-stayed in the place for three days, he advanced to Brechin, six miles; thence, next day, proceeded two miles further to his own house of Melgum. Here the snow detained him till the 10th of February. He and his lady then proceeded, ‘in ane coach borne upon lang trees upon men’s arms, because horse might not travel in respect of the great storm and deepness of the way clad with snaw and frost.’ This journey of about a hundred and fifty miles seems to have occupied fully five weeks, including the detentions on the way.

JAN.

The appearance of the marquis before the Council ended in his liberation, and that of the gentlemen previously imprisoned, upon their undertaking to repress the disorders, and give surety for a second appearance at a fixed time, the marquis also giving caution to Frendraught that he and his tenants should be unharmed, under a penalty of a hundred thousand pounds [probably Scots money]. The affair being thus so far settled, the marquis returned to his own country in May. He returned to the capital in summer,

and was favourably received by the Council on account of his endeavours for the quieting of the country.

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‘... there was seen in Scotland a great blazing star, *representing the shape of a crab or cancer, having long sprains spreading from it.* It was seen in the county of Moray, and thought by some that this star, and the drying up of the pot of Brechin, as is before noted, were prodigious signs of great troubles in Scotland.’—*Spal.*

JAN?

This portent is the more worth noting, as the description so curiously recalls the appearance of some of the *nebulæ* brought into view by the powers of Lord Rosse’s telescope—though, of course, from anything we know of the distance of these objects, the possibility of one of them coming into view of the naked eye, would scarcely be surmised by any modern astronomer.

Early in this year commenced a great mortality, probably in consequence of the scarcity which prevailed during the preceding year. The small-pox raged among the young for six or seven months with great severity, and, what was remarked as unusual, some persons took the disease for the second time.<sup>61</sup>

1635.

There was also a scarcity this year. ‘The fiar was ten pounds Scots the boll of meal and beir.... Several of the clergy, to the shame of them all, charged twelve pounds Scots and above.’<sup>62</sup>

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Grant younger of Ballindalloch, reported to the Council that he had lately taken an opportunity to attack some of the broken men who formed the company of the outlaw James Grant. Entering into pursuit of two, named Finlay M’Grimmen and — Cumming, he and his people had killed the first, and taken the second. They had carried Cumming three miles, intending to exhibit him alive to the Council, along with the head of M’Grimmen; but the country rising upon

MAR. 26.

them, they had been obliged to put the man to death. The Lords accepted this act as good service, and ordered M'Grimmen's head to be affixed to the Nether Bow Port; at the same time giving the inbringer of it a guerdon of a hundred merks, 'for encouragement of others.'—*P. C. R.*

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The year at which we are now arrived is the epoch of the establishment of a regular letter-post in Scotland. There was previously a system of *posts*, in the proper sense of the word—namely, establishments at certain intervals, where horses could be had for travelling, and which had the occasional duty of forwarding packets of letters regarding public affairs. As illustrative of this system of posts, which was probably limited to the road between Edinburgh and Berwick (as part of the great line of communication with London), with possibly one or two other roads—On the 29th of March 1631, the lords of the Privy Council dealt with the fault of ——— Forres, postmaster of Haddington, respecting a packet of his majesty's letters which had been lost by his carelessness. It appears that Forres was bound to have fresh horses always ready for the forwarding of such packets; but on one late occasion he had sent a packet by a foot-boy, who had lost it by the way, and he had never taken any further trouble regarding it. On the ensuing 3d of November, the Council had occasion to find fault with William Duncan, postmaster in the Canongate, and more particularly with a post-boy in Duncan's employment, because the latter, instead of carrying his majesty's packet to the postmaster at Haddington, had given it to 'a whipman' of Musselburgh, to be carried to Duncan's house there (designing probably that it should be forwarded by another hand). The Council recommended Sir William Seton 'to prescribe regulations to the postmasters, for the sure and speedy despatch of his majesty's packet, both anent the postmasters their constant residence at the place of their charge, and keeping of are register for receipt of the packets.'—*P. C. R.*

1635.

These circumstances appear as characteristic of a time when the postal arrangements were at once very new and very simple.

The necessity of having this system of posts for the communication of intelligence between the king and his Scottish Council was partly incidental to the time. In the days of King James, things were of so simple a nature, and in general so much left to the discretion of the Council, that a system of posts for the despatch of packets was scarcely required. Charles, having entered on a course more difficult, and in which great energy on his own part and that of his subservient Scottish Council was called for, and all little enough as being contrary to the general inclinations of the people, found a need for more frequent communication; and hence these posts in the Canongate and at Haddington.

At length this system merged in one applicable to the sister-kingdom also, and in which a regular periodical transmission of letters for private individuals was included. To quote from a contemporary writer—‘Till this time [1635] there had been no certain or constant intercourse between England and Scotland. Thomas Witherings, Esq., his majesty’s postmaster of England for foreign parts, was now commanded “to settle one running post, or two, to run day and night between Edinburgh and London, to go thither and come back again in six days; and to take with them all such letters as shall be directed to any post-town in the said road; and the posts to be placed in several places out of the road, to run and bring and carry out of the said roads the letters, as there shall be occasion, and to pay twopence for every single letter under fourscore miles; and if one hundred and forty miles, fourpence; and if above, then sixpence. The like rule the king is pleased to order to be observed to West Chester, Holyhead, and thence to Ireland; and also to observe the like rule from London to Plymouth, Exeter, and other places in that road; the like for Oxford, Bristol, Colchester, Norwich, and other places. And the king doth command that no other messenger, foot-post, or foot-posts, shall take up, carry, receive, or deliver any letter or letters whatsoever, other than the messengers appointed by the said Thomas Witherings: except common known carriers, or a particular messenger to be sent on purpose with a letter to a friend.”’<sup>63</sup>

1635.

The post between London and Edinburgh was of course conducted on horseback. It usually went twice a week, sometimes only once. Three years after, when the troubles had begun, the communication became insecure. A person in England then wrote to his friend in Scotland: ‘I hear the posts are

waylaid, and all letters taken from them and brought to Secretary Cooke; therefore will I not, nor do you, send by that way hereafter.<sup>64</sup>

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‘There was seen in the water of Don a monster-like beast, having the head like to ane great mastiff dog or swine, and hands, arms, and paps like to a man. The paps seemed to be white. It had hair on the head, and the hinder parts, seen sometimes above the water, seemed clubbish, short-legged, and short-footed, with ane tail. This monster was seen swimming bodily above the water, about ten hours in the morning, and continued all day visible, swimming above and below the bridge without any fear. The town’s-people of both Aberdeens came out in great multitudes to see this monster. Some threw stones; some shot guns and pistols; and the salmon-fishers rowed cobbles with nets to catch it, but all in vain. It never shrinked nor feared, but would duck under the water, snorting and bullering, terrible to the hearers and beholders. It remained two days, and was seen no more.’—*Slightly altered from Spalding.*

JUNE.

It seems most probable that this was one of the herbivorous cetacea, as the *manatus*. ‘They have,’ says Cuvier, ‘two mammæ on the breast, and hairy moustaches; two circumstances which, when observed from a distance, may give them some resemblance to human beings, and have probably occasioned those fabulous accounts of Tritons and Sirens which some travellers pretend to have seen.’ The *manatus* haunts the mouths of rivers in the hottest parts of the Atlantic Ocean, and it is just possible that a stray individual may have found its way to the coast of Scotland, more especially as it was the summer season.

The author of an *Account of Buchan*,<sup>65</sup> supposed to have been written about 1680, tells us that, some years before, two mermaids had been seen at Pitsligo, by a group of persons, one of whom was Mr Alexander Robertson, chaplain to the Laird of Pitsligo, ‘known to be ingenious.’ This writer refers to the strange marine animal of 1635, as a mermaid.

1635

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George, first Earl of Kinnoul, Chancellor of Scotland, had died at London in December 1634,<sup>66</sup> and now he was to be interred in his family tomb at the parish church of Kinnoul, near Perth. The funeral was one of those grand heraldic processions, of which that of the Earl of Buccleuch, under June 11, 1634, has been given as an example. There were *saulies*, trumpeters, and pursuivants in great numbers; relatives to carry the arms of the deceased, his coronet, his spurs, his gauntlet, his mace, and great seal, and the arms of many of his ancestors on both sides. His physician and chaplain in mourning, ‘a horse in dule,’ and two pages of honour, were other figures. And finally came the coffin, surmounted by a pall of black velvet, carried by twelve gentlemen, followed by the deceased’s son, in a long mourning robe and hood, assisted by six earls and three lords going three abreast. ‘In this order went they through the town of Perth, and near the bridge crossed the water (wharves and boats being appointed on purpose), and so marched to Kinnoul church, where, after the funeral-sermon being ended, the corps were set in the tomb prepared for them.’<sup>67</sup>

AUG. 19.

A full-length figure of the earl still surmounts his tomb; a good illustration of the full dress of a man of first rank in that age. The spiteful Scott of Scotstarvet tells us, ‘he was a man of little or no learning, yet had conquest a good estate—namely, the baronies of Kinnoul, Aberdalgie, Dupplin, Kinfauns, Seggieden, Dunninald, and many others; all which estates in a few years after his decease, his son made havock of.’

The pest was at this time at Cramond, near Edinburgh—supposed to have been introduced by a ship from the Low Countries, where the disease largely prevailed. The inhabitants were ordered to keep within their own parish, and two *clengers* from Newhaven were despatched to bury the dead and take all other needful steps to prevent the spread of infection. A strict order was issued to prevent the landing of people out of ships from Holland, or any intercourse with such vessels as might come into the Firth of Forth. The wife of Thomas Anderson, skipper, having gone on board her husband’s vessel, and remained there some time, after which she returned to her house in Leith, she was commanded to remain within doors. One Francis Vanhoche, of

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Middleburg, had embarked in a ship bound for Scotland, in order to settle his accounts for lead ore; he had been detained by contrary winds, and then landed at Hull, whence he proceeded to Edinburgh, and took up his quarters with Gilbert Fraser, a merchant-burgess of the city. To the surprise of Francis, he was shut up in the house as a dangerous person, and not liberated till the Laird of Lamington engaged to take him immediately off to Leadhills, where he had business to attend to. The order for the seclusion of the parishioners of Cramond caused enormous misery to the poor, who, being prevented from working, could obtain no supply of the necessaries of life. After a representation of their extreme sufferings, the order was removed (December 15).—*P. C. R.*

During the ensuing year, the plague declared itself in London, Newcastle, and other towns in England, but hardly appeared in Scotland till November, when the towns of Preston, Prestonpans, and Musselburgh were slightly infected.

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Soon after the Marquis of Huntly's summer journey to Edinburgh, Captain Adam Gordon of Park, offended at the severe proceedings of the great lord against himself and others, went to the Council in Edinburgh, and making a separate peace, gave information which led the Council to believe that the marquis had receipted and supplied some of the broken men after undertaking their reduction. The aged noble was accordingly summoned once more, and forced to obey, though it was now 'the dead of the year, cold, tempestuous, and stormy.' He and his lady again travelled 'by chariot.' On this occasion, he had to submit to a period of imprisonment in the Castle of Edinburgh, in a room where he had no light, and was denied the company of his lady, except on a visit at Christmas. He was afterwards permitted to live in 'his own lodging, near to his majesty's palace of Holyroodhouse, with liberty to walk within any of the gardens, of walks within the precinct of the said palace, and no further.' Thence, in June 1636, finding himself growing weaker and weaker, he set out for his northern castle, 'in a wand-bed within his chariot, his lady still with him.'

(Nov.)

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He died on the journey, in an inn at Dundee, whence his body was brought in a horse-litter to Strathbogie, for burial.

At the end of August, this great man was buried in state at Elgin, according to the forms of the Catholic Church, to which he belonged. ‘He had torch-lights carried in great numbers by friends and gentlemen.’ His son and three other nobles bore the coffin. ‘He was carried to the east style of the College Kirk, in at the south door, [and] buried in his own aile, with much mourning and lamentation; the like form of burial with torchlight was seldom seen here before.’—*Spal.*

This grand old nobleman had been in possession of his honours for sixty years. In his youth, he had great troubles from his rivalry with the Earl of Moray, and his adherence to the ancient faith. But he had lived down all difficulties, and, considering the sad affair at Dunnibrissle in 1592, died with a wonderfully good character. ‘The marquis,’ says Spalding, ‘was of a great spirit, for in time of trouble he was of invincible courage, and boldly bare down all his enemies. He was never inclined to war himself, but by the pride and influence of his kin, was diverse times drawn into troubles, whilk he did bear through valiantly. He loved not to be in the law contending against any man, but loved rest and quietness with all his heart, and in time of peace he lived moderately and temperately in his diet, and fully set to building all curious devices. A good neighbour in his marches, disposed rather to give than to take a foot wrongously. He was heard to say he never drew sword in his own quarrel. In his youth, a prodigal spender; in his old age, more wise and worldly, yet never counted for cost in matters of credit and honour. A great householder; a terror to his enemies, whom he ever with his prideful kin held under subjection and obedience. Just in all his bargains, and was never *heard* for his true debt.’

The marquis had had infinite trouble through life in maintaining his faith as a son of the Church of Rome, and it fully appears that the Presbyterians had the trouble of converting him four or five times. ‘In 1588, he gave in his adherence to the reformed establishment, and subscribed the Confession; but in his intercepted letters to the Spanish king, he says that “the whole had been extorted from him against his conscience.” In 1597, his lordship was again reconciled to the kirk, with much public solemnity, signed the Confession of Faith, and partook of the sacrament. His fidelity, however, was wholly



feigned, and did not last long. In 1607, Mr George Gladstanes, minister at St Andrews, was appointed by the General Assembly to remain with the Marquis of Huntly “for ane quarter or ane half year, to the effect by his travels and labours, the said noble lord and his family might be informit in the word of truth.” In the following year, Mr Gladstanes reported that he had stayed three days with the marquis, apparently at the time when his lordship was engaged in the re-edification of his castle of Strathbogie, of whose grandeur the existing remains as yet afford ample proof; and having among other things inquired at his lordship “why he resorted not to the preaching at the ordinar times in parish kirks,” he was informed that he could not well resort to the parish kirk, partly in respect of the mean rank of such as were within the parish, and partly in respect his lordship’s predecessors were in use to have ane chapel in their awn house, whilk he was minded to prosecute now, “seeing he was presently preparing his house of Strathbogie.” In 1606, he was accused of giving encouragement to the Roman Catholics, and thereby occasioning a great defection from the reformed opinions, and in 1608 he was excommunicated. In 1616, he was absolved from excommunication by the Archbishop of Canterbury, and afterwards by the General Assembly which met at Aberdeen in that year. There is, however, no doubt that during his whole life he was a warm adherent of the ancient religion.’<sup>68</sup> It would be difficult for a candid mind to say which was most to blame in all this—the marquis for his insincerity, or the church-courts for exercising force and accepting professions where they knew that there was no hearty concession attainable.

In his latter years, the marquis devoted himself much to what was then called *policy*—that is, building and planting. We have already seen that he erected an elegant mansion at Strathbogie—the now ruinous Huntly Castle. ‘He built a house at Kinkail on the Dee, called the New-house, which standeth amidst three hunting-forests of his own. He built the house of Ruthven in Badenoch twice, [it] being burnt by aventure or negligence of his servants after he had once finished the same. He built a new house in Aboyne; he repaired his house in Elgin; he hath built a house in the Plewlands in Moray; he hath enlarged and decored the house of Bog-Gicht, which he hath parked about; he repaired his house in the old town of Aberdeen.’—G. H. S.

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We light upon a curious bit of life in the book of the Privy Council. One day, not long before the date noted, DEC. Nicolas Johnston, wife of Mr Francis Irving, commissary-clerk of Dumfries, was walking on the street of that burgh, passing from her mother's house to the residence of 'Lady Cockpool,' when she met Marion Gladstones, spouse of the schoolmaster. Marion, after many flattering words, invited Nicolas Johnston into her house 'to drink with her.' Yielding with some reluctance to this invitation, Nicolas was taken into a quiet room in Marion's house, where presently a mutchkin of white wine was brought in for the solacement of the two ladies. Marion, as the hostess, drank the first cupful to the health of her gossip's husband; then, while Nicolas was looking at the hangings of a bed (few rooms were in those days without beds), she filled the cup again. 'Nicolas, looking about, perceived her tottering the cup in her hand, as if she had the perellis' [paralysis]. Then she gave it to Nicolas to drink. It appeared to have some brayed nutmeg infused into it. Nicolas, having drunk a little, handed back the cup to Marion, who, 'pretending it was to the said Nicolas's husband's health, urged her at three drinks to drink the same out. Thereafter Marion took the cup, and set it down, saying: "The last that drank out of that cup, loved the wine the better of the nutmegs," and with that changed her countenance and grew red. Nicolas, fearing some harm, and yet not suspecting any poison to be in the cup, the said Marion took ane clean linen and said: "I think you love not nutmegs," rubbed the cup clean, filled a drink of wine, drank thereof, and her servant also.'

Nicolas Johnston afterwards proceeded to Lady Cockpool's, but in the way experienced a violent attack of thirst, 'so that she was forced to call for drink, and could scarce be slockened. Thereafter, she came to her mother's house, and being troubled with the like thirst, drank weak ale and got little rest all the night.' Next day, her body, from the middle downwards, was enormously swelled, making her a monstrous figure, and this illness did not much abate for twenty days. Soon after, she had to take to her bed again, nor did she begin to recover 'till she received an antidote from Dr Hamilton.' Her health did not fully come back.

A commission was issued for inquiry into this affair, but with what result does not appear.—*P. C. R.*

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Instances of the capture of Scottish mariners by Barbary rovers, and of charitable efforts at home to redeem them from a cruel slavery, have been already intimated as numerous. At this time, we are informed of one which must have formed a powerful appeal to the humane bosom. A ship called the *John* of Leith, commanded by John Brown, and having ten sailors on board, is quietly proceeding on a mercantile voyage from London to Rochelle. Near the coast of France, it encounters three Turkish men-of-war, who give chase from sunrise to sundown, and at last take and sink the vessel, after easing her of her crew and all her valuable goods.

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The poor skipper Brown and his ten men, being carried to Sallee, were taken to market and sold as slaves. Each bearing iron chains to the weight of eighty pounds, the eleven men were employed all day in grinding in a mill, with nothing to eat but a little dusty bread. 'In the night, they are put in foul holes, twenty foot under the ground, where they lie miserably, looking nightly to be eaten with rottens and mice.' It was further stated, that 'being but a company of poor seafaring men, having nothing but their hires whereby to redeem themselves, and their kin are so mean and unworthy as they will do nothing in that errand, their thralldom and misery will be perpetual unless they be assisted and helped by the charitable benevolence of his majesty's good subjects.'

The Privy Council, looking kindly on the wretched state of the men, recommended a contribution in their behalf throughout Lothian, Berwick, Stirling, and Fife, under the care of 'John Brown and Walter Ross, indwellers in Preston.'

In the ensuing month, the Privy Council had in their hands a supplication from James Duncher, setting forth his pitiful estate as a prisoner among the Turks in Algiers. He had been kept for a long time there, forced to carry water on his back through the town, 'with an iron chain about his leg and round his

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middle, instead of sark, hose, and shoes;’ and no food ‘but four unce of bread daily, as black as tar,’ while obliged to endure ‘forty or threescore of stripes with are rope of four inches great upon his naked body, sometimes on his back, and sometimes on his belly.’ ‘When the ship is to go to the sea, he must go perforce and sustein the like misery there, and all because he will not renunce his faith in Christ and become ane Turk.’ His cruel masters having offered to liberate him for twelve hundred merks, he now entreated the Privy Council to recommend his case to the charity of his fellow-countrymen, that that sum might be raised and sent to him. The Council looked kindly on this sad petition, and appointed a collection to be made in the sherifffdoms of Edinburgh and Berwick, the proceeds to be handed to ‘David Corsaw in Dysart, uncle of the supplicant,’ who had undertaken to administer the money for Duncher’s relief.—*P. C. R.*

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A bark belonging to Dundee, carrying goods from Camphire, was overtaken near the mouth of the Firth of Forth by a storm, which obliged the master, after struggling with great difficulties, to run the vessel on shore in an inlet called Thornton Loch, near Dunbar.

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Immediately she was beset by a multitude of farmers, Dunbar tradesmen, and others, provided with horses and carts, who, cutting a hole in her side with axes, seized and took away her whole cargo. The enumeration of the articles gives some idea of what might constitute a grocer’s stock in those days, and speaks rather more strongly of comfort and luxury than many may be prepared for. There were ‘ten lasts of white pease, three lasts and a half of soap, four great pipes of “alme” [alum?] and three puncheons of “alme,” a ball of madder, three balls of galls, twenty hundred pund weight of sugar, ten trees [barrels] of white stiffin [starch], twenty trees of raisins of the sun, three trees of figs, [three] puncheons of Corse raisins, ten kinkens [kegs] of powder, twa small trees of brimstone, are thousand pund weight of tobacco, seven barrel pipes, four kinkens of indigo, four hundred pund of pepper, fifty pund of cannell [cinnamon], thirteen pund of maces, fifteen pund of saffron, twenty pund of nutmegs, ane thousand pund of ridbrissels (?), ten piece of Holland cloth, thirty-six pund of silk, ane steik

of Spanish taffeta, three trees of capers, ane packet of pannis' (?), and 'four hundred pund of pewter vessel and stoups,' besides 'six hundred and fifty merks of ready gold and silver, being in a purse, with the haill abulyiements and clothing belonging to the company and equipage of the ship.' Having carried off these articles, they proceeded to sell them to the country people, without any regard to the remonstrances of the master of the ship. 'The like of whilk barbarous violence, committed in the heart of the country by people who ought to have respect for law and justice, has not been heard of; whereanent some exemplar and severe course ought to be ta'en, lest the oversight and impunity thereof make others to commit the like.'

It is gratifying to find the Council taking up the East Lothian wreckers in this spirit. They did proceed with great energy against such of the individuals accused as they found to be truly guilty, imposing on them severally certain fines, from fifty merks up to fifty pounds, in order to make up a proper compensation to the owners of the goods.—*P. C. R.*

In July 1636, the Council dealt with a case of wrecking which strongly illustrates the state of morals in the Western Islands. The *Susanna*, a bark of twenty-four tons, was proceeding, in December 1634, from the port of St Malo, in France, to Limerick, with wines and other goods to the value of a thousand pounds, when she twice encountered stormy weather, and by force of winds and waves, was carried to an inlet in one of the Hebrides. Having lost their boat, the mariners made signs to the people on shore, who presently came on board, armed with swords, pikes, and crossbows, 'and demanded of the company of the bark what they would give to bring the bark into are harbour.' It was agreed by the distressed crew, that a butt of sack and a barrel of raisins should be given for that service and for some provisions of which they stood in need. Then the islanders cut the ship's cable and brought her to land.

The master and his crew expected here to find kindly entertainment and to be in full security; but, instead of this, a great number of people, of whom the captain of the Clanranald and the Laird of Castleborrow were the chief (three hundred in all, it is said), came down upon them in armed fashion, and furnished with barrels and other conveniences; 'drank and drew out the wine day by day, carried away all their goods and merchandise,' and even robbed the strangers of their wearing apparel, 'as weel that upon their bodies as whilk was in the bark.' By threats and ill-usage, they also obliged

a young man, a member of the crew, to assume the character of factor of the vessel, and make a mock sale of her merchandise, 'in consideration of a sowm of money, although he received nane.' Finally, under a threat of being sent with the crew 'to the savages that dwells in the mayne,' the owner was compelled to accept eight pounds for the vessel, though it was worth a hundred and fifty; and then the crew found it necessary to get away as best they could, for fear of their lives.

The Council summoned the accused persons, and on their failing to appear, denounced them as rebels.—*P. C. R.*

1636.

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A difficulty occurring about the election of magistrates for Aberdeen, a *leet* was sent to the Privy Council, who selected out of it Alexander Jaffray, a distinguished merchant, whom we shall meet again in this chronicle. 'Many lichtlied both the man and the election, not being of the old blood of the town, but the oy [grandson] of ane baxter [baker], and therefore was set down in the provost's dais, before his entering, are baken pie, to sermon. This was done divers times; but he miskenned [overlooked] all, and never quarrelled the samen.'—*Spal.*

JAN.

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On the application of Mr William Gordon, professor of medicine and anatomy in the university of Aberdeen, who had hitherto been obliged to illustrate his lessons by dissecting beasts, the Privy Council gave warrant to the sheriffs and magistrates of Aberdeen to allow him the bodies of a couple of malefactors for the service of his class, if such could be had, but, failing these, the bodies of any poor people who might die in hospitals or otherwise, and have no friends to take exception; this being with the approbation of the Bishop of Aberdeen, chancellor of the university.<sup>69</sup>

APR. 1.

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This was a terrible day for the *broken men* who had for the last few years been carrying on such wild proceedings in Morayland and other districts bordering on the Highlands. Lord Lorn—who soon after, as Marquis of Argyle, became the leader of the Covenanting party—had exerted himself with diligence to put down the system of robbery and oppression by which the country had been so long harassed; and he had succeeded in capturing ten of the most noted of the catterans, including one whose name enjoys a popular celebrity even to the present day. This was Gilderoy or Gillieroy; such at least was his common appellation—a descriptive term signifying the Red Lad—but he actually bore the name of Patrick Macgregor, being a member of that unhappy clan which the severity of the government had driven to desperate courses about thirty years before. Another of the captured men was John Forbes, who seems to have been the *fidus Achates* of the notorious outlaw, James Grant. A natural son of Grant was also of the party. These ten men were now brought to trial in Edinburgh.

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It was alleged of Gilderoy that he and his band had for three years past *sorned* ‘through the haill bounds of Strathspey, Braemar, Cromar, and countries thereabout, oppressing the common and poor people, violently taking away from them their meat, drink, and provision, and their haill guid[s].’ They had taken fifteen nolt from one farm in Glenprosen; had lain for days at Balreny, eating up the country, and possessing themselves of whatever they could lay hands on, and in some instances they had carried off the goodman himself, or the man and wife together, in order to extort money for their ransom. One of the charges leads us to the romantic scenery of Loch Lomond, where there is an island called Inchcailloch (Women’s Island), from having been the seat of a nunnery in ancient times. Gilderoy, in company with his brother, John Dhu Roy, and his half-brother, John Graham, had come to William Stewart’s house in this island, and taken from it ‘the whole insight plenishing, guid[s], and geir,’ besides the legal papers belonging to the proprietor. There had also been a cruel slaughter of one of the Clan Cameron. The other men were taxed with offences of a similar kind.

If the doom of the ten catterans was duly executed—and we know nothing to the contrary—they were all, two days after, drawn backwards on a hurdle to the Cross, and there hanged, Gilderoy and John Forbes suffering on a gallows ‘ane degree higher’ than that on which their companions suffered, and further having their heads and right hands struck off for exhibition on the city ports.<sup>70</sup>

Gilderoy, as is well known, attained a ballad fame. There is a broadside of the time, containing a lament for him by his mistress, in rude verses not altogether devoid of pathos. She says:

‘My love he was as brave a man  
As ever Scotland bred,  
Descended from a Highland clan,  
A catter to his trade.  
No woman then or womankind  
Had ever greater joy  
Than we two when we lodged alone,  
I and my Gilderoy.’

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There is something almost fine in the close of the piece:

1630.

‘And now he is in Edinburgh town,  
’Twas long ere I came there;  
They hanged him upon a pin,  
And he wagged in the air:  
His relics they were more esteemed  
Than Hector’s were at Troy—  
*I never love to see the face  
That gazed on Gilderoy.’*

A various version of this doleful ditty appears in *A Collection of Old Ballads* (London, printed for J. Roberts, &c., 1724). It contains some stanzas not quite consistent with modern taste, and takes such a view of the offences of the hero as might be expected from a woman and a mistress:



‘What kind of cruelty is this,  
To hang such handsome men!’

As it breathed, however, a strain of natural feeling, it attracted the attention of Lady Wardlaw, the authoress of the fine ballad of *Hardiknute*, and by her was put into such an improved form as may be said to have rendered the name of Gilderoy classical.

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A petition given in to the Privy Council by the parishioners of Denny, craving assistance to rebuild a bridge which had been carried away by a ‘speat’ of the Carron, stated the circumstances of the accident in terms which illustrate the power of running-water in a remarkable manner. The tempest, it was said, exceeded all that could be remembered, ‘by the violence whereof not only houses, with men, wives, and bairns, were pitifully carried away and drowned, but great craigs and rocks were rent, and huge parts of the same, of forty foot of length and above, carried with the violence of the speat, above four or five pair of butts length from the craig, within the water of Carron, to the dry land.’—*P. C. R.*

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JULY 28.

Lady Rothiemay, after a long detention under caution, was this day subjected to trial for giving encouragement to the Frendraught spoilers two years before. There seems to have been a disposition to look lightly on the offence of a woman who had had the deaths of a husband and a son to excite her feelings, and the charge, after being twice delayed, was finally allowed to fall to the ground.

AUG. 3.

The Privy Council, learning that a number of gipsies had been seized a month before, and thrown into jail at Haddington, decreed that, ‘whereas the keeping of them longer there is troublesome and burdenable to the town,’ therefore the

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sheriff or his depute should pronounce sentence of death ‘against so many of thir counterfeit thieves as are men, and against so many of the women as wants children, ordaining the men to be hangit, and the women to be drowned;’ while ‘such of the women as has children should be scourged through the burgh.’<sup>71</sup>

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John Greg, ‘in the Haughs of Fingoth,’ complained to the Privy Council of the conduct of Mr James Stuart, commissary of Dunkeld, who, after passing upon him sundry affronts, had lately fallen upon a new trick for his disgrace—namely, to insert ‘Macgregor’ as his name in all public documents in which he was concerned either as pursuer or defender. ‘Now, lately, under the borrowed name of David Martin, servitor to the Laird of Ballechin, he has ta’en the gift of the complainer’s escheat, and in that same gift he calls the complainer John Macgregor, *alias* Greg.’ By this it was assumed that the Dunkeld commissary intended ‘to draw the complainer under all the courses that sall be ta’en with the Clan Gregor.’ Greg further affirmed that his family name for generations past memory had been simply Greg, ‘and had nothing to do with the race of Clan Gregor.’

DEC. 8.

The Council obliged Stuart to give caution that he would discontinue this singular kind of persecution.—*P. C. R.*

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We have notice at this time of a very pretty quarrel between Lord Fraser and the Laird of Philorth. ‘The kirkyard dike of Rathin being altogether ruinous and decayed, the gentlemen and others of the parish, out of respect to the honour of God and credit of the parish, concluded to repair and big up the said kirkyard dike,’ except a part which fell properly to be done by the late Lords of Lovat and Fraser. Owing to the death of Lord Lovat, the duty of building the latter portion fell solely upon Lord Fraser, who, when he had executed it, ‘caused put up aboon the kirkstyle his name and arms in carved

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stones, after a decent and comely order, never thinking that any man would have been so void of modesty and discretion as to have maligned the said wark.' Nevertheless, Alexander Frisell of Philorth had come with a number of armed followers, under cloud of night, and put up three great brods with the arms of Philorth painted on them, right over the Lord Fraser's arms, which were now consequently invisible.

Such a proceeding, it was held, could only be interpreted as meant to stir up Lord Fraser into a deadly quarrel; 'but he, out of respect to his majesty's obedience and laws, whilk he will ever prefer to his awn unruly passions, has forborne to tak upon him the sword of justice.' He applies to the Privy Council for the just redress of 'this inexcusable wrong.'

The Council had the accused parties summoned before them, and the Laird of Philorth, having appeared, could only excuse himself by alleging what he felt to be due to his late father's 'funerals.' The Lords therefore contented themselves with ordering the 'brod' with the arms to be taken down 'at mid-day, in presence of the minister of Rathin.' A counter complaint from Philorth against Lord Fraser for putting up his arms in stone on the kirkyard dike, was remitted to the judge ordinary of the district.—*P. C. R.*

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It is remarkable that the government never previously exerted itself more strenuously for the repression of spoliation and common theft than just before its hands were paralysed by the outbreak of the religious spirit. We have just seen justice done upon a number of broken men of the north and the gipsies of the south; we have now to see even more stern proceedings against the Border thieves. A commission, headed by the Earl of Traquair, sat at Jedburgh on the day noted, when whole droves of culprits came before them, and were dealt with in the most rigorous manner. The number hanged was thirty! Five were burned, and as many fined. Fifteen were banished from the country, under caution never to return. While fifteen were 'cleansed,' forty were declared fugitives for non-appearance, and twenty dismissed with assurance that they should be treated in a similar manner if they failed to bring forward caution before a particular day.

FEB. 23.

The commissioners framed a number of statutes, some of which speak strongly of the state of things which they were meant to correct. Any person going to Ireland without a licence was to be held as a thief, and brought to trial. It was culpable for any innkeeper to have beef, mutton, or lamb in his house, without ‘presenting the skin, heed, and lugs thereof, to two or more of their honest neighbours, who may bear witness of the mark and birn of the skin and hide, and that the flesh thereof is lawfully becomit.’ No one was to purchase cattle or sheep otherwise than in open market, ‘at the least before twa famous witnesses testifying that the guids is lawfully becomit.’ It was a misdemeanour for any one who had goods stolen to negotiate for their recovery and leave the thief unprosecuted. No one was to give harbourage or assistance in any way to men declared fugitives from justice.—*P. C. R.*

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1637.

During the spring and early summer of this year, the border counties were afflicted with the pest. Various orders were issued with a view to confining the range of the sickness as much as possible. From one of these arose a complaint on the part of Sir John Murray of Philiphaugh, who, as convener of the justices of his county, had occasion to see the arrangements carried out. Having gone to Selkirk for this purpose, he found a citizen named James Murray about to have a daughter married, and ‘a great part of the country’ expected to gather to the ceremony. He forbade the assemblage as dangerous, and enjoined that not above four or five should be present as witnesses; but James Murray would not listen to his remonstrances. When Sir John afterwards sent for him to press still further the necessity of having only a small company, James Murray proudly answered: ‘If ye be feared, come not there.’ Sir John then called on the bailies to commit him to prison, but ‘there was no obedience given thereto;’ and next day, when the marriage took place, ‘there was about four or five score persons who met and drank together all that day till night.’—*P. C. R.*

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JUNE.

The intrusion of a service-book or liturgy, upon the Scottish Church has been alluded to in the introduction to the present section. There was an almost universal

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unwillingness, even among the friends of the reigning system, to give efficacy to the royal orders; for it was seen that the congregations would not calmly see this innovation effected. It was resolved, however, that on Sunday the 23d of July the book should be used in the cathedral of Edinburgh—the ‘Great Church’ of St Giles—where the privy councillors, including the bishops and the lords of session, as well as the city magistrates, usually attended worship, besides a large congregation of the upper class of citizens.

To pursue the narrative of a contemporary:—‘How soon as Dr George Hanna, dean of Edinburgh, who was to officiate that day, had opened the service-book, a

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number of the meaner sort of people, most of them waiting-maids and women, who use in that town to keep places for the better sort, with clapping of their hands, cursings, and outcries, raised such an uncouth noise and hubbub in the church, that not any one could either hear or be heard. The gentlewomen did fall a tearing and crying that the mass was entered amongst them, and Baal in the church. There was a gentleman standing behind a pew and answering “Amen” to what the dean was reading; a she-zealot, hearing him, starts up in choler: “Traitor,” says she, “does thou say mass at my ear!” and with that struck him on the face with her Bible in great fury.

‘The bishop of Edinburgh, Mr David Lindsay, stepped into the pulpit, above the dean, intending to appease the tumult, minding them of the place where they were, and entreating them to desist from profaning it. But he met with as little reverence (albeit with more violence) as the dean had found;<sup>72</sup> for they were more enraged, and began to throw at him stools, and their very Bibles, and what arms were in the way of [their] fury. It is reported that he hardly escaped the blow of a stool, which one present diverted. Nor were their tongues idler than their hands. Upon this, John Spottiswoode, archbishop of St Andrews, then Lord Chancellor, and some others, offering to assist the bishop in quelling the multitude, were made partners of the suffering of all these curses and imprecations which they began to pray to the bishops and their abettors. The archbishop, finding himself unable to

prevail with the people, was forced to call down from their gallery the provost and bailies and others of the town-council of Edinburgh, who at length, with much tumult and confusion, thrust the unruly rabble out of the church, and made fast the church doors.

‘The multitude being removed, the dean falls again to read, in presence of the better sort who stayed behind; but all this while, those who had been turned out of doors, kept such a quarter with clamours without, and rapping at the church doors, and pelting the windows with stones, as that the dean might once more be interrupted. This put the bailies once more to the pains to come down from their seat, and interpose with the clamorous multitude to make them quiet. In the midst of these clamours, the service was brought to an end; but the people’s fury was not a whit settled; for after the bishop had stepped up into the pulpit and preached, and the congregation dismissed, the bishop of Edinburgh retiring to his lodging not far distant from the church, was environed and set upon with a multitude of the meaner people, cursing him and crowding about him, that he was in danger of his life, and to be trodden down amongst the people; and having recovered the stairs of his lodging, he no sooner began to go up, but he was pulled so rudely by the sleeve of his gown that he was like to have fallen backwards. Nor was he in more security, having gotten to the top of the stairs; for the door he did find shut against him, and so was at a stand, likely to have been oppressed, had not the Earl of Wemyss, who from the next lodging saw the bishop in danger, sent his servants for to rescue him, who got him at last, breathless, and in much amazement, into his lodging.’—*Gordon’s Hist. of Scots Affairs*.

1637.

Tradition in modern times has represented an herb-woman, named Jenny Geddes, as the heroine who more especially cast her stool at the bishop. Wodrow, however, has given us a different account in his *Analecta*. ‘It is,’ says he, ‘a constantly believed tradition, that it was Mrs Mean, wife to John Mean, merchant in Edinburgh, that cast the first stool when the service-book was read in the New Kirk, Edinburgh, 1637; and that many of the lasses that carried on the fray were prentices in disguise, for they threw stools to a great length.’ Mrs Mean had been the subject of a relenting and humane act on the part of the government. When her husband was under restraint for nonconformity in 1624, he was liberated on a petition setting

forth the delicate state of his wife's health, in order that he might be enabled to return to Edinburgh and attend upon her.<sup>73</sup>

‘After this Sunday's wark, the haill kirk doors of Edinburgh was lockit, and no more preaching heard [for four or five weeks]. The zealous puritans flockit ilk Sunday to hear devotion in Fife; syne returned to their houses.’—*Spal.*

1637.

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The poor and scattered success of the new liturgy is quaintly dwelt on by a nobleman who took a leading part in the proceedings for obtaining its abrogation. ‘Sundry bishops,’ he says, ‘did establish [the service-book] at their cathedrals, as the bishop of Ross in the Chanrie, Brechin at the kirk of Brechin, Dunblane at Dunblane. It was not fully practised at St Andrews; only a few of the prayers were read by the archdeacon, and having no assistance, left the same, after a few months’ practice of a part of it only. The minister of Brechin, Mr Alexander Bisset, would not practise it; but the bishop read it by his own servant. At Dunblane, the ordinary minister, Mr Pearson, a corrupt worldling, read it ... yet did the said Pearson, after consideration of the general dislike of the service-book, at a meeting of the small barons of Strathearn, subscribe the supplication against the service-book, as the Laird of Kippenross. At Chanrie, it was read by one appointed by the bishop. Except these places, it was not entered nor practised in no place in Scotland; except Dr Scrimgeour at St Fillans read it, and neither being dextrous, nor having any to assist him, as it began to be discountenanced, he dishaunted it. Also in Dingwall in Ross, one Mr Murdo Mackenzie, under censure for divers heinous and foul crimes, practised the same, to obtain remission of his offences. Certain prayers were also read in the New College at St Andrews, some of these that are not themselves corrupt, though joined with the rest—and this obedience given by that fearful man, Dr Howie, who hath fallen back from the truth of his first profession.’<sup>74</sup>

JULY.

## REIGN OF CHARLES I.: 1637-1649.

It was a terrible and most exciting crisis for Scotland, when the people found themselves constrained by all they held sacred to resist their sovereign. Revering the institution of monarchy, and long accustomed to yield to the powerful king of Great Britain a deference which had neither been asked by nor paid to the sovereign of their own rude and inferior state, nothing could have brought them into such an attitude but their anxiety for the avoidance of soul-endangering errors. Even after the riots of July—such was the unwillingness to adopt strong measures—they might have been induced to remain at peace under bishops and Perth articles, if the king had been so far well counselled as at once and gracefully to withdraw the Service-book. So might a moderate Episcopacy have been preserved in Scotland, and the Civil War itself avoided or postponed. The king unfortunately determined to persevere in his unlucky course. The consequence was that the great mass of the people, including many of the nobility and gentry, was led into measures, at first of protestation, and latterly of resistance. There was indeed a district in the north-east where Episcopacy was the favourite system. In some other places, papist nobles exercised a limited local influence. The Highlanders were an uninstructed people, with no religious predilections. But in the Lowland provinces generally, a people far from void of intelligence were intensely earnest in favour of their old simple forms of worship and model of church-government. In the agitation of the subject during a few months, their prepossessions acquired a strength and fervour which never had been known before. It were quite impossible for any individual of our cool and temperate age, to form an adequate idea of the earnest feelings of the men who now arrayed themselves against Charles's Episcopal innovations, without a careful perusal of the numberless documents in which these feelings found expression.

In the latter part of 1637, the Service-book not being withdrawn, four committees, called *Tables*, respectively representing the nobles, gentry, clergy, and burgesses, met in Edinburgh to concert measures for giving it an effective resistance. When it became evident, in the ensuing February, that



the king was obdurate, the Tables framed a NATIONAL COVENANT, binding all who should sign it to spare nothing which might save their religion. It was signed by a large majority of the people, in a paroxysm of enthusiasm beyond all example in our history. The king, at length alarmed, sent the Marquis of Hamilton (June 1638) as a commissioner to treat with the Covenanters; and he soon after was induced to offer concessions far beyond what would have been grasped at a twelvemonth before—namely, to withdraw the Service-book and an equally unpopular Book of Canons, to abrogate the Court of High Commission, and place the Perth articles on a footing of indifferency. But while the people at large were at first disposed to be at peace on these terms, the leaders were by this time influenced with higher views. Feeling their power, they now hoped by perseverance to obtain a complete abolition of Episcopacy. Accordingly, when the matter came to be debated in a General Assembly of the Church, which sat at Glasgow in November, the royal commissioner proved unable to keep them within moderate bounds. On his formally dissolving the Assembly, they sat still under a clerical president, until they had deposed the bishops and declared Episcopacy wholly at an end.

The king, notwithstanding that a respect for his person and rule was still professed, could not acquiesce in a movement so contrary to the policy he had so long maintained, and which interfered so violently with his own religious convictions. He began to prepare an army for the subjugation of the Covenanters. They on their part made ready for an armed resistance, not professedly to their sovereign, but to the statesmen who guided his counsels. By a great effort, he got together twenty thousand men, and (May 1639) led them towards the Border. A fleet, having a few thousand troops on board, at the same time entered the Firth of Forth, under the command of the Marquis of Hamilton. Under their nobles, gentry, and clergy, the Scots mustered forces to defend their shores from the fleet, to meet the anti-Covenanting party in the north, and to oppose the king at the Border. To the number of about twenty thousand men, commanded by Sir Alexander Leslie, an experienced officer from the German wars, they took post on Dunse Law, while the king advanced with his army towards the Tweed. What with constant praying, preaching, and fasting, it was such a camp as perhaps never existed before or since. The king, seeing their resolution and discipline, and feeling that he had but slack support from his own army, was induced to offer a pacification. He could not sanction the acts of a General

Assembly which had defied his authority; but he proposed that everything should be submitted to another such body sitting under his representative, and to a subsequent parliament. His hope was that time and his personal influence with the leaders might bring things to some passable issue. At the worst, he should meanwhile prepare a greater army for enforcing subjection.

The new General Assembly and the parliament met in the course of summer (1639) under royal commissioners, but with only the effect of formally affirming the abolition of Episcopacy. The king accordingly resolved on a second expedition against the Scots. After trying in vain to induce an English parliament to grant supplies, he obtained some assistance from a convocation of the English clergy, and from a number of friends among the gentry. He calculated much on the public fortresses of Scotland being now in his hands, and on the zeal of a small loyal party. All his hopes were frustrated. In the early part of 1640, the Scots mustered a second army as good as his own. They succeeded in seizing the most of the fortresses. His expectations of co-operation from the loyalists in Aberdeenshire proved fallacious. The attention of a patriotic party in England was now hopefully fixed on the proceedings of the Scots. The truth is, Charles was leading the army of a party of his English subjects through a country generally disaffected to his policy, against a country altogether hostile. In such circumstances, a great blow to his authority was inevitable.

The Covenanters did not now deem it necessary to confine themselves to a defence of their own borders. They crossed the Tweed with a gallant army (August 28, 1640), and advanced on the Tyne. After a smart action, in which they were victorious, they crossed that river, and took possession of Newcastle. With a disaffected army, and all but a few zealots muttering around him, the king could only come a second time to a convention, but now it was upon less favourable terms than before. It was arranged that a new parliament should be called in England for the settlement of the affairs of the kingdom, and that meanwhile the Scottish army should remain in the north under English pay; thus the patriotic party calculated on having a guard to protect them while reforming the state. Efforts were made to raise resentment against the Scots as invaders of the English territory; but the Scots took care, by their published declarations, to shew that they solely aimed at the preservation of the religious forms which had long before been

established among them, and that they desired nothing more than the friendship of the English people. Among the English themselves, objections to Episcopal authority and a formal style of worship had been advancing since early in the reign of Elizabeth; giving rise to what was called the Puritanic party. English Puritans, aiming at the same objects as the Scottish Covenanters, readily gave them their sympathy. Thus it was with the cordial concurrence of a large portion of the English nation that the Covenanters rested under arms in England.

The parliament which now sat down, and which was not to rise again for eleven years, proceeded to take into consideration a number of grievances under which the country was considered as having suffered during the king's reign. His prime advisers, Laud, archbishop of Canterbury, and the Earl of Strafford, were imprisoned. Other ministers of the king—opprobriously styled *Malignants*—were obliged to fly from the kingdom. It became evident that the church itself was in danger. Strafford, after a trial in which it has never been pretended that he got fair-play, was (May 1641) condemned and beheaded. While thus sorely pressed by his English parliament, Charles began to think that his Scottish subjects might be conciliated so as to become his friends, and perhaps to some degree his partisans. In August 1641, he revisited Edinburgh, in order to preside at a meeting of the Estates; and there he sanctioned all the measures they had themselves taken, and distributed honours and rewards among the Covenanting leaders. He spent three months in Edinburgh, doing all in his power to cultivate the affections of the Covenanters, and apparently with success, though there were not wanting some troubles, occasioned by a small loyalist party, who wished to act more energetically in his behalf than was convenient for him. He at length returned, as he said, a contented prince from a contented people. Before this time, the Scottish army had been satisfied of their pay by the English parliament, and had returned from Newcastle, and been disbanded.

While the king still remained in Scotland (November 1641), intelligence arrived of a frightful outbreak of the Catholics in Ireland, and the dreadful vengeance executed by them upon their Protestant fellow-subjects. Ten thousand Scottish troops were quickly mustered, and sent over to assist in preserving the king's authority in that country.

The arbitrary rule which King Charles had exercised down to 1637, had in four years been brought low in both Scotland and England. A severe lesson had been read to him, if he had had the wisdom to profit by it. After such a struggle, it is not easy, either for the monarch to rest corrected, or for his subjects to make moderate uses of their victory. Bigoted views on his part as to both state and church, fostered by the support of a loyal party more generous than wise; a strong sense in the patriotic or parliamentary party that the king and his friends would resume the system of arbitrary authority if possible, and use it mercilessly against all who had taken part in the late movements; made it in a manner impossible that things should rest at the point now attained. Accordingly, soon after the return of the king to London, the popular party in the English parliament presented to him their famous *Remonstrance*, recapitulating all the errors of his past government, and recommending that he should put himself into the hands of ministers who enjoyed the confidence of the people. His imperious spirit, strengthened by his hopes of support in Scotland, refused to yield to such counsels. When he made his unfortunate attempt (January 1642) to seize the five leading patriots in the House of Commons, the distrust of the parliament was completed, and reconciliation became impossible. The king had for some time contemplated warlike means of recovering his lost ground; but it was not till the bishops had been impeached, and he had been asked to surrender the command of the militia to the parliament, that he raised his standard at Nottingham (August 1642), with the support of a large body of loyal gentry.

In this civil war, the Scottish nation had no formal reason or pretext for joining on one side or the other; but their sympathies and interests were all engaged in behalf of the parliamentary cause. When the first two campaigns, therefore, made it seem likely that the king would be triumphant, they naturally felt some uneasiness, as fearful that if he should put down the parliament, their recovered liberties and reinstated church would be in danger. The temptation to assist the English patriots thus became irresistible. A set of commissioners from the English parliament came into Scotland to court its alliance; they were instructed to give the Scottish nation hopes that, in the event of success against the king, the Presbyterian model should supersede the Episcopalian both in England and Ireland. With the enthusiastic conceptions the Scots then had of the value of Presbyterianism, as the only pure and saving vehicle of the gospel, they

were unable to resist this bait, though it was after all put into an ambiguous shape. Their Estates, accordingly, entered into what was called a SOLEMN LEAGUE AND COVENANT with the English parliament (August 1643), one of the provisions of which engaged them to send an army against the king. Eighteen thousand foot and three thousand horse, to be supported by English pay at the rate of £30,000 a month, crossed the Tweed in the depth of winter (January 1644). With a view to gratify and encourage them, their enemy, Laud, was taken from his prison in the Tower, tried, and sent to the block—a piece of political revenge merely, as the old man was unable to have done any one further harm. Joining the parliamentary troops at York, the Scots assisted materially in gaining the important victory of Marston Moor, from which the king's party never entirely recovered. They also besieged and took Newcastle, preserving a laudable moderation in their triumph. The season ended with a marked depression of the royal cause.

While affairs in Scotland were wholly managed by a Committee of the Estates and the Commission of the kirk, several of the nobles and the inhabitants of certain districts, chiefly in the Highlands, formed a tacitly royalist party. The young Earl of Montrose, raised to the rank of marquis, and invested by the king with a commission, set up the royal standard in Perthshire (August 1644), and was soon surrounded, by three thousand men, part of whom were Irish papists. Montrose was a man of extraordinary genius, with conceptions far beyond his narrow sphere. Originally a zealous Covenanter, he had changed when he thought the king too hard pressed by his subjects. A generous loyalty and romantic heroism enabled him to perform wonderful exploits; but it is at the same time to be owned that he was fearfully unscrupulous about plunder and the shedding of blood. With his ill-armed followers, he overthrew a carefully embodied army of militia, of twice his number, at Tippermuir (September 1644). Then marching to Aberdeen, he defeated a second army under Lord Burleigh, and entering the city, subjected it to a pillage even severer than any he had inflicted on it as a Covenanter. The Marquis of Argyle pursued him round the Highlands without gaining any advantage. Suddenly breaking off his course, he invaded Argyleshire in the depth of winter, and ravaged it without mercy, killing a great number of the men fit to bear arms. The Marquis of Argyle came to revenge this frightful proceeding at Inverlochy, but was there defeated with immense slaughter (February 1645). Montrose then made a deliberate march through Inverness-shire, Moray, Banffshire, and the east

coast, using fire and sword wherever the king's cause was not at once acknowledged and supported. It was a warfare such as had not taken place in England since the contentions of the Roses, and strongly marks the lower civilisation of Scotland at this date. At Dundee, he received a check from a Covenanted army under General Baillie, and with some difficulty succeeded in obtaining a refuge in the mountains. Descending again to the plains in Nairnshire, he defeated with great slaughter a small army under Colonel Urry at Auldearn; soon after, he in like manner overthrew Baillie's forces at Alford. He was now confident enough to promise King Charles the speedy recovery of Scotland; and the king, finding his affairs becoming more and more discouraging in England, was inclined to trust to this promise, and migrate northward. Montrose, however, only distressed his country; he did not conquer or convert it to loyalty. He never accomplished any solid or permanent advantage, but was as much the mere guerrilla chief at the last as at the first. One other victory, gained over a large militia force at Kilsyth (August 1645), left him without any apparent opposition in Scotland. Yet within a few weeks (September 13), he was completely defeated at Philiphaugh, in Selkirkshire, by a body of horse detached under David Leslie from the Scottish army in England; and he was soon after obliged to retire to the continent. Montrose's course was like that of a meteor, which alarms and excites wonder, but passes without leaving any tangible effects.

Meanwhile the battle of Naseby and the second battle of Newbury had left the king's cause in a hopeless condition, and at the close of 1645, he was scarcely able to keep the field. It was now absolutely necessary for him to make peace with his subjects, if he hoped to retain even a nominal power or place in the state, and, seeing that the resources of the pure royalists had proved insufficient for his support, his best course would have been to place himself in the hands of the party next in the sentiment of regard for his person. This was the party of Presbyterians, as distinguished from a more extreme party, which had latterly sprang into importance in England, under the name of Independents, who professed to support a primitive form of Christianity without any ecclesiastical organisation whatever. The Presbyterians hated Episcopacy; but they were not averse to a moderate or limited monarchy; while the Independents were generally of republican principles. Charles, unfortunately a bigot for Episcopacy, could not bring himself to sanction the Presbyterian model, even for a limited time on trial.

He hoped to bring out a better issue for himself by the dangerous game of playing off the various parties against each other. Having thus lost a good opportunity of treating, he was obliged, in May 1646, to take refuge with the Scottish army at Newark.

Whatever may be thought of the conduct of the Scots in entering into the Solemn League and Covenant, and sending troops against a sovereign who had so thoroughly redressed their own national grievances, there can be no reasonable doubt that they were prompted on that occasion by a pure zeal for their church establishment, and a sympathy with those of the neighbouring nation who desired to be equally free from the rule of bishops. But it cannot be denied that in engaging themselves to ‘endeavour, without respect of persons, the extirpation of popery, prelacy, superstition, heresy, schism, profaneness, and whatsoever shall be contrary to sound doctrine’—for such are the terms of the League—they had wholly changed the nature of their policy. From a laudable defence of cherished institutions of their own, menaced with danger, they passed into a very questionable system of propagandism and aggression. It might be said that they were committing the same mistake as King Charles had done in his original policy towards themselves, going against the religious traditions and prepossessions of a people; for, while Puritans and Independents had an apparent ascendancy in England, ‘the church,’ nursed by the blood of martyrs, and endeared by long habit, had still a great hold on the bulk of the English nation. Success in such a movement, if it could by any be considered as deserved, was scarcely by common sense to be expected. As if in natural punishment for a great error, nothing had gone well with the Scots ever since. An Assembly of Divines, including commissioners from Scotland, had sat at Westminster for two years, in deliberation on the proper ecclesiastical system and articles of faith to be adopted by both nations; and its decision was substantially for the Presbyterian forms and Calvinistic doctrines so much beloved in the north. But the English House of Commons could never be induced to take any active measures for imposing this decision on the nation, doubtless feeling that it was not generally acceptable. Pure presbytery never came into true operation except in London and in Lancashire. To the Scottish leaders, who had been accustomed to impose and enforce doctrine upon all recusants in their own country, this slackness seemed inexcusable, and occasioned the deepest disappointment. They also found that their army, after the first useful service at Marston Moor, was

comparatively neglected in England, and its pay allowed to fall into arrear. Themselves courted at first as allies, they had latterly been little inquired for or consulted; their advices and their remonstrances were alike overlooked. Sternest punishment of all, while their best troops were kept idle and half mendicant in England, Montrose avenged the king's sense of injury by sweeping their defenceless provinces with the besom of destruction, and putting thousands of hastily armed citizens to the sword. It was a most melancholy result of a movement entered on, as they in all sincerity protested, purely for the glory of God.

There still remained an event most unfortunate for Scotland before the war could be concluded. The arrears of pay due by the English parliament to the Scottish army had been allowed to run up to £1,400,000. The House of Commons tried to abate the sum to a comparative trifle, but ultimately (August 1646) agreed to pay £400,000, the one half immediately, after which the Scots were to retire into their own country. But, meanwhile, the Scots were awkwardly placed by the king being in their camp. If he had agreed to the propositions of the parliament, all would have been well, for then he would have proceeded in peace and honour to London. As he could not be induced to assent to these propositions, a question arose between the two nations as to the disposal of his person. The English parliament affected the sole right to deal with it. The Scottish Estates could not agree to this; but as they were not disposed to take up the king's cause against the English—and, indeed, such a step would have been ruinous—it was not easy for them on any terms or understanding to retain him within their grasp. After much troublesome negotiation, they were induced by some of the leading English Presbyterians to give up the king, in order to facilitate the disbanding of the English army, which latterly was manifesting a refractory spirit. There was scarcely a relation, if any, between the receiving of the arrears of pay and the surrender of the king; nevertheless, as the events took place about the same time, they have become connected in popular conception, to the discredit of the Scottish name. It will be ages before the English commonalty ceases to believe that the Scots sold their king, and for slaughter too, although such a tragical end for his life was certainly not dreamed of by anybody till long after.

The king being now a captive, and his friends reduced to silence, the English parliament set themselves to two objects—a re-establishment of the



royal authority on suitable terms, and the disbanding of the army. The king's obstinacy defeated the one object; the growth of sectarianism in the army balked the other. Charles hoped to thrive by the disunion of these two bodies, and coquetted with both. The army seized his person; but he afterwards escaped, and fell under the care of a kind of neutral power, in the person of the governor of Carisbrook Castle, in the Isle of Wight. The Scots, hating sectarianism, still maintained a modified loyalty. Under the influence of the Duke of Hamilton and a few other nobles, who had come to an understanding or *engagement* with the king regarding a possible restoration of his authority, the Estates in spring 1648 raised an army in his behalf, thus renewing the Civil War; and with this movement the remaining English loyalists concurred. The more zealous Presbyterians of Scotland denounced it on that account, notwithstanding many plausible pretences set forth in its favour. The English Presbyterians gave it their good-will, but could do little in its behalf. In July, a too hastily prepared army of 15,000 Scots entered England under the command of Hamilton, and proceeded as far as Preston, while a small army of English loyalists marched near by, but, for the sake of appearances, carefully abstained from a junction. A portion of the English army, under Oliver Cromwell, attacked the small body of loyalists and destroyed it; then met and overthrew the Scottish army; soon after which, the Duke of Hamilton was taken prisoner. Cromwell came to Edinburgh, and fraternised with the more zealous Presbyterian leaders, who had by that time resumed an ascendancy. Then, returning as a victor to London, with no force to oppose him in any part of the island, he joined with a number of other men of his own stamp, in putting an end to the English monarchy. In January 1649, the king was tried for the alleged crime of raising war upon his subjects, and publicly beheaded.

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Till the occurrence of the tumult this month, there was, according to the confession of Clarendon, so little curiosity felt in England, either in the court or country, 'to know anything of Scotland, or what was done there, that, when the whole nation was solicitous to know what passed weekly in Germany, Poland, and other parts of Europe, no man ever inquired what was doing in

1637. JULY.

Scotland, nor had that kingdom a place or mention in one page of any gazette.’

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This day began a fall of rain in Moray-land, of ten days’ continuance, and attended by effects which remind us of the celebrated flood of 1829; ‘waters and burns flowing up over bank and brae; corn-mills and mill-houses washen down; houses, kilns, cots, faulds wherein beasts

OCT. 3.

1637.

were keipit, all destroyed. The corns, weel stacked, began to moch<sup>75</sup> and rot till they were casten over again. Lamentable to see, and whereof the like was never seen before.... There were four ships lying at anchor in the harbour of Aberdeen; in one of which ships Major Ker and Captain Lumsden had a number of soldiers. Through a great spate<sup>76</sup> of the water of Dee, occasioned by this extraordinary rain, thir haill four ships brake loose, for neither tow nor anchor could hold them, and were driven out at the water mouth, upon the night, and by a south-east wind were driven to the north shore, where thir ships were miserably bladded [beaten] with leaks by striking upon the sands. The soldiers, sleeping carelessly in the bottom of the ship upon heather, were all in a swim, to their great amazement and dread. They got up, with horrible crying and shouting; some escaped, other some pitifully perished. About the number of fourscore and twelve soldiers were wanting, drowned or got away.’—*Slightly altered from Spalding.*

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A quantity of gold had been brought into the kingdom by ‘the adventurers of Guinee.’ It was ordered to be formed into coin by Nicolas Briot and John Falconer, masters of the cunye-house, according to the arrangements ordered by the Privy Council in April 1625.—*P. C. R.* Some gold subsequently brought from the same country to England by the African Company, ‘administered the first occasion,’ as Clarendon tells us, ‘for the coinage of those pieces which, from thence, had the denomination of *guineas*.’<sup>77</sup>

OCT. 19.

The digging of gold in Guinea is connected in a melancholy way with Scotland, for fifteen hundred of the Scottish prisoners taken at Worcester in September 1651, were granted to the Guinea merchants, ‘to be transported to Guinea to work in the mines there.’<sup>78</sup>

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In the night arose ‘ane horrible high wind,’ which blew down the rafters of the choir of Elgin Cathedral, left without the slates eighty years before. This fact reminds us how much of the destruction of our ancient ecclesiastical buildings was owing, not to actual or immediate damage at the Reformation, but to neglect afterwards.

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DEC. 4.

This day, in consequence of the late inundation and storms, a bar made its appearance athwart the mouth of the river Dee, ‘mixed with marble, clay, and stones.’ The contemplation of so fatal a stoppage to their harbour threw the citizens of Aberdeen into a state of the greatest anxiety. ‘They fell to with fasting, praying, preaching, mourning, and weeping all day and night. Then they went out with spades, shools, mattocks, and mells, in great numbers, men and women, young and old, at low-water, to cast down this dreadful bar; but all for nought, for as fast as they cast down at a low-water, it gathered again as fast at a full sea.’ The people had resigned themselves to despair, when ‘the Lord, of his great mercy, without help of mortal man, removed and swept clean away this fearful bar, and made the water mouth to keep its own course, as it was before.’—*Slightly altered from Spalding.*

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DEC. 26.

1637.

On the hill of Echt, in Aberdeenshire, famous for its ancient fortification called the Barmkyn of Echt, there

1637-8.

was heard, almost every night, all this winter, a prodigious beating of drums, supposed to foretell the bloody civil wars which soon after ensued. The parade and retiring of guards, their tattoos, their reveilles, and marches, were all heard distinctly by multitudes of people. ‘Ear-witnesses, soldiers of credit, have told me,’ says Gordon of Rothiemay, ‘that when the parade was beating, they could discern when the drummer walked towards them, or when he turned about, as the fashion is for drummers, to walk to and again, upon the head or front of a company drawn up. At such times, also, they could distinguish the marches of several nations; and the first marches that were heard there were the Scottish March; afterwards, the Irish March was heard; then the English March. But before these noises ceased, those who had been trained up much of their lives abroad in the German wars, affirmed that they could perfectly, by their hearing, discern the marches upon the drum of several foreign nations of Europe—such as the French, Dutch, Danish, &c. These drums were so constantly heard, that all the country people next adjacent were therewith accustomed; and sometimes these drummers were heard off that hill, in places two or three miles distant. Some people in the night, travelling near by the Loch of Skene, within three mile of that hill, were frighted with the loud noise of drums, struck hard by them, which did convoy them along the way, but saw nothing; as I had it often from such as heard these noises, from the Laird of Skene and his lady, from the Laird of Echt, and my own wife then living in Skene, almost immediately after the people thus terrified had come and told it. Some gentlemen of known integrity and truth affirmed that, near these places, they heard as perfect shot of cannon go off as ever they heard at the battle of Nordlingen, where themselves some years before had been present.’<sup>79</sup>

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By order of the king, in consideration of the rebellious proceedings in Edinburgh, ‘the session sat down in Stirling. Ye may guess if the town of Edinburgh was angry or not.’—*Chron. Perth*.

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1638. FEB. 8 or 9.

This day commenced at Edinburgh the signing of that NATIONAL COVENANT which for some years exercised so strong an influence over the affairs of Scotland. Public feeling, as far as the great bulk of the people was concerned, had been wrought up to a paroxysm of anxiety and enthusiasm regarding the preservation of the Presbyterian model. An eternal interest was supposed to depend on their not allowing their religion to be assimilated to that of England, and, weighed against this, everything else looked mean and of no account. After the document had been subscribed by the congregation at the Greyfriars' Church, before whom it was first presented, it went through the city, every one contesting who might be first, many blindly following the example of others—not only men, but 'women, young people, and servants did swear and hold up their hands to the Covenant.' Many copies, written out on parchment, and signed by the leading nobles, were carried into the country, and laid before the people of the several towns and districts. 'The greater that the number of subscribers grew,' says the parson of Rothiemay, 'the more imperious they were in exacting subscriptions from others who refused to subscribe; so that by degrees they proceeded to contumelies, and exposing of many to injuries and reproaches, and some were threatened and beaten who durst refuse, especially in greatest cities.... Gentlemen and noblemen carried copies of it about in their portmantles and pockets, requiring subscriptions thereto, and using their utmost endeavours with their friends in private for to subscribe.... All had power to take the oath, and were licensed and welcome to come in.... Such was the zeal of many subscribers, that, for a while, many subscribed with tears on their cheeks; and it is constantly reported that some did draw their own blood, and used it in place of ink to underwrite their names. Such ministers as spoke for it were heard so passionately and with such frequency, that churches could not contain their hearers in cities; some of the devouter sex (as if they had kept vigils) keeping their seats from Friday to Sunday, to get the communion given them sitting; some sitting alway let before such sermons in the churches, for fear of losing a room or place of hearing; or at the least some of their handmaids sitting constantly there all night till their mistresses came to take up their places and to relieve them; so that several (as I heard from very sober and credible men) under that religious confinement, were—These

FEB. 28.

1633.

things will scarce be believed, but I relate them upon the credit of such as knew this to be truth.'

The Rev. John Livingstone says: 'I was present at Lanark, and at several other parishes, when, on a Sabbath, after the forenoon sermon, the Covenant was read and sworn, and may truly say that in all my lifetime, except one day at the Kirk of Shotts, I never saw such motions from the Spirit of God; all the people generally and most willingly concurring; where I have seen more than a thousand persons all at once lifting up their hands, and the tears falling down from their eyes.'

Maitland, describing the Edinburgh copy of the Covenant, says: 'It is written on a parchment of the length of four feet, and the depth of three feet eight inches, and is so crowded with names on both sides, that there is not the smallest space left for more. It appears that, when there was little room left to sign on, the subscriptions were shortened by only inserting the initials of the Covenanters' names; which the margin and other parts are so full of, and the subscriptions so close, that it were a difficult task to number them. However, by a cursory view, I take them to be about five thousand in number.—*Hist. Ed.*

The household book of the Dowager-countess of Mar<sup>80</sup> commencing at this time, and running on for several years, affords a few rays of scattered light regarding the domestic life of the aristocracy of the period.<sup>81</sup> They are not susceptible of being worked up to any general effect, and the reader must therefore take them as they occur.

APR.

'April 21, to ane little boy for two buiks of the Covenant, 12s.<sup>82</sup> May 4, for pressing ane red scarlet riding-coat for John the Bairn [a grandson of the countess], 12s. May 16, to ane blind singer who sang the time of dinner, 12s. May 17, ane quire paper, 5s. May 18, to ane of the nourices who dwells at the Muir, who came to thig [beg], 29s. May 25, for ane belt to Lord James [an elder grandson of the countess], 18s.; for ane powder-horn to him, 4s. 6d.; for raisins to Lord James and Charles, 10s. June, to William Shearer his wife for ane pair hose to Lord James, £3. Paid for contribution to the Confederat Lords, £4. To ane old blind man as my lady came from prayers, 4s. Edinburgh, July 18, for a periwig to Lord James, £8, 2s. July 19, ane pound and ane half pound of candles, 6s. July 21, ane pound raisins to keep the fasting Sunday, 6s. 8d.

1638.

July 27, given to the kirk brodd [board], as my lady went to sermon in the High Kirk, 6s. Stirling, August 17, to my lady to give to the French lacquey that served my Lord Erskine when he went back to France, 4s. August 25, sent to my lady, to play with the Lady Glenurchy after supper, 4s. September 1, for making a chest [coffin] to Katherine Ramsay, who deceased the night before, 20s.; for two half pounds tobacco ane eighteen pipes to spend at her lykewake, 21s.; to the bellman that went through the town to warn to her burial, 12s.; to the makers of the graff, 12s. 4d. September 8, to twa Highland singing-women, at my lady's command, 6s. September 23, to ane lame man callit Ross, who plays the plaisant, 3s. Paid for ane golf-club to John the Bairn, 5s. 9th November, to Andrew Erskine, to give to the poor at my lady's onlouping, 12s. December, paid to John, that he gave to ane woman who brought ane dwarf by my lady, 12s. [Edinburgh], January 23, 1639, to my lady as she went to Lord Belhaven his burial, and to visit my Lady Hume, £5, 8s. February, to Charles [son of the countess], the night he was married, to give the poor, £5, 8s. 3d. February 23, paid for ane pound of raisins to my lady again' the fasting Sunday, 8s. June 11, to Thom Eld, sent to Alloa for horses to take my lady's children ane servants to the army then lying at the Border, 2s. Paid to the Lady Glenurchy for aqua-vitæ that she bought to my lady, 6s. Paid for carrying down the silver wark to the Council house, to be weighed ane delivered to the town-treasurer of Edinburgh, 10s.<sup>83</sup> August 23, paid for twa pair sweet gloves to Lord James and Mr Will. Erskine, £3. September 9, to Lord James to play at the totum with John Hamilton, 1s. 4d. To my lady as she went to dine with my Lord Haddington [for vails to the servants?], ane dollar and four shillings. Paid in contribution to Edward the fool, 12s. Paid to Gilbert Somerville, for making ane suit clothes to Lord James of red lined with satin, £7, 10s. November 29, paid to the Lady Glenurchy her man, for ane little barrel of aqua-vitæ, £3. May 27, 1640, to ane man who brought the parroquet her cage, 4s. June 15, to ane poor woman as my lady sat at the fishing, 6d. August, for tobacco to my lady's use, 1s. March 4, 1641, to Blind Wat the piper that day, as my lady went to the Exercise, 4s. March 6, given to John Erskine to buy a cock to fight on Fasten's Even [Shrovetide], 6s. June 8, to ane masterful beggar who did knock at the gate, my lady being at table, 2s. [It was then customary to lock the outer door during dinner.] November 15, [the countess having visited Edinburgh to see the king], given for two torches to lighten in my lady to court, to take her leave

of the king, 24s. February 21, 1642, sent to Sir Charles Erskine to buy escorse de sidrone and marmolat, £5, 6s. 8d. March 21, to ane woman clairshocher [harper] who usit the house in my lord his time, 12s. August 10, to John Erskine to buy a bladder for trying a mathematical conclusion. December 7, paid for three white night-mutches [caps] to my Lord of Buchan, £3, 12s. January 13, 1643, for ane Prognostication [an almanac], 8d. February 17, for dressing ane red four-tailed coat of Mr William's, 1s. 8d. February 13, to my lady in her own chamber, when the Valentines were a-drawing, £10, 12s. 4d. April 13, to Mr William Erskine, to go to the dwarf's marriage, 7s. 6d.'

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While the generality of the Lowland people of Scotland were wrought up to the highest pitch of enthusiasm in favour of Presbyterianism, the inhabitants of Aberdeen and the surrounding district remained faithful to a moderate Episcopacy, and therefore disinclined to accept the Covenant. It was a crisis to make men impatient of dissent in a milder age than the seventeenth century. As men then felt about religion—perfectly assured that they themselves were right, and that dissent was perdition—this Aberdonian recusancy could look for no gentle treatment; and it met with none. The first assault, however, was not of a very deadly character.

JULY 20.

It was under the leadership of the young Earl of Montrose—afterwards so energetic on the other side—that a Covenanting deputation came to Aberdeen with the bond into which most of the nation had entered. 'The provost and bailies courteously salute them at their lodging, offers them wine and comfits, according to their laudable custom, for their welcome; but this their courteous offer was disdainfully refused, saying they would drink none with them while [till] first the Covenant was subscribed; whereat the provost and bailies were somewhat offended. Always they took their leave, [and] suddenly cause deal the wine in the Bede-house amang the puir men, whilk they so disdainfully had refused; whereof the like was never done to Aberdeen in no man's memory.'—*Spal.*

1638.



This discourteous party included, besides the Earl of Montrose, Lord Arbuthnot, the Lairds of Morphy and Dun, and three ministers, Cant, Dickson, and Henderson. ‘Because they could not get entres to our church to preach, they went to the Earl of Marischal his close in the Castle Gate, and preached three sermons on Sunday, where they had such enticing sermons for the common people, that after ages will not believe it. I was both an eye and ear witness to them. At that time, they were [sae] cried up and doated upon, that the Laird of Leys (otherwise ane wise man) did carry Mr Andrew Cant his books. Yet at that time there was but very few that subscribed, only fourteen men, [including] Provost Lesly, ane ringleader, but afterwards he did repent it ... Alexander Jaffray, Alexander Burnet ... and some others, but not of great quality; for at this time, good reader, thou shalt understand that there was worthy preachers in Aberdeen, as Britain could afford.... Thir men had many disputes with the Covenanters, for they wrote against other plies, replies, duplies, thriplies, and quadruples; but in all these disputes the Covenanters came as short to the ministers of Aberdeen as are grammarian to a divine.’—*Ab. Re.*

The Aberdeen doctors, as they were called, formed a remarkable body of men, learned much above Scotch divines in general, of that or any subsequent age. Dr John Forbes of Corse, professor of divinity; Dr William Leslie, principal and professor of divinity in King’s College; Dr Robert Barron, principal and professor of divinity in Marischal College; and Drs Scroggie, Sibbald, and Ross, ministers; were all prepared to defend the moderate Episcopacy against which the Covenanters were waging war; and there exists an unchallenged and uniform report of their having had the superiority in the argument, though all incompetent to stem the torrent of enthusiasm which had set in against them. It was under the dignified patronage and care of the late Bishop Patrick Forbes, that these men had grown up in Aberdeen, ‘a society more learned and accomplished than Scotland had hitherto known.’<sup>84</sup> Connected with them in locality were other men of talents and accomplishment—Arthur Johnston, John Leech, and David Wedderburn, all writers of elegant Latin poetry—thus adding to the reputation which Aberdeen enjoyed as a seat of learning, that of a favourite seat of the Muses. For some years this system of things had flourished at the northern city, amidst handsome collegiate buildings, tasteful churches, and scenes of elegant domestic life. One cannot reflect without a pang on the wreck it was

destined to sustain under the rude shocks imparted by a religious enthusiasm which regarded nothing but its own dogmas, and for these sacrificed everything. The university sustained a visitation from the Presbyterian Assembly of 1640, and was thenceforth much changed. ‘The Assembly’s errand,’ says Gordon of Rothiemay, ‘was thoroughly done; these eminent divines of Aberdeen either dead, deposed, or banished; in whom fell more learning than was left in all Scotland beside at that time. Nor has that city, nor any city in Scotland, ever since seen so many learned divines and scholars at one time together as were immediately before this in Aberdeen. From that time forwards, learning began to be discountenanced; and such as were knowing in antiquity and in the writings of the fathers, were had in suspicion as men who smelled of popery; and he was most esteemed of, who affected novelism and singularity most; and the very form of preaching, as weel as the materials, was changed for the most part. Learning was nicknamed human learning, and some ministers so far cried it down in their pulpits, as they were heard to say: “Down doctrine, and up Christ!”’

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As a characteristic incident of the period—an outlaw of the Macgregor clan, named John Dhu Ger, came this day with his associates to the lands of Stuart, Laird of Corse, in the upper vales of Aberdeenshire, and began to despoil them, pretending to be the king’s man, and that

AUG. 8.

1638.

what he did was only justice, as against a rebellious Covenanter. ‘Wherever he came in Strylay and other places, he would take their horse, kine, and oxen, and cause the owners compound and pay for their own geir.... He took out of the Laird of Corse’s bounds a brave gentleman-tenant dwelling there, and carried him with him, and sent word to the laird, desiring him to send him a thousand pounds, whilk the lords of Council had given his name [the Stuarts of Athole] for taking of Gilderoy, or then he would send this man’s head to him. The Laird of Corse rode shortly to Strathbogie, and told the marquis, who quickly wrote to Macgregor, to send back Mr George Forbes again, or then he would come himself for him. But he was obeyed, and

[Forbes] came to Strathbogie, haill and sound upon the 15th of August, but [without] payment of any ransom.’—*Altered from Spalding.*

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‘This year was ane very dry year, for about the end of August all the corns was within the yards.’—*Ab. Re.*

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Amidst the excitement of the time, a young woman named Mitchelson, who had been subject to fits, attracted attention in Edinburgh by becoming a sort of prophetess or Pythoness of the Covenant. ‘She was acquainted with the Scripture, and much taken with the Covenant, and in her fits spoke much to its advantage, and much ill to its opposers, that would, or at least that she wished to befall them. Great numbers of all ranks of people were her daily hearers; and many of the devouter sex prayed and wept, with joy and wonder, to hear her speak. When her fits came upon her, she was ordinarily thrown upon a down bed, and there prostrate, with her face downwards, spoke such words as were for a while carefully taken from her mouth by such as were skilful in brachygraphy. She had intermissions of her discourses for days and weeks; and before she began to speak, it was made known through Edinburgh. Mr Harry Rollock [one of the clergymen of Edinburgh], who often came to see her, said that he thought it was not good manners to speak while his Master was speaking, and that he acknowledged his Master’s voice in her. Some misconstered her to be suborned by the Covenanters, and at least that she had nothing that savoured of a rapture, but only of memory, and that still she knew what she spoke, and, being interrupted in her discourse, answered pertinently to the purpose. Her language signified little: she spoke of Christ, and called him Covenanting Jesus; that the Covenant was approved from heaven; that the king’s covenant was Satan’s invention; that the Covenant should prosper, but the adherents to the king’s covenant should be confounded; and much other stuff of this nature, which savoured at best of senseless simplicity. The Earl of Airth, upon a time, getting a paper of her

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prophecies, which was inscribed, “that, such a day and such a year, Mrs Mitchelson awoke and spoke gloriously,” in place of the word “gloriously,” which he blotted out, writt over it the word “gowkedly” or foolishly, [and] was so much distested for a while among the superstitious admirers of this maid, that he had like to have run the fate of one of the bishops, by a charge with stones upon the street. But this blazing star quickly vanished....’<sup>85</sup>

There seems no reason to doubt that Mrs Mitchelson was a sincere young woman, but in an unsound nervous condition. Ecstatics like her are common in the Romish Church, in which case there is much tendency to visions of St Catherine, instead of ravings about the Covenant. From analogous cases of persons under hallucinations, the giving pertinent answers to ordinary questions, which Gordon adduces as a ground of doubt, does not necessarily infer that Mrs Mitchelson was a cunning woman playing a part.

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The Earl of Montrose went about in the north country with a large armed band, forcing the Covenant upon those who were disinclined to sign it, and raising funds for the use of the Covenanting party. As it never once occurred to the ‘Tables’ that anybody could have a conscientious scruple on the subject, much less that any scruple called for respect and forbearance, force seemed quite fair as a means of attaining to uniformity. The city of Aberdeen, looking with apprehension to this kind of mission, ‘began to choose out captains, ensigns, sergeants, and other officers for drilling their men in the Links, and learning them to handle their arms;’ also ‘to big up their back yetts, close their ports, have their catbands in readiness, their cannons clear, and had ane strict watch day and night keepit.’—*Spal.* All this to battle off an Idea. Still they feared it might not be sufficient. So, looking to the victual they had against a siege, they began to cast ditches, and towards the south raised up timber sconces, clad with deals. They had eleven pieces of ordnance, each provided with a sconce, planted commodiously on the streets. In short, it was a town pretty well fortified, as such things were in those days, and no doubt the worthy citizens were in good hopes of

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resisting the storm of Christian reformation which was mustering against them. Alas!

It soon became evident to the poor Aberdonians that, however well their doctors might argue, the Covenant was not to be resisted. Dismayed at the accounts they got of large forces mustering against them, they abandoned all design of defence. All that the more notable friends of the king and church could do was to fly.

1639.

Spalding's account of the entry of the Covenanting militia under Montrose and Leslie into Aberdeen is highly picturesque.

'... they came in order of battle, weel armed both on horse and foot, ilk horseman having five shot at the least, ... ane carabine on his hand, two pistols by his sides, and two at his saddle-tore. The pikemen in their ranks [with] pike and sword; the musketeers in their ranks with musket, musket-staff, bandelier, sword, powder, ball, and match. Ilk company both on horse and foot had their captains, lieutenants, ensigns, sergeants, and other officers and commanders, all for the most part in buff coats and goodly order. They had five colours or ensigns.... They had trumpeters to ilk company of horsemen, and drummers to ilk company of footmen. They had their meat, drink, and other provision, bag and baggage, carried with them, done all by advice of his Excellency Field-marshal Leslie.... Few of this army wanted ane blue ribbon hung about his craig [neck] down under his left arm, whilk they called the *Covenanter's Ribbon*.... [Having passed to the Links], muster being made, all men was commanded to go to breakfast, either in the Links or in the town. The general himself, the nobles, captains, commanders, for the most part, and soldiers, sat down, and of their awn provision, upon ane serviet on their knee, took their breakfast.' Here was a sight for a poor town of Episcopalian prepossessions—eleven thousand men come to convert them to proper views! This was on Saturday: on the Tuesday, all persons of any note, and all persons in any authority in the city, were glad to come before the marching committee and subscribe and swear the Covenant, 'albeit they had sworn the king's covenant before.' A week later, a solemn fast was kept; and after sermon by one of the marching clergy, the Covenant was read out, and he 'causit the haill town's people convened, who had not yet subscribed, to

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1839.

stand up before him in the kirk, both men and women, and the men subscribed this Covenant. Thereafter, both men and women was urged to swear by their uplifted hands to God, that they did subscribe and swear this Covenant *willingly, freely, and from their hearts*, and not from any fear or dread that could happen. Syne the kirk sealed and dissolved. But the Lord knows that thir town's people were brought under perjury for plain fear, and not from a willing mind, by tyranny and oppression of thir Covenanters, who compelled them to swear and subscribe, suppose they knew it was against their hearts.'—*Spal*.

As a pleasant finale, to compensate in some degree for the trouble they had given, the citizens were laid under a contribution of ten thousand merks, besides being forced to promise their taking share in all expenses that might thereafter be necessary for promotion of the good cause.

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Aberdeen had not kept steady in the Covenanting faith—since so solemnly and sincerely signing the bond in April, it had maintained a loyal correspondence with the king. The Covenanters, now on the eve of their expedition to Dunse Law, had to take order with it; and as the movement at such a moment was inconvenient, they were in no good-humour. What happened, as described in the simple notes of the town-clerk Spalding, gives such a picture of civil war as it may be salutary to keep in mind.

MAY 25.

'They were estimate to 4000 men, foot and horse, by [besides] baggage-horse 300, having and carrying their provision, with thirteen field-pieces. They enterit the town at the over Kirkgate in order of battle, with sounding of trumpets, touting of drams, and displayed banners; went down through the Braid-gate, through the Castle-gate, and to the Queen's Links march they.... Now Aberdeen began to groan and make sore lamentation at the incoming of this huge army, whom they were unable to sustein, or get meat to buy.

'Upon the 26th, being Sunday, the Earl of Montrose, with the rest of the nobles, heard devotion; but the renegade soldiers, in time of both preachings, is abusing

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and plundering New Aberdeen pitifully, without regard to God or man. And in the meantime, garse and corn eaten and destroyed about both Aberdeens, without fear of the maledictions of the poor labourers of the ground.... The bishop's servants saved his books, and other insight and plenishing, and hid them in neighbours' houses of the town, from the violence of the soldiers, who brake down and demolishit all they could get within the bishop's house, without making any great benefit to themselves.... Richt sae, the corns were eaten and destroyed by the horse of this great army, both night and day, during their abode. The salmon-fishers, both of Dee and Don, masterfully oppressed, and their salmon taken from them.... The country round about was pitifully plundered, meal girnels broken up, eaten, and consumed; no fowl, cock or hen, left unkilld. The haill house-dogs, messans, and whelps within Aberdeen, fellit and slain upon the gate, so that neither hound nor messan nor other dog was left that they could see. The reason was, when the first army came here, ilk captain, commander, servant, and soldier had ane blue ribbon about his craig [neck]; in despite and derision whereof, when they removed frae Aberdeen, some women, as was alleged, knit blue ribbons about their messans' craigs, whereat their soldiers took offence, and killit all the dogs for this cause.

‘They took frae Aberdeen ten thousand merks to save it from plundering, and took twelve pieces of ordnance also from them.... The town, seeing themselves sore oppressed by the feeding and sustaining of thir armies without payment, besides other slaveries, began heavily to regret their miseries to the general and rest of the nobles and commanders, saying they had subscribed the Covenant.... There was no compassion had to their complaints.... So the country anti-Covenanters was pitifully plagued and plundered in their victuals, fleshes, fowls, and other commodities, whilk bred great scarcity in this land....’

This was but a beginning of the troubles and damages of Aberdeen from civil war. In the very next month, in consequence of the town being taken possession of by a royalist band under the Earl of Aboyne, a Covenanting army came against it, and forcing its way in, subjected it to further fining and spoiling. Altogether, the Aberdonians considered themselves as having been injured to the extent of £12,000 sterling in the first half of this year, besides thirty-two of the citizens being fined specially in 42,000 merks. It

would be tedious to enumerate the losses of the city during the few subsequent years.

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Gordon of Rothiemay notes a *quasi* prodigy as happening at Dunse Law while the Scottish army lay there. It has a whimsical character, as connecting the Covenanting war with a geological fact. The matter consisted of ‘the falling of a part of a bank upon the steep side of a hill near by to the Scottish camp, which of its own accord had shuffled downward, and by its fall discovered innumerable stones, round, for the most part, in shape, and perfectly spherical, some of them oval-shapen. They were of a dark gray colour, some of them yellowish, and for quantity they looked like ball of all sizes, from a pistol to field-pieces, such as sakers or robenets, or battering-pieces upwards. Smooth they were, and polished without, but lighter than lead by many degrees, so that they were only for show, but not for use. Many of them were carried about in men’s pockets, to be seen for the rarity. Nor wanted there a few who interpreted this stone magazine at Dunse Hill as a miracle, as if God had sent this by ane hid providence for the use of the Covenanters; for at this time all things were interpreted for the advantage of the Covenant. Others looked upon these pebble-stones as prodigious, and the wiser sort took no notice of them at all. I suppose that at this present the quarry is extant, where they are yet to be seen, no more a miracle; but whether the event has determined them to be a prodigy or not, I shall not take it upon me to define *pro* or *con*.’

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A modern writer may feel little difficulty in defining this magazine of pebbles as merely part of an ancient alluvial terrace, such as are found in most mountain valleys in Scotland, being, in geological theory, the relics of gravel-beds deposited in these situations by the streams, when, from a lower relative position of the land, the sea partially occupied these glens in the form of estuaries. On the banks of the Whitadder, close to Dunse Law, we still see such banks of pebbles, the water-rolled spoils of the Lammermuirs, and chiefly of the transition or Silurian rocks. It gives a lively impression of the excited state of men’s minds in the time and place, to find them



accepting, or disposed to accept, so simple a natural phenomenon as something significant of the attention of Providence to the strife which they were unhappily waging.

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At this time we hear of some strangers from England and Ireland who had crept in and drawn the people to certain religious practices, accordant with the general strain of the period, but not exactly with the specific regulations prescribed by the Presbyterian Kirk. At their own hands, without the allowance of minister or elders, the people had begun to convene themselves confusedly about bedtime in private houses, where, for the greater part of the night, they would expound Scripture, pray, and sing psalms, besides ‘discussing questions of divinity, whereof some sae curious that they do not understand, and some so ridiculous that they cannot be edified by them.’ The consequence was, that they began to ‘lichtly and set at naught the public worship of God.’ Seeing in this a movement towards Brownism, the kirk-session of Stirling called on the presbytery to take the matter into consideration, and meanwhile discharged the congregation from giving any favour to such practices.<sup>86</sup>

JULY.

Owing to the confusions, the Court of Session did not sit down as usual for the winter session to-day; ‘but was vacant the haill winter session, to the great grief of the true creditor, and the pleasure of the debtor unwilling to pay his debt.’—*Spal.*

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1639. Nov. 1.

A base coin called Turners had been struck by the Earl of Stirling under royal licence, and were to him a source of considerable gain, at the expense of the rest of the community. On the day marginally noted, ‘King Charles’s turners stricken by the Earl of Stirling, was, by proclamation at the Cross of Edinburgh, cryit down frae twa pennies to ane penny; King James’s turners to pass for

Nov. 2.

two pennies, because they were no less worth; and the caird turners<sup>87</sup> simpliciter discharged as false cunyie. But this proclamation was shortly recalled, because there was no other money passing to make change.’ *April 1640*.—‘You see before some order taken with the passing of turners, whereof some was appointit to pass for ane penny. Now they would give nothing, penny nor half-penny, for King Charles’s turners; but King James’s turners only should pass. Whereby all change and trade was taken away through want of current money, because thir slight turners was the only money almost passing through all Scotland.’—*Spal*.

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John Dhu Ger, the Highland robber, came with twenty-four men to William Stewart’s house on Speyside, set out watches, and took up house there. From this post he sent armed emissaries here and there to raise money by practising on the terrors of the people. The people gave fair words, but privately were active in collecting men for an effectual resistance. ‘And John Dhu Ger, being informed of their gathering by his watches, shortly takes both the ferry-boats, and carries over his men to the Stannars, whilk is in the midst of the water of Spey, and keepit the ferry-boats close beside himself, so that there was no other boat near enough to follow them.’ The country people had then to commence firing at the robbers from the bank, exposing themselves of course to be fired at in return. At length, by a shot from the gun of one Alexander Anderson, John Dhu Ger fell dead, and his followers dispersed.—*Spal*.

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Nov.

The Viscountess Melgum, widow of the young nobleman who had been burnt in Frendraught Castle, lived for several years in Aboyne Castle on the Dee, a gentle, charitable, and devout life, being a strict Catholic. A certain Father Blackhall, who was her domestic chaplain or *frere* from July 1638 till her death in March 1642, has left a copious gossiping narrative of his career as a priest in Scotland, including much that is curious regarding the private life

1639.

of the lady, as well as the state of the country in that agitated time. He tells us that he had an apartment to himself, where four dishes of meat, as well as wine and ale, were sent to him at every meal, till, remonstrating about the expensiveness of this practice to the lady, he was allowed by her to eat at her own table. It was customary, he says, for a domestic priest in those days to confine himself very much to his chamber; and if he but opened his window, ‘the people would run to get a sight of him as a monstrous thing.’ But he, going freely about, soon ceased to be an object of curiosity.

By permission of his lady—whom, by the by, he always calls by her inferior title of Lady Aboyne—he made professional tours through the country, to confess and communicate the Catholics scattered about, usually staying a night in each house, or convening the poorer sort in a tavern. He does not speak of any dangers or difficulties encountered in performing this duty. He tells us, however, of some considerable troubles he had in defending the widow lady’s castle from the armed bands of Highlanders and others who were continually going about the country in consequence of the Covenanting wars. If he is to be believed, he was as much his lady’s captain as her priest.

On one occasion, a party of the Clan Cameron, forty or fifty in number, vassals of the Huntly family, came into the court of Aboyne Castle, asking to see my lady, with the hope of obtaining money from her. Blackhall, finding there was no other man in the house besides a porter and himself, amused them with fair speeches till he obtained assistance, and then closing the gates against them, sent them out some food, as all that Lady Aboyne was willing to bestow upon them. They went away grumbling, and presently quartered themselves upon one of her ladyship’s tenants, named Finlay, who kept a tavern, compelling him to kill poultry and mutton for their supper; and next day, they plundered the house, and set out for another, the Mill of Bountie, which they seemed likely to treat in the same way. Blackhall, hearing of their doings, mustered an armed party of sixteen, and set out to surprise the depredators. The dispositions he made shewed a good deal of sagacity, and were attended with the desired effect.

1639.

Marching in single file, after the Highland fashion, and in perfect silence, they had got near the house before the Cameron sentinel observed them. ‘Having discovered us, he did run to the house, and we after him, so near

that he had not leisure to shut the gate of the court behind him. All the vantage that he had before us was to win the house, and shut that door behind him, which chanced well for both parties; for if we could have entered the house with him, we should have killed every one another, for we were in great fury to be revenged of them, and they could do no less than defend themselves, selling their lives at the dearest rate they could, as men in despair should do. They would have had a great advantage upon us, for they, being in a dark house, would have seen us well, and we, coming in from the snow, would have been blind for some length of time, in the which they might have done us great skaith, before we could have done them any, not seeing them. But God provided better for us.

‘How soon we were in the court, I said with a loud voice: “Every one to his post;” which was done in the twinkling of an eye. Then I went to the door, thinking to break it up with my foot: but it was a thick double door, and the lock very strong. Whilst I was at the door, one of them did come to bolt it, and I hearing him at it, did shoot a pistolet at him. He said afterwards that the balls did pass through the hair of his head; whether he said true or not, I know not. I did go from the door to the windows, and back again, still encouraging them, and praying them at the windows to hold their eyes still upon our enemies, and to kill such as would lay their hands to a weapon; and to these at the door to have their guns ever ready to discharge at such as would choose to come forth without my leave. And I still threatened to burn the house, and them all into it, if they would not render themselves at my discretion, which they were loath to do, until they saw the light of bits of straw, that I had kindled to throw upon the thatch of the house, although I did not intend to do it, nor burn our friends with our foes. But if Malcolm Dorward, and his wife and servants, and his son George Dorward, and John Cordonier, all whom the Highlanders had lying in bonds by them, had been out, I would have made no scruple to have burned the house and all the Highlanders within it, to give terror to others who would be so brutal as to oppress ladies who never wronged them.

1639.

‘They seeing the light of the burning straw coming in at the windows, and the keepers of the windows bidding them render themselves before they be burned, they called for quarters. I told them they should get no other quarters but my discretion, unto which, if they would submit themselves

faithfully, they would find the better quarters; if not, be it at their hazard. Thereupon I bid their captain come and speak with me all alone, with his gun under his arm, disbanded, and the stock foremost. Then I went to the door and bid the keepers thereof let out one man all alone, with his gun under his arm, and the stock foremost; but if any did press to follow him, that they should kill both him and them who pressed to follow him. He did come out as I ordained, and trembled as the leaf of a tree. I believe he thought we would kill him there. I did take his gun from him, and discharged it, and laid it down upon the earth by the side of the house. Then, after I had threatened him, and reproached their ingratitude, who durst trouble my lady or her tenants, who was and yet is the best friend that their chief, Donald Cameron, hath in all the world. “For,” said I, “he will tell you how I and another man of my lady’s went to him where he was hiding himself, with his cousin, Ewen Cameron, in my lady’s land, and brought them in croup to Aboyne, where they were kept secretly three weeks, until their enemies, the Covenanters, had left off the seeking of them; and you, unthankful beast as you are, have rendered a displeasure to my lady for her goodness toward you.” He pretended ignorance of that courtesy that she had done to his chief.

“Be not afraid, sir,” said I; “you shall find my discretion to you better than any quarters that you could have gotten by capitulation; for I shall impose nothing to you but that which you shall confess to be just.” This encouraged him, for he was exceeding feared. Then I said: “Think you it is not just that you pay this poor man, Alexander Finlay, what you spent in his house, and render what you plundered from him?” He said: “It is very just,” and paid him what he asked; to wit, four crowns in ready money; and promised to restore what other things they had plundered from him as soon as his companions, who had the things, were come out. All which he performed. “Is it not just,” said I, “that you render to Malcolm Dorward, in whose house you are here, and to his son, George Dorward, and to their friend, John Cordoner, all whatsoever you have taken from them?” “It is just,” said he; “and I shall not go out of his court in which I stand, until I have satisfied everybody.” “Is it not just,” said I, “that you promise and swear that you shall go out of the land pertaining to my lady peaceably, untroubling any of her tenants or servants any more; and that you promise and swear never to molest her tenants hereafter?” “It is just,” said he; and did swear to perform all these

things. When he had sworn by his part of Heaven to keep these articles, I made him swear by the soul of his father, that neither he, nor none whom he could hinder, should ever thereafter trouble or molest my lady, nor any of her tenants. Then I sent him into his company in the house to see if they would stand to all that he had promised and sworn. He said: "They have all sworn fidelity and obedience to me, and therefore they must stand to whatsoever I promise, and perform it." "Notwithstanding," said I, "send me them out as you did come—their guns under their arms, the stocks foremost; and send no more out but one at a time; and let no more out until he who is out return in again; and when you have all come out severally, and made the same oath which you have made, you shall have leave to take up all your guns, but upon your oaths that you shall not charge them again until you be out of the lands pertaining to my lady."

"They did all come out severally as I had commanded, and as they did come to me, I discharged their guns to the number of six or eight and forty, which made the tenants convene to us from the parties where the shots were heard; so that, before they had all come out, we were near as many as they, armed with swords, and targes, and guns. When they all had made their oaths to me, I ranked our people like two hedges, five paces distance from one another rank, and but one pace every man from another in that same rank, and turn[ed] the mouths of their guns and their faces one rank to another, so as the Highlanders might pass two and two together betwixt their ranks. They passed so from the door of the hall in which they were, to the place where their guns were lying all empty. They trembled passing, as if they had been in a fever quartan. I asked their captain, when they had taken up their guns, what way they would hold to go out of my lady's land. He said, they desired to go to Birse. I said we would convoy them to the boat of Birse, a good mile from the place where we were. I did so, because I had promised never to come in my lady's sight if I did not put them out of her lands; and therefore, to come in her house, I would see them pass over the water of Dye, out of her lands, which went to the water-side, and we stood by the water-side until the boat did take them over in three voyages; and when they were all over the water, we returned home. Alexander Davidson returned from Bountie how soon they began to march away. He told to my lady the event of our siege, who was very joyful that no blood was shed on either side."

‘Their captain and I going together to the water-side, [he] said to me: “Sir, you have been happy in surprising us, for if our watchman had advertised us before your entry into the court, but only so long as we might have taken our arms in our hands and gone to the court, we could have killed you all before you had come near us, we being covered from you, and you in an open field to us; or if we had but gone the first to the windows, we could have beaten you out of the court, or killed you all in it.” “Good friend,” said I, “you think you had to do with children; but know that I was a soldier before you could wipe your own nose, and could have ranged my men so by the side of the house wherein you was, that you should not have seen them through the windows, and in that posture kept the door so well that none of you should have come out unkilld, and so kept you within until the country had convened against you. I confess, if you had been masters of the court, and we in open fields, you might have done what you say; but we were not such fools as to lay ourselves wide open to you, being covered from us. If any house had been near us, we could have made a sconce of it to cover ourselves; if none were near us, we could retire in order, and you could not pursue us, unlaidd yourselves as open to us as we were to you, and there we should have seen who did best.”

‘In the parish of Birse, these same fellows did call away a prey of cattle, and killed some men who resisted them. Then they went to Craigyvar, and although he was esteemed the most active man in all the name of Forbes, they plundered his tenants, and carried away a prey of cattle, for all that he could do against them. And this I say, to shew that these Highlanders were active and stout fellows, and that, consequently, it was God, and not I with sixteen boys, that did put them out of the lands of that pious and devout lady, whom he did protect, and would not suffer to be oppressed. And to shew that it was he himself, and none other, he made choice of weak and unfit instruments; to wit, a poor priest, who made no profession of arms, unless charity, as at this time, or his own just defence obliged him to it, and sixteen boys, who had never been at such play before, to whom he gave on this occasion both resolution and courage, and to me better conduct than could have proceeded from my simple spirit, without his particular inspiration; to whom I render, as I should, with unfeigned submission, all the glory of that action.’

The Marquis of Huntly being at this time resident in the Canongate, two of his daughters were married there ‘with great solemnities’—Lady Anne, who was ‘ane precise puritan,’ to Lord Drummond; and Lady Henrietta, who was a Roman Catholic, to Lord Seton, son of the Earl of Wintoun. The ladies had each 40,000 merks, Scots money, as her fortune, their uncle the Earl of Argyle being cautioner for the payment, ‘for relief whereof he got the wadset of Lochaber and Badenoch.’—*Spal.* Lady Jean, the third daughter, was married in the ensuing January to the Earl of Haddington, with 30,000 merks as her ‘tocher good.’

(Nov.?)

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In Aberdeenshire, there were ‘in this ait-seed time, great frosts and snaw, no ploughs going, and little seed sawing, so vehement was this storm. No peats could be had to burn, for ane lead [horse-burden] would have cost 13s. 4d. [1s. 1-1/3d. sterling], whilk would have been cost [bought] other years for 2s. [2d. sterling]. The brewsters left aff to brew for want of fire. The reason of this scarcity was, because the Covenanters, coming here in March 1639, causit the haill servants, who should have casten the peats for serving of both Aberdeens, flee out of the country for fear; and so not only was our peats dear, but, through the unseasonableness of the spring, the victual also became very dear.’—*Spal.*

1640. MAR.

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As the young Earl Marischal was returning from Aberdeen to his castle of Dunnottar, a quarrel arose amongst some of the large party of gentlemen convoying him; and in a fight between Forbes, the young Laird of Tolquhon, and Mr George Leslie, the former was wounded in the head. Leslie was returned in shackles to Aberdeen, along with an associate named Fraser, to be punished. At the command of the earl, who acted as general and governor of the district for the Covenanters, a stock or block with an axe beside it was raised at the market-cross, with a

MAY 8.

1640.



scaffold round about, and a fire; these being meant as preparations for cutting off Leslie's hand. The hangman stood ready to do his office, when the young man was brought out, amidst the pitiful cries of the populace, who deemed the punishment a monstrous cruelty. The arm had been laid down on the block, and the axe was raised for the stroke, when, past the expectation of the beholders, the Master of Forbes suddenly approached and forbade the execution; 'whereat the people mightily rejoiced.' The general did this for satisfying of young Tolquhon, but was believed to have from the first designed to grant a pardon.—*Spal.*

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Eight hundred Covenanting troops, under the command of General Munro, marched from Aberdeen, to take rule in the estate of the Marquis of Huntly at Strathbogie, the marquis himself being now with the king in England. They carried six *putters*, or short pieces of ordnance. On approaching Strathbogie, where there was no resistance, 'they took horse, nolt, sheep, and kine, drove the bestial before them, slew and did eat at their pleasure. They brak up girnels wherever they came, to furnish themselves bread. Coming after this manner to Strathbogie, the first thing they entered to do was hewing down the pleasant planting about Strathbogie, to be huts for the soldiers to sleep in upon the night.... Then they fell to and meddled with the meal girnels, whereof there was store within that place, took in the office-houses, began shortly to bake and brew, and make ready good cheer; and when they wanted, took in beef, mutton, hen, capon, and such-like, out of Glenfiddich and Auchindown, where the country people had transported their bestial, of purpose out of the way, from the bounds of Strathbogie. Always they wanted not good cheer for a little pains.'

JULY.

Seeing the world run in this fashion, John Dhu Ger, the Highland rogue, broke loose also,<sup>88</sup> and fell to plundering throughout the land of Moray. Munro, hearing that he had collected an immense *spreath* of cattle and sheep at Auchindown, sent Rittmaster Forbes with a small party to rescue the goods out of his hands; but John stood his ground, and defended his prey manfully. The Rittmaster retired with his party, and told Munro in excuse that he did not find it good

1640.

riding-ground. Afterwards Munro made good his point, and took out of Auchindown John Dhu Ger's plunder and other bestial, to the amount of '2500 head of horse, mares, nolt, and kine, with great number of sheep, and brought them to Strathbogie,' where, it is said, 'they were sold by the soldiers to the owners back again, for 13s. 4d. the sheep, and ane dollar the nolt,' the horse remaining unsold.

The head men of the country, deprived of the presence of their chief, the marquis, were obliged to bow to the rule of General Munro. Some came in, and undertook to join the Covenanting army; others, who did not do so, submitted to large fines. 'Neither work-horse nor saddle-horse was left about Strathbogie, but either the master was forced to buy his own horses, or let them go for the service of the army;' all arms being likewise taken from them. 'Baron, gentleman, herd, and hireman,' all alike suffered. Amongst other spoil, Munro seized a great quantity of home-made cloth which he found bleaching about the country, hanging it over the lofty walls of Strathbogie Castle to dry—'pity to behold!' At length, after oppressing the country for upwards of a month, this Covenanting party 'flitted their camp,' previously setting fire to their wooden lodges, and emptying out what was unspent from the girnels. 'They left that country almost manless, moneyless, horseless, and armless.'—*Spal*.

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At the command of a committee of the General Assembly, some memorials of the ancient worship, hitherto surviving in Aberdeen, were removed. In Machar Kirk, they 'ordained our blessed Lord Jesus Christ his arms to be hewen out of the front of the pulpit, and to take down the portrait of our blessed Virgin Mary, and her dear son baby Jesus in her arms, that had stood since the up-putting thereof, in curious work, under the sill-ring at the west end of the pend whereon the great steeple stands.... Besides, where there was ane crucifix set in glassen windows, this he [the Master of Forbes] caused pull out in honest men's houses. He caused ane mason strike out Christ's arms in hewen wark on ilk end of Bishop Gavin Dunbar's tomb, and siclike chisel out the name of Jesus, drawn cypher-wise IHS, out of the timber wall on the fore-side of Machar aile, anent the consistory door.

AUG. 5.

The crucifix on the Old Town cross dung down; the crucifix on the New Town cross closed up, being loath to break the stone; the crucifix on the west end of St Nicholas' Kirk in New Aberdeen dung down, whilk was never troubled before.'—*Spal*.

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This day, being Sunday, a dismal accident happened, of some consequence for its bearing on the interests of the Covenant, as it caused the destruction of a considerable number of gentlemen who were preparing to act in that cause. The Earl of Haddington was at this time stationed at Dunglass Castle, in Berwickshire, along with a number of other Covenanting chiefs, and a store of ammunition. On the day noted, the house was blown up by the explosion of the powder, which was placed in a vault underneath. There perished the earl himself, his brother Robert, and a bastard brother; Colonel Alexander Erskine, son of the Earl of Mar; Sir John Hamilton of Redhouse; Sir Gideon Baillie of Lochend; James Inglis of Ingliston; John Coupar of Gogar; Sir Alexander Hamilton of Innerwick; and some others, including about fifty-four servants, men and women; while thirty gentlemen, and others of inferior degree, were sore hurt, but not irrecoverably. It was thought that an English page, named Edward Paris, who was trusted by the earl with the key of the vault, set fire to the powder voluntarily, in consequence of pet; but accident is much more probable. 'No part of him was ever found but ane arm, holding ane iron spoon in his hand.'

AUG. 30.

1640.

'One thing wonderful happened, about eight of the clock, on the Thursday at night, before the blowing up of the house of Dunglass. There appeared a very great pillar of fire to arise from the north-east of Dunbar, as appeared to them in Fife who did behold it, and so ascended towards the south, until it approached the vertical point of our hemisphere, yielding light as the moon at her full, and by little evanishing until it became like a parallax, and so quite evanished about eleven of the clock in the night.'—*Bal*.

The Earl of Haddington, being only the second generation of a family raised by state employment and royal favour to extraordinary wealth, might have been expected to take no part against King Charles. It is stated that when

the king heard of the accident, he remarked that ‘albeit Lord Haddington had been very ungrateful to him, yet he was sorry that he had not at his dying some time to repent.’<sup>89</sup>

Amongst the killed was Colonel Alexander Erskine, a younger son of the late Earl of Mar. He was a handsome and gallant soldier, originally in the French service, and is noted as the lover whose faithlessness is bewailed in *Lady Anne Bothwell’s Lament*:

‘I wish I were within the bounds,  
Where he lies smothered in his wounds,  
Repeating, as he pants for air,  
My name whom once he called his fair:  
No woman’s yet so fiercely set,  
But she’ll forgive, though not forget.’

The orders for the discipline of the school at the kirk of Dundonald, in Ayrshire, in this year, have been preserved,<sup>90</sup> and exhibit arrangements and rules surprisingly little different from what might now be found in a good Scotch parish school. There were to be prayers morning and evening, and a lesson each day on the Lord’s Prayer, Belief, Commands, Graces, or Catechism. Somewhat unexpectedly, we find it enjoined on the master, that he teach his scholars good manners, ‘how to carry themselves fashionably towards all ... the forms of courtesy to be used towards himself in the schule, their parents at hame, gentlemen, eldersmen, and others of honest fashion, abroad.’ One arrangement seems of questionable tendency, and certainly has not taken root amongst us—namely, ‘for the mair perfyte understanding of the children’s behaviour, there shall be a *clandestine censor*, of whom nane shall know but the master, that he may secretly acquaint the master with all things, and, according to the quality of the faults, the master shall inflict punishment, striking some on the lufe with a birk wand or pair of taws, others on the hips, as their faults deserve, but none at ony time or in ony case on the head or cheeks.’ The conclusion conveys an impression of good sense in the deviser of the rules. ‘Especially is the master to kythe [shew] his prudence in taking up the several inclinations of his scholars, and applying himself thereunto, commendations, allurements, fair words, drawing from vice, and provoking to virtue, such as may be won thereby,

and others by moderate severity, if that be fund maist convenient for their stubbornness. And *let the wise master rather by a grave and an authoritative countenance repress insolence, and gain every one to his duty, than by strokes, yet not neglecting the rod when it is needful.*'

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At the command of the minister of the parish, accompanied by several gentlemen of the Covenanting party, the timber-screen of Elgin Cathedral, which had outlived the Reformation, was cast down. 'On the west side was painted in excellent colours, illuminate with stars of bright gold, the crucifixion of our Lord and Saviour Jesus Christ. This piece was so excellently done, that the colours and stars never faded nor evanished, but keepit hale and sound, as they were at the beginning, notwithstanding this college or canonry kirk wanted the roof since the Reformation, and no hale window therein to save the same from storm, snow, sleet, nor weet; whilk myself saw.... On the other side of this wall, towards the east, was drawn the Day of Judgment.... It was said, this minister caused bring home to his house the timber thereof, and burn the same for serving his kitchen and other uses; but ilk night the fire went out wherein it was burnt, and could not be holden in to kindle the morning fire, as use is; whereat the servants and others marvelled, and thereupon the minister left off any further to bring in or burn any more of that timber in his house. This was marked and spread through Elgin, and credibly reported to myself.'—*Spal.*

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DEC. 28.

1640.

The present was a sad time for the professors of the Catholic religion in Scotland. Spalding relates in feeling terms the unavoidable exile of the Dowager-marchioness of Huntly, a lady (daughter of Esme Duke of Lennox) who had been born and educated in France, and could not now, with one foot in the grave, alter her religion, while neither could her high rank and powerful connections avail to obtain for her toleration.

1641. JUNE.

1641.

‘Thus, resolutely she settles her estate, rents, and living, and leaves with woe heart her stately building of the Bog, beautified with many yards, parks, and pleasures—closes up the yetts, and takes journey with about sixteen horse; and upon Saturday, the 26th of June, comes to Aberdeen, lodged in Mr Alexander Reid’s house; and upon Monday thereafter, she rides frae Aberdeen towards Edinburgh. A strange thing to see a worthy lady, near seventy years of age, put to such trouble and travail, being a widow, her eldest son the Lord Marquis being out of the kingdom, her bairns and oyes dispersed and spread—and, albeit nobly born, yet left helpless and comfortless, and so put at by the kirk, that she behoved to go or else to bide excommunication, and thereby lose her estate and living, whilk she was loath to do! She left her oye [grandson] Charles, son to the marquis, being but ane bairn, with Robert Gordon, bailie of the Enzie, to be entertained by him, when she came from the Bog; and she also sent another of his bairns, called Lady Mary, to Anna Countess of Perth, her own eldest sister, to remain with her.... She remains [in Edinburgh] till about the end of September, but help or remede, syne rides directly to Berwick, there to abide during her pleasure. It is said she had about 300,000 merks in gold and jewels with her, by and attour the gold and silver plate of both houses of Bog and Strathbogie; which did little good to the distressed estate of that noble house.’—*Spal*. It is the more remarkable that the marchioness found no remedy in Edinburgh, as King Charles was there during her stay, and he, as her relative, and the friend of her loyal family, must have been disposed to interfere in her behalf, if in his power to do so. The marchioness died in France in the ensuing year.

When the highest rank could not procure the slightest toleration for a professor of the Romish faith, it was not to be expected that Catholics of mean estate should be unmolested. In April 1642, Peter Jop, sailor in Aberdeen, gave in a supplication to the Privy Council, representing his ‘miserable condition upon occasion of the imprisonment of Isobel Robertson, his spouse, ane excommunicat papist.’ The Lords wrote to the magistrates and ministers of Aberdeen, requesting Isobel’s ‘enlargement upon assurance of conformity, or of removal out of the country;’ and accordingly she was allowed till the 15th of October to make up her mind about these alternatives. Now, in the month of July, Peter Jop represents that his wife is in a delicate condition, and will be undergoing confinement of another kind about the time assigned as her longest day. ‘The soonest she

can be transported out of the country, if she do not conform, will be about the month of March’—so declares Peter; but he humbly assures the Lords that if they will so far extend the term assigned to her, she will then give obedience without further delay. The Lords were mercifully inclined, and allowed Isobel to remain unmolested till the last day of March.—*P. C. R.*

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‘In this month, ane great death, both in burgh and land, of young bairns in the pox; so that nine or ten children would be buried in New Aberdeen in one day, and continued a long time. All for our sins, and yet not taken to heart.’ ‘There was reckoned buried in Aberdeen about twelve score bairns in this disease,’

AUG.

Spalding, who notes these particulars, remarks that, since the beginning of the troubles, there had been no sea-mews seen in the lochs of New or Old Aberdeen, ‘who before flocked and clected in so great abundance, that it was pleasure to behold them flying above our heads, yea, and some made use of their eggs and birds. In like manner, few or no corbies seen in either Aberdeens at the water-side of Dee or Don, or shore, where they wont to flock abundantly for salmon gouries.’

He tells us that the 14th of September was kept as a solemn thanksgiving throughout Scotland, on account of the settlement between the king and Estates. ‘Here it is to be marked, that this day of thanksgiving was strictly kept, the weather being wonderful fair, and the poor country people rather wishing to have been at home winning their corns.... Which is more to be noted, this day of thanksgiving, being ane wonderful fair day, fit for harvest, whereon they are forced to sit idle; thereafter there was nothing but tempestuous rains till the 10th of October, whilk was again ane day of fast; whereby the people’s hearts were casten down, fearing the loss of their harvest through this wicked weather.’

1641.

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At the meeting of the Estates this day, the king communicated intelligence of the outbreak in Ireland, but without as yet being able to state whether it was a small or a great revolt. It was not till Monday, the 1st of November, that he came to the house with the statement that it appeared to be a general rebellion, from which only Dublin was safe.<sup>91</sup> He, on that occasion, urged the Estates to send an armament as soon as possible, to aid in maintaining order in that distracted country.

OCT. 28.

Mr Tytler of Woodhouselee had learned, through the medium of tradition, that the king was engaged in a match at golf, on Leith Links, when a letter was delivered into his hands, giving him the first intelligence of the Irish rebellion. 'On reading which,' adds Mr Tytler, 'he suddenly called for his coach, and leaning on one of his attendants, and in great agitation, drove to the Palace of Holyroodhouse, from whence next day he set out for London.'<sup>92</sup>

This anecdote is certainly wrong in the last particular, as the king did not leave Edinburgh on his return to England till the 18th of November. The remainder of the anecdote may be true. Mr Tytler states that the king was fond of the game of golf. In Wodrow's *Analecta*, the story is related with a wholly different cast, from two sources. It is here said that the king had been participant in hatching the Irish rebellion for his own ends, and, when the accounts of the massacre came, 'he was playing at the gowf in the Links of Leith. When he opened the letters and had looked at them, he seemed not in the least concerned, but ruffled the letter up, and called to his company to play about.'<sup>93</sup>

The town-clerk of Aberdeen bewails the suppression of old kindly Christian customs at this time, as gentle Izaak Walton might have done, if it had been vouchsafed to him to exercise his rod upon the Dee. Whereas, in former times, Christmas or Yule-day had been observed with preachings, and praises, and thanksgiving, 'in remembrance of the birth of our blessed Saviour,' and friends and neighbours made merry with each other and had good cheer, 'now this day,' says Spalding, 'no such preachings nor such meetings with merriness, walking up and down,' in Aberdeen, but, on the contrair, it was 'commanded to be keepit as ane work-day, ilk burgess to keep his booth, ilk

1641. DEC. 25.



craftsman his wark, feasting and idleset forbidden out of pulpits.... The people was otherwise inclined, but durst not disobey; yet little merchandise was sold, and as little work done on this day in either Aberdeens. The colliginers and other scholars keep the school against their wills.'

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Owing to the sending of forces from Scotland to put down the Irish rebellion, a considerable intercourse had sprung up between the two countries. The Privy Council accordingly found it necessary to establish postages betwixt Port-Patrick and Edinburgh, and betwixt Port-Patrick and Carlisle, for the conveyance of packets of letters. In this movement, England was more concerned than Scotland, and she therefore cordially agreed to bear all the expense that should be required. It is interesting to trace the first steps in a system now so important as the Post-office.

1642. FEB. 16.

On a resolution being formed by the parliament of England and the Scottish commissioners, to establish a line of posts between Edinburgh and Port-Patrick, and Port-Patrick and Carlisle, the business of making the arrangements was confided to Robert Glencorse, merchant in Dumfries, under a duty of consulting 'Mr Burlmakie, master of the letter-office.' Robert was himself 'established postmaster betwix Annan and Dumfries, twelve mile; and Mark Loch, betwix Carlisle and Annan, twelve mile; Andrew M'Min betwix Dumfries and Steps of Orr, twelve mile; Ninian Mure betwix the Steps of Orr and Gatehouse of Fleet, twelve mile; and George Bell from thence to the Pethhouse, eleven mile; and John Baillie from thence to the Kirk of Glenluce, thirteen mile; and John M'Caig from that to the port, ten mile.' These persons were considered 'the only ones fit for that employment, as being innkeepers and of approved honesty in these parts.' The lords of the Privy Council were (September 27) supplicated to ratify the arrangements, and to 'allow John M'Caig, postmaster in Port-Patrick, to have a post bark.' The supplication was at once complied with.

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1642.

At this time of general strife and trouble, when civil war was beginning to appear inevitable, a monster passed through the country for exhibition to the curious. It was an Italian of about twenty-four years of age, 'having from his birth, growing from the breast upwards, face to face, as it were ane creature having a head and syde [long] hair, like the colour of the man's hair; the head still drooping backward and downward. He had eyes, but closed, not opened. He had ears, two arms, two hands, three fingers on ilk hand, ane body, ane leg, ane foot with six taes; the other leg within the flesh, inclining to the left side.... It had a kind of life and feeling, but void of all other senses; fed by the man's own nourishment.... This great wark of God was admired of by many in Aberdeen and through the country, as he travelled; yet such was the goodness of God, that he would go and walk where he listed, carrying this birth without any pain, yea unespied when his clothes was on. When he came to the town, he had two servants waiting upon him, who with himself were well clad. He had his portraiture with the monster drawn, and hung out at his lodging to the view of the people. The one servant [was] ane trumpeter, who sounded at such time as the people should come to see this monster, who flocked abundantly into his lodging. The other servant received the monies frae ilk person for sight, some more, some less. And after there was so much collected as could be gotten, he, with his servants, shortly left the town and went south again.'—*Spal.*

APR.

It may somewhat stay our smiles at the simplicity of Spalding's narration, that it was not till the present century that the true theory of such monsters was arrived at—to wit, that they are twin-births, in which, through some simple disturbing cause, development has been arrested or taken a wrong course.

There is an account of this remarkable person, illustrated by a portrait, in Palfyn's *Traité des Monstres, de leur Causes, de leur Nature, &c.* (Leyden, 1708). The author had first seen him at Copenhagen, and afterwards at Bâle, while he was still a young man. He bore the name of Lazare Colloredon Genoï, and the attached figure had been baptised separately under the name of Jean Baptiste. Lazare is described as a man of good stature and appearance, and of agreeable manners. He wore a large cloak, to conceal the unsightly brother whom nature had attached to his breast. Usually he shewed a good

1642.

deal of vivacity, but was now and then depressed in thinking of what should be his fate, if, as was likely, his brother should die before him. Jean Baptiste was a very imperfect being, nourished only by what Lazare ate; his eyes nearly closed, and his respiration scarcely perceptible.

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As it had been with Christmas, so it now was with Pasch. According to Spalding, ‘no flesh durst be sold in Aberdeen for making good cheer, as wont was to be. So ilk honest man [Episcopalian] did the best he could for himself. A matter never before heard of in this land, that Pasch-day should be included within Lentron time, because it was now holden superstitious; nor nae communion given on Good Friday nor this Pasch-day, as was usit before. Marvellous in Aberdeen to see no market, fowl or flesh, to be sold on Pasch-even.’

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APR. 10.

Up to this time, from the beginning of the year, there was a scarcity of white fish along the east coast, ‘to the hurt and hunger of the poor ... and begging of the fishermen. It was reported that when the fishers had laid their lines and taken fishes abundantly, there came ane beast called the Sea Dog to the lines, and ate and destroyed the hail bodies, and left nothing on the lines but the heads. A judgment surely from God Almighty, for the like scarcity of fishes to continue so long has scarcely been seen here in Scotland; whilk bred great dearth of meal and malt, at aucht, nine, or ten pounds the boll, and all other meats also very dear.’—*Spal.*

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JUNE.

The honest town-clerk of Aberdeen probably by sea-dog means the well-known *dog-fish*, one of the cartilaginous family, which is a constant enemy of our fisheries at this day.

The same authority informs us that dearth continued throughout the ensuing winter. ‘White meal,’ he says, probably meaning flour, ‘was at eight pounds the boll.’ The people had been accustomed to dear summers—the stock of grain of the preceding year usually getting low at that season—but this was

the first dear winter for many years. 'There was also great rains, whereby none was able to travel; great storms in the sea, and few fish gotten, to the great grief of the people.'

In November, when the recent commencement of hostilities between the king and the English parliament must have been thrilling men's minds in Scotland, Spalding notes, that 'in ane seaman's house in Peterhead, there was heard, upon the night, beating of drums, other times sounding of trumpets, playing on piffers, and ringing of bells, to the astonishment of the hearers. Troubles followit.'

1642.

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The preservation of the strict rule of the church was at this time sought in the most earnest manner, no one dreaming of any such thing on the other side as the rights of conscience, or the danger of creating a reaction to contrary purposes. At a provincial assembly held in Aberdeen, there was much business regarding the few symptoms of *Brownism* or independency lately presented throughout the country. Gilbert Garden, younger of Tillifroskie, in the parish of Birse, was denounced by his parish minister for forsaking the kirk, and affecting to regard his private family devotions as sufficient. Being brought before the court, he confessed that such was his case, but defended himself; whereupon the minister was enjoined to excommunicate him if he proved obdurate. (About a twelvemonth after, young Tillifroskie was seized 'upon the causey of Edinburgh,' and put in the Tolbooth there, on account of his Brownism.) One Ferendale was afterwards proceeded with in the same sharp way, but was induced to deny the Brownist tenets in time to save himself. Another man, named Maxwell, 'a silly wheel-wright of his calling,' who had also been summoned for Brownism, deemed it most prudent to vanish from the town. After an ineffectual search for this important recusant, the ministers out of their pulpits forbade all men to 'reset' him.—*Spal.*

OCT. 18.

One of the means of keeping up the excitement necessary for sustaining the war against the king was to thunder constantly in the pulpits about the papists. The

1642.

difficulty seems to have been to find a real live papist, to give some sort of countenance to these fulminations, for at this time, in the simple but expressive words of Spalding, ‘none durst be seen.’ Now and then, a smart *razzia* brought out one or two cowed professors of the abhorred faith. A small clerical party, supported by a couple of bailies, went out of Aberdeen on the evening of Sunday the 16th of April (1643), ‘with caption to tak Alexander Hervie in Grandhame for popery, who was lying bedfast in the gut [gout], to have taken him as ane excommunicat papist; but they could not find him. His son they saw upon horseback, excommunicat likewise; but they had no commission against him.’ Two days later, the young Laird of Birkenbog seized a priest named Robertson in the house of Forbes of Blackton, and brought him to Aberdeen. Being soon after transported to Edinburgh, this priest was sent to West Flanders, with a hint that, if he reappeared in Scotland, he should be hanged.

On the 8th of October 1643, Thomas Blackhall and his wife, and the wife of one Collieson, were excommunicated as papists by Andrew Cant, minister of Aberdeen. ‘Strange to see,’ says Spalding, ‘the wife to be excommunicat, and the husband not to keep company with her!’

One of the saddest acts of discipline that proceeded from the dominant party at this time, was the banishment of Dr Forbes of Corse, who had been professor of divinity in Aberdeen under the Episcopal Church. Learned above his fellows, modest and peaceable even in his opposition, and protesting that he was sound in the controversies against papists, Socinians, and Arminians, he was, nevertheless, compelled to leave his country, April 1644, because he could not be induced to sign the Covenant. He had purchased a house for the professors of divinity, but neglected to reserve his own liferent; so he was obliged to leave it to his Covenanting successor, at the same time breaking up his library and selling a part of his books. ‘Surely,’ says Spalding, ‘this was ane excellent religious man, who feirit God, charitable to the poor, and ane singular scholar; yet he was put fra his calling, his country, his friends, and all, for not subscriyving our Covenant, to the grudge and grief of the best.’

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The Aberdeen annalist tells a wild story of a complex murder which befell to-day. The young Laird of Calder was married to a daughter of the Laird of Cromarty, who, having no pleasure in him, prepared a potion for his destruction. Hutcheon Ross of Auchincloch and two other gentlemen, visiting the house this evening, ‘were made welcome, supped merrily, and were all three found dead in their beds on the morn,’ having through some mistake received the poison meant for young Calder, ‘who by his friends was hastily removed out of that place, and never more tried.’

1643. FEB. 1.

Whilst the first battles of the Civil War were causing universal excitement, some further rumours of prodigies were circulated in the country. It was stated that a battle was seen at the hill of Manderlee, four miles from Banff; and so strongly did the vision impress itself on the beholders, that many ran to bury their valuables in the earth. At Bankafair and Drum, touking of drums was heard. Mr Andrew Leitch, minister of Ellon in Aberdeenshire, sitting at supper one night, ‘heard touking of drums vively, sometimes appearing near at hand, and sometimes far off. On the 7th of February, it was written here to Aberdeen, that Kentoun battle at Banbury,<sup>94</sup> wherein his majesty was victorious, has in vision been seen seven sundry times sin-syne.’—*Spal*. On the 12th, about eight in the morning, being a misty day, ‘visions seen at the hill of Brimman, within four miles of Aberdeen. William Anderson, tenant in Crabstone, told me he saw ane great army as appeared to him, both of horse and foot, about eight hours in the morning, being misty, and visibly continued till sunrising; syne vanished away in his sight with noise, into ane moss hard beside. Likewise in the muir of Forfar, armies of men seen in the air. Whilk visions the people thought to be prodigious tokens, *as it fell out over true.*’—*Spal*.

FEB.

1643.

The same minister of Ellon, happening to step out of his manse one night between twelve and one o’clock, ‘did see the sun to shine, as if it had been mid-day, and, much astonished at so fearful a prodigy, he called up his bedral to see it also; and, lest the truth hereof should not win belief, he caused the bedral to raise a number of the neighbours from their beds, all

which did testify the same, when the preacher was questioned about it by the committee sitting at Aberdeen.’—*Pa. Gordon*. To make up for this unusual solar demonstration, the sun by day ‘was seen in divers parts to shine with a faint beam, yielding a dim and shadowy light even in a clear heaven, and sometime did shew like a deep and large pond or lake of blood.’

We learn from the same authority, that ‘at Rethine, in Buchan, there was about the time of morning-prayer, for divers days together heard in a church a choir of music, both of voices, organs, and other instruments, and with such a ravishing sweetness, that they were transported, which in numbers resorted to hear it.... The preacher one day being much taken with the harmony, went, with divers of his parishioners into the church, to try if their eyes could bear witness to what their ears had heard; but they were no sooner entered when, lo! the music ceased with a long note or stroke of the viol di gambo; and the sound came from ane upper loft, where the people used to hear service, but they could see nothing.’

1643.

Gordon adds an account of a prodigious noise which was heard all over the kingdom at the moment when Alaster Macdonald landed with his Irish in the west of Scotland, to join Montrose in behalf of the king—that ‘warning piece shot from heaven as the last signal that should be given us of our near approaching punishment; this I am sure the whole kingdom can testify, since the report did ring in the ears of every man, woman, and child throughout the kingdom, as if it had been levelled at themselves, as well in the houses as the fields, not only in one day and one hour, but at one moment of time.’

When we read the history of two centuries ago, we little reflect on the mental condition and furniture of the principal actors, or the manner in which the public at large was prepared to receive and treat events. Yet it cannot be doubted that history must have in a great measure taken its bent and character from these circumstances. In reviewing the events of the Civil War, it is most essential to keep in view the style of religious convictions under which men acted, and even their superstitions.

The Diary of Sir Thomas Hope, the king’s advocate under Charles I., and a leader in all the proceedings of

1643.

the Covenanters, shews us that Sir Thomas, in most affairs of difficulty, accepted the thoughts which occurred to his mind after prayer as a divine impulse to the right course of action.<sup>95</sup> It reveals not merely the generally devout life of the man, his frequent prayers and communions, and his entire resignation to the divine will, but his being subject to superstitions at which a child would now smile. He has frequently such entries as the following: ‘June 24, 1643.—This night I thought that a tooth (whilk was loose) fell out of my gums, and that I took it up in my hands and kep it; and it seemed so real that while [till] I awakit, I thought it really true, and could scarcely believe it otherwise when I had awakit. Thir repeated dreams portends some calamity to me or mine; but I have resolved to submit myself to my good Lord, and to adore his providence; and the Lord give me grace to bear it patiently.’ ‘June 25.—At night I dreamed that while I was pulling on my left buit, both the tongues of it brake. This fell out really on the 26 September thereafter.... God prepare me. The Lord prepare me, for I look certainly to suffering in such way as my Lord pleases.’ ‘April 8, 1644.—This night a dream occurrit, whilk carries some fear with it; but I wait on the Lord. It was, that the rod wherewith I walk was broken in pieces, and nothing left of it but the silver head.’

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‘Horribly uncouth and unkindly weather at this time ... marvellous to see in April! Fishes, fowls, and all other commodities scarce gettable in Aberdeen. White meal at nine pound ... the boll.’ Merchants, expecting still greater prices elsewhere, bought up and exported all the grain they could collect, ‘to the wreck of our country,’ and not without ‘the country people’s malison.’ Spalding, who relates these circumstances, tells us that this malison was ‘heard;’ for on the 29th of May, a ship loading with meal in the Ythan river in Aberdeenshire, slipped a plank, so as to let in the salt water and destroy the cargo.

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‘There came to Aberdeen ane Doctor Pont[hus], who had some stage plays, whilk drew the people to behold

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the sport; syne, upon the stage sold certain balms, oils, and other physical ointments, whereof he made great gain. Thereafter he went north to other burghs, and did the like.’—*Spal*.

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If it were allowable to use the language of the day, we might say that the devil had at this time broken out in unusual activity. Accordingly, the public authorities had not only to prepare an army for the aid of the parliament against the king in England, and make vigorous crusades in Strathbogie and other over-loyal districts, but to meet the powers of darkness with all the terrors of the criminal law. The number of old women who suffered for offending at once against the 18th chapter of Deuteronomy and the 73d act of the ninth parliament of Queen Mary,<sup>96</sup> in Fife alone, was thirty.<sup>97</sup> One noted case was that of Agnes Finnie, a poor woman dealing in small articles at the Potterrow Port in Edinburgh, who was convicted and burned in 1644. Mr Charles K. Sharpe has presented us with the articles of her dittay, and as they afford a highly characteristic picture of the acts then attributed to a witch, and give some curious glimpses of the private life of the period, I make no apology for transferring them to these pages.

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‘Having threatened Mr William Fairlie’s son to send him halting hame, because, going by her door, he, in a nickname, called her *Annie Winnie*, he within twenty-four hours after, lost the power of his left side by her witchcraft, and languished in so incurable a disease, that the whole physicians called it supernatural, and the haill substance of his body ran out at his cute [ankle]; and the boy laid the whole wyte [blame] of his death constantly upon the panel.

‘She laid upon Beatrix Nisbet a fearful disease, so that *she lost the power of her tongue!* because she paying the said Agnes two dollars owing her by her father, would not give her annual rent [interest] therefor. She laid a grievous sickness upon Jonet Grinton, whom ye threatened that she should never eat more in this world, because she had brought again two herring she had bought from you, they not being caller [fresh], and sought back her eight

pennies [two-thirds of a penny sterling], and of which she died, without eating or drinking conform to your threatening.

‘Ye came in to visit John Buchanan’s bairn, being sick of a palsy, and bade the father and mother go ben the house [remove to the inner apartment] a while and pray to God for him; and in the meanwhile ye stayed with him, and when they returned, they fand him violently sick that he could neither stir hand nor foot, and that by your devilry; and fand on his right buttock about the breadth of one’s loof, the same so sore as if a collop had been ta’en out of it; and he died in eight days in great dolour.

‘Falling a scolding with Betty Currie, the said bairn’s mother, about the changing of a sixpence which ye alleged to be ill, ye, in great rage, threatened that ye should gar [cause] the devil tak a bite of her. Ye laid a grievous sickness on her husband, John Buchanan, that he burned a whole night as if he had been in a fire, for taking his wife Betty Currie’s part against you, and boasting [threatening] to cast you over the stair, and calling you a witch; whereon ye threatened to make him repent his speeches; and for taking the same off him, he coming the next day and drinking a pint of ale with you, and telling you that if you tormented him so another night, he should make all the town hear tell of it; whereon he was weel. The said John being offended at you because ye would not trust his wife a twelvepenny cake [penny roll], ye bade him go his way, and as he had begun with witches, so he should end; after which threatening, he straight contracted a long and grievous sickness, whereof he was like to melt away in sweating.

1643.

‘In your scolding with Euphame Kincaid, ye calling her a drunkard, and she calling you a witch, ye replied: “That if ye was a witch, she and hers should have better cause to call ye so;” accordingly, a great joist fell on the said Euphame’s daughter’s leg, being playing near your house, and crushed the same, and that by your sorcery.

‘Ye, ending an account with Isobel Acheson, and because ye could not get all your unreasonable demands, bade the devil ride about the town with her and hers; whereupon, the next day, she brake her leg by a fall from a horse, and ye came and saw her, and said: “See that ye say not that I have bewitched you, as other neighbours say.”

‘Robert Watt, deacon of the cordwainers, having fined Robert Pursell, your son-in-law, for a riot, ye came where he and the rest of the craft were convened, and cursed them most outrageously, whereon Robert Watt broke the cap upon your head; since which time he fell away in his worldly means, till long after, he being in your good-son’s house, where ye likewise was, ye asked “if he remembered since he broke the cap on your head? and that he had never thriven since, nor should, till you had amends of him;” whereon, he being reconciled with you, he prospered in his worldly state as before.

‘The laying on of a grievous sickness on Christian Harlaw, for sending back a plack’s worth of salt which ye had sent her, it being too little; ye having threatened her that it should be the dearest salt that ever she saw with her eyes, and then, at her entreaty, ye came to her house, and she became presently weel; whereon Christian said, that “if ought ailed her thereafter, she should wyte [blame] you.” Christian Simpson being owing you some money, and because she craved only eight days’ delay to pay it, ye threatened in great rage, that “she should have a sore heart ere that day eight days;” according whereto, the said Christian’s husband broke his leg within the said eight days.

‘John Robison, having called you a witch, you, in malice, laid a flux on him by your sorcery. Appearing to John Cockburn in the night, when both doors and windows were fast closed, and terrifying him in his sleep, because he had discorded with your daughter the day before. Causing all William Smith’s means to evanish, to the intent he might never be able to relieve some clothes he had pawned beside you, worth an 100 lb., for 14 merks Scots only. Onlaying a grievous sickness on Janet Walker lying in childbed; and then ye being sent for, and the said Janet’s sister begging her health at you for God’s sake, ye assented, and she recovered of her sickness presently by your sorcery.

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‘Being disappointed of having Alexander Johnston’s bairn’s name, ye, in a great rage and anger, told him, that “it should be telling him 40 lb. betwixt and that time twelvemonth, that he had given you his bairn’s name;” whereon he took a strange sickness, and languished long; and at length, by persuasive of neighbours, he came to your house, and after he had eaten and

drunken with you, ye with your sorcery made him whole. *Item*, the child whose name ye got not was past eleven years ere he could go.

‘Having fallen in a controversy with Margaret Williamson, ye most outrageously wished the devil to blow her blind; after which she by your sorcery took a grievous sickness, whereof she went blind. Laying a madness on Andrew Wilson, conform to your threatening, wishing the devil to rive the soul out of him (which words, the time of his frenzy, were never out of his mouth), and that because he had fallen in a brawling with your daughter. *Item*, for taking off it.

‘Bearing company with the devil these twenty-eight years by-past; for consulting with him for laying on and taking off diseases, as weel on men as women and bestial; which is notourly known.’

It clearly appears that this woman had, at the utmost, been guilty of bad wishes towards her neighbours, and that if these had any effect, it was only through their superstitious apprehensions. We may suppose such to be the type of a class of cases—the *simply maledictory*. It is fairly presumable, however, that, while the community was so ignorant as to believe that malediction could have positively injurious effects, it *would occasionally have these effects by its influence on the imagination*, and consequently become an active evil. In this we can see a possible cause of the long persistence of the belief in witches. The ignorant, seeing an effect, and not observing the influence of the imagination in the case, would of course find no objection to laying it all to the account of witchcraft. The enlightened, again, disbelieving witchcraft, but at the same time ignorant of the influence of imagination, would have no alternative but to deny the facts; and this unreasoning and unsound scepticism, being contrary to the experience of the ignorant, would fail to disabuse them of their superstitions.

1643.

In this year (December 31, 1643) is an entry in the parish register of Markinch, Fifeshire—‘Compeared Janet Brown, and being posed if she used charms, she confessed that she did charm two several persons—viz., James Hullock and Janet Scott, but no moe. The words of the charm are these:

“Our Lord forth raide,

His foal's foot slade:  
Our Lord down lighted,  
His foal's foot righted;  
Saying: Flesh to flesh, blood to blood, and bane to bane,  
In our Lord his name."

Being posed who learned her the foresaid charm, answered, ane man in the parish of Strathmiglo.'<sup>98</sup>

There is reason to believe that this is a charm of great antiquity for the healing of bruises and sprains.<sup>99</sup>

The faith in necromantic power being wholly a part of the religious earnestness of the time, it is only to be expected that the clergy should appear deeply interested in prosecutions of this class, and sedulous that suspected persons should be duly tried and the guilty brought to punishment. In October 1644, Margaret Young, spouse of William Morison, merchant in Dysart, described herself, in a petition to the Privy Council, as having lain miserably in prison for ten weeks, in consequence of a false accusation got up against her as 'a consuler of spirits,' by a few neighbours acting under a feeling of 'spleen and envy,' 'albeit she is ane honest young woman, of good reputation, without any scandal or blot, and never knew nothing of that is put to her charge.' She had petitioned the Privy Council to have the bailies and ministers of Dysart summoned before them, and ordained to set her at liberty; and on an appointed day, one of the ministers came forward, and craved to have a longer time 'to see if any dittay sould be given in against her.' Even that time was now expired, and yet, with no charge against her, she continued to languish in her wretched imprisonment. The lords agreed to liberate Margaret, on her husband giving security to the extent of five hundred merks, that she would compear if afterwards called upon.—*P. C. R.*

1643.

In the ensuing month—so frequent were accusations of witchcraft at this time—one Margaret Thomson, wife of Alexander Gray in Calder, complained before the same tribunal, against the Tutor of Calder and the minister of that parish, for 'waking her the space of twenty days naked, and having nothing on her but a sackcloth,' under a charge of witchcraft. She had been 'laid in the stocks, and kept separate from all company and worldly comfort;' nor could she 'see any end of her misery by lawful trial.'

The lords, having the woman's husband before them, and also the tutor and minister, and no regular charge being forthcoming, ordained her to be liberated upon security.

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(Sunday) A solemn fast and humiliation was kept throughout Scotland, on account of backsliding from the Covenant, and the prevalence of vice and godlessness; as also to entreat the favour of Heaven for the parliamentary arms, and to pray for the filling of the king's heart with the love of reformation. A fast in those days was a reality. In Old Aberdeen, the people entered the church at nine o'clock, and continued hearing prayers and sermons till two. They might have then dismissed for a space, but they sat still hearing 'reading' till the commencement of afternoon service, which ended at six. Then the bell rang for evening-prayers, which continued till seven. 'Thus was the people wearied with fasting and praying, under colour of zeal, whilk rather appeared a plain mockery of God.' On the ensuing Thursday, a similar fast was kept, when the king and queen were prayed for, in a manner, it may be suspected, for which their majesties would not be duly thankful. 'No prayer to confound the armies raised against him, but rather prayer for their good success.'—*Spal.*

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1644. JULY 7.

Immediately after Montrose had gained his first victory at Tippermuir, and while his army lay at Collace, in Perthshire, his adherent, Lord Kilpont, eldest son of the Earl of Airth, lost his life in a lamentable manner. His friend and associate in arms, James Stewart of Ardvoirlich, had been incensed at some outrages committed on his lands by the Irish auxiliaries under Alaster Macdonald or MacCol-keitoch, while they were advancing to join Montrose. He had complained to Montrose, had had a violent altercation with Alaster MacCol, and it had been found necessary to place both him and MacCol under arrest. This step was taken at the recommendation of Lord Kilpont. To pursue the narrative of a

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descendant of Stewart: ‘Montrose, seeing the evil of such a feud at such a critical time, effected a sort of reconciliation between them, and forced them to shake hands in his presence; when it was said that Ardvoirlich, who was a very powerful man, took such a hold of Macdonald’s hand as to make the blood start from his fingers. Still, it would appear, Ardvoirlich was by no means reconciled.

‘A few days after the battle of Tippermuir, when Montrose with his army encamped at Collace, an entertainment was given by him to his officers, in honour of the victory he had obtained, and Kilpont and his comrade Ardvoirlich were of the party. After returning to their quarters, Ardvoirlich, who seemed still to brood over his quarrel with Macdonald, and being heated with drink, began to blame Lord Kilpont for the part he had taken in preventing his obtaining redress, and reflecting against Montrose for not allowing him what he considered proper reparation. Kilpont of course defended the conduct of himself and his relative Montrose, till their arguments came to high words; and, finally, from the state they were both in, by an easy transition to blows, when Ardvoirlich with his dirk struck Kilpont dead on the spot. He immediately fled, and under cover of a thick mist escaped pursuit, leaving his eldest son, Henry, who had been mortally wounded at Tippermuir, on his death-bed.’<sup>100</sup>

This story will be generally recognised as one which has supplied some leading incidents in the *Legend of Montrose*. The present version of it, more favourable in some features to Ardvoirlich than that which occurs in Wishart’s *Life of Montrose*, was communicated to Sir Walter Scott in 1830 by Robert Stewart of Ardvoirlich, who stated that it had come to his father from a man who lived to a hundred years of age, the great-grandson of the homicide laird by a natural son, who was present with him at the time of the deplorable incident.<sup>101</sup>

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After the taking of Newcastle in this month by the Scottish Covenanting army, ‘the pest’ came from that place<sup>102</sup> into Scotland, where it met a field highly

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calculated for its diffusion. There had been dearth the preceding year from deficient harvest, and since then, what with the drawing away of men for the army, the grievance of a heavy excise to support it, the incessant harassment of many districts by hostile and plundering armies, and the extreme anxiety and distress of mind occasioned by the civil war, assisted, doubtless, by the generally depressing effect of incessant preachings, prayings, fastings, and *thanksgivings*, by which the whole sunshine of life was, as it were, squeezed out of the community—those vital powers which resist and beat off disease must have been reduced to a point much below average. It is not surprising, therefore, that the plague took deadly hold of the country, and rapidly spread from Edinburgh to Borrowstounness, Kelso, Perth, and other towns, all of which were grievously afflicted by it during the next year.

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Of the ecclesiastical discipline of this period, and its bearing upon the habits of the people, we get a good idea from the Presbytery Record of Strathbogie, which has been published by the Spalding Club. The whole moral energy of the country appears as concentrated in an effort to fix a certain code of theological views, including a rigid observance of the Sabbath, the suppression of witchcraft, the maintenance of a serious style of manners, and the extirpation of popery.

1645.

1645.

A committee of the presbytery made periodical visits to the several parishes, called the minister and chief parishioners before them, and examined the parties separately as to each other's spiritual condition and religious practice. For example, at Rhynie, the minister, Henry Ross, being removed, the elders were sworn and interrogated as to his efficiency. They 'all in ane voice deponed that concerning his literature he was very weak, and gave them little or no comfort in his ministry; but, as concerning his life, he was mended, and was blameless now in his conversation.' The elders being in their turn removed, the minister was called in and examined regarding them. He 'regretted that the parishioners frequented not the church, nor assisted him in his discipline, but despised him.'

To be absent any considerable number of times from church was punishable; and if the parishioner proved contumacious, he was liable to be excommunicated—a doom inferring a loss of all civil rights, and a complete separation from human converse.<sup>103</sup> To refuse to take the Covenant, or to have any dealings with the loyalist Huntly, brought men into similar troubles. Old women using charms for healing, persons 'kindling needfire' for the cure of cattle,<sup>104</sup> or reserving a field for the devil (the *Guidman's Croft*), and females pilgrimising to holy wells, according to old custom, were all vigorously proceeded against, in obedience to repeated acts of the General Assembly for uprooting of *all superstition*. Irregularities between the sexes, and even quarrelling and scolding, had to be expiated in sackcloth before the congregation. Drunkenness and swearing were also censured. In dealing with these offences, an unsparing inquisition into domestic and family matters was used, and no rank, age, or sex seems to have afforded the subject any protection.

As specimens of religious offences—a gentleman was prosecuted for bringing home a millstone on a Sunday; another, for gathering gooseberries in time of sermon. It was found regarding Patrick Wilson, that he had sat up with a company drinking till after cockcrow, consuming in all eleven pints—that is, about two dozen quart bottles—of ale; he had struck a man, and railed in his drink at several gentlemen of the parish. ‘The brethren ordained Patrick to stand in sackcloth two Sabbaths, and pay four merks penalty.’

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The Lady Frendraught,<sup>105</sup> who now lived at Kinnairdie, in the parish of Aberchirder, is a conspicuous subject of the discipline of the Strathbogie presbytery, on account of her being a papist. To leave this inoffensive lady in the quiet exercise of her own religious forms was not within the capabilities of the Christian charity of that day. It is no over-statement of the case that this ecclesiastical body set themselves to simply harass her out of her peculiar convictions—or rather professions; for they seem to have been content when they could effect an external conformity, and the horrible guilt of forcing a fellow-creature into a mere hypocrisy, seems never to have been present to their minds.

So early as 1636, the synod had sent one of their number to deal with her, and induce her to go to church; for a time she conformed. Two years after, a similar visitation

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of the lady had become necessary; so she and her daughter Elizabeth were summoned for ‘not hearing of the word, and not communicating.’ What came of this does not appear; but in 1643, a deputation of ministers was sent to deal with her according to the ordinance of the General Assembly, and to report her answer. It was soon after reported that ‘she promised to hear the word, and desired a time for further resolution.’ It was then agreed to give her some short space to decide on becoming ‘a daily hearer,’ but ‘if she refused, the process to go on against her.’ The poor lady once more promised ‘to hear the word, as she had done before,’ and it was resolved to ask the advice of the General Assembly on the point. Years passed on, without bringing her further than to agree to go to the church which her husband frequented—which was out of the bounds of this presbytery. What immediately happened after this does not appear; but, on the presbytery resolving (January 1647) again to proceed against her ladyship, it was reported that she was out of the country. A few months later, the

commissioners of the General Assembly ‘granted her liberty to be an ordinar hearer of the word at Forgue for a time.’ This, however, did not stop the process. The lady was hunted into another presbytery, where she seems to have kept them at bay for a little while. In June 1648, Mr John Reidford reported that he had spoken her, but ‘found no effect of his travels;’ he required further time. Soon after, the same minister reported that on a second interview, she expressed herself as ‘willing to hear the word in any kirk save Aberchirder and such as are within the presbytery of Strathbogie.’ This was not to be endured. She was immediately summoned as a contumacious person. On the day of call, she ‘compeared not;’ and Mr John Reidford, her parish minister, proceeded to give from his pulpit, on successive Sundays, a series of three admonitions addressed to her; then, in like manner, a series of three prayers. As her ladyship continued to disregard all proceedings in her case, the presbytery prepared itself to pass the awful doom of excommunication, when, behold! another act of concession on her part stays all: she agrees to be present at family worship in her own house—her husband was all this time a leading Covenanter—and promised also to hear sermon; whereupon the sentence was suspended for a time. In August 1649, the minister Reidford reported that she had ‘keepit sermon at Innerkeithing the last Lord’s day, and daily keepit family worship.’ This was not enough. They instruct Reidford ‘to shew her that, if she did not conform in all points, the sentence of excommunication would be pronounced before the next assembly.’ Reidford soon after pleaded for her, that she had heard three sermons; but the brethren ‘thought not that kind of hearing satisfactory.’ They ordained him to put her to a decided test at once, by offering her the Covenant: failing her subscribing that, Reidford was to pronounce sentence.

The lady, with the ingenuity of her sex, contrived once more to put them off—she told Reidford she would take a thought about it. Meanwhile, she amused them with hopes by continuing to attend church; telling them ‘she was not fully satisfied for subscribing the Covenant.’ But even female wit could not hold out for ever against such a siege. In June 1650, after an incessant harassment of fourteen years, she gave them ‘satisfaction’ by subscribing the Covenant, and thus abjuring in words the faith she still held in her heart. Little more than two years had elapsed, when the presbytery learned that she had ‘relapsed to popery,’ and appointed commissioners to confer with

her on the subject. It was found she was now obstinate in her original belief, 'professing, moreover, that she repented of her former repentance more than of any sin that ever she committed, and thought that she had reason to repent all her lifetime for subscribing the National Covenant and Solemn League and Covenant.' Then took place a renewal of the same tedious dealings with the lady, ending at last in 1654, in a peremptory order for her excommunication. By that time, however, excommunication had lost much of its terrors, as Cromwell, then master of Scotland, would not allow the sentence to have any consequences in respect of civil rights.

Many traits of barbarous manners occur in the record, shewing that the clergy had somewhat rough materials to deal with, in their efforts to build up a perfect system. Many offences of a violent, and even sanguinary character, are noticed. There were also several persons so far left to a wicked nature as to hold the dicta of the reverend presbytery itself in contempt. For instance, John Tulloch, on being summoned regarding an irregularity with Elspeth Gordon, answered, 'the devil a care cared he for their excommunication; excommunicate him the morn [to-morrow] if they pleased.' Three witnesses attested regarding James Middleton, that, on his being rebuked by the minister, they heard him say that 'he cared not for him, nor any minister in Scotland;' and when the minister threatened to put him in the *jougs*, they heard him say that 'neither he nor the best minister within seven miles durst do so much.' One William Gordon, in Dumbennan parish, declined (June 1652) the authority of the presbytery, in consideration of the many sad experiences he had had of the usurpation of civil power by the Presbyterian government, and its 'tyrannous persecuting of men's consciences who, out of tender scruples, did differ from their opinions in matters indifferent and circumstantial; as also, finding that the greatest part of their prayer and preaching doth more tender the advancement of their private interest and faction than the propagation of the gospel; and seeing their frequent railing against the authority and civil power which God hath set over us, whereby the people's minds are kept unsettled and averse from the cordial union of both nations, which, by God's great mercy, we are now like to enjoy.' He declared himself separate from them, and that he would 'no more esteem of their excommunication than they did formerly of the pope.' On sentence of excommunication being passed on this recusant, 'he lookit very frowardly, and uttered himself most proudly and maliciously.'

The opinion of the royalist party regarding the general condition of the nation at the time when the Covenanting spirit was at its height is sketched by one of their number. ‘Seven years,’ says he, ‘had this terrible distemper of the unparalleled Covenant ruled, or rather overruled this kingdom.... It was now grown to ane height, and had cast this nation in a new mould, for the laws were rolled up in oblivion, the College of Justice was discharged from sitting, and over all the land the ordinary seats of justice were no more frequented, only the private committees in every shire and county ordained what they list, and must not be controlled, under pain of a fearful plunder. Nor was it right or wrong that must be decided by these committees, but grievous exactions and heavy subsidies, with new stents, almost every quarter, of horse and foot levies.... The poor was not pitied nor the rich respected; the good man was not remembered nor the virtuous man rewarded: only the soldier was in esteem and enriched, who could murder, kill, and oppress.’—*Pa. Gordon*.

1645.

At the same time, the general expressions of the church of the day involve heavy charges against the clergy themselves, partly founded perhaps on actual offences in their case, and partly the result merely of the disposition to think every grace of poor human nature insufficient, in comparison with the ideal religious standard set up. Thus we find the Commissioners of the General Assembly denouncing ‘the enormities and corruptions observed to be in the ministry,’ and making out a list which is difficult to reconcile with our ideas of the boasted golden age of the Scottish Presbyterian polity. There is ‘much fruitless conversing in company,’ ‘great worldliness,’ ‘sighting of God’s worship in families,’ ‘want of gravity in carriage and apparel,’ ‘tippling and bearing company in untimorous drinking in taverns,’ ‘discountenancing of the godly,’ even a want of decent observance of the Sabbath. ‘There are also to be found amongst us [some] who use small and minced oathes.’<sup>[106](#)</sup>

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Notwithstanding the high pressure exercised by the kirk at this time in matters of discipline, we have ample evidence that there were many sad and pestilent escapes

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of human nature, occasioning infinite distress to sessions, presbyteries, and assemblies. There was one old popular institution, called the Penny Bridal, which has been under notice before, as producing a suspicious amount of happiness among the commonalty. The General Assembly now saw proper to launch a solemn act against these merry assemblies, ordaining the presbyteries to put them under the severest restrictions.<sup>107</sup>

Two years after, February 7, 1647, the presbyteries of Haddington and Dunbar are found taking measures for putting this act in force; and from their proceedings, we incidentally learn how far the late religious fervours were from decidedly reforming or purifying manners. Multitudes exceeding twenty assembled on these occasions. The paying of extravagant sums—sums exceeding 12s. for a man and 8s. for a woman (that is, *one shilling* and *eightpence* respectively)—caused great immoralities—‘piping and dancing before and after dinner or supper,’ drinking after dinner, and so forth. ‘Moreover, loose speeches, singing of licentious songs, and profane minstrelling, in time of dinner or supper, tends to great deboshry.’ ‘Through all which causes, penny bridals, in our judgment, become seminaries of all profanation.’ They therefore ordained that not above twenty persons should ever gather on such occasions; that the men should never give above a shilling, and the women eightpence; and that all piping, dancing, singing, and loose speeches, should cease. To make sure that these rules should be observed, it was further ordained that a pair about to marry and to hold a penny bridal, should not have the ceremony performed till they had lodged twenty pounds or other guarantee, to be forfeited in the event of disobedience.<sup>108</sup>

1645.

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The arrangements for the maintenance of a militia in Scotland were fixed by the Estates. Each county and burgh was ordered to raise and maintain a certain number of foot-soldiers (exclusive of horse), according to their respective amounts of population, at £9 Scots per month for each man. The lists are curious, as informing us of the assumed comparative population of the several counties and burghs in that age.

FEB. 27.

COUNTIES.—Aberdeen, 727; Ayr, 674; Argyle, 323; Banff, 159; Berwick, 395; Bute, 51; Caithness, 105; Clackmannan, 58; Cromarty, 11; Dumbarton, 137; Dumfries, 494; Edinburgh, 463; Elgin, 210; Fyfe, 738; Forfar, 556; Haddington, 376; Inverness, 464; Kincardine, 174; Kinross, 16; Lanark, 598; Linlithgow, 194; Nairn, 35; Peebles, 182; Perth, 889; Renfrew, 245; Roxburgh, 642; Selkirk, 142; Stirling, 282; Sutherland, 47; Wigton and Kirkcudbright, 486. BURGHS.—Aberdeen, 160; Aberbrothock, 10; Ayr, 41; Annan, 3; Anstruther Easter, 31; Anstruther Wester, 6; Banff, 8; Brechin, 20; Burntisland, 16; Crail, 24; Cupar, 24; Culross, 12; Cullen, 4; Dumfries, 44; Dunbar, 12; Dumbarton, 12; Dunfermline, 12; Dundee, 186; Dysart, 30; Edinburgh, 574; Elgin, 20; Forfar, 6; Forres, 6; Galloway, 1; Glasgow, 110; Haddington, 36; Jedburgh, 18; Inverkeithing, 10; Inverness, 40; Irvine, 23; Kilrenny, 3; Kinghorn, 14; Kirkcaldy, 46; Kirkcudbright, 20; Lanark, 16; Lauder, 5; Linlithgow, 30; Lochmaben, 3; Montrose, 53; Nairn, 4; North Berwick, 4; Peebles, 10; Perth, 110; Pittenweem, 15; Queensferry, 7; Renfrew, 10; Rothesay, 5; Rutherglen, 5; Sanquhar, 3; St Andrews, 60; Selkirk, 10; Stirling, 36; Tain, 12; Wigton, 15; Whithorn, 5.

1645.

The total number is, for counties, 9873; for burghs, 1879—total, 11,772. If we assume that the aim was to call out one soldier for every sixty souls, the entire population would be 706,320. Edinburgh would have 34,440 inhabitants; Glasgow and Perth, each 6600; Stirling and Haddington, each 2160; Ayr, 2460; Dundee, 11,160; Inverness, 2400; St Andrews, 3600; Dumfries, 2640; Montrose, 3180; &c.

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‘This day, Kelso, with the haill houses, corns, barns, barn-yards, burnt by fire, caused by a clenging of ane of the houses thereof whilk was infected with the plague.’—*Hope’s Diary*.

APR. 1.

The pest appears by this time to have reached Edinburgh. The Town Council agreed (April 10) with Joannes Paulitius, M.D., that he should visit the infected at a salary of eighty pounds Scots per month. A great number of people affected by the malady were quartered in huts in the King’s Park; others were kept at home; and for the relief of these, the aid of the

charitable was invoked from the pulpits. The session of the Holyroodhouse or Canongate parish ordained (June 27) that ‘to avoid contention in this fearful time,’ those who should die in the Park ‘shall be buried therein, and not within the church-yard, except they mortified (being able to do so) somewhat *ad pios usus*, for the relief of the other poor, being in extreme indigence.’

The Estates, then sitting in Edinburgh, were pleased (August 2) to order five hundred bolls of meal to be given from the public magazine ‘for relief of the poor of Leith, which are sorely visited with the pestilence.’—*Bal.*

Under the pressing exigencies caused by the epidemic, the Town Council of Edinburgh came to the resolution (August 13) of liberating those confined for debt in the Tolbooth, obtaining first the consent of creditors. They retained, however, several political prisoners, particularly the Earl of Crawford and Lord Ogilvie, who had signalled themselves by their fidelity to the king. A few weeks after, Montrose having at Kilsyth overthrown the last militia army that had been mustered against him, came to Bothwell, and thence despatched a letter to the Edinburgh magistrates, demanding the liberation of these captives, under threats of fire and sword; and they then completed their jail delivery. The marquis was solely prevented by the plague from advancing and taking possession of the city.

1645.

Among the regulations established during the time of this pestilence was one for preventing people from travelling into any district suspected of being under the influence of the disease. We find it proclaimed, for example, in the parish kirk of Humbleton, August 10, ‘that none presume, either masters or servants, men or women, to go out of the bounds that they dwell, upon whatsoever errand or business, to any suspected place, without special leave of the masters of the ground.’ If any transgressed this order, ‘they shall not be received back to their own houses or dwellings, but their houses shall be locked and closed up.’ No stranger could be received into a house without ‘liberty from the masters of the ground and the kirk-session conjointly.’<sup>109</sup>

On this occurrence of the plague, a Scotch gentleman is found copying and sending to a friend the following specific for the disease, an invention of Dr Burgess:



‘Tak three mutchkins of Malvoysie, and ane handfull of red sage, and a handfull of rue, and boil them till a mutchkin be wasted. Then strain it, and set it over the fire again; then put thereinto ane pennyworth of long pepper, half ane of ginger, and ane quarter of ane unce of nutmegs, all beaten together; then let it boil a little, and put thereto five pennyworth of Mithridate and two of treacle, and a quarter of a mutchkin of the best Angelic water.

*‘Keep this all your life, above all bodily treasures.* Tak it always warm, both morning and evening, ane half spoonfull if ye be in health, and one or two if ye be infected; and sweat thereupon.

‘In all your plague-time, under God, trust to this; for there was never man, woman, nor child, that this deceived.

‘This is not only for the common plague which is called the Sickness, but also for the small-pox, missles, surfeat, and divers other diseases.’<sup>[110](#)</sup>

It is understood that those who died by the plague were usually buried in places apart from churchyards, from an apprehension that the infection might burst out and spread, if the graves should be reopened. We find that the Estates ordained (August 4), ‘since that it pleased God to call the Laird of Craigies of the pest, who was lodged in the sheriff-clerk’s house, that these that are within the house shall inter him in a remote place of the ordinary burial-place of the town.’—*Bal.* In the parish of Cramond, there are four graves of victims of the plague, in solitary situations; two of them at a place called the Whinny Haugh, in King’s Cramond Park, marked with small head-stones, on which are these inscriptions: ‘Here lies Janet Dalmahoy, who deceased the 20th of October 1647,’ and ‘Here lies John D——, who died the 20th of November 1647.’<sup>[111](#)</sup>

1645.

On this occasion, the pest lingered in the country for a considerable time. It was in full force in Glasgow towards the close of 1646. The infected were either shut up in their houses or sent out to a muir at some distance from the town. ‘December 12, compeared the haill tacksmen of the mill, ladles, tron, and brig,’ complaining to the Council that, ‘in respect of the sickness and visitation, they could get naething of their duties.’ Graves of persons who were suspected of having died of pest were ordered to be marked. The

disease does not appear to have entirely ceased in Glasgow till October 1647.—*M. of G.*

An anecdote illustrating the terrors inspired in private circles by the plague, is related with regard to this occurrence of the disease, in the memoir of the Stewarts of Coltness by Sir Archibald Stewart Denham of Westshield, a gentleman born in 1683. Speaking of Sir Thomas Stewart, he says: ‘A remarkable incident happened him in his youth, when the pestilence broke out in Edinburgh in 1645. He with a son of Westshield, a merchant apprentice, had gone to a public-house, and received change of some money, and next day that house was shut up, as infected with the plague. This gave a strong alarm at home. James Denham was sent for, and both were strictly examined as to every circumstance. Thomas had received the money in change, and so frightened were all, that none would touch the pocket in which the money was, but at a distance; and after the pocket was cut out, it was with tongs cast in a fire, and both lads were shut up in a bed-chamber, sequestered from all company, and had victuals at proper times handed into them. While they thus stood their quarantine, by strength of imagination or power of fancy, some fiery spots broke out on their arms and thighs, and they imagined no less than unavoidable death. They mutually lamented; Thomas had more courage and Christian resignation than his companion. “James,” said he, “let us trust in God and in the family prayers, for Jesus’ sake, who, as he cures the plague of the heart, can, if we are infected, cure the most noisome disease of the body.” They both went to their knees, and joined in most solemn prayer, had much spiritual comfort, and in a fortnight were set at liberty, and the family retired to the country.’<sup>112</sup>

As far as appears, the plague did not visit Scotland after this time—a circumstance the more remarkable, as it was so deadly in London in 1665, and even reappeared there in the ensuing year. In connection with the plague, the tale of Bessie Bell and Mary Gray has obtained a large currency in Scotland. According to a report on the subject, communicated to the Antiquarian Society in 1781 by Major Barry of Lednoch,<sup>113</sup> the incident took place in the year 1666; but this is probably a mistake, arising from an assumption that the last great pestilence of London was general over the country (1665 being further mistaken for 1666). Major Barry says:

‘When I first came to Lednoch, I was shewn (in a part of my ground called the Dronoch Haugh) a heap of stones almost covered with briers, thorns, and fern, which they assured me was the burial-place of Bessie Bell and Mary Gray.

‘The tradition of the country relating to these ladies is, that Mary’s father was Laird of Lednoch, and Bessie Bell’s of Kinvaid, a place in this neighbourhood, and an intimate friendship subsisted between them: that, while Miss Bell was on a visit to Miss Gray, the plague broke out in the year 1666; in order to avoid which, they built themselves a bower about three-quarters of a mile west from Lednoch House, in a very retired and romantic place called Burn Braes, on the side of the Beanchie Burn. Here they lived for some time; but the plague raging with great fury, they caught the infection (it is said) from a young gentleman who was in love with them both. He used to bring them their provision. They died in this bower, and were buried in the Dronoch Haugh, at the foot of a brae of the same name, and near to the bank of the river Almond. The burial-place lies about half a mile west from the present house of Lednoch [now called Lyndoch].’<sup>114</sup>

1645.

The major adds: ‘I have removed all the rubbish from this little spot of classic ground, enclosed it with a wall, planted it round with flowering shrubs, made up the grave double, and fixed a stone in the wall, on which are engraved the names of Bessie Bell and Mary Gray.’

It will be found that while the plague raged in London in 1665, Scotland was free of it; neither is there any notice of the malady occurring in 1666, either in Lamont’s or Nicol’s Diary, where it could not have failed to be mentioned if it had occurred. It therefore seems necessary to place the story of Bessie Bell and Mary Gray under 1645.<sup>115</sup>

The sad fate of the two girls became the subject of a ballad, which commenced thus:

‘Bessie Bell and Mary Gray,  
They were twa bonnie lasses,  
They biggit a bower on yon burn brae,  
And theekit it ower wi’ rashes.’

The rest has been lost, except the concluding stanza:

‘They wadna lie in Methven kirk-yard,  
Amang their gentle kin;  
But they wad lie in Dronoch Haugh,  
To beek fornent the sin.’<sup>116</sup>

A set of ‘malignants’ intruded themselves into the magistracy of Glasgow, ‘and at the very same time did the pestilence arrive in the town.’ Spreull, the town-clerk, with Mr George Porterfield and Mr John Graham, had to go to Edinburgh to complain of this intrusion before the Estates. During the winter, while they were absent, the plague was so severe, that the malignants would fain have been quit of the magistracy. ‘In February 1648,’ says Spreull, ‘having carried the point at the parliament, we came home and were reponed; whereupon, though there were several hundreds of families shut up for the sickness, yet for twenty days after, there died not so much as one person thereof, and frae thenceforth it did abate till it evanished.’<sup>118</sup>

1646. OCT.

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A letter of this date, from James Morphie, tailor in Edinburgh, to the Earl of Airly, has been preserved, and is in its way a curious memorial of the past. When found a few years ago in Cortachie Castle, it contained five pieces of cloth, being, we may presume, those alluded to by the writer, and all as fresh as on the day they were cut.

1647. SEP. 17.

‘RIGHT HONOURABLE LORD—I received your lordship’s letter, and have tried for the nearest swatches of cloths I could find, conform to the orders received, and has enclosed them in this letter, with the prices written by them. As for the Kentish cloths your lordship desired, there is few or none to be found; but we expect some to be home shortly. There is only ane swatch of Kentish cloth here, with the price thereof. Likewise receive the piece that was taken out of the tail of your lordship’s doublet. Any of thir clothes your lordship pleases, send for them by the first occasion, or [ere] they be gone. Not

1647.

troubling your lordship ony forder, but rests your lordship's humble and obedient servant, JAMES MORPHIE. From Edinburgh, the 17 day of September 1647. [Addressed] For the Right Honourable the Earl of Airly.'

The letter and pieces of cloth were placed in the Arbroath Museum.<sup>119</sup>

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'Two years before this, one Captain George Scott came to Inverness, and built a ship of a prodigious bigness for bulk and burden—never such a one seen in our north seas. The carpenters he brought with him to the north, and my Lord Lovat gave him wood—fir and oak—in Dalcattack Woods. I myself was aboard of her in the Road of Kessock, April 1645, and many more, to whom it was a wonder. She set sail the day before the battle of Auldearn; and among other passengers that went in her south were—Colonel Fraser, and his lady, Christina Baillie; Hugh Fraser, younger of Clanvacky, and Andrew Fraser in Leys; also John and William Fraser in Leys. This ship rode at anchor in the river mouth of Nairn, when the battle of Auldearn was fought in view. Captain Scott enlarged the ship afterwards, as a frigate, for war, and sailed with her to the Straits, his brother William with him. William was made a colonel, at Venice, and his martial achievements in defence of that state against the Turks may very well admit him to be ranked amongst our worthies. He became vice-admiral to the Venetian fleet, and the bane and terror of Mussulman navigators. Whether they had gallies, galloons, or galliasses, or great war-ships, it was all one to him. He set upon all alike, saying, the more they were the more he would kill, and the stronger the rencounter should be, the greater should be his honour, and the richer his prize. He oftentimes so scourged the Archipelago of the Mussulmans, that the Ottoman power, and the very gates of Constantinople, would quake at the report of his victories; and he did so ferret them out of all the creeks of the Adriatic Gulf, and so sharply put them to it, that they hardly knew in what part of the Mediterranean they should best shelter themselves from the fury of his blows. He died in his bed of a fever, in the Isle of Candy, in 1652. He was truly the glory of his nation and country, and was honoured, after his death, with a statue of marble, which I saw, near the Rialto of Venice, April 1659.'—*Fraser of Wardlaw's MS.*, 1666.

1647.

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Amongst those who looked ill upon the expedition which the Duke of Hamilton was preparing for the relief of the king in England, was his Grace's own parish minister at Hamilton, Mr James Naismith. Wodrow records, as a traditionary story, that, on the Sunday before the Duke went to England, Mr Naismith preached before his Grace on the text: 'Weep ye not for the dead, neither bemoan him: but weep sore for him that goeth away: for he shall return no more, nor see his native country,' *Jer.* xxii. 10. The preacher said that God would regard neither dukes nor generals, and as sure as the Bible was the word of God, any who went on in a course of opposition to him, should not return in peace. 'On the Monday after, when the duke was leaving Hamilton, there was a crowd of women looking on. Mr Naismith said: "Hold him! hold him! for you will never see his face any more." The Duke at his death in England,<sup>[120](#)</sup> said he would give never so much to see his own faithful minister, Mr Naismith.'—*Wod. An.*

1648. JUNE.

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The Shorter Catechism recently framed by the Westminster Assembly of Divines, for the instruction 'of such as are of weaker capacity,' and which has since been in constant and universal use in Scotland, was this day sanctioned by the General Assembly, sitting in Edinburgh.

JULY 28.

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Oliver Cromwell paid his first visit to Edinburgh. He came hot from the destruction of the Duke of Hamilton's semi-royalist Scotch army at Preston, designing to confer with the heads of the ultra-presbyterian party for the extinction of that kind of opposition in the northern part of the island. The Earl of Kirkcudbright and Major-general Holburn conducted him into the city, where he was lodged very handsomely in the Earl of Moray's house in the Canongate; a strong guard *of his own troops*

OCT. 4.

1648.

was mounted at the gate. ‘The Earl of Moray’s house,’ says Thomas Carlyle, ‘still stands in the Canongate, well known to the inhabitants there—a solid spacious mansion, which, when all bright and new two hundred years ago, must have been a very adequate lodging.’ ‘As soon as he came there, the Chancellor [Loudon], the Marquis of Argyle, the Earl of Cassillis, the Lord Burleigh, the Provost of Edinburgh,<sup>121</sup> with many other lords and gentlemen, went to pay their respects to him; and the next day, the Earl of Cassillis and Sir Archibald Johnston of Warriston went to visit him on the part of the Committee of Estates, to know what he had to communicate to them. Cromwell presented them a writing, whereby he demanded that, in order to keep Hamilton’s party from being able to rise up again in Scotland, where they might embroil the two kingdoms, they would be pleased to order that none of those who had carried arms under his command, or who had consented to the invasion of England, should have any public employment in Scotland. The committee granted him that article.’ Such was the ostensible, and, as far as appears on any good evidence, the real business between Cromwell and the committee men. Bishop Guthrie adds the vulgar royalist rumour: ‘While Cromwell remained in the Canongate, those that haunted him most were, besides the Marquis of Argyle, Loudon the chancellor, the Earl of Lothian, the Lords Arbuthnot, Elcho, and Burleigh; and of ministers, Mr David Dickson, Mr Robert Blair, and Mr James Guthrie. What passed among them came not to be known infallibly; but it was talked very loud, that he did communicate to them his design in reference to the king, and had their assent thereto.’

Cromwell was only three days in Edinburgh on this occasion. On Saturday, all business being adjusted, “‘when we were about to come away, several coaches were sent to bring up the lieutenant-general, the Earl of Leven [governor of the Castle and Scotch commander-in-chief], with Sir Arthur Haselrig, and the rest of the officers, to Edinburgh Castle; where was provided a very sumptuous banquet [old Leven doing the honours], my Lord Marquis of Argyle and divers other lords being present to grace the entertainment. At our departure, many pieces of ordnance and a volley of small shot was given us from the Castle; and some lords convoying us out of the city, we were parted.” The lord provost had defrayed us all the while in the handsomest manner.’—*Carlyle*.

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To the fall of this year is to be traced the origin of the term *Whig*, as applicable to a well-known party in the state. Burnet, who was likely to know the facts well, makes the following statement: ‘The south-west counties of Scotland have seldom corn enough to serve them round the year; and the northern parts producing more than they need, those in the west come in the summer to buy at Leith the stores that come from the north. From a word Whiggan, used in driving their horses, all that drove were called the *Whiggamores*, and, shorter, the *Whigs*.... After the news came down of Duke Hamilton’s defeat, the ministers animated their people to rise and march to Edinburgh; and they came up marching on the head of their parishes, with an unheard-of fury, praying and preaching all the way as they came. The Marquis of Argyle and his party came and headed them, they being about 6000. This was called the Whiggamores’ Inroad [strictly the *Whigs’ Raid*]; and ever after that, all that opposed the court came in contempt to be called Whigs.’

1648.

We find John Nicoll, the diarist, in 1666, speaking of the west-country Presbyterians as ‘commonly called the Whigs,’ implying that the term was new. The sliding of the appellation from these obscure people to the party of the opposition in London a few years later, is indicated by Daniel Defoe as occurring immediately after the affair of Bothwell Bridge in 1679. The Duke of Monmouth then returning from his command in Scotland, instead of thanks for his good service, found himself under blame for using the insurgents too mercifully. ‘And Lauderdale told Charles, with an oath, that the Duke had been so civil to the Whigs, because he was himself a Whig in his heart. This made it a court-word; and in a little while, all the friends and followers of the Duke began to be called *Whigs*.’<sup>[122](#)</sup>

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The time of the *Whigs’ Raid*, and from that to the execution of Montrose (May 1650), may be considered as that of an entire supremacy of the religious or rather ecclesiastical system for which the majority of the nation had been struggling for several years. The view of it taken by the royalists is sketched in strong terms by the writers on their side. ‘The kingdom groaned under the most cruel tyranny that ever scourged and afflicted the sons of men. The

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jails were crammed full of innocent people; the scaffolds daily smoked with the blood of our best patriots. The bones of the dead were dug out of their graves, and their living friends were compelled to ransom them at exorbitant sums. Such as they were pleased to call Malignants were taxed and pillaged at discretion. The Committee of the Kirk sat at the helm, and they were supported by a small number of fanatical persons and others who called themselves the Committee of Estates, but were truly nothing else but the barbarous executioners of their wrath and vengeance. Nor were they ill satisfied with their office, on account of the profits it brought them by fines, sequestrations, and forfeitures, besides the other opportunities it gave them of amassing riches. Every parish had a tyrant, who made the greatest lord in his district stoop to his authority. The kirk was the place where he kept his court; the pulpit, his throne, or tribunal, from whence he issued his terrible decrees; and twelve or fourteen sour enthusiasts, under the title of elders, composed his council. If any, of what quality soever, had the assurance to disobey his edicts, the dreadful sentence of excommunication was immediately thundered out against him, his goods and chattels confiscated and seized, and he himself being looked upon as actually in the possession of the devil, and irretrievably doomed to eternal perdition, all that conversed with him were in no better esteem.'

The moderates involved in the late expedition of Duke Hamilton for the king, were now brought to punishment. 'They compelled every one that escaped to sit several Sundays in sackcloth before them, mounted, as a spectacle of reproach and infamy, upon the stool of repentance in view of "the elect," and to undergo such other penance as they were pleased to impose.'<sup>[123](#)</sup>

Amongst the penitents was the Chancellor Earl of Loudon, of whom it was scarcely to have been expected that he should join in the Engagement. His submission is alleged by Burnet to have been enforced by his wife, a high Covenanter and an heiress, who threatened him with a process for conjugal unfaithfulness, 'in which she could have had very copious proofs.' So he made a public repentance in the church of Edinburgh, 'with many tears confessing his weakness in yielding to the temptation of what had a show of honour and loyalty.'

## **INTERREGNUM: 1649-1660.**

The execution of the king, among its other bad effects, put enmity between the ruling powers of Scotland and England. A set of Scottish commissioners protested against it before the English parliament—were slighted, and turned out of the country under a guard. The leaders at Edinburgh, notwithstanding their condemnation of the late ‘Engagement,’ upheld monarchy in principle; and therefore, while England was declaring itself a commonwealth or republic, Scotland proclaimed the late king’s son—a youth of nineteen, living in exile—as Charles II., King of Great Britain, France, and Ireland. At the same time, the Scots were determined not to receive the young king as their sovereign, or to befriend him in any way, until he should have accepted that Solemn League and Covenant, which proclaimed a crusade against all doctrine inconsistent with pure Presbyterianism.

With this difference as to a principle, Scotland was, in 1649 and the early part of 1650, as purely a republic as England. The state authority rested, as it had practically done for years past, in a standing Committee of Estates, in which the Marquis of Argyle, the Chancellor Earl of Loudon, and Sir Archibald Johnston of Warriston, were the most prominent figures. Religion, however, being the chief matter of concernment in those days, it naturally came about that a similar standing committee, called the Commission of the Kirk, had a great influence in public affairs. Under the excitement produced by the struggle against the late king, these ruling parties, as well as the people at large, had contracted an exclusive and overweening attachment to Presbyterianism and its objects, as expressed in the Solemn League, insomuch that no person could be allowed to remain at peace without signing that document; while to give it adherence and support was to manifest the highest of virtues, or rather, to do that which was held as a summary of all virtue. The racking concentration of attention on one subject during a long course of years, to the neglect of all other healthy objects—the constant temptation to dissimulation under a constraint which left no choice between avowed profession and moral and legal outlawry—the effects of an ultra-austere code of morals, which allowed no excuse for

natural impulses—the confounding effect of a system which subordinated all the really weighty matters of the law to the mechanical fact of a signature—produced results on the general surface of society of a kind by no means pleasant to contemplate. There was throughout a sad want of the milder graces of Christianity. The miraculous workings of divine vengeance against the opponents of the children of Israel, and against apostates and idolaters among themselves, were dwelt on in every pulpit and in numberless publications, with constant application to those who went against the Covenanted work. The breathings of divine love in the sermon on the mount, and in the whole life of Jesus, were little, if ever, heard of.

One thing must clearly be admitted in regard to the conduct of the Scots following upon the death of Charles I., that it was marked by a consistency speaking much more of sincerity than of wisdom. Though conscious that they could not command a sixth part of the force which England could muster—though the *Engagement* had shewn what it was to meet the veterans of Edgehill and Naseby in the field—they did not scruple to do that which was sure to incur a war with the young republic, because so they wrought out the plan of the Covenant, to which they had sworn, and so did they believe they would advance the glory of God.

Commissioners sent to the young king at the Hague negotiated for his coming to Scotland as their Covenanted monarch. He would fain have evaded the condition; but on that point no concession could be made. He, therefore, while the treaty was going on, was induced to sanction a descent upon Scotland, which Montrose had planned, with a view to raise the royalists. In the spring of 1650, the marquis, furnished with a royal commission, landed in Orkney, with a handful of German soldiers and some arms and ammunition. Advancing through Ross-shire with about fifteen hundred men, he utterly failed to meet the support which he expected. A body of troops sent against him under Colonel Strachan, fell upon his little army in Strathoikel, and quickly routed it. The unfortunate commander fled into Assynt—was given up by a treacherous friend, and, being then brought to Edinburgh, was there hanged as ‘an excommunicat traitor’ (May 21, 1650).

Seeing no better course now open to him for the recovery of his kingdoms, Charles agreed that, on coming into Scotland, he should sign the Covenant. The Scotch leaders, with their knowledge of his concern in Montrose’s

expedition, should have seen that he could be no sincere adherent of that bond. They should have scrupled to accept such a signature, or even to ask it. But it was just one of the unfortunate consequences of the worship that had come to be paid to this document, that adherences to it were demanded, nay, forced, without any regard to conscientious objections, and accepted in the face of the most glaring proofs that it was secretly protested against and hated, and would on the first opportunity be thrown aside. Accordingly, a young prince, wholly a man of pleasure, is now seen giving a false vow to a body of earnest religious men, who had every reason to know what the votary felt, meant, and Mould ultimately do in the case. Charles landed at the mouth of the Spey, and was received with all outward appearances of respect by the Scottish leaders and the chief divines, while they trusted him with no real power. He visited Aberdeen, Perth, and Stirling, everywhere a mere puppet, and much at a loss, it is said, to endure the long sermons to which his situation compelled him to listen.

Cromwell, fresh from the reduction of Ireland, came into Scotland with an army in July, to put down this movement. A large force was prepared by the Scots, and placed in front of Edinburgh. It might have been larger, if the leaders, in their extreme zeal for purity of religion, had not deemed it proper to reject all who were yet unreconciled to the church for their concern in the Engagement, as well as all pure royalists. Cromwell, after all, found the campaign less simple than he anticipated. Distressed by want of provisions and by sickness, he was even inclined to withdraw along the east coast. But the Scottish army posted on the Doon Hill, near Dunbar, made such a movement impossible. In these circumstances, he must soon have been brought to a capitulation. But the imprudence of the Scottish leaders, in forcing General Leslie to attack the English, proved his salvation. He gained a complete victory (September 3), killing three thousand, and taking several thousand prisoners, many of whom were sent to the plantations as slaves. Edinburgh and its Castle fell into his hands, along with most of the southern provinces.

The Scottish government gathered the remains of its strength at Stirling, and was soon able again to present a respectable front to Cromwell, though only by admitting to its leaguer those troops, Engagers and royalists, who had formerly been rejected. The determination of the leaders was marked by a formal crowning of the king at Scone (January 1, 1651), the Marquis of

Argyle putting the emblem of sovereignty on the royal head. By this time, the eyes of many had been opened to the false position in which the country lay with respect to their former associates of England, and some began to fraternise with Cromwell. A division took place in the church regarding the king, some adhering to certain *resolutions* in his favour, others protesting against them; hence respectively called *Resolutioners* and *Protesters*. From this time, the latter party, called also *Remonstrants*, embracing the great bulk of those who took the most scrupulous views regarding the Covenanted work, proved a sore thorn in the side of the more moderate party, who for the meantime had gained an ascendancy. After a long inactivity, Cromwell, in July 1651, made a movement to Perth, so as to threaten the Scottish army in rear, but left a way open into England. At the urgency of the king, who hoped for assistance in the south, the Scots marched across the west border, and advanced through Lancashire, hotly followed by Cromwell. In a well-contested and bloody action at Worcester (September 3, 1651), the Scottish army was utterly routed; and Charles with difficulty escaped abroad, Scotland had now expended nearly the whole of her military strength in a vain endeavour to support her ecclesiastical system, in connection with a limited monarchy, against the English commonwealth. Her towns and principal places of strength fell into the hands of the English troops. The Committee of Estates were surprised and taken prisoners at a place called Alyth, on the skirts of the Grampians. The General Assembly was dispersed, and no church-courts above synods were allowed to meet. Henceforth, the Resolutioners and Remonstrants, the moderate majority and furious minority of the church, were allowed to gnaw at and tear each other to pieces, with little result but that of making many calm men despair of peace under such a mode of church-government. With little ceremony, the country was declared to be united with England. In 1653, the remnants of the party friendly to royalty drew together in the Highlands under the Earl of Glencairn and Lord Kenmure, and for upwards of a year, under these nobles, and latterly under General Middleton, with the assistance of certain clans, they were able to maintain their ground. At length, even this guerrilla opposition ceased. Eight thousand English troops and four forts—at Ayr, Leith, Perth, and Inverness—proved sufficient to keep our ancient kingdom in subjection. The essentially aggressive spirit of the Solemn League was revenged by nine years of humiliation, during which all classes seem to have suffered, but especially the nobles, who were

ground to the dust by heavy fines. It is admitted, nevertheless, that the country was benefited by the keeping down of the religious factions, as well as by the impartiality of a corps of English judges, who superseded the native bench.

During the greater part of this time, Cromwell was the undisputed ruler of Scotland, as well as of England and Ireland. At length, after his death in 1658, confusion and difficulty were renewed, and to these an effectual stop was not put till, by the happy intervention of General Monk, Charles II. was restored as king (May 1660).

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In the early part of this year, the Scottish Estates are found engaged in various objects of apparently a contradictory character. They were eager, through their commissioners in London, to save the king's life; so much so that, on some one proposing that they should wait over three or four days for a general fast, the idea was overruled in favour of the immediate employment of worldly means. They were at the same time bringing to punishment, or scarcely less penal repentance, thousands of people who had taken arms for the king in the preceding year. After Charles I. was no more, they sat on under the sanction of the name of 'our sovereign lord Charles II.,' and yet if that sovereign lord had ventured to set his foot on Scottish soil, it is most probable that he would have been immediately made a prisoner and treated as a dangerous person. The truth is, the powers now in the ascendant were only monarchists in subordination to a superior principle, which had in view the establishment of a perfect Presbyterian church, as meditated in the Solemn League and Covenant. While they so far favoured Charles I., then, as not to desire his death, they regarded as wholly mischievous all who had befriended or proposed to befriend him or his son on other terms than an adherence to the Covenant.

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The Highlanders were not sensible of these refining distinctions. They rose in a considerable body in February under Thomas Mackenzie of Pluscardine, a brother of the Earl of Seaforth; professing only a desire to restore the king. This little band took Inverness, but was soon put down. The only effect was,

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that the ruling powers now wreaked vengeance on their old opponent, the Marquis of Huntly, who had been a pining prisoner in Edinburgh Castle for sixteen months, and was not likely to have long troubled them, since he was manifestly dying of a dysentery. We have seen this noble entering life as Master of the king of France's Scottish guard. A great prince he was in the north. Through the whole civil war, he had been constant to the king as simply the king, but had not always acted with consummate prudence. Now comes at length an evil day for the House of Gordon, when the wrath accumulated against it for its seventy years' opposition to a 'truth' which it could never appreciate, must be discharged. It might have been expected that the Marquis of Argyle, who was Huntly's brother-in-law, and to appearance all-powerful, would interfere to save him. To that end, his sister, the Marchioness of Douglas, and his three daughters—the Lady Drummond, the Lady Seton, and the Countess of Haddington, went and threw themselves on their bended knees before Macaleinmore. He declined to meddle with what the parliament had decreed, the truth being, that no lay power was then able to stand against an object on which the leading clergy had set their hearts. The poor ladies pleaded even to have a respite of a few days, hoping that nature would save their brother and parent a public and cruel death; but even this boon could not be obtained. On the 22d of March, the marquis is brought down from his airy prison, along the High Street of Edinburgh, clad in the deepest mourning, very weak in body, we are told, but cheerful in spirit, as not wishing to live after his master was gone, and placed on a scaffold at the Cross, where the Maiden stands prepared to receive him in her dismal embraces. He writes a few lines to his children, and speaks a few sentences to the multitude. The gleaming axe descends, and the noble of a score of illustrious titles is no more.<sup>124</sup>

After all, the Highlanders were not disposed to be at peace. One Sunday in May, about fifteen hundred Mackenzies and Mackays came over the Kessock Ferry to Inverness, while the people were at church, and proceeded to great insolencies. 'Instead of bells to ring in to service,' says a clergyman who was present, 'I saw and heard no other than the noise of pipes, drums, pots, pans, kettles, and spits in the streets, to provide them with victuals in every house. In their quarters the rude rascality would eat no meat at their tables, until the landlord laid down a shilling Scots upon each trencher, terming this *argiod cagainn*, or chewing money, which every soldier got, so insolent were they.' This doughty band was in a few days half cut to pieces

by two troops of horse under Colonels Strachan and Kerr, and about a thousand of them came back as prisoners to Inverness, where, ‘those men who, in their former march, would hardly eat their meat without money, are now begging food, and, like dogs, lap the water which was brought them in tubs and other vessels in the open streets.’<sup>125</sup> Such are amongst the scenes proper to a time of civil broil.

The clergy were sensible of the benighted state of the Highlands, and longed to see the Gael brought to a sense of the beauty of a pure faith. As one small effort towards the object, the General Assembly ordained a collection to be made for the purpose of keeping forty Highland boys at school. It appears, however, that very little was efficiently done for the education of youth in the Highlands, till fully a century later. Dr Shaw, in his *History of the Province of Moray*, published in 1775, makes the remarkable declaration: ‘I well remember when from Speymouth (through Strathspey, Badenoch, and Lochaber) to Lorn *there was but one school*—viz., at Ruthven in Badenoch; and it was much to find, in a parish, three persons that could read and write.’

A perfect accord reigned between the clergy and the Estates, the latter ratifying whatever the former required.

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A seasonable testimony against the sins and dangers of the times being issued by the church-commission, the Estates passed an act responding to it, ‘heartily concurring in the grounds thereof against toleration and the present proceedings of the Sectaries in England;’ declaring for ‘one King, one Covenant, one Religion;’ promising all strenuous endeavour for ‘the settling truth and peace in these kingdoms upon the propositions so often agreed to’—that is, by the forcible putting down of every profession in England and Ireland but that of pure Presbyterianism. At the request of the church, lay patronages were abolished, and acts were passed imposing capital punishment on blasphemy, the worship of false gods, and incest. The church had for some time been under great concern about ‘the growth of the sins of witchcraft, charming, and consulting,’ and it now appointed a conference of ministers, lawyers, and physicians, ‘to consider seriously of that matter, and advise therein amongst themselves,’ and afterwards report. The Estates, fully entering into these views, passed an act not expressly against witchcraft, for that had been done, as we have seen, so long ago as Queen Mary’s days, but to meet



the fact that there are people who consult devils and familiar spirits, thinking to escape punishment because consulters of spirits are not mentioned in the former act. For this reason, the parliament enacted the punishment of death to ‘consulters,’ at the same time ratifying ‘all former acts against witches, sorcerers, necromancers, and consulters with them, in the whole heads, articles, and clauses thereof.’<sup>126</sup>

The perfect simplicity and earnestness of all this is, in the conception of the author, as certain as its being obviously short of the better wisdom and better temper of our own time. The evil effects of the pursuit of rigorous extremes in state policy, in religious doctrine, and in ecclesiastical systems, had not then been experienced. No one yet dreamed of there being any harm in intolerance, but, on the contrary, it seemed a sin and a scandal to omit any means which promised to compel the wandering to come in. As to witchcraft and consulting, which we have learned to regard as imaginary offences, it was enough for the jurist of the seventeenth century that these *words* were entered in the Levitical law as descriptive of crimes deserving punishment.

One direction in which the earnestness of the time more especially projected itself, was towards an absolute exclusion of all shortcoming in religion, or even in what might be called church politics. Not only did an act of parliament thrust out of offices and places of trust all who had been in the slightest degree concerned in the Engagement—who must have been a large portion of the middle and upper classes of lay society—but the church-courts were equally unsparing of any clergy who had touched the unclean thing, or proved at all slack in faith and zeal. As a specimen—In September, a ‘visitation’ sat at the appointment of the General Assembly in the synodal province of Angus and Mearns, under the moderatorship of Mr Andrew Cant. It called several ministers of twenty years’ standing before it to preach, that there might be trial of doctrine and efficiency. In all, eighteen ministers were deposed, on the ground of insufficiency, ‘silence during the time of the late Engagement,’ ‘famishing of congregations,’ and corruption of life or doctrine.—*Lam.* This was only one of ‘diverse commissions’ which had gone east, west, north, and south, as Robert Baillie expresses it, and ‘deposed many ministers, to the pity and grief of my heart; for sundry of them might have been, for more advantage every way, with a rebuke,

kept in their places; *but there was few durst profess so much.*' In short, as invariably happens in revolutions and times of danger, an institution professedly of a popular cast was ruled by this Mr Cant and two or three of his fellows, with as uncontrolled a power as usually belongs to institutions of an avowedly despotic character; and, doubtless, unavoidably so. It is at the same time evident that large numbers of individuals could not thus be made to suffer for merely sentimental offences, without some perilous consequences. It only afforded too good a precedent, as well as excuse, for retributory acts of the same kind after a reaction had set in. It is clear that the throwing of so many people out of their ordinary means of livelihood must have added not a little to the distresses of a time which, from natural as well as political causes, was one of general suffering.

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Among the persons of some figure who had taken part in the Engagement, and were consequently liable to punishment at the hands of the now triumphant Whiggamores, was Mr Robert Farquhar, a rich Aberdeen merchant (provost of the city), who had at an earlier period been a most serviceable friend to the Covenanting cause, in as far as he helped it with large sums of money. In 1640 and 1641, he had advanced to the leaders 'far more than he was worth:' they ordered him to receive £4000 of the 'brotherly assistance' money paid by the English parliament to the Scots at the close of the first troubles; and this sum he brought down to Burntisland by sea, at great hazard from pirates; when no sooner had he arrived, than the Covenanting leaders forcibly borrowed the money again from him to supply the urgent necessities of the state. At the end of the second troubles in 1647, the debt of the state to Robert Farquhar was £133,132 Scots; and the parliament passed an act appointing him to receive, as to account, £5000 sterling of the second instalment of £200,000, then to be paid by the English parliament to the kingdom of Scotland. Two years, however, passed on, without anything being realised, and by accumulation of interest, the debt had reached the enormous sum of £180,859 Scots, so that Farquhar was much distressed in his affairs.

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We can readily imagine the feelings of a government creditor to so large an amount, who had done something that usually provoked *fin*es on the part of that government, on his receiving a summons to come to Edinburgh. He prepared to obey with fear and trembling; but the extraordinary sagacity attributed to the citizens of Aberdeen did not desert him. Near by, lived Mr Andrew Cant, the minister of his native city, whom he knew to be influential with the Committees ruling in Edinburgh. On the Sunday evening preceding the Monday morning on which he was to take horse for the south, he caused his wife to prepare a good supper, to which he proceeded to invite Mr Cant, for, as has been already intimated, Sunday-evening entertainments were among the domestic institutions of the age. The remainder of the story may be given in the words of the contemporary narrator. Mr Andrew, he says, ‘refuses to come once, twice; at last Mr Robert resolves with himself to have him at any rate, and forthwith goes to his house himself and very earnestly, in submissive and humble terms, entreats him to let him be honoured with his company at supper. The minister refuses, in respect of the coldness of the night. He still urges him to go, and he should find ane sure antidote for any cold. At last, being overcome by Mr Robert’s importunity, he goes home with him—all this time it is observable how he called him no other but still Mr Robert—and being set by the fire, and made very welcome, Mr Robert goes to his closet, and brings to the hall a gown of black velvet, lined with martricks, and would have Mr Andrew put it on, which, with small entreaty, he did. (Thereafter, in all his discourses, he calls him either provost or commissary, and not Mr Robert.) So, having supped, and made a plentiful meal, and being again set by the fire, Mr Robert asks the minister if he had any service to command to Edinburgh, for he was cited to appear there, before the parliament, to make his accounts, and therefore besought Mr Andrew that he would recommend him to some of his most confident friends; which he promised to do. At last, bedtime drawing near, Mr Andrew rises to begone, and would have casten off the gown; but Mr Robert entreated him not to do so, nor wrong him that far, in respect he had brought him from his own warm house, in so cold and rigid a night, to partake of so homely fare, for no other end but to bestow that chamber-gown upon him, as befitting his age and gravity.... Such as it was, he humbly entreated him to accept of it, as an assurance and token of his love and affection to him; which Mr

Andrew did without more ceremonies. So Mr Robert did accompany him home, with his gown on his shoulders, and at parting Mr Andrew told him “he should not do weel to go without his letters.” He said he would not. Tomorrow he gets his letters, one to Argyle, another to Loudon, and the third to the Register Warriston, with two to some ministers, which made him welcome to Edinburgh, and afterwards to dance about that fire which, as he feared, should, if not burned him, at least scalded him very sore.’<sup>127</sup>

On the 1st of August, the Estates passed an act acknowledging Farquhar’s enormous debt, and arranging for its reduction by the payment to him of the third of all the fines imposed on delinquents north of the Tay; so that, instead of having his own feathers plucked, he was invested with a power of plucking others. In the subsequent year, he received the honour of knighthood from Charles II.

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It is worthy of notice that a few wealthy merchants like this Mr Robert Farquhar (another of great note was Sir William Dick of Edinburgh, afterwards to be noticed)

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had proved the principal means of fitting out the Covenanting troops on several occasions. The register of parliament is swelled at this time with their claims, and the efforts of the government to give them satisfaction. The meagre Excise revenue, which never perhaps reached thirty thousand pounds, was pledged and forestalled to the teeth. One other resource much looked to was that of the fines imposed on gentlemen who had shewn disinclination to the good cause. It must be observed, that to have failed to subscribe any sort of declaration of opinion that was required, to have, above all, refused a signature to the Covenant, even to dally under a summons to appear before one of the revolutionary committees, inferred a severe pecuniary exaction. Thus the war was made in some degree to support itself, but not the less of course to the general impoverishment of the country.

As an illustrative case—exhibiting this oppressive mulcting system, and that general interference with personal liberty which the revolutionary government (by

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the unavoidable necessity, we may admit, of its position) was accustomed to visit upon its subjects, when these were in any degree slack of obedience—we may mention the case of James Farquharson of Inverey, in Aberdeenshire; premising that the statement is his own in a petition to the Estates. Having been summoned by the Committee of Estates in May 1647, but not duly receiving the notice, he failed of course to attend, and was consequently punished with a fine of £4000 [Scots?]. The exaction of this fine was assigned to Forbes, Laird of Leslie, probably in recompense of services or repayment of public debt; and Forbes immediately became the prosecutor of Farquharson at law. It was in vain that Farquharson, when apprised of his liability, offered to stand a trial for any offence laid to his charge. In the spring of 1649, he, being a man of seventy-three years of age, was dragged from his house, his wife and young children, to Edinburgh, where probably this Deeside baron had never been in his life. There he was clapped up in the Tolbooth, and kept for twelve weeks, till, afraid to perish in so horrible a den, and sensible of the hard condition of his family at home, he at length succeeded in attracting some charitable attention from the Estates. It was only, after all, on his agreeing with the Laird of Leslie for a composition of his fine, that this gentleman, who boldly challenged any trial, but was never tried, could obtain his liberty.

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One Alexander Stewart, calling himself professor of physic,<sup>[128](#)</sup> travelled about the country, picking up a scanty livelihood by the exercise of his art, but also beholden in part for his subsistence to the kindness of friends. He had lived in this way twenty years, without

any fixed habitation of his own, and it chanced in the summer of this year that he had to travel from the house of his brother, the minister of Rothesay, to St Johnston, ‘hoping to have had some residence there in the exercise of his calling,’ when he was seized as ‘an intelligencer and seminary priest,’ carried to Edinburgh, and imprisoned in the Tolbooth. He was under the necessity of petitioning the Estates, setting forth his innocence of all offence against kirk or state, and shewing that he had already cleared himself before the presbytery of St Johnston, ‘who could find nothing of

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that kind against him;’ yet he was suffered to lie ‘miserably in prison, destitute of all help.’ The Estates, having apparently ascertained that a mistake had been made in the seizure of this poor mediciner, ordered his liberation.

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This was a year of extreme dearth. Wheat was at seventeen pounds Scots per boll; oats, twelve pounds; and other grains in proportion. Owing, also, to the coldness and dryness of the spring, the herbage and hay proved deficient, and cheese and butter consequently attained high prices—the former three, and the latter six pounds per stone. ‘In the beginning of June, the parliament licensed Englishmen to buy and transport oxen, kine, sheep of all sorts, likewise horses and colts; which was one of the most hurtful acts could be made to ruin Scotland, and advance the designs of the enemies thereof; bestial of all sorts being at so high a rate these four years past in this country, and flesh in the common markets scarce buyable but at very exorbitant rates; the like has not been seen in this kingdom heretofore since it was a nation.’—*Bal.*

The luxuries of life were correspondingly dear at this time: the best ale, 3s. 4d. (3-1/3d. sterling); sack wine, 36s.; and French wine, 16s. per pint.

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‘About Lammas and afterwards, in many parts of this kingdom, both among bear and oats, there were seen a great number of creeping things—which was not ordinar—which remained in the head of the stalk of corn, at the root of the pickle.’—*Lam.*

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‘About Lammas ... there was a star seen by many people of Edinburgh, betwixt twelve and two hours of the day, even when the sun shined most

bright; which was taken for a comet, and a forerunner of the troubles that followed.’—*C. P. H.*

No such comet is noted by astronomers, the only two in the first half of the seventeenth century being in 1607 and 1618. It was probably a star of high magnitude, or planet rendered visible by some extraordinary state of the atmosphere.

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The anxiety about witchcraft manifested by the General Assembly and parliament this year, was not allowed to expend itself in empty words. ‘This summer,’ says Lamont in his *Diary*, ‘there was very many witches taken and brunt in several parts of this kingdom, as in Lothian and Fife.’ The register of the Committee of Estates shews no fewer than five several commissions issued on the 4th, and two on the 6th of December, for the trial of witches in various parts of the country. The procedure, as far as revealed to us, seems to have been this: The suspected were first taken in hand by the minister and his session or consistory, with a view to obtain proof or extort confession. Generally, the poor wretches—moved partly by their own religious feelings—confessed; then a commission was sought for and granted to certain gentlemen of the district, for the trial of the accused. The trial seems to have been little more than a form, for condemnation and execution almost invariably followed.

Margaret Henderson, ‘Lady Pittathrow,’ described as sister to the Laird of Fordel, and residing in Inverkeithing, was delated by sundry persons who had lately suffered for witchcraft, ‘to be ane witch, and that she has keepit several meetings and abominable society with the devil.’ So says a grave petition of the General Assembly to parliament (July 19). Fearing punishment, she withdrew to the city of Edinburgh, and there lurked ‘till it pleasit the Almighty God to dispose in His providence that she is now apprehendit and put in firmance in the Tolbooth.’ The Assembly now craving her trial, so that ‘this land and city may be free of her, and justice done upon her,’ the Estates were pleased to issue a command to Mr Thomas Nicholson, his majesty’s advocate, to proceed with her arraignment before the justice-general; and if she be guilty of the said crime, ‘to convict and condemn her, pronounce sentence of death against, cause strangle her, and

burn her body, and do every requisite in sic cases.’ The diarist Lamont gives us the conclusion of the case. ‘After remaining in prison for a time, [she] being in health at night, was upon the morning found dead. It was thought and spoken by many that she wronged herself, either by strangling or poison; but we leave that to the judgment of the great day.’

There was a kind of infection in witchcraft, for one unhappy victim was sure to accuse others, albeit with no more justice than what there was in the charge against herself. It was probably in consequence of such ‘delations’ on the part of Lady Pittathrow that we find the presbytery of Dunfermline and minister of Inverkeithing giving in a supplication to parliament (July 31, 1649), shewing that there had been ‘declarations of witchcraft against the wives of the magistrates and other persons of the burgh of Inverkeithing, whom the said magistrates refused to apprehend.’ The presbytery had visited the burgh, and ‘dealt with the magistrates and town-council to give the full power and commission to certain honest men of the town, to apprehend, put in furance, and tak trial of such persons as they should allow and judge worthy to be apprehendit and tried, as said is.’ The surprise of these worthy bailies on being told that the wives of their own bosoms were witches, would have been not a little amusing to a man of the nineteenth century, could he have been present to witness it. We are told that they at first seemed to see the reasonableness of deputing their ordinary power to a set of ‘honest men’ for the trial of their suspected helpmates; but when their ghostly visitors had left them, they were brought to view things in a different light. The magistrates now ‘slights that work, and refuses to give the power in manner foresaid.’ For this reason it had become necessary to apply to parliament for a commission to the ‘honest men’ to do the duty of the magistrates, and this was readily granted. What came of the magistrates’ wives under this perilous accusation, does not appear.<sup>129</sup>

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In August, a poor woman, named Bessie Graham, living in Kilwinning, was apprehended and thrown into prison, for some threatening words she had used in drink against a neighbour woman who had since died. During a confinement of thirteen weeks, she was visited by the minister, Mr James Fergusson, who, it was thought, might ascertain whether she was a witch or not. He found her obdurate in non-confession, and was greatly inclined to think her innocent.

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One Alexander Bogue, 'skilled in searching the mark,' came to examine her person, and finding a spot in the middle of her back, thrust in a pin, which neither inflicted pain nor drew blood. Still the minister hesitated to believe her guilty. He entered on a course of prayers for divine direction. Soon after, going one evening to the prison with his bedral, Alexander Simpson, he made a strenuous attempt to induce Bessie to confess, but without effect. To pursue his own narrative: 'When I came to the stair-head, I resolved to halt a little to hear what she would say. Within a very short space, she begins to discourse, as if it had been to somebody with her. Her voice was so low, that I could not understand what she said, except one sentence, whereby I perceived she was speaking of somewhat I had been challenging her of and she had denied.... After a little while, I heard another voice speaking and whispering as it were conferring with her, which presently I apprehended to be the foul fiend's voice.... She, having kept silence a time, began to speak again; and before she had well ended, the other voice speaketh as it were a long sentence, which, though I understood not what it was, yet it was so low and ghostly, that I was certainly persuaded that it was another voice than hers. Besides, her accent and manner of speaking was as if she had been speaking to some other; and that other voice, to the best of my remembrance, did begin before she had ended, so that two voices were to be heard at once.

'By this time fear took hold on Alexander Simpson, being hindmost in the stair, and thereby he cries out. I did exhort him with a loud voice not to fear; and we came all of us down the stair, blessing God that had given me such a clearance in the business.'

This poor woman, on a subsequent conference with Mr Fergusson, confessed all she was accused of, except the imputed witchcraft. She said: 'She knew she would die, and desired not to live; and she thought we would be free before God of her blood, because that, however she was free, yet there were so many things deponed against her, that it was hard for us to think otherwise of her than we did; yet she knew well enough her own innocence.' Bessie was soon after tried, condemned, and executed, denying her guilt to the last.<sup>130</sup>

In the ensuing month, Agnes Gourlay was examined by the kirk-session of Humble, concerning some practices of hers for charming the milk of kine. It was alleged that

Anna Simpson, servant to Robert Hepburn of Keith, having found fault with the milk she drew from her master's cows, Agnes told her of a way to remedy the evil, and soon after came and put it in practice. Throwing a small quantity of the milk into the *grupe* or sewer of the cow-house, she called out: 'God betak us to! May be, they are under the earth that have as much need of it, as they that are above the earth!' after which she put wheat bread and salt into the cows' ears. Agnes by and by confessed that she had so done, and was ordained to make public repentance in sackcloth.<sup>131</sup>

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Lord Linton, son of the Earl of Traquair, married Henrietta Gordon, daughter of the lately executed Marquis of Huntly, and relict of George Lord Seton; she being an excommunicated papist. 'The minister of Dawick, being an old man, did marry thir foresaid persons privately, without proclamation of their banns, according to the custom; for which, shortly after, he was excommunicate, his church declared vacant, and he by the state banished.'—*Lam.* Lord Linton was fined in £5000 Scots, and likewise excommunicated and imprisoned.—*Nic.*

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The reader will remember the strenuous opposition of John Mean, merchant in Edinburgh, to the Episcopal innovations, and his sufferings in that cause; likewise the strong suspicion entertained that it was his wife who discharged her stool at the bishop's head when the Service-book was introduced into St Giles's in July 1637. It was natural that John, who was a man of good account in the world, as well as a most earnest Presbyterian, should have flourished under the present order of things. We therefore hear without surprise that the Post in Edinburgh—the germ of a most important institution—was now under the care of John Mean. It seems to have been confined as yet to the transmission of letters between London and Edinburgh. At the date noted, he addressed a petition to the Committee of Estates, regarding 'his great charges and expenses in attending the Letter-office in this city, and his allowance therefor.' He states

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that 'the benefit arising by the letters sent from this to London and coming from thence hither, by the ordinary post, will amount to four hundred pounds sterling yearly or thereby, all charges being deduced for payment of the postmaster from Newcastle to Edinburgh inclusive, and no proportion thereof laid upon the Berwick packet.' In consideration of his charges, John was allowed to retain for himself the eighth penny upon all the letters sent from Edinburgh to London, and the fourth penny upon all those coming from London to Edinburgh.—*R. C. E.*

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In the year 1649, as is believed, a cateran named Mac-Allister, with a band of followers, kept a large portion of Caithness in terror. The people of Thurso having somehow given him offence, he determined to revenge himself by suddenly coming down upon them on a Sunday and burning them in church. He and his men had provided themselves with withes of twigs to fasten the doors, in order to keep the people in, while fire should be set to the building. Some one remonstrating with him for contemplating such an unholy design on the Sabbath-day, he avowed that, in spite of God and the Sabbath both, he would shed blood. Fortunately, some humane person became aware of the design, and set off at speed to give the alarm. This had scarcely been done, when the caterans, twenty in number, arrived. There were seven doors to the church, as may be verified by an inspection of the ruins at this day. An old woman dexterously thrust her stool into one near which she sat, so as to prevent it from being closed; the people were eager to defend the rest as far as they could. Mac-Allister himself came to the door of a gallery at the south-west angle of the building, accessible by an outer stair. Here sat Sir James Sinclair of Murkle, an able and determined man, who made a practice of coming to church armed. Meeting the robber in the doorway, he thrust his sword through him, but with no apparent effect. His servant, however, superstitiously fearing that Mac-Allister was impervious to cold steel, cut a triangular silver button from Sir James's coat, and with that shot the fellow in the head. He tumbled over the stair, saying in Gaelic: 'Hoot-toot, the bodach has deafened me!' It was a mortal wound in the ear. The rest of the party were then set upon by the

congregation, and after a hard contest, overpowered, many of them, like their master, being killed.<sup>132</sup>

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The Marquis of Douglas, formerly Earl of Angus, one of the greatest and wealthiest of the nobility, was a Catholic; and his wife, a daughter of the first Marquis of Huntly, was a not less firm adherent of the ancient faith. For many years past, the presbytery of Lanark had acted

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as an inquisition over them, sending deputations every now and then to Douglas Castle, to deal with them for their conversion, intermeddling with their domestic affairs, and threatening them with excommunication if they did not speedily give ‘satisfaction.’ With great difficulty, and after many conferences, they had prevailed on the *Lady Marquess* to attend the parish church, and allow her children to be instructed in the Presbyterian catechism: a mere external conformity, of course, but involving a homage to the system which seems to have pleased the ecclesiastical authorities. It took six years to bring the marquis to an inclination to abjure popery and sign the Covenant; and great was the rejoicing when he performed this ceremony before the parish congregation. A moderator of presbytery reported his ‘great contentment’ in seeing his lordship communicate and give attentive ear to the sermons. Seeing, however, that the lady remained immovable, the reverend court deemed it necessary to demand of the noble pair that their children should be secluded from them, in order that assurance might be had of their being brought up in the Protestant religion. This seems to have been too much for the old peer. He plainly broke through all engagements to them, by going and joining Montrose.

As his lordship fell into the hands of the Estates, by whom he was imprisoned in Dumbarton Castle, the presbytery obtained an increased power over the lady. They now brought her before them, to examine her touching her ‘malignancy and obstinate continuance in the profession of popery.’ Imagine the daughter of the superb Huntly, the mother of the future head of the chivalric house of Douglas, forced to appear ‘with bated breath and whispering humbleness’ before the presbytery of Lanark! She really did give them such smooth words as induced them to hold off for a little while.

But they soon had occasion once more to bewail the effects of their ‘manifold expressions of lenity and long-suffering’ towards her, which they saw attended by no effect but ‘disobedience.’ The process for her excommunication and the taking away of her children was in full career in January 1646; and yet by some means which do not appear, it did not advance.

Meanwhile the marquis had been suffering a long imprisonment for his lapse with Montrose, and his estate was embarrassed with a fine of 50,000 merks. It had become indispensable for the good of his family, that he should be somehow reconciled to the stern powers then ruling. At the beginning of 1647, the descendant of those mail-clad Douglasses who in the fifteenth century shook the Scottish throne, was found literally on his knees before the Lanark presbytery, expressing his penitence for breach of covenant, and giving assurance of faithfulness in time to come. The Estates consequently contented themselves with one half of his fine, and an offer of the use of his lands for the quartering of troops, and he was then liberated. Soon after, he agreed to consign his children to be boarded with the minister of the parish of Douglas, while a young man should attend to act as their preceptor; but the satisfaction produced by this concession was quickly dashed, when the presbytery learned that his lordship was secretly arranging to send his youngest son to be bred in France. It was really a curious game between their honest unsparing zeal on the one hand, and his lordship’s craft and territorial consequence on the other. Every now and then we have a peep of the demure lady, not less resolute in adhering to her faith than they were pertinacious in seeking to bring her to the superior light. How the recusant pair must have in secret chafed under the mute acquiescence which they were forced to give, in a rule outraging every sense of natural right, and every feeling of self-respect! With what smothered rage would they view those presbyterial deputations on their approach to Douglas Castle—more formidable than a thousand of the troops of Long-shanked Edward had ever been to the good Sir James! During the predominance of the Hamilton Engagement, there was a slight intermission: in those partially clouded days of the church, the presbytery was obliged to speak a little less resolutely. In October 1648, the cloud had passed away: Cromwell was now in the Canongate, conferring with Argyle, Loudon, and Dickson. We accordingly find the Lanark inquisition

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laconically ordering that, failing immediate satisfaction, his lordship be summoned and the lady ‘excommunicat.’ The noble marquis appeared in this month before them, to answer sundry challenges—‘for not keeping his son at the school with a sufficient pedagogue approven by the presbytery; for not delivering his daughter to some Protestant friend by sight [that is, under the approbation] of the presbytery; for not having a sufficient chaplain approven as said is, for family exercise in his house; for not calling home his son, who is in France;’ and, finally, for his grievous oppression of his tenants. On all of these points, he was forced to make certain professed concessions. And we soon after find this proud grandee pleading to have his son brought from the school of Glasgow to that of Lanark, but ‘*not to come home to his parents except the presbytery permit.*’ Still there was no real progress made with either the marquis or his lady, and simply because they continued to be Catholics at heart, and had it not in their power to give more than lip-worship to any other system.

Such being the case, what are we to think of the conclusion of the affair with the marchioness, when, on the 9th of March 1650, two ministers went to pass upon her that sentence of excommunication which was to make her homeless and an outlaw,<sup>133</sup> unless she should *instantly* profess the Protestant faith; at the same time telling her ‘how fearful a sin it was to swear with equivocation or mental reservation.’ The lady of course reflected that the system represented by her visitors was now triumphant over everything—that, for one thing, it had brought her brother Huntly, not a twelvemonth ago, beneath the stroke of the Maiden. She ‘declared she had no more doubts,’ and at the command of one of the ministers, held up her hand, and solemnly accepted the Covenant before the congregation. ‘After he had read the Solemn League and Covenant, and desired her to hold up her hand and swear by the great name of God to observe, according to her power, every article thereof, she did so; and after divine service was ended, he desired her to go to the session-table and subscribe the Covenant, and, before the minister and elders, she went to the said table and did subscribe.’

‘Heaven scarce believed the conquest it surveyed,  
And saints with wonder heard the vows I made.’

On the very day that this was reported by the two ministers to the presbytery, the court, ‘hearing that of

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late the Marquis of Douglas and his lady had sent away one of their daughters to France, to a popish lady, to be bred with her in popery, without the knowledge of the presbytery, and without any warrant from the Estates, thought the fault intolerable, and so much the more, because they had sent away one of their sons before to the court of France.’ For some time after, the reverend presbytery dealt earnestly with the marquis for the withdrawal of his children from France, but without success. They also had occasion to lament that he and his lady rarely attended public worship, and failed to have private exercises at home. Of their own great error in forcing this noble family into hypocritical professions, and interfering so violently with their domestic arrangements, no suspicion seems ever once to have crossed their minds.<sup>134</sup>

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At the same time that the presbytery of Lanark was driving on matters with the Marchioness of Douglas, it had another serious affair on its hands. Towards the close of the preceding year, the marquis had sent eleven women of his parish to Lanark, as accused of witchcraft by one Janet Coutts, ‘a confessing witch,’ then in prison at Peebles. There was a difficulty about the case, for the burgh declined to maintain so many persons pending their trial. It was therefore necessary to send them back to Crawford Douglas under security. Afterwards, one George Cathie, ‘the pricker,’ being brought to Lanark, the women were brought forward again, when, ‘before famous witnesses—namely, Gideon Jack and Patrick Craig, bailies in Lanark, James Cunningham of Bonniton, &c., Mr Robert Birnie himself [the minister of Lanark] being also present, and by consent of the women, the said George did prick pins in every one of them, and in divers of them without pain the pin was put in, as the witnesses can testify.’ The women were accordingly detained in prison. As ‘it was not possible for the parish out of which they came to furnish watches night and day for them,’ the county ‘did ordain that each parish should, proportionally to their quantity, furnish twelve men every twenty-four hours; whereupon the presbytery did ordain that the minister of that parish out of which the watches shall come for their turn,

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shall come along with them, to wait upon the suspected persons, and to take pains, by prayer and exhortation, to bring them to a confession.’

We next see the presbytery sending a deputation to the Council of State in Edinburgh, to urge that a commission should be appointed for the trial of the witches. While this was in preparation, they sent to the parish to collect evidence against the poor women. It might have been supposed that, when, after a sermon in the church, no one came forward to say a word against them, some doubts might have entered the minds of the presbytery. Such, however, was not the case. They sent again and again, till at length charges were made against three of the suspected. Meanwhile, one whom Janet Couls herself ‘cleansed,’ was liberated. Six more, against whom no charge was made, were allowed to go home on giving security that they would reappear if called upon. Finally, two, named Janet M’Birnie and Marion Laidlaw, were at this date tried by the commission on various points delated against them; as that, ‘on a time Janet followed William Brown, a slater, to crave somewhat, and fell in evil words, after which time, within twenty-four hours, he fell off ane house and brake his neck; that Janet was the cause of the discord between [the laird of] Newton and his wife, and that she and others was the death of William Geddes;’ that ‘Marion and Jean Blacklaw differed in words for Marion’s hay, and, after that, Jean her kye died;’ and that she, the said Marion, ‘had her husband by unlawful means, and a beard!’ After most strictly examining the witnesses on their oaths, the commission could find nought proven against the two prisoners, and they were therefore dismissed on giving caution to appear again if called upon.

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It does not appear that this result in any degree modified the views of the reverend presbytery regarding witchcraft. On the very day when this case was reported to them, they received a communication from Mr Richard Inglis, the chaplain or preceptor whom they had established in the Marquis of Douglas’s family, setting forth the confession of ‘ane warlock called Archibald Watt, alias *Sole the paitlet*, pointing out the way of his making covenant with the devil, as also many meetings since his covenant kept with the devil, and other witches, in divers places.’ And immediately they sent a gentleman to Edinburgh for ‘a commission for ane assize to sit upon the foresaid warlock.’



The end of the prosecution of the eleven women is highly instructive. Janet Coutts, before her death, which probably was by burning, withdrew the charge she had made against them. It is on the same day when the presbytery orders one of their number to go and read a paper to this effect in the church of Douglas, that they make the above arrangement for the prosecution of the warlock; shewing that they had not been in the least staggered on the general question, by finding the gross mistake they had made in this instance.—*R. P. L.*

The church was now in the highest power—every vestige of episcopacy banished, popery treated as a crime, the doctrine of the headship of Christ in full paramountcy, and enabling the clergy to exercise an unlimited authority over the external religious practice and professions of the community. It was ruled that each head of a family should conduct worship and reading of the Scriptures daily in his house, catechise, reprove, and exhort amongst his children, servants, and dependents. On Sunday, after private devotions by the several members of the family, and a general service in the parlour, the master was to take care that all within his charge repaired to public worship. This being finished—in those days it lasted many hours—he was to exercise the family on what they had heard, and the remainder of the day was to be spent in ‘reading, meditation, and secret prayer.’ Diligence and ‘sincerity’ in these duties were strongly enjoined, and individuals were encouraged to confer with and prompt one another on religious subjects. But it was forbidden that families should meet together for religious exercises, as it had been found that such practices tended to schism.<sup>135</sup>

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It may be remarked, that the ministrations of the parochial ministers were not then confined to two services on Sunday. In Edinburgh, after March 1650, there was ‘a lectorie’ every afternoon in the week at four o’clock, the ministers of the city taking the duty by turns. ‘Which did much good to the soul and body, the soul being edified and fed by the Word, and the body withhelden from unnecessar *bebbing* [drinking], whilk at that hour of the day was in use and custom.’—*Nic.*

The morals of the flock were superintended with something beyond pastoral care. Promiscuous dancing was strictly prohibited. For ‘the downbearing of sin,’ women were not allowed to act as waiters in taverns, ‘but allenarly men-

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servands and boys.’<sup>136</sup> An elder had a certain little district assigned to him, which he carefully inspected once a month. Any scandalous sin which he discovered, or even the existence of any stranger without a certificate of character, he had to report to the kirk-session. The being drunk, or the utterance of a profane word, inferred kirk-discipline. The inspecting elder was also to take cognizance of how everybody spent his time on Sunday. For acts of a licentious character, both sexes were alike punished in the manner most likely to mortify persons of a sensitive nature. Whatever their quality, they had to stand three Sundays in sackcloth before the congregation. A second fault brought the same punishment for six Sundays; a third kept the delinquent on the seat of shame for half a year. That all this was done in honour and sincerity, and not primarily from the love of power, is shewn by the impartial severity which the clergy exercised upon each other; regarding not only moral aberrations, but such faults as that of conversing with ‘malignants’ (persons inclined to be loyal to the king without regard to the terms of the Solemn League and Covenant), and any shortcoming in efficiency either as preachers or as disciplinarians.

‘None of the clergy in those days,’ says one of their successors in the next age, ‘durst be scandalous in their conversation, or negligent in their office.... In many places the spirit seemed to be poured out with the word.... There were no fewer than sixty aged people, men and women, who went to school, that even then they might be able to read the Scripture with their own eyes. I have lived many years in a parish where I never heard an oath, and you might have rid many miles before you heard any.... You could not have lodged in a family where the Lord was not worshipped by reading, singing, and public prayer. Nobody complained more of our church-government than our taverners, whose ordinary lamentation was, their trade was broke, people were become so sober.’<sup>137</sup>

It is to be feared that Mr Kirkton wrote under the influence of that palliative spirit with which we are apt to look back upon a past age or upon the days of our youth, for, undoubtedly, strong evidences exist that the period now under review was not free from great vices and criminalities of a very deep shade. The diarist John Nicoll mentions, under February 1650, that ‘Much falset and cheating was detected at this time by the Lords of Session; for the whilk there was daily hanging, scourging, nailing of lugs [ears] and binding of people to the Tron [the public weighing-machine in Edinburgh], and

boring of tongues; so that it was ane fatal year for false notars and witnesses, as daily experience did witness.'

Nicoll enumerates many of the offenders. One was John Lawson, of Leith, who had taken a leading part in causing a house, left by one who died of the plague, to come by a false service to one who had no claim for it. 'He was brought to the Tron betwixt eleven and twelve before noon, and fast bund thereto, with ane paper on his head declaring his fault.... His tongue was drawn out with ane turkes [pincers] by the common hangman, and laid on ane little buird, ... and run through with ane het iron or bodkin.' Another delinquent was Thomas Hunter, a writer, guilty of perjury; for which he was declared incapable of 'agenting ony business within the house and college of justice.' William Blair, 'messer,' was hanged 'for sundry falsets committed by him in his calling.'

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At the same time, gross offences connected with the affections never abounded more, if we can believe Nicoll, than they did at this time. Some of an indescribable kind appeared in an unheard-of frequency, and continued indeed to do so all through the time of the Interregnum. In Lamont's *Diary*, the number of gentlemen in Fife who are stated as having broken the seventh commandment during the time of the Commonwealth, is surprisingly great. Even the sanctimonious Chancellor Loudon himself had to give satisfaction to the kirk in 1651. The writer of the Statistical Account of Melrose remarks the surprising number of penitents which he finds in the session-books during the seventeenth century—'far exceeding the average of the present day, when the population is nearly trebled.' The churchmen of that period themselves not merely admit, but loudly proclaim the extreme immorality of their people, the following being cited, for example, among the causes for a solemn fast in 1653: 'the growth of sin of all sorts, particularly pride, uncleanness, contempt of ordinances, oppression, violence, fraudulent dealing—*maist part of the people growing worse and worse.*' We might set this down in great measure as the effect of entertaining a high view of human duty, were it not for the many facts which have been reported by diarists and others. In short, it fully appears that human nature was not effectually restrained by the rigorous discipline now temporarily reigning, but only shewed a tendency to go into moral

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aberrations of an abnormal and horrible kind. At the same time, the land was full of persecution on account of merely sentimental offences—Catholic gentlemen forced to leave their native country; moderate Presbyterians obliged to do penance, or else thrust from their offices, for being concerned in the Duke of Hamilton’s final expedition in behalf of the late king; corpses denied Christian burial if their owners had not subscribed or adhered to the Covenant.<sup>138</sup> ‘There was ane honest man in Glasgow, called John Bryson, who, being at the Mercat Cross of that city, and hearing a proclamation there, and a declaration against the Marquis of Montrose, wherein he was styled traitor and excommunicate rebel, did cry out and called him as honest ane nobleman as was in this kingdom. The magistrates of that town, being informed of his speeches, was forced to take and apprehend him, and carried him to Edinburgh by ane guard of the town’s officers, presented him to the Committee of State then sitting there; wha, by their order, was casten into the Thieves’ Hole, wherein he lay in great misery by the space of many weeks.’—*Nic.*

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Throughout this and the ensuing two months, there ‘fell out much unseasonable weather, the like whereof was not usual, for weets, cold, frosts, and tempests.’—*Nic.*

MAR.

The same writer informs us that on the 28th of May, ‘there rained blood the space of three miles in the Earl of Buccleuch’s bounds, near the English Border; whilk was verified in presence of the Committee of State.’

In the ensuing month there was an epidemic called the *Irish Ague*, ‘which was a terrible sore pain in the head, some saying that their heads did open. The ordinary remedy was the hard tying up of their head. A disease not before this known to the inhabitants of this kingdom.’

Gerard Boate, physician to the parliamentary forces in Ireland, who wrote about this time his *Natural History of Ireland*, specifies agues among the *Endemii Morbi* of that country, evidently alluding, in the opinion of a living medical authority,<sup>139</sup> to the well-known Irish typhoid fevers. This ailment, the flux, and plague, had prevailed to a deplorable extent in Ireland during the time of the civil war.

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‘The new Psalm-books were read and ordained to be sung through all the kingdom.’—*Nic.* This was the translation of the Psalms which is still used by the Church of Scotland and all Presbyterian congregations in the kingdom. It was based on a homely version produced originally in 1643, by Francis Rous, a member of the Long Parliament, who ultimately became provost of Eton, and died in 1658. What was rather odd, Rous was at this time joined to the sectaries, against whom the Scotch church entertained so bitter a feeling. It must be admitted that his version underwent great improvements in the hands of the committees of the General Assembly appointed for its revision. As now finally set forth, it was in many respects most felicitous. The general strain and metre is that of the old homely native ballad. It is occasionally harsh and obscure, has a few Scottish idioms, and sometimes requires an obsolete pronunciation to make out the prosody; yet, with all these obvious faults, it perhaps comes nearer to the simple archaic beauty of the original than any other metrical translation.<sup>140</sup>

MAY 15.

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The Marquis of Montrose, taken in an unsuccessful attempt to restore the king without the ceremony of the Covenant, was hanged in Edinburgh on a gibbet thirty feet high. The heroic firmness displayed at his death harmonised well with the gallantry exhibited in his short but brilliant career. It affords a striking idea of the taste of men of the highest rank in that age, that the Marquis of Argyle appeared on a balcony to see him driven on the hangman’s hurdle to the prison from which he was two days after to walk to the gallows, and that Lord Lorn took post at a window near the scaffold, to see the body cut to pieces after death. The head being stuck on the Tolbooth of Edinburgh, and the limbs sent for exhibition over the ports of Glasgow, Perth, Stirling, and Aberdeen, Charles II. was compelled to behold those ghastly relics of the most loyal of his subjects, when, less than a month after, he progressed through the country.

MAY 21.

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If Montrose had died free of excommunication, his body would have been given to his friends; as matters stood, it was inhumed beneath a gibbet at the Burgh-moor. There was, however, a female heart that secretly wept for the untimely end of the great marquis. His niece, Lady Napier, sent men by night who dug up the body, and stole away the heart; and this relic she consigned to a steel case made out of the hero's sword, which again she enclosed in a gold filagree box, which had been presented by a doge of Venice to her husband's grandfather, the inventor of the logarithms. It will be found that, after the Restoration, when it became the fate of Argyle and others to atone by their blood for the severities inflicted on Montrose, the remains of the culprit of 1650 were gathered together and treated with a funeral that might have been honourable to a king. The heart and its case were, however, retained in the possession of the Napier family for several generations, and only were lost sight of amidst the confusions of the French Revolution.<sup>141</sup>

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Cromwell having crossed the Tweed with his army on the 22d of this month, a large body of troops assembled on Leith Links to oppose him, all animated with a good spirit in behalf of their king and country, but unluckily not all equally sound in the faith of the Solemn League and Covenant. Thousands were sent back, 'to the discontentment of much people.' The leaders thought it safer to meet Cromwell with twenty thousand who were of right principles, than with thirty thousand of whom a third were merely patriotic and loyal. While the army, as honest John Nicoll remarks, 'stood daily in purging upon the Links,' the young king came to review them, and doubtless was right sorry to see so many hearty soldiers turned away from his banners.

JULY.

A Glasgow citizen, full of zeal against the English army, as a type of the abomination of toleration, came to this singular leaguer, but even after all its purgation, did not find the service satisfactory. 'While Oliver Cromwell,' he says, 'is reported to be come over the Border with his army, at my first hearing of it, I was so stirred in my spirit at the evil of toleration, that I never remember that I attained to the like again; and while I am pouring out my heart before the

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Lord on that account, there is a thought darted in upon my heart, that I should be healed of an impurity in my stomach which I had been under for several years ... and it really proved so, as since that time I was never troubled therewith.... That same morning, while I am casting up the Bible, that place came first to my hand and eye which saith, “Though Noah, Job, and Daniel would pray, yet would I not hear them.” Whereupon I was exceedingly confounded in reference to our present case, and some weeks thereafter, having gone to Leith to join myself to the forces there, I dried up in my prayers so as I would pray none at all, and was glad to take the first opportunity that offered to retire.... When Dunbar was foughten, and the news thereof came to Glasgow within a day or two thereafter, while I am thinking thereupon, it is borne in upon my mind, that our way in that business was not what it ought to have been; and after some getting it laid to heart, I was challenged for my implicit engaging therein; whilk came to that height that I resolved never more to follow any course upon the opinion of any person whatsoever, which accordingly the Lord has helped me to mind in some weak measure....’—*Spreull*.

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While the two hostile armies lay about Edinburgh, ‘there was such great scarcity, that all sorts of vivres, meat and drink, could hardly be had for money, and such as was gotten was fuisted [musty], and sald at a double price. The haill inhabitants were forced to contribute and provide for the [Scottish] army, notwithstanding of this scarcity; as also to furnish feather beds, bowsters, cods, blankets, sheets ... for the hurt soldiers to lie upon, with pots and pans for making ready their meat; and to collect money for providing honest entertainment to the hurt soldiers that lay in the [Heriot’s] Hospital and Paul’s Wark.’—*Nic*.

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The bellman was accustomed to intimate the death of a citizen through the streets, and in the same way give invitations to the funeral. At this time the Edinburgh

AUG.

SEP.

official was ordered to give up the phrase, ‘faithful brother or sister,’ and retain brother or sister only.<sup>142</sup>—*Nic*.

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This was a sore time for the southern counties of Scotland. Owing to the futile opposition presented to Cromwell by the ultra-Presbyterians in the west, a large detachment of the English army had to parade through the country. ‘Much corns destroyed by them and their horses ... the kirks and kirk-yards made stables and sentries for their guards and horses.... The corns of the field were not only destroyed by this foreign enemy, and by the Scots armies at home, wha rampit and raged through the land, eating and destroying wherever they went, but also the Lord from the heavens destroyed much of the rest by storms and tempests of weat and wind. The seas also were closed up by the enemy, whase ships enclosed us on every side, so that no man was able to travel by sea, neither yet by land without a pass.’—*Nic*.

OCT.

1650.

‘Cromwell and his army of cavalry domineered in all parts where they came,’ and in especial about Edinburgh, and in East Lothian. The good Earl of Winton, to whose well-furnished table all the noblemen and gentlemen had ever been welcome, was pitifully abused by them; his fair house of Seaton made a common inn; himself threatened to be killed, if they had not whatsoever they called for; his rich furniture and stuff plundered, and all the enormities that could be offered by Jews or Turks to Christians, he suffered daily; and when he complained to those of our nobility who now rule all, he got no redress, but [was] ordered with patience to give them whatsoever they called for. Their general, Cromwell, stayed in Edinburgh, a stately lodging being appointed for him.<sup>143</sup> He went not to their churches, but it is constantly reported that every day he had sermons in his own lodgings, himself being the preacher, whensoever the spirit came upon him; which took him like the fits of an ague, sometimes twice, sometimes thrice in a day.

‘One of his commanders being quartered with one of the magistrates of the city, that he might be used with the

1650.



more reverence, and entertained with the more graceful respect, the master of the house brought the preacher of the parish, a discreet and modest man, to accompany him, whose conversation, he hoped, would be pleasing to him. The preacher, after he had blessed the table, according to our Scottish custom, prayed for the continuance and prosperous success of the Covenant, which did so offend the English captain and those gentlemen who attended upon him, as the preacher was threatened and abused most beastly, for presuming in their presence to extol their rotten Covenant (as he termed it); and with many reproachful terms told the preacher, that they had in England trodden his Covenant under their feet, and they hoped, before it was long, to consume it in Scotland with fire, and with disgrace to extinguish the memory thereof. The preacher would have answered, but he durst not....

‘In the time that the English stayed, there were daily and continual complaints given in; the people being unable to endure their insolent carriage, so that there were many brawls, fighting, and killing in private corners, where the Scots might be their masters. And one day in Edinburgh, upon the High Street, and before the general’s lodgings, where the English were always going forth in at the gate, one of their officers was coming forth and going to his horse in great chafe, because he had complained of a great injury done to some of the troop by the Scots, where they were quartered, and not being justly satisfied with the general’s answer, when he had mounted his horse, he spake aloud these words: “With my own hands I killed that Scot which ought this horse and this ease of pistols, and who dare say that in this I wronged him?” “I dare say it,” said one standing by; “and thus shall revenge it;” and with the word pulling forth his sword, thrust him quite through the body, and with a prompt celerity, as if he had been all in motion, just as he struck him—who was already falling to the ground—and mounting his horse, rides the way with a fierce gallop, and winning the port, goes to the fields, and by an honourable flight frees himself from all danger.’<sup>144</sup>

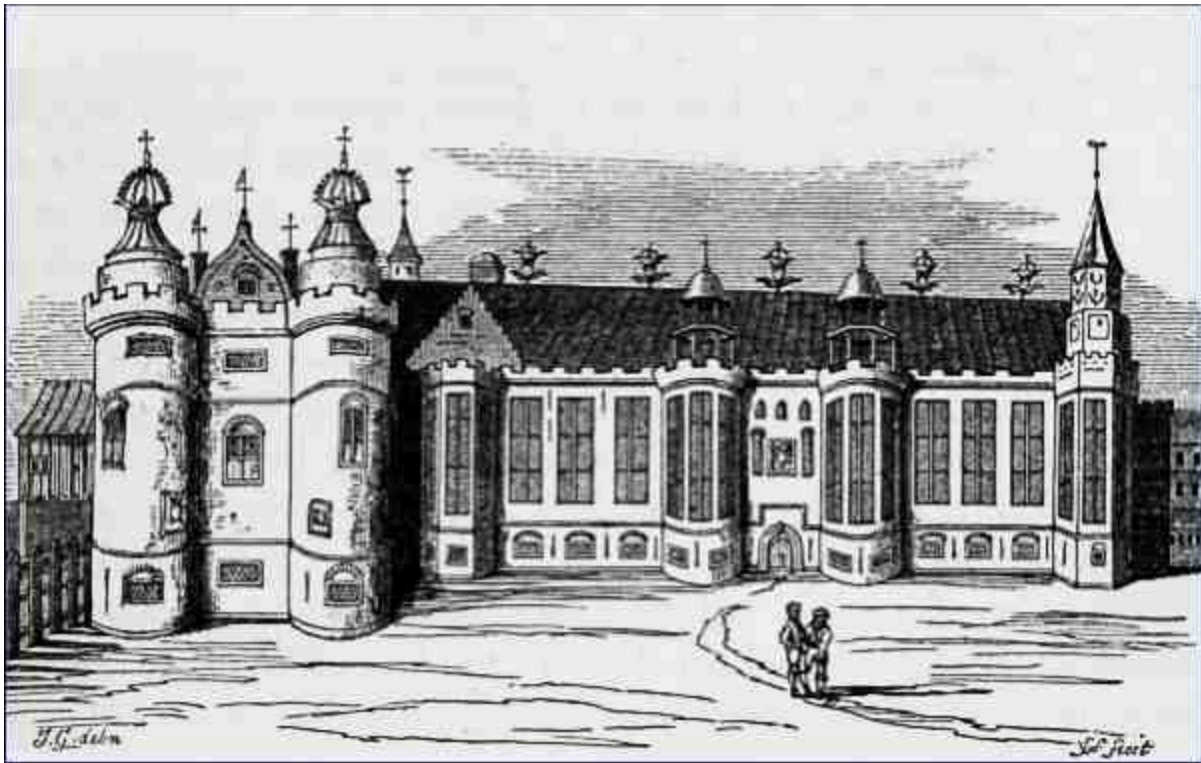
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At this distressing time, when the best part of the country was in the hands of foreign invaders, and the

Nov. 13.

ancient monarchy of Scotland threatened with destruction, there occurred a calamitous event which must have been peculiarly bewailed. The palace of Holyrood, being then in the occupation of a party of the English troops, took fire, and was in great part destroyed. The most interesting portion of the building—the north-west tower, containing the apartments of Queen Mary—was fortunately preserved; but the principal *façade* was laid in ruins, so that the general appearance was, on a restoration, much changed. About the same time, the English soldiery, for the sake of fuel, broke down the furniture of the University buildings, the High School, and of three churches—College, Greyfriars, and Lady Yester's—besides the plenishing of many houses in town and country.

1650.



**Holyrood Palace, as before the Fire of 1650.**

‘In all parts of the land, where the English army come, the ministers fled, and the Lord’s houses were closed and laid waste; so that the word of the Lord became very precious to many.’ ‘The land [was] mourning, languishing, left desolate, every part thereof shut up, and no safe going out nor coming in ... the Lord hiding his face all this time for the sins of Scotland.’—*Nic.*

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‘I thought it good to remember here how that the names of Protestant and Papist were not now in use ... in place thereof raise up the name of Covenanters, Anti-Covenanters, Cross-Covenanters, Puritans, Babarteris, Roundheads, Auld Horns, New Horns, Cross-petitioners, Brownists, Separatists, Malignants, Sectaries, Royalists, Quakers, Anabaptists.’—*Nic.*

DEC.

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The bitter feeling of the ruling powers towards the English sectarian army was shewn in the way they treated any erring enthusiast who, in the spirit of dissent, sent information to Cromwell. One Archibald Hamilton, who acted in this manner, was ‘condemned to be hanged on a gallows in chains, so long as one bone could hang at another of him.’ We now find the son of an old acquaintance in their hands for this high offence. His father was that John Mean, a merchant of Edinburgh, who had been in trouble as a resister of Episcopal fashions in the reign of King James, and whom we have just seen in the capacity of post-master in Edinburgh.<sup>145</sup> His mother was believed to be the identical female who cast the stool at the bishop’s head in St Giles’s Church, on the first reading of the Service-book in 1637. The delinquent confessed his guilt, and was condemned by a council of war sitting at Stirling; but as he was going to be hanged, the king pardoned him, ‘in respect his father, old John Mean, in Edinburgh, put him out to General Leslie as a knave and one corrupted by the English, and entreated him to cause apprehend him.’—*Bal.*

1651. MAY 6.

1651.

The son of a pair so peculiarly noted, being pardoned by Charles II. for treason in favour of Cromwell, is a curious conjunction of circumstances.

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Some idea of the enormous sacrifices made by Scotland to resist the English sectarian army, may be formed from

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a tolerably exact account, which has been preserved, of what was done in that cause by the county of Fife alone, between the 1st of June 1650 and the present date, being somewhat less than thirteen months.

In June 1650, when Cromwell was about to invade Scotland, Fife<sup>146</sup> sent forth 1800 foot and 290 horse, the former ‘with four pounds of outreik money for every man, with a four-tailed coat, stockings and shoes,’ the latter at 300 merks each; being in all 151,800 merks. In the ensuing month, a second levy, precisely the same as the first, was made by the county. In September, 700 men were raised for the artillery force, with a third levy of 290 horse and 350 dragoons. In January, two regiments, amounting in whole to 2400 men, were raised in the county by the Earls of Kelly and Crawford, and to this force the county gave twenty-four pounds per man for arms and bounty. So much for the personal force contributed, being in all 7920 men out of a population which, so lately as 1801, was under 100,000. Then the county made large contributions of meal and other provisions, besides money, and also horses, for the use of the army; 5000 bolls of meal at one time, 3000 at another, 100 stone of cheese, tents, dishes, and axes, oats for the horses, quarters for ten horse regiments, and so forth. The sum of the whole was reckoned up to 2,395,857 merks, which we assume to have been equal to £137,309.—*Bal.*

1651.

It is difficult to understand how a province of a country so poor as Scotland then was<sup>147</sup> could spare so much means towards even so cherished an object as the resistance of the English sectaries.

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During the occupation of the southern parts of Scotland by the English army, Dundee had become the retreat of many of the principal people of the country, and a storehouse of much valuable property. On the Sunday before the battle of Worcester, it was assaulted by General Monk, who played upon it with battering-pieces all night, and in the morning entered and subjected it to massacre and pillage. Upwards of a thousand men and sevenscore women and children, are said to have been killed. ‘It is reported by credible men that the English army had gotten above twa hundred thousand pound

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sterling, partly of ready gold, silver, and silver wark, jewels, rings, merchandise and merchant wares, and other precious things, belonging to the city of Edinburgh, beside all that belonged to the town, and other people of the country, wha had sent in their guidis for safety to that town.’—*Nic.*

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This year was one of even greater dearth than the preceding, bear being £20 Scots per boll—equal to £1, 13s. 4d.—in many parts of the country. The best sack wine was 4s. sterling, and French wine 1s. 6d. per pint. The best ale 4d. a pint.<sup>148</sup> ‘Yet God’s providence was such toward the nation, that even when our awn corns failed us, the English nation did bring in abundantly wheat, bear, peas, and such like, and brought down the dearth of our mercats, by [beyond] expectation.’—*Nic.*

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James Somerville, younger of Drum and Cambusnethan, author of the *Memorie of the Somervilles*, was this day married to Martha Bannatyne of Corehouse, at Lesmahago kirk, he being nineteen, and she eighteen. The bridegroom’s own account of the affair: ‘A matchlier pair was not seen within the walls of that kirk this last century, nor a greater wedding—considering the great consternation the country had been in for some few months preceding—for nobility and gentry; there being one marquis, three earls, two lords, sixteen barons, and eight ministers present at this solemnity, but *not one musician*. They liked better the bleating of the calves of Dan and Bethel—the ministers’ long-winded and sometimes nonsensical graces, little to the purpose—than all musical instruments of the sanctuary, at so solemn an occasion, which, if it be lawful at all to have them, certainly it ought and should be upon a wedding-day, for divertisement to the guests, that innocent recreation of music and dancing being much more warrantable and a far better exercise than drinking and smoking of tobacco, wherein these holy brethren of the Presbyterian [persuasion] for the most part employed themselves, without any formal health or remembrance of their friends; a nod with their head, or

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a sigh, with the turning up of the white of the eye, served for that ceremony.'

It is pleasant to find that little more than two months after Worcester fight, it was possible to bring such a large and brilliant company to a wedding in Scotland.

1651.

Even when the public at large is the stricken deer, there will be individual 'harts ungalled' who will 'go play.' Somerville's description of his first visit to his bride's house and of herself, is interesting. It was just after the rout of Dunbar, when the young Laird of Corehouse, who had been at that battle, spent a few days at Cambusnethan, and insisted on young Somerville accompanying him to the banks of the Clyde. 'They set forth, weel furnished with hawks and dogs, which gave them much sport, the fields and ways between Cambusnethan and Corehouse being fitted for hawking and hunting. At night they came to the Corehouse, where they were courteously received by the lady, and modestly by the young ladies.... Martha, the youngest, was not seen till supper, and then came into the room in a plain country dress. The truth is, she needed nothing else, being always an ornament to her clothes when at the best.... At her age of fifteen complete, she attained to her full height, which was so far above the stature of most women, that she was accounted among the tallest of our nation, but so as that diminished nothing of her handsomeness, every part answering thereto, as a slender waist, large shoulders, big breast, hanches full and round.... Her visage was long, her nose high, her brow bent and smooth as alabaster, her chin and cheeks somewhat full, with a little red, especially in hot weather. There was nothing bore so little proportion to her body as her hand and foot, both being extremely little, but weel-shapen, white and full of flesh. Her skin was smooth and clear, but what was covered not so white as I have seen several of her complexion that was purely sanguinean; her hair, being of a bright flaxen, which darkened as she grew in age, added much to her beauty; wherein there was no blemish, her mien being answerable to that, and her person gave occasion to those that saw her at church or any other public meeting, to assert she graced the place and company where she was. It has often been observed that, when this gentlewoman walked upon the street—which was but upon occasion, being better employed at home—the eyes not only of the men, but also of her own sex, was upon her, so far as their sight could serve them, admiring her parts and handsomeness.'—*Mem. Som.*

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The western clergy sought in their meetings to learn the cause of the heavy wrath which the Almighty was pouring out upon the land. ‘After long attendance, their resolutions ended in confusion, distraction, and division among themselves, prognosticating much more desolation on the land. Whilk did manifestly appear among all estates and ranks of people; for religion and justice being the twa pillars of the land, were houghed [tripped] and near drawn down.... There were no courts of justice, sic as the Secret Council, Session, and Exchequer sitting for the time. All our records and registers carried aff the kingdom to the Tower of London; the Lords of Council, Session, and Exchequer, with their clerks and members of court not daring [to] kythe<sup>149</sup> in their strength for the use of the lieges, but, for fear of the English armies, were forced to abandon themselves; for the whilk cause the people of the land were forced to suit justice frae the English governors and commanders. As for Edinburgh, there was no magistrate there, nor no common council since the fecht at Dunbar; and therefore all petitions and complaints went to the captain of Edinburgh Castle and governor of Leith, wha in effect (to speak truly) proceeded more equitably and conscientiously in justice nor our awn Scottish magistrates.’—*Nic.*

Nov.

We hear about this time of a paper given in by ‘a godly Scot’ to the Commission of the Kirk, alleging that the causes of the evils of the country lay, among other things, in the undertaking of solemn engagements unwarranted by the word of God, in a fleshly zeal in carrying on of these obligations by cruel oppressions for the constraint of the unwilling, and the idolising of individuals and receiving doctrine from them implicitly.<sup>150</sup>

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At this very time, a lively controversy was going on between Sir Alexander Irvine of Drum, in Aberdeenshire, and the presbytery of Aberdeen, as to the title which the latter body assumed of controlling his spiritual interests. A quarrel had taken place between the parties regarding the settlement of an incumbent in Sir Alexander’s parish, and he had appealed from the power of the local court to the English commander, Colonel Overton—a proceeding which must have been deeply grievous to the presbytery. A sentence of excommunication having been consequently pronounced



against the knight, he uttered a protest against it in animated terms. It proceeded, he said, ‘from men more full of fiery zeal to advance their own interests than the gospel of Jesus Christ.’ They had urged him by threats to subscribe the Solemn League and Covenant, ‘as gif it had been a matter of salvation for me to swear to establish by arms Presbyterian government in England.’ And not only would they have had him to forswear himself, but ‘they did urge with the like threatenings my wife and three young maids, my dochters, who, for their age and sex, are not capable of such politic theology.’ To make good their charge against him of being a papist—a ‘pretext to satisfy their restless ambition and execute their rage upon all who will not implicitly obey them’—they ‘enforced my servants to reveal upon oath what they saw, heard, or knew done in my house—beyond which no Turkish inquisition could pass.’ Sir Alexander, therefore, now appeared by procurator, declaring, ‘I separate myself from the discipline of presbytery, particularly that of Aberdeen, as a human invention that is destructive to the civil peace of Christians;’ further appealing them before Colonel Overton, or any other judge who shall be appointed by the English commissioners, ‘to hear yourselves censured and condignly punished for your open contempt of their authority, for your false slanders raised against me, and for your cruel proceedings and erring sentence of excommunication.’<sup>151</sup>

Whitelocke, in January 1652, quotes letters which speak of the ‘great pride and insolency of the presbyteries in Scotland,’ with particular reference to the Laird of Drum’s case. It is stated that the laird wrote a letter of thanks to Lieutenant-general Monk, ‘for relieving those who were oppressed in their consciences by the presbyteries.’ The Cromwellian army was on principle favourable to toleration, and adverse to all sorts of church-discipline. Monk was therefore ready to issue an order, ‘that no oaths should be imposed by any of the kirk-officers upon any person without order from the state of England, nor any covenant, and, if they do, that he will deal with them as enemies.... The provost and bailiffs of Aberdeen were to proclaim this.’

From a petition presented to the king after the Restoration by his son, the bitterness of Sir Alexander’s experiences throughout the troubles appears to have been much the same in character as that of which an example has been

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given in the case of Farquharson of Inverey. 'His lands were the first of Scotland that were spoiled.' He was 'twice fined in £4000 sterling, his house of Drum four times garrisoned and at length totally plundered, and his wife and children turned out of doors.'<sup>152</sup> For five years his revenues were detained from him by 'one Forbes'—doubtless the same minion to whom the government had committed the fining of old Inverey.<sup>153</sup> Another Aberdeenshire laird, Sir Gilbert Menzies of Pitfoddels, being really a Catholic, had come even worse off. Throughout the whole period of the troubles, not only were his lands taxed like those of his neighbours for the support of the Covenanting armies, but he suffered endless finings, quarterings, and repeated banishments, on account of his inability in personal sentiment to go along with the popular movement. It appears from a petition he presented after the Restoration, that fully £12,000 sterling had been extorted from his estate, leaving it greatly reduced in extent and 'like to ruin;' as a matter of course, he and his family had undergone the greatest poverty abroad, and in one of the flights made by his family from Scotland, his wife and one of his sons had perished in a storm at sea.<sup>154</sup> We obtain from these historiettes, which are but examples of a large class, some notion of the grounds of the charges brought by cavalier writers against the men who, in all sincerity, believed they were establishing the reign of Christ upon the earth. Trusting to force for the attainment of the ideal which they had placed before them, they stirred up a spirit which made their object only the more unattainable.

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One good consequence of the English military rule now established in Scotland was the introduction of some improved police regulations into Edinburgh.

DEC.

Householders were compelled to hang out lanterns, from six to nine at night, at their doors and windows; by which arrangement, 'the winter night was almost as light as the day.' The expense was reckoned to be about forty-five pounds a night. Rigorous measures were also taken for the cleaning of the streets and lanes, and for preventing foul water being thrown forth from windows.

It would appear that these regulations were steadily kept up during the English occupation. In April 1657, there was a petition from the magistrates of Edinburgh to the commissioners of justiciary craving remission of certain fines, amounting in all to £50 sterling, which had been imposed on the magistrates ‘for not cleansing the streets.’ They alleged that they had ‘employed scavengers’ with a view to giving the commissioners satisfaction.—B. A.

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Nicoll, writing towards the close of 1651, gives a second and most unflattering picture of the moral conditions of Scotland. ‘Under heaven,’ he says, ‘there was not greater falset, oppression, division, hatred, pride, malice, and envy, nor was at this time, and diverse and sundry years before (ever since the subscribing the Covenant); every man seeking himself and his awn ends, even under a cloak of piety, whilk did cover much knavery.’ He adds: ‘Much of the ministry, also, could not purge themselves of their vices of pride, avarice, and cruelty; where they maligned, they were divided in their judgments and opinions, and made their pulpits to speak ane against another. Great care they had of their augmentations, and *Reek Pennies*,<sup>155</sup> never before heard of but within thir few years. Pride and cruelty, ane against another, much abounded; little charity or mercy to restore the weak, was to be found among them.... This I observe not out of malice to the ministry, but to record the truth, for all offended, from the prince to the beggar.’

It is instructive to observe that no sooner had the ecclesiastical system recently paramount received a blow, than dissent, so long repressed, began to make itself heard. Nicoll notes that ‘much hypocrisy and falset formerly hid did now break out amang our Scots, wha, leaving their former principles of religion, became papists and atheists.’ Many sought favour with the English by supporting their rule, advising that liberty of conscience which was regarded with such abhorrence by the Scottish church, and calling for a restraint to be put upon the power of presbyteries as ‘anti-Christian and tyrannical.’ ‘Others vilipend the Covenant, holding it lawful for all men to break it, as being ane human institution;’ at the same time denouncing many

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of the clergy as not worthy to teach, declaring the Sabbath to be unnecessary, and propounding that children should not be baptised ‘till they could give confession of their faith.’

About April 1652, we begin to find dissent taking recognisable forms. There were now Antinomians, Antitrinitarians, Familists,<sup>156</sup> and Seekers, as well as Brownists, Independents, and Erastians. Where there had formerly been no avowed Anabaptists, there were now many, ‘sae that thrice in the week—namely, on Monday, Wednesday, and Friday—there were some dippit at Bonnington Mill, betwixt Leith and Edinburgh, both men and women of good rank. Some days there would be sundry hundred persons attending that action, and fifteen persons baptised in one day by the Anabaptists.’ Among the converts was ‘the Lady Craigie Wallace, a lady in the west country.’—*Nic.* In autumn, at Cupar, Mr Brown, preacher to Fairfax’s regiment, re-baptised several of the soldiers ‘in the Eden, near to Airdrie’s lodging, by dipping them over head and ears, many of the inhabitants looking on.’—*Lam.*

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The Castle of Dunnottar was now almost the only place of strength in the kingdom which resisted the English arms. It held out with a small garrison under the command of George Ogilvie of Barras, whose anxiety to maintain his post was increased by the consideration that within these sea-girt walls rested the regalia of the kingdom—the crown, sceptre, and sword of state—which had been consigned by the Committee of Estates to this fort, under the care of the Earl Marischal, as being the strongest place in the kingdom that remained untaken after the reduction of Edinburgh Castle. For many months, Ogilvie and his little garrison had defied the English forces; but now it was likely that he could not hold out much longer—in which case, of course, the regalia must fall into the hands of the enemy. The Earl Marischal had been taken with the Committee of Estates at Alyth, and shipped off to London as a prisoner. He contrived, however, to send by a private hand the key of the closet in which the regalia lay, to his mother, the Dowager-countess, who by the advice of her son, opened a communication with Mr James Grainger, minister of Kineff, a

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person in whom the family reposed great faith, with a view to his assisting in the conveying away of the precious ‘honours.’ The minister and his wife, Christian Fletcher [posterity will desire the preservation of her whole name], entered heartily into the wishes of the countess.<sup>157</sup> Mrs Grainger, by permission of the English commander, visiting the wife of the governor of the castle, received from that lady, but without the knowledge of her husband, the crown into her lap. The sceptre and sword, wrapped up in a bundle of *hards* or lint, were placed on the back of a female attendant. When Mrs Grainger and her maid returned through the beleaguering camp, it appeared as if she were taking away some lint to be spun for Mrs Ogilvie. So far from suspecting any trick, the English officer on duty is said to have helped Mrs Grainger upon her horse. The castle was rendered three months afterwards, when great was the rage of the English on finding that the regalia were gone. It was adroitly given out that they had been carried beyond sea by Sir John Keith, a younger brother of the earl, and handed to King Charles at Paris.

In reality, on reaching the manse of Kineff, Mrs Grainger had delivered the crown, sceptre, and sword to her husband, who took the earliest opportunity of burying them under the floor of his church, imparting the secret of their concealment to no one but the Countess Marischal. To the credit of the worthy minister and his wife, they preserved their secret inviolate till the Restoration, eight years afterwards, when ‘the honours’ were exhumed, and replaced under proper custody. An order of the Scottish parliament, dated January 11, 1661, rewarded Mrs Grainger with two thousand merks; Ogilvie was created a baronet; while Sir John Keith, whose immediate concern in the affair does not appear to have been great, was made Knight Marischal of Scotland, with a salary of £400 yearly; to which rewards was added in 1677 a peerage under the title of Earl of Kintore.<sup>158</sup>

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‘In these times, the English commanders had great respect to justice, and in doing execution upon malefactors, such as thieves, harlots, and others of that kind, by scourging, hanging, kicking, cutting off their ears, and stigmating of them with het irons.’—*Nic.*

The diarist acknowledges that the English judicature established at Leith *condemned* the native one by its impartiality, suitors returning from it ‘with great contentment.’ He adds: ‘To speak the truth, the English were more indulgent and merciful to the Scots nor the Scots were their awn countrymen and neighbours. They filled up the rooms of justice-courts with very honest clerks,’ &c.

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Being Monday, a celebrated eclipse of the sun took place between eight and eleven in the morning, with a perfectly clear sky. ‘The whole body of the sun did appear to us as if it had been covered with the moon; only there was a circle about the sun that appeared somewhat clear without any light [the corona?]. At that time there did a star appear in the firmament, near to the place of the eclipse.’ ‘There was ane manifest darkness for the space of some moments.’—*Lam.* ‘The time of the eclipse it was exceedingly fearful and dark, to the terror of many.’—*Nic.* Another account says, the darkness continued about eight minutes, and the people began to pray to God.<sup>159</sup> ‘The like, as thought by astrologers, was not since the darkness at our Lord’s passion. The country people, tilling, loosed their ploughs, and thought it had been the latter day.... The birds clapped to the ground.’—*Law.* The day of this eclipse was long remembered, under the name of Mirk MONONDAY.

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MAR. 29.

Died at the Wemyss in Fife, Eleanour Fleming, Countess of Wemyss, without children. She had been married to her husband only two years, but in that time had made him, if report spoke true, ‘a hundred thousand merk worse’ than before. ‘She caused her husband give a free discharge to her brother, the Lord Fleming, of her whole tocher, being about twenty thousand merks Scots, before any of it was paid to him. She caused her husband and her brother to give Mr Patrick Gillespie a bond of four thousand merks.... She caused also a door to be stricken through the wall of

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her chamber, for to go to the wine-cellar; for she had, as is said by many, a great desire after strong drink.’—*Lam.* Verily, a trying sort of lady for a quiet nobleman like Lord Wemyss, who nevertheless ventured on a third wife before the year was out—the mother of Anne Duchess of Monmouth.

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‘It pleased God to lay the town of Glasgow desolate by a violent and sudden fire.... The far best part of the fore streets and most considerable buildings were burnt, together with above fourscore lanes and closes, which were the dwellings of above a thousand families, and almost all the shops and warehouses of the merchants, many whereof are near by ruined. Besides, a great many more of widows, orphans, and distressed honest families, having lost what they had, are now put to starving and begging. The like of this fire has not been formerly heard of in this nation.’—*Nic.* ‘It was said 1060 houses burnt.’—*C. P. H.*

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Five days after this fire, the Town Council appointed ‘the provost, with John Bell, to ride to Ayr, to the English officers there, wha has been here and seen the town’s lamentable condition—such as Colonel Overton and others—and to obtain from them letters of recommendation to such officers or judges who sits in Edinburgh, to the effect that the same may be recommendit by them to the parliament of England, that all help and supply may be gotten thereby that may be, for the supply of such as has their lands and guidis burnt.’<sup>[160](#)</sup>

It must have been with a sore heart that the newly subjugated city of the west condescended to beg from the parliament of the sectaries. The case, however, was one of extreme misery, for the resources of Scotland, and of the west as much as anywhere, had been exhausted by the war, so that without foreign help it must have been impossible to repair the calamity.

Little more than four years after this period, Robert Baillie speaks of Glasgow as much revived. ‘Our people,’ he says, ‘has much more trade in comparison than any other: their buildings increase strangely both for number and fairness.’ He adds, that in his time the city had been more than doubled.

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In a General Assembly which sat at Edinburgh, sixty-five of the clergy protested against the lawfulness of the last General Assemblies, in which resolutions in favour of the king had been sanctioned. Andrew Cant, Samuel Rutherford, and Robert Traill were the leaders of this

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zealous faction—the *Protesters* or *Remonstrators*—against whom the censures of the kirk were threatened by the majority in vain. By this schism, the hitherto admired unity of the Scottish kirk was broken up, and henceforth, for several years, there scarcely ever was a meeting of any of its courts unmarked by scenes of indecent violence. At a synod held at Glasgow in October, two days being spent in contentions about the choice of a moderator, the meeting dissolved without attempting any other business.—*Nic.* Not long after, when the General Assembly ordered a fast for the sins of the nation, and because ‘few were seeking the things of Jesus Christ,’ the Remonstrators disallowed it, and appointed among themselves ‘a day of humiliation for that humiliation.’ In all matters regarding the settlement of ministers in parishes, there was furious and uncompromising war for a series of years between the two parties.

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This summer was remarkable for clear, dry, warm weather, parching up the herbage, and producing exceedingly light crops on the best lands. The harvest commenced in June, and in a field near Dundee there were *stooks* on the 7th of July. At the end of July and beginning of August, the harvest was general; and before the end of the latter month, all was ‘in’—circumstances unexampled, and which have perhaps never again occurred. ‘The pease wallowed [that is, faded in the bloom] a fortnight before Lammass, whereas some years they continue till Michaelmas.’—*Lam.* ‘All the corn was got in without rain, and long before the usual time. The like harvest was in England.’ ‘It is truly reported that in England there was such abundance of white butterflies as was never heard of before. They destroyed all cabbage; and divers cobs coming from sea, hardly could see the land for them.’—*Nic.*

The summer ‘produced ripe wine-berries and grapes, and abundance of Scotch chestanes openly sauld at the Mercat Cross of Edinburgh, and baken in pasties at banquets.’—*Nic.*

The weather, strange to say, remained of the same character all the latter part of the year, so that fruit-trees had a second blossoming in November, and some of them brought forth fruit, ‘albeit not in perfection.’ The furze and broom bloomed again; the violet, not due till March, presented its modest head in November. Birds began to build their nests, and lay eggs, at or near Martinmas, and salads and sybows were cried and sold in Edinburgh on the 27th of November.—*Nic.*

1652.

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The letters sent home by the English soldiery now marching through the Highlands, describe the country as mountainous, yet the valleys rich; the houses of earth and turf so low that the horsemen sometimes rode over them; the people generally going with plaids about their middles, both men and women; ‘simple and ignorant in the things of God, and some of them as brutish as heathens;’ nevertheless, ‘some did hear the English preachers with great attention and groaning.’<sup>[161](#)</sup>

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In some churches in Fife, as Kirkcaldy and Kennoway, the English soldiers ‘did pull down the stool of repentance; they did sit in them also, in contempt, in some places where they came, in time of sermon.’ Several ministers were openly challenged for their expressions in prayers and sermons, by these soldiers. Mr George Hamilton at Pittenweem was so troubled by some of Fairfax’s regiment, that he had to break off; ‘at which time there was great uproar in the church there.’—*Lam.*

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The Earl of Crawford, having been taken by the English at Alyth a twelvemonth before, now lay a prisoner in the Tower. The countess—a sister of the late Duke of Hamilton—desiring to visit her husband in his affliction, left Scotland for the purpose in a stage-coach which had recently been established for the keeping up of communication between the two countries—‘the journey coach,’ says Lamont, ‘that comes ordinarily between England and Scotland.’ We do not learn the periods of departure, or any other detail regarding this vehicle; but from a paragraph which occurs under May 1658, we may presume that it did not go oftener than once in three weeks, and charged for a seat fully as much as a first-class railway ticket of the present day.

AUG.

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‘There came into the very brig of Leith ane little whale, which rendered much profit to the English.’—*Nic.*

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This ‘little whale’ would probably be a stray member of a flock of the *Delphinus globioceps*, which so frequently are embayed and slaughtered in Zetland and the Faröe Islands. The appearance of such an animal in Leith harbour is an event of a very rare character.

1652.

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Four English gentlemen, Messrs George Smith, John Martin, Andrew Owen, and Edward Mosley, the commissioners appointed by Cromwell for the administration of justice in Scotland in place of the Court of Session, commenced their labours in the criminal department at Edinburgh. Three days were spent in the trial and fining of persons of impure life, of whom there were above sixty brought before the judges in a day. ‘It is observable,’ says an English newspaper of the time, ‘that such is the malice of these people, that most of them were accused for facts done divers years since, and the chief proof against them was their own confession before the kirk,

OCT.

who are in this worse than the Roman religion, who do not make so ill a use of their auricular confession. Some of the facts were committed five, ten, nay, twenty years. There was one Ephraim Bennet, a gunner in Leith, indicted, convicted, and condemned for coining sixpences, shillings, and half-crowns. Also two Englishmen, Wilkinson and Newcome, condemned for robbing three men, and for killing a Scottishman near Haddington in March last. But that which is most observable is, that some were brought before them for witches, two whereof had been brought before the kirk about the time of the armies coming into Scotland, and having confessed, were turned over to the civil magistrate. The court demanding how they came to be proved witches, they declared they were forced to it by the exceeding torture they were put to, which was by tying their thumbs behind them, and then hanging them up by them: two Highlanders whipped them, after which they set lighted candles to the soles of their feet, and between their toes, then burned them by putting lighted candles in their mouths, and then burning them in the head: there were six of them accused in all, four whereof died of the torture.... Another woman that was suspected, according to their thoughts, to be a witch, was twenty-eight days and nights with bread and water, being stripped stark naked, and laid upon a cold stone, with only a haircloth over her. Others had hair-shirts dipped in vinegar put on them, to fetch off the skin.’—*Mercurius Politicus*.<sup>162</sup> The resolution of the judges to inquire into these cruelties is intimated.

Regarding a man accused of witchcraft, it is mentioned a few days later by the same newspaper, that he first confessed a number of ridiculous things, including frequent converse with the devil, but before the judges he denied all, and said that he *had only been in a dream*. ‘The truth is, he lived in so poor a condition, that *he confessed or rather said anything that was put into his head*.... By this you may guess upon what grounds many hundreds have heretofore been burnt in this country for witches.’ A most pregnant remark, truly.

1652.

Whitelocke intimates letters from Scotland at this time, stating that sixty persons, men and women, had been accused of witchcraft before the commissioners for the administration of justice in Scotland at the last circuit; but ‘they found so much malice and so little proof against them, that none were condemned.’<sup>163</sup>

The Scottish civil bench having not long been free from an evil reputation for *budds* or bribes, and to the last liable to the charge of partiality, it is alleged that the English judges rather surprised the public by their equitable decisions. It is added that some one, in a subsequent age, was lauding to the Lord-president Gilmour, the remarkable impartiality of these judges and the general equity of their proceedings, when the Scottish judge answered in his rough way: ‘Deil thank them, they had neither kith nor kin!’<sup>164</sup>

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A person who was ‘both man and woman, *a thing not ordinar in this kingdom*,’ was hanged at Edinburgh on account of some irregularities of conduct. ‘His custom was always to go in a woman’s habit.’—*Lam*. This person passed by the name of Margaret Rannie. ‘When opened by certain doctors and apothecaries, [he] was found to be two every way, having two hearts, two livers, two every inward thing....’—*C. P. H*. The same day, an old man was burnt for warlockry, ‘wha had come in and rendered himself to prison, confessing his sin, and willing that justice be execute on him, for safety of his saul.’—*Nic*.

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1653. FEB. 11.

Early in this month, a number of *pellocks* or porpoises were thrown ashore dead on the coast of Fife; ‘whilk was taken to be very ominous.’—*Nic*.

JUNE.

The humiliation of the ecclesiastical system of Scotland, lately so triumphant, was this day completed by the breaking up of the General Assembly at the order of Cromwell. The court had met in Edinburgh, and the moderator, Mr David Dickson, had prayed and begun to call the roll, when ‘there comes in two lieutenant-colonels of the English forces, and desired them to be silent, for they had something to speak to them. So one of the lieutenant-colonels [Cotterell] began to ask them by what authority they met—if by authority of the late parliament, or by

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authority of the commander-in-chief, or if by the authority of their late king? [Mr David Dickson, the moderator of the former assembly, 'said to him: "Sir, you ask by what authority we sit here; we sit, not as having authority from any power on earth, but as having power and authority from Jesus Christ; and by him, and for him, and for the good of his church, do we sit." Cotterell answered: "You are to sit no more;" whereby he declared himself, and them that employed him, enemies to Christ.'—*C. P. H.*]... He desired further, that all the names of the members of the assembly might be given him. The moderator replied that they could not give them, because they were not called; but if he would have a little patience till they called the roll, he should have them. He answered, if it were not longsome, he should do it. So the moderator began at the presbytery of Argyle, to examine their commission. Here the English officer replied that that would prove tedious, so that he could not wait upon it, but desired them to remove and begone; and if they would not, he had instructions what to do. ['He would drag us out of the room.'—*Bail.*] Upon this the moderator protested, in the name of the assembly, that they were Christ's court, and that any violence or injury done to them might not hinder any meeting of theirs when convenient occasion should offer itself. He desired they might pray a little before they dissolved. The moderator began prayer; and after he had spoken five or six sentences, the English officer desired them again to be gone. Notwithstanding, the moderator went on in prayer, but was forced at length to break off. So they arose and came forth. ['When we had entered a protestation of this unexampled violence, we did rise and follow him; he led us through the streets a mile out of town, encompassing us with foot-companies of musketeers and horsemen without; all the people gazing and mourning as at the saddest spectacle they had ever seen.'—*Bail.*] They were guarded on both hands up the way to the Weigh-house, where they were carried along to the Port, and thence to the Quarry Holes [Bruntsfield Links], where they made them to stand. The English required again all their names; they said they were most willing. So they told all their names. So the moderator protested again at that place. After their names were written, they discharged them to meet again, under the pain of being breakers of the peace.... The English desired them to go back to Edinburgh and lodge there all night, and be gone before eight o'clock next day; and discharged that not above two of them should be seen together.'—*Nic.*

‘The day following, by sound of trumpet, we were commanded off the town, under pain of present imprisonment. Thus our General Assembly, the glory and strength of our church, is crushed and trod under foot. Our hearts are sad, our eyes run down with water, we sigh to God against whom we have sinned, and wait for the help of his hand.’—*Bail*.

The suppression of the supreme church-court was followed (August 4) by a proclamation at Edinburgh, ‘discharging the ministry to pray for the king, or to preach anything against the title of England to Scotland. Mr Robert Lawrie, in his prayer, prayed for the king. When he came from the pulpit, he was carried to the Castle, but stayed short while, because an Englishman would be caution that he should answer whenever he should be called. Notwithstanding, the ministry, finding it a duty lying on them by the Covenants, continued all of them praying for the king, and gave their reasons for it to the English commissioners.’—*C. P. H.*

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The heat of the summer 1652, and the earliness of the harvest, had not been attended with such plenty as to produce extraordinary cheapness. During this summer of 1653, wheat was £1, 5s. sterling per boll, and the inferior grains about 20s. An excellent crop having been secured, ‘the prices fell strangely, so that from Michaelmas till the end of the year, oats were at [6s. 8d.] per boll, and wheat [11s. 8d. and 13s. 4d.].’—*Lam*.

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(SEP.)

The Trembling Exies—that is, ague—was this year ‘exceeding frequent through all parts of this nation, in such condition as was never seen before ... the smallpox also, whereof many people, both old and young, perished.’—*Nic*.

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The gallant resistance made to the English by the loyal forces under Lord Kenmure, in the north of Scotland, was heard of with much interest by Charles II. and his little court at Paris. Amongst other adherents of royalty assembled there, was a Welsh gentleman of about twenty-three years of age, styled Captain Wogan, who, entering in mere boyhood into the service of the parliament under General Ireton, had been converted by the king's death, and since distinguished himself in the loyal movements made in Ireland under the Marquis of Ormond. Wogan was one of those ardent spirits whom Montrose would have been delighted to associate in his enterprises. He now planned an expedition of a most extraordinary nature. He proposed nothing less than to march, with such as would join him, through the length of England and Lowland Scotland, in order to take part in the guerrilla war going on in the Highlands. Clarendon tells how reluctant the young king was to sanction so mad an undertaking; but at length he was induced to give it his countenance.

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1653.

Captain Wogan accordingly landed with a few companions at Dover, and, proceeding to London, there went about engaging associates and making needful preparations, without attracting the notice of the republican government. The men and horses being rendezvoused at Barnet, Wogan commenced his march for the north with an armed troop, which passed everywhere as if it were a part of the regular army. By easy journeys, but keeping as much as possible out of common roads, they reached Durham, and thence advanced into Scotland by Peebles. It appears that one of their first adventures in Scotland was to pass through a fair in open day.<sup>165</sup> Monk, hearing on a Sunday of their having been on the preceding night at Peebles, caused parties from Linlithgow, Stirling, and Glasgow to keep a look-out; but the people of the country did not help the English soldiery with intelligence, and this net was spread in vain.<sup>166</sup> Wogan succeeded in conducting his troop in perfect safety into the Highlands.

This gallant little party met a cordial reception, and immediately entered with the greatest activity into the war of skirmishes and surprises which was then going on. The chief of the Camerons, the gallant Evan Dhu, hailed in Wogan a kindred spirit, and joined in some of his enterprises.<sup>167</sup> No garrison within many miles of the Highland frontier was secure from their inroads. Their

1653.

united names became a terror to the English. But one winter month of Highland campaigning formed the entire career of Wogan. A lieutenant's party of the veteran regiment known as the *Brazen Wall*, left the garrison at Drummond one day, to recover some sheep which had been carried away by the Highlanders. It became enclosed unawares in a superior force of the enemy, of which Wogan and his troop formed part. The Brazen Walls got off with a severe loss; but Wogan had received a wound in the shoulder from a tuck. It was such an affair as a good surgeon and a week of quiet might have healed—the circumstances of the poor youth made it mortal in a few days, to the great grief of all who knew him.<sup>168</sup> He was buried with military honours, and amidst the greatest demonstrations of Highland sorrow, in the churchyard of Kenmore<sup>169</sup> (about February 1, 1654). 'Great indignation was there,' says Heath, 'against Robinson, the surgeon that dressed him, for his neglect of him, the Earl of Athole having threatened to kill him; so dearly was this hero beloved by that nation.' The hope of this English author 'that some grateful muse should sing his achievements,' has not as yet been realised; but the readers of *Waverley* will remember how the author represents his hero as gloating over Flora M'Ivor's verses *To an Oak-tree said to mark the Grave of Captain Wogan*:

'Emblem of England's ancient faith,  
Full proudly may thy branches wave,  
Where loyalty lies low in death,  
And valour fills a timeless grave.

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Thy death-hour heard no kindred wail,  
No holy knell thy requiem rung,  
Thy mourners were the plaided Gael,  
Thy dirge the clamorous pibroch sung.

Yet who, in Fortune's summer tide,  
To waste life's longest term away,  
Would change that glorious dawn of thine,  
Though darkened ere its noontide day?'

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From October by-past to this date, the weather was dry and fair to such a degree as to make the period like a second summer. Nicoll states that, in all that time, there had not been above six showers of wet or snow, and two of these fell on Sundays.

1654. MAR.

General Monk coming down to Edinburgh to take command of the forces against Glencairn and Kenmure, and to proclaim Oliver's union of Scotland and England, had a most honourable reception. 'The provost and bailies in their scarlet gowns met him at the Nether Bow Port, the haill council in order going before them.' After the proclamation, they 'did convoy him to a sumptuous dinner and feast, prepared by the town of Edinburgh for him and his special crowners [colonels]. This feast was six days in preparing, *whereat the bailies of Edinburgh did stand and serve the haill time of that dinner.*' 'There was great preparation for fireworks, whilk was actit at the Mercat Cross betwixt nine and twelve hours in the nicht, to the admiration of many people.'—*Nic.*

1654. MAY 4.

Next day was proclaimed an act of *grace*, forfaiting the heirs of the Duke of Hamilton and some score of other nobles, and imposing huge fines upon sundry others; for example, £15,000 on the heirs of the Earl of Buccleuch, £10,000 on the Earl of Panmure, £6000 on the Earl of Roxburgh, £5000 on the Earl of Perth, and the latter sum and other sums down to £1000 on upwards of fifty others, noblemen and gentlemen [these sums being of sterling money].

If, as has been insinuated by cavalier writers, the Scotch nobles were prompted in their joining the religious movement of 1637 by a fear of the revocation of church-lands, they were now suffering a severe punishment for their hypocrisy. Under the late exhausting wars, in which they had incurred vast expenses, and the penal fines imposed on them by Cromwell, they might well be described by a contemporary writer as nearly all 'wracked.' Our authority sums them up in the following terms:

'Dukes Hamilton, the one execute, the other slain; their [e]state forfait[ed]; one part gifted to English sogers;

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the rest will not pay the debt. Huntly execute; his sons all dead but the youngest; there is more debt on the house nor the land can pay. Lennox is living, as a man buried, in his house of Cobham. Douglas and his son Arran are quiet men of no respect. Argyle almost drowned in debt, in friendship with the English, but in hatred with the country. Chancellor Loudon lives like an outlaw about Athole, his lands comprised for debt, under a general very great disgrace. Marischal, Rothes, Eglintoun and his three sons, Crawford, Lauderdale, and others, prisoners in England, and their lands all either sequestrat or forfeit[ed], and gifted to English sogers. Balmerino suddenly dead, and his son, for public debt, comprisings, and captions, keeps not the causey [that is, cannot appear in public].’

Landed proprietors, merchants, and indeed the entire community, were now in a state of prostration in consequence of the wars. According to the diarist Nicoll—‘The poverty of the land daily increased, by reason of inlaik of trade and traffic, both by sea and land, the people being poor and under cess, quarterings, and other burdens. Falsets and dyvours [bankrupts] daily increased; sundry of good rank, nobles, gentry, and burgesses, denuncit to the horn, their escheats taken, their persons imprisoned, and deteinit therein till their death. Bankrupts and broken men, through all parts of the nation, for fear of caption and warding, were forced to flie to Glencairn and Kenmure, who were now in arms against the English.’

In April of this year, an additional trouble and burden fell upon the people, in consequence of the royalist insurrections, no person being now allowed to travel from home without a pass, for which a shilling sterling was charged. Scotland must have then been in much the same condition as Hungary and Lombardy were under the Austrians after 1848.

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The summer of this year was exceedingly fine, producing ripe peas and cherries at the beginning of June, and yielding an early and abundant harvest; so that the best oatmeal was only fourpence sterling per peck. ‘The lambs and fowls were also at an exceeding cheap rate’ (*Nic.*), and it is also stated that, from the abundance of herrings in the west seas, these fish were sold so low as twopence a hundred. Cheese was, in the west country, at 2s. 6d. sterling per stone.—*Caldwell Papers*. This bounty of Providence is not

spoken of by contemporary journalists as abating in any degree the sufferings of the people—though these, we cannot doubt, would have been much greater if there had been a dearth. Just at this time, Nicoll returns to the subject of the general distresses of the country. ‘Much people,’ he says, ‘were brought to misery,’ and the land ‘groaned under its calamities and burdens.’

Owing to the drought of the summer, the wells on which Edinburgh depended for water ran dry, 'sae that the inhabitants could not get sufficient for ordering their meat.' Nevertheless, 'all the *west country* had more than ordinar abundance of rain and weat.'—*Nic*. The same writer adds afterwards that the people of Edinburgh were obliged to go a mile before they could get any clean water, 'either for brewing of ale, or for their pot meat.'

1654.

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This seems to have been the time when the word **TORIES**, since so notable, was introduced into our island. It had been first applied to a set of predatory outlaws in Ireland. Thus becoming familiar as a term for brigands, it naturally was applied to a number of irregular soldiers connected with the insurgent army of the Earl of Glencairn, who, according to Nicoll, lay in holes and other private places, and robbed and spoiled all who fell into their hands, '*ofttimes with the purse cutting the throat of the awner.*' The English troops bestirred themselves to capture these Tories, and in July, *eight* were taken out of the Tolbooth of Edinburgh, and as many out of the Canongate jail, besides others from Perth and Dundee, and shipped at Leith to be taken and sold as slaves in Barbadoes.—*Nic*.

JUNE.

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Andrew Hill, musician, was tried for the abduction of a young pupil, Marion Foulis, daughter of Foulis of Ravelston. One of the many specific charges against this base fellow was, that 'he used sorceries and enchantments—namely, roots and herbs—with which he boasted that he could gain the affection of any woman he pleased, and which he used towards the said Marion.' The jury, while condemning him for the main offence, acquitted him of sorcery, though finding that he had been 'a foolish boaster of his skill in herbs and roots for captivating women.' While the judges delayed for fifteen days to

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pass doom upon the culprit, he was ‘eaten of vermin in prison, and so died.’<sup>[170](#)</sup>

It was surely a very perverse love of the supernatural which caused our ancestors to surmise the use of sorcery whenever Cupid played any extraordinary trick. At a later time, when the Earl of Rothes, his majesty’s commissioner, defied scandal in going about openly with Lady Anne Gordon, it was thought he had been bewitched by her. It was also believed that the Duke of Monmouth was spell-bound to Lady Henrietta Wentworth, the charm being lodged in that golden toothpick case which he sent to her from the scaffold. The means, however, thought to be most commonly employed was a *love-philter*. In 1682, James Aikenhead, apothecary in Edinburgh, was pursued before the Privy Council for ‘selling poisonous and amorous drugs and philters, whereby a woman had narrowly escaped with her life, had not Doctor Irving given her ane antidote.’ On this occasion, the case being referred to the College of Physicians, that sapient body pronounced that it was ‘not safe to give such medicaments, without first taking their own advice.’—*Fount*.

1654.

So lately as 1659, a Scotch gentleman is found communicating to a friend a receipt for that *Powder of Sympathy* which in a somewhat earlier age in England was held as qualified for the cure of wounds. It was in the following terms: ‘Take of asphodel Romano, and set it under the sun in the canicular days till it become in white ashes, or like white powder. That done, put it in a box. Then to apply: Take the blood or matter of the wound, on a clean linen, and lay on a little of the powder to the blood or matter; and keep the cloth in a box, where it may neither get much cold nor much heat. This done, dress the wounded person every day once, and keep always linen cloths above the wound. But let no linen cloth which hath been used or worn by any woman come near the powder or wounded person. Observe this secret, and keep it to yourself.’<sup>[171](#)</sup>

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In the course of this month, a number of hares came into the city of Edinburgh, even into its central parts, the

OCT.

High Street and Parliament Close, ‘to the great admiration of many.’ ‘The like was never heard nor seen before.’—*Nic.* This singular circumstance was probably in some way a consequence of the dry nature of the season.

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At this time commenced the series of alleged incidents constituting the once famous history of the DEVIL OF GLENLUCE.

Nov.

A poor weaver, named Gilbert Campbell, at Glenluce in Galloway, had given offence to a sturdy beggar, named Agnew, ‘a most wicked and avowed atheist, for which he was hanged at Dumfries.’ The wretch went away muttering that he would do the family a mischief. Whether before or after Agnew’s death does not appear, the weaver and his family began to be annoyed with whistling noises, and by petty acts of mischief—as the mislaying and destroying of little articles, and the throwing of stones and peats, all by unseen hands. Their clothes were sometimes drawn from them as they lay in bed. At the suggestion of some neighbours, Campbell sent away his children, and for the time peace ensued. So it was, after all except Tom had been brought back, and *not so after Tom had returned likewise*; but, to shew that this was a point of indifference, when Tom had been again sent away in the keeping of the minister of the parish, the annoyances recommenced. This lad, it may be remarked, said he had heard a voice warning him not to go back to his father’s house; and when he did return, he was ‘sore abused,’ and thus once more driven away.

1654.

In February, the family began to hear a voice speak to them, but could not tell whence it came. ‘They came at length in familiar discourse with the foul thief, that they were no more afraid to keep up the clash with him, than to speak with one another; in this they pleased him well, for he desired no better than to have sacrifices offered to him. The minister, hearing of this, went to the house upon the Tuesday, being accompanied by some gentlemen; one James Bailie of Carphin, Alexander Bailie of Dunragget, Mr Robert Hay, and a gentlewoman called Mrs Douglas, with the minister’s wife, did accompany. At their first coming in, the devil says: “*Quam literarum* is good Latin.”

1654.

These are the first words of the Latin Rudiments, which scholars are taught when they go to the grammar-school. He cries again: "A dog!" The minister, thinking he had spoken it to him, said: "He took it not ill to be reviled by Satan, since his Master had trodden that path before him." Answered Satan: "It was not you, sir, I spoke to; I meant the dog there;" for there was a dog standing behind backs. This passing, they all went to prayer; which being ended, they heard a voice speaking out of the ground, from under the bed, in the proper country dialect, which he did counterfeit exactly, saying: "Would you know the witches of Glenluce? I will tell you them;" and so related four or five persons' names that went under a bad report. The weaver informed the company that one of them was dead long ago. The devil answered and said: "It is true she is dead long ago, but her spirit is living with us in the world." The minister replied, saying (though it was not convenient to speak to such an excommunicated and intercommuned person): "The Lord rebuke thee, Satan, and put thee to silence; we are not to receive information from thee, whatsoever name any person goes under; thou art seeking but to seduce this family, for Satan's kingdom is not divided against itself." After which, all went to prayer again, which being ended—for during the time of prayer no noise or trouble was made, except once that a loud fearful yell was heard at a distance, the devil threatening and terrifying the lad Tom, who had come back that day with the minister, "that if he did not depart out of the house, he would set all on fire"—says the minister: "The Lord will preserve the house, and the lad too, seeing he is one of the family, and had God's warrant to tarry in it." The fiend answered: "He shall not get liberty to tarry; he was once put out already, and shall not abide here, though I should pursue him to the end of the world." The minister replied: "The Lord will stop thy malice against him." And then they all went to prayer again; which being ended, the devil said: "Give me a spade and a shovel, and depart from the house for seven days, and I will make a grave, and lie down in it, and shall trouble you no more." The goodman answered: "Not so much as a straw shall be given thee, through God's assistance, even though that would do it." The minister also added: "God shall remove thee in due time." The spirit answered: "I will not remove for you; I have my commission from Christ to tarry and vex this family." The minister answered: "A permission thou hast indeed, but God will stop it in due time." The devil replied: "I have, sir, a commission, which perhaps will last longer than your own." [The minister

died in the year 1655, in December.] The devil had told them “that he had given his commission to Tom to keep.” The company inquired at the lad, who said: “There was something put into his pocket, but it did not tarry.”

After a great deal of the like talk with the unseen tormentor, ending with a declaration from him that he was an evil spirit come from the bottomless pit to vex this house, and that Satan was his father, ‘there appeared a naked hand, and an arm from the elbow down, beating upon the floor till the house did shake again.’ This the minister attested, and also that he heard the voice, saying: ‘Saw you that? It was not my hand—it was *my father’s*; my hand is more black in the loof [palm].’

Sinclair, who relates these things,<sup>172</sup> states that he received them from a son of Campbell who was at 1654. Glasgow College with him. ‘I must here insert,’ he adds, ‘what I heard from one of the ministers of that presbytery, who were appointed to meet at the weaver’s house for prayer and other exercises of that kind. When the day came, five only met; but, before they went in, they stood a while in the croft, which lies round about the house, consulting what to do. They resolved upon two things: First, There should be no words of conjuration used, as commanding him in the name of God to tell whence he was, or to depart from the family, for which they thought they had no call from God; Secondly, That when the devil spoke, none should answer him, but hold on in their worshipping of God, and the duties they were called to. When all of them had prayed by turns, and three of them had spoken a word or two from the Scripture, they prayed again, and then ended, without any disturbance. When that brother who informed me had gone out, one Hugh Nisbit, one of the company, came running after him, desiring him to come back, for he had begun to whistle. “No,” says the other, “I tarried as long as God called me; but go in again I will not.” After this, the said Gilbert suffered much loss, and had many sad nights, not two nights in one week free; and thus it continued until April. From April to July, he had some respite and ease; but after, he was molested with new assaults. Even their victuals were so abused, that the family was in hazard of starving; and that which they ate gave them not their ordinary satisfaction they were wont to find.

‘In this sore and sad affliction, Gilbert Campbell resolved to make his address to the synod of presbyters, for advice and counsel what to do, which was appointed

1654.

to convene in October 1655—namely, Whether to forsake the house or not? The synod, by their committee, appointed to meet at Glenluce in February 1656, thought it fit that a solemn humiliation should be kept through all the bounds of the synod; and, among other causes, to request God in behalf of that afflicted family; which being done carefully, the event was, that his trouble grew less till April, and from April to August he was altogether free. About which time the devil began with new assaults; and taking the ready meat which was in the house, did sometimes hide it in holes by the doorposts, and at other times hid it under the beds, and sometimes among the bed-clothes, and under the linens, and at last did carry it quite away, till nothing was left there save bread and water. This minds me of a small passage in proof of what it said. The goodwife one morning making pottage for the children's breakfast, had the trey-plate wherein the meal lay snatched from her quickly. "Well," says she, "let me have my plate again;" whereupon it came flying at her, without any skaith done. It is like, if she had sought the meal too, she might have got it; such is his civility when he is entreated; a small homage will please him, ere he went. After this, he exercised his malice and cruelty against all persons in the family, in wearying them in the night-time, by stirring and moving through the house, so that they had no rest for noise, which continued all the month of August after this manner. After which time the devil grew yet worse, by roaring and terrifying, by casting of stones, by striking them with staves on their bed in the night-time. And (September 18) about midnight, he cried out with a loud voice, "I shall burn the house." And about three or four nights after, he set one of the beds on fire, which was soon put out, without any prejudice except the bed itself.'

Robert Baillie, writing to his friend Mr Spang at Rotterdam in 1659, answers an inquiry of his correspondent regarding 'the apparition in Galloway,' stating that it is 'notourly known.' He adds a short narrative of the chief particulars, informing us that for a twelvemonth the apparition had been silent.

It is the first, but not the only case of such spiritual visitations, which is reported as occurring in Scotland during the seventeenth century: another, which happened at Rerrick in the stewartry of Kirkcudbright in 1695, attracted great attention. The Glenluce and Rerrick spirits belong to a class familiar in Germany under the name of *Poltergeist*. In Beaumont's



*Gleanings of Antiquities*, 1724, the author quotes from Aventinus's *Annals of Bavaria* a case of poltergeist resembling in many circumstances this Glenluce one. 'This pestilent and wicked genius, taking a human shape, gave answers, discovered thefts, accused many of crimes, and set a mark of infamy on them, stirred up discords and ill-will among them. By degrees, he set fire to and burned down cottages, but was more troublesome to one man than the rest,' &c.

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Baillie, writing a little before this time, laments 'the abolition of almost all our church liberties.' By the putting down of our General Assemblies and Kirk Commission, licence had been given, he says, to 'any who will to profess grievous errors.' This, where 'we expected a full and perfect reformation, does oft break our heart.' It has already been seen that, so soon as the incoming of the English sectaries had to some degree checked the 'church liberties,' dissent had begun to appear in various forms. We now hear of off-breakings of a kind more alarming than ever.

1655. JAN.

There arose at this time—to use the language of a contemporary—'great numbers of that damnable sect of the Quakers, who, being deluded by Satan, drew away mony to their profession, both men and women.'<sup>173</sup> 'They, in a furious way, cry down both ministry and magistracy. Some of them seem actually possessed by a devil; their fury, their irrational passions, and convulsions are so great.'<sup>174</sup> 'Sundry of them walking through the streets, all naked except their shirts, crying: "This is the way, walk ye in it;" others crying out: "The day of salvation is at hand; draw near to the Lord, for the sword of the Lord is drawn, and will not be put up till the enemies of the Lord be destroyed."'

1655.

Under the same mania, several of the English soldiers and certain of the native inhabitants created disturbances in the churches of Edinburgh, calling on the people not to believe the false doctrine which was preached to them. 'The devil, working strongly upon their imaginations, made them to believe that the

1655.

Spirit descendit upon them like ane dow; carried them from one place to another, and made mony of them cry out: “I am the way, the truth, and the life,” and ‘make circles about them[selves] with their hands, with many like actions.’ The devil also told them he was ‘putting aff the old man, that the stones were taken out of their hearts, and they had now got hearts of flesh.’ He threw stones among them, crying out: ‘Lo, here is my heart of stone!’ made swallows come down from chimneys, and cry out: ‘My angels! my angels!’ ‘They continuing in this motion, he made them to believe that Christ pointed at them, and to leave wives and children, and to hear voices, sometimes condemning, sometimes pardoning their sins.... Some of thir Quakers, being recalled [to sanity], began to question whether that power by which they were so strongly act[uat]ed, were divine or diabolical. Thereupon they were stricken with panic fears, and some hands were carried to take up a knife lying upon a table, and their hands carried to their throat, and a voice said: “Open a hole there, and I will give thee the words of eternal life;” which made some of them to apprehend that it was the devil, he being the prince of the powers of the air.... This evil spirit prevailed with much people,<sup>175</sup> and charged them to deny all ministerial teaching and ordinances, together with all notional knowledge formerly gained by such means, to become as though they had never learned anything savingly, and to lay ane new groundwork—namely, to be taught of God within ourselves by waiting upon ane inward light ... and much more.’—*Nic.*

It is remarked by Nicoll, under May 1656, that the Quakers were at that time increasing and becoming more confident, and that their *pretended* sermons and hortations on the Castle Hill of Edinburgh were well attended. It was alleged that the continued divisions among the clergy contributed much to the increase of this heresy.

Towards the end of 1656, the Quaker doctrines had begun to appear among the people in the presbytery of Lanark. The ministers of Douglas and of Lesmahago gave in the names of certain of their parishioners who had been thus deluded. One named William Mitchell compeared, and denied the Confession of Faith; and it appeared soon after that he maintained that ‘there was no baptism with water in the church—God gives every man saving grace—sprinkling of infants and marrying of people with joining of hands was the mark of the beast—there is no natural light in man—no man

was fallen—and the preaching of the gospel as it is in Scotland by the priests thereof was anti-Christian.’ Others ‘reset’ the Quakers, ‘saying they get as much good of them as of anybody else.’ On the 30th of April 1657, the presbytery excommunicated eight persons on account of their obstinate adherence to these doctrines.—*R. P. L.*

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In consequence of excessively stormy weather this month, many thousands of dead eels were cast out upon the banks of the North Loch at Edinburgh, ‘to the admiration of many.’—*Nic.*

FEB.

A severe frost set in, and continued till the middle of April, to the interruption of farmwork; and it was deemed necessary to announce a fast for an early day. ‘No sooner was this fast and humiliation intimate from the pulpits of Edinburgh, but it seemed—and there was no doubt—the Lord was weel pleased; and it was his pleasure to tryst the desire of the people with fair and seasonable weather.’—*Nic.*

Heavy and continual rains in August threatened the crop with destruction. A solemn fast and humiliation was held on the 16th of August, in the hope of averting the threatened calamity. But ‘the people were not rightly humbled; there was no fervent prayer; the Lord’s face was not earnestly sought ... as was evident by the Lord’s frowning countenance and augmentation of the rain, whilk daily increased, and sometimes three days and three nights together without intermission, continuing sae ... till the 15th day of September.’

1655.

For two years past, ‘victual of all sorts was exceeding cheap, the best peck of meal in the mercat of Edinburgh being sold for a groat, and sometimes for [3-1/3d.], the boll of wheat for [6s. 8d.]. But immediately after this extraordinary rain, the mercats did rise, for this unseasonable weather put many in fear of dearth and famine.’—*Nic.*

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We incidentally learn the wages of a skilled artisan in Scotland at this time from the account which Lamont gives of the expense of slating and *pointing* the house of Lundie in Fife. The work was done by David Brown, slater in Anstruther, and his son, and so well, he said, that it would not need to be touched again for seven years. David and his son were paid for this work—their diet in the house during the twenty-four working-days they were engaged upon it, and twenty-four shillings Scots, or *two shillings sterling*, per day, in money.

MAY.

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On a Sunday, at the close of this month, the communion was administered in Edinburgh, the first time after an interval of six years, for so long had the rite been discontinued in the capital and other parts of the kingdom, by reason of the troubles and divisions which had prevailed. From one disqualification and another, ‘much people was debarred.’—*Nic.*

JULY.

The Council of State having forbidden the clergy to pray for the king on pain of being silenced, they, ‘knowing that it lay upon them to preach, and that, if only for naming a king they should occasion the closing of their own mouth, therein they would greatly sin, generally desisted from praying for him as king.’—*C. P. H.*

OCT.

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Owing to the dearth of victual, the burdens of the people were felt as more than ever oppressive. Yet at this crisis, the cess imposed by the English was augmented a fifth. In Edinburgh, another cess was imposed, ‘for buying of horse and carts, for carrying away and transporting of the filth, muck, and fulzie out of the closes and causey of Edinburgh; whilk [the tax] much grievit the people, and so much the more because the people receivit no satisfaction for their money, but the causey and closes continued more and more filthy, and no pains taken for clenging the streets.’—*Nic.*

OCT.

1655.

Rather oddly, the more the poverty of the people increased, vanity the more abounded; ‘for at this time it was daily seen that gentlewomen and burgesses’ wives had more gold and silver about their gown and wyliecoat tails nor their husbands had in their purses and coffers.’ ‘Therefore, great judgment was evidently seen upon the land, and the Lord’s hand stretched out still.’—*Nic.*

The Edinburgh municipality, though it had for some time had a plack on every pint of ale sold in the city, was 1,100,000 merks [upwards of £61,000] in debt. ‘Oh, for the miseries of kirk and state at this time!’ exclaims Nicoll. ‘The Lord’s anger hot against both, and nane to stand up in the gap.’

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After some weeks of severe and stormy weather, there befell this day a tempest of the most terrible character, from the north-east, producing fearful havoc among the ships on the east coast, and causing likewise the loss of great numbers of people, bestial, and goods by land. ‘The like storm was not seen by the space of many years before; no, not that great storm that did arise at the death of King James the Sixth [in March 1625] did equal this storm.’—*Nic.*

DEC. 10.

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Died, in Westminster, Sir William Dick, of Braid, Baronet, once reputed the richest man of his time in Scotland, but latterly in great misery and want; aged seventy-five. In his earlier life, he conducted merchandise on a great scale in Edinburgh. The government in those days pursued that mode of collecting revenue which made farmers-general so much the objects of popular wrath and hatred in France in the time of Voltaire. Dick farmed the Scottish customs—also the revenues of Orkney—yet we do not hear that he bore his faculties with marked ungentleness. He was rather a simple man, accessible to the insinuations of vanity, and inspired with a full share of the earnest religious feelings of his age. When the affair of the Covenant came upon the tapis, it

DEC. 19.

1655.

was thought well to secure the co-operation of this rich merchant by getting him made provost of Edinburgh. Thus he was easily persuaded to advance considerable sums in order to enable his countrymen to resist the king. Sir Walter Scott alludes in one of his novels to the tradition describing sacks of dollars poured from a window in Provost Dick's house into carts, that carried them to the army at Dunse Law. When the Scottish Covenanters afterwards prepared an army to assist in putting down the rebellion in Ireland, it could not have marched without meal and money furnished by Provost Dick. It appears from an authoritative document, that, on this occasion alone, Sir William became a national creditor to the extent of £10,000. In all the other movements of his countrymen at that time, for the protection and advancement of their favourite church-polity, Dick shewed the same large faith in the good cause, and probably, but for him, things might have taken a different turn on many occasions from what they did. What finally remained owing to him in Scotland amounted to £28,131.<sup>176</sup> The English parliament was at the same time his debtor to the amount of £36,803—sums rarely heard of as belonging to an individual in that age. Sir William had been assured by the leaders he dealt with, both of thankful repayment from themselves, and of the blessing of the Almighty for the trust he had reposed in the cause of truth and righteousness. But the actual result was simply the utter wrack of his worldly affairs. Efforts were indeed made to repay his advances, but wholly without effect. In 1652, he proceeded to London, to urge the government to do him justice. By this time, his affairs had got into confusion, his credit as a merchant was gone, and his creditors were pressing upon him. It does not appear that he succeeded in wringing more than a thousand pounds out of the hands of the Commonwealth men. Finally, incurring fresh debts for his subsistence in the metropolis, he was thrown into prison in Westminster—a memorable example of the reverses of fortune incidental to a time of civil strife.

A curious and very rare pamphlet in folio, entitled *The Lamentable Estate and Distressed Case of the Deceased Sir William Dick in Scotland and his Numerous Family and Creditors for the Commonwealth*, contains two prints, the first representing Sir William at the crisis when he was so serviceable to the cause of the Covenant, mounted on a handsome dress, and with a goodly retinue, his horse trampling on money and money-bags scattered along the ground. On one hand is seen Hamilton's fleet in the Firth of Forth, with the

significant date 1639 inscribed on one of the vessels; on the other, Edinburgh Castle undergoing siege, with the date 1640, evidently referring to the leaguer which the Castle underwent when the Covenanters were endeavouring to wrest it from the officer who held it for the king. Below this print is inscribed:

‘See here a Merchant who for’s country’s good,  
Leaves off his trade to spend both wealth and blood,  
Tramples on profit to redeem the fate  
Of his decaying church, and prince, and state.  
Such traffic sure none can too highly prize,  
When gain itself is made a sacrifice.  
But oh, how ill will such examples move,  
If Loss be made the recompense to Love.’

Sir William’s favourite mottoes are inscribed above—PUBLICA SALUS NUNC MEA MERCES, and PRO FOEDERE, REGE, ET GREGE. The second print, of which the original painting is still preserved at Prestonfield House, near Edinburgh, represents the unfortunate merchant in his prison-cell, seated on a bulk in a mean dress, manacled and fettered, with his family weeping around him, and four officers of the law at his back, scourges and fetters being scattered about the floor. Below are inscribed the motto, PUBLICA FIDES NUNC MEA SERVITUS, and these lines:

‘He whom you see thus by vile sergeants torn,  
Was once his country’s pattern, now their scorn;  
Whilst into prison dragged, he there complains,  
Who least deserves doth soonest suffer chains.  
And who for public doth his faith engage,  
Changes his palace for an iron cage.  
Then add, to shew his unbecoming fate,  
He had been free had he not served the state.’

The preface to the pamphlet speaks of him as once ‘renowned at home and abroad as a famous merchant. When all men have sought their own, he, contrary to the principles of his outward calling, in the time of public calamity, did cheerfully embark himself, his estate, which was very considerable, and his

1655.

credit, which was greater, known by his fame abroad that his bills were never protested, but accepted through all Christendom, yea even in the dominions of the Turks—and this not out of any private end, but for the public good cause, which had so many prayers laid out for it then, which he believed would be answered in due time.’ In the ‘Case’ as addressed to parliament, after a recital of his loans and the many acknowledgments and efforts to pay previously made, it is said: ‘Notwithstanding all this, and of the aforesaid Sir William Dick his expense and painful satisfaction by agents and friends the space of sixteen years, and of his own personal attendance upon three parliaments and his highness’s council from November 1652 until November 1655, in his great old age of seventy and five years, and gray hairs full of sorrow and heaviness of heart, for such deplorable sufferings in credit and estate, by so good service performed in England, and with his cries to heaven for justice and mercy to his so deep afflictions for well-doing; yet, nevertheless, little or nothing was recovered all his time here, but one small sum of one thousand pounds in August 1653; insomuch that, by reason of this delay, floods of desolation and distress have overwhelmed him and his children with their numerous families and little ones; their lands and houses being extended and possessed by the creditors in the cruel execution of the law; their chattels and goods, too, yea their ornaments, the covering of their nakedness, and the coverlet in which they should sleep, being publicly distrained and seized upon for these debts and disbursements engaged in by them to promote the public service. Neither is this all; one woe is past, and behold two woes come after this. Ah! the old man himself was once and again disgracefully cast into prison for small debts contracted for necessary livelihood, during his attendance for satisfaction.’ ‘In the end, through heart-break by so long disappointment,’ he died, ‘in great misery and want, and without the benefit of a decent funeral, after six months’ petitioning for some little money towards the same. And to complete the third woe and perfection of sorrowful afflictions, his children are cast at this day, and lying in prisons these twenty months past for public debts, in great sufferings of their persons, credit, and calling, and weariness of life, longing for death more than for treasures, and where they and their numerous families had already perished for want of bread, if some little supply by his highness’s goodness had not been lately appointed them.’



It appears that after the Restoration the parliament, as might have been expected, declined to acknowledge the debts contracted by the irregular governments of the preceding twenty years; so Sir William's large loans were never refunded. An advance (100,274 merks) on the Orkney revenues was ignored in 1669, still further wrecking the property of the family. The only compensation which Sir Andrew Dick, son of Sir William, could obtain, was a pension of £132 sterling, which lasted for a few years only.<sup>177</sup>

1655.

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The spring being alarmingly bad, 'the presbytery of Lothian did conclude a fast to be keepit in the beginning of May; whilk was keepit in all the kirks of the presbytery, and although with great waikness, yet it wanted not the awn happy effect and blessing, for frae that day the Lord did produce much fair and pleasant weather,' and 'the like summer and harvest was never seen in this age.'—*Nic.*

1656. APR.

'This year produced abundance of bestial, such as horse, nolt, sheep, and some of these at ane very easy price. A mart cow was sold for [£1, 6s. 8d.], these bestial being abundant, and the money exceedingly scant.... There was also exceeding great numbers of salmon and all other sorts of fish taken this year.'—*Nic.*

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It is remarked how much of deceit and cheating was practised at this time among certain traders in Edinburgh. The beer, ale, and wine sold in the city were all greatly adulterated. It was customary to mix wine with milk, brimstone, and other ingredients. 'Ale was made strong and heady with hempseed, coriander-seed, Turkish pepper, soot, salt, and by casting in strong wash under the caldron when the ale was in brewing.' Blown mutton and corrupted veal, fusty bread and light loaves, false measures and weights,

JUNE.

were common. In all these particulars, the magistrates were negligent, so that ‘the people were abused and neglectit.’—*Nic.*

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‘This year the Lord Cranstoun, having got a colonel’s commission, levied a new regiment of volunteers for the King of Pole’s [Poland’s] service; and it trysted well for his management and advantage. The royalists chose rather to go abroad, though in a very mean condition, than live at home under a yoke of slavery. The colonel sent one Captain Montgomery north in June, and he had very good luck, listing many for the service. In August the colonel himself followed after, and residing at Inverness, sallied out to visit the Master of Lovat, and, in three days, got forty-three of the Frasers to take on. Amongst the rest, Captain James Fraser, my Lord Lovat’s son, engages, and, without degradation, Cranstoun gives him a captain’s commission. Hugh Fraser, young Clanvacky, takes on as lieutenant; William Fraser, son to Mr William Fraser of Phopachy, an ensign; and James Fraser, son to Foyer, a corporal. The Lord Lovat’s son had twenty-two young gentlemen with the rest, who engaged by themselves, out of Stratherrick, Abertarff, Aird, and Strathglass. I heard the colonel say he was vain of them for gallantry—not so much that they were free and willing, but valorous. I saw them march out of Inverness, and most of the English regiment there looking on with no small commendation, as well as emulation of their bravery.’—*Fraser of Kirkhill*. This gallant little levy proved unfortunate, most of them being cut off early. Fourteen years later, the same diarist gives us some particulars of the few then surviving. ‘This October’ [1670], says he, ‘came to this country my brother-german, William Fraser. He went abroad in the Lord Cranstoun’s regiment, for the service of Carolus Gustavus, King of Sweden, and after the peace he went up to Poland, with other Scottish men, and settled at Plock as a merchant, and was married. He had given trust and long delay to the Aberdeen’s men, and was necessitated to take the occasion of a ship and come to Scotland to crave his own. He and young Clanvacky Hugh are the only surviving two of the gallant crew who ventured over seas with their chief’s son, Captain James. And he is glad of this happy occasion to see his old mother and

JUNE.

1656.

brethren. He continued here among his friends all the winter, and returned back in the spring, never to see his country again. Two of his foster-brothers ventured with him, Farquhar and Rory—very pretty boys. We were six brothers mustered one day together upon a street, and six sisters waiting us in my uncle's house—a pleasant sight. We were not vain of it, but willing to see one another in one society. We never were all convened again. We are here in this world planted in order to our transplantation, where we shall, I hope, one day meet never to separate.'

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At four o'clock in the morning, according to Baillie, there was 'a sensible earthquake' in all parts of the town of Glasgow, 'though I felt it not.' 'Five or six years ago, there was another in the afternoon, which I felt, and was followed by that fearful burning, and all the other shaking [that] has been among us since. The Lord preserve us from his too well-deserved judgments!'

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AUG. 17.

1656.

The efforts of the presbytery of Lanark to make sincere Presbyterians of the Marquis and Marchioness of Douglas had signally failed. Their parish minister reported sundry 'outbreakings of sin' in their house, 'whereof he could get no order;' above all, there was a neglect of family worship. After many ineffectual dealings, the presbytery declared at this date, that, 'considering how the marquis and his lady and family continue to be an ill example, and scandalous divers ways, in regard that he himself does not ordinarily attend the public ordinance, but some time the forenoon withdrawing himself, and oftentimes the servants in the afternoon, in sight of the whole congregation; [and that] he and his lady cometh scarce to the kirk once in a year, and that there is no worship of God at all in their family,' they must, 'if he do not redress the foresaid scandals in some satisfying way, enter in process of excommunication with him and his lady at the next meeting.'

SEP. 4.

After many months, the reverend brethren are still found only ‘dealing’ with the noble marquis and his lady. A peer or peeress seems to have been a particularly difficult person to excommunicate. Years elapse in such cases without effecting the object, while a Quaker villager could be conclusively thrust out of the church in a few weeks.—*R. P. L.*

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Cromwell having been formally installed as Protector, Mr Robert Baillie notes a popular expectation in Scotland that a storm—that is, a storm of political trouble—would follow; and some things seemed to foretell it: for example, the blowing up of a powder-magazine, destroying many houses and persons; an army of pikemen appearing about the house of Foggo Muir, near Dunse Law; and the discovery of some thousands of objects in the form of cannon, shaped from snow without the hand of man. Yet, to the surprise of the reverend gentleman, months passed on without any interruption of peace.

1657. JUNE.

The same writer, addressing a friend abroad, tells of many painful occurrences which broke the calm tenor of life in Scotland in this and the next preceding and following years. Several young noblemen were carried off by acute diseases. Lord Lorn, son of the Marquis of Argyle, playing at a game in Edinburgh Castle, where stone-bullets were used, one of them striking him on the head, he fell down as one dead, and continued so for some time. Three judges died suddenly, one of them in the court, as he was about to seat himself on the bench. Imprudence and vice also attracted attention. ‘The Earl of Eglintoun’s heir, the Lord Montgomery, convoying his father to London, runs away without any advice, and marries a daughter of my Lord Dumfries, who is a broken man, when he was sure of my Lady Buccleuch’s marriage, the greatest match in Britain; *this unexpected prank is worse to all his kin than his death would have been.* The Earl of Moray did little better, for at London, without any advice, he ran and married Sir William Balfour’s second daughter.’ The Earl of Rothes was clapped up in Edinburgh Castle, by the Protector’s orders, in great infamy on account of a certain light-mannered Lady Howard, who had come to his lordship’s house

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on a visit, and whose husband was now in Scotland, bent on obtaining a bloody satisfaction for his dishonour. At the same time, the wife of Lord Forrester sunk into the grave, through grief excited by the misconduct of her husband and her sister.

The number of cases of uncommon turpitude in a time of extraordinary religious purism forces itself upon attention. One Foyer, who was under the notice of the English judges at Glasgow in the spring of 1659, is described by Robert Baillie as ‘a most wicked hypocrite, who, under the colour of piety and prayer, has acted sundry adulteries.’ Being libelled for one only, ‘he was but scourged: many were grieved that he was not hanged.’ The reverend writer adds: ‘*Great appearance of his witchery also*, if he had been put to a real trial.’

Offences of a horrible and unnatural kind continued to abound to a degree which makes the daylight profligacy of the subsequent reign shine white in comparison. ‘More,’ says Nicoll, ‘within these six or seven years nor within these fifty years preceding and more.’ Culprits of all ages, from boys to old men, are heard of every few months as burnt on the Castle Hill of Edinburgh; sometimes two together. Young women, who had murdered their own infants—on one occasion it was ‘ane pretty young gentill woman’—were frequently brought to the same scene of punishment. John Nicoll states that on one day, the 15th October 1656, five persons, two men and three women, were burnt on the Castle Hill for offences of the several kinds here glanced at; while two others were scourged through the city for minor degrees of the same offences.

Burnings of warlocks and witches were of not less appalling frequency. In February 1658, two women and a man were prisoners for this crime in the Tolbooth of Edinburgh. One of the women died in prison; the warlock was executed. The other woman, named Jonet Anderson, who had been married three months before, confessed that she had previously given herself up, body and soul, to the devil, and that at her nuptials she saw her spiritual lover standing in the church behind the pulpit. Though this must have been merely such a case of hallucination as would now require simply medical treatment, Jonet was only spared till it was ascertained that she was not pregnant. ‘She made ane happy end, and gave singular testimonies of her repentance by frequent prayers, and singing of psalms, before her

execution.’ In the ensuing August, four women, ‘ane of them a maiden,’ were burnt on the Castle Hill, ‘all confessing the sin of witchcraft.’ Not long after, we hear of *five women* belonging to Dunbar, burnt on the Castle Hill together, all confessing that they had covenanted with Satan, renounced to him their baptism, and taken from him new names, with suitable marks impressed on their flesh. And presently follows again the case of *nine* from the parish of Tranent, all dying with similar confessions on their lips.—*Nic.*

Although these executions appear to us as tolerably numerous, they were not enough to satisfy the zealous people of that day. ‘There is much witchery up and down our land,’ says Robert Baillie; ‘*the English be but too sparing to try it, but some they execute.*’

It is to be feared that, so long as reputation is to be gained by mere religious professions, or the adherence to certain systems of doctrine, cases of hypocrisy like that of Foyer will be occasionally heard of. Nor will it be doubted that a moral code which presses too severely upon the natural affections is calculated in all circumstances to have the consequences here adverted to. Of the cases of witchcraft, we can only deplore, with humiliation, that such delusions should have formed a part of the religious convictions of the age. In the seventeenth century, the ruling minds had a clear apprehension of what they thought the truth, and went right to their point in seeking to work it out. Distinctions, refinements, explained-away texts, moderating reflections, fears of reaction, were reserved for a later day.

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The magistrates of Glasgow at this time provided themselves with an engine ‘for the occasion of sudden fire, in spouting out of water thereon,’ after the form of one recently established in Edinburgh.—*M. of G.*

JUNE.

1657.

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The magistrates of Glasgow, feeling the need for ‘ane diurnal’—that is, newspaper, a luxury hitherto little known in Scotland—‘appoint John Fleming to write to

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his man who lies at London,' to cause one be sent for the town's use. Whether John Fleming's man, from the fact of his *lying* at London, is to be presumed as himself connected with the public press, may be left to the consideration of the reader.

Before this time, it appears that John Nicoll, a legal agent in Edinburgh, often quoted here on account of his *Diary*, had supplied the magistrates of Glasgow with weekly intelligence.

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Mr Thomas Stewart, the hero of the plague anecdote of 1645, married in 1654, and retired to enjoy a quiet country life on his father's estate of Coltness, in Lanarkshire. His relative, Sir Archibald, gives us a minute recital of what he did with the old place, in extending its accommodations and ornamenting its environs, and the result is that we get a tolerably clear idea of a Scotch gentleman's country-house, according to the views and tastes which prevailed in the time of the Commonwealth.

'He set himself to planting and enclosing, and so to embellish the place. But [as] the old mansion was straitening, and their family likely to increase, he thought of adding to the old tower (which consisted only of a vault and two rooms, one above the other, with a small room on the top of the turnpike stair, and a garret) a large addition on the south side of the staircase, of a good kitchen, cellar, meat-room or low parlour; a large hall or dining-room, with a small bedchamber and closet; over these, and above that, two bedchambers with closets; and yet higher, in a fourth story, two finished roof-rooms. And thus he made an addition of a kitchen, six fire-rooms with closets; and the vault in the old tower, built by Hamilton of Uddeston, was turned to a convenient useful cellar, with a partition for outer and inner repositories. The office-houses of bake-house, brew-house, garner-room, and men-servants' bedchamber, were on the north of a paved court; and a high front wall towards the east, with an arched entry or porch, enclosed all. Without this arched gate was another larger court, with stables on the south side for the family and strangers' horses, and a trained up thorn with a bower in it. Opposite to the stables, north from the mansion-house, with an entry to a good spring draw-well, as also leading to the byre, sheep-house,

barn, and hen-house, all which made a court, to the north of the other court, and separate from it with a stone-wall; and on the east part of the court was a large space for a dunghill. The gardens were to the south of the house, much improved and enlarged; and the nursery-garden was a small square enclosure to the west of the house. The slope of the grounds to the west made the south garden, next the house, fall into three cross terraces. The terrace fronting the south of the house was a square parterre, or flower-garden, and the easter and wester, or the higher and lower plots of ground, were for cherry and nut gardens, and walnut and chestnut trees were planted upon the head of the upper bank, towards the parterre; and the slope bank on the east side the parterre was a strawberry border.

‘These three terraces had a high stone-wall on the south, for ripening and improving finer fruits; and to the south of this wall, was a good orchard and kitchen-garden, with broad grass-walks, all enclosed with a good thorn-hedge; and without this, a ditch and dry fence, enclosing several rows of timber-trees for shelter; to the west of the house, and beyond the square nursery-garden, was a large timber tree park, with birches towards the house, and on the other three sides rows of ash and plane, and in the middle a goodly thicket of firs. To the north, the barn court; and north from the house was a grass enclosure of four acres, with a fishpond in the corner for pikes and perches. All was enclosed with a strong wall and hedgerows of trees: so the whole of this policy might consist of an oblong square, and the longer side of the square fronted to the south; the ordinary entries to the house were from east to west, but the main access from the east.

‘It was found still a convenient nursery was wanted for an interesting young family, and a lower addition was made to the east end of the new buildings, and to run parallel with the south side of the high house, towards the gardens. The low room was for a woman-house, and the upper room was the nursery; and both nursery and woman-house had passage to the great house, by proper doors, and a timber trap-stair made a communication betwixt the nursery and the woman-house. In short, after all was finished, the fabric was wholly irregular as to the outside appearance, and both house and policy were more contrived for conveniency and hospitality, than for beauty or regular proportion; and so was the humour of these times, that, if there was lodging, warmness, and plenty within doors, a regular front or uniform roof were



little thought of. All above was executed the three years 1657, 1658, as appears from the dates on the upper lintel ornaments of the window.'

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Notwithstanding a good harvest, 'poverty and scarcity of money daily increased, by reason of the great burdens and charges imposed upon the people, which constrained them to sell not only their lands and estates, but even their household geir, insight, and plenishing, and some their claiths and habulyiements. Witness the bell, which did daily ring in Edinburgh, making intimation to the inhabitants of such frequent rousing as was in use.'—*Nic.*

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DEC.

Stage-coaches were at this time advertised as to go from 'the George Inn without Aldersgate' to sundry parts of England thrice a week; to Leeds, Wakefield, and Halifax once a week, charge 40s.; to Durham and Newcastle, once a week, charge £3; and 'to *Edinburgh in Scotland*, once in three weeks, for £4, 10s.'—in all cases, 'with good coaches and fresh horses on the roads.'<sup>[178](#)</sup>

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1658. MAY.

During this year, the people of Edinburgh, Glasgow, and other considerable towns, were amused in succession with the performances of a horse brought from England, 'wha, being trained up in dancing and other conceits of that kind, did afford much sport and contentment to the people, but not without gain, for none was admitted to see the dancing without twopence the piece, and some more.'—*Nic.*

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A supplication was this day given in to the Town Council of Glasgow by one Robert Marshall, shewing that he was willing, if permitted, to exercise the calling of a house-painter in the city. The Council, having had it represented to them that there was ‘but one the like within this burgh, and not ane other in all the west of Scotland,’ gave Robert permission to wash and paint houses to any who pleased to employ him.—*M. of G.*

OCT. 1.

This gives a curious idea of Glasgow two centuries ago. The magistrates had a little before this time induced a printer to come from Edinburgh and settle amongst them. The man does not seem to have succeeded, for in May 1660, they give him fifty merks, ‘to help to transport his guidis and flitting to Edinburgh again.’ A few months after this date, Robert Sanders was encouraged to set up a printing-office in Glasgow, with a pension of £40 a year, ‘he to print gratis anything that the town shall employ him to print.’ In 1660, they caused a plasterer to be sent for from Perth, ‘to come here for plastering of Hucheson’s Hospital.’—*M. of G.*

1658.

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The lamentations, of which we have seen several examples, over the depressed condition of Scotland under the English tyranny, are repeated at this time by a man of moderate and sagacious character, the Rev. Robert Baillie. He says: ‘The country lies very quiet; it is exceeding poor; trade is nought; the English has all the moneys. Our noble families are almost gone: Lennox has little in Scotland unsold; Hamilton’s estate, except Arran and the barony of Hamilton, is sold; Argyle can pay little annual-rent [interest] for seven or eight hundred thousand merks [of debt]; and he is no more drowned in debt than public hatred, almost of all, both Scotch and English. The Gordons are gone; the Douglasses little better; Eglintoun and Glencairn on the brink of breaking. Many of our chief families’ states are cracking; nor is there any appearance of any human relief for the time.’<sup>179</sup> It may give some idea of the reduced state of the nobility during these evil days, that the allowance made by the English government out of the sequestered estates of the

Nov.

Balcarres family for the earl, a minor, and his younger brother, was only ten pounds a year!<sup>180</sup>

Nicoll, adverting to the same time, says: 'The condition of this nation of Scotland yet remains sad, by reason of poverty and heavy burdens.' The crop of the year 'was very poor by reason of the spring-time, whilk was very cold and weety the space of many weeks.' The price of victual was consequently for this year double what it had recently been.

A Mr Tucker, who was commissioned by Cromwell in 1656 to introduce order into the customs duties of Scotland, has left a report from which we obtain particulars as to the trade then carried on with foreign countries. Notwithstanding that duties were in those days imposed equally on exported and imported goods, the revenue of Leith port was only £2335; that of Aberdeen, £573; Glasgow, £554. The respective sums drawn from these ports, for imports only, in 1658, were £631,926, £76,259, and £551,841. Other ports were in proportion, though not uniformly; thus Burntisland, which is now merely a ferry harbour, then drew nearly as much revenue as Glasgow. The native shipping, consisting of vessels of from twelve to a hundred and fifty tons, was in not less marked contrast to that of our day. Glasgow had only twelve such vessels; Kirkcaldy, an equal number, but not one above a hundred tons; Dundee and Anstruther, ten; Burntisland, seven; Wemyss, six; Dysart, four. The extreme narrowness of the resources of Scotland is strikingly shewn in these facts, and makes us the more disposed to wonder at the comparatively great sacrifices which the people had been making for many years for the sake of their church and for its promotion in other lands.

At the same time that so great poverty prevailed, there was such a protection to life and property as had never before been known. It was not, we believe, without cause that the famous Colonel Desborough, in a speech in the House of Commons (March 17, 1659), made it a boast for his party, that 'a man may ride over all Scotland, with a switch in his hand and a hundred pounds in his pocket, which he could not have done these five hundred years.'<sup>181</sup>

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The people of Edinburgh were regaled with the sight of a travelling dromedary, probably the first that had ever come into Scotland. 'It was very big,' says Nicoll, 'of great height, and cloven-footed like a cow, and on the back ane seat, as it were a saddle, to sit on.' 'Being kept close in the Canongate, none had a sight of it without threepence the person. There was brought in with it ane little baboon, faced like unto an ape.'

1659. JAN.

At this time the public received a great surprise in the sudden reappearance of a nobleman, Lord Belhaven, who was understood to have been dead for the last six years and upwards. At the forfeiture of the Hamilton family under the English tyranny, Lord Belhaven found himself engaged as security to the creditors of that house for a much larger sum than he could pay; so, to escape comprisings of his lands and imprisonment of his person, he fell upon an extraordinary expedient. He took a journey to England, and when he had passed Solway Sands, he caused his servant to come back to his wife with his cloak and hat, and had it given out that he and his horse had sunk in the quicksands, and were drowned. None were privy to the secret but his lady and the servant. The report passed everywhere as authentic, and to make it more plausible, his lady and children went in mourning for two years. Passing into England, Lord Belhaven put on a mean suit of apparel, hired himself to be a gardener, and worked at this humble employment during the whole time of his absence, no one knowing this part of his course but his lady. During his absence, his only son, 'a very hopeful youth and pretty scholar,' was struck with a fever, which in a few days carried him off. 'In this real death by God's hand, who will not be mocked, the hope of that house perished.'—*Bail*. The Duchess of Hamilton having at length come to a composition with her creditors, his lordship returned to Scotland, and resumed his rank, 'to the admiration of many.'—*Nic*.

JAN.

1659.

The Countess of Buccleuch in her own right, a child of eleven years of age, the greatest heiress of her time in Scotland, was married at the place of Wester Wemyss in Fife, to Walter Scott, son of Scott of Highchester, a youth of fourteen. These indecent nuptials were performed, without proclamation, by virtue of an order from the presbytery of Kirkcaldy, ‘purchased by the Earl of Wemyss and some of the name of Scott:’ that is, obtained by their influence. The Countess of Wemyss, ‘a witty, active woman,’<sup>182</sup> was mother of the bride. ‘This marriage was celebrate upon a great suddenty, few or none of her friends made privy to it till the day before, which day they were contracted. Many expected she should have got some great match (for both Scots and English had an aim for her); but this youth, that her mother (who was the only doer of this business) made choice of for her daughter, was only one of her own vassal’s sons—namely, an oy [grandson] of the Laird of Harden....’—*Lam.*

FEB. 9.

An unsuccessful attempt was made by Sir John Scott of Scotstarvet to reduce the marriage, on the ground that he, her tutor, had not consented. While the question hung suspended, for there existed then no judicatory in Scotland, the young lady in August 1659 attained the age of twelve, at which it was competent for her to effect a marriage of her own will. She then accordingly emitted a declaration of her marriage, and her husband meeting her at Leith, amidst great demonstrations of joy, they went that same night to Dalkeith, to commence married life.—*Nic.*

1659.

This poor victim of the cupidity of her seniors was taken by her mother next year to London, to be touched for the *cruels* by the king, and died in the next ensuing year, leaving the succession to her younger sister Anne, who became the victim of an equally discreditable affair, in being married while still a child to the king’s natural son, a boy, subsequently Duke of Monmouth.

The marrying of heiresses under twelve years of age was a not infrequent misdemeanour in the seventeenth century. ‘1st March 1677, Trotter, Lady Craigleith, was fined at Secret Council, in 6000 merks, for conveying away her daughter, heiress of Craigleith, and sending her to Berwick, where she married young Prestongrange (Morison), and stayed some two or three months, till she completed her twelve years of age, after which the marriage

could not be dissolved, nor she resilie.... Her maternal uncle, Mortonhall, was fined for his accession in 3000 merks, and young Prestongrange in 1000 merks.’—*Foun.*

In 1680, Patrick Carnegie, brother of the Earl of Northesk, was prosecuted for conveying away Mary Gray, daughter of the Laird of Baledgarnie, in the Carse of Gowrie, she being but eleven years and one month old. ‘Some spoke harsh things, that if he could be got, he deserved hanging, for an example to secure men’s children from such attempts.’ While Patrick escaped from justice, his assistants Kinfauns, Finhaven, and Pitcur were sent to Edinburgh Castle, and ‘ordained, under highest pains, to produce him who wounded the servant while he was resisting their rapt: they came weel off, that their acknowledgment of the fault was accepted instead of a fine.’—*Foun.*

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Died this day, ‘sitting in his chair at his awn house, without any preceding sickness,’ and but ‘little lamented’ (*Nic.*), John Earl of Traquair—a remarkable example of the mutabilities of fortune in a period of civil broil and revolution. By cleverness and address, unaccompanied by any nobler qualities, and by making himself useful to Laud in his views for the reformation of the Scotch church, he had risen from the condition of a private gentleman to titles, wealth, and the office of Lord High Treasurer. Of his means and taste at the zenith of his fortunes, the house of Traquair, with its formal avenues and garden, is an interesting surviving monument. Clerical zeal ruined what the skill of Traquair might have built up. The Service-book was pushed on against his advice, and he could not control the storm. The most conspicuous service he rendered after that period was to act as his majesty’s commissioner to the Scottish parliament and General Assembly of 1640. He did his best to maintain the royal authority, but all was in vain. His subsequent conduct was not of a bold character; but there is all reason to believe that he continued a loyalist and a friend of Episcopacy at heart. Accompanying the army of the Engagement in 1648, along with a regiment of horse of his own raising, he was taken prisoner at Preston, and committed to Warwick Castle, where he

MAR. 27.

1659.

lay for four years. For this final act of loyalty, the Covenanted parliament forbade his return into Scotland. At length, when his country had been taken into the hands of the English, he was liberated, and came home; but it was to poverty and obscurity. His estate had been sequestered; it was a time of general suffering and humiliation. Reflected on as an instrument of the king and Laud in their arbitrary schemes, he enjoyed respect from no party. In such circumstances, it is scarcely surprising to be told, as we are on credible authority, that this once great noble and state officer was reduced so low as to be beholden for the necessaries of life to charity. ‘He would take an alms, though not publicly ask for it,’ says the author of a work quoted below,<sup>183</sup> where it is added: ‘There are some still alive at Peebles that have seen him dine upon a salt herring and an onion.’ A worse humiliation remained for him, if Nicoll be right in reporting that the earl was (August 1655) ‘pannelled and accused before the Criminal Court for perjury at the instance of his son-in-law.’<sup>184</sup>

The annotator on Scot’s *Staggering State of Scots Statesmen*, says that at his burial this unfortunate nobleman ‘had no mort-cloth [pall], but a black apron; nor towels, but leashes belonging to some gentlemen that were present; and the grave being two feet shorter than his body, the assistants behoved to stay till the same was enlarged, and he buried.’

This day, Heriot’s Hospital, which had been founded in 1628, being now complete, was solemnly dedicated by the ceremony of a preaching in presence of the magistrates of Edinburgh, the preacher, Mr Robert Douglas, receiving five double pieces for his pains. There were placed in it ‘thirty-five boys, of honest parents, but decayit in means, all of them weel arrayit in purpoure clothes and cassocks.’ ‘This hospital,’ says Nicoll, ‘was not ane ordinary hospital, but a hospital very famous, with halls, chalmers, kitchens, brew-houses, yards, orchards, a chapel, and all other necessaries.’

1659. JUNE 21.

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The town of Edinburgh obtained an additional impost upon the ale sold in its bounds; it was now a full penny sterling a pint, so that the liquor rose to the unheard-of

SEP. 1.

price of 32d. Scots for that quantity. ‘Yet this imposition,’ says Nicoll, ‘seemed not to thrive; for at the same instant God frae the heavens declared his anger by sending thunder, and unheard tempests, and storms, and inundations of water, whilk destroyed their common mills, dams, and warks, to the town’s great charges and expenses.’ Eleven mills belonging to Edinburgh, and five belonging to Heriot’s Hospital, all upon the Water of Leith, were destroyed on this occasion, ‘with their dams, water-gangs, timber and stone-warks, the haill wheels of their mills, timber graith, and haill other warks.’ The chronicler, somewhat awkwardly for his hypothesis, admits that many neighbouring towns suffered by the like destruction of their mills.

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Nicoll states himself to have seen this day, a youth of sixteen, a native of Aberdeen, who, having been born without power in his arms, either to eat or drink, or do any other thing for himself or others, ‘Almighty God, who is able to do all things, gave him power to supply all these duties with the toes of his feet, and to write in singular good legible and current write, and that with such haste as any common notar is in use to do. Yea, further, with his toes he put on his clothes, kamed his head, made his writing pens, [and] threaded a needle, in such short time and space as any other person whatsoever was able to do with his hands.’

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SEP. 21.

In the Council Records of Inverness occurs, under this year, the following petition: ‘To the Right Honourable the Magistrates and Town Council of the burgh of Inverness, the supplication of Frederick Fraser, tailor burgess of Inverness, and Alexander Duff, burgess there, for ourselves and in behalf the remanent freemen of that trade, humbly sheweth—That your supplicants are very much damnified and prejudged in the enjoyment of their trade, the same being in-falled upon and taken away by many outlandish men, who dwell round about the burgh for eschewing of burden, and yet peeps in by night

1659.



and by day and steals away the trade of the place, and works the same in the landward, to our great loss and apparent ruin, so that if speedy redress be not found, and this evil to this poor trade be not stayed, your supplicants and our poor families will undoubtedly perish. We are able to shew your lordships, and to make it out, that in these times we gain not by our trade for our own subsistence and the upholding of the burdens of the place, that which our servants were wont to gain under us. May it please your lordships, therefore, to take the premises into consideration, and to allow us, your supplicants, or such others of the trade as your lordships please to nominate, such power and freedom in the exercise of that trade as formerly we had, and that for the better restraining of all such as are neither profitable nor allowable to the place, and for the further and better encouragement of us your poor supplicants who has and are willing daily to contribute with the place in weal and woe according to our poor power.'

A local journalist, after giving a transcript of this petition, adds: 'Provost Cuthbert and the council turned a friendly ear to the supplication, and authorised the petitioners to "look and see to restrain all outlandish tailors," and empowering them to seize upon the work of the transgressors, and bring the whole before a magistrate. Two years afterwards, however, the same parties, with the addition of John Cumming, tailor, again complain of the outlandish tailors. They petition that all unfreemen in the town should be discharged from usurping to themselves the benefits of freemen, and from keeping apprentices and servants, and *made to live within the verge of their own calling*. The provost and council granted the desire of the petition, and authorised the supplicants, with the concurrence of the burgh officers, to put the act in force. The principles of political economy or free-trade were not then understood, but the inhabitants seem to have been willing enough to avail themselves of the cheap services of the outlandish tailors, else the freemen would not so strongly have urged their claims upon the council.'

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## **REIGN OF CHARLES II.: 1660-1673.**

The wild joy with which the people of England hailed the close of anarchy and military tyranny in the restoration of Charles II. to the throne, was fully participated in Scotland by a small loyalist party. The bulk of the community were also made happy by the event, for they were pleased to see the monarchy restored, accompanied as the event was by the revival of their national independence; but the general happiness was mixed with anxiety regarding the fate of their favourite church, to which they had long been accustomed to consider all other institutions as subordinate. In England, almost as a matter of course, the Episcopal Church was restored with the monarchy, to the slighting of that Solemn League and Covenant with which the interests of Presbyterianism had been so long bound up. The temper of the English people was now strongly against all that had been done during the troubles by those with whom the Scottish Presbyterians had been in alliance, and consequently against Scottish Presbyterianism itself. The joy of the Presbyterian monarchists of Scotland might therefore well be mixed with fear.

Very naturally, the men of high rank who had done and suffered most for the cause of monarchy in the late evil days, were appointed to be at the head of affairs in Scotland. The Earl of Glencairn, chief of the guerrilla resistance to Cromwell in 1653, was made Chancellor. Major-general Middleton, who had finally commanded in that insurrection, and was now promoted to the peerage as Earl of Middleton, was appointed to be his majesty's commissioner to parliament. The Earls of Crawford and Lauderdale, Presbyterian monarchists of 1650-1, who had since suffered a ten years' imprisonment in England, were made respectively Lord Treasurer and Secretary of State. With them came a host of inferior officials, all more or less under a sense of suffering through over-zealous Presbyterianism, and mostly eager to repair their broken fortunes at the expense of their enemies. A reassemblage in September of the remains of that Committee of Estates which had been captured at Alyth in 1651, was the first movement made. It was superseded by the new parliament, which sat down on the 1st of January 1661 and proceeded to pass many acts for the settlement of affairs

on the new basis. One of these at a single blow annulled all the acts of the irregular parliaments of the last twenty-three years; another imposed on men holding offices an oath acknowledging the king to be 'supreme governor in all cases, over all persons, ecclesiastical and civil.' Finally, in July of that year, the Privy Council was reconstituted—a judicial as well as political body. At the same time, the Courts of Session and Justiciary were reconstructed, in place of the English judicatories which had sat for the last eight years.

The vengeance of the new government fell only on those who had carried the Presbyterian views to a disloyal extreme, or who had complied with Cromwell. The chief victim was the Marquis of Argyle—who no doubt had placed the crown on the king's head at Scone in 1651, but who had also been the prime leader in nearly all those movements subsequent to 1638, which had been so destructive to the interests of royalty. His execution (May 27, 1661) was considered by the royalists as a righteous retribution for that of Montrose eleven years before. Mr James Guthrie, minister of Stirling, the leader among the Remonstrators, was hanged. Sir Archibald Johnston—who had perhaps done more than any other single man throughout the troubles to promote the pure Presbyterian cause—escaped to Holland, but after a little time was brought back and executed (July 1663). Several other ministers of the Remonstrant party, who failed to make timely submission, were imprisoned, and subsequently for the most part banished.

The one great subject remaining for consideration was the church—how was it to be settled? The king, unlike his father, could have endured the Presbyterian forms, though he is said to have privately declared Presbyterianism unfit to be the religion of a gentleman. But Presbyterianism involved something more than forms. As professed by its more zealous and intelligent adherents, it claimed to have Christ for its sole head, and therefore to be completely independent of all civil control. The men in whose hands its fate was now cast—for the reaction of popular feeling in the entire island made it helpless—had to consider that this claim had been a source of constant trouble to the state ever since the minority of King James; they had to judge whether the Presbyterian Church, holding such a claim as essential to it, would, if now established, comport with any species of civil government whatever. Under the light of recent experiences, and led by the general temper of the time, it was not surprising, though very

unfortunate, that they resolved to restore the so-called moderate Episcopacy of 1638, minus the Book of Canons and Liturgy.

The moderate or Resolutionist party in the church, being the great majority, had sent Mr James Sharpe, minister of Crail, to represent their interests in the little body of men surrounding the king at his return from the continent. Full reliance was placed on Mr Sharpe, for he was thought to be a conscientious as well as able man: we find Robert Baillie speaking of him at the time with an affection which could not have been inspired in so virtuous a bosom without many merits. But Mr Sharpe proved unable to resist the contagion of feeling to which he was exposed: he was induced to consent to the restoration of prelacy, and to take the position of primate. The Presbyterians considered themselves as betrayed by their own representative. The bishops of 1638 being all dead but one, and he unable to travel, Sharpe and three other Presbyterian clergymen received the rite of consecration in London, and, returning, imparted it to the other bishops in Holyrood Church. In May 1662, an act of the Estates formally reconstituted the church on the Episcopal model; the bulk of the people quietly submitting to what they could not resist, while the more earnest regarded it as a desertion of Christ's own standard, calculated to bring down judgments upon the land.

The burst of loyal feeling at the Restoration had probably led the government to believe that the settlement of Episcopacy would be an easy, if not popular act. If they had truly known the antipathy still entertained for the prelatic model, they might have hesitated to take such a step, for it might then have appeared more hopeful that the claim of independence for presbytery would be practically overcome or made innocuous—as it afterwards was at the Revolution—than that bishops could be maintained in peace amongst a hostile people. But here we must remember how force was universally looked to in that age as a proper and legitimate means of inducing conformity. Under the recent rule of the Presbyterian Church, there had been heavy fines, depositions, banishings, excommunications, and confiscations, for Episcopalian and popish non-conformists; hangings and beheadings for those who proceeded to an active opposition. And the apparent conformity which such means can produce had really been attained. The authors of the new episcopate, having no light beyond their age on the subject of toleration, might very naturally think that what had

succeeded in 1650 would succeed in 1662: they would compel the people to be Episcopalians. There was a difference in the two cases which it would have been well for them to observe. The severe measures of 1650 were the measures of a majority of really religious men—or at least men of very earnest religious convictions—against a minority of dissenters or indifferents. The measures now called for were to be carried out by a minority, chiefly animated by secular maxims, against a mass of people generally earnest in their peculiar religious views, and who were liable to become the more so, and consequently the more troublesome, under persecution. In the one case, the dominant church was a great Reality, solidly founded in the affections of the mass of the people; in the other, it was little more than a piece of statecraft, with the affections of the majority of the people against it. The *right* of enforcing conformity we may allow to have been the same in both cases; but the *consequences*, we can easily see, were likely to be very different. The new church had scarcely been constituted, when the unwiseness of the step might have easily been seen. The clergy generally, but especially in the south-western counties, shewed their unwillingness to give up their collective powers into the hands of the bishops. On a precipitate edict of the Archbishop of Glasgow, calling on the ministers of his province who had been inducted since 1649 to take out new presentations from the patrons, and receive collation from their bishops, three hundred and fifty, being a third of the entire church, resigned their cures. This was a startling blow to the new system, for, under that incapacity of judging of the influence of religious feelings which is to be marked in worldly men, it had been supposed that not more than *ten* would resign. Of course these men became troublesome dissenters, notwithstanding all that could be done to disperse or silence them. In reality, the substitution of a new bishop-approved minister for one who would not submit to bishops, was a matter not very immediately affecting congregations, for, under the late alteration in the church, the forms of worship and professed Christian doctrine remained the same as before. But the Scotch, during the last twenty-five years, had been generally instructed regarding the Presbyterian polity, and trained up to regard it with veneration; insomuch that the parity of ministers in the church-courts and the headship of Christ, as exclusive of all supremacy of king or human law, were points for which they were as much disposed to martyr themselves as for the most essential points of faith contained in the catechism. They

therefore began to desert the parish churches, and hold private meetings for worship under the displaced clergy. In our time, no statesman would think of opposing the people in such a course. They would be allowed quietly to raise dissenting meeting-houses for themselves and favourite clergymen, and the peace of the country would not be disturbed. But the reader must have been prepared to see that no such course could then be adopted. The Presbyterian establishment itself had only a few years before sternly put down all external expression of dissent. It had even forbidden private meetings of little groups of its own members for worship, lest these should lead to or give shelter to schism. If they, with their deep religious feelings, were thus intolerant of dissent, what might we expect from the worldly statesmen and prelates now at the head of affairs? What but the most vigorous measures for preserving an outward conformity? The extruded ministers were forbidden to live within or near their former parishes, lest their people should attend their ministrations. The people of those parishes were commanded under heavy pains to attend the regular church, however odious the new minister might be to them. Even to go to the church of some neighbouring parish where there was still one of the old clergy officiating, was forbidden under the like penalties. Finally, bodies of soldiery were sent to raise the fines, or to exact free quarters till the fines were paid. These soldiers would enter the churches of the old Presbyterian clergy yet in possession of their pulpits, noting such of the congregation as could not swear that they belonged to the parish, taking the money from their pockets, or stripping them of articles of wearing apparel, as a punishment for their breach of law. In some districts, where a very earnest feeling of religion prevailed, the people were harassed and impoverished to a degree that made them anxious to leave their native country.

Middleton's administration came to a sudden close in 1663, in consequence of an intrigue against Lauderdale; and the latter noble then succeeded to the chief power. Although he had been a Presbyterian, and was not originally in favour of setting up the Episcopal Church, his rule brought no relief. Still, there was a certain leniency in high quarters, till Sharpe, in order to secure unfaltering severity, obtained the erection of a court of commission, in which the prelates should have chief sway. Then came a mercilessness greater than before. The doings of the soldiery were such as to produce an approach to desolation in certain districts. Ministers, for merely performing worship in their own houses, were thrown into vile prisons, or banished to

half-desert islands. Even to give charity to any of the proscribed clergy was declared to be a crime. When the war with Holland commenced in the spring of 1665, it was feared that there would be an insurrection in the west of Scotland, and the whole district was consequently disarmed. Nevertheless, in November of the ensuing year, the extreme severity of the soldiery under Sir James Turner occasioned a partial resistance at Dalry, in the stewartry of Kirkcudbright, and in a little time a small body of insurgents was collected. Marching through Ayrshire, their numbers increased to about two thousand, and they then turned towards Edinburgh, where they expected considerable accessions. It was a hasty and ill-considered affair, springing merely from the sense of intolerable suffering. The government, having a small standing army at its disposal, was at no moment in the least danger. About nine hundred poor half-armed peasants made a final stand at Rullion Green, on the eastern skirts of the Pentland Hills, where they were attacked by a strong body of dragoons under Sir Thomas Dalryell, routed, and dispersed (November 28, 1666). Many were killed on the field and in the pursuit, and eighteen were afterwards executed in Edinburgh. Several of these were previously tortured to extort confession, the instrument used being a loose frame of wood called the *Boot*, into which wedges were driven so as to crush the limb of the prisoner. Thirty-five more were executed in the country, not without some difficulty to the authorities, as the executioners generally refused to exercise their profession against such culprits.

Soon after this time, the extreme severity of the government in Scotland made itself heard of and felt at court, and orders were sent down for the adoption of gentler measures. In 1668, a milder rule was established under the Earl of Tweeddale, who would at once have proceeded to grant some 'indulgence' to the Presbyterians, but for an attempt being made to shoot Archbishop Sharpe, as he was about to step into his carriage in Edinburgh. As it was, the Indulgence was granted next year, and consisted in permitting such of the extruded clergy as had lived peaceably to return to their parishes when a vacancy occurred, receiving the whole temporalities if they should take collation from the bishops; and where they did not, to be allowed the use of the manse and glebe; further, allowing four hundred merks per annum to all *outed* ministers, while unrepresented to charges, provided they had lived peaceably, and would agree to do so in future. This was in reality a measure of greater generosity than the Presbyterian Church had ever

extended to dissenters; yet it was not attended with much good. It was denounced by all the more zealous sort of people as *Erastianism*, and consequently the indulged ministers were not popular. The government, moreover, professing to consider the holding of irregular meetings for worship as less excusable than before, became more threatening against them, and thus caused the people to hold conventicles in the open fields in remote places, attending, in some instances, with arms in their hands. Hence resulted the fining of a vast number of respectable people of the middle classes, women as well as men, and the imprisonment of a considerable number. The parliament also passed an express act against conventicles, whereby an ejected or unlicensed minister who should perform worship anywhere but in his own family, or who should be present at worship in any other family, became liable to a fine of five thousand merks; the people being also forbidden to be present at such meetings under pain of fines proportioned to their circumstances. By this act, the performance of worship in the fields inferred death, and attendance was to be punished with double fines. The king is said to have disapproved of the act, remarking truly that bloody laws did no good; it was detested even by those who in parliament gave it their votes. In spite of its severity, the people continued in some districts to meet in the fields for worship, feeling that there was a great show of the 'divine presence' on these occasions. It seemed as if every attempt to enforce conformity only sent a certain portion of them into a stronger dissent. Although nearly every one of the measures of the government had its prototype in those of the Presbyterian régime, and no one thought of demanding liberty of conscience upon principle, yet such was the effect of the large scale on which these severities were conducted, that the Scottish mind was generally impressed with an abhorrence of prelacy and all its belongings, a feeling which no lapse of time has yet been able to efface.

The years 1671 and 1672 were distinguished by few events of note besides the acts of severity against troublesome ministers. During this time, there was going on a conspiracy on the part of the king and his ministers to establish absolute monarchy in England, the Earl of Lauderdale undertaking to secure Scotland, while the French king was engaged to give his assistance; and to favour the object, a new war was commenced against Holland. In 1673, the spirit of the English nation was roused against the ministry, and the contagion was in some measure communicated to



Scotland, where the Duke of Hamilton gave such a resistance to Lauderdale (now created a duke) that he was obliged to dissolve the parliament. But no marked improvement in the government resulted.

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This day commenced a period of thanksgiving through all the parishes in Lothian, for the restoration of the king. The magistrates and town-council of Edinburgh went to church in solemn procession, all in their best robes, and with ‘the great mace and sword of honour’ borne before them. After service, they went with a great number of citizens to the Cross, where a long board, covered with sweetmeats and wine, had been placed, under a burgess guard numbering four or five hundred persons. Here the healths of the king and the Duke of York were drunk with the utmost enthusiasm, three hundred dozen of glasses being cast away and broken on the occasion. At the same time, bells rang, drums beat, trumpets sounded, and the multitude of people cheered. The spouts of the Cross ran with claret for the general benefit. At night, there were bonfires throughout the streets, and fireworks in the Castle and the citadel of Leith till after midnight. ‘There were also six viols, three of them base viols, playing there continually. There were also some musicians placed there, who were resolved to act their parts, and were willing and ready, but by reason of the frequent acclamations and cries of the people universally through the haill town, their purpose was interrupted. Bacchus also, being set upon ane puncheon of wine upon the front of the Cross with his cummerholds, was not idle. In the end, the effigies of Oliver Cromwell, being set upon a pole, and the devil upon another, upon the Castle Hill, it was ordered by firework, engine, and train, that the devil did chase that traitor, till he blew him in the air.’—*Nic.*

1660. JUNE 19.

The same chronicler notes a circumstance very likely to occur at a Restoration. ‘There went out from Scotland an innumerable number of people of all sorts, ranks, and degrees—earls, lords, barons, burgesses, and some ministers—pretending their errand to be to congratulate the king; but the truth is, it was for procuring of dignities, honours, and offices, and for sundry other ends;

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carrying with them great souns of money, to the vastation of this pair land, being altogether ruined of before in their means and estate.'

'His majesty not being able to satisfy all, there did arise great heart-burnings, animosity, and envy among them,' particularly 'betwixt the Earl of Southesk and the Master of Gray, for the sheriffship of Forfarshire; and in that contention they drew to parties, and provoked other to duels, in the whilk the Earl of Southesk did kill the Master of Gray upon this side of London.'

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We hear at this time of a number of 'louss and idle men in the Hiellands,' who had gathered themselves together in companies, and were employed in 'carrying away *spraichs* of cattle and other bestial to the hills, and committing many other insolencies:' that is to say, the more active spirits on the Highland border were taking advantage of this interval of regular authority to help themselves from the pastures of their Lowland neighbours. The newly reassembled Committee of Estates, having no force at their command for the repression of these disorders, were glad to revert to the old practice of holding the chiefs of clans 'bund for the peaceable behaviour of their clan, kinsmen, followers, and tenants.' They therefore (August 29) sent letters to the Earls of Seaforth, Tullibardine, Athole, Airlie, and Aboyne, the Lords Reay and Lovat, the Lairds of Ballingowan, Foulis, Assynt, Glengarry, M'Leod, Locheil, Macintosh, Grant, Glenurchy, Auchinbreck, Luss, Macfarlane, Buchanan, and Edzell, Sir James Macdonald, the Captain of Clanranald, Callum Macgregor Tutor of Macgregor, and others, calling on them to take special notice of their dependents, 'and of all others travelling through your bounds whom you may stop or let,' that they carry themselves inoffensively; certifying these heads of clans, that they will be called to account for any depredations or insolencies hereafter committed.

AUG.

Having immediately after heard of an assault committed by one Robert Oig Buchanan and a companion upon Robert M'Capie, a tenant of Lord Napier (they had attacked him in his own house at night, wounded him, and cut off his ear, after which they drove off his cattle), the Committee ordered the Laird of

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Buchanan to forward the guilty persons to them before a certain day, in order that they might be brought to punishment. The two culprits failed to appear on summons, and their chief was then commissioned to seize them wherever they could be found.

At the beginning of October, the chancellor received a letter from the Laird of Grant, stating that he had apprehended ‘ane noted robber named *Halkit Stirk*.’<sup>186</sup> The Committee of Estates immediately sent an answer heartily thanking the laird ‘for doing so good a work for his majesty and the peace of the kingdom;’ further informing him that they would protect and maintain him against all injury that might be done to him or his followers on that account. They soon after gave the laird a commission to raise a band of forty men for the taking of Highland sorners and robbers.

The *Halkit Stirk* was subsequently ordered to be handed by the Laird of Grant to the magistrates of Aberdeen; by them to the magistrates of Montrose; from these again to those of Dundee; thence to Cupar and Burntisland in succession, under a suitable guard; to rest in the Tolbooth of Burntisland till further orders.

At the same time, the Highland bandit, John Dhu Ger, whom we have seen killed three times about twenty years before, is ordered to be brought under a sufficient guard from Stirling to the Tolbooth of Edinburgh.—*R. C. E.*

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The Letter-office at Edinburgh was in 1649 under the care of Mr John Mean, a merchant noted throughout the reign of Charles I. for his zeal as a Presbyterian; which, however, had not forbidden him to be also a strenuous loyalist.<sup>187</sup> Latterly, the same function had been bestowed upon Messrs Mew and Barringer, who, from their names, may be supposed to have been Englishmen, friends of the Cromwellian rule. At the date now noted, the king bestowed the office upon Robert Mean, superseding the two above-mentioned officials, and the Committee of Estates accordingly inducted him, ‘requiring the postmaster of Haddington to direct the packets constantly from time to time to the said Robert Mean, and cause the same to be delivered to him at Edinburgh.’—*R. C. E.*

SEP. 13.

The post-system for correspondence underwent a considerable improvement under the *régime* of the Restoration. The parliament, in August 1662,<sup>188</sup>

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ordained that for this purpose posts should be established between Edinburgh and Port-Patrick, the intermediate stations being Linlithgow, Kilsyth, Glasgow, Kilmarnock, Ayr, Drumbeg, and Ballantrae. Robert Mean was commissioned to establish these posts for the next ensuing year, and allowed ‘for each letter from Edinburgh to Glasgow two shillings Scots (twopence sterling), from thence to any part within Scotland three shillings Scots, and for all such letters as goes for Ireland six shillings Scots.’ To encourage him in the business, and help him to build a boat for the Port-Patrick ferry, he was allowed a gift of two hundred pounds, on condition that the boat should carry the letter-packet free. ‘All other posts, either foot or horse,’ were discharged.—*P. C. R.*

The horse-post of Mr Mean had not been long in operation, when it was found that sundry persons carried letters along the same line on foot, to the injury of the postmaster, and possibly to the encouragement of treasonable designs. At his request, a warrant was granted (December 26) against such interlopers.

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William Woodcock, ‘late officer in Leith,’ was this day licensed by the magistrates of Edinburgh, to set up ‘ane hackney-coach, for service of his majesty’s lieges, betwixt Leith and Edinburgh.’ The hire up and down for a single person was to be a shilling; and if the person engaging the carriage chose to wait for one or two persons more to accompany him, the same fare was to be sufficient. ‘If any mae nor three, each man to pay four shillings Scots [fourpence sterling] for their hire; and the persons coming up to Edinburgh, to light at the foot of Leith Wynd, for the steyness [steepness] thereof.’ This arrangement was not to prevent Woodcock from ‘serving others going to and from the country to other places, as he and they can agree.’

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SEP. 28.

At the surrender of Edinburgh Castle to Cromwell in December 1650, one of the articles of rendition insured that the public registers, public movables, and private evidences and writs heretofore preserved there, should be allowed to pass forth, and that wagons and ships should be provided for transporting them. These precious documents, with certain exceptions, were accordingly taken to Stirling Castle, where, however, it was not their fate to rest long. In August next year, while the Scottish army was advancing through England, to be annihilated at Worcester, General Monk took Stirling Castle, with 'all the Records of Scotland, the chair and cloth of state, the sword, and other rich furniture of the kings.' These were soon after transported to the Tower of London, not under any such feeling as the wantonness of conquest, but with a view to their proving serviceable for the scheme then entertained by Cromwell of a complete union of the two countries. In the Tower, they were deposited in a building called the Bowyers' House, which was also the residence of the keeper of the English Records, Mr Ryley.

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After the establishment of an English judicatory in Scotland, it was found necessary that such documents as referred to the rights of private parties should be in possession of the English commissioners; and on the petition of these gentlemen (April 8, 1653), an order of parliament was issued for the sending of all such documents back to Scotland, to be deposited as formerly in Edinburgh Castle. This seems to have been done either partially now, and conclusively in 1657, or wholly at the latter date, the amount of documents returned being sixteen hundred volumes.

After the Restoration, the Scottish records remaining in the Tower, being those of a public and historical character, were ordered to be returned to Edinburgh. Being put up in hogsheads, a ship was prepared to carry them down to Scotland. 'But it was suggested to Clarendon, that the original Covenant signed by the king, and some other declarations under his hand, were among them. And he, apprehending that at some time or other an ill use might have been made of these, would not suffer them to be shipped till they were visited: nor would he take Primrose's promise of searching for these carefully, and sending them up to him. So he ordered a search to be made. None of the papers he looked for were found. But so much time was lost, that the summer was spent. So they

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were sent down in winter.’—*Burnet*. They were shipped at Gravesend on board the *Eagle* frigate, commanded by Major John Fletcher; but, a storm arising, the captain was obliged, for the safety of his vessel, to trans-ship eighty-five hogsheads of these documents into a vessel called the *Elizabeth* of Burntisland. The *Elizabeth* having sunk with its whole cargo, the eighty-five hogsheads of registers were lost, ‘to the great hurt of this nation,’ as Nicoll with due sensibility remarks. From this wreck there escaped the records of parliament, and that of the Secret Council—the latter, we are bound to say, a specially fortunate escape for us, since the record in question has supplied the great bulk of what is at once new and curious in the present work. ‘The want of any inventory of the whole must leave us for ever in the dark as to the real extent of the loss which was then sustained. Among the lost records, however, we may probably reckon the rolls of the greater part of the charters of Robert I. and David II., and the far greater part of the original instruments of a public nature, which must be presumed to have existed in the archives of the kingdom, at their removal from Scotland in 1651.’<sup>189</sup>

One of the records, that of the Privy Seal, had escaped the general seizure by the English, and passed through some adventures not much less romantic than those of the Regalia. Consisting of about a hundred volumes, it rested in the care of Andrew Martin, writer in Edinburgh, who, on the approach of danger, carried it into the Highlands, and there preserved it from the enemy ‘with great expenses and fatigue, for ten years at least, to the hazard of his life and irrecoverable ruin of his family.’ After his death and that of his son, this record fell into the possession of John Corse, writer in Edinburgh, who had advanced considerable sums to the Martins, ‘on the faith of those books.’ On the 24th of March 1707, Mr Corse addressed a petition to the Scottish parliament, setting forth these particulars, and claiming a remuneration for ‘the expenses and great pains that has been expended in preserving these records,’ requesting at the same time that they should be taken into public custody. The parliament accordingly recommended Mr Corse’s claim to the queen.<sup>190</sup>

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Reduced as the state of Scotland was at the close of the Interregnum, no sooner had the Restoration taken place than such a ‘bravery’ broke out as if there had been no such thing as poverty in the land. The City of Edinburgh surrounded the Cross at the proclamation of the first parliament with twelve hundred men in arms. When the Earl of Middleton came on the last day of the year to open the parliament next day, sixteen hundred persons met him on horseback a few miles from town—‘there was seldom the like shaw.’ ‘All the nobles at this time, as also the barons and burgesses, were metamorphosed like guisers, their apparel rich, full of ribbons, feathers, and costly lace, to the admiration of many.’ It was all from joy at the idea of the troubles of the country being now brought to an end.

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The people were delighted to see the parliament sit down, merely as a token of the restoration of their national independency. They felt a peculiar joy in seeing the Earl Marischal and his two brothers come to Edinburgh, bearing with them the long-lost emblems of the native sovereignty.<sup>191</sup> Nicoll says, the gallant carriage of the people generally was ‘wonderful;’ ‘all of them, even the landward people [rustics], belted in their swords and pistols.’ ‘Our gentry of Scotland,’ he elsewhere adds, ‘did look with such joyful and gallant countenances as if they had been the sons of princes. It was the joy of this nation to see them upon brave horses, prancing in their accustomed places, in tilting, running of races, and such like, the like whereof was never seen in many score of years before.’

‘Our mischiefs,’ says the *Mercurius Caledonius*, ‘began with tumults and sedition, and we are restored to our former felicity with miracles. The sea-coasts of Fife, Angus, Mearns, and Buchan, which was famous for the fertility of fishing, were barren since his majesty went from Scotland to Worcester; insomuch that the poor men who subsisted by the trade, were reduced to go a-begging in the in-country. But now, blessed be God, since his majesty’s return, the seas are so plentiful, that in some places they are in a condition to dung the land with soles. An argument sufficient to stop the black mouths of those wretches that would have persuaded the people that curses were entailed on the royal family. As our old laws are renewed, so is likewise our good, honest, ancient customs; for nobility in streets are known by brave retinues of their relations, when, during the captivity, a lord was

scarcely to be distinguished from a commoner. The old hospitality returns; for that *laudable custom of suppers*, which was covenanted out with raisins and roasted cheese, is again in fashion; and where before a peevish nurse would have been seen tripping up stairs and down stairs with a posset or berry for the laird or the lady, you shall now see sturdy jackmen, groaning with the weight of sirloins of beef, and chargers loaden with wild fowl and capons.'

*Mercurius* is careful to state that, on the 1st of January 1661, the swans which used to dwell on Linlithgow Loch, and which had deserted their haunt at the time of the king's departure from Scotland, did now grace his return by reappearing in a large flock upon the lake. There was also a small fish called the *Cherry of the Tay*, a kind of whiting, which returned from a voluntary exile along with the king.

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John Ray was at Linlithgow in August 1661, and heard from Mr Stuart, one of the bailies, about the return of the swans. Mr Stuart alleged that two had been brought to the lake for trial during the Commonwealth, but would not stay. 'At the time of the king's coming to London, two swans, *nescio unde sponte et instinctu proprio*, came hither, and there still continue.'<sup>192</sup>

The superstitious Wodrow notes the fact of the swans in his *History*, and adds: 'Upon the citadel of Perth, where the arms of the Commonwealth had been put up, in May last year a thistle grew out of the wall near the place, and quite overspread them. Both these may be, without anything extraordinary, accounted for; but they were matter of remark and talk, it may be more than they deserve.'

The jollity so highly appreciated by *Mercurius Caledonius* is generally described in the writings of the Presbyterian clergy as beastly excess. 'Nothing to be seen but debauch and revelling,' says Kirkton; 'nothing heard but clamorous crimes, all flesh corrupted their way.' The Commissioner Middleton, keeping high festival daily during the sitting of parliament, sometimes was so manifestly drunk when he took his place on the throne, that it was necessary to adjourn the sitting. In his progress through the west country in autumn 1662, 'such who entertained him best had their dining-rooms, their drinking-rooms, their vomiting-rooms, and sleeping-rooms

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when the company had lost their senses.’ It was averred that, while he and his court were at Ayr, ‘the devil’s health was drunk at the Cross there, in one of their debauches, about the middle of the night.’—*Wod.* ‘The commissioner had £60 English a day allowed him, which he spent faithfully amongst his northern pantalons; and so great was the luxury, and so small the care of his family, that when he filled his wine-cellars, his steward thought nothing to cast out full pipes to make way for others. They made the church their stews; you might have found chambers filled with naked men and women; cursing, swearing, and blasphemy were as common as prayer and worship was rare.’—*Kir.* It was thought a suspicious circumstance regarding a man that he exhibited any gravity; it smelled of rebellion. If he wished to pass for a loyal man, to advance his prospects, or even to escape being thought a dangerous person, it was necessary he should put on the air of a swaggerer and a drunkard.

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By order of the king, the magistracy of Edinburgh raised the trunk of the Marquis of Montrose from under the gallows on the Burgh-moor, in presence of a great number of nobles, gentlemen, and others, who expressed the most lively interest in the scene.<sup>195</sup> This relic being wrapped in ‘curious cloths’ and put into a coffin, was carried along under a velvet canopy, to the Tolbooth, the nobles and gentry attending on horseback, while many thousands followed on foot, colours at the same time flying, drums beating, trumpets sounding, muskets cracking, and cannon roaring from the Castle. At the Tolbooth, the head of the Great Marquis, which had grinned there for ten years, was taken reverentially down, ‘some bowing, some kneeling, some kissing it,’ and deposited in its proper place in the coffin, ‘with great acclamations of joy,’ the trumpets, drums, and cannon giving all possible éclat to the act. The coffin was then carried in solemn procession to the Palace, to rest till a proper funeral-ceremony should be ordered. While the ‘excommunicat traitor’ of 1650 was thus treated, the triumphant and all-powerful noble of that time, the Marquis of Argyle, was a prisoner in the Castle, waiting a doom which was precisely to resemble that of Montrose, excepting in some particulars of inhumanity, which vengeful loyalty could not descend to.

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The Presbyterian historians, however, have taken care to chronicle that the Laird of Gorthie, who took the head off the spike, died within a few hours, and the Laird of Pitcur, one of Montrose's great adherents, went to bed in health, and was found dead next morning. This was a mysterious circumstance, which would probably be cleared up if we had a return of the quantity of brandy which Gorthie and Pitcur had drunk on the occasion. 'Such was the testimony of honour Heaven was pleased,' says worthy Mr Kirkton, 'to allow Montrose's pompous funerals.'

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The four members of Montrose were also recovered from the four towns, Glasgow, Stirling, Perth, and Aberdeen, to which they had been severally sent for ignominious exhibition; and these being now placed in the coffin, the body was complete as far as circumstances permitted, excepting that the heart remained in the silver case where Lady Napier had enshrined it, and in which it continued to be preserved, under the care of the Napier family, till the period of the French Revolution.

Four months afterwards (May 11), the ceremonial funeral of Montrose was performed with an amount of joyful display that rendered it a most singular affair.

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Twenty-three companies of a burgess-guard lined the streets, that the procession might pass without interruption. First went the new Life Guard; next twenty-six boys in mourning, carrying the arms of Montrose and the great men of his house; then the provost, bailies, and council of Edinburgh, all in mourning habits; after whom, again, came the barons of parliament and the members representing burghs. A gentleman clad in bright armour was followed by eighteen others, carrying banners of honour, and the spurs, gloves, breast-piece, and back-piece of the deceased, on the ends of staves. Next came a led horse in the accoutrements used by the marquis at the riding of parliaments, and attended by his lackey in armour. The flower of the Scottish nobility followed in good order; then the Lord Lyon, and his officers. Followed the friends of the deceased, bearing the marquis's cap of state, coronet, &c. Then the COFFIN, under its rich pall, carried by honourable lords and gentlemen, with six trumpets sounding before it. Some ladies clad in mourning followed. The Lord Commissioner (Middleton), in his coach of state, closed the long and splendid column, which, however, was closely followed by an honourable procession doing

like honours to the corpse of Hay of Dalgetty, another royalist victim of the Civil War. The bells rang all the time while the corpse of Montrose went on to its final honourable resting-place in St Giles's Cathedral. It was remarked that this was a funeral where the relatives of the deceased wore countenances of joy, while there were others, not related to him, who beheld it with sadness and gloom, or shrunk aside into holes and corners, not daring to look upon it.

The strong feeling which existed in loyal breasts at the Restoration regarding the treatment which Montrose had experienced, is shewn by the long imprisonment and sufferings of Neil M'Leod of Assynt, who had taken the marquis prisoner after his defeat in Strathoikel, and delivered him up (for a mean reward, it is said, of certain bolls of meal). On the 10th of December 1664, the Council received a petition from M'Leod, shewing that he had now been confined in the Tolbooth and city of Edinburgh for *four years*, so that, by the neglect of his affairs, he was 'brought near the point of ruin.' 'Being,' he said, 'a stranger and far from his country and friends, and out of all credit and respect by reason of his long imprisonment,' he could have 'no one to engage for him as caution;' but he offered to come under any kind of bond for his reappearance, if allowed a temporary liberty. The Earl of Kincardine offering to be security that M'Leod would send a guarantee to the amount of twenty thousand pounds Scots, he was favoured by the Council with liberty to go home for the next four months. It was not till February 1666 that a special letter from the king at length freed M'Leod from trouble on account of his concern in the doom of Montrose.—*P. C. R.*

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This day appeared the first number of the first original newspaper attempted in Scotland. It was a small weekly sheet, entitled *Mercurius Caledonius; comprising the Affairs now in Agitation in Scotland, with a Survey of Foreign Intelligence*. The editor was Thomas Sydserf, or Saint Serf, son of a former bishop of Galloway, who was soon after promoted to the see of Orkney. Principal Baillie alludes to this 'diurnaler' in bitter terms—'a very rascal, a profane atheistical papist, as some count him;' the truth being that he was an Episcopalian loyalist of merely a

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somewhat extravagant type. Little is known of his previous history, beyond his having borne arms under Montrose, and published in London in 1658 a translation from the French under the title of *Entertainments of the Cours, or Academicall Conversations*, dedicated to the young Marquis of Montrose. Of the *Mercurius Caledonius*, only nine numbers were published, the last being dated March 28, 1661. It must be admitted that the style of composition and editorship was frivolous and foolish to a degree surprising even for that delirious period.

At various times throughout the Civil War, when transactions of moment were going on in Scotland—as, for instance, in the autumn of 1643, when the Solemn League and Covenant was in preparation—news-sheets referring to our country had been published in London. There does not appear, however, to have been any regular or avowed attempt to give Scottish news in connection with English and Irish, until June 1650, when the march of Cromwell with an army to put down the Scots and their puppet king excited of course an unusual interest regarding Scotland. Then was commenced by ‘Thomas Newcomb, near Baynard’s Castle, Thames Street,’ a weekly *diurnal*, under the title of *Mercurius Politicus; comprising the Sum of all the Intelligence, with the Affairs and Designs now on foot in the three Nations of England, Ireland, and Scotland. In Defence of the Commonwealth and for Information of the People*. A weekly number of this work, consisting of two sheets of dwarf quarto, being sixteen pages, presented letters of news from the principal cities of Europe; and during the years 1650, 1, 2, 3, and 4, the intelligence from Scotland, chiefly of military operations there, was a conspicuous department.<sup>196</sup>

According to Mr George Chalmers,<sup>197</sup> Cromwell conveyed to Leith in 1652 one Christopher Higgins, 1661. who, in November of that year, began to reprint, for the information of the English garrison, a London newspaper, entitled *A Diurnal of some Passages and Affairs*. This is said to have not survived many months. It was followed up by a reprint of the afore-mentioned *Mercurius Politicus*, which Higgins commenced at Leith in October 1653, but soon after transferred to Edinburgh, where it was carried on till the eve of the Restoration—the imprint being, ‘Edinburgh: Reprinted by Christopher Higgins, in Hart’s Close, over against the Tron Church.’ This paper was afterwards resumed under a slight change of title, and continued till not earlier than June 1662.

Partly contemporary with it was a paper entitled the *Kingdom's Intelligencer*, begun at Edinburgh on the same day with the *Mercurius Caledonius*, and carried on till at least December 24, 1663. The number for the latter date contained among other articles, 'A Remarkable Advertisement to the Country and Strangers,' to the following effect: 'That there is a glass-house erected in the citadel of Leith, where all sorts and quantities of glasses are made and sould at the prices following: To wit, the wine-glass at three shillings two boddels; the beer-glass, at two shillings sixpence; the quart bottel, at eighteen shillings; the pynt bottel, at nine shillings; the chopin bottel, at four shillings sixpence; the muskin bottel, at two shillings sixpence, all Scots money, and so forth of all sorts; better stuff and stronger than is imported.'

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Horse-races were now performed every Saturday on the sands of Leith. They are regularly chronicled amongst the foolish lucubrations of *Mercurius Caledonius*; as, for example, thus: 'Our accustomed recreations on the sands of Leith was much hindered because of a furious storm of wind, accompanied with a thick snow; yet we have had some noble gamesters that were so constant at their sport as would not forbear a designed horse-match. It was a providence the wind was from the sea; otherwise they had run a hazard either of drowning or splitting upon Inchkeith! This tempest was nothing inferior to that which was lately in Caithness, where a bark of fifty ton was blown five furlongs into the land, and would have gone further, if it had not been arrested by the steepness of a large promontory.'

MAR.

In the ensuing month, there were races at Cupar in Fife, where the Lairds of Philiphaugh and Stobbs, and Powrie-Fotheringham appear to have been the principal gentlemen who brought horses to the ground. A large silver cup, of the value of £18, formed the chief prize. These Cupar races were repeated annually. It is said they had been first instituted in 1621.—*Lam.*

As a variety upon horse-racing, *Mercurius Caledonius* announced a foot-race to be run by twelve brewster wives, all of them in a condition which makes violent exertion unsuitable to the female frame, 'from the Thicket Burn [probably Figgat Burn] to the top of Arthur's Seat, for a groaning

cheese of one hundred pound weight, and a budgell of Dunkeld aquavitæ and rumpkin of Brunswick Mum for the second, set down by the Dutch Midwife. The next day, sixteen fish-wives to trot from Musselburgh to the Canon-cross for twelve pair of lamb's harrigals.'

*Mercurius* seems to have been thrown into great delight by the revival of a barbarous Shrovetide custom, which, strange to say, continued to exist in connection with seminaries of education down to a period within the recollection of living persons. 'Our carnival sports,' says he, 'are in some measure revived, for, according to the ancient custom, the work was carried on by cock-fighting in the schools, and in the streets among the vulgar sort, tilting at cocks with fagot-sticks. In the evening, the learned Virtuosi of the Pallat recreate themselves with lusty caudles, powerful cock-broth, and natural crammed pullets, a divertisement not much inferior to our neighbour nation's fritters and pancakes.'

1661.

One may in some faint degree imagine the sorrowful indignation with which the survivors of those who put down Christmas and Easter in 1642 would view these coarse celebrations of Shrovetide.

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A royal life-guard, consisting of sixscore persons, noblemen and gentlemen's sons, was this day embodied on the Links of Leith, under the command of the Earl of Newburgh. They then rode through the city, 'in gallant order, with their carabines upon their saddles, and their swords drawn in their hands.'—*Nic.*

APR. 2.

In July 1662, 'it pleased his majesty to cause clothe their trumpeters and master of the kettle-drum in very rich apparel,' also to give rich coverings of cramosie velvet for the kettle-drums. At the same time, a pair of costly colours was presented. Soon after, it is intimated that the king gave them each a buff-coat, and made an augmentation of their daily pay. Their chief occupation at this time seems to have been attendance on the royal commissioner, as he passed daily to and from the Parliament House.

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‘At two afternoon, the Marquis of Argyle was brought forth of the Tolbooth of Edinburgh, fra the whilk he was conveyed by the magistrates to the place of execution; the town being all in arms, and the life-guard mounted on horseback, with their carabines and drawn swords. The marquis, having come to the scaffold, with sundry of his friends in murning apparel, he made a large speech; after whilk and a short prayer, he committed himself to the block. His head was stricken from his body, and affixed upon the head of the Tolbooth, where the Marquis of Montrose[‘s] was affixed of before. It was thought great favour that he was not drawn and quartered.’—*Nic.*

MAY 27.

All the men who came to the scaffold at this time, and also some of those who obtained high and unexpected preferment, became the subjects of popular rumours which mark the ideas of the age. Robert Baillie tells us, as a piece of information he had from his son-in-law, Mr Robert Watson, who was with the Marchioness of Argyle at Roseneath on the night the king landed, that ‘all the dogs that day did take a strange howling and staring up at my lady’s chamber-windows for some hours together.’ The venerable principal adds: ‘Mr Alexander Colvill, justice-depute, an old servant of the house, told me that my Lady Kenmure, a gracious lady, my lord’s sister, from some little skill of physiognomy which Mr Alexander had taught her, had told him some years ago that her brother would die in blood.’

1661.

It has been stated by Wodrow, that after spending the forenoon of his last day in settling ordinary accounts, a number of friends being in the room with him, ‘there came such a heavenly gale from the spirit of God upon his soul, that he could not abstain from tearing [shedding tears]. Lest it should be discovered, he turned in to[wards] the fire, and took up the tongs in his hand, making a fashion of stirring up the fire in the chimney; but he was not able to contain himself, and, turning about and melting down in tears, he burst out in these words: “I see this will not do. I must now declare what the Lord has done for my soul. He has just now sealed my charter in these words: ‘Son, be of good cheer; thy sins are forgiven thee.’”’ It is certain that the marquis stated in his speech on the scaffold that he had that day received such an assurance.

Mr A. Simson, who had been four years in the Marquis of Argyle’s family, lived to tell Wodrow that, on the night before his lordship’s execution—

being a Sunday—he was at Inshinnan, where the communion had been administered, and where next day there were to be prayers in behalf of the suffering nobleman. He spent the hours from four to ten in religious exercises alone, and during this time, ‘with a power he scarce ever felt the like, eight or ten times that petition was borne in upon him: “Lord, say to him, My son, be of good cheer; thy sins are forgiven thee!” He did not much notice it till afterwards he saw his [lordship’s] speech, and saw the account that others had been put to wrestle for the same.’<sup>198</sup>

Mr James Guthrie, who suffered a few days after Argyle, had also had warnings, according to the historians of his party. When first induced in Mr Samuel Rutherford’s chamber at St Andrews to take the Covenant, ‘as he came out at the door, he met the executioner in the way, which troubled him; and the next visit he made thither, he met him in the same manner again, which made him apprehend he might be a sufferer for the Covenant, as indeed he was. He also had a warning of his approaching sufferings three years before the king’s return, and upon these he frequently reflected.’—*Kir*. The latter warning was probably a violent bleeding of the nose, which came upon him in the pulpit, while discoursing on the famous believers (Heb. xi.) who sealed their testimony with their blood.<sup>199</sup>

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Guthrie seems to have been the very type of the extreme kind of the Presbyterians, perfectly inflexible in what he thought the right course, and wholly devoted to the doctrines of his church. When the generality of his brethren were tacitly allowing men who were only loyalists to come to the standard in 1651, and union was of the last degree of consequence, Guthrie, being the minister of Stirling, the very head-quarters of the army, denounced these backslidings, and really must have produced great inconvenience to the king. It is told of the inveterate protester, that Charles thought proper to visit him one day, hoping perhaps to soften him a little; when Mrs Guthrie bustling about to get a chair placed for his majesty, the stern divine calmly said to her: ‘My heart, the king is a young man; he can get a chair for himself.’

It is also related that, at the same crisis, when a resolution was adopted to excommunicate General Middleton, and Guthrie was to perform the duty, the king sent a gentleman on the Sunday morning, to entreat at least a brief delay, when Guthrie quietly told him to come to church, and he would get



his answer. The unyielding divine duly proceeded to pronounce the excommunication.

It was generally believed that the doom of Guthrie was in some degree owing to the vindictive feeling which this act had engendered in Middleton. Wodrow relates

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that, some time after the execution, Guthrie's head being placed on the Nether Bow Port in Edinburgh, Middleton was passing underneath in his coach, when a considerable number of drops of blood fell from the head upon the top of the coach, making a stain which no art or diligence availed to wipe out. 'I have it very confidently affirmed, that physicians were called, and inquired if any natural cause could be assigned for the blood's dropping so long after the head was put up, and especially for its not wearing out of the leather; and they could give none. This odd incident beginning to be talked of, and all other methods being tried, at length the leather was removed, and a new cover put on.'

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A caustic wit of our age has remarked, 'Whatever satisfaction the return of King Charles II. might afford to the younger females in his dominions, it certainly brought nothing save torture to the unfortunate old women, or witches of Scotland, against whom, immediately on the Restoration, innumerable warrants were issued forth.'<sup>200</sup> It is quite true that an extraordinary number of witch prosecutions followed the Restoration; and the cause is plain. For some years before, the English judicatories had discountenanced such proceedings. The consequence was, there was a vast accumulation of old women liable to the charge throughout all parts of the country. So soon as the native judicatories were restored, the public voice called for these cases being taken up; and taken up they were accordingly, the new authorities being either inclined that way themselves, or unable to resist a demand so intimately connected with the religious feelings of the people.

On the day noted, the Council issued a commission for the trial of Isabel Johnston of Gullan, in the parish of Dirleton, who had 'confessed herself guilty, in entering

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in paction with the devil, renouncing her baptism, and otherwise, as her depositions under the hands of several of the heritors and other honest men bears,' and likewise

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to proceed to the trial of others in that district who might be delated of the same crime; for it was always seen that one apprehended witch produced several others. They at the same time commissioned three justice-deputes—the learned counsel Sir George Mackenzie being one of the number—to try a number of male and female wizards in the parishes of Musselburgh, Duddingston, Newton, Libberton, and Dalkeith. In this case, the judges were to have an allowance for their trouble 'aff the first end of the fines and escheats of such persons as shall happen to be convict.' Throughout the remainder of the year, and for some time after, the number of commissions issued for the trial of witches was extremely great. On one day, January 23, 1662, no fewer than thirteen were issued, being the sole public business of the council for that day, besides the issue of a commission for the trial of a thief in Sanquhar prison. Ray, the naturalist, who was in Scotland in August 1661, tells us it was reported that a hundred and twenty witches suffered about that time, and certainly much more than that number of individuals are indicated in the commissions as to be subjected to trial.

As a specimen of the facts elicited on the trials for the condemnation of these poor people—Margaret Bryson, 'having fallen out with her husband for selling her cow, went in a passion to the door of the house in the night-time, and there did imprecate that God or the devil might take her from her husband; after which the devil immediately appeared to her, and threatened to take her body and soul, if she entered not into his service; whereupon, immediately she covenanted with him, and entered into his service.' Another example—Isabel Ramsay 'conversed with the devil, and received a sixpence from him; the devil saying that God bade him give her that; and he asked how the minister did,' &c. Marion Scott, a girl of eighteen, serving a family in Innerkip parish, Renfrewshire, would go out in the morning with a hair-tether, by pulling which, and calling out, 'God send us milk and mickle of it!' she would supply herself with abundance of the produce of her neighbours' cows. She had a great deal of intercourse with the devil, who passed under the name of *Serpent*, and by whose aid she used to raise windy weather for the destruction of shipping. One day, being out at sea near the island of Arran, she caused Colin Campbell's sails to be riven, but was herself overset with the storm, so as to be thrown into a fever. After a night-

meeting with Satan, he ‘convoyed her home in the dawing, and when she was come near the house where she was a servant, her master saw a waff of him as he went away from her,’ &c.

The whole proceedings were usually of the most cruel description; and often the worst sufferings of the accused took place before trial, when dragged from their homes by an infuriated mob, tortured to extort confession, and half starved in jail. A wretch called John Kincaid acted as a *pricker* of witches<sup>201</sup>—that is, he professed to ascertain, by inserting of pins in their flesh, whether they were truly witches or not, the affirmative being given when he pricked a place insensible to pain. Often they were hung up by the two thumbs till, nature being exhausted, they were fain to make acknowledgment of the most impossible facts. The presumed offence being of a religious character, the clergy naturally came to have much to say and do in these proceedings. For example, as to Margaret Nisbet, imprisoned at Spott, in Haddingtonshire, the person ordered by the Privy Council to take trial of her case and report is Mr Andrew Wood, the minister of the parish. There are many instances in the Privy Council Record of witches being cleared on trial, but detained at the demand of magistrates, or clergymen, in the hope that further and conclusive evidence would yet be obtained against them. Such was the case of Janet Cook of Dalkeith, who had predicted of a man who beat her, that he would be hanged—which came to pass; who bewitched William Scott’s horse and turned him furious; and occasionally healed sick people by the application of some piece of an animal killed under certain necromantic circumstances. Janet had been tried, and acquitted; yet she was kept in durance at the urgency of the kirk-session, as they were getting fresh grounds of accusation against her.

1661.

Occasionally relenting measures were taken by the Council, though it is to be feared not always with the approval of the local powers. On the 30th of January 1662, they considered a petition from Marion Grinlaw and Jean Howison, the *survivors* of ten women and a man who had been imprisoned at Musselburgh on this charge. Some of the rest had died of cold and hunger. They themselves had lain in durance *forty weeks*, and were now in a condition of extreme misery, *although nothing could be brought against them*. Margaret Carvie and Barbara Honiman of Falkland had in like manner been imprisoned at the instance of the magistrates and parish

minister, had lain six weeks in jail, subjected to ‘a great deal of torture by one who takes upon him the trial of witches by pricking,’ and so great were their sufferings that life was become a burden to them, notwithstanding that they declared their innocence, and nothing to the contrary had been shewn. The Council ordered all these women to be liberated.—*P. C. R.*

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‘By an act of the parliament, an order is issued out to slight and demolish the citadels of the kingdom which were built by the English. This of Inverness had not stood ten years. The first part they seized upon was the sentinel-houses, neat turrets of hewn stone, curiously wrought and set up on every corner of the rampart wall, these now all broken down by the soldiers themselves. The next thing was the Commonwealth’s arms pulled down and broken, and the king’s arms set up in their place; the blue bridge slighted, the sally-port broken, the magazine-house steeple broken, and the great bell taken down—all this done with demonstrations of joy and gladness, the soldiers shouting “God save the king,” as men weary of the yoke and slavery of usurpation which lay so long about their necks. I was an eye-witness of the first stone that was broken of this famous citadel, as I was also witness of the foundation-stone laid, *anno* 1652, in May. This Sconce and Citadel is the king’s gift to the Earl of Moray, to dispose of at his pleasure. A rare thing fell out here that was notary known to a thousand spectators, that the Commonwealth’s arms set up above the most conspicuous gate of the citadel, a great *thistle* growing out above it covered the whole carved work and arms, so as not a bit of it could be seen, to the admiration of all beholders! This was a presage that the Scots therefore should eclipse [triumph.]’—*Fraser of Wardlaw’s MS.* 1666.

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JULY.

1661.

The Privy Council Record, for a long time after July 1661, is half filled with the cases of ministers who had been deposed during the troubles, and who, having for

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years suffered under extreme poverty, now petition for some compensation. Sometimes it was a minister who gave offence by his dislike to the movement of 1638, sometimes one who had incurred the wrath of the more zealous party by his adherence to the Engagement of 1648 'for procuring the liberation of his late majesty of blessed memory;' sometimes the cause of deposition was of later occurrence. For example: 'Mr John M'Kenzie, sometime minister of the kirk of Urray [Ross-shire], because he would not subscribe the Covenant and comply with the sinful courses of the time, [was] banished and forced to fly to England *anno* 1639, and thereafter was sent to Ireland, and though provided there with a competency, was by the rebellion forced to retire to Scotland. After his majesty's pacification closed at the Birks, and by the moyen of his friends, [he] re-entered to the ministry; yet, still retaining his principle of loyalty and integrity, he was therefore persecuted by the implacable malice of the violent humours of those times, and again suspended and thereafter deposed, only for refusing to preach men's humours and passions as a trumpet of sedition and rebellion.' Mr Andrew Drummond had been deposed from Muthill parish, 'for no other cause but his accession to ane supplication to the General Assembly, where he with divers others, out of the sense of their duty, did declare their affection to the Engagement, *anno* 1648,' and had suffered under this sentence for five or six years. Mr Robert Tran, minister of Eglesham, had been deposed in 1645 for no other cause than loyalty to his late majesty. In some cases, the petitioner tells of the wife and six or seven children whom his deposition had thrown destitute, and who had gone through years of penury and hardship. The Council generally ordered £100 sterling, or, in such a case as that of M'Kenzie, £150, out of the stipends of the vacant churches of their bounds.

The popular writers of this period of Scottish history do not advert sufficiently to those hard measures of the time of the Solemn League which may be said, in the way of reaction or retaliation, to have led to the severities now in the course of being practised upon the more uncompromising Presbyterians. The many petitions of the persecuted men of 1638-60 for redress are only slightly alluded to in a few sentences by Wodrow, while he fills long chapters with those sufferings of proscribed Remonstrators which would never probably have had existence but for their own harsh doings in their days of power. He dwells with much feeling on the banishment passed upon Mr John

Livingstone, a preacher high in the esteem of the more serious people, and deservedly so. All must sympathise with such a case, and admire the heroic constancy of the sufferer; but it is striking, only a few months after his sentence to exile (February 2, 1664), to find a Mr Robert Aird coming before the Privy Council with a piteous recital of the distresses to which he and his family had been subjected since 1638, in consequence of his being then thrust out of his charge at Stranraer, merely for his affection to the then constituted Episcopal government, the clergyman put into his place being this same John Livingstone! Aird tells us that, being then ‘redacted to great straits, he was at last necessitat to settle himself in Comray, in the diocese of the Isles, where his provision [patrimony] was,’ that being ‘so little that he was not able to maintain his family.’ During the usurpation, ‘by reason of his affection to his majesty, he was quartered upon and otherwise cruelly abused, to his almost utter ruin.’ The Lords recommended that Mr Aird should have some allowance out of vacant stipends in the diocese of the Isles. Another of the zealous clergy whose resistance to the new rule and consequent troubles and denunciation are brought conspicuously forward by Wodrow, was Mr James Hamilton, minister of Blantyre. He was compelled to leave his parish, and not even allowed to officiate peaceably in his own house at Glasgow. Much to be deplored truly; but Wodrow does not tell us of a petition which was about the same time addressed to the Council by the widow of Mr John Heriot, the former minister of Blantyre, upon whom, in 1653, ‘the prevailing party of Remonstrators in the presbytery of Hamilton had intruded one Mr James Hamilton,’ by whom the whole stipend had been appropriated, so that Heriot, after a few years of penury, had left his widow and children in absolute destitution. So impressed were the Council by the petitioner’s case, that they ordered her to receive the whole stipend of the current year. To any candid person who would study the history of this period, it appears necessary that these circumstances should be told, not in justification of the cruel and most unwise measures of the government and the heads of the new church, but as a needful explanation of what it was in the minds of these parties which made them act as they did.

While men tore each other to pieces on account of religion in Scotland, and all material progress in the country was consequently at a stand, one sagacious Scotch clergyman visited Holland, and found a very different state of things there. ‘I saw much peace and quiet,’ he says, ‘in Holland,

notwithstanding the diversity of opinions among them; which was occasioned by the gentleness of the government, and the toleration that made all people easy and happy. A universal industry was spread through the whole country.’—*Burnet’s History of his Own Times*.

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This day, John Ray, the eminent naturalist, entered Scotland for a short excursion. In the *Itineraries* which he has left, he gives, besides zoological observations, some notes on general matters. ‘The Scots, generally (that is, the poorer sort), wear, the men blue bonnets on their heads, and some russet; the women only white linen, which hangs down their backs as if a napkin were pinned about them. When they go abroad, none of them wear hats, but a party-coloured blanket which they call a plaid, over their heads and shoulders. The women, generally, to us seemed none of the handsomest. They are not very cleanly in their houses, and but sluttish in dressing their meat. Their way of washing linen is to tuck up their coats, and tread them with their feet in a tub. They have a custom to make up the fronts of their houses, even in their principal towns, with fir-boards nailed one over another, in which are often made many round holes or windows to put out their heads [called *shots* or *shot windows*]. In the best Scottish houses, even the king’s palaces, the windows are not glazed throughout, but the upper part only, the lower have two wooden shuts or folds to open at pleasure and admit the fresh air. The Scots cannot endure to hear their country or countrymen spoken against. They have neither good bread, cheese, or drink. They cannot make them, nor will they learn. Their butter is very indifferent, and one would wonder how they could contrive to make it so bad. They use much pottage, made of coal-wort, which they call keal, sometimes broth of decorticated barley. The ordinary country houses are pitiful cots, built of stone, and covered with turves, having in them but one room, many of them no chimneys, the windows very small holes, and not glazed. In the most stately and fashionable houses in great towns, instead of ceiling they cover the chambers with fir-boards, nailed on the roof within side. They have rarely any bellows or warming-pans. It is the manner in some places there to lay on but one sheet as large as two, turned

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up from the feet upwards. The ground in the valleys and plains bears good corn, but especially beer-barley, or bigge, and oats, but rarely wheat and rye. We observed little or no fallow-grounds in Scotland; some layed ground we saw which they manured with sea-wreck (sea-weeds). The people seem to be very lazy, at least the men, and may be frequently observed to plough in their cloaks. It is the fashion of them to wear cloaks, when they go abroad, especially on Sundays. They lay out most they are worth in clothes, and a fellow that hath scarce ten groats besides to help himself with, you shall see him come out of his smoky cottage clad like a gentleman.'

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Mr James Chalmers, commissioner for the presbytery of Aberdeen, came before the Privy Council with a representation that, in conformity with sundry acts of parliament, the synod had lately made diligent search within their bounds for papists and seminary priests. A

OCT. 3.

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list of the individuals, which the reverend gentleman handed in, is remarkable as containing many of the same names as those which we had under notice upwards of thirty years before for the same scandal. An age of the most rigorous treatment had failed to convince these people of their errors. There were the Lady Marquise of Huntly and her children, Viscount Frendraught with his brethren and children, the Laird of Gight and his children, the Lairds of Craig, Balgownie, and Pitfoddels, with many others whose names were not formerly noted, as the Lairds of Drum, Auchindoir, Monaltrie, Tullos, and Murefield. Altogether, it is a sad exhibition of pertinacity in unparliamentary opinions. Against these and many others, including several priests, the synod had proceeded with censure and excommunication; 'notwithstanding whereof they continue in their accustomed course of disobedience and will onnaways conform to the laws of the church and kingdom, but on the contrair, in a most insolent manner avow their heretical seditious principles and practices, to the overthrow of religion, disturbance of church and state, and the seducing of many poor souls.' It was suggested that the Council should issue letters of horning



against the delinquents. The lords promised to give the subject their consideration.

Very soon after this date, the Privy Council are found dealing with the case of ‘John Inglis and William Brown, apprehended and imprisoned in the Tolbooth of Edinburgh for being trafficking papists.’ Inglis had also been guilty of distributing popish books. Brown readily gave his promise, if liberated, ‘to take banishment upon him, and never to be seen within the kingdom hereafter;’ but Inglis was more obstinate. He ‘refused to give notice of such popish priests as of his knowledge were come within this kingdom,’ and would not on any account relinquish his own profession. He was told that he must leave the kingdom within twenty days, and that if ever again found within its bounds, he would be punished according to law—that is, hanged.—*P. C. R.*

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On the 5th of December, the Privy Council granted a warrant to Robert Mean, ‘keeper of the Letter-office in Edinburgh, to put to print and publish ane diurnal weekly for preventing false news which may be invented by evil and disaffected persons.’—*P. C. R.*

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DEC. 5.

‘In the night-season, at Edinburgh, one Thomas Hepburn, a writer, being a young man, was strangled in his bed privately, and, fearing he should [have] recovered, a knife was stopped in[to] his throat. He was carried out naked by three or four persons, and laid down on a midden-head in the High Street. A young maid coming by at the time, being afraid, cried and went into the Court of Guard, and told the business; upon this, some of the guard went out and apprehended five men, drinking with a woman, in the lodging where he lay, and carried them to the Tolbooth. They all denied they knew any such thing.’—*Lam.*

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1662. MAR. 13.

1662.

The late storm of popular rage against witches would now appear to have spent the worst, though not the whole of its fury. The Privy Council was become sensible of great inhumanity having been practised by John Kincaid, the pricker—who, as has been stated, took upon him to ascertain whether a woman was a witch or not by inserting a pin into various parts of her body, with the view of finding if in any part she was insensible to pain! They ordered this man to be put in prison.<sup>202</sup> A few days afterwards, they issued a proclamation, proceeding on the assurance they had received, that many persons had been seized and tortured as witches, by persons having no warrant for doing so, and who only acted out of envy or covetousness. All such unauthorised proceedings were now forbidden. Nevertheless, proceedings of a more legal and less barbarous character went on. Twelve commissions for the trial of witches in different districts were issued on the 7th of May; three on the 9th; three on the 2d of June; one upon the 19th; and three upon the 26th. In these instances, however, a caution was given that there must be no torture for the purpose of extorting confession. The judges must act only upon voluntary confessions; and even where these were given, they must see that the accused appeared fully in their right mind.

APR. 1.

At Auldearn, in Nairnshire, the notable witch-case of Isobel Gowdie came before a tribunal composed of the sheriff of the county, the parish minister, seven country gentlemen, and two of the town's men.<sup>203</sup> She was a married woman; her age does not appear, but, fifteen years before, she had given herself over to the devil, and been baptised by him in the parish church. She was now extremely penitent, and made an unusually ample confession, taking on herself the guilt of every known form of witchcraft. She belonged to a witch-covin or company, consisting, as was customary, of thirteen females like herself, who had frequent meetings with the Evil One, to whom they formed a kind of seraglio. Each had a nickname—as *Pickle nearest the Wind*, *Over the Dike with it*, *Able and Stout*, &c., and had a spirit to attend her, all of which had names also—as the *Red Riever*, the *Roaring Lion*, and so forth. The devil himself she described as 'a very mickle, black, rough man.'

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Meeting at night, they would proceed to a house, and sit down to meat, the *Maiden of the Covin* always being placed close beside the devil and above the rest, as he had a preference for young women. One would say a grace, as follows:

‘We eat this meat in the devil’s name,  
With sorrow and *sich* [sighs] and mickle shame;  
We shall destroy house and hald,  
Both sheep and nolt intill the fauld:  
Little good shall come to the fore  
Of all the rest of the little store.’

And when supper was done, the company looked steadily at their grizly president, and bowing to him, said: ‘We thank thee, our Lord, for this.’

Occasionally he was very cruel to them. ‘Sometimes, among ourselves,’ says Isobel, ‘we would be calling him *Black John*, or the like, and he would ken it, and hear us

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weel eneuch, and he even then come to us and say: “I ken weel eneuch what ye are saying of me!” And then he would beat and buffet us very sore. We would be beaten if we were absent any time, or neglect anything that would be appointed to be done. Alexander Elder in Earl-seat would be beaten very often. He is but soft, and could never defend himself in the least, but would greet and cry when he would be scourging him. But Margaret Wilson would defend herself finely, and cast up her hands to keep the strokes off her; and Bessie Wilson would speak crusty, and be belling again to him stoutly. He would be beating us all up and down with cords and other sharp scourges, like naked ghaists, and we would still be crying: “Pity, pity, mercy, mercy, our Lord!” But he would have neither pity nor mercy. When angry at us, he would girn at us like a dog, as if he would swallow us up. Sometimes he would be like a stirk, a bull, a deer, a rae,’ &c.

Isobel stated that when the married witches went out to these nocturnal conventions, they put a besom into their place in bed, which prevented their husbands from missing them. When they had feasted in a house and wished to depart, a corn-straw put between their legs served them as a horse; and on their crying, ‘Horse and haddock in the devil’s name!’ they would fly away, ‘even as straws would fly upon a highway.’ She once feasted in

Darnaway Castle, and left it in this manner. On another occasion, the party went to the Downy Hills, where the hill opened, and they went into a well-lighted room, where they were entertained by the queen of Faery. This personage was ‘brawly clothed in white linens and in white and brown clothes;’ while her husband, the king of Faery, was ‘a braw man, weel-favoured, and broad-faced.’ ‘On that occasion,’ says Isobel, ‘there were elf-bulls routing up and down, and affrighted me’—a trait which bears so much the character of a dream, as to be highly useful in deciding that the whole was mere hallucination.

The covin were empowered to take the shapes of hares, cats, and crows. On assuming the first of these forms, it was necessary to say:

‘I sall go intill a hare,  
With sorrow, sich, and mickle care;  
And I sall go in the devil’s name,  
Aye while I come home again.’

‘I was one morning,’ says Isobel, ‘about the break of day, going to Auldearn in the shape of ane hare, and Patrick Papley’s servants, going to their labour, his hounds being with them, ran after me. I ran very long, but was forced, being weary, at last to take my own house. The door being left open, I ran in behind a chest, and the hounds followed in; but they went to the other side of the chest, and I was forced to run forth again, and wan into ane other house, and there took leisure to say:

“Hare, hare, God send thee care!  
I am in a hare’s likeness now,  
But I sall be a woman even now!  
Hare, hare, God send thee care!”

And so I returned to my own shape again. The dogs,’ she added, ‘will sometimes get bits of us, but will not get us killed. When we turn to our own shape, we will have the bits, and rives, and scarts in our bodies.’

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Sometimes they would engage in cures, using of course the power derived from their infernal master. For a sore or a broken limb there was a charm in

verse, which they said thrice over, *stroking the sore*, and it was sure to heal. They had a similar charm for the *bean-shaw* or sciatica:

‘We are three maidens charming for the bean-shaw,  
The man of the middle earth,  
Blue bearer, land fever,  
Manners of stoors,  
The Lord flegged the Fiend with his holy candles and yird-fast stone;  
There she sits and here she is gone:  
Let her never come here again!’

Another was for cases of fever:

‘I forbid the quaking-fevers, the sea-fevers, the land-fevers, and all the  
fevers that ever God ordained,  
Out of the head, out of the heart, out of the back, out of the sides, out of  
the knees, out of the thies,  
Frae the points of the fingers to the nebs of the taes:  
Out sall the fevers go, some to the hill, some to the hope,  
Some to the stone, some to the stock,  
In St Peter’s name, St Paul’s name, and all the saints of heaven,  
In the name of the Father, the Son, and the Haly Ghaist!’

More generally, however, they were employed in planting or prolonging diseases. Isobel Gowdie told the minister that, in the preceding winter, when he was sick, they made a bagful of horrible broth of the entrails of toads, parings of nails, the liver of a hare, pickles of beir and bits of rag, and, at the dictation of the devil, pronounced over it this charm:

‘He is lying in his bed, he is lying sick and sair,  
Let him lie intill his bed two months and three days mair,’ &c.

‘Then we fell down upon our knees, with our hair down over our shoulders and eyes, and our hands lifted up, and our eyes steadfastly fixed upon the devil, and said the foresaid words thrice over.... In the night-time, we came into Mr Harry Forbes’s chalmer, with our hands all smeared, to swing [the bag] upon Mr Harry, where he was sick in his bed; and in the daytime [there came ane of

our number] to swing the bag [upon the said Mr Harry, as we could]<sup>204</sup> not prevail in the night-time against him.'

Isobel stated the charm for taking away a cow's milk. 'We pull the tow [rope] and twine it, and plait it the wrong way in the devil's name; and we draw the tether, sae made, in betwixt the cow's hinder feet, and out betwixt the cow's forward feet, in the devil's name; and thereby takes with us the cow's milk.... The way to give back the milk again is to cut the tether. When we take away the strength of any person's ale, and gives it to another, we take a little quantity out of each barrel or stand of ale, and puts it in a stoup, in the devil's name; and, in his name, with our awn hands, puts it amang another's ale, and gives her the strength and substance of her neighbour's ale. [The way] to keep the ale from us, that we have no power of it, is to sanctify it weel.'

One of their evil doings was to take away the strength of the manure of such as they wished ill to, or to make their lands unproductive. 'Before Candlemas, we went be-east Kinloss, and there we yoked a pleuch of paddocks. The devil held the pleuch, and John Young in Mebestown, our officer, did drive the pleuch. Paddocks did draw the pleuch as oxen. Quickens [dog-grass] were soams [traces]; a riglen's [ram's] horn was a coulter; and a piece of a riglen's horn was a sock. We went several times about, and all we of the *covin* went still up and down with the pleuch, praying to the devil for the fruit of that land, and that thistles and briers might grow there.' When they wished to have fish, they had only to go to the shore just before the boats came home and say three several times:

'The fishers are gone to the sea,  
And they will bring home fish to me;  
They will bring them home intill the boat,  
But they sall get of them but the smaller sort.'

Accordingly, they obtained all the fishes in the boats, leaving the fishermen nothing but slime behind.

Having conceived a design of destroying all the Laird of Park's male children, they made a small effigy of a child in clay, and having learned the proper charm from their

master, fell down before him on their knees, with their hair hanging over their eyes, and looking steadily at him, said:

‘In the devil’s name  
We pour this water amang the meal,  
For lang dwining and ill heal;  
We put it intill the fire,  
That it may be burned baith stick and stour.  
It sall be brunt with our will,  
As any stickle<sup>205</sup> upon a kiln.’

‘Then, in the devil’s name,’ says the culprit, ‘we did put it in, in the midst of the fire. After it was red like a coal, we took it out in the devil’s name. Till it be broken, it will be the death of all the male children that the Laird of Park will ever get.... It was roasten each other day at the fire; sometimes one part of it, sometimes another part of it, would be wet with water, and then roasten. The bairn would be burnt and roasten, even as it was by us.’ One child having died, the hags laid up the image till the next baby was born, and ‘within half a year after that bairn was born, we took it out again, and would dip it now and then in water, and beek and roast it at the fire, each other day once, untill that bairn died also.’

The devil made elf-arrows for them, and, learning to shoot these by an adroit use of the thumb, they killed several persons with them, also some cattle. ‘I shot at the Laird of Park,’ says Isobel, ‘as he was crossing the Burn of Boath; but, thanks be to God that he preserved him. Bessie Hay gave me a great cuff because I missed him.’ She spoke of having herself shot a man engaged in ploughing, and also a woman.

Not satisfied with what they had done against the Laird of Park, they held a diabolic convention at Elspet Nisbet’s house, to take measures for the entire destruction of his family and that of the Laird of Lochloy. Taking some dog’s flesh and some sheep’s flesh, they chopped it small and seethed it for a whole forenoon in a pot. Then the devil put in a sheep’s bag, which he stirred about for some time with his hands. ‘We were upon our knees, our hair about our eyes, and our hands lifted up, and we looking steadfastly upon the devil, praying to him, repeating the words which he learned us,

that it should kill and destroy the Lairds of Park and Lochloy, and their male children and posterity. And then we came to the Inshoch in the night-time, and scattered it about the gate, and other places where the lairds and their sons would most haunt, and then we, in the likeness of craws and rooks, stood about the gate and in the trees opposite. It was appointed so that if any of them should touch or tramp on any of it, it should strike them with boils, &c., and kill them. Whilk it did, and they shortly died. We did it to make that house heirless. It would wrong none else but they.'

We are not informed of the fate of Isobel Gowdie, or her associate, Janet Braidhead, from whose confession the last particulars are extracted; but there can be no doubt that they perished at the stake. Theirs are clearly cases of hallucination, mistakes of dreams and passing thoughts for real events, the whole being prompted in the first place by the current tales of witchcraft, and then made to assume in their own eyes a character of guilt because the witches themselves believed in witchcraft and all its turpitude, as well as their neighbours.

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The new-made Archbishop of St Andrews (Sharpe) commenced a sort of progress from Edinburgh, to take possession of his see. Dining with Sir Andrew Ramsay at Abbotshall, he came to lodge at Leslie, attended by several of the nobility and gentry. The anxiety of the upper classes to do honour to the new system is shewn in the cortège which accompanied the prelate next day to St Andrews. He had an earl on each hand, and various other nobles and lairds, and at one time between seven and eight hundred mounted gentlemen, in his train. Next Sunday, he preached in the town-church of St Andrews, on the text, 'I am determined to know nothing among you, save Jesus Christ, and him crucified.' 'His sermon did not run much on the words, but in a discourse vindicating himself, and pressing Episcopacy and the utility of it.'—*Lam.*

APR. 15.



By an act of parliament, this day was henceforth to be held as a holiday, both as the king's birthday and as the anniversary of his majesty's restoration. All over Scotland, the ordinance seems to have been heartily complied with. Everywhere there were religious services and abstinence from labour, and in most places active demonstrations of rejoicing, as beating of drums, shooting of cannon, sounding of trumpets, setting up of bonfires, and ceremonial drinkings of royal healths in public places.

MAY 20.

Through a peculiar loyal zeal, there was an extraordinary demonstration at Linlithgow. Not merely was the fine public fountain of that ancient burgh set flowing with divers coloured wines of France and Spain; not merely did the magistrates, accompanied by the Earl of Linlithgow and the minister of the parish, come to the market-place and there drink the king's health at a collation in the open air, throwing sweetmeats and glasses among the people, but an arch had been constructed, with the genius of the Covenant (an old hag) on one side, a Whiggamore on the other, and the devil on the top—on the back, a picture of Rebellion 'in a religious habit, with turned-up eyes and a fanatic gesture,' while on the pillars were drawn 'kirk-stools, rocks, and reels,' 'brochans, cogs, and spoons,' with legends containing burlesque allusions to the doings of the zealous during the preceding twenty years: and at the drinking of the king's health, this fabric was set fire to and consumed, together with copies of the Covenants, and all the acts of parliament passed during the Civil War, as well as many protestations, declarations, and other public documents of great celebrity in their day. When the fire was over, there appeared, in place of the late fabric, a tablet supported by two angels, and presenting the following inscription:

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'Great Britain's monarch on this day was born,  
And to his kingdom happily restored;  
His queen's arrived, the matter now is known,  
Let us rejoice, this day is from the Lord!

Flee hence all traitors, that did mar our peace;  
Flee, all schismatics who our church did rent;  
Flee, Covenanting remonstrating race;  
Let us rejoice that God this day hath sent.'

Then the magistrates accompanied the earl to the palace, where he, as keeper, had a grand bonfire, and here the loyal toasts were all drunk over again. Finally, the magistrates made a procession through the burgh, saluting every man of account. [206](#)

Wodrow tells us that this ‘mean mock of the work of reformation,’ was chiefly managed by Robert Miln, then bailie of Linlithgow, and Mr James Ramsay, the minister of the parish, subsequently bishop of Dunblane; both of whom had a few years before ‘solemnly entered into, and renewed these covenants, with uplifted hands to the Lord.’ ‘The first in some time thereafter came to great riches and honour [as a farmer of revenues], but outlived them, and the exercise of his judgment too, and died bankrupt in miserable circumstances at Holyroodhouse.’

One Grieve, a maltman at Kirkcaldy, was deliberately murdered by his son, in consequence of family quarrels. The wretched youth took some cunning measures for concealing the murder, but in vain. ‘He is had to the corpse; but the corpse did not bleed upon him (for some affirm that the corpse will not bleed for the first twenty-four hours after the murder): however, he is keepit, and within some hours after, he is had to the corpse again, and, the son taking the father by the hand, the corpse bleeds at the nose; but he still denies. Also, the man’s wife is brought, and they cause her touch her husband; but he did not bleed.’ The lad afterwards confessed, and was hanged.—*Lam.*

1662. JUNE 16.

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This was a year of uncommon abundance, in both grain and fruit, ‘the like never seen heretofore.’ ‘The streets of Edinburgh were filled full of all sorts of fruits ... sold exceeding cheap.’—*Nic.*

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Decision was given in the Court of Session of a singular case, in which several of the peers of the realm were concerned. ‘Lord Coupar, sitting in parliament, taking out his watch, handed it to Lord Pitsligo, who refusing to restore it, an

JULY 3.

action was brought for the value. Lord Pitsligo said, that Lord Coupar having put his watch in his hand to see what hour it was, Lord Sinclair putting forth his hand for a sight of the watch, Lord Pitsligo put it into Lord Sinclair's hand, in the presence of Lord Coupar, without contradiction, which must necessarily import his consent. Lord Coupar answered that, they being then sitting in parliament, his silence could not import his consent. The Lords repelled Lord Pitsligo's defence, and found him liable in the value of the watch.'<sup>207</sup>

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The check lately imposed on the cruelty of proceedings in witch cases was not everywhere effectual; but in one instance of alleged wizardry in the Highlands, the tyranny of the usual process was controlled in a most characteristic manner. A group of poor people, tenants in the parish of Kilmorack and Kiltarnity, in Inverness-shire—namely, Hector M'Lean; Jonet M'Lean, his spouse; Margaret M'Lean, sister of Jonet; and ten or twelve other women of indescribable Highland names—had been apprehended and imprisoned for the alleged crime of witchcraft, at the instance of Alexander Chisholm, of Commer; Colin Chisholm, his brother; John Valentine, and Thomas Chisholm, cousins of Alexander. The women had been put into restraint in Alexander Chisholm's house, while Hector M'Lean was confined in the Tolbooth of Inverness. Donald, a brother of John M'Lean, was searched for as being also a wizard, but he kept out of the way. The Chisholms then set to torturing the women, 'by waking them, hanging them up by the thumbs, burning the soles of their feet in the fire,' drawing some of them 'at horses' tails, and binding of them with widdies [withes] about the neck and feet.' Under this treatment, one became distracted, another died; the rest confessed whatever was demanded of them. Upon the strength of confessions extorted by 'tortures more bitter than death itself'—such is the language of the sufferers—the Chisholms had obtained a commission for trying the accused.

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It was alleged in a petition from M'Lean and the other prisoners, that the whole of this prosecution arose from inveterate hatred on the part of the Chisholms, because they could not get them in a legal way put out of their

lands and possessions, where they had been for between two and three hundred years past—so early was the fashion of eviction in the Highlands. And here comes in the characteristic feature of the case. These M'Leans, though so long removed from the country of their chief and dwelling among strangers, were still M'Leans, owning a fealty to their chief in his remote Mull fastness, and looking for protection in return. Accordingly, we have this insular chief, Sir Rory M'Lean of Dowart, coming in with a petition to the Privy Council in behalf of these poor people, setting forth their case in its strongest light, and demanding justice for them. The Council ordered proceedings under their commission to be stopped, and sent to require the Chisholms to come before them along with the prisoners.

How this matter ended we do not learn; but it is evident that the clan feeling was effectual in saving the M'Leans from further proceedings of an arbitrary and cruel nature.—*P. C. R.*

Early in the ensuing year, there occur a number of petitions to the Council from individuals who had been confined a long time on charges of witchcraft, either untried for want of evidence, or who had been tried and acquitted, but were further detained in hope of evidence being obtained. One of these was from a burgess of Lauder named Wilkison, in favour of his wife, who was kept in a miserable condition in prison, even after her accuser had expressed penitence for 'delating' her! The Council generally shewed a disposition to liberate such persons on petition; but there were cases which lay long neglected. We hear in January 1666 of a poor woman named, Jonet Howat, who had been a prisoner in Forfar jail on suspicion of witchcraft for *several years*, and was now 'redacted to the extreme of misery,' never having all the time been subjected to trial.<sup>208</sup> Jonet was ordered to be liberated, if her trial could not be immediately proceeded with. It is rather remarkable to find in the ill-reputed government of this time traits of a certain considerateness and humanity towards women under charges of witchcraft—for example, taking care that they should not be tortured by unauthorised persons, and making sure that even their voluntary confessions should appear as proceeding from a sane mind; thus shewing a feeling which was to all appearance unknown during the late *régime*.

1662.

Jon Ponthus, a German, styling himself professor of physic, but who would now be called a quack-doctor, was in Scotland for the third time, having previously paid professional visits in 1633 and 1643. His proceedings afford a lively illustration of the state of medical science in our island, and of the views of the public mind regarding what is necessary to a good physician. Erecting a stage on the High Street of Edinburgh, he had one person to play the fool, and another to dance on a rope, in order to attract and amuse his audience. Then he commenced selling his drugs, which cost eighteenpence per packet, and Nicoll allows that they ‘proved very good and real.’ This honest chronicler seems to have been much pleased with the antics of the performers. Upon a great rope fixed from side to side of the street, a man ‘descended upon his breast, his hands loose and stretched out like the wings of a fowl, to the admiration of many.’ Most curious of all, ‘the chirurgeons of the country, and also the apothecaries, finding thir drugs and recipes good and cheap, came to Edinburgh from all parts of the kingdom and bought them,’ for the purpose of selling them again at a profit. ‘Thir plays and dancings upon the rope continued the space of many days, whose agility and nimbleness was admirable to the beholders; ane of these dancers having danced sevenscore times at a time without intermission, lifting himself and vaulting six quarter heigh above his awn head, and lighting directly upon the tow, as punctually as gif he had been dancing upon the plain-stones.’—*Nic.* The quack subsequently exhibited in like manner at Glasgow, Stirling, Perth, Cupar, and St Andrews.—*Lam.*

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‘About the same time, another mountebank, a High German, had the like sports and commodities to gain money. He was at Edinburgh twice, as also at Aberdeen and Dundee. He likewise had the leaping and flying rope—viz., coming down ane high tow, and his head all the way downward, his arms and feet holden out all the time; and this he did divers times in one afternoon.’—*Lam.*

In December 1665, a doctor of physic, named Joanna Baptista, acting under his majesty’s warrant, ‘erected a stage [in Edinburgh] between Niddry’s and Blackfriars’ Wynd head, and there vended his drugs, powder, and medicaments, for the whilk he received a great abundance of money.’—*Nic.*

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‘It pleased the king’s majesty at this time to raise [five] companies of foot-soldiers, weel provided in arms, able stout Scotsmen, by and attour those of the life-guard, wha attended his majesty’s service in and about Edinburgh, ever ready to attend the king’s pleasure and the parliament’s direction.’—*Nic.*

SEP.

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Died, the Earl of Balcarres, a boy. ‘The lady, his mother, caused open him, and in his heart was found a notched stone, the bigness of one’s five fingers, Dr Martin and John Gourlay [apothecary] being present at his embalming.’<sup>209</sup>—*Lam.*

OCT. 15.

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The clergymen of Edinburgh, five in number, were all displaced for non-conformity to the new Episcopal rule, excepting one, Mr Robert Lowrie, who consequently obtained the name of the *Nest Egg*. He became Dean of Edinburgh. The inhabitants of the city, not relishing the new ministers, began to desert the churches and go to worship elsewhere. At the same time, the Monday’s sermon, which had for some years been in use, was discontinued.

Nov.

In the new church establishment the chief object held in view was to get the church courts controlled by bishops and the royal supremacy. Matters of worship and discipline were left much as they had been. No ceremonies of any kind, nor any liturgy, were attempted. ‘The reading of Scriptures was brought in again, and the psalms sung with this addition: “Glory to the Father, to the Son, and to Holy Ghost,” &c.’ That was all. While the famous Perth articles were left in oblivion, it was felt to be necessary that there should be some respect paid to the day of the Nativity. Accordingly, the next Christmas-day was solemnly kept in Edinburgh, the bishop preaching in the Easter Kirk (St Giles) to a large audience, in which were included the commissioner,

1662.

chancellor, and all the nobles in town. ‘The sermon being ended, command was given by tuck of drum, that the remanent of the day should be spent as a holiday, that no work nor labour should be used, and no mercat nor trade on the streets, and that no merchant booth should be opened under pain of £20 in case of faillye.’—*Nic.*

There was also a kind of volunteer effort in certain classes to get up an observance of the day consecrated to the national saint. November 30, a Sunday, being St Andrew’s Day, ‘many of our nobles, barons, gentry, and others of this kingdom, put on ane livery or favour, for reverence thereof. This being a novelty, I thought good to record, because it was never of use heretofore since the Reformation.’—*Nic.*

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Died David Mitchell, Bishop of Aberdeen, ‘a little man, of a brisk lively temper, well learned, and a good preacher. He lived a single life, and his manners were without reproach.’ This prelate had experienced some strange vicissitudes of fortune. Originally a protégé of Archbishop Spottiswoode, and probably by his favour advanced from a parish pulpit in the Mearns to be a dean, he had been thrust out by the Covenanters in 1638, and retired to Holland. There, ‘being a good mechanic, he gained his bread by making clocks and watches.’ At the Restoration, being enabled to return to his native country, he was made a prebend of Westminster, and thence advanced to the see of Aberdeen.<sup>[210](#)</sup>

1663. FEB.

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‘There was ane lioness brought to Edinburgh with ane lamb in its company, with whom she did feed and live; wha did embrace the lamb in her arms, as gif it had been her awn birth.’—*Nic.*

MAR.

1663.

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‘This year was a very plentiful year of corns and stone-fruit,’ and the ensuing winter was ‘exceeding fair and warm weather, without any frost or snow.’—*Nic.*

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‘At this time, came here that valiant Colonel Rutherford, born and brought up in Edinburgh, a stout champion, late governor of Dunkirk, and now of Tangier, a man famous for his actions abroad. He came, having licence from his majesty to visit his friends here for a very few days.... It wald be here remembered that the Scottish nation in my time produced not a few such cavaliers; such as Colonel Edment, born in Stirling, a baxter’s son; Colonel Boog, Colonel Hepburn, Colonel Douglas, General Ruthven, General Leslie, General King, and many others, all valiant men, to the credit of this kingdom.’—*Nic.* Colonel Rutherford was ennobled under the title of Earl of Teviot, but did not long survive, being killed in May 1664, by an army of Moors. He left money to build eight rooms in the College of Edinburgh, where he had been educated.

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Nov.

This month and the succeeding, there were many robberies throughout the country, and even in the streets and closes of Edinburgh, ‘occasioned by the poverty of the land, and heavy burdens pressing upon the people; the haill money of the kingdom being spent by the frequent resort of our Scotsmen at the court of England.’—*Nic.*

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1664. JAN.

One James Elder, a baker in the Canongate, Edinburgh, was tried for usury. The witnesses deponed that they saw him receive 8 per cent. from his debtor, and one of them deponed that he refused to accept 6 per cent. till he got 2 per cent. more.

APR. 20.



Being found guilty, his goods were escheat, and he ordered to find security that he would be ready to undergo any further punishment that might be inflicted upon him.—*B. of C.*

What was then, partly under religious feelings, regarded as a crime, has since come to be held as legitimate traffic; and it is not unworthy of remark that the Bank of England was, at the time of the preparation of this article (November 1857), charging on bills 2 per cent. more than that rate of interest which caused James Elder in 1664 to forfeit his whole possessions.

The Earl of Leven, a young man, grandson of the great commander, ended his life in a manner characteristic of this mad-merry time. ‘He died of a high fever, after a large carouse with the Earl of Dundee at Edinburgh and the Queensferry. Some say that, in crossing, they drank sea-water one to another, and, after their landing, seck.’ A funeral-sermon was preached for him, on the text, ‘Our life is but a vapour, &c.,’ being ‘the first funeral-sermon that hath been preached in Fife these twenty-four years last past, or more.’—*Lam.*

1664.JULY 15.

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At this time, while the plague raged with great violence in Holland, carrying off as many as 739 persons in one day in Amsterdam, ‘there was much death in Scotland by ane fever called the *Purple Fever*.’—*Nic.*

JULY.

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‘There fell out much division between the king’s Customers [officers of customs] and the merchants of Edinburgh, anent the searching of their merchandise and goods, and payment of their customs; and the Customers being informed that the merchants had brought in privily from England certain braid claith, and had convoyed the same over the town-wall privily in the night, they thereupon received warrant from the Great Treasurer and his deputes for searching the haill merchants’ booths of Edinburgh, and to stamp and seal their haill braid claith, and to take their oaths of verity anent the quantity of

Nov.

their merchandise and goods customable. The merchants, hearing the report thereof, in a moment closed up all their shops and doors, and held out Sir Walter Simpson, principal Customer, and his associates, from entry to their shops; but he placed sentries at their doors, that they should receive nothing out.’ The affair ended in a riot, in the course of which Sir Walter’s house was pillaged and an apprentice shot, and which was only quieted by military force.—*Nic.*

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This year, like the two preceding, was remarkable for abundance of the fruits of the earth. ‘Much corn cuttit down in July ... the cherries sold at twelve pennies Scots [that is, one penny sterling] the hundred.’ Great penury nevertheless complained of.—*Nic.*

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‘There appeared nightly, frae four hours in the morning till daylight, ane fiery comet, tending in our sight frae the south-east to the north-west, and seen in our horizon betwixt Arthur’s Seat and Pichtland Hills, with ane tail terrible to the beholders.... This comet, in the head, was, in our sight, the breadth of ane reasonable man’s hand, and sprang out in the tail the length of five or six ells.’—*Nic.* It ‘began to appear about three o’clock in the morning, very terrible in its first apparition; after that, it appeared at evening. It was a star of a more dim and bluish apparition (like a candle dying out) than the rest of the stars, with a long train of lightning from it, sometimes a fathom and a half in appearance, sometimes shorter.’—*Lam.*

DEC.

1664.

Pepys relates that the king and queen sat up on the night of the 17th of December, to see this comet, ‘and did, it seems.’ He also tells us of a lecture he was present at, in Gresham College, where Mr Hooke made it seem ‘very probable that this is the very same comet that appeared before in 1618, and that in such a time probably it will appear again, which is a very new opinion.’<sup>[211](#)</sup>

The comet of 1664 passed its perihelion on the 4th of December, at a distance from the sun somewhat greater than that of the earth's orbit. The remark of Mr Hooke is erroneous in point of fact, but nevertheless interesting, as shewing that the periodicity of comets was now a subject of speculation among the few then cultivating natural philosophy in England.

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About the end of this year, Sharpe, Archbishop of St Andrews, purchased the lands of Scotsraig, a good estate in Fife, at 95,000 merks or thereby (about £5540). In the spring of 1669, he made a further purchase of the lands of Strathtyrum, near St Andrews, for about 27,000 merks. These doings argue the lucrative nature of the preferments for which Sharpe, as his brethren believed, had sold his party and his conscience. He had a brother William, who was at the same time rising in prosperity, and who, in 1665, bought the lands of West Newton, near Musselburgh, now called Stonyhill, at 27,000 merks. This William Sharpe was knighted by the Commissioner Lauderdale in 1669.

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The Laird of Lundie, a young unmarried man, was buried in Largo Church, with that novel and superfluous pomp with which all important matters had been conducted since the Restoration. The funeral was attended by a great number of the nobility and gentry of Fife, Lothian, and the Carse of Gowrie, including the Earls of Crawford, Athole, Kellie, Wemyss, Tweeddale, and Balcarres, Lords Lyon, Elphinstone, and Newark, who all dined at the house of Lundie before the corpse 'was lifted.' The coach or hearse, decorated with the armorial insignia of the deceased, and a pall of black velvet, was drawn by six horses, preceded by three trumpeters and four heralds in proper costume.

1665. JAN. 5.

1665.

'The heralds and painter got, for their pains, about 800 merks; the poor ten dollars; the coachmen seven dollars; the trumpeters forty-eight dollars; the baxter, James Weiland, seven dollars; George Wan, master of the household

...; the cooks, ...; Mr Waters, that dressed the coach, seven dollars; ... some men that served ...; the Kirkcaldy man, for the coffin, 40 lib.; John Gourlay, apothecary, for drogs, attendance, and bowelling of him, ...; James Thomson, in Kirkcaldy, for mournings, 412 lib. or thereby; at Edinburgh, for mournings, 600 lib. or thereby; Gid. Sword for drogs, 16 lib. or thereby; to the writer at Edinburgh for paper and the burial letters, 12 lib.; at Edinburgh, for claret wine, 200 merks; for seck, 100 lib.; at Edinburgh, two divers times, for spices, about 100 lib.; for sugar ... R. Dobie, for tobacco, seven lib.; R. Clydesdale, for ware, 54 lib., 11s.; Will. Foggo, for beef, 84 lib., 12s.; Capper, at Scoonie, for capps, 6s. ster.; An. Brebner, smith, for the chimlay and work, near ane 100 lib. or thereby; Robert Bonaly, for dyeing to the servants, 21 lib., 6s. 8d.; Glover in the Wemyss, for servants' gloves, 4 lib.'—*Lam.*

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Died at Cupar, Thomas Seaton, who is described as 'a great exciseman,' meaning a farmer of the revenue over a considerable district. The event would not be worthy of notice, but for a connected circumstance. 'He died a Catholic Roman, which was never divulged till his death.'—*Lam.* Such a fact, revealing a lifelong hypocrisy in a man of some consequence, is very startling amidst the universal professions of anxiety for 'the true religion.' But it may well be supposed to be but one of many instances in which intolerance produced one of its natural fruits, dissimulation.

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In the latter part of this month, for several days, 'there appeared in the clear light of day, even at twelve, one, and two o'clock, and also in the haill afternoon, ane fiery blazing star in the firmament. This star continued and increased daily and nightly thereafter, by the space of many weeks, sometimes having a great brugh about it [a halo] like the moon.'—*Nic.*

JAN. 9.

FEB.

1665.

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In consequence of the war between Great Britain and Holland, great stagnation of trade was experienced in Scotland, 'to the heavy damage and wreck of the people.' 'The seamen were daily sought, taken, and warded, till they were shipped for that service.' 'The towns upon the north shore of the Firth of Forth had daily and nightly watches for their defence, in case they should be surprised by the Hollanders.'—*Nic.*

FEB.

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Snow had begun at Christmas 1664, and it lay upon the ground till the 14th of March this year—a storm of which the like had not been seen for many years before.—*Nic.* 'Some began to say there would hardly be any seed-time at all this year; but it pleased the Lord, out of His gracious goodness, on a sudden to send seasonable weather for the seed-time, so that in many places the oat seed was sooner done this year [than] in many years formerly; for the long frost made the ground very free, and the husbandmen, for the most part, affirmed they never saw the ground easier to labour.' Many sheep perished during the storm, and the frost was severe enough to kill the broom and whins in many places.—*Lam.*

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In the end of this month, appeared a new and fearful comet, greater than that seen in November. It was visible in all parts of Europe, and 'set many heads at work.' The recent alarms spread by the Turks through Europe, and which had affected even Scotland, and the feeling of anxiety occasioned by the Dutch war and constant threats of invasion, gave more than its proper share of terrors to this celestial stranger. 'They write from Frankfort, Dresden, Berlin, and other places, of strange sights and terrible in the air; many of which are undoubtedly augmented by imagination and report, yet a great part of the story is looked upon as a truth.'—*Nic.*

MAR.

This comet, which was seen in France two months earlier than it seems to have been in Scotland, was observed by Hevelius, Cassini, and others. It passed its perihelion on the 24th of April, at a comparatively small distance from the sun, and with a great eccentricity of orbit.

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We get some idea of the expense of building at this time, from the sum at which Robert Mylne, master-mason in Edinburgh, undertook to erect an hospital at the kirk-town of Largo. It was a house of fourteen fire-rooms and a public hall; each room containing a bed, a closet, and a loom; besides which there was a stone-bridge at the entry, and a gardener's house, two stories high. 'Some say he was to have for the work, being complete, 9000 merks [£506], and if it was found weel done, 500 merks more.'—*Lam.* In 1661, according to the same diarist, when some mason-work was executed at Lundie, in Fife, the master had tenpence a day, and the other men ninepence, 'and all their diet in the house.'

APR.

1665.

This day, being Sunday, the news of the great naval victory over the Dutch reached Edinburgh (in three days from London) during the time of service. 'No sooner were these good news divulged, but they were saluted from the [Leith] Road and from the Castle; as also with all taikens of joy upon the morrow thereafter, by setting out of bonfires in the town and places adjacent, and by ringing of bells, shooting of cannons frae sea; the town of Edinburgh marching with their displayed colours frae the Abbey, the commissioner's lodging, to the Castle yett; all of them dancing and louping for joy through the streets and bonfires as they went, drinking his majesty's health at the bonfires.'—*Nic.*

JUNE 11.

Scotland was now under great alarm on account of the terrific plague which had broken out in London, and which lasted with great violence till October. Orders were issued by the Privy Council, forbidding any to come on business from the south without a testimonial of health. ‘Albeit there were not a few travellers and resorters therefrae,’ it pleased God that the pestilence should not come to Scotland.—*Nic.* The exemption of our country is the more remarkable, as the plague made its way into Ireland, and proved highly destructive in Dublin.

JULY.

The great plague of 1665 was the subject of serious remark in Scotland, in connection with circumstances much calculated to impress certain minds in that part of the world. ‘I find it taken notice of,’ says Wodrow, ‘by several papers written at this time, that the appearance of a globe of fire was seen above that part of the city where the Solemn League and Covenant was burnt so ignominiously by the hands of the hangman. *Whatever was in this*, it seems certain that the plague broke out there; and it was observed to rage mostly in that street, where that open affront had been put upon the oath of God, and very few were left alive there.’

1665.

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The Lord High Commissioner, the Earl of Rothes, commenced a progress through the west country, attended by the life-guard, the foot companies, and a cavalcade of *nine hundred gentlemen*, with trumpeters, kettle-drum, and royal standard. He went to Hamilton, Paisley, Eglintoun, and Dumbarton, ‘in a triumphant and comely manner;’ next to the Earl of Montrose’s house of Mugdock, and thence by Callendar and Linlithgow, back to Edinburgh, everywhere ‘royally entertained,’ and spending in all eighteen days on the journey.—*Nic.* It is to be suspected that idle and costly amusements of this kind, which had come in with the Restoration, had something to do with the poverty now complained of.

Nov. 2.

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The light regard paid to the personal rights of individuals was shewn by a wholesale deportation of poor people at this time to the West Indies. The chronic evil of Scotland, an oppressive multitude of idle wandering people and beggars, was not now much less afflicting than it had been in the two preceding reigns. It was proposed to convert them to some utility by transferring them to a field where there was a pressing want of labour. On the 2d of November, George Hutcheson, merchant in Edinburgh, for himself and copartners, addressed the Privy Council on this subject, 'out of a desire as weel to promote the Scottish and English plantations in Gemaica and Barbadoes for the honour of their country, as to free the kingdom of the burden of many strong and idle beggars, Egyptians, common and notorious thieves and other dissolute and lous persons, banished or stigmatised for gross crimes.' The petitioners had, by warrant of the sheriffs, justices of peace, and magistrates of burghs, apprehended and secured some of these people; yet without authority of the Council they thought they might 'meet with some opposition in the promoting and advancing so good a work.' It was therefore necessary for them to obtain due order and warrant from the Council.

Nov.

The Council granted warrant and power to the petitioners to transport all such persons; 'providing always, that ye bring the said persons before the Lord Justice-clerk, to whom it is hereby recommended to try and take notice of the persons, that they be justly convict for crimes, or such vagabonds as, by the laws of the country may be apprehended, to the effect the country may be disburdened of them.'

1665.

Two months later, James Dunbar, merchant, bound for Barbadoes, was licensed to take sundry 'vagabonds and idle persons prisoners in Edinburgh, content to go of their own accord.'

The population of Barbadoes includes a greater proportion of whites than that of any other island of the West Indies, and the industrial economy of the island is also admittedly superior. It is understood that this is in a great measure owing to the cruel deportations of the poor people of Scotland to that island in the seventeenth century.

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Another good harvest, ‘whilk was the cause that a number of fee’d servants, both men and women, did marry at Martinmas, by way of penny-bridals, both within the town of Edinburgh and other parts of the country.’—*Nic.*

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Nov.

Although the preceding had been, according to Nicoll, ‘a dangerous, cruel, and bloody year,’ and though at this time an order stood forbidding commerce with the plague-stricken south, yet ‘upon the 1st day of January 1666, there was *as much drinking and carousing as in former times.*’

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1666. JAN. 1.

After the restoration of Episcopacy, the attendance at the churches in Glasgow fell so much off, that the collection for the poor no longer produced nearly what was necessary for their sustentation. At this date, we find the archbishop writing to the Town Council, adverting to the ‘several persons, men and women, who ordinarily dishaunts public ordinances, and flatters themselves with hope of impunity.’ His grace threatened to employ some of the officers of his majesty’s militia, ‘both to observe who withdraws from ordinances and to exact the penalties imposed by law.’ The magistrates then resolved to take steps for collecting the fines for non-attendance at church, as being better ‘than that any sodgers should have the collecting thereof.’—*M. of G.*

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APR. 3.

At a horse-race at Cupar, ‘the Lord Lithgow and the Lord Carnegie, after cups, there passed some words betwixt them, and about night they drew off from the rest, on the hill towards Tarbet Broom, and drew their swords one at another, till at last Carnegie gave Lithgow a sore wound. While this was noised abroad, divers of the nobility and

APR. 12.

1666.

others there present did ride to stop them; among whom was the Earl of Wemyss, who, labouring to ride in betwixt the parties, had both his own horse under him, and his man's horse, thrust through by them, while they were drawing one at another, so that both the horses died; also one of Lord Melville's horses was hurt, and the Lord Newark had one of his servants ridden down also and hurt. At night they were both put under arrest by his majesty's commissioner [the Earl of Rothes] at Cupar, in their several quarters.'—*Lam.*

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APR.

For several years after the Restoration, various districts in the Highlands continued to be haunted by groups of wild and lawless men who made prey of their more industrious and peaceable neighbours. The only resource of the government was to appoint some considerable man of the disturbed district to raise a force among his tenants and dependents, for the execution of the laws against the delinquents. Thus, we find a small military party under the Marquis of Montrose appointed (April 5, 1666), under the name of a *Watch*, to keep the peace in the district of Cowal, in Argyleshire. Another *watch* of sixty men, under Mungo Stirling of Glorat, was appointed for Stirlingshire and Dumbartonshire. A third district, often and seriously disturbed by robberies, was Strathspey and the alpine ground extending from it towards Perthshire and Aberdeenshire—a country of Macphersons and M'Intyres, now the scene of an improved agriculture, and the nursery of vast herds of sheep and cattle devoted to the sustenance of the industrial cities of England. In those days, men who would now be successful farmers, exemplifying the decent virtues of the Scottish middle class, were little better than banditti. Their names and localities will verify this fact to all who are acquainted with the Strathspey of our day. Besides Patrick Roy Macgregor, who seems to have been the leader of the set, there were 'John M'Inteir at Invereshie; M'Phatrig M'Inteir, in Auchnahad; Thomas M'Pherson, in Tullilundley; John Reoch, there; Walter Mitchell, sometime in Tulliboe; Duncan M'Connochy, sometime in Doghillocks; John Urquhart, sometime in Caldwell; Ewen Cameron, in Glensyth; John M'Gremmon, in Rippach; John M'Fillech, alias *Breck*, in Delvorer; John M'Gremmon, in Bellerathens in Strathaven; Alaster M'Phatrig, in Elsheirland; James Strauchen, in Cairlies; William Storach, in the Mill of Auchinhandach; Thomas Forbes, sometime in Muiresk; John M'Andley, in Lesmurdie; Thomas Gordon, in Tilliesoul, called the *Skinner*; John Oig Gordon, in Strathaven, called *Moonlight*; Donald M'Gillandries, who haunts in Spey; John Bane M'Alister Gourlay, in Auchnakint in Badenoch; M'Phatrig M'Inteir, there; John Roy M'Inteir, there; John M'Inteir, called the *Ratton*, in Glenlivet;' and many other Gordons, Reochs, Forbeses, &c., together with the wives of several of the same individuals, all of whom were denounced at the horn for 'not appearing to underly the law.'

The Council at length gave a commission of fire and sword to John Lyon of Muiresk and Alexander his second son, against these outlaws, and the two gentlemen were preparing means for its execution, when the whole banditti beset them at the house of Balcheiries, belonging to John Lyon. The outlaws set fire to the house in all quarters, and the two gentlemen were obliged to surrender themselves to their mercy. The assailants then unmercifully fell upon the unfortunate commissioner and his son with dirks and guns, and soon made an end of them (April 30, 1666). To the number of forty persons, they then made an attack upon the little burgh of Keith, which they plundered severely, after fighting with all who opposed them. A second commission to the Earl of Moray (May 9) had the effect of bringing Patrick Roy Macgregor and some others of the band into the hands of the authorities at Edinburgh, and these men were tried in the ensuing March for sorning, fire-raising, theft, and murder. Macgregor and one Patrick Drummond were sentenced to be hanged, their right hands being previously cut off. Pitmedden describes Macgregor as a short, strong-made man, of fierce countenance, and a quick, hawk-like eye. He bore the torture of the boots with the firmness of an Indian savage, and was perfectly undaunted at his execution, notwithstanding that the hangman bungled the cutting off of his hand, for which he was next day turned out of office.—*B. A.*

Two other men of this band were in like manner brought to justice in May 1668. On the 13th of July, there was an order in Council for a reward of £150 to John Ogilvie of Milltower and two others for their service in taking Patrick Roy Macgregor, on which occasion, it is stated, two of them had been wounded, and one of their attendants killed.

An unflattering light is thrown upon the internal condition of the Highlands at this time, by a petition from George Leslie, sheriff-clerk of Inverness-shire, to the Privy Council (April 8, 1669), shewing that it was not suitable for sheriff-clerks, ‘being but mean persons and not of capacity nor trust,’ to be employed in gathering his majesty’s taxation; and further stating, that it was particularly unsuitable for him to have such an employment, ‘who is clerk of the dismembered shire of Inverness, there being little or nothing left of that sherifffdom, but the Hiellands and Isles, as Lochaber, Badenoch, Knoydart, Moidart, Glengarie, and other Hielland parts, *whose inhabitants are not legally disposed, nor willing to pay his majesty’s dues, being*

*infested with poverty and idleness*—a task upon which account the petitioner is not able to undergo, seeing disobedience has been given by them to parties of his majesty's forces of a considerable strength.'<sup>212</sup>

In harmony with this picture is an order from the Privy Council, August 25, 1670, proceeding on the information that 'divers of the inhabitants of the Highlands are in the use, when they travel through the country, to be attended by a multitude of *louss and idle persons*, not being their domestic servants,' whereby 'occasion is given for stealing and sorning.' All persons were strictly forbidden to travel or hold meetings in the Highlands in that manner.

Old grudges amongst neighbouring clans still occasionally worked themselves out in regular military invasions accompanied by extensive depredations. There was an old feud between the Clan Cameron in Lochaber, and Struan Robertson in the upper part of Perthshire; and on the 14th of August 1666, the renowned chief, Ewen or Evan Cameron, came with above eighty followers, including several good duniwassals,<sup>213</sup> to Struan's lands of Kinloch—quartered there for a night upon the tenants, beat and threatened them, broke into and searched houses, all for the purpose of laying hold of their enemy, who, however, was out of the way. Disappointed of their primary object, the Camerons took twenty-six head of cattle, and made off with them to their own country. The misdeed being fully proven in November against Ewen Cameron Locheil, Sorlie Cameron, John Oig Cameron, and John and Duncan M'Ewen Camerons, the lords of the Privy Council ordained the first (who did not appear) to pay Struan a fine of a thousand merks, and the others, who had been confined for some time in the Tolbooth of Edinburgh, to restore to Struan the twenty-six stolen cattle.

As might be expected, the record of the Privy Council about this time contains many complaints from messengers-at-arms, regarding the violent resistance they had encountered in the Highlands when attempting to apprehend debtors or delinquents, or even to deliver letters in form of law.

The Earl of Airth had procured letters of caption against John Graham of Duchrae, and Thomas Graham, his son, and studied to obtain an opportunity of putting them in execution. Learning that Thomas Graham was to have a child baptised at the kirk of Aberfoyle, and judging that the whole family

might probably be found together on such an occasion, he proceeded thither (February 13, 1671) with Alexander Mushet, messenger, and a strong party of his friends and dependents, all well armed. Duchrae, though he considered himself in possession of a sufficient protection from the king, deemed it necessary that his christening-party should also be well armed. Where debt and Highland blood were concerned, there could scarcely but be bloodshed in such circumstances.

At the Bridge of Aberfoyle, the Duchrae party—including, by the way, the minister and elders of the parish—met Alexander Mushet, who had come forward with a few attendants, to execute the writ, while the Earl of Airth remained with some others of his party at a little distance. When Mushet told Duchrae to consider himself as his prisoner, the latter took out a protection, which he held forth with words of scornful defiance, calling out: ‘What dar ye do? This is all your masters!’ the truth being that the paper was not a protection from civil debt, but merely bore reference to another question regarding the removal from certain lands. Meanwhile, the baby was set down upon the ground, and the Duchrae party prepared their swords, guns, and pistols for a conflict, avowing to Mushet and his friends that they would kill the one half of them, and drown the other. They did accordingly press first upon Mushet, and then upon the earl and his friends, who quickly gave way, but rallied and stood upon their defence. It was alleged that the earl was narrowly missed by several bullets, and it was certain that some of his servants were wounded, one Robert M’Farlane losing two of his fingers. With great difficulty, they were allowed to get off with their lives.

Duchrae, notwithstanding an attempt at counter-action, was condemned to go into Edinburgh Tolbooth, and give ample caution that he would keep the peace towards the Earl of Airth and his tenants.

1666.

In the same year, John Campbell, a messenger, having to execute letters of caption and inhibition against certain gentlemen in Caithness, proceeded to that remote province with a couple of concurrents, and was seized upon by a Captain George Sinclair, and shipped off with his two associates for France. By mere chance of winds and waves, the ship, after being a considerable time at sea, came back to Thurso, when the three unfortunate officers of the law were put up in prison, where ‘they are keepit under a

guard, as they were malefactors.’ The Council ordered them to be liberated, because they had given security to answer any charge that Captain George Sinclair might bring against them!

One evening in the spring of 1671, a number of gentlemen, including the Lairds of Lochnell and Lochbuie, and James Menzies of Culdares, were assembled in the house of John Rowat in Inverary, conversing about certain private concerns, when, some differences arising, and *the candle* having gone out, some one fired a shot whereby the Laird of Lochnell was killed. This could not but be a fact of considerable importance at Inverary, as Lochnell was the nearest relative of the Earl of Argyle after his brother, Lord Niel. It was soon ascertained by the confession of one Duncan Macgregor, who was present on the occasion, that he had fired the fatal shot; yet the earl thought proper to detain Culdares in durance, notwithstanding his protestations of innocence, and his being in reality grieved as a friend for the death of the murdered gentleman.

The case is perhaps chiefly worthy of notice on account of the traits of clan-feeling which it brought out. Culdares represented his case to the Privy Council as one of the greatest hardship. Here he was, a prisoner in a strange country, inaccessible to his friends, remote from the advice of lawyers, about to be subjected to a tribunal, the head of which was a near relative of the deceased, and where no assize of barons, his own compeers, could be had. The defunct, moreover, was ‘so related to all the gentlemen of that country,’ and ‘so generally beloved,’ that an impartial verdict was evidently not to be hoped for. In short, he ‘finds it very unsafe for him to pass to the knowledge of an assize in these places.’ He was, however, ‘most willing to abide a severe and legal trial at Edinburgh, where he may have the opportunity of lawyers and ane fair and impartial proceeding.’

The Council ordered the earl before them, to shew cause why Culdares should not be sent to Edinburgh for trial; but we do not hear of any subsequent procedure.—*P. C. R.*

In obedience to a letter of the king, the Privy Council decreed that, 'in order to the conversion of the Marquis of Huntly and the better ordering of his affairs' [the marquis was now about sixteen years of age], his mother should be removed from him and retire with her family to some of his lordship's houses in the north. This she was ordered to do before the 1st of August. It appears that the lady had been dealt with privately on this matter; but being unwilling, as was very natural, to part with her son, the king had been obliged to send his special command to the Council to have the separation effected.

JULY 5.

It may be remarked as a strange conjunction of circumstances, that Charles II., in whose name ran the letter expressing such anxiety for the Protestant upbringing of the young Gordon, was, in his private sentiments, a Catholic, while Lauderdale, by whom the letter was officially signed, was indifferent to all religion. The effort now made was not successful. The young marquis,—who was raised to be a Duke by James II., and distinguished himself by his fidelity to that monarch at the Revolution, when he held out Edinburgh Castle against the new government—continued a firm papist to the day of his death in 1716.

Another remarkable case of the same kind of interference with family arrangements on account of religion, occurs in the Council record of the same day.

1666.

Walter Scott of Raeburn, brother of William Scott of Harden, had been converted to Quakerism, and on that account was incarcerated in the Tolbooth of Edinburgh. There it was soon discovered by his relations that he was exposed to the conversation of other Quakers, prisoners like himself, 'whereby he is hardened in his pernicious opinions and principles, without all hope of recovery, unless he be separat from such pernicious company.' There was, however, a more serious evil than even this, in the risk which his children ran of being perverted to Quakerism, if allowed to keep company with their father. On a petition, therefore, the Council gave the brother Harden warrant (June 22, 1665) to take away Raeburn's children, two boys and a girl, from their father, that they might be educated in the true religion. He, 'after some pains taken with them in his own family, sent them to the city of Glasgow, to be bred at the schools there.' On a second petition from Harden, the Council ordered an annuity of £1000 Scots to be paid to him,



out of Raeburn's estate, for the maintenance of the children; and they also ordered the father himself to be removed to Jedburgh Tolbooth, 'where his friends and others may have occasion to convert him.' 'To the effect he may be secured from the practice of other Quakers,' the Lords 'discharged the magistrates of Jedburgh to suffer any persons suspect of these principles to have access to him.'

The younger son of the Quaker Raeburn was Walter Scott, commonly called *Beardie*, great-grandfather of an illustrious modern novelist. Beardie, so styled from his wearing a long beard, escaped Quakerism, but fell into Jacobitism at a time when that was not less dangerous than Quakerism had once been. The circumstances here narrated form part of what is alluded to by Sir Walter Scott, when he makes Jedediah Cleishbotham confess himself as bound to a kind of impartiality between the Prelatic and Presbyterian factions of the seventeenth century, by reason that 'my ancestor was one of the people called Quakers, and suffered a severe handling from either side, even to the extenuation of his purse and the incarceration of his person.'<sup>214</sup>

Raeburn continued to be a prisoner in Jedburgh jail in June 1669, when the Privy Council gave a fresh order that 'none of his persuasion should have access to him, except his own wife.' It was at that time found that 'John Swinton, Walter Scott of Raeburn, Mr George Keith, and Mr Robert Burnett, Tutor of Leys, are not only Quakers themselves, but also studies by all means to pervert and seduce others from their duty and obedience and to engage them in the same error with themselves,' for which purpose they, 'in contempt of the laws, keep frequent meetings with other Quakers.' Swinton was ordered to enter himself as a prisoner in Stirling Castle, where none but his son should have access to him. On the 29th of July, the Council gave warrant for the imprisonment of Mr George Keith, Quaker, in the Edinburgh Tolbooth, and that no one suspected to be of his persuasion should have access to him.

At length, on the 1st of January 1670, after suffering imprisonment for four and a half years, Raeburn was ordained to be set at liberty from jail, but still to remain within the bounds of his own lands, and to see no other Quaker under a penalty of a hundred pounds, his children meanwhile remaining as they were. Mr George Keith was set at liberty on the 6th of March, but only to go into voluntary exile.

Under apprehension that the Tutor of Leys would seek to affect the mind of his nephew Sir Thomas Burnett, who was now a minor, the mother of the child caused him to be carried away from all his father's friends, 'which,' says the Tutor, 'will inevitably ruin him in his education in literature and all other virtuous breeding.' The Tutor brought the matter before the Privy Council, representing that, in order to clear himself of all suspicion of a desire to influence the child's mind, he was arranging 'to have sent him to Glasgow, to Mr Gilbert Burnett, professor of divinity there, who is ane brother son of the family, there to have been educat at schools and universities under the said Mr Gilbert his inspection and care,' when the mother took the matter thus violently into her hands. The two parties being summoned before the Council, and having made their respective statements, it was ordered that the child should be restored to the Tutor, all Quaker as he was, that he might be sent to school.

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Another excellent harvest was secured in Scotland, and very early.—*Nic.*

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SEP.

About this time the commencement of a standing army was made in Scotland, in the raising of two regiments of foot and five troops of horse, under the command of General Sir Thomas Dalrymple.—*Lam.*

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SEP.

In this month, while the poor west-country Presbyterians were engaged in their hopeless expedition, 'there was sundry fresh, caller, ungutted herring taken upon the north side of the water of Forth ... like Dunbar herring, but smaller ... a thing rare and wondrous to the haill people.'—*Nic.* He notes that, all this

Nov.

winter, all kinds of fish, including herring, abounded, ‘whilk was very ominous.’

The defeat of the insurgents at Rullion Green (November 27), and the subsequent execution of upwards of fifty persons, made it a dreary yet exciting time. ‘I have,’ says Wodrow, the Presbyterian historian, ‘met with several prodigies seen in the air about this time; and persons who lived then, of good information, have left behind them a very strange passage, that several people about Pittenweem made public faith upon, that the night after the battle, and after some of these [subsequent] executions, they heard the voice of a multitude about Gilston Mount praising and singing psalms with the sweetest melody imaginable.’

1666.

‘In the year 1668 or 1669—in these places where the gospel was most frequently preached afterwards [fields and desert places], how surprising and astonishing was the sight, both by night and day, of brae-sides covered with the appearance of men and women with tents, and voices heard in them! Particularly the first night that Mr John Dickson preached in the fields in the night-time, east from Glasgow upon Clyde-side ... several people together, before they came to the appointed place, saw upon their way a brae-side covered with the appearance of people, with a tent, and a voice crying aloud: “This is the everlasting gospel; if ye follow on, to know, believe, and embrace this gospel, it shall never be taken from you.” When they came to join them, all disappeared. Other companies of people, in another way going there, heard a charming sweet sound of singing the 93d psalm, which obliged them to stand still till it was ended. Other people, who stayed at home, in several places, some heard the singing of the 44th psalm, others the 46th psalm. When the people who were there came home, they who stayed at home said: “Where have you been so long? for the preaching was near by, for we heard the psalms sweetly sung, and can tell you a note of the sermon”—which was the foresaid note. Worthy Mr John Blackadder, who ... used to call these years the *Blink*, was at all pains to examine the most solid Christians in that bounds, upon their hearing and seeing these things; who all attested the truth of the same.

‘Before the gospel came to that known place Craigmad [Stirlingshire] ... one day Alexander Stirling, who lived in the Redden, near that place, a solid, serious, zealous Christian, who told this several times to some yet

alive, worthy of all credit, who told me of it. That he, with some others, one day was in that desert place, and saw that brae-side, close covered with the appearance of men and women, singing the 121st psalm, with a milk-white horse, and a blood-red saddle on his back, standing beside the people; which made that serious, discerning, observing Christian conclude that the gospel would be sent to that place, and that the white horse was the Gospel, and the red saddle Persecution.

‘That known place Darmead, where the gospel was more frequent afterward than any place I know betwixt Clydesdale and Lothian ... the like was seen there, singing the 59th psalm. And whoever will consider the foresaid psalms will see how suitable they are to these dispensations, and were oft sung by the Lord’s suffering people in that time....’—*Pat. Walker*.

1666.

Although these incidents are stated by Walker to have happened at places *subsequently* remarkable for preachings, it is evident that the people who saw and heard them were pious persons, deeply interested in the religious affairs of the time, and in an excitable state on that subject. Modern science is at no loss to account for such experiences under certain predisposing causes, without recourse to the supernatural. In the learned and laborious work of De Boismont on Hallucinations, they are fully treated and accounted for. ‘Illusions of sight and hearing,’ he says, ‘have often assumed the form of an epidemic. History records a number of facts of this character. One of the chief is the transformation of clouds into armies, and all sorts of figures; to which religious belief, optical phenomena, physical laws then unknown, high fevers of a pestilential character, and the derangement of the brain, all give a very natural explanation. Pausanias relates that, four hundred years after the battle of Marathon, the neighing of horses and the shock of armies were nightly heard on the spot. At the battle of Plataea, the air resounded with a fearful cry, which the Athenians attributed to the god Pan.... According to Josephus: Before sunrise on the 27th of May, there appeared in the air, throughout the whole country, chariots full of armed men, traversing the clouds and spreading round the cities, as if to enclose them. On the day of Pentecost, the priests, being at night in the inner temple to celebrate divine service, heard a noise, and afterwards a voice that repeated three several times: “Let us go out from hence.”’

History abounds in such facts, for facts they are in one sense. The predominant popular idea always appears in the vision. When a dreaming shepherd-boy in a Catholic country has a religious vision, the person most apt to be presented to him is the Virgin Mary. When a Scottish peasant had a similar experience in the seventeenth century, it took the form of preaching and psalm-singing.

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Heretofore there had been only an irregular transmission of letters by means of foot-messengers between Edinburgh and Aberdeen, and in the latter city there had been 'long experience of the prejudice sustained, not only by the said burgh of Aberdeen, but by the nobility, gentry, and others in the north country, by the miscarrying of missive letters, and by the not timous delivery and receiving returns of the samen.' It was now thought that there ought to be a constant post at Aberdeen, whereby 'every man might have their letters delivered and answers returned at certain diets and times.' It was therefore arranged with the consent of Patrick Graham of Inchbrakie, his majesty's postmaster-general, that Lieutenant John Wales should establish a regular horse-post at Aberdeen, to carry letters to Edinburgh every Wednesday and Friday, returning every Tuesday and Thursday in the afternoon; every single letter to pay 2s., and every double letter 4s., every packet 5s. per ounce (in all cases Scots money). All other posts were discharged. Two years later (January 28, 1669) Inverness became sensible of a need for the same accommodation, though on a humbler footing. Accordingly, Robert Mean, keeper of 'the Letter-office' in Edinburgh, having, with concurrence of Patrick Graham of Inchbrakie, his majesty's postmaster-general for Scotland, undertaken 'to settle a constant foot-post between Edinburgh and Inverness, for the advancement of trade, correspondence, and convenience of the king's subjects,' the Privy Council, on petition, granted warrant for the purpose, the post 'to go and return two times every week to Aberdeen, and once every week to Inverness, wind and weather serving,' and the rates to be —'For the conveyance of every single letter not exceeding one sheet of paper, to and from any place not exceeding forty miles Scots distant from

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the place where such letter shall be received, 2s. Scots money, and every double letter for the miles foresaid 4s. Scots, and for every ounce-weight the foresaid miles 5s.;" for distances of threescore and fourscore miles, in proportion. 'Wind and weather serving' is an amusing qualification, considering that there was only one ferry of six or seven miles and another of two miles to cross. The Inverness post had not yet acquired the resolution which is said to have been expressed many years later by a carrying communication between Edinburgh and that northern burgh, when it was announced that 'a waggon would leave the Grassmarket for Inverness every Tuesday, God willing, but on Wednesday *whether or no*.'

The interest connected with this important institution may perhaps justify the preservation of one or two notices in themselves trivial. February 20, 1667, a complaint was made to the Privy Council by certain Edinburgh merchants, against Robert Mean, as to his charges of 1d. for each single, 2d. for each double, and 3d. upon each triple letter, in addition to the former dues of 4d., 8d., &c., and Robert was peremptorily ordered to discontinue these extra charges.—*P. C. R.*

1667.

In August 1672, Anna Keith, relict of John Wales, keeper of the Letter-office in Aberdeen, complained to the Privy Council against the magistrates of Aberdeen, for having, on her husband's death, extruded her from the office, in contravention of the contract between them and her husband, which provided that, in the event of his death before the expiration of the seven years engaged for, his heirs and representatives were to have the option of carrying on the business, by providing a qualified substitute. The magistrates had gone so far as to incarcerate Mrs Wales's servants for going about their duties, 'and by touk of drum discharged all persons from employing the complainer any further in the said office.' They had also conferred the office on another person, without waiting to set it up to auction, 'though several of the burgesses did offer considerably for the same.' The Council replaced Mrs Wales in her husband's office.—*P. C. R.*

There is a whimsical incongruity in the connection of a Graham of Inchbrakie with a thing of such modern and commercial associations as the Post-office. Patrick—his common name was 'Black Pate'—was a semi-Highland cavalier of the purest lustre. It was at his house, situated on the skirts of the Highlands, that Montrose had raised his meteor-like standard in

1644. The trouble he had given to the lords of the Covenant and to Cromwell could only be rewarded at the Restoration with this office, which in 1674 descended to his younger son John. One could scarcely imagine a more heterogeneous assemblage of ideas than that of Montrose's friend as postmaster-general, and the son of the lady who threw the anti-prelatic stool in 1637 as keeper of the Edinburgh office under him.

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During the unfortunate and discreditable war with Holland in 1665-6-7, a field was obtained for the enterprise of the Scotch in the trade of privateering. A very considerable number of *cappers*, as they were called, generally vessels of from a hundred to two hundred tons burden, were fitted out from Glasgow, Leith, and Burntisland, under clever and adventurous captains, in order to take the Dutch merchantmen. We hear of one belonging to Glasgow, so low as sixty tons burden, yet carrying five guns, and a crew of sixty persons, having further on board thirty-two firelocks, twelve half-pikes, eighteen pole-axes, and thirty swords, with provisions for six months.<sup>215</sup> A Glasgow privateer, commanded by one Chambers, distinguished itself by seizing a Dutch capper of eight guns and bringing it up the Clyde, along with a merchant-vessel laden with salt.

APR.

1667.

Towards the close of the war (February 1667), a Glasgow merchantman of three hundred tons, returning from Spain with wines, encountered a Dutch man-of-war. The captain sent most of his crew below, and remained on deck himself with seven men, to give tokens of submission. The Dutchman sent twenty-two men in a boat to take possession of his supposed prize, and, seeing another vessel at the moment, set off in pursuit of it. The captors suspecting no stratagem, the concealed crew came forth in the evening, and easily overpowered them, thus retaining possession of their vessel, which they brought safely into Glasgow with twenty-two prisoners.<sup>216</sup>

The ports of Leith and Burntisland having in this way given great annoyance to the Dutch, a resolution was made to attempt a retaliation; and little more than two

APR. 30.

months before the celebrated attack on the Thames shipping, a fleet of thirty sail appeared one day at the mouth of the Firth of Forth. At first it was supposed to be the English fleet under Sir Jeremy Smith; but the Dutch colours soon appeared, and there was then a hasty effort made to protect the coast. The royal commissioner Rothes placed militia along both shores. Some of the Burntisland privateers took their cannon on shore, and raised a battery to defend the harbour.<sup>217</sup> The Dutch ships lashed out with their ordnance against that town, and knocked down a few chimneys, but did no further harm. Seeing no great encouragement for landing, they yielded at length to a somewhat violent west wind, and ‘that night did tak sail and removed from our coasts, without hurt done to any person.’—*Nic.*

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Mr William Douglas, son of the deceased Laird of Whittingham, was tried for his concern in an unfortunate duel, in which Sir James Home of Eccles was killed. The affair took its origin in a quarrel in a tavern in Edinburgh, ‘after excessive drinking.’—*Lam.* We learn

JUNE 4.

1667.

from the evidence of a hackney-coachman, that being employed by four gentlemen—namely, the two who have been mentioned, the Master of Ramsay, and Archibald Douglas of Spott—he drove them to a lonely spot on the shore near Leith, where they all came out, and drawing their swords, ‘went through other.’ He saw Sir James fall under the thrust of the accused party. Another person saw the accused standing over Sir James after he fell, and when the unfortunate gentleman was carried into Leith, he heard the accused ask him forgiveness. A third witness observed the Master of Ramsay with his foot on Spott’s neck, and when he (the deponent) removed the Master, Spott got up, ran at the Master, and called him ‘cullion!’ It seems to have been a barbarous quarrel barbarously wrought out; and when we see how the men acted after they began fighting, we cannot but wonder that they were able to come to the field in one vehicle. William Douglas was sentenced to have his head stricken off his body three days after at the Cross of Edinburgh.—*B. A.*

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There was a great drouth this summer, so that the grass was burned up, and the victual whitened before the middle of July, and ripened at the end of that month.—*Lam.*

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John Gibson of Durie had a petition before the Privy Council regarding his niece Anna Gibson, daughter of the deceased Sir Alexander Gibson of Durie. His complaint was, that Anna had been unwarrantably carried away into the Highlands by certain persons unknown, but for no other imaginable purpose than to acquire an influence over her mind in the choice of curators. We learn through other channels that the young lady was an orphan, scarcely eleven years of age, and that she was living at Perth at the time of her abduction. Her deceased mother was Marjory Murray, a sister of the Viscount Stormont, and we are informed by Lamont, as part of the gossip of the day, that it was by this nobleman's means that the young lady was carried off, his aim probably being to prevent her paternal relatives from acquiring an exclusive influence over her. The Council, on the supplication of John Gibson, issued warrants for a search after Anna Gibson, and the taking of her from the hands of any into whose power she had fallen; also threatening punishment for her detention, and decreeing a fine of £20,000 Scots to any man who should marry her.

1668. MAY 7.

We hear nothing more of this case till the ensuing 11th of February, when the Lord Chancellor acquainted the Council that Anna Gibson had been brought to his lodging that forenoon. She was ordered to be placed in the family of Mr Alexander Gibson, one of the clerks of the Council, 'ay and while she shall make choice of her curators after her age of twelve years complete.' Apparently, the relatives on both sides had afterwards come to an agreement about this young heiress, as Lamont tells us that, on the 28th of August 1669, 'Mistris Anne Gibson, Durie's niece, remaining at Durie for the time, did choose her curators; among whom were the Earl of Rothes the chancellor, Sir Andrew Murray, and the Tutor of Stormont, her uncles on the mother's side; Durie and his brother George Gibson, her uncles on the

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father's side, &c. They dined that day at David Johnston, in Cupar, his house.'

Mrs Anna Gibson afterwards became the wife of John Murray of Touchadam and Polmaise. It is worthy of observation that she was the great-granddaughter of Lord Durie who was kidnapped by George Meldrum of Dumbreck; see under September 1601.

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The town of Kilmarnock was wholly destroyed by an accidental fire, 'wherethrough about sexscore families are set to the fields destitute both of goods and houses'—indeed, 'in a condition of starving.' Matters were the worse for them, by reason that they, 'being all poor tradesmen, and having no other means of livelihood but their daily employment,' had some time before been reduced to 'great misery and affliction,' in consequence of the quartering upon them of a great party of the king's forces, when these were sent to the west to prevent a rebellion. Under the sanction of the Privy Council, a collection was made at the parish churches for the succour of these poor people.

MAY 22.

The event is chiefly worthy of notice as marking the smallness of Kilmarnock in those days, when as yet there was no such thing as manufacturing industry in the country. A hundred and twenty families speaks to a population of between five and six hundred: in 1851, this industrious town contained 21,443 inhabitants within the parliamentary boundaries.

In April 1669, a fire broke out at midnight in the town of Cupar (Fife), and spread so fast and with such violence, that 'above the number of twenty considerable families being asleep in bed, did, unclothed with their apparel, with great difficulty escape their dwelling-houses,' which were consumed with their entire contents. Thus, not only were these people, with their many young children, 'ruined and reduced to begging,' but 'a great part of that ancient burgh, being the head burgh of the shire, [was] annihilat and turned to desolation.' On a petition, the Privy Council ordered a charitable collection in Fife and

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the adjacent counties ‘for the relief of the poor indigent families of the said ancient burgh.’

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Cases of outrageous personal violence, so common in the reign of James VI., and even in the ensuing reign, continued to be now and then heard of. The Privy Council Record, under this date, adverts to one of a typical character, referring to a remote province, where early forms and fashions of society still obtained. It appears that Marion Peebles, ‘Lady Cardiness,’ widow of the late — Gordon of Cardiness, was an aged and infirm lady living in the house of Bussabiel in the stewartry of Kirkcudbright. She was liferented in her husband’s lands; and her two sons, William and Alexander Gordon, resided with her; but the heir of the property was a grandchild in infancy. The allegation of William and Alexander Gordon was, that Sir Alexander M’Culloch of Myreton had formed a design to possess himself of Cardiness, for which purpose ‘he did buy several pleas, debts, comprisings, and factories of the estate, and used all means to get himself intruded thereinto.’ For a series of years, he did his best to harass the Gordons and their tenantry out of their rights and possessions; and at length, on the 19th of August 1664, he came with a party, consisting of his sons Godfrey and John; Harry M’Culloch, younger of Barholm; William M’Culloch, younger of Locharduae; John M’Culloch of Auchleoch; Alexander Fergusson of Kilkerran; and sundry other persons, attended by their servants, all armed with swords and pistols, to Bussabiel, where they broke up the house, and attacked the lady in her bed. They beat her till she fell in a swoon, then broke down the roof of the house upon her head; and afterwards, finding her son William, they also ‘wounded him dangerously in the arm and hand, to the hazard of his life, not permitting his servants to give him drink or go for a chirurgeon to dress his wounds, or administer any kind of help or comfort to him for a long time.’ Through their violent treatment, he was ‘forced to forsake the country, his infirm mother, and business.’

JULY 9.

On a subsequent occasion (October 1665), the same persons came again to Bussabiel, and committed a fresh assault on Lady Cardiness, ‘striking her with her own

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stilt till she fell a-sound among their hands.’ Yet a third time did they come in March 1666, and with still more fearful violence. They ‘brake down the doors, and put forth all the servants, and pulled down the bed about Marion her head, and in ane most inhuman manner dragged her forth thereof. She not being able to go of herself by reason of her weakness, they carried her forth of the yett to the croft,’ letting her head fall against a stone by the way; then leaving her insensible, they proceeded to demolish and destroy all that was of any value in the house. The wretched lady was carried by some of her tenants into a barn, where she remained for the night. Two months afterwards, they beset her house with a guard, to prevent her from receiving any succour from friends or servants; and a woman detected taking in something to her mistress by a back-window, was beaten cruelly. Then entering the house, ‘they did keep her from sleep as weel as meat, and further did throw down water and other liquid matters upon her, so that she was forced to retire and shelter herself within the bounds of the kitchen chimney for her safety.’ In consequence of these ‘inhuman acts, and keeping of all her rents, corns, goods, and geir, whereupon she should have lived, from her,’ she was reduced to such a state of wretchedness, that ‘she within a short time thereafter did burst forth her heart’s blood and died.’

There were sundry deadly assaults upon the two sons, and some attacks of a destructive nature upon their house, all betokening a savage violence on the part of M’Culloch and his friends.

There is some difficulty as to the decision of the Council. They first appear as condemning the accused parties to fine and imprisonment; then next day give an opposite verdict; yet after all, in April next year, we hear of Godfrey M’Culloch and Fergusson of Kilkerran as still under threat of punishment on account of their offence.

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‘Saturday, in the evening, as the Archbishop of St Andrews and Bishop of Orkney were going abroad, the archbishop being in his coach, and the other stepping in, a wicked fellow standing behind the coach did shoot the Bishop of Orkney beneath his right hand; which broke his left arm a little above the wrist with five balls.’ So wrote the Privy

JULY 11.

1668.

Council to the king.—*P. C. R.* The assassin was a preacher named James Mitchell, ‘a weak scholar,’ according to Kirkton, but whom Wodrow describes as ‘a youth of much zeal and piety.’ We may charitably presume that he was a weak man infuriated by the sufferings of his party. His design was to slay the archbishop, who had become more and more odious to the malcontent Presbyterians. ‘After the shot, he crosses the street quietly, till he came near Niddry’s Wynd head, and there a man offered to stop him, upon which he presents the other loaded pistol, and so the pursuer leaves him. He stepped down the Wynd, and turning up Steven Law’s Close, entered a house, and shifting his clothes, passed confidently to the street. The cry arose, A man was killed. The people’s answer was, It was but a bishop; and so there was no more noise.’—*Kir.*

The government made much noise about this attempt, but failed to discover the murderer; nor was he discovered till six years after, when Sharpe himself recognised and had him arrested. Gilbert Burnett says: ‘I lived then much out of the world; yet I thought it decent to go and congratulate on this occasion. He [Sharpe] was much touched with it, and put on a show of devotion. He said with a very serious look: “My times are wholly in Thy hand, O thou God of my life!” This was the single expression savouring of piety that ever fell from him in all the conversation that passed between him and me.’

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John Geddie, sheriff-clerk of Fife, residing at Falkland—a prosperous sort of person, who had gathered some substance while acting as clerk to the committee of war during the king’s residence in Scotland, 1650-1—attracted attention at this time by a novel plan for the management of bees. He constructed a bee-house, of wainscot, with eight sides, about sixteen inches in height, and twenty-three inches in diameter; containing various divisions, designed to allow of the swarming of the industrious insects, and save the necessity of destroying any in order to obtain the result of their labours. In an age when men seem to have had no extra occupation but that of wrangling about abstract matters in which they could never hope to convince each other, it is pleasant to light upon even so simple an exercise of ingenuity and economic

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wisdom as the bee-house of John Geddie. The inventor succeeded in obtaining for his plan the approving notice of the Royal Society. The king, too, was induced to have a bee-house of Geddie's construction erected at Spring Gardens, near Whitehall, and another at Windsor Castle, 'where, for several years, his majesty did come to the places himself, and with delight behold them, and saw the honey in its season taken forth without troubling the bees, to his great satisfaction.' His majesty likewise 'willed and commanded another to be erected in his park of Falkland, in the ancient kingdom of Scotland, for the good and benefit of his whole subjects, rich and poor therein, in order to stir up noblemen and gentlemen to follow his example.' That this might be duly effected, the king granted to Geddie twenty acres of marsh-land in the east end of the park of Falkland, 'to be enclosed, trenched, and planted with such herbs, trees, &c., as is most suitable and convenient for the maintenance and food of an apifecture; and ordered a convenient house to be built therein for that purpose, and did ordain the treasurer and receivers of his majesty's revenues to pay John Geddie the sum of £200 sterling for building and accomplishing the said apifecture.' In April 1673, a patent was conferred on Geddie for his invention, for fourteen years. In 1679, the king further granted him power to buy the island of Inchkeith, probably with a view to its being employed in apiculture. But owing to troubles on account of oaths—John being a Presbyterian—it does not appear that he greatly benefited by the royal favour. He published a small treatise on the subject, of which a third edition appeared in 1697.—*Abbotsford Misc.*

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A pleasant year as to weather, and a great crop—nothing better in either respect these sixty years past.—*Lam.*

In October occurred a violent storm, which produced great damage at Dundee, both in the structure of the harbour and by loss of ships. An act of parliament was passed to encourage a voluntary contribution to repair these disasters.

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One Mungo Murray was tried before the Court of Justiciary in Edinburgh, on a charge of having, on the 8th day of May preceding, committed an assault on Thomas Sydserf. The affair is only worthy of noting because it brings out the fact that there was at this time a theatre in the Canongate. Thomas Sydserf is the same person whom we have seen engaged in editing the *Mercurius Caledonius*. He had since turned his mind to dramatic literature, and written a play called *Tarugo's Wiles*, which was acted with applause at the Duke of York's Theatre in 1668, and on which the Earl of Dorset had written complimentary verses—representing Phœbus as saying to Scotland, with reference to such Scotsmen as Sydserf:

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‘On thee I will bestow my longest days,  
And crown thy sons with everlasting bays.  
My beams that reach thee shall employ their powers  
To ripen souls of men, not fruits and flowers,  
Let warmer climes my fading favours boast,  
Poets and stars shine brightest in the frost.’

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Sydserf was now conducting a theatre in the Canongate, depending in all probability upon the yet unfaded spirit of cavalierism evoked at the Restoration, for a slender support which it was not in the nature of Scotland to give at ordinary times to such an establishment. It appeared that Mungo Murray broke into Sydserf's theatre in time of rehearsal, and attacked him with his drawn sword, but was overpowered before he could inflict any hurt. He was found guilty, and sentenced to ask Sydserf's pardon, and abstain from molesting him in future under pain of banishment from the city.<sup>[218](#)</sup>

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For several years after the Restoration, a very frequent entry in the record of the Privy Council is an application from a Scotsman of good family, resident abroad for a *borbrieft* [birth-letter], or certificate of his lineage and family connections, to be drawn up and transmitted to him, that he might be enabled to appear in a proper light before the strangers amongst whom he lived. At the date

JUNE 16.

noted, there is an application of this kind from a lady! ‘Maria Margaret Urrie, eldest lawful daughter of the deceased Sir John Urrie of that Ilk, being abroad in a strange country, where her birth and pedigree is not known, to the prejudice of her fortune in those parts,’ had ‘purchased a certificate of her pedigree under the hands of the Earl of Panmure and several other noblemen and gentlemen of quality;’ and she now petitioned for ‘a *borbrieff* in her favours, conform to the said certificate.’—*P. C. R.* The requisite warrant for the Chancery was at once granted. We soon after (29th September 1670) hear of an application of the same nature from a lady of greater note, Elizabeth, Countess of Grammont, who states that she had obtained the needful ‘certificate of her descent and pedigree under the hand of the Earl of Lauderdale, his majesty’s High Commissioner; the Lord Duke of Hamilton, the Marquis of Douglas, the Earls Marischal, Argyle, and divers other noblemen.’ She was a descendant of the Abercorn family. Her brother’s Memoirs of her husband, have made the world generally acquainted with this elegant woman.

Among applications for *borbriefts* was one in June 1670, from ‘Thomas Kirkpatrick, secretary to the king of France and Councillor Lord Duplosse in Dunua, in France, son lawful of Thomas Kirkpatrick, a Scotsman and sometime one of the twenty-five Scots gentlemen soldiers of the life-guard of the king of France.’ Another, in 1686, was from the celebrated Colbert, minister of Louis XIV. of France, in whose behalf an act of parliament was passed, authorising the required document. It stated the descent of the Sieur Colbert, Marquis of Seignelay, at seven removes from Edward Culbert, a son of Culbert or Cuthbert of Castlehill, near Inverness, a family of king’s barons who often represented their county in parliament, and whose connections spread through the best branches of the peerage.—*S. Acts.*

1669.

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The marriage-day of the unfortunate *Bride of Baldoon*. The story of this lady has been related with all the graces of fiction in the tale of the *Bride of Lammermuir*; but in its actual circumstances it is sufficiently impressive. She was the Honourable Janet Dalrymple, daughter of the first Lord Stair, so

AUG. 24.



distinguished as a lawyer and by the part he took in the politics of his day. While still in girlish years, the young lady contracted a passionate attachment to Lord Rutherford, the distant relative and heir of that noble champion, Andrew Rutherford, Earl of Teviot, who is alluded to so respectfully in this chronicle under 1663. The young nobleman returned this affection, and the pair plighted their troth in the usual manner, by parting a coin between them, and imprecating dismal evils upon whoever should withdraw from or violate the compact. But this alliance did not suit the views of the parents, whether from deficient fortune in the young lord, or from contrarious politics, does not appear. They favoured a new suitor who appeared in the person of David Dunbar, younger of Baldoon in Wigtonshire.

On learning that Dunbar was advancing in his suit, Lord Rutherford wrote to his mistress to remind her of her engagement, but received an answer from her mother, to the effect that she was now sensible of the error she had committed in entering into an engagement unsanctioned by the parental authority; and this engagement it was not her intention to fulfil. The lover refused to take an answer which did not come directly from his mistress, and insisted on an interview. It took place, but in presence of the mother, a woman whom public report represented as master of her husband and whole family, and indebted for this influence to witchcraft, though for no reason that can be discerned beyond her uncommon talents and force of character. It may readily be supposed that even the resources of love would be of poor avail against the skill and resolution of such a person. When Rutherford was introduced, he found her ready to meet his arguments with what was then an unanswerable defence, a text of Scripture (*Numbers xxx.*, 2, 3, 4, 5), clearly absolving a woman from a bond entered into in her youth, if her father shall disallow her fulfilment of it, and promising that, in that case, ‘the Lord shall forgive her.’ The poor girl herself sat mute and overwhelmed, while the lover vainly pleaded against the application of this text; and the scene ended with her surrender of her portion of the broken coin, and his flying distracted from the house, after telling her that she would be a world’s wonder from what she had done and was yet to do.

1669.

The union with young Baldoon went on, but entirely under the management of the mother, for it is inconceivable that the young man could have pressed

his suit, if he had known the extent to which the bride was under constraint. The wedding was celebrated, as was customary in those days, in the presence of the relatives of both parties, and with great festivity; but the bride remained like one lost in a reverie, and who only moves and acts mechanically. A younger brother lived long enough to state to a lady who communicated the fact to Sir Walter Scott, that he had the duty of carrying her on horseback behind him to church, and he remembered that the hand with which she clasped his waist was ‘cold and damp as marble.’ ‘Full of his new dress, and the part he acted in the procession, the circumstance, which he long afterwards remembered with bitter sorrow and compunction, made no impression on him at the time.’

In the evening, the newly wedded pair retired to their chamber, while the merry-making still proceeded in the hall. The room had been locked, and the key taken possession of by the brideman, to prevent any of the unseemly frolics which, it would seem, were sometimes played off on such occasions. But, suddenly there was heard to proceed from the bridal-chamber a loud and piercing outcry, followed by dismal groans. On its being opened, the alarmed company found the bridegroom weltering in his blood on the threshold, and the bride cowering in a corner of the chimney, with no covering but her shift, and that dabbled in gore. She told them ‘to take up their bonny bridegroom.’ It was evident she was insane, and the general belief was that she had frantically stabbed her husband. From that moment, she made no other rational communications, but pined away and died in less than three weeks. Young Baldoon recovered, but would never enter into explanations regarding the tragic occurrence. Perhaps it is this mystery alone which has given rise to the favourite belief of the many descendants of Lord Stair,<sup>219</sup> that the wound was not inflicted by their unhappy relative, but by Lord Rutherford, who, they say, secreted himself in the chamber beforehand, and escaped afterwards by a window. This notion seems to us contrary to all probability, not merely because the conception of such an act was too gross for a man of rank even in that day, but because, had it been acted on, something must have come of it, either in the way of private revenge or of procedure before a criminal court. The idea was prevalent at the time; but it may be classed, we think, with another recorded by the credulous Law, that the poor bride was taken from her bed and *harled* through the house by spirits.

David Dunbar is described in an elegy by Mr Andro Simpson, as a most respectable country gentleman, an agricultural improver,<sup>220</sup> and yet of studious habits. He died by a fall from his horse while riding between Leith and Edinburgh in 1682, and was interred in Holyrood Chapel. Andrew Lord Rutherford is stated in the Peerage to have died childless in 1685.

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An old man named George Wood, who died this day at the Grange above Elie in Fife, was interred at Kilconquhar in the evening of the next day, ‘his funerals being hastened for fear of arresting his corpse by his creditors.’—*Lam.*

AUG. 24.

This sufficiently shews that creditors were supposed in Scotland to have such a power by the law. In June 1677, it became a debate among the advocates in the Court of Session, whether a dead body could be arrested and stopped from interment on account of debt. What raised the question was the death of the Countess of Wemyss, and the clamour made by her numerous creditors among the merchants of Edinburgh, who feared that her husband, from whom she had been separated, would not own her obligations beyond her annuity of 6000 merks, all of which was already ‘fornailed.’ They talked seriously of arresting her ladyship’s body. Lord Fountainhall says that, though it is a custom in Holland and some other places, it is reprobated amongst us as a barbarity, and could in no way be done, except on an express supplication to the Lords of Session, or the Privy Council, ‘which would never be granted.’<sup>221</sup>

1669.

Robert Donaldson, of Birdstown in Campsie, being in Edinburgh on business, fell into the company of one Thomas Scott, an English borderer, who travelled in the equipage of a gentleman. Scott, learning that Donaldson possessed money, pretended an errand to Glasgow, and so accompanied him on his way home. The two dined at Falkirk together, and then set forward, Donaldson inviting

Nov.

Scott to spend the night with him at his house. Just as they were turned off the main road into that leading to Donaldson's house, Scott gave his travelling companion a stab in the neck with his rapier, and thrust him to the ground, where he cut his throat. Donaldson was, it seems, a strong man, and might have defended himself, if he had not been taken by surprise and encumbered with his cloak, which was buttoned down and heavy with rain. Scott carried off the horse and money of his victim.

Donaldson's servants went in search of the murderer, and had gone many miles in his track when they came up to a carrier wearing their master's hood. Immediately the man was interrogated, and told that he had got the hood from a person now riding on in advance, near Haddington. They soon came up with the said rider, and laid hands on him. He being struck with a panic fear, confessed his guilt, for which he was soon after hanged in Edinburgh.—*Law*.

After an interval of a few years, during which no witch-cases appear on the Privy Council Record, we find a considerable number in the autumn of this year, some at

1669. Nov.

Aberdeen, some at Fogo in Berwickshire, some at Castle Tirrim in Inverness-shire. On the 11th of November, the Council issued a commission for the trial of Grizzel Jaffray, spouse of James Butchard, maltman, now prisoner in the Tolbooth of Dundee, on suspicion of 'the horrid crime of witchcraft.' The gentlemen of the commission were empowered to put her to the knowledge of an assize, 'and if, by her own confession without any sort of torture or other indirect means used, it shall be found she hath renounced her baptism, entered into paction with the devil, or otherwise that malefices be legally proven against her, that then and no otherwise they cause the sentence of death to be execute upon her.' It is believed that, notwithstanding these enlightened orders, Grizzel suffered incrimination.

Tradition connects an affecting anecdote with the case of Grizzel Jaffray. It is stated that her only son, having been long absent at sea, returned in command of his vessel to Dundee, and entered the port at the very time that the execution of his mother was proceeding in the Sea-gate. On hearing the cause of the unusual bustle seen in the town, he set sail again, and was never more seen in Dundee.

On the 6th of January 1670, we find the Privy Council engaged in a new kind of proceeding regarding witchcraft. A woman called Mary M'Donald, 'being maliciously pursued by the captain of Clanranald and M'Donald of Morar for the alleged crime of witchcraft,' came before the Council for protection, being 'in fear to be apprehended by the said persons,' notwithstanding her having given caution to appear and underlie the law in June next. The desired protection was given.

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Amidst the incessant religious troubles of the period, there were some symptoms of a disposition to mercantile enterprise. At the suggestion of sundry 'expert merchants,' a Society for Fishing was formed, with the design of prosecuting that employment around the coast, where it was notorious that the Dutch were driving a profitable trade. One of the considerations that weighed with the enterprisers was, that there were many poor people who would work cheaper than the Dutch, 'and by this the country would get vent for their meal and beasts, which gave no price.' No one was admitted who did not subscribe at least £100 sterling. The king subscribed £5000, and 'obliged himself that all materials should be freed from custom and excise. Yet many gentlemen refused to enter, fearing that the merchants, who behoved to manage all, would cheat the other partners; and many merchants refused to enter a society where so many noblemen were engaged, by whom they were afraid to be overawed. Yet the stock did soon increase to £25,000 sterling.'<sup>222</sup>

1669.

Every mercantile design in that age was clogged by the spirit of monopoly. If a man proposed to set up a stage-coach, there must be no other stage-coaches but his upon the road. If a company designed to introduce the manufacture of glass, or soap, or any other article, they must have the exclusive right of making the article for a generation. The Royal Company, as it was called, began as usual by securing monopolies. 'No others might import or export salt or fish for certain months of the year but only of that company.' This 'impoverished many families which traded that way,' and 'did occasion great grumbling among the people.'—*Law*.

In 1677, the Royal Company passed an ordinance for strictly enforcing their exclusive right to fish around the Scottish shores, demanding that any other party fishing should take out a licence from them. They themselves being bound only to fish for the service of the country, and not to send any fish abroad, by this restriction, says Fountainhall, ‘many in Glasgow, Dunbar, &c., will be great losers, who, by the export of fish on their own private adventures, brought in above 400,000 merks yearly.’ ‘The remedy,’ he adds, ‘will be to enter into the said company; only, they *would be abler with £50 sterling alone to manage the said trade, than with £200 given in there.*’

We have here a curious complication of errors in political economy—private enterprise and fair competition checked, and foreign trade forbidden. One would think that the most ingenious contrivances of an enemy could scarcely have devised a state of things more harassingly detrimental to a country; and the wonder is that even selfishness should have been so blind as not to see that the free industry of all was calculated to give better results.

There is so much in the religious troubles of this period to attract attention, that history takes little note of anything else. Yet there was also a complete suite of chronic evils arising from the little advancement made in the arts and economy of life. The king appropriated an exclusive right to make salt, though only to hand it over to a courtier; the salt was consequently bad and dear. In some districts—as Galloway, the west, and the Highlands—to which the native article could not be carried, salt was wholly wanting, and the people used salt-water instead, ‘by which many of them died as of a plague; others being forced to buy at intolerable rates, as sixteen shillings the boll, though they formerly had it for four.’ Another statesman, married to a niece of Lauderdale, had a control over the importation of brandy, and managed to make that liquor to some extent supersede both native ‘strong waters’ and Spanish wines. A third, Sir John Nicolson, was allowed to put a tax on tobacco. He was grandson of Sir William Dick, and it was thought by this means to repay in some measure the public debt incurred to that famous merchant in the time of the Civil War. Moralists of a loyal type tried to make out that it was well to check the use of ‘an unnecessary and expensive drug;’ but ‘custom had made tobacco as necessary as nature had made meat and drink, and consequently this imposition was as grievous as if bread or

ale had been burdened.’<sup>223</sup> Add to these vexing imposts a coin debased for the profit of the mint-master—a brother of Lauderdale—and it will be seen that the evils of Scotland during this reign were not wholly of a sentimental nature.

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Major Weir was strangled at a stake and burnt in Edinburgh, for a series of sexual offences of the most abominable kinds. His sister, Jean Weir, who was involved in her brother’s guilt, suffered next day the less severe penalty of hanging. These were old people, and

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1670.

hitherto of good character.<sup>224</sup> The major, indeed, was a religious professor of the highest style of sanctity, making unusual pretensions to strictness in piety, and noted for his power in prayer. He seems to have been a singular example of a paradox in human nature far from uncommon, and which may well make us all humble—an exalted strain of moral sentiment, refining overmuch, in coexistence with secret and inexpressibly degrading propensities. The poor man seems to have been at length unable any longer to endure the sense of secret guilt and hypocrisy; he sent to the public authorities to come and take him up. Unable to believe in the turpitude of one externally so well reputed, they sent physicians of his own religious party to see if he were not speaking from a disordered mind; and it was only when these reported him perfectly sane and collected, that he was taken into custody. It appeared that he had been addicted to his loathsome offences for a long course of years. The major was condemned upon his own confession, and thenceforth remained stupid and inaccessible to all that was said to him. He would not hear any minister pray to or for him, telling them, when they offered, that it was in vain—‘his condemnation was sealed; and since he was to go to the devil, he did not wish to anger him!’—*Law*.

Jean Weir confessed, besides, to intercourse with evil spirits. The devil had supplied her with lint to her wheel, and when she lived at Dalkeith, she had had a *familiar*, ‘who used to spin extraordinary quantities of yarn for her in a shorter time than three or four women could have done the same.’ That this wretched old woman was under the influence of hallucinations, there can be no doubt. When she and her brother were apprehended, ‘she desired

the guards to keep him from laying hold of a certain staff, which, she said, if he chanced to get into his hands, he would certainly drive them out of doors, notwithstanding all the resistance they could make. This magical staff was all of one piece of thornwood, with a crooked head; she said he received it of the devil, and did many wonderful things with it.... It was ordered by the judges to be burnt with his body.’<sup>225</sup>

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Lord Rutherford, whom we have seen so recently figuring in the romantic affair of the *Bride of Baldoon*, was now engaged in one of a very different kind—prosecuting a Captain Rutherford for the improbation of certain documents believed to have been forged by him, in order to establish claims on the estate of his lordship’s late brother, the second lord. The captain, after lying a long time in the Tolbooth of Edinburgh, was sent for by the Lords of Session (July 27, 1671) to be interrogated about the case. As he was coming along under the care of Robert Hamilton, macer of the court, ‘he pretends there were some papers in Colliston’s chamber in Bess Wynd, which would be of great use to him if he took them with him; and therefore begged leave to fetch them, and paroled he should presently return. The macer trusting him simply, Rutherford makes his escape; the rumour whereof running up and down the town, Towie Barclay, who was but lately released from his confinement in Glasgow, comes in to the Lords in the Inner House, and proffered to find him out and fetch him again within an hour; which accordingly he did with a great deal of zeal, expressing that he could not abide cheatry by anything in the world; such persons know one another’s lurking-places so weel.’—*Foun.*

JULY 29.

1670.

Captain Rutherford was kept in prison seven years, while justice hesitated about his deservings; but at length, on Sir George Mackenzie coming in as king’s advocate, with resolutions to be more vigorous, the culprit was tried along with William Rutherford, messenger, for the crime of forging writs, and both were soon after (November 28, 1678) executed in the Grassmarket.



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The Privy Council was pretty fully occupied at this time in summoning and fining individuals who had been present at unauthorised religious meetings. For example, ‘Robert Burnes, merchant in Glasgow,’ expiated by a fine of 300 merks his having been at a conventicle lately held at Kirkintilloch. Four persons, described as merchants, were fined each in £100 Scots for being at such a meeting in Hilderston House, Linlithgowshire. A fifth, who had not only been there, but had a child baptised on the occasion, suffered to double the amount. A great number were brought into trouble by having been present at a famous conventicle held a short time before at the Hill of Beith, near Dunfermline. Adam Stobie and eight other men, who had been at both that conventicle and another at Livingseat, and who refused to take an oath regarding them, were ‘ordained to be carried to the plantations in America, and discharged to return under pain of death.’ In thus so harshly thwarting the extreme Presbyterians in their predilections as to clergymen and meetings for worship, the government must have calculated on a certain support from the reactionary feeling engendered by the recent twenty-two years of troubles—that feeling under which we may presume they themselves acted. But a constant repetition of such proceedings against members of the community who were only exercising a natural privilege, and meaning no harm to their fellow-creatures, could not fail to create very bitter feelings, and gradually muster elements for the destruction of the existing *régime*. There was at the same time an effort to deal what was doubtless intended to be equal justice towards the various dissenters whom the Presbyterians themselves were accustomed to persecute when in the possession of power. There were even now Quakers in the tolbooths of Aberdeen, Inverury, Montrose, Edinburgh, and other towns, charged with no other offence than that of holding meetings for their own kind of devotion. Professors of the Catholic faith were also from time to time assailed in ways which, one would think, must have been sufficiently annoying to them, although, there is reason to believe, not quite up to that point of severity which would have been satisfactory to the people on the opposite extreme.

AUG.

1670.

On a slight eminence beside the pastoral Doveran in Banffshire, is a little old-fashioned manor-house, surrounded as usual by a few trees, and bearing

the descriptive name of Kinnairdie. Rothiemay and Frendraught—names of painful memory—are in the neighbourhood. Kinnairdie was occupied by the Crichtons of Frendraught, zealous, though unobtrusive Catholics. Word came to the Council as it sat in Edinburgh (August 1670), that in this retired villa ‘there is usual resort publicly to mass every Lord’s day, and four families of the heritors in the parish do, upon the ringing of a bell, go to a room in the said house where there is ane altar erected, and priests do officiate.’ The sheriff of the county was immediately ordered to go and inquire into the matter, to apprehend the priest if he could, and also ‘seize upon any vestments or other popish ornaments made use of in their superstitious worship.’

The sheriff soon after reported that he had seized a Mr Patrick Primrose, who was believed to have officiated as priest at Kinnairdie. He was ordered by the Council to keep this person strictly secured till he should be subjected to trial. By and by, however, ‘being informed that Mr Patrick Primrose, prisoner in the Tolbooth of Banff, doeth belong to the queen’s majesty as one of her servants,’ the Council ordered his liberation, ‘he always obliging himself to depart furth of the kingdom, and shall never return thereto under the pain of death.’ This was a comparatively merciful dealing; but poor Primrose was not destined to be benefited by it. Whether the Tolbooth of Banff had not agreed with his health, or some natural disease fell upon him, so it was that he soon after died.

1670.

On the 3d of August 1671, severe proceedings were taken with several north-country Catholic families, Gordon of Carmellie, Gordon of Littlemill, and Grant of Ballindalloch, for harbouring papist priests, and being present at mass; also against four priests named Leith, Ross, Forsyth, and Burnet, for saying mass, baptising children, and performing the ceremony of marriage, contrary to divers acts of parliament. On the 1st of February 1672, the Council, understanding that the Countess of Traquair, ‘being popishly affected, doth keep in family with her son, the Earl of Traquair, and endeavours to educate him in the popish profession, and for that effect doth keep ... Irving, a priest, to instruct him therein,’ ordered messengers-at-arms to apprehend her ladyship, or if she could not be laid hold of, to summon her at the Cross of Edinburgh, that she and her son might come

before them, in order that they might arrange for his 'education and breeding conform to act of parliament.'

Accordingly, eight days after, the countess having obeyed the citation, the Council ordained that before the 22d instant she should 'send her son to Glasgow, and cause deliver him to Mr Gilbert Burnet, Professor of Divinity, to be educat and bred at the College of Glasgow, in the company of the said Mr Gilbert, at the sight, and by the advice, of the Archbishop of Glasgow,' no servants to be allowed to attend the young earl 'bot such as are of the reformed religion.' On the same day, Wauchope, younger of Niddry, and the Lord Semple, were ordered to bring and deliver up their children, 'in order to their education with some Protestant friend,' Lord Semple being at the same time called to account 'for sending his eldest son abroad contrair to the Council's order.' Wauchope was on this occasion ordered to give up his eldest son into the charge of his own father, the elder laird, and the parents were forbidden to have for the future any intercourse with their child, except in presence of the Protestant preceptor, into whose charge he was to be put.

We soon after hear of the Countess of Traquair being subjected to a horning for disobeying the Council's order, while Lord Semple was put into ward in Edinburgh Castle for sending his son to Doway, and only liberated on a petition craving pardon for his offence, and giving caution to the extent of ten thousand merks for 'sending his third son to be educat in schools in Glasgow.'

1670.

Lord and Lady Semple yielded to the order of the Council regarding their third son; but the result appears to have been of a kind satisfactory to neither party. In April 1678, Lady Semple (her husband being then dead) complained to the Council regarding her son, that, 'either through the neglect of those he was recommended to, or through *the general humour and corruption of the place*, he has been frequently withdrawn from the public ordinances, and so seduced and poisoned with bad principles anent his majesty's government and laws, as may not only hazard his small fortune, but render his loyalty altogether suspect.' At her ladyship's request, the Council gave commission to the Bishop of Argyle and Lord Ross to appoint 'a person of sound principles' to attend the boy as his pedagogue.

In March 1672, the Council sent orders to the sheriffs of Aberdeen and Banff for taking stern measures with the papists of their bounds. Sayers and hearers of mass were to be summoned to answer for their ‘crimes,’ to be excommunicated and escheat, and their estates given to the universities. The sheriffs were enjoined to give their support to the bishop and clergy of the diocese in ‘suppressing and rooting out of Popery and Quakerism.’ And ‘whereas we are informed that there is a superstitious monument erected upon the grave of the late Mr Patrick Primrose, priest, in St Peter’s Chapel in the parish of Botarie, we authorise and require you to cause demolish the same.’ Very likely, some of Patrick’s skulking flock had ventured to put upon his tomb that emblem which most expressively recalls what the Saviour suffered for all sects alike. No such thing could be for a moment endured.

The Presbyterian historians of the age speak of these papist persecutions as not springing from a right zeal. 1670. Wodrow says the rulers could not ‘for shame’ but do something of that sort, while at the same time doing so much against the Whigs. Indeed, Sir George Mackenzie plainly confesses, it was for ‘allaying the humour of the people,’ to convince them that the rulers were themselves disinclined to popery, the people being ‘bred to believe that episcopacy was a limb of antichrist.’<sup>226</sup> A most deplorable exhibition of Christian feeling on all hands truly. As regards the persecution of the extreme Presbyterians, which was beyond all comparison the deadliest then going on, it takes one of its most curious aspects when, as sometimes happened, an element of benevolence towards some other kind of person intruded. For example, Mr Walter Birnie, preacher, having shewn that he was thrown out of bread in his own profession, and, being blind, could go about no other employment, the Council ordered him two hundred merks to be taken in equal parts out of fines lately imposed on John Tennant in Moss-side and the Lady Glanderston. The pages of Wodrow have familiarised us so much with the idea of the Privy Council as a kind of inquisition for the suppression of a respectable dissent, that we can scarcely think of it in any other character. Yet a survey of its records would shew many beneficent and merciful edicts mingling with the severe orders against conventiclers. Petitions for freedom from sickly prisoners or for an abatement of fines, are yielded to in numberless instances—indeed, they appear to have never been refused. In

all matters apart from the unhappy religious disputes, there is no lack of humane feeling or of a desire to promote the good of the community.

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Francis Irving, brother of the Laird of Drum, was before the Privy Council, on account of some very offensive demonstrations which he had lately made. Being a convert from the Protestant faith, he was unusually given to the entertaining of Jesuit priests and the getting up of masses. Under his favour and that of a few similar zealots, a priest had been emboldened to hold a public disputation in favour of his religion, an 'insolency' of which there had not been an example in Scotland since Quentin Kennedy argued with John Knox at Maybole. On a recent occasion, at Aberdeen, when certain persons were to be burned for sorcery and witchcraft, and a great crowd was assembled, 'though he knew that it is a Christian and usual custom that the ministers and people do join in prayers to God for the persons who are to suffer, yet he ... when the minister and people went to prayer, stood covered to the great offence of the people, who knew him,' and when some reminded him of his duty, 'he quarrelled, at least caused his servant quarrel them.' His sister Elizabeth, also a papist, being deceased, he resolved to have her buried in a public way in St Nicolas' Church in Aberdeen, being the principal church there, and for this purpose he collected a great company of his own persuasion, and 'that the strength, interest, and boldness of the papists there might the more appear,' he 'in a most insolent and treasonable way, did raise in arms and bring to the town, from Comar, a band of Highlandmen, armed with guns, hagbuts, pistols, bows and arrows, and other weapons.' These, 'after they had entered at the —— Port, albeit they might have taken a nearer and more private way to the Lady Drum her lodging, where the corpse lay, in the Guestraw,' being resolved to affront and provoke the magistrates and people, 'had the confidence to march to the said house alongst ——, being the most populous and public street in the said town, in rank and order and in warlike posture, a commander marching before and another behind, to the great astonishment and grief of his majesty's good subjects, affected to the purity of religion.' On the morning of the day of the funeral, a

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gentleman went at the order of Francis to the provost of the burgh, told him what was to be done that night, and warned him that, if the people thronged about the funeral company, and any ‘inconvenience ensue therethrough,’ it should be at the peril of the magistracy, who ought to restrain their people —‘which was a practice without parallel for insolency and boldness.’ ‘About eleven o’clock that night, the corpse being lifted was carried to the church of Aberdeen, with great show and in a public way, with many torches, a great multitude of persons accompanying, the coffin being covered with velvet or cloth, with a cross upon the same, and a priest or some other person going before the corpse, holding out his arms before him, and carrying a crucifix under his cloak or using some other superstitious ceremony.’ The Highlandmen, having their swords drawn, guarded the corpse and torches, ‘and when they came to the church-door, divers others of the company drew their swords and did hold them drawn in the church all the time the corpse was [being] buried.’ ‘In the throng, two of the inhabitants of the town was wounded.’ ‘Next morning, the Highlandmen having marched out of the town, many of them in a braving and insulting manner did shoot and discharge their guns as they went by the provost’s lodging.’

Francis was found guilty of ‘a high and insolent riot,’ and condemned to be imprisoned in the Tolbooth of Edinburgh during pleasure, besides paying the expenses incurred in his prosecution. It does not appear that he suffered much confinement in jail; but he was forbidden to approach within a mile of Aberdeen. It was only on petition that he obtained so far a relaxation from this sentence as to be permitted to visit his mother there, in order to settle some weighty affairs of hers, on which he acted as trustee. On a subsequent petition in July 1671, he was freed from this restraint.—*P. C. R.*

1670.

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One Campbell, a writer in Edinburgh, having obtained decret for a debt against Sir Alexander Cunningham of Robertland, sent a messenger to the baronet’s house with a band of armed Highlanders to poind goods for the amount. Sir Alexander being from home, the party found no difficulty in taking some horses from

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his grounds, and bringing them to the cross of Irvine to be sold. ‘Sir Alexander gets notice of it; he runs to the Earl of Eglintoun, as bailie of the district; complains how he was affronted, that some had come and plundered his horse under pretence of poinding; [and] procures from him some twenty men to go and recover them. With thir men he enters Irvine, and with violence offers to hinder their poinding. The provost being present, entreated them to behave civilly, and remember they were in a burgh-royal. Robertland’s man [Alexander Kennedy], after much insolent boasting, drew his sword and ran at the provost, and would undoubtedly have slain him, had he not been immediately knocked down by some of the town-officers, and killed.’

The baronet prosecuted the burgh for this slaughter, before the Privy Council, but without success. How the burgh sped, in a counter-prosecution for riot in their bounds, does not appear.—*Foun.*

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The Marquis of Douglas, a young man, after being engaged for marriage with the daughter of one Widow Jack, a taverner at Perth, was wedded at Alloa House to Lady Barbara Erskine, daughter of the Earl of Mar.—*Lam.*

SEP.

This was an unfortunate marriage for the lady. The marquis, a man of profligate conduct, was subsequently led by his factor, Lowrie of Blackwood (said to have been a rejected suitor of the lady), to suspect his marchioness of infidelity, and they were consequently separated, after she had born him one child. The sorrows of the Marchioness of Douglas were described in a popular ballad of the day, some verses of which constitute the favourite song of *Waly, waly!*

‘O wherefore should I busk my head,  
Or wherefore should I kaim my hair,  
Since my true love has me forsook,  
And says he’ll never love me mair.

Now Arthur’s Seat shall be my bed,  
The sheets shall ne’er be pressed by me,

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St Anton's Well shall be my drink,  
Since my true love's forsaken me.

O Martinmas wind, when wilt thou blaw,  
And shake the green leaf aff the tree?  
O gentle death, when wilt thou come,  
And take a life that wearies me?'

The prose reality of all this was, that the marchioness by and by obtained a decree of the Privy Council, allowing her a provision out of her husband's estate.

The marquis, by a subsequent marriage, was the father of the semi-mad Duke of Douglas and of the celebrated Lady Jane Douglas.

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William Head and John Fergusson, who had 'practised a lottery by authority in the kingdom of England,' were authorised by the Privy Council to set up a similar adventure in any part of Scotland they pleased, 'without let or molestation, they behaving themselves as becometh.'—*P. C. R.*

1671. JAN. 19.

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During the early years of the reign of Charles II., a custom prevailed to a great extent of obtaining from the Privy Council protections against the diligence of creditors. Sometimes a Highland chief could not come to Edinburgh on important affairs of his own, without this safeguard; sometimes the Council could not otherwise be favoured with the company of some man of local influence, whom it desired to see upon important public business. Sir Mungo Murray was unable to attend the funeral of his cousin and namesake, 'late lieutenant of one of his majesty's troops of guards,' unless he got 'protection against the rigidity of his creditors.' At this date, the Council received an application for a protection from James Arnot, postmaster at Cockburnspath, an important station on the road from

MAR. 2.



Edinburgh to Berwick. James having involved himself in debt, not only was his person 'in hazard to be taken with captions, but the horses and furniture reserved for the public use of the lieges upon the post-road are threatened to be poindit.' As the government owed him as much as would pay his debts, it seemed but reasonable that they should save him from his creditors, which they accordingly did by granting him and his horses protection for a year.—*P. C. R.*

A young woman named Elizabeth Low had an excrescence upon her forehead, eleven inches long, and usually regarded as a horn. It was this day cut out by Arthur Temple of Ravelrig, and deposited in the museum of the Edinburgh University, with a silver plate attesting its history. Law notes that the girl was alive in 1682, and had another horn growing out of the same place.

1671. MAY 14.

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Heriot's Hospital having been for some years established, with sixty boys as inmates, it was customary to hold the 1st of June as a holiday in honour of the founder, one part of the formalities being a procession of the magistrates to the Hospital at nine in the morning 'to hear sermon.' David Pringle, 'nearest of kin to the founder,' acted as surgeon and barber to the boys, these two heterogeneous crafts being somehow combined by our ancestors. To prepare the boys for appearance this morning before the civic dignitaries, it was necessary that they should be polled; accordingly, about seven in the morning, Mr Pringle, his other servants being absent about his business, sent a boy to the Hospital, desiring him to take with him any person he could readily get to further the work. The boy unluckily omitted to look for a barber free of the city corporation of barber-chirurgeons, and took with him one William Wood, who was only free of the suburban district of Portsburgh.

JUNE 1.

This coming to the ears of Archibald Temple, deacon of the said city corporation, a court was speedily held, and David Pringle summoned before it, to answer for the irregularity committed by his boy. The medical officer of Heriot's Hospital ingenuously confessed the error; but represented his boy as having simply

1671.

taken the readiest assistant he could get, ‘without the least intention to give the calling offence:’ he added his solemn promise that no such impropriety should ever again occur. The court was disposed to pass over the matter as trivial; but the deacon, having reason to believe that Pringle designedly employed Wood, pressed for punishment, and solemnly vowed he would see it inflicted. He very soon caused Wood to be put up in the Tolbooth. Pringle hereupon appealed to the Town Council for the liberation of Wood, and so further incensed the corporation against himself. By using influence with the magistrates, they obtained a warrant for the apprehension of Pringle, by which he was ‘necessitat for some time to keep his house, and durst not come abroad, they having officers both at the head and foot of the close to watch and catch him.’ Notwithstanding a petition from him to the Town Council, representing the case, Temple and some of his colleagues persevered till they got Pringle put up in jail, there to be during the Council’s pleasure, and till he should give satisfaction to ‘the calling.’ They also, during his confinement, passed an ordinance depriving him of all the benefits of his own connection with the corporation, till he should have made full acknowledgment of his offence in writing, and submitted to appropriate censure. In short, the affair, trivial at first, came to be a passionate contention between the barber corporation and their delinquent member, they determined to assert their privileges, and he resolute to make no unworthy submission. After much altercation, the affair came before the Privy Council, who employed the Earl of Argyle and the Earl of Linlithgow to inquire into and report upon it, and it was not till the 11th of January 1672 that the case was adjusted by Pringle making an apology, and the corporation reponing him in his privileges.—*P. C. R.*

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Donald M’Donald, commonly called the *Halkit Stirk*,<sup>227</sup> had been liberated from the Edinburgh Tolbooth in December 1660, on caution being given by Donald M’Donald, younger of Slate, to the extent of £1000 sterling, that the prisoner should present himself, when called upon, to answer anything that could be laid to his charge. It being found that the *Halkit Stirk* had ever since lived the life of a robber, and had committed divers slaughters, the

SEP. 5.

young Laird of Slate was now called upon to render up the delinquent or forfeit his caution. The young laird accordingly brought the Halkit Stirk before the Council, and got a discharge of his bond. The robber was committed to the Tolbooth.

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During this year, a great impulse seemed to be given to Quakerism both in England and Scotland. It being found, says Law, that a rejection of ordinances and the Scriptures were not taking with the people, they began to have preaching and prayer at their meetings, and to acknowledge the Bible as the rule of their life and judge of controversies. The profession was found thus to be more ‘ensnaring.’ Some men of note, and of parts and learning, such as Robert Barclay of Urie, who afterwards wrote the *Apology for the Quakers*, now joined the society.

1671.

In his dedication to the king, written in 1675, Mr Barclay claimed credit for his sect, not only that they meddled with no civil affairs, but that, in the times of most violent persecution, being ‘clothed in innocency, they have boldly stood to their testimony for God, without creeping into holes or corners, or once hiding themselves, as all other dissenters have done’—rather a severe taunt at the extreme Presbyterians, who had been contenders for the political supremacy of their church, and had now to comport themselves as rebels. The Presbyterians, while themselves suffering, approved of the severities against these most innocuous of all Christians; they only thought them not severe enough. Wodrow speaks of the Council as, in 1666, ‘coming to some *good resolutions* against Quakers,’ but complains generally of its slackness concerning ‘that dangerous sect,’ which, he says, ‘spread terribly during this reign.’

One William Napier, a seafaring man in Montrose, had turned Quaker, and other Quakers began in consequence to draw towards that place, keeping frequent meetings in Napier’s house, ‘to the great scandal of religion and disturbance of the peace and quiet of the burgh.’ On the 12th of January 1672, ‘betwixt twenty and thretty persons did convene at William Napier his house, where they had such pretendit devotion as they pleased to devise, whereupon a great tumult and confusion was like to have been made,’ and

the magistrates, to settle matters as far as possible, clapped up fifteen of the congregation in the Tolbooth. On a petition from the magistrates, representing how by these doings the people were becoming ‘deboshed in their principles,’ the Council ordered that William Napier should be sent to Edinburgh, and imprisoned during pleasure in the Tolbooth there, while the rest of the prisoners should remain in durance at Montrose. In this case the Council ultimately took a lenient course. On a humble petition from Napier, representing the injury he would sustain in his business from an intended voyage being stopped, he was ordered to be set at liberty after about a fortnight’s confinement. Three of the company were ordered, on petition, to be liberated eight months after, and on the ensuing day a general order was issued for the liberation of any other Quakers that might still remain in confinement at Montrose.—*P. C. R.*

A general order was issued by the Council, in March 1672, to the magistrates of Aberdeen, commanding them to execute the laws against a number of the citizens who had deserted the parish churches on account of Quakerism, enjoining that these people should be strictly punished according to act of parliament—that is, fined in the proportion of a fourth of their means for the offence.

1671.

In March 1673, there were eleven men in prison at Kelso for attending a Quaker meeting; but the Council, unwilling to keep them confined till the circuit court could try them, sent the Earl of Roxburgh with a commission to judge whether they might be set at liberty or not.

The liberty of conscience which the Quakers asserted as a principle made them unscrupulous in associating with papists, and this formed one of the strongest grounds of prejudice against them. Law relates a childish story of a gentleman Quaker at Montrose being induced by his daughter to repent, and return to church, where he confessed that the chief Quakers kept up a correspondence with the chief papists and with the pope; as also that they ‘had converse with Satan.’

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We are assured by Robert Law,<sup>[228](#)</sup> that while Quakerism was spreading with an alarming rapidity, there was also a startling abundance of profanity and

of abominable offences. Some propensities were indulged with great licence; ‘drunkenness without any shame, men glorying in it;’ ‘dreadful oppression; high contempt of the gospel; gross idolatry; a woman in the south drinking the devil’s health and [that of] his servants; self-murder; and witchcraft and sorceries very common; all which threatened a sad stroke from God upon us.’

The woman here adverted to by Law seems to have been one Marion M’Call, spouse to Adam Reid in Mauchline. She was tried, May 8, 1671, before the Court of Justiciary at Ayr, for ‘drinking the good health of the devil,’ and judged to be taken on the first Wednesday of June to the Market Cross of Edinburgh, ‘to be scourged by the hangman from thence to the Nether Bow, and thereafter to be brought back to the Cross again and have her tongue bored and [be] burnt on the cheek;’ further, she was not to return to the county of Ayr on pain of death.<sup>229</sup>

Law elsewhere tells of a debauch, at which a similar indecorum was committed, and which was the means of carrying off two members of the Scottish peerage. It was the more remarkable as occurring in January 1643, when the nation at large had certainly some most serious concerns on hand, and the general tone was earnestly religious. It is stated that the Earl of Kelly, the Lord Kerr, and David Sandilands, ‘Abercrombie’s brother,’ with other two gentlemen, being met one day, fell a carousing, and, to encourage each other in drinking, began to give healths. When they had drunk many healths, not knowing whose to give next, ‘one of them gives the devil’s health, and the rest pledges him. Sandilands that night, going down stairs, fell and broke his neck; Kelly and Kerr within a few days sickened of a fever and died; the fourth also died shortly; and the fifth, being under some remorse, lived some time.’ It may be added that ‘ane great drink,’ as it was called in a chronicle of the day, having thus carried off Lord Kerr, the titles of his father, the Earl of Roxburgh, passed by his daughter into a branch of another family, the Drummonds of Perth. This victim of the wine-cup had appeared for the Covenant at Dunse Law, but afterwards became a royalist.

1671.

From the commencement of the religious troubles in 1638, the Privy Council Record gives comparatively few of those notices of new manufactures attempted in Scotland, or proposed to be introduced by strangers, for which the previous thirty years of peace were so remarkable. Amidst endless notices of religious persecution, it gives an agreeable surprise, at the date noted, to light upon an application from Philip Vander Straten, a native of Bruges, for the benefit of naturalisation and freedom of working and trafficking, while embarking a considerable sum of money in a work at Kelso '*for dressing and refining of wool.*' The petition was at once complied with.—*P. C. R.*

1672. FEB. 26.

Two years later (March 19, 1674), the commencement of a humbler and less useful branch of industry is noted. At that date, Andrew M'Kairter represented to the Privy Council that, being a young boy at the schools of Dalmellington at the time of the Pentland insurrection in 1666, he had joined in that affair, and after its conclusion, 'out of a childish fear did run away to Newcastle, and having there, and in London, and Holland, served ane long apprenticeship? in spinning of tobacco,' he was now returned to his native country, and 'hath set up the said trade at Leith.' His desire was to make his peace with the government by signing the bond for the public peace. The Council entertained the petition graciously, and Andrew became, we may suppose, the first practitioner of tobacco-spinning in Leith.

1672.

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At this time, and for six months previously, the small-pox raged in Glasgow. Hardly a family escaped the infection, and eight hundred deaths and upwards occurred.—*Law.*

APR.

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Some sensation was excited by the rumour that in a ship lying at Newcastle, called the *Cape of Good Hope* of London, the devil had appeared in bodily shape, in the habit of a seaman, with a blue cravat about his neck, and

desired the master of the ship to remove out of her; which he did not obey till sic time as she began to sink in the ocean. Then he, with his company, took his cock-boat, who were saved by another ship coming by. This was testified by the oaths of them that were in her.—*Law*. It is seldom that the devil is found so obliging as he seems to have been in this case.

It may serve to verify the possibility of such a rumour in the reign of Charles II., that, in March 1682, the Privy Council was informed that ‘one Margaret Dougall is imprisoned in the Tolbooth of Ayr, as alleged guilty of raising and consulting the devil;’ and an order was given that she be transported from sheriff to sheriff until brought to and placed in the Tolbooth of Edinburgh, that she might be brought to a legal trial.—*P. C. R.*

Joannes Michael Philo, physician, and ‘sworn operator to his majesty,’ was, on petition, allowed to erect a public stage in Edinburgh for the practice of his profession, but ‘discharged to have any rope-dancing.’—

MAY 27.

AUG. 22.

*P. C. R.* It was some time after stated regarding this personage, that he did erect a stage in Edinburgh, and ‘thereon has cured thretteen blind persons, several lame, and cut several cancers, and done many other notable cures, as is notourly known, and that out of mere charity.’ He was therefore invested by the Council, on petition, with a warrant to go and do likewise in all the other burghs of the kingdom, up till February next; the Council further recommending him to the magistrates of these burghs, that they may give him due help and countenance.

His stage was then taken down by the magistrates of Edinburgh, ‘before he could have time to complete many considerable cures,’ which he had had on hand.

1672.

There also came to him from remote parts of the country ‘five or six poor blind people, and as many with cancers, whose poverty will not admit the same to be done otherwise than upon the public stage, where they have their cure gratis and their entertainment in the meantime upon [the operator’s] charges.’ He therefore petitioned to have his stage re-erected in Edinburgh for a time; which was complied with.

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On the parliament sitting down to-day, under the Duke of Lauderdale as commissioner, his 'lady, with the number of thirty or forty more ladies, accompanies the duke to the parliament in coaches, and are set down in the Parliament House, and sat there to hear the commissioner's speech.'—*Law*. 'A practice so new and extraordinary, that it raised the indignation of the people very much against her; they hating to find that aspired to by her, which none of our queens had ever attempted.' It 'set them to inquire into her origin and faults, and to rail against the lowness of the one, and the suspicions of the other.... This malice grew daily against her.'

JUNE 12.

The duke, at fifty-seven, and, it is said, only six weeks a widower, had married the duchess in the preceding February in London, all their friends in Edinburgh making feasts on their marriage-day, while 'the Castle shot as many guns as on his majesty's birthday.' Her grace, now forty-five years of age, was in her personal qualities and history a most remarkable woman. Her wit and cleverness were something singular; 'nor had the extraordinary beauty she possessed while she was young, ceded at the age at which she was then arrived.' The daughter of one who had been minister of Dysart, she was Countess of Dysart in her own right, and by Sir Lionel Tollemache had had a large family, which is still represented in the peerage. There was something romantic in her union with the now all-powerful Lauderdale. He had owed to her his life, through her influence with Cromwell, and in his marriage, which was discommended by all his friends, 'he really yielded to his gratitude.'<sup>230</sup> For the next ten years, it might be said that Lauderdale and his clever duchess were all but nominally king and queen of Scotland.



## **REIGN OF CHARLES II.: 1673-1685.**

For several years, there was little to be observed regarding Scotland, but that the non-conformity of its people in several of the more populous provinces provoked an incessant show of severities on the part of the government. During this time, literature and science remained wholly uncultivated; no department of industry shewed any decided tendency to advance. The energies of the nation were arrested by a frightful contention, most degrading to the object for which men were contending, and than which nothing could have been more hostile to the spirit of religion simple and undefiled.

A preacher named James Mitchell had, in 1668, attempted the life of Archbishop Sharpe, and had actually inflicted a mortal wound upon the Bishop of Orkney. Being apprehended in 1674, he was confined for several years, and at length condemned and executed. The crime was not so odious among his party as to extinguish their sympathy; accordingly, this wretched man was looked upon by them as a kind of martyr. After this, the persecution for field-meetings became more than ever severe. A calculation has been made that, previously to 1678, seventeen thousand persons had suffered fining and imprisonment on this account. The government resolved to try the expedient of pressing the subscription of a bond renouncing conventicles; and to support them in their efforts, an army of ten thousand men was collected at Stirling, of whom the greater part were Highlanders. At the end of January, this host was let loose upon the western counties, with instructions to enforce fines from all who would not take the bond. The resistance was passive, but universal. Only twenty out of two or three thousand householders in Lanarkshire could be prevailed upon to abandon a mode of worship which possessed so many charms. They preferred to see themselves spoiled of a great share of their worldly goods. Even the nobles, and other conspicuous persons, who lay most open to state persecution, generally refused the bond. The Council was deeply mortified at the passiveness of the people, for they had expected a rebellion, which would have justified them in severer measures. After a month, finding the attempt ineffectual, Lauderdale was obliged to order the army away. The Highland

Host, as it was called, left a deep impression upon the memory of those who experienced its oppressions. It is not alleged that the mountaineers shed much blood, but they freely helped themselves to whatever movable articles they took a fancy for. As they returned to the north, the whole country seemed to be removing its household furniture from one district to another. Ayrshire alone suffered losses to the amount of £12,000 sterling, which, in those days, was a very large sum.

A deep spirit of resentment against the Council, and especially the prelatial part of it, was the natural result of all these occurrences. The worst passions of human nature mingled themselves with the purest and noblest aspirations; and men appealed, in language of bitterness, from the iniquity of their earthly rulers to the justice of God. The wisest and best natures were perverted by feelings which had become morbid by extreme excitement. On the 3d of May 1679, while the public mind was in this condition, a small party of Fife gentlemen went out with the deliberate intention of assassinating the sheriff at a chase. Disappointed in that object, they had not dispersed when a greater victim fell in their way. As they were riding over Magus Moor, near St Andrews, Archbishop Sharpe happened to pass. The opportunity appeared to their minds as a dispensation of Providence. They commanded him to come out of the coach, apparently that his daughter, who was with him, might not suffer from their shot. The archbishop tremblingly obeyed; he flung himself upon his knees, offered them mercy, forgiveness, everything, so that they would spare his life. The leader sternly reminded him of the deadly injuries he had inflicted upon the church and its martyrs. A volley of shot was poured upon his suppliant figure, and finally the unhappy prelate was hewed down with their swords, crying for mercy with his latest breath. They left his daughter lamenting over his body, which was afterwards found to bear such marks of their barbarity as could scarcely be credited.

The assassination of Sharpe produced a great alarm among the remaining members of the government, each of whom knew how much he had done to provoke the same fate. In another respect, it was perhaps a matter of rejoicing to these men, as it afforded them an excuse for increasing that severity on which alone they depended as a means of maintaining the state. The Presbyterians never by any formal act expressed approval of the deed; indeed, many of them must have felt that it was an affair of the worst omen

to their party. Neither, however, did they ever express themselves as offended by the violence of their brethren; and even half a century after the event, their historians are more anxious to shew that the archbishop deserved his fate, than to apologise for the barbarity of his murderers.

The blame of the murder has been the more plausibly thrown upon the whole party, that it was immediately followed by an insurrection. On the 29th of May, which was the king's birthday, a party of about eighty deliberately marched into the town of Rutherglen, three miles from Glasgow, where they publicly burnt all the acts of parliament against Presbytery. They afterwards extinguished the bonfires, in order to mark their disapprobation of all holidays of human institution, and concluded by fixing upon the Cross a declaration of their sentiments respecting the late proceedings of the government. Having done this, they retired to a mountainous part of the country between Lanarkshire and Ayrshire, where there was to be a grand conventicle on the ensuing Sunday. The government looked upon this proceeding as an act of rebellion, and despatched a military party after the offenders, consisting of three troops of newly levied dragoons, under the command of Captain Graham of Claverhouse, a man of remarkable energy of character, who had recently entered the king's service in Scotland. On Sunday, Graham came up with the insurgents, at a place near Loudoun Hill, where they were assembled at devotion. They were about forty horse and two hundred foot, under the command of a gentleman named Hamilton, but without the least discipline or acquaintance with military affairs. Graham fired a volley, which they eluded in a great measure by falling upon their faces. He then tried to charge them through a morass, behind which they were placed, but in doing so threw his men into confusion, and exposed himself to the assault of the enemy. They took instant advantage of his distress, attacked the dragoons sword in hand, and soon compelled them to retire. Graham had his horse shot under him, and about twenty of his men were slain, while only one of the insurgents had fallen. A minister and some country-people whom he had brought along with him as prisoners were rescued by the victors.

The broken dragoons retreated to Glasgow, which was then garrisoned by about eight hundred troops. The insurgents, flushed with their success, and thinking it safer to go on than to draw back, marched next morning to that city with considerably increased forces. The troops barricaded the streets, so

that the country-people could make little impression upon them, while they were greatly exposed in their turn. Eight were slain in this needless encounter; the rest retreated in rather low spirits to Hamilton, where they formed a kind of camp.

Their numbers were here augmented in a short time to about five thousand, chiefly peasants and farmers of Lanarkshire, Ayrshire, and Galloway, but comprising also a few gentlemen of property, though none of any note. Hamilton continued to exercise a nominal command, though rather from his having been the leading man at the commencement, than from any idea of his fitness for the situation. All of them had arms, and many of them horses; but there was neither discipline, nor any attempt to impose it. The whole insurrection proceeded upon mere impulse. The unfortunate people acted, it would appear, simply from the pressure of immediate circumstances, glad to protect themselves, for a while, even at the risk of utter destruction, against an oppression they could no longer endure.

The Privy Council collected all its disposable forces at Edinburgh, and requested instructions from the court. It was speedily determined that the Duke of Monmouth should be sent down to take command of the army. This was the eldest natural son of the king; a youth of amiable character, anxious for popularity, and intimately connected with the English non-conformists, whom he expected to favour him in his views upon the succession. The duke arrived in Edinburgh on the 19th of June, and led forward the army to meet the insurgents. He marched very slowly, in order, as was supposed, to afford them an opportunity of dispersing; but they shewed no disposition to avail themselves of his kindness. They had spent the three weeks during which they had existed as an army, not in training themselves to arms, or arranging themselves into proper divisions, but in disputing about the spiritual objects for which they were in arms. One great cause of division was the Indulgence, which some were for condemning, and others for overlooking; they were also greatly divided as to the propriety of acknowledging their allegiance to the king. In these abstractions they lost all view of practical measures. They called such things 'trusting in the arm of flesh,' for which, of course, they could adduce an abundance of condemnatory texts.

On Sunday, the 22d of June, Monmouth had advanced to Bothwell, a village about a mile distant from the insurgent camp. The river Clyde ran

between the two armies, and was only to be crossed by Bothwell Bridge, a long narrow pass, highly capable of defence. The non-conformists, who lay upon the ground beyond the bridge, were still, at this late moment, holding high disputes, and there was even a proposal for remodelling the army, and appointing new officers. The moderate party sent two gentlemen in disguise—Mr David Hume and the Laird of Kaitloch—to present a supplication to the duke, in which it was proposed to disperse, on the condition that their grievances should be redressed. But Monmouth was unable, from his instructions, to treat with them unless they should have first laid down their arms. He charged the two deputies with a message to that effect, threatening if they did not throw themselves upon his mercy within half an hour, that he should advance with his army. When these gentlemen returned, they found the army on the point of falling to pieces through dissension. In truth, many must have now been only seeking for occasion to withdraw themselves from an adventure which they saw to be ruinous. The most zealous and clamorous were the first to retire. The rest remained, unable either to take advantage of the duke's proposal, or to prepare for giving him battle. At the time he had specified, he advanced his troops to the brink of the river, and sent a large party to force the passage of the bridge. That point was stoutly defended, for nearly an hour, by some men from Galloway and Stirlingshire, under Hackstoun of Rathillet. At length, when their ammunition ran short, they sent back to the main body for a supply, which was denied. They were of course obliged to retire, and leave a free passage to the royal troops. When the horse soon after rode off from the field, the foot, left defenceless, could not stand an instant against the charge of the enemy. Excepting twelve hundred, who laid down their arms, the whole body took to flight, without having made the least effort at resistance. About three hundred were cut down in the pursuit.

The prisoners were brought in a body to Edinburgh, and confined, like sheep in a fold, within the gloomy precincts of the Greyfriars' Church-yard, where, for four months, they had no seat or couch but the bare ground, and no covering but the sky. Two clergymen, Kid and King, were executed. Of the rest, all were set at liberty who would own the insurrection to have been *rebellion*, and the slaughter of the archbishop *murder*, and promise never more to take up arms against the government. Those who refused were sent to the Plantations; a mode of disposing prisoners which had been introduced by Cromwell.

Under all the severities of this reign, the spirit of English liberty was still kept alive. The king having been long married without any children, his brother, the Duke of York, was heir-presumptive. But this prince, besides various natural faults of character, had unfitted himself for governing a Protestant people by becoming an avowed convert to the Catholic faith. An attempt was made in the House of Commons to pass an act for excluding him from the succession; it was read a second time by a majority of 207 against 128; and the king only evaded the question by proroguing the parliament. The duke, seeing himself so unpopular in England, resolved to make friends, if possible, in Scotland; so that, in the event of any resistance to his succession in the former country, he might bring up an army of Scotch to his assistance. He therefore paid a visit to Edinburgh in October 1679, and revived the long dormant court of Holyroodhouse. As the persecution had been in a great measure a local affair, it operated little against his present views. The gentry, except in the western district, were chiefly Cavaliers; in the Highlands, altogether so. Among a people remote from a court, the mere presence of royalty—its slightest acts of condescension—are sure to communicate a favourable impression, although, perhaps, accompanied by but little merit or virtue in the royal person. We are not therefore to be surprised that the duke somewhat strengthened himself in Scotland on this occasion. He returned at the end of February 1680 to London.

The excitement of the time now gave rise to a new and more fanatical sect, who renounced their allegiance, and issued anathemas not only against their persecutors, but against the great mass of their brethren, who had submitted to the government. A minister named Cargill and his associate, Cameron, with about twenty armed men, appeared at Sanquhar on the 22d of June, and there affixed upon the market-cross a declaration, in which they disavowed all obedience to the king, and protested against the succession of the Duke of York. Cameron was soon after killed, with some of his friends, at Airdsmoss, and Hackstoun of Rathillet was seized and executed. Cargill, so far from being deterred, held a large conventicle at Torwood, where he formally delivered over the king, his brother, and ministers, to Satan, after the usual forms of excommunication. He was soon after taken prisoner and hanged. The whole proceedings of this sect were seriously injurious to the great body of Presbyterians; as the government, wilfully overlooking

remonstrances to the contrary, held all that was done as criminating the whole body, and took occasion from that to exercise greater severities.

In October 1680, the Duke of York was again obliged, by the patriotic party in England, to take up his residence at Holyroodhouse. A bill for excluding him from the throne was now actually passed by the House of Commons, but was lost in the House of Lords by thirty-three against thirty. On Christmas Day, the spirit of the Scottish people against a Catholic successor was manifested by the students of the Edinburgh University, who, notwithstanding every effort to prevent them, publicly burnt the pope in effigy. A parliament, the first for nine years, sat down in July 1681, the duke acting as commissioner. A test oath was here framed, to be taken by all persons in public trusts, as an assurance of their loyalty; but it turned out to be such a jumble of contradictory obligations, that many persons, including eighty of the established clergy, refused to take it. The Earl of Argyle, son to the late marquis, and a faithful friend to the Protestant religion, would only receive it with an explanation, which was held to be an act of treason, and he was accordingly tried and condemned to death. The real object of this prosecution was to destroy a powerful Highland chief, who might be disposed to use his influence against the succession of the Duke of York. His lordship contrived to escape to Holland.

In the latter part of this year, the party left by Cargill and Cameron formed themselves into a secret society, and on the 12th of January 1682, published at Lanark a declaration of adherence to the transactions at Sanquhar, which they affected to consider as the work of a convention of estates. This, of course, only provoked new severities.

In March 1682, the Duke of York returned to England, in order to hold a conference with the king. Coming back in May for his family, his vessel was wrecked on a sandbank near Yarmouth, when a hundred and fifty persons perished, including some of the first quality. After spending about a week in Edinburgh, he returned to England.

The ancient Presbyterian spirit was now reduced so low, or so many of the clergy of that kind were destroyed and imprisoned, that there was not a single individual who preached in defiance of the king's supremacy. The united societies, as the more unsubmissive termed themselves, were obliged to send a youth named Renwick to Groningen, in Belgium, in order to study

divinity and receive ordination, as they could not in any other way obtain a preacher. A general disposition to emigration began to arise; and some gentlemen proposed to sell their property, and become settlers in the new colony of Carolina. While engaged at London in making the proper arrangements, they came in contact with the patriots of the House of Commons, who, defeated in the Exclusion Bill, were concerting measures for bringing about a change of government. Common desperation made them friends; and a correspondence was opened with the Earl of Argyle in Holland, for an invasion from that quarter, in connection with an insurrection in England. Some subordinate members of the conspiracy plotted the assassination of the king; and, being discovered, the whole affair was brought to light. Lord Russell and Algernon Sidney suffered death. Baillie of Jerviswood was sent to Scotland, and there, under the most iniquitous circumstances, consigned to the executioner. It was now hardly possible, by any course of conduct, to gain assurance of not being prosecuted. Masters were held liable for servants; landlords for their tenants; fathers for their wives and children; and to have the least intercourse with a proscribed person was the same as to be actually guilty. The soldiery were now permitted by an act of parliament to execute the laws without trial. If any one, therefore, refused to answer certain questions, or gave rise to suspicion by running away, he was shot. Numbers thus perished in the fields and on the highways. In short, the reign of Charles II. terminated, February 6, 1685, amidst a scene of oppression, bloodshed, and spoil, such as was never before witnessed in the country, even in the most barbarous times.

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Died Sir Robert Murray of Craigie, Justice-clerk, and an eminent councillor; memorable above all as one of a small group of learned and thoughtful men who, in 1662, founded the Royal Society, of which illustrious body Sir Robert was the first president, and for a time ‘the life and soul.’ For the last six years of his life, he bore a leading part in the government of Scotland. Not a Whig had been fined, tortured, or banished; not a commission against ‘the horrid crime of witchcraft’ had

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been issued; but the act was sanctioned by this gentleman, ‘the most universally beloved and esteemed by men of all sides and sorts, of any man I have ever known in my whole life,’ and who ‘knew the history of nature beyond any man I ever yet knew;’ who ‘had a most diffused love to all mankind, and delighted in every occasion of doing good;’ and who ‘had a superiority of genius and comprehension to most men.’—*Burnet*. Sir Robert’s father was a younger son of a distinguished Perthshire family, Murray of Abercairney. He himself had been the friend of Charles I. and of Richelieu, and latterly he was a favourite of Charles II. When the daughter of Sir Robert was married in London to Lord Yester, eldest son of the Earl of Tweeddale, ‘the king himself led the bride uncovered to church.’—*Kir*.

To find two such amiable men as the Earl of Tweeddale and Sir Robert Murray taking part for many years in the severe measures against the Scottish Presbyterians—though, it must be admitted, with the effect of infusing a certain mildness—and to find day after day the bloody edicts of the Privy Council sanctioned by not only their names, but by those of the Duke of Hamilton and the Earl of Argyle, the latter of whom was to die the death of a martyred patriot, while the former was to preside in the convention which settled the Stuarts’ forfeited crown on William and Mary, certainly presents a striking view of the mixed nature of human tendencies. As regards, too, the philosophical character of the founder of the Royal Society, it can never be forgotten that one of his contributions to the *Transactions* of that sage body was an account of *the development of barnacles into sea-birds*—a most noted example of the power of preconceived notions to blind the perceptions of even a faithful and intelligent observer. His testimony on this subject was thus presented in the *Philosophical Transactions*:

‘Being in the isle of East [Uist], I saw lying upon the shore a cut of a large fir-tree, of about 2-1/2 foot diameter, and nine or ten foot long; which had lain so long out of the water that it was very dry; and most of the shells that formerly covered it were worn or rubbed off. Only on the parts that lay next the ground there still hung multitudes of little shells, having within them little birds perfectly shaped, supposed to be barnacles. These shells hang at the tree by a neck longer than the shell, of a kind of filmy substance, round and hollow, and creased, not unlike the windpipe of a chicken, spreading

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out broadest where it is fastened to the tree, from which it seems to draw and convey the matter, which serves for the growth and vegetation of the shell and the little bird within it. This bird, in every shell that I opened, as well the least as the biggest, I found so curiously and completely formed, that there appeared nothing wanting as to the external parts, for making up a perfect sea-fowl; every little part appearing so distinctly, that the whole looked like a large bird seen through a concave or diminishing glass, colour and features being everywhere so clear and neat. The little bill like that of a goose, the eyes marked, the head, neck, breast, wing, tail, and feet formed; the feathers everywhere perfectly shaped and blackish coloured; and the feet like those of other water-fowl, to my best remembrance. All being dead and dry, I did not look after the inward parts of them. But having nipped off and broken a great many of them, I carried about twenty or twenty-four away with me.... Nor did I ever see any of the little birds alive, nor met with anybody that did. Only, some credible persons have assured me they have seen some as big as their fist.'

After all, it must be acknowledged there is something very perplexing about these cirripeds, and calculated to excuse the mistake which so long existed regarding them, since it was not till about 1840 that naturalists could determine whether they belonged to the articulate or the molluscan division of the animal kingdom. It is scarcely necessary to remark that they are now concluded to be articulates, of the crustacean class. Even Cuvier had placed them under the mollusca, though regarding them as intermediate between these and the articulata. As to the eyes spoken of by Sir Robert Murray, it may be observed that the barnacle has latterly been found to have visual organs in an early period of its existence, and to lose them when at full growth. When Mr Thomson of Cork, about 1830, described the actual characters of the animal, many naturalists for a long time refused to believe in his statements.

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A sumptuary law was passed in the parliament in 1672, 'discharging the wearing of silver lace and silk stuffs, upon a design to encourage the making of fine stuffs within the kingdom, and to repress the excessive use of these commodities.'<sup>[231](#)</sup>

An effort was made to carry this law into force. On information from Alexander Milne, collector of his majesty's customs in Edinburgh, the Council had up before them Sir John Colquhoun of Luss, who, in breach of a late act of parliament forbidding the lieges to wear clothes ornamented with 'silk-lace, gimp-lace, or any other lace or embroidering or silk,' had appeared, during the bypast month, wearing 'a black *justicat*,<sup>232</sup> whereupon there was black silk or gimp-lace.' Sir John was condemned, in terms of the act of parliament, to pay a fine of five hundred merks, 'one half to his majesty's cash-keeper for his majesty's use, and the other half to Alexander Milne.'—*P. C. R.*

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Nearly about the same time, Manna Kinloch, wife of James Charteris, writer, was arraigned before the Privy Council for wearing fine apparel contrary to the same sumptuary act, but was discharged for lack of proof. Two legal questions arose in connection with this case. The first was: If a woman be convicted and punished for such an offence, ought her husband to be liable to make good the fine, or should she alone be punished by imprisonment? Obviously, if the husband be made liable, 'many wives, to affront their husbands, or otherwise be avenged on them, would break the law of purpose.' The second point was: How shall the offence, in most instances, be proved, if the evidence of women be rejected—as it seems to have then been in all except certain special cases—for it must often be that none but women have an opportunity of observing the offence?—*Foun.*

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The summer of this year was exceedingly wet, and the harvest thereby much endangered.—*Law.*

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Most probably, the carriages proposed to be set up in 1610 by Henry Anderson the Pomeranian, to run between Edinburgh and Leith with a charge of two shillings Scots for each person,<sup>233</sup> were either not realised or quickly

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withdrawn, for nothing more is heard of them, and we find in 1702 one Robert Miller getting an exclusive privilege of putting coaches on that brief but important route, implying of course that no other such conveyances then existed. Street-carriages, which had been set up in London in the reign of Charles I., did not come into use in Scotland till after the Restoration. On the occasion of the unfortunate duel in 1667 between William Douglas of Whittingham and Sir John Home of Eccles,<sup>234</sup> we hear of the parties going to the ground in a hackney-coach. Six years later, regular arrangements were made by the Edinburgh magistrates for a system of street-carriages, and the number then in service appears to have been twenty. It was ordered that they should be numbered 1, 2, 3, &c., with a view to ready reference in case of any complaint from a passenger, and that they should have a fixed place on the High Street between the heads of Niddry's and Blackfriars' Wynds. The fare to Leith for two or three persons in summer was to be 1s. sterling, or for four persons, 1s. 4d.; the fare to the Abbey, 9d., and as much back again.<sup>235</sup>

It is pretty certain that this system of street-carriages maintained its ground, as in *A Short Account of Scotland*, written by an Englishman in 1688, the author tells us that, while there were no stage-coaches in Scotland, 'there are a few hackneys at Edinburgh, which they may hire into the country on urgent occasions.' It is to be remarked, however, that Edinburgh, being all packed within a space of a mile in length by half a mile in breadth, upon irregular ground, and with very few streets fit for the passage of wheeled vehicles, was a discouraging field for this kind of conveyance. Sedans maintained a preference over coaches till the extension of the city in the reign of George III. Arnot tells us that while there were, in 1778, only nine hackney-carriages in our city, there were a hundred and eighty-eight public chairs, besides about fifty kept by private families.<sup>236</sup>

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During several by-past years, licences had been given in frequent succession to vessels, to carry off idle, vagrant, and criminal people to the plantations in Virginia and elsewhere. One ship engaged in this kidnapping service, and which bore the hypocritical appellative of *The Ewe and Lamb*, seems to have been

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particularly active. We now find complaints made that ‘the master and merchants of the ship called the *Hercules*, bound for the plantations, have apprehended some free persons and put them aboard the said ship, upon pretext that they are vagabonds, or given their consent thereto.’ The Lords therefore commissioned two of their number to go aboard and inquire, and to liberate any persons improperly detained.—*P. C. R.*

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That indispensable conveniency of modern times, *the coffee-house*—which had taken its rise in London during the Commonwealth<sup>237</sup>—made its way into Scotland during the ensuing reign. The first time we hear of it north of the Tweed is when Colonel Walter Whiteford—are we to suppose some reduced soldier of the Scottish army of 1651?—was, on application, allowed by the magistrates of Glasgow to set up a house in that city ‘for making, selling, and topping of coffee.’—*M. of G.*

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Under the date noted, the Privy Council Record tells us a note-worthy tale of an Edinburgh coffee-house.

‘In Thomas Robertson his new land<sup>238</sup> near to the Parliament House,’ one James Row kept a coffee-house, probably the first such establishment known in Edinburgh. On Sunday the 28th of October 1677, he so far risked the wrath of his neighbours the Privy Councillors, as to have an unlawful preacher holding forth in his house during the time of ordinary service in the churches. Robert Johnston, town-major, who had authority from the Privy Council to see after such matters, came to the place with some of his myrmidons, and found the ‘turnpike’ or common stair filled with people, the overflowing of the congregation. Making his way to the ordinary door of Row’s house, and demanding admission, he was kept there for some time, during which he heard a great noise of furniture and of people within. On being admitted, he found that the minister and his auditors had been smuggled out by ‘a laigh or privat entry.’ Johnston then returned to the street, and was walking quietly at the Cross, when Row came up and ‘did upbraid, threaten, and abuse him for coming to his house, and told him that he durst not for his hanging come to his house again and do the like, or, if

he came that gait, he should not win so weel away.' Thus he railed at the town-major all the way 'from the Cross Well to the Stane Shop, shouting and crying so loud as the people gathered in multitudes,' though, seeing what sort of affair it was, they soon dispersed. Afterwards, Row went to the magistrates and told them 'he could not get God worshipped in his own house for that officious fellow the town-major, thereby insinuating that the due execution of his majesty's laws did prejudice the worship of God.'

Row was fined in five hundred merks, and obliged to ask Johnston's pardon; and immediately after, his coffee-house was ordered to be shut up.  
—*P. C. R.*

People were already accustomed to go to coffee-houses in order to learn the news of the day. In 1680, there was an order of the Privy Council, that 'the gazettes and news-letters read in coffee-houses, be first presented to the Bishop of Edinburgh, or any other privy councillor, that they may consider them, and thereby false and seditious news and slanders may be prevented.'—*Foun.* And not long after—namely, in January 1681—by order of the Privy Council, the magistrates of Edinburgh called all the masters of coffee-houses before them, and obliged them to come under a bond for five thousand merks to suffer no newspapers to be read in their houses but such as were approved of by the officers of state. [239](#)

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Mr Robert Kirk, minister of Aberfoyle, petitioned the Privy Council for liberty to print a translation, executed by himself, of the last hundred of the Psalms into the Irish tongue. The matter was referred to the approbation of the Earl of Argyle, and conferences were appointed about it, to take place at Inverary.

DEC. 11.

Mr Kirk's translation of the Psalms into Gaelic was an important contribution to the means for establishing Protestant Christian worship in the Highlands. On account of the proficiency which he thus shewed himself to possess in the Gaelic language, he was sent for to London, to superintend the printing of the Irish translation of the Bible, prepared under the direction of Bishop Bedel, and published in 1685. He died in 1692, and was buried in

the church-yard of Aberfoyle, under a stone bearing this inscription: 'Robertus Kirk, A.M. *Linguæ Hiberniæ Lumen.*'

'To suppress the impudent and growing atheism of this age,' Mr Kirk printed in 1691 a small treatise, 'An Essay on the Nature and Actions of the Subterranean (and for the most part) Invisible People, heretofore going under the Name of Elves, Faunes, and Fairies ... as they are described by those having the Second Sight, &c.,' which certainly forms a curious illustration of the *quasi* orthodox beliefs of a Highland minister of the seventeenth century. He describes the fairies as possessed of 'light and changeable bodies of the nature of a condensed cloud,' and living in little hillocks, where they are 'sometimes heard to bake bread, strike hammers, and do such like services.' Forced to shift their residences once a quarter, they are liable to be seen by second-sighted men on their travels at four seasons of the year; but are also often 'seen to eat at funerals and banquets.' At such festive meetings, each mortal guest is sometimes observed to have a double of himself 'perfectly resembling him in all points,' being one of these subterranean spirits. The 'reflex-man' or 'co-walker' haunts the original as his shadow, 'whether to guard him from the secret assaults of some of its own folks, or only as an apertful ape to counterfeit all his actions.' 'Being invited and earnestly required, these companions make themselves known and familiar to men; otherwise, being in a different state and element, they neither can nor will easily converse with them.'

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Mr Kirk informs us that these spiritual people live in fair well-lighted houses, where all the usual affairs of human life go on in an immaterial fashion. 'Women are yet alive who tell that they were taken away to nurse fairy children,' an image of themselves being left in their place. 'When the child is weaned, the nurse dies, or is conveyed back, or gets it to her choice to stay there.' One woman thus carried away returned after two years, was taken in by her husband, and had some children afterwards. In speech and apparel, the fairy folk resemble those under whose country they live; they 'wear plaids and variegated garments in the Highlands, and suanochs in Ireland.' Second-sighted men can invoke them at pleasure, but in general do not relish the sight of them, on account of the hideous spectacles they present, and their sullen and dismal looks. 'They [the spirits] are said to have many pleasant toyish books,' producing in them fits of corybantic

jollity, ‘as if ravished by a new spirit entering them.’ Other books they have of abstruse science, but no Bibles.

Men of the second-sight do not necessarily discover strange things when requested; only by fits and starts, ‘as if inspired with some genius at that instant, which before did lurk in or about them.’ Mr Kirk knew one whose neighbours often observed him disappear at a certain place, and some time after reappear at another, a hostile encounter with the spiritual people being the cause of his disappearance. These seers know what will happen to their friends, by means of the spirits with whom they have intercourse.

The people are said by Mr Kirk to believe that the souls of their ancestors dwell in the fairy hills, of which one was placed conveniently to each church-yard. He relates

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that, about the year 1676, ‘when there was some scarcity of grain, two women living at a distance from each other dreamed about a treasure hid in a certain fairy hillock. ‘The appearance of a treasure was first represented to the fancy, and then an audible voice named the place where it was to their waking senses. Whereupon both rose, and meeting accidentally at the place, discovered their design; and jointly digging, found a vessel as large as a Scottish peck, full of small pieces of good money, of ancient coin; which halving between them, they sold for dish-fulls of meal to the country people.’

Dr Grahame, the modern pastor of Aberfoyle, gives us<sup>240</sup> the traditionary account of the cessation of Mr Kirk’s life, in high keeping with the style of the mystic world which he endeavoured to expound. It is stated that, as Mr Kirk was one evening walking in his night-gown upon one of the fairy mounts above described in the vicinity of his manse, he sunk down in what seemed to be a fit of apoplexy, which the unenlightened took for death, while the more understanding knew it to be a swoon produced by the supernatural influence of the people whose precincts he had violated. After the ceremony of a seeming funeral, the form of Mr Kirk appeared to a relation, and commanded him to go to Graham of Duchray, who was the cousin of both, and tell him: ‘I am not dead, but a captive in Fairyland, and only one chance remains for my liberation. At the baptism of my posthumous child, I will appear in the room, when, if Duchray shall throw over my head the knife or durk which he holds in his hand, I may be restored to society; but if this opportunity is neglected, I am lost for ever.’



Duchray was apprised of what was to be done. The ceremony took place, and the apparition of Mr Kirk was seen while they were seated at table; but Duchray, in his astonishment, failed to perform the ceremony enjoined; consequently, Mr Kirk was left to ‘drie his weird’ in Fairyland.

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The death of the Rev. John Burnet, minister of Kilbride, is noted as arising from an extraordinary cause, though the immediate disease was jaundice. He ‘had a son lately dead before him, and seeing his son dissected, and the physicians finding fault with his noble [vital] parts, [the father] presently apprehends a faultiness in his own, which apprehension stuck with him even to his death, which physicians took to be the cause of his sickness; so strong is the power of apprehension.’—*Law*.

DEC. 22.

Died this year, by a fall from a horse, at Tangier in Morocco, John Earl of Middleton, governor of that establishment. Of a family of the minor gentry in Kincardineshire, he had entered life as a pikeman in Hepburn’s regiment in France, but soon was called to take part in the civil wars of his own country, serving first the English parliament and Scottish Estates, and afterwards proving an active and vigorous partisan of the king. His preferment after the Restoration as commissioner to the Scottish parliament, and his magnificent but drunken administration, with all the ills that flowed from it, are part of our national history. He is said by a contemporary to have been a man of ‘heroic aspect,’ of ‘manly eloquence,’ ‘happier in his wit than in his friends;’ of ‘natural courage and generosity;’ ‘more pitied in his fall than envied in his prosperity.’<sup>241</sup> Though disgraced, the king could not entirely desert one who had risked and done so much for him in his worst days; so he appointed him governor of Tangier—a civil kind of banishment, in which, we see, he died.

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It is scarcely wonderful that a man who went through such changes of fortune and so many strange adventures—taken prisoner at both Preston and Worcester, and escaping on both occasions from captivity—should have been the subject of

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some of the mystical speculations of his age. Aubrey relates: ‘Sir William Dugdale informed me that Major-general Middleton (since Lord) went into the Highlands of Scotland, to endeavour to make a party for King Charles the First. An old gentleman that was second-sighted, came and told him that his endeavour was good, but he would be unsuccessful, and, moreover, that they would put the king to death, and that several other attempts would be made, but all in vain: his son would come in, but not reign, but at last be restored.’ A second tale is told by Law and Wodrow,<sup>242</sup> and repeated by Aubrey, with slight variations, but to the following general purport: Being in the army of the Duke of Hamilton in 1648, he had for his comrade there a certain Laird of Balbegno, who seems to have been the neighbour of his family in Kincardineshire.<sup>243</sup> A few days before an expected battle, Middleton and Balbegno had a conversation about the risks they should run in fight, and agreed that, if one should die, leaving the other in life, he should return, if possible, and give the survivor some account of the other world. Balbegno fell in the battle. Middleton thought no more of the promise of his deceased friend, till some time after, when a prisoner in the Tower of London, and in some fear for his life, he one night was sitting alone in a room, ‘under three locks,’ and with two sentinels outside the door. Chancing to read a little in the Bible, he had no sooner closed the volume than, looking towards the door, he saw a human figure standing there in the shadow of his bed. ‘He called out: “Who is there?” The apparition answered: “Balbegno.” “That cannot be,” said Middleton, “for I saw him buried after he was slain in battle!” “Oh, Middleton,” said Balbegno, “do you not mind the promise I made to you when at such a place, such a night, on the Border?” and with that came forward and took him by the hand.’ Middleton, in narrating the circumstances, declared that Balbegno’s hand ‘was hot and soft, just as it used to be, and he in his ordinary likeness.’ Instead of giving him any intelligence regarding the dead, the spirit told him he should make his escape in three days—he should in time be a great man—but let him beware of his end! When Balbegno had delivered this message, he, according to Aubrey, gave a frisk, and said:

‘Givanni, Givanni, ’tis very strange

In the world to see so sudden a change!’<sup>244</sup>

and then vanished. In three days, accordingly, Middleton escaped in his wife's clothes. He did afterwards become a great man, and his end was tragical, for, 'upon a certain time, he proving a young horse, was cast off by him, and in the fall hurt himself exceedingly, so that he sickens and dies of it.'<sup>245</sup>—*Law*.

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At this time commenced a stormy period which was long memorable in Scotland. It opened with a tempest of east wind, which strewed the coasts of Northumberland and Berwickshire with wrecks. During February, the rough weather continued; and at length, on the 20th of the month, a heavy fall of snow, accompanied by vehement frost, set in, which lasted for thirteen days. This was afterwards remembered by the name of the *Thirteen Drifty Days*. There was no decided improvement of the weather till the 29th of March. 'All fresh waters was frozen as if in the midst of winter; all ploughing and delving of the ground was marred till the aforesaid day; much loss of sheep by the snow, and of whole families in the moor country and highlands; much loss of cows everywhere, also of wild beasts, as doe and roe.'—*Law*. This storm seems to have fallen with greatest severity upon the Southern Highlands. It is stated in the council books of Peebles, that 'the most part of the country lost the most part of their sheep and many of their nolt, and many all their sheep. It was universal, and many people were almost starved for want of fuel for fire.'

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James Hogg has given a traditionary account of the calamity.<sup>246</sup> 'It is said that for thirteen days and nights, the snow-drift never once abated: the ground was covered with frozen snow when it commenced, and during all that time the sheep never broke their fast. The cold was intense to a degree never before remembered; and about the fifth and sixth days of the storm, the young sheep began to fall into a sleepy and torpid state, and all that were affected in the evening died over-night. The intensity of the frost wind often cut them off when in that state quite instantaneously. About the ninth and tenth days, the shepherds began to build up huge semicircular walls of their dead, in order to afford some shelter for the remainder of the living; but they availed but little, for about the same time they were frequently seen

tearing at one another's wool with their teeth. When the storm abated on the fourteenth day from its commencement, there was, on many a high-lying farm, not a living sheep to be seen. Large mis-shapen walls of dead, surrounding a small prostrate flock, likewise all dead, and frozen stiff in their lairs, was all that remained to cheer the forlorn shepherd and his master; and though on low-lying farms, where the snow was not so hard before, numbers of sheep weathered the storm, yet their constitutions received such a shock that the greater part of them perished afterwards, and the final consequence was, that about nine-tenths of all the sheep in the south of Scotland were destroyed.

'In the extensive pastoral district of Eskdale Moor, which maintains upwards of 20,000 sheep, it is said none were left alive but forty young wedders on one farm, and five old ewes on another. The farm of Phaup remained without a stock and without a tenant for twenty years subsequent to the storm. At length, one very honest and liberal-minded man ventured to take a lease of it, at the annual rent of a *gray coat and a pair of hose*. It is now rented at £500. An extensive glen in Tweedsmuir, belonging to Sir James Montgomery, became a common at that time to which any man drove his flocks that pleased, and it continued so for nearly a century. On one of Sir Patrick Scott of Thirlestane's farms, that keeps upwards of 900 sheep, they all died save one black ewe, from which the farmer had high hopes of preserving a breed; but some unlucky dogs, that were all laid idle for want of sheep to run at, fell upon this poor solitary remnant of a good stock, and chased her into the lake, where she was drowned.'

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The *Thirteen Drifty Days* are the means of bringing the ill-fated Duke of Monmouth before us in an extraordinary relation of circumstances. He and his duchess, in December 1675, obtained a licence to import 4800 nolt of a year old, and 200 horses, 'to be employed in stocking their waste lands in the south part of this kingdom,' the bringing in of live-stock from Ireland being then forbidden by act of parliament. Walter Scott of Minto, sheriff-depute of Roxburghshire, became caution that the licence should not be exceeded. But 120 of the oxen were proved to have been above a year old; and the Council, accordingly (August 3, 1676), fined Scott in £200 sterling. —P. C. R.

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Agnes Johnston, of Airth in Stirlingshire, an unmarried woman about fifty years of age, was tried in Edinburgh for the murder of an infant named Lamb, her own grand-niece. Living with the parents of the deceased, she took an opportunity, when there was nobody in the house but herself and the child, to take the infant out of its cradle, lay it in a bed, and cut its throat. The confession of the wretched woman bore that, for some time before she committed the deed, she felt a spirit within her *that did draw her neck together*, and which frequently tempted her to make away with herself. Once she actually did attempt to drown herself in a well at Clackmannan; but she cried to a woman near by, who helped her out. She had never told any one of her temptations, *nor had she power to tell*; but, her fits being thought fictitious by her relatives, and they having consequently threatened to turn her out of their house, she had in revenge resolved to destroy their child. Agnes, who would now be regarded as a person under hallucinations, expiated her sad act two days after in the Grassmarket.<sup>[247](#)</sup>

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Law, in noting the death of an eminent physician at this time, mentions the death, some time before, of another, Dr Purves, from *an extreme cold*, and because he ‘could not be kept in heat,’ ‘God letting us see that all means applied for our health without his blessing them, are ineffectual.’ Another writer of this age adverts to a Mr Dalgliesh, ‘curate’ of Parton, who ‘was so chilly, that he wore twenty fold of cloth on him all the year, and furs on his head day and night.’<sup>[248](#)</sup>

FEB.

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An act of grace towards the Presbyterians, passed at this time with the hope of conciliating them, had the effect of encouraging that disposition to private religious

MAR. 4.

meetings, or conventicles, which for some years had given the government so much trouble. 'From that day Scotland broke loose with conventicles of all sorts, in houses, fields, and vacant churches.... In Merse, Teviotdale, the Borders, Annandale, Nithsdale, Clydesdale, Lothian, Stirlingshire, Perthshire, Lennox, Fife, they fixed so many posts in the fields, mosses, muirs, and mountains, where multitudes gathered almost every Sabbath,' until the time of Bothwell Bridge. 'At these meetings, many a soul was converted to Christ, but far more turned from the bishops to profess themselves Presbyterians. The parish churches of the curates [that is, the regular parish clergy] came to be like pest-houses; few went to any of them, none to some, so the doors were kept locked. The discourse up and down Scotland was the quality and success of last Sabbath's conventicle, who the preachers were, what the number of the people was, what the affections of the people; how sometimes the soldiers assaulted them, and sometimes killed some of them; sometimes the soldiers were beaten, and some of them killed.'

There appears to have been a band of about forty ministers who set the government at defiance in this manner, most of them young and active men. In the large towns, house conventicles prevailed; but in the country, 'the people had a sort of affectation to the fields above houses.' There came to be a regularity in these affairs; when the people in a rural district wished to have a conventicle minister, they sent to town to engage one. Danger made the congregations come armed. 'Not many gentlemen of estates durst come, but many ladies, gentlewomen and commons, came in good multitudes. Wonderful conversions followed upon the sermons. People discovered their own secret scandals. Sometimes people of age bemoaned their want of baptism, and received it at these occasions. Sometimes a curate would come, and after the first sermon, stand up and profess his repentance, and afterwards would consecrate himself to that work by a solemn field-preaching. So the work of the gospel advanced in Scotland for several years.'—*Kir*.

1674.

A strange scene was presented in the Parliament Close in Edinburgh. As the members of the Council approached their house of meeting, they found fifteen ladies prepared to present a petition, 'desiring that a gospel ministry might be presented for the starving congregations of Scotland.' There were present amongst them the widows of Mr Robert Blair and Mr John Neave, noted as entirely 'faithful' clergymen during the troubles; Lady Crimond, a daughter of Johnston of Warriston; a sister-in-law of the Laird of Dundas and a sister of the Earl of Melville; the rest being generally the wives of Edinburgh citizens. Seeing it was dangerous for men to appear in the form of remonstrants, these ladies had volunteered to undertake the duty. The singularity of the occasion had brought together a crowd, which filled the close, and which is said to have comprised a large proportion of the fair sex. The press was so great and so tumultuous around the councillors, that they could scarcely make their way to the council-house. As the chancellor descended from his coach, Archbishop Sharpe went close behind him, fearing bodily harm. It is alleged by Sir George Mackenzie that a design for doing some serious injury to the primate was entered into on this occasion, and that the ladies were to 'set upon him' when a certain member of the corps should raise her hand as a signal; but this would need confirmation. He was saluted with reproaches and cries of Judas! and Traitor! but the only approach to personal violence was a slap on the neck from one of the sisterhood, who at the same time took leave to tell him that *that* (meaning the neck) should yet pay for it ere all was done! One of the ladies, presenting her petition to the chancellor, he received it with a courteous salute, and listened to her with an inclined head till he got to the door of the council-chamber. Lord Stair tossed his copy to the ground, whereupon the fair petitioner reminded him he had not acted in that manner with the famous Remonstrance of 1651, which he helped to pen.

JUNE 4.

1674.

The Council took this matter in high dudgeon. They resented the personal disrespect of the scene in the Parliament Close, and they denounced the matter of the petition as tending to stir up hatred against his majesty's government. For one thing, it 'most falsely and scandalously bears that they [the supplicants] had long been deprived of the inestimable blessing of the public worship and ordinances of God, whereas it is notour that his majesty's subjects do enjoy [those blessings] in great purity and peace,

[there being] ane orderly ministry authorised and countenanced and established by law.’ In short, it was a seditious libel, calling for sharp punishment. Two of the ladies being brought before the Council, refused to take an oath or give evidence; the rest failed to appear on citation. The whole were put to the horn as rebels, and three suffered a short confinement.—*Kir. P. C. R.*

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The Macleans had been a loyal clan, fighting with Montrose for the king, and suffering not a little in the royal cause. What the Campbells had been during the same period need not be particularised. Yet, when the clemency of the government had restored the Argyle estates to the earl, he was not the less disposed on that account to urge certain claims of his family upon its more loyal neighbours. Fountainhall speaks of them as ‘patched-up claims and decreets of his own courts for contumacy;’ while the fact was that the Macleans durst not make appearance in the grounds of their enemy, ‘and pretended casualties of superiority, as escheats, wards, non-entries, reliefs, &c.,’ a particularly hard case, as these arose in many instances from the deaths of Macleans in the king’s service, while their superior, the late Marquis of Argyle, had been ‘the great transgressor.’ Argyle, however, according to the alleged genius of his family in that age, ‘walked warily in all he did,’ and, the Macleans imprudently despising his efforts, and neglecting legal measures of resistance, he succeeded ultimately in obtaining a letter of fire and sword against them.<sup>249</sup> Behold, then, in the summer of this year, a clan muster of the Campbells and their connections, to the amount of 2000 men, designed to enforce certain payments from the Tutor of Maclean in Mull—the Maclean of the day being a minor under the care of an uncle so called. The Tutor, on his part, has seven or eight hundred kilted followers to make resistance; but either his means were inadequate, or his measures had been ill concerted. The earl ‘besetting the isle with ships and boats, enters at three several places; at one place, Lord Niel, the earl’s brother, lights upon the cows which the Highlanders had driven to that place for safety, and caused cut down and hough [hamstring] a considerable number of them; which occasioned a great cry by the women

1674.



and children keeping them, and running to their husbands and friends to acquaint them how it stood; whereupon the islanders, being amazed, fainted and came to a composition of the matter. The earl gets the castle of Duart into his own hand, and mans it for himself. They all yield and submit, and promise payment and subjection to the said earl.’—*Law*. See further transactions next year.

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There was no shearing this year till October, and much of the corn green when cut even then. Consequently, meal, though of bad quality, went to a pound sterling the boll. ‘Yet there was not any time cows found fatter than in this harvest, and no scarcity either of cows or sheep for slaughter. Thus the Lord, who casts down with one hand, lifts up with the other.’—*Law*.

OCT.

It is rather surprising that sheep and cattle should so quickly have become plentiful after the great destruction of such stock from the storms of the preceding January. But in as far as the fact was true, the good condition of the animals might be readily accounted for by the very humidity of the summer and autumn, producing an abundance of herbage, while destructive to cereal crops.

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1674.

The winter of 1674-5 is stated to have been singularly mild and free of rain in Ireland, and probably it was of the same character in Scotland. In our country, as in Ireland, there was a good harvest; yet victual continued to be dear by reason of the stock of the preceding scanty season being so thoroughly exhausted. Another winter of extraordinary mildness followed. The weather, at the end of November and beginning of December, is described as very warm. Many people fell sick, and died. A feverish cold—what might now be called influenza—was epidemic in town and country, ‘whereof moe die than was observed in other years before.’—*Law*.

1675.

Patrick Walker tells us that one night in August of this year, but more probably the fact occurred in 1674, Mr Donald Cargill, being at Cowhill in Livingstone parish, saw a great mist come on, and told the family to be careful of it, keeping close within their houses. He also desired them to mark where it stood thickest, 'for there they would see the effects saddest.' There was a small place called Craigs, where they observed the mist unusually thick, and, within four months after, thirty persons died there. It is probable that Mr Donald's predictions in this case were founded upon simple observation of natural facts.

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The Macleans having failed in their agreement with the Earl of Argyle, and set his claims at nought, his lordship now prepared a second expedition against Mull, and this time he added to his own forces some regular soldiers and militia. The Macleans, on the other hand, had obtained assistance to a considerable amount from Macdonnell of Glengarry, Cameron of Locheil, and Maclean of Lochbuy. There were probably not less than fifteen hundred armed Highlanders on each side.

SEP.

The Campbells, proceeding in a great fleet of ships and *birlins*, under the command of the earl's brother, Lord Niel, encountered a severe storm on the 21st and 22d of September, by which they were damaged and driven back, though fortunately no lives were lost. 'This storm was so great, that ... great oaks were blown up by the roots ... old trees of two hundred years standing broken in the midst ... and the corns so shaken, that the people got little more than straw to cut down. A rumour went that there was a witch-wife, named Muddock, had promised to the Macleans that, so long as she lived, the Earl of Argyle should not enter Mull; and indeed many of the people imputed the rise of that great storm unto her paction with the devil, how true I cannot assert.'—*Law*. Might not the autumnal equinox somewhat better account for the fact?

1675.

The Earl of Argyle was so far baffled by this storm, that he had to give up for the meantime the design of vindicating his rights by force.

We find next year the cause of the Macleans taken up by the Earl of Seaforth, the Marquis of Athole, and some other chiefs, by whose means a suspension of Argyle's powers was obtained, and his account subjected to a severe reckoning, 'which he was most averse to.' They also hounded out a creditor of his own upon him, and he was obliged to make a precipitate retreat from Edinburgh to escape caption, and to carry off the furniture of his Stirling mansion to a secure place in the Highlands, lest it should be seized for the debt.

The earl and the Macleans are found next year again at legal tilt, but with no particular result that appears. His own forfeiture for treason, which soon after occurred, probably saved them from further annoyance.

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The winter of 1675-6 being singularly mild, was followed by a favourable spring, and there consequently was an abundant harvest. The characteristic mutability of our climate was, however, shewn immediately after. There was a drought in latter autumn, and about the 18th of December the temperature fell to an extraordinary degree, 'the most aged never remembered the like. The birds fell down frae the air dead; the rats in numbers found dead; all liquors froze, even the strongest ale; and the distilled waters of apothecaries in warm rooms froze in whole, and the glasses broke.'—*Law*.

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Two boys, named Clark and Ramsay, the one seventeen, and the other fifteen years of age, suffered in Edinburgh for an offence which had perhaps been suggested by the rumours attending the celebrated case of the Marchioness de Brinvilliers. John Anderson, a merchant, the master of Ramsay, had long been pining under an enfeebling malady, which was likely to have in time brought him to the grave. During his sickness, Ramsay, in conjunction with his companion Clark, purloined several articles of value belonging to his master, trusting that he would die,

and that consequently no discovery would take place. Finding Anderson's disease taking a turn, the young thieves became alarmed; and took into counsel another boy named Kennedy, an apothecary's apprentice, who supplied them with a drug calculated to keep up the malady under which Anderson had suffered. The man receiving this in small doses, grew ill again, and in time died. No suspicion of foul play was entertained, and apparently the two lads would have been allowed to remain unnoticed, if they had not offered for sale a gold chain which formed part of their plunder. Being detained and questioned, they fell into such terror, that an ingenuous confession of their guilt was easily obtained from them, accompanied with many expressions of sorrow. They were hanged, 'both in regard to the theft clearly proven, and for terror that the Italian trick of sending men to the other world in figs and possets might not come over seas to our island.' Kennedy, 'an outed minister's son,' was detained for want of proof, and ultimately banished.—*Foun*.

Wodrow adds a tale of wonder, as told him by his mother-in-law, Mrs Warner, who had visited the two boys in prison. After the burial of Anderson, his nephew, Sir John Clerk of Pennycuick, 'was one night lying in his own house, in a room with some others, sleeping. In his sleep he imagined he heard a voice calling to him: "Avenge the blood of your uncle!" and wakened, and asked if any of them had been speaking to him. They declared not. He composed himself to sleep, and had it repeated; and he asked the former question the second time, and those in the room denied, as above. He slept again, and had the same repeated the third time; on which he got up, and went immediately to Edinburgh and made a particular inquiry into the circumstances of his uncle's death, at the two apprentices, but found nothing to fix on at this time. In a little, Sir John met with a medal in a goldsmith's shop which he knew to belong to his uncle. This he traced up till he landed it on the apprentices, who, upon this, confessed they had opened their master's cabinet and taken out money, &c.'

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Mr James Mitchell, who made an attempt on Archbishop Sharpe's life in 1668, and wounded the Bishop of Orkney, was taken prisoner in February 1674, and being

1676.

subjected to examination, and promised his life if he would confess, did make a confession—which, however, he afterwards retracted before the Court of Justiciary, having in the interval been told that nothing could be proved against him, and warned that perhaps the promise made to him might not be respected. This conduct put the government to a difficulty, and irritated them the more against him. At length, after keeping him in a very hard confinement for two years, they resolved to subject him to the torture, as the only means left to bring him back to his confession.

It is not proposed here to detail the sufferings of the wretched Mitchell; but those who know the courts of law, as they now exist, will probably view with some interest the arrangements that were made beforehand for that kind of procedure.

The resolution having been formed to put Mitchell to the torture of the *boot*, the Council ‘do hereby nominate the Earls of Linlithgow, Wigton, Seaforth, the Lords Ross and Treasurer Depute as a committee of Council to meet on the 24th day of January next, at nine o’clock in the forenoon in the Parliament House, where the justices do ordinarily hold their courts, and to cause put the said Mr James Mitchell to the question and torture concerning his being in the rebellion in the year 1666, and appoints the commissioners of justiciary in a fenced court to be present then and assistant, in their robes, with their clerks and other officers of court; and recommends to the said committee, or any three of them with the commissioners of justiciary, to meet before that time and consider of the way and manner of the said torture,’ &c.

JAN. 6.

The Council afterwards ordered that a bailie of Edinburgh should be present, ‘to receive and put in execution such orders as the lords shall think fit to give.’—*P. C. R.*

The unfortunate Mitchell sustained the torture with surprising firmness, and without making any admission criminative of himself. A proposal being afterwards made to torture him in the other leg, one of his friends (so the report went) dropped an anonymous hint to Archbishop Sharpe, that if he persisted in the resolution, *he should have a shot from a steadier hand*; ‘whereupon he was let alone, but still kept in prison.’—*Law*. At length the unhappy man was brought to a regular trial, when the state-officers all denied in the witness-box that fact of the promise of life upon confession,

which their own record bore, and which Mitchell alleged had taken place. It is just possible that the record misrepresented what took place; but it is very difficult to make so largely charitable an allowance. Mitchell suffered in the Grassmarket (January 1678).

‘A star was seen at twelve hours of the day by a great company of people met for sermon on Gargunnock Hills, and that when the sun was shining.’—*Law*.

1676. JULY 9.

One John Scott, a Quaker in Leith, was fined by Bailie Carmichael there, in a hundred dollars, and banished from the town, for brewing upon the Sunday, and answering, when challenged for it by the bailie and Mr Hamilton the minister, that ‘he might as weel brew on the Sunday as Mr Hamilton might take money for going up to a desk, and talking and throwing water upon a bairn’s face.’ He appealed to the Privy Council against the sentence as over-severe and beyond the power of the magistrate; but ‘he was ill set, for he had both the magistracy and the clergy—who solicited strongly—against him, for both of them would be baffled if the sentence were found unjust. The Council ratified the bailie’s sentence ... whereupon Bailie Carmichael arrested and seized eighty bolls of malt, the said Scott had paid ten or eleven pound the boll for, when victual was dear, and caused apprise and judge it to him, for his hundred dollars.’—*Foun*.

SEP.

For several years there had been a remarkable lull in the spiritual world, and, whether from the judicious mildness of the government in ordering that no women should be condemned for witchcraft except upon voluntary confession, or any other cause, witch cases had wholly ceased. All at once, the devil’s work recommenced, and a series of dismal tragedies ensued. It seems to have been primarily owing to a vagrant girl named Janet Douglas, who appeared deaf and dumb, and who may be reasonably set down as one of

DEC.

those singular young persons who, acting under a morbid love of mischief, have at the same time marvellous powers of deception. Whether she was the same person who figures in the anecdote below,<sup>250</sup> we have no means of ascertaining.

Sir George Maxwell of Pollock had for some weeks been very unwell, with a pain in his side and one in his shoulder. The illness had first come upon him suddenly in the night, when at Glasgow, in the form of a violent heat, attended with pain. At the time noted in the margin, Janet Douglas came to the neighbouring village, and began to frequent Pollock House. Attracting the attention of Sir George's sister and daughter, she endeavoured to apprise them by signs that, at a certain cottage not far off, there was a picture of wax turning at a fire; and she expressed in her imperfect way a wish that a couple of men should go with her thither. Lady Maxwell, not being inclined to superstition, would have denied the girl's request; but the two other gentlewomen consented. So Janet went away with two men-servants, and straight conducted them to the cottage of an old woman of evil fame, named Janet Mathie, whose son the laird had some time before imprisoned for stealing his fruit. 'She going in with the men, the woman on some occasion stepping to the door, the dumb lass instantly put her hand behind the chimney, and takes out a picture of wax wrapped in a linen cloth, gives it to the men; away they all come with it, and let the gentlewomen see it. They find two pins stuck in the right side of it, and a pin on the shoulder downward, which they take out, and keeps quiet; and that night the laird had good rest, and mended afterward, though slowly, for he was sore brought down in his body: and in two or three days they made him understand the matter. The woman is apprehended, and laid up in prison in Paisley.' On being searched, several *witch-marks*—that is, spots insensible to pain—were found upon her.

1676.

On the 4th of January, Sir George's illness recurred with the same violence as before, and his face assumed the leaden hue of death. Amidst the anxieties which this occasioned, the dumb girl sent to inform the family that John Stewart, Mathie's son, had made a new image of clay, for the purpose of taking away Sir George's life. Two gentlemen went next day with the girl to Mathie's cottage, and keeping her at a distance, but acting under her directions, found

1677.

such an image under the bolster of a bed, with three pins sticking in it. The young man and his sister Annapple were immediately apprehended. From that day, it was said that Sir George began to recover his health.

Stewart at first denied all concern in the images, but, on witch-marks being found on his person, he was 'confounded,' and joined his sister in a confession, which described witch-conventions in their mother's house, along with 'a man dressed in black, with a blue band and white hand-cuffs, with hoggars over his bare feet, which were cloven!' Three women of the neighbourhood, Bessie Weir, Margaret Jackson, and Marjory Craig, were accordingly apprehended and examined, when the second gave a confession to much the same effect, but the other two proved 'obdurate.'

1677.

In the subsequent judicial proceedings, Annapple Stewart gave a clear statement regarding the making of the first wax image in October last in the presence of the Black Man, her mother, and the other three women. They bound it on a spit, and turned it round before the fire, saying: 'Sir George Pollock! Sir George Pollock!' The young man, who was not then at home, had returned and been present at the making of the second image in January. 'After he had gone to bed, the Black Man came in, and called him quietly by his name, upon which he arose from the bed and put on his clothes. Margaret Jackson, Bessie Weir, and Marjory Craig did enter in at the window in the gable.... The first thing that the Black Man required was that he should renounce his baptism and deliver up himself wholly unto him, putting one of his hands on the crown of his head, and the other to the sole of his foot ... promising he should not want any pleasure, and that he should get his heart sythe on all that should do him wrong. [All having given their consent to the making of the clay image, which was meant as a revenge for Sir George Maxwell taking away his mother], they wrought the clay, and the Black Man did make the head and face, and the two arms. The devil set three pins in the same, one in each side, and one in the breast; and John did hold the candle all the time the picture was making.... The picture was placed by Bessie Weir in his bed-straw.' On this occasion, they had all had nicknames given them by the devil, who himself bore the name of Ejool. [251](#)

It is noted that when the girl, after confession in bed in Pollock House, was asked what the devil's name had been to her, 'she, being about to tell, was



stopped, the bed being made to shake, and her clothes under her blown up with a wind.'

When the two young people had been committed to Paisley prison, Janet, their mother, desired to see her son, and the request being granted, 'they make a third and new picture of clay, which the dumb lass again discovers.' It was supposed that this was intended for Sir George's daughter-in-law, who had taken an active interest in detecting the diabolic conspiracy, and who fell ill about this time.

1677.

In consideration of her nonage and penitency, Annapple Stewart was not brought to trial, though retained in prison. On the 15th of February, the rest of the party were tried and condemned, Janet Mathie, Bessie Weir, and Marjory Craig continuing to deny their guilt to the last. The obduracy of Mathie was considered the more horrible, as her two children seriously exhorted her to confession, Annapple with tears reminding her of her many meetings with the devil, but all in vain. The four women and the boy actually suffered in Paisley (20th February). Mathie was first hanged, and then burned, along with the wax and clay effigies. When Weir, the last of the four, was turned off the gallows, 'there appears a raven, and approaches the hangman within an ell of him, and flies away again.'—*Law*.

It is perhaps the most singular fact regarding this case, that the particulars of it are narrated with all seriousness by Sir George's son and successor, Sir John Maxwell, who was subsequently Lord Justice-clerk—that is, supreme criminal judge in Scotland. He intimates not the least doubt of any of the facts, neither of any of the popular inferences from them. Other intelligent men in that age were struck by the manner in which the doings of the witches were detected, and Janet Douglas was for some time the subject of general attention. In the same month which saw the witches done to death on Paisley green, she detected a similar conspiracy against Mr Hugh Smith, the minister of Eastwood, who 'was much afflicted with pain and sweating, to the changing of half-a-dozen shirts some days, and was brought very low, but after the discovery, and the effigy gotten, and the prins taken out, grew well again.' It was given out regarding the girl, that she understood any language in which she was addressed. When she had somewhat recovered the use of her own tongue, which was about two months after these events,

1677.

she told that three years before, she had had ‘an impression on her spirit’ to come to Pollock. ‘Being asked how she had knowledge of detecting witches and other secrets, she declared that she knew not from what spirit; only things were suggested to her; but denied that she had any correspondence with Satan.’—*Law*. According to Sir John Lauder, she stated that ‘she had all things revealed to her in her sleep by vision.’ This learned gentleman adds: ‘What made her very suspect to be haunted only by a familiar, was her dissolute idle life, having ... not so much as a show or semblance of piety in it, but much lightness and vanity.’<sup>252</sup>

The Privy Council, hearing much rumour of these things from the west, sent orders to search for and apprehend Janet Douglas, and she was brought to Edinburgh in May, and lodged in the Canongate Tolbooth. People flocked to see her, and she began to exercise her art of witch-finding amongst them, but with no particular effect. In June, nevertheless, five or six women of the west, whom she had detected in killing Hamilton of Barns by a wax image, were burned for their imaginary crime at Dumbarton. Next month we find a reference to her in another case.

Two sons of Douglas of Barloch having been drowned in crossing a river at one time, the father was induced by Janet Douglas to believe that the calamity was an effect of witchcraft. Barloch consequently caused John Gray, Janet M’Nair, Thomas and Mary Mitchell, to be apprehended and carried to Stirling Tolbooth. There, ‘their bodies being searched by the *ordinar* pricker, there were witch-marks found upon each of them, and Janet M’Nair confessed that she got these marks from the grip of a grim black man, and had a great pain for a time thereafter.’ After keeping these four persons in jail on his own charges for fourteen weeks, Barloch found the expense more than he was able to undergo, ‘being but a gentleman of a mean fortune;’ and on his petition, the Council ordered (July 5, 1677) that the magistrates of Stirling should in the meantime ‘entertain the prisoners.’ Against this ordinance, the magistrates immediately reclaimed, ‘seeing it is a great burden to the town, who have so many other contingencies to undergo;’ and the lords, reconsidering the matter, commissioned the Lairds of Kier, Touch, and Herbertshire, to examine the prisoners, and ‘try what they find anent these persons’ guilt of the crime of witchcraft, and report.’

1677.

What was ultimately done with the four Stirling prisoners, we do not learn. As to Janet Douglas, the Council began to feel that she was something of an inconvenience in the country; so they determined to banish her beyond seas. At first, no skipper could be found who was willing to take her in his vessel; some were disposed to set sail without a pass, to avoid being compelled to take such a dangerous commodity on board. But Janet was ultimately banished and heard of no more.

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Lord Fountainhall notes a remarkable homicide as taking place this winter, at the village of Abernethy in Fife. A butcher and another man, sitting in an ale-house together, quarrelled, and in a sudden fit of passion, the butcher inflicted a mortal stab upon his companion. Some gentlemen sitting in a neighbouring room heard the fray, and, rushing in, found the butcher with the bloody knife in his hand. Excited by the atrocity of the deed, they hurried off the murderer to the regality gallows, and instantly hanged him, though they had no sort of authority to act in that manner. They probably acted upon a popular notion, that a murderer taken *red-hand*, or fresh from the act, may be instantly done to death by the bystanders; which appears, however, to be a mistake.

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1676-7.

The celebrated Beau Fielding is supposed to have at this time paid a visit to Edinburgh, while in difficulties on account of his suspected share in the murder of Robert Perceval—a young libertine found dead one morning near the Maypole in the Strand. He and two Scotch gentlemen of his own sort, being met one evening at their cups in a house in Edinburgh, were reputed to have drunk three toasts, ‘horrid to think on’—namely, the Trinity, their own confusion, and the devil.—*Law*. The allegation is but too credible, for about this time there begins to appear an extreme form of profligacy and impiety—confined, indeed, to a few of the upper classes—such as had never before been known in Scotland.

1677. JAN.

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The system formerly adopted for keeping peace and maintaining law in the Highlands—namely, the making heads of clans answerable for their dependents and inferiors—was now declared to have been found not to answer, ‘in respect the said duty doth lie upon many persons in general, and no person doth make it his work.’ Consequently, ‘the insolency and villainy of thieves, sorners, and other wicked and lawless persons do abound and increase, to the affront of our authority and oppression of the lieges.’ The government therefore deemed it necessary to try the effect of a different plan, and granted a commission to Sir James Campbell of Lawers to use means for apprehending thieves and broken men in the Highlands, in order that they might be brought to justice. It was also arranged that when any cattle or other property was stolen, Sir James should make restitution to the owners, only taking them bound to support him in the legal processes by which he should endeavour to rescue the goods from the thieves, and get due punishment inflicted. All sheriffs, chiefs, landlords, and others were enjoined to assist and countenance Sir James in this thief-taking commission.

JAN. 18.

1677.

Eneas Lord Macdonald was afterwards conjoined with Sir James Campbell; and for his service during the year ending the 1st of September 1677, Sir James was ordered the sum of *one hundred and fifty pounds*! But this seems to have been regarded as rather scanty remuneration, and it was (September 8, 1677) decreed that for the future there should be a salary of two hundred pounds to ‘ilk ane of the said two persons.’

As necessary to support the two gentlemen in their task, a garrison of a hundred soldiers was sent to Inverlochy, care being previously taken to have dwellings built for them, ‘as the house there is altogether out of repair and unlodgeable.’ The Marquis of Huntly and the Laird of Grant were called upon to exert themselves to convince the minor chiefs in their several districts that the government was now determined to put down the lawless system in the Highlands. It was intimated by other means that letters of fire and sword would be granted against any district in which gentler means had been found unavailing.

In February 1680, James M'Nab in Achessan represented to the Privy Council that, being engaged by Sir James Campbell of Lawers to assist in apprehending Highland robbers, he had, at the hazard of his life, taken John, Callum, and Duncan M'Gibbons, and delivered them to the governor of the garrison at Finlarig—an unusually perilous piece of duty, for which he had been promised the sum of eight hundred merks, now refused by Sir James. As a plea at law 'against a person of such dexterity' would have exhausted the reward, he had had no alternative but to apply to the Council. Sir James was ordered to pay the reward as claimed.—*P. C. R.*

1677.

A very compendious view of some of the customs of the Highlanders in the seventeenth century was given by Mr John Fraser, an Episcopal minister, author of a *Treatise on Second-Sight*: 'In general they were litigious, ready to take arms upon a small occasion, *very predatory*, much given to tables, carding, and dicing. Their games was military exercise, and such as rendered them fittest for war, as arching, running, jumping, with and without race, swimming, continual hunting and fowling, feasting, especially upon their holidays, the which they had enough, borrowed from popery. Their marriage and funeral solemnities were much like [those of] their neighbours in the low country; only at their funerals, there was fearful howling, screeching, and crying, with very bitter lamentation, and a complete narration of the descent of the dead person, the valorous acts of himself and his predecessors, sung with tune in measure, continual piping, if the person was of any quality or professing arms. Their chiliarchy had their ushers that gaed out and came in before them, in full arms. I cannot pass by a cruel custom that's hardly yet extinct. They played at cards or tables (to pass the time in the winter nights) in parties, perhaps four on a side; the party that lost, was obliged to make his man sit down on the midst of the floor; then there was a single-soled shoe, well plated, wherewith his antagonist was to give him [the man] six strokes on end, upon his bare loof [palm], and the doing of that with strength and art was thought gallantry.'

[253](#)

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A travelling doctor, styling himself Joannes Baptista Marentini, under licence from the king, and with the

FEB. 1.

permission of the magistrates of Edinburgh, had a stage erected in that city, 'for practising his skill in physic and otherwise.' His term of permission being about to expire, and the magistrates unwilling to renew it, he found it necessary to apply to the Privy Council for a further term, on the ground that he needed some more time for effecting the cure of certain persons under his hands. The Council gratified him with a prolongation till the 1st of April, in order that, 'having finished the said undertaken cures, he may the more freely, and with the greater approbation, depart from this city to some other.'

A little case of the heart comes in as a pendant to the above narrative. Four days after the end of the term assigned in the act of the Privy Council, James Baynes, wright, came before that august body with a petition, setting forth how 'one Monsieur Devoe, servant to the mountebank who was lately in this place, hath, by sinistrous and indirect means, secured and enticed the petitioner's daughter and only child to desert her parents, and to live with him upon pretence of a clandestine marriage.' There being reason to fear that he might escape, unless very prompt measures were taken, the Council granted warrant to have the offender imprisoned in the Tolbooth. After escaping from these matrimonial troubles, Devoe settled in Edinburgh as a dancing-master, and we shall find his name coming before us several times on other occasions.

1677.

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The deaf and dumb Laird of Duntreath, a noted person in those days, being at Paisley, 'made signs to some of great fightings and troubles to be in the land in a few months.'—*Law*.

FEB.

This gentleman, who was said to be, notwithstanding his deficiencies, of a very devout frame of mind, had in the preceding December made a more special divination. 'There was one of his acquaintance went forth to a water at a good distance frae him upon the ice, and had fallen in; and he, at that instant of time, gave warning of it by a sign.' On another occasion, when the Dumb Laird was sitting in his own house at Duntreath, 'two of his neighbours falling out at two miles' distance from him, the one striking the

other with a whinger in the arm, he, in the same instant of time, makes a sign of it.'

It was a general belief that many persons born deaf and dumb possessed this supposed gift of clairvoyance or second-sight. One, attended by another man, coming to the Boat of Balloch, at the foot of Loch Lomond, and seeing a salmon-net drawing in, signed that there were five fish in it, and one of them with a hook in its mouth, indicating the hook by crooking his finger and putting it in his cheek. 'The other man, being curious to know the truth of it, causes reckon the fishes, and see if any of them had a hook; and it was found so as it was signed by the dumb man. He tells the fishers what the dumb man had signed, and they gave the dumb man one of them.'—*Law*.

At Colzium House, the seat of Sir Archibald Edmondstone of Duntreath, there is a portrait of his predecessor, the Deaf and Dumb Laird, presenting an aspect of intelligence much beyond what could have been anticipated regarding one subject to so great an infirmity. It is a tradition in the family that, in early life, finding himself much overlooked on account of his inability to communicate, and being in particular left at home when the rest went to church, he was found one day, on the family returning from worship, sitting among the horses in the stable. When his mother let him know that this conduct excited surprise, he imparted to her by such means as were at his command, that, seeing himself treated as if he were something less than a human being, he had thought it only right and proper that he should place himself in the society of the animals which had the same deficiency as himself. The reproach was felt, and he was thenceforth treated more on a footing of equality, and allowed to go to church with the rest of the family.

1677.

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The public mind being again morbidly excited about witchcraft, the usual result of a fresh crop of cases—a witch-storm, it may be called—ensued. In the beginning of this month, a serving-woman, named Lizzy Mudie, was burnt at Haddington for witchcraft. Her mistress, Margaret Kirkwood, had hanged

JUNE.

herself in her own house on a Sunday forenoon, while the people were at church. Lizzy on that occasion made some disturbance, by running aloud over the numbers, one, two, three, &c., till she came to fifty-nine, when she cried: 'The turn is done!' It being found that Margaret Kirkwood, whose age was fifty-nine, had ended her life at that moment, Lizzy was taken up on suspicion, and examined for witch-marks. These were found upon her, and she confessed herself to be a witch. She also *delated* five other women (two of them midwives) and a man, as likewise guilty of witchcraft, relating particular circumstances of their alleged guilt; but they denied all. Fountainhall says: 'I did see the man's body searched and pricked in two sundry places, one at the ribs, and the other at his shoulder. He seemed to find pain, but no blood followed.... The marks were bluish, very small, and had no protuberancy above the skin.' He adds, with regard to the official pricker: 'I remained very dissatisfied with this way of trial, as most fallacious; and the fellow could give me no account of the principles of his art, but seemed to be a drunken foolish rogue.'

The trade of a pricker of witches, which had some time before been a regular and a prosperous one, was beginning to fall under suspicion among the authorities.

1677.

One Cowan, of Tranent, who had learned the art from 'Kincaid, a famous pricker,'<sup>254</sup> was complained of by one Catherine Liddel, before the Privy Council, about this time, for subjecting her to the process on suspicion of witchcraft; and he was by that tribunal condemned to prison during their pleasure. It fully appears, indeed, that the present rulers of Scotland, while so ruthless towards religious dissenters, were more enlightened and humane than any of their predecessors in the matter of necromancy. While introducing the use of torture in the one case, they discontinued it in the other. They did, indeed, as we see, still allow of witch prosecutions; but this perhaps it was beyond their power to resist, and it must be admitted in their favour that the requirement of voluntary confessions was a great step in the right direction. On the other hand, the fact of voluntary confessions being so often made, where death was the certain consequence, and where a stout denial usually seems to have saved the accused, is one of a highly remarkable character, and which might give scope to some interesting speculations. One remark forcibly occurs regarding such cases, that the accused must have had intentions towards necromantic results and a full



conviction of their possibility, if not of their occurrence; consequently must have *felt* guilty.

One of the persons accused by Lizzy Mudie was Marion Phin, a woman of eighty years of age, living in Haddington. Being consequently thrown into jail, she lay there three months in a most miserable condition, suffering much, we presume, from the severity of the treatment, so unsuitable to her great age, and also distressed by the loss of her good name, she having hitherto 'lived always under a good report, never being stained with the least ignominy, far less with the abominable crime of witchcraft.' 'It were hard,' she said in a petition to the Privy Council, 'that, being of so known integrity, she should suffer upon the account of such lying accusers, who may and ordinarily do blunder the best of God's servants.' Her petition for being liberated on caution (August 10) was not yielded to by the Council. They contented themselves for the meantime with ordering the commission for her examination to proceed with their duty.

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The *Florida*, a large vessel of the Spanish Armada of 1588, carrying sixty guns, had been blown up and sunk in the Bay of Tobermory, in the island of Mull:<sup>255</sup> an old and consistent tradition represents it as having come to this fate by means of Smollett of Dumbarton, presumed to have been the ancestor of the celebrated novelist. The guns, treasure, and other valuable things, known or supposed to have been on board, made the incident a memorable one, and induced a desire, if possible, to weigh up the vessel, or at least to fish up from it such things as might be accessible to divers. In the seventeenth century, the recovery of sunk vessels and their contents was a favourite project among ingenious and adventurous men. The late Marquis of Argyle had obtained from the Duke of Lennox, Lord High Admiral of Scotland, a formal gift of this vessel, and had become 'clad with possession' by taking guns and other things out of it. In 1665, a more vigorous attempt was made to get up some of its treasures by the present Earl of Argyle, the immediate operator being, apparently, Maule of Melgum, a Forfarshire gentleman, who had invented an apparatus precisely of the nature of what was a century later revived as the *Diving-bell*. Another person engaged in the business

1677.

was the almost sole active cultivator of physics in Scotland during this age—the celebrated George Sinclair, professor of philosophy in the University of Glasgow—who also obliged the world some years later with a treatise, entitled *Satan's Invisible World Discovered*. Sinclair, in a work named below,<sup>[256](#)</sup> tells us that on this occasion they brought up three pieces of ordnance, one of brass, one of copper, and one of iron, two of which were eleven feet in length, and more things might have been recovered but for the coming on of tempestuous weather. He says they were surprised to find that the bullets employed for these guns were of stone, instead of metal.

Hearing of these experiments of the Earl of Argyle, the eminent lawyer, Sir George Lockhart, prompted the Duke of York to claim the property as the present Lord High Admiral; and so there arose a litigation on the subject. Various arguments were presented against Argyle's right, particularly that to make possession complete it was necessary that he should have stirred the ship from the place where it was when his father got the gift. The earl himself appeared in court, and made a few remarks, shewing the large expense he had laid out on the discovery of the lost vessel, and concluding with a wish that it were brought above board ere any dispute took place about the property, 'lest it should verify the story of the king of Spain's gold.' The court gave the case in favour of Argyle.

JULY 27.

1677.

It is curious to find these two men engaged in such a plea only seven or eight years before standing in the relative positions of rebellious subject and vengeful sovereign. Still more curious it is to hear of this unpopular prince, that 'he wrote down a very complimentary letter to Argyle, approving the justice of the lords' sentence, and shewing his hearty compliance and acquiescence therein.'—*Foun*.

It is worthy of notice that after 'unfortunate Argyle' had passed from life—namely, in May 1686—a warrant was given by James VII. for a patent to William Harrington and three others, merchants of London, for enabling them to 'weigh up, recover, and obtain from under water, in the roads and seas of Scotland, ships, or ship guns, treasure, and other goods, which have been shipwrecked, lost, and sunk, and particularly one ship of the Spanish Armada, sunk in the western seas of his majesty's kingdom of Scotland'—the patent to endure for fourteen years.<sup>[257](#)</sup>

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The Egyptians or gipsies still roamed in a lawless manner over the country, without attracting much notice from the authorities, their conduct being now probably less troublesome than it had been in the reign of King James. Two bands of these people, the Faws and the Shaws, on their way from Haddington fair to Harestanes, in Peeblesshire, where they expected to meet and fight two other tribes, the Bailies and Browns, fell out among themselves at Romanno about the spoil they had lately acquired, and immediately engaged in battle. ‘Old Sandie Faw, a bold and proper fellow,’ and his wife, then pregnant, were killed on the spot, while his brother George was very dangerously wounded. The Laird of Romanno apprehended ‘Robert Shaw; Margaret Faw, his spouse; James, Patrick, Alexander, and Thomas Shaws, their sons; and Helen Shaw, their daughter; Robert and John Faws; John Faw younger; Agnes and Isobel Shaws; Isobel Shaw younger; and George Faw, and did commit them prisoners within the Tolbooth of Peebles;’ whence they were speedily removed to Edinburgh to be tried. We soon after find the Council despatching a warrant to the Laird of Romanno and Mr Patrick Purdie, to send to Edinburgh ‘the *money, gold, gold rings*, and other things which were upon these persons;’ likewise the weapons with which they had fought. An account of expenses sent by the magistrates of Peebles was disallowed, excepting only £15 Scots (£1, 6s. 8d. sterling) for the sustenance of the company while in jail.—*P. C. R.*

OCT. 1.

1677.

In February next year, ‘Old Robin Shaw’ and his three sons were hanged in the Grassmarket for this murder, and John Faw was executed in the following week for another murder. Two or three years after, the Laird of Romanno—a quaint physician named Pennecuik, who wrote verses—erected a pigeon-house on the scene of the conflict, with this inscription over the door:

‘The field of gipsy blood which here you see,  
A shelter for the harmless dove shall be.’[258](#)

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A great fire took place in Glasgow, by which a large part of the Saltmarket on both sides was burnt. It commenced near the Cross, through the instrumentality of a smith's apprentice, who being beaten by his master, set the workshop on fire at night, and fled. This conflagration was considered an equal calamity to that of 1652. It threw between six and seven hundred families out of their homes, in a ruined and starving condition.—*P. C. R.* 'The heat was so great, that it fired the horologe of the Tolbooth. There being some prisoners in it, of whom the Laird of Carsland [Kersland] was one [who had been confined in various jails for eight years on account of his concern in the Pentland rising], the people broke open the doors, and set them free.... Great was the cry of the poor people, and lamentable to see their confusion.'—*Law.*

Nov. 3.

The Town Council, in a minute of December 4, speak of 'the great impoverishment this burgh is reduced to' by the fire, which they regard as a just punishment from God for their iniquities, 'which we pray him to mak us sensible of, that we may turn from the evil of our ways to himself, so his wrath may be averted.' Yet, they go on to say, 'because such things are more incident to burghs, by reason of their joining houses to houses ... especially being reared up of timber, without so much as the window of stone,' therefore the Council think it well to enact that whenever any of the people are in a condition to rebuild their houses, they shall rebuild them of stone.—*M. of G.* On a petition from the magistrates, the Privy Council ordered a charitable collection to be made throughout the country for the poor starving people.

1677.

It does not appear that the engine made in 1657 for quenching of fire was of any use on this occasion. It had probably been allowed to fall out of order, as in December 1680, we find an order from the Town Council to 'see if it can be yet made use of in case of need.'—*M. of G.* In 1725, another fire-engine was got from London, at an expense of £50.—*Strang.*

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The late Laird of Ayton, in Berwickshire, had left an only daughter, under age, in the care of the Countess of Home. He had bequeathed to this young lady, Jean Home, his whole estate, though it was more customary in such cases in

1677.

Scotland to destine land-property to the next heir-male. Home of Plendergast, who stood in that relation, was of course disappointed, but he hoped that a reparation might be made by the young lady marrying a member of his own family. When, in December 1677, the time approached for her choosing her curators—being then, we presume, twelve years of age—Plendergast presented a petition to the Privy Council, desiring that she should be brought as usual to their bar in order to pass through that ceremony in the presence of her general kindred. This gentleman, however, appears to have been in disfavour with the other gentlemen of his name in that province, as well as with the Countess of Home and Charles Home, the brother of the earl, with whom the young lady of Ayton at that time lived. On the evening of the very day when the petition was presented to the Council, Charles Home, accompanied by Alexander Home of Linthill, Sir Patrick Home of Polwarth, John Home of Ninewells, Robert Home of Kimmerghame elder, and Joseph Johnston of Hilton, proceeded to the residence of the young lady, and carried her off across the Border. ‘There they, in a most undutiful and unchristian manner, carried the poor young gentlewoman up and down like a prisoner and malefactor, protracting time till they should know how to make the best bargain in bestowing her, and who should offer most. They did at last send John Home of Ninewells<sup>259</sup> to Edinburgh, and take a poor young boy, George Home, son to Kimmerghame, out of his bed and marry him to the said Jean, the very day she should have been presented to the Council.’ The ceremony was wholly irregular, and performed by an English minister, ‘opening thereby a new way to slight the clergy of Scotland.’ At the same time, the countess appeared before the Council, and apologised for the absence of her ward, ‘as being sickly and tender, and not able to travel, and not fit for marriage for many years to come.’

The Council took this matter up in high style, and dealt with the offending parties in strict terms of the statutes which they had broke. The young husband lost his interest *jure mariti*; the young wife hers *jure relictæ*. The former was fined in £500 Scots, and the latter in a thousand merks, for their clandestine marriage. Further, for contempt of the Council, the young wife was fined in a thousand merks, to be paid to Home of Plendergast. Ninewells and Hilton suffered amercement respectively in 1000 and 2000 merks, the former sum

1678. MAR. 16.

to be paid to Plendergast. The young couple were, moreover, to suffer three months' imprisonment in Edinburgh Castle.—*P. C. R.*

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Three enterprising persons at Haddington, including William Lamb, one of the bailies, and Mr James Lauder, sheriff-clerk, formed a project for a twice-a-week stage-coach 'to pass through the whole year betwixt Edinburgh and Haddington, which will be of great conveniency for travellers of all sorts who may have occasion to repair to Edinburgh from the eastward.'<sup>260</sup> It was their resolution 'to employ a considerable stock of money for erecting the said stage-coaches, buying of horses, and all other furniture requisite, in expectation of some small profit by progress of time.' Wherefore they petitioned for the exclusive right to have stage-coaches upon that road. The right was granted for seven years.—*P. C. R.*

1678. MAR. 7.

A very few months after this date, William Hume, merchant in Edinburgh, appears to have set up a stage-coach between his own city and Glasgow, encouraged thereto by the liberality of the two municipalities. The city of Glasgow undertook to pay four hundred merks annually for two years.—*M. of G.* Hume proposed that his conveyance should carry only six passengers, at £4, 16s. Scots each in summer, and £5, 8s. in winter (respectively 8s. and 9s. sterling), being at the rate of 2s. 8d. a mile in summer, and 3s. in winter. The Privy Council, on his petition, gave him an exclusive privilege for seven years, and assured him against his horses being pressed for any kind of public service.—*P. C. R.*

JULY 29.

1678.

These are the first conveniences of the kind we hear of as established between one place and another in Scotland, except the coach between Edinburgh and Leith, first in December 1610, and secondly in September 1660 (which see). It is, however, probable that none of all these enterprises proved successful, or was carried on for any considerable length of time. A traveller in Scotland in 1688 tells us: 'Stage-coaches they have none.... The truth is, the roads will hardly allow them those conveniences, which is the reason that their gentry, men and women, choose rather to use their horses.

However, their great men often travel with coach and six, but with so much caution, that, besides their other attendance, they have a lusty running footman on each side of the coach, to manage and keep it up in rough places.’ It is added: ‘This carriage of persons from place to place might be better spared, were there opportunities and means for the speedier conveyance of business by letters. They have no horse-posts besides those which ply betwixt Berwick and Edinburgh, and from thence to Port-Patrick for the sake of the Irish packets.... From Edinburgh to Perth, and so to other places, they use foot-posts and carriers, which, though a slow way of communicating our concerns to one another, yet is such as they acquiesce in till they have a better.’<sup>261</sup>

What makes it the more improbable that William Hume’s enterprise was successful, notwithstanding the well-meant patronage of the Glasgow magistrates, is that, in October 1743, the Town Council of the western city was found considering a similar project of one John Walker, merchant in Edinburgh, who proposed to ‘erect’ a stage-coach betwixt the two cities, with six horses, and holding six passengers, to go twice a week from the one to the other in summer, and once in winter. The corporation was called upon to guarantee that as many as *two hundred tickets* should be sold each year. The proposal does not appear to have been entertained.

In 1749, a caravan—a kind of covered spring-cart—passed twice a week from the one city to the other, taking a day and a half to the journey!—*Strang.*

1678.

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Two old women, belonging to the village of Prestonpans, were tried for witchcraft by a commission, and, ‘on their confession, *no ways extorted*, were burnt.’

MAY 2.

Before their death, they gave information regarding some other persons who, they said, were also witches; and, one telling on another, there were in September as many as eight or ten collected from the parishes of Ormiston, Pencaitland, and Crichton, besides seven who belonged to Loanhead of Lasswade. The justices shewed a disinclination to treat all these poor creatures as witches; and Sir John Clerk of Pennicuik—first baronet of a



family which has produced many scholars, judges, antiquaries, and men of general talent—declined to be upon the commission appointed for the seven of Loanhead, ‘alleging drily that he did not feel himself warlock (that is, conjuror) enough to be judge upon such an inquisition.’<sup>262</sup> The leniency of the justices was cried out upon by some, as interfering with the discovery of these enemies of mankind. As usually happened, the accused made confession of guilt, telling much the same story of intercourse with the devil, renouncing their baptism, and going about in the form of ravens, &c., as was set forth by the witches of Auldearn in 1661—a traditionary set of hallucinations, they may be called, the uniformity of which ought in itself to have put judges sooner on their guard against a misjudgment of these unfortunate beings. Fountainhall, who conversed with a few of the present group, speaks somewhat rationally about them, and it is evident he was inclined to regard their adventures with the devil as mere dreams. ‘Only,’ he says, ‘in these diabolic transports their sleep is so deep, that no pinching will awake them scarce’—an intimation, some will think, of the sleep being mesmeric. Sad to say, however, nine of the East Lothian women were condemned on their confession, although seeming rational and penitent; and were burnt, five between Edinburgh and Leith, and four at Painston, while the seven of Loanhead were reserved for future procedure.

The statement of this case has induced Fountainhall to mention one or two others by way of digression. In the time of James VI., a Scottish gentleman, being troubled with a disease, sought relief from a magician in Italy, but was told he need not have come so far from home, as there was a person in Scotland who could cure him, and this person he particularly described, so that the gentleman might know him. Some years after, being returned, the patient met, on the Bridge of Earn, one to whom the description in every particular applied; and, having accosted him, and asked for his aid, he was cured by this stranger with a few simple herbs. The story being told, the curer of the disease was prosecuted as a necromancer, in compact with the devil, and found guilty, notwithstanding his protestation that the cure was natural, and the devil’s having named or described him was no fault of his. In this narration, the reader will recognise a story which has been told with many variations, as to person, place, and circumstances, but always with the assumption of what would now in certain circles be described as an exercise



of the power of *clairvoyance* regarding a person unknown and living at a great distance.

The other story is even more curious in its details.

Fountainhall says: ‘As for the rencontre between Mr Williamson, schoolmaster at Cupar (he has writ a grammar), and the Rosicrucians, I never trusted it till I heard it from his own son, who is present minister of Kirkcaldy.’ A stranger coming to Cupar called for Mr Williamson, and they went to drink together at a tavern. When the reckoning came to be paid, the stranger whistled for spirits, and one in the shape of a boy came and gave him some gold. It is to be remarked that no servant had been seen attending the stranger while riding into the town, or at his inn. ‘He caused his spirits next day bring him noble Greek wines from the pope’s cellar, and tell the freshest news then was at Rome.’ Some time after, Mr Williamson, being in London, and passing along London Bridge, heard himself called by name, and turning about, discovered it was his Rosicrucian. At the request of the stranger, he met him at dinner in a house to which he was directed, and there found a magnificently spread table, with a company of good fashion, all being served by spirits. The conversation turned on the advantage of being served by spirits, and Mr Williamson was asked to join their happy society; but he started back with dismay, when it was mentioned as a necessary preliminary, that he should *abstract his spirit from all materiality*, and renounce his baptism. In his alarm, he fell a praying, whereupon they all disappeared. He was then in a new alarm, dreading to have to pay a huge reckoning; but the boy who answered his summons, told him that ‘there was nothing to pay, for they had done it, and were gone about their affairs in the city.’ It is barely necessary to remark to those who have seen and believed in the wonders of what is called electro-biology, there is nothing in Mr Williamson’s case which might not be explained on that principle—namely, a condition of brain artificially produced, in which the suggestion of objects and events is enough to make the patient believe them real.

1678.

After this date, witch-cases before the high court are rare, and there had evidently set in a disrelish for such prosecutions. The fact may reasonably be attributed in some degree to the publication, in 1677, of Webster’s rational treatise, *The Displaying of Supposed Witchcraft*.

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James Gray, a 'litster,' that is, dyer, in Dalkeith, went to Glasgow in March this year as a lieutenant in the Midlothian Militia. He there met, over a bottle, a young man, named Archibald Murray, son of the Laird of Newton, and who was a trooper in the king's Life Guard. When heated with liquor, Gray began to boast that to be a lieutenant under the Duke of Lauderdale was as good as to ride in the king's Life Guard—rather a petulant speech from a Dalkeith craftsman to the son of a laird in its neighbourhood. Murray stormed and called him a base fellow, to compare himself with gentlemen! They went out and fought, and Gray soon returned, saying: 'I trow I have pricked him,' never imagining that he had taken the young man's life. Such, however, proved to be the case. Gray, who was a handsome, vigorous man, of about fifty, was tried for the act, and much interest was felt in his behalf, as it was believed that he had meant nothing like murder. Five thousand merks were offered to the friends of the deceased, by way of assythment. But all was in vain. On the day noted in the margin, 'he was beheaded, dying with courage, and declaring that ambition, leading to discontents and quarrels, *joined to marrying an old woman*, had ruined him.'—*Foun*.

JULY 19.

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Scotland now had a visitor of an extraordinary kind. In a petition presented to the Privy Council, he described himself as Mercurius Lascary, a Grecian priest, a native of the island of Samos. He stated that himself, his brother Demetrius, who was also a priest, and two sons, had been seized by night by Algerine pirates; and his brother had now been detained for three years in a most miserable condition in Barbary. Testimonials from the patriarch of Constantinople and various Greek bishops confirmed this sad tale; and on his petition, a general charitable contribution was ordered to be raised in his behalf.—*P. C. R.*

AUG. 15.

1678.

In the history of the introduction of the more refined arts into Scotland, there is no reason why one so ingenious as *cabinet-making* should not be included. We now first

SEP. 12.

hear of it on the occasion of a petition from one James Turner, styling himself ‘cabinet-maker and mirror-glass maker.’ He having, as he says, ‘with much labour, pains, and expenses, attained to the art of making cabinets, mirror-glasses, dressing-boxes, chests of drawers, comb-boxes, and the like curious work, of the finest olive and princes’ wood, not formerly practised by any native of this country,’ had been peaceably exercising his craft, when he was assailed by the deacon of the corporation of wrights as an unfreeman. He had first been forbidden to work, and then they took away his tools and materials. On his petition, however, he received the protection of the Council.—*P. C. R.*

Not long after (February 1682), we hear of a kindred trade as being practised in Edinburgh. Hugh M’Gie, *mirror-maker* in the Canongate, gave in a bill to the Privy Council, representing that, by the practice of other nations, any tradesman having seven sons together, without the intervention of a daughter, is declared free of all public burdens and taxes, and has other encouragements bestowed on him, to enable him to bring up the said children for the use and benefit of the commonwealth; and claiming a similar privilege on the strength of his having that qualification. The Council recommended the magistrates to take Hugh’s seven sons into consideration when they laid their ‘stents’ upon him.—*Foun.*

Some years later (January 1685), Turner being again troubled by the wrights’ corporation, the Privy Council, on his producing an essay piece of ‘an indented cabinet and standishes,’ gave him a licence to set up as a freeman.—*Foun. Dec.*

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At Prestonpans dwelt a respectable old widow named Katharine Liddell, or Keddie. During the late panic in East Lothian regarding witches, she had been seized by John Rutherford, bailie of Prestonpans, as one liable to suspicion of that crime. With the assistance of a drummer, two salt-makers, and other persons, he barbarously tormented her

SEP. 13.

1678.

in prison in order to extort a confession, ‘by pricking of pins in several parts of her body, to the great effusion of her blood, and whereby her skin is raised and her body highly swelled, and she is in danger of her life.’ She had also been kept from sleep for several nights and days. It was not till she had undergone this treatment for six weeks, that on her petition an order was obtained from the Privy Council for her liberation.

There must have been some unusual force of character about Katharine Liddell, for not only had she stood her tortures without confessing falsehood, as most of her sister unfortunates did, but she turned upon her tormentors by presenting a petition to the Council, in which she charged them with defamation, false imprisonment, and open and manifest oppression, and demanded that they should be exemplarily punished in their persons and goods. After hearing the accused in answer, the Council declared Liddell entirely innocent and free, and condemned Rutherford and his associates for their unwarrantable proceedings. In respect, however, of ‘the common error and vulgar practice of others in the like station and capacity,’ they let him off without any punishment. ‘David Cowan, pricker,’ the most active of the tormentors, they sentenced to be confined during pleasure in the Tolbooth.—*P. C. R.*

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At this time, eighty persons were detained in prison in Edinburgh, on account of matters of religion, waiting till they should be transported as slaves to Barbadoes. [263](#)—

OCT.

*Foun. Dec.*

In connection with this distressing fact may be placed one of a different complexion, which Fountainhall states elsewhere. The magistrates, he tells us, were sensible of the inadequacy of their Old Tolbooth for the purposes of justice in these days of pious zeal. Consequently, one Thomas Moodie leaving them twenty thousand merks to build a church, they—declaring ‘they have no use for a church’—offered to build with the money a new Tolbooth, above the West Port, ‘and to put Thomas Moodie’s name and arms thereon!’—*Foun.*

In the entire history of the municipality of Edinburgh, this is *not the worst* of its attempts at the perversion of funds intended for the building of a church. And it really appears that our ancestors looked upon the building of a jail as a public act of some dignity and importance. PATRIAE ET POSTERIS [for our country and posterity] is the self-complacent inscription on the front of the Canongate Tolbooth.

1678.

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A civil process of this date between Sir R. Hepburn of Keith and David Borthwick his tenant, reveals the fact that lime was ‘the usual way of improving and gooding land in East Lothian, at least in that corner of it.’—*Foun. Dec.*

Nov. 13.

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So early as 1590 a foreigner came to Scotland, and applied for some encouragement to his design of erecting a paper-work within the kingdom.<sup>264</sup> There is reason to believe that this design proved abortive, and that there was no further attempt at a native manufacture of paper till 1675, when a work was established at Dalry Mills, a place on the Water of Leith, in the immediate vicinity of Edinburgh. This work obtained the benefit of an act passed in 1662, offering privileges to those who should erect such manufactories within the kingdom, and French workmen were introduced as necessary for the instruction of the natives. After suffering a temporary stoppage in consequence of the burning of the buildings, the work was again in such a condition in 1679, that it was able, according to the statement of its owners, to produce ‘gray and blue paper much finer than ever this country formerly offered to the Council.’

1679.

At this date, Alexander Daes, merchant, one of the proprietors, presented a petition setting forth how this work not only supplied good paper, but promised another general usefulness in the ‘improvement of rags,

MAR. 7.

1679.

which formerly were put to no good use,' and in the gathering of which many poor and infirm people could make their bread: in the work itself, moreover, 'many Scotsmen and boys are already, and many mo may be, instructed in the art of making paper.' There was but one thing wanting for the due encouragement of the work, and that was the suppression of 'a faulty custom, not practised anywhere else,' of employing fine rags in the making of wicks for candles. This custom, it was alleged, involved a cheat to the lieges, in as far as these rags, not exceeding eight or ten shillings (8d. or 10d. sterling) per stone in value, formed part of the weight of the candles, of which the price was three pounds ten shillings (5s. 10d. sterling). It was represented that cotton-wicks should be employed, which, if dearer, were also better, as they gave more light. Thus it was that, in those days, hardened as every one was in the spirit of monopoly, one trade made no scruple in interfering with another, if its own selfish ends could thereby be advanced.

The Council did actually 'discharge the candlemakers to make use of clouts and rags for the wicks of candles.'

A subordinate branch of the petition for an extension of the time during which the privileges granted by statute were to last, was silently overlooked.—*P. C. R.*

There is reason to conclude that this paper-mill was not continued, and that paper-making was not successfully introduced into Scotland till the middle of the succeeding century.

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Robert Mean, keeper of the letter-office in Edinburgh, was brought before the Privy Council, accused of 'sending up a *bye-letter* with the flying packet upon the twenty-two day of June last, giving an account to the postmaster of England of the defeat of the rebels in the west, which was by the said postmaster communicated to the king before it could have been done by his majesty's secretary for Scotland, and which letter contains several untruths in matter of fact.' Notwithstanding an abject apology, Mean was sent to the Tolbooth, there to remain during the Council's pleasure.—*P. C. R.*

JULY 11.

Mr Mean's office was at this time a somewhat critical one. On the 19th of August 1680, he was imprisoned by a committee of the Privy Council 'for publishing the news-letter before it was revised by a councillor or their clerk; though he affirmed he had shewn it to the Earl of Linlithgow before he divulged it.' What offended them was a false piece of intelligence contained in it, to the disparagement of the Duke of Lauderdale. Robert was liberated in a day or two with a rebuke.<sup>265</sup>

The bringing of the news of the defeat of the rebels at Bothwell Bridge seems to have been looked upon as a matter of a high degree of consequence. The instrument was one James Ker, a barber in the Canongate, who acted as a messenger between the royal army and the capital, under favour of the Chancellor Duke of Rothes, whom he had perhaps attended professionally in Holyroodhouse. The lords of the Privy Council were so over-joyed at the intelligence, that they promised James some signal mark of their gratitude; and he soon after asked them, by way of discharging the obligation, to get him entered as a freeman in the city corporation of surgeons. They used influence with the deacon of this important body to get Ker's wish gratified; but it could not be done—he had not served the proper apprenticeship. He went to London, and petitioned the king on the subject, 'who, finding that the corporation stuck upon their privilege, was graciously pleased to refer [him] back to the Council, to be rewarded as the Council should judge fit.' Upwards of three years after (December 14, 1682), he is found petitioning the Council for this suitable reward, representing that by the expense of his journey to London and the loss of his employment, he and his wife and numerous family had been reduced to 'great straits and necessity.' They could only refer him to the Bishop of Edinburgh, that he might deal with the magistrates, to see their first recommendation made effectual.—P. C. R.

1679.

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In 1673, two brothers, probably of English birth, Edward Fountain of Lochhill and Captain James Fountain, had their patent formally proclaimed throughout Scotland, as *Masters of the Revels within the kingdom*. They thus possessed a privilege of licensing and authorising balls, masks, plays, and such-like entertainments; nor was this quite such an empty or useless

privilege as our traditional notions of the religious objections formerly cherished against public amusements might have led us to suppose.

At the date noted, the two Fountains petitioned the Privy Council against sundry dancing-masters who took upon them to make ‘public balls, dances, masks, and other entertainments in their schools, upon mercenary designs, without any licence or authority from the petitioners.’ It was set forth that this practice not only invaded their privileges, but tended to ‘the eminent discouragement of *the playhouse*,’ which ‘the petitioners had been at great charge in erecting.’ Agreeing with the views of the petitioners, the Council ordered all dancing-masters to desist from the above-described practice, and in particular prohibited ‘Andrew Devoe to keep any ball to morrow, or at any other time,’ without proper licence.—*P. C. R.*

JULY 24.

This as far as I am aware, is the only notice we possess of a theatre in Edinburgh about 1679. It sounds strange to hear of a dancing-master’s ball in our city little more than a month after the battle of Bothwell Bridge, and while a thousand poor men were lodging on the cold ground in the Greyfriars’ Church-yard.

1679.

We find in September 1680 the two Fountains adverting to their playhouse as still kept up—‘at great expenses;’ and they then petition for redress against such as ‘keep public games, plays, and *lotteries*’ without that licence which they, as masters of the revels, were alone entitled to grant. The Council on that occasion directed letters of horning to be issued against the persons complained of. Soon after, February 10, 1681, Andrew Devoe, who made his bread by teaching the children of noblemen and gentlemen to dance, complained that he was troubled by the two Fountains demanding from him that he should give caution not to have any more balls in his school. It was an unheard-of thing in Europe, in Andrew’s opinion, that a school-ball should be regarded as an infringement of the patent of a master of revels. The Lords, entering into his views, ordered that any former acts they had passed in favour of the Messrs Fountain should be held as restricted to *public* shows, balls, and lotteries.

The privilege of the Messrs Fountain must have in time become an insupportable grievance to the lieges, or at least such of them as were inclined to embroider a little gaiety on the dull serge of common life. While



the parliament sat in August 1681, an act was projected, though not brought forward, to complain of some oppressive monopolies, and ‘particularly of Mr Fountain’s gifts as Master of the Revels, by which he exacts so much off every bowling-green, kyle-alley, &c., through the kingdom, as falling under his gift of lotteries.’<sup>266</sup> In June 1682, Hugh Wallace appeared before the Privy Council as agent for ‘the haill royal burghs of the kingdom,’ shewing that individuals were daily charged by these gentlemen ‘upon pretence of gaming at cards and dice, and other games, or having such plays at their houses,’ acting thus on the pretended powers derived from certain general letters of the Council, and proceeding in due course to hornings and captions where their demands for money were not complied with. The Council ordained letters to be directed to the Masters of the Revels, if the petitioner could ‘condescend upon particular acts of exaction.’

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The little village of Corstorphine, three miles from Edinburgh, was disturbed by a frightful occurrence. The title of Lord Forrester was at this time borne by a gentleman of mature years, who had acquired it by his marriage to the heiress, and had subsequently had a

AUG. 26.

1679.

family by a second wife. He lived in the Castle of Corstorphine, the ancient seat of the family. It appears that he sided with the Presbyterians, and was zealous enough in their cause to build a meeting-house for their worship. He had nevertheless formed an improper connection with the wife of one Nimmo, a merchant in Edinburgh; and, what made this scandal the greater, the unfortunate woman was niece to his first wife, besides being granddaughter of a former Lord Forrester. She was a woman of violent character, accustomed, it was alleged, to carry a weapon under her clothes. We are further informed that Mrs Bedford, an adulteress who had murdered her husband a few years back, was her cousin; and that Lady Warriston, who suffered for the same offence in 1600, was of the same family.<sup>267</sup>

It was pretty evident that this was a woman not to be rashly offended. Lord Forrester had nevertheless spoken opprobriously of her in his drink, and the fact came to her knowledge. She proceeded to his house at Corstorphine, and, finding he was at the village tavern, sent for him. The meeting took place in the garden. After a violent altercation, the unhappy woman stabbed her paramour with his own sword. 'He fell under a tree near the pigeon-house, both of which still remain, and died immediately. The lady took refuge in the garret of the castle, but was discovered by one of her slippers, which fell through a crevice of the floor.'<sup>268</sup> Being seized and brought before the sheriffs of Edinburgh, she made a confession of her crime, though seeking to extenuate it, and, two days after, she was tried, and condemned to die. Taking advantage of a humanity of the law, she contrived by deception to postpone the execution of the sentence for upwards of two months. And in this interval, notwithstanding the great care of her enjoined to John Wan, the keeper of the Tolbooth, she succeeded in making her escape in men's apparel, but was found next day at Fala Mill, and brought back to prison. On the 12th of November, Mrs Nimmo was beheaded at the Cross of Edinburgh, appearing on the scaffold in mourning, with a large veil, which, before laying down her head, she put aside, baring her shoulders at the same time, 'with seeming courage enough.'<sup>269</sup>

Connected with the murder, a circumstance characteristic of the age took place. The deceased nobleman, leaving only heirs of his second marriage, who took the name of Ruthven from their mother, and who were in possession of his house, the family honours and estates, which came by his first wife, by whom he had no surviving progeny, passed, according to a deed of entail, to another branch of the family. In that day, no offence was more common than that of violently seizing and interfering with the legal writings connected with landed properties. Well knowing this, William Baillie of Torwoodhead and his mother dreaded that the young Ruthvens might play foul with the late lord's charter-chest, and so prejudice their succession. They went with friends to the house, while the murdered nobleman's body still lay in it, and intruded in a violent manner, by way of taking possession of their inheritance. Their chief aim, as they afterwards alleged, was to see that no documents should be embezzled or made away with. On a complaint from the Ruthvens, the Lords adjudged Baillie and his mother to lie in prison during their pleasure, and fined their assistant, a Mr Gourlay, in a hundred pounds Scots. The court at the same time took measures to secure the charter-chest.

1679.

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The Duke of York arrived in Scotland, designing to reside in the country till the storm of the Exclusion Bill should blow over. He and his family experienced a favourable reception in Edinburgh. In July 1681, he was joined by his daughter, styled the Lady Anne (subsequently Queen Anne). The royal party occupied the palace of Holyroodhouse, which had recently received such large additions as to give them handsome accommodation. According to the report of Mr William Tytler,<sup>270</sup> who had conversed with many who remembered the duke's visit, the gaiety and brilliancy of the court of Holyroodhouse on this occasion was a subject of general satisfaction. 'The princesses were easy and affable, and the duke studied to make himself popular among all ranks of men.' It was indeed an unpropitious time for the duke to be in his father's native kingdom—when a large portion of the people were at issue with the

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1679.

government about matters of faith, and men were daily suffering extreme severities on account of their religious practice. Nevertheless, he was far from being unpopular. It is clearly intimated by Fountainhall that his birthday came to be observed with more cordial demonstrations than the king's.<sup>271</sup> Though the contrary has been insinuated, there are many instances, credibly reported, of his shewing humanity towards the unfortunate 'phanatiques,' as they were called, who came under the notice of the local authorities during the period of his visit.<sup>272</sup>

Mr Tytler reports that the duke and the princesses gave balls, plays, and masquerades, much to the enjoyment of the nobility and gentry who attended them, though to the disgust and horror of the more rigid Presbyterians. It will be found that Nat Lee's play of *Mithridates, King of Pontus*, was acted privately at the palace (November 15, 1681), with Lady Anne and the maids of honour as the only performers. It was probably afterwards that a portion of the duke's company of players came down to Edinburgh to give regular performances. Mr Tytler had a dim recollection of seeing one of their playbills, advertising in capital letters *The Indian Emperor*, as to be played by them at the *Queen's Chocolate House*, which, he thought, would be near the palace, though we must regard the High Street as a much more likely situation. This was Dryden's play on the sad story of Montezuma. The great English poet comes into connection in another way with this histrionic expedition to the north, for, when the remainder of the company appeared at Oxford, he had to write a prologue apologising for the weakness of the corps, and did it ludicrously at the expense of Scotland.

'Our brethren are from Thames to Tweed departed,  
And of our sisters all the kinder-hearted,  
To Edinborough gone, or coached or carted.  
With bonny Blue-cap there they act all night,  
For Scotch half-crown, in English threepence hight.  
One nymph to whom fat Sir John Falstaff's lean,  
There with her single person fills the scene.  
Another, with long use and wont decayed,  
Dived here old woman, and there rose a maid.  
Our trusty doorkeepers of former time,  
There strut and swagger in heroic rhyme.

1679.

Tack but a copper lace to drugget suit,  
And there a hero's made without dispute,  
And that which was a capon's tail before,  
Becomes a plume for Indian emperor.  
But all his subjects, to express the care  
Of imitation, go like Indian bare:  
Laced linen there would be a dangerous thing,  
It might perhaps a new rebellion bring—  
The Scot who wore it would be chosen king.'

Mr Tytler also states that 'tea, for the first time heard of in Scotland, was given as a treat by the princesses to the Scottish ladies who visited at the abbey.' He adds: 'The duke was frequently seen in a party at golf on the Links of Leith, with some of the nobility and gentry. I remember in my youth to have often conversed with an old man, named Andrew Dickson, a golf-club maker, who said that, when a boy, he used to carry the duke's golf-clubs, and to run before him and announce where the balls fell.'

In July 1681, hearing that the Duke and Duchess of York were now residing in Scotland, an Irish theatrical company thought it might be a good speculation to visit Edinburgh, 'to set up a playhouse for the diversion and entertainment of such as shall desire the same.' They, to the number of thirty persons, landed at Irvine in Ayrshire, bringing with them 'clothes necessar for their employment, mounted with gold and silver lace,' when a difficulty was encountered, arising from the late act of parliament regarding laced clothes. The company was obliged to send a petition to the Privy Council in Edinburgh, shewing that 'trumpeters and stage-players' were exempted from the said act, and supplicating a pass to be exhibited to the tax-collector at Irvine. His Royal Highness and the Council at once acceded to the prayer of this petition.—*P. C. R.*

The Duke of York left Edinburgh by sea, on the 6th of March 1682, 'being desired to see his majesty at Newmarket. There was great solemnity and attendance at his parture.'<sup>273</sup> He returned to Scotland, on the 7th of May, also by sea, on which occasion occurred the disastrous shipwreck of the *Gloucester* frigate in which he sailed. His purpose at this time was to bring back his family from Scotland, and, accordingly, he and the princesses finally departed on the 15th of the month.

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A commission composed of country gentlemen and advocates sat in the Tolbooth of Borrowstounness to try a number of poor people for the crime of witchcraft. There was Annapple Thomson, who had had a meeting with the devil in the time of her widowhood, before she was married to her last husband, on her coming betwixt Linlithgow and Borrowstounness, when he, ‘in the likeness of ane black man, told you, that you was ane poor puddled body, and had an evil life, and difficulty to win through the world, and promised if you would follow him, and go alongst with him, you should never want, but have ane better life; and about five weeks thereafter the devil appeared to ye when you was going to the coal-hill about seven o’clock in the morning. Having renewed his former tentation, you did condescend thereto, and declared yourself content to follow him and become his servant.’ There were also women called Margaret Pringle, Margaret Hamilton (two of the name), and Bessie Vicker, besides a man called William Craw. ‘Ye and each person of you was at several meetings with the devil in the links of Borrowstounness, and in the house of you Bessie Vicker, and ye did eat and drink with the devil, and with one another, and with witches in her house in the night-time; and the devil and the said William Craw brought the ale which ye drank, extending to about seven gallons, from the house of Elizabeth Hamilton, and you, the said Annapple, had ane other meeting about five weeks ago, when you was going to the coal-hill of Grange, and he invited you to go along with him and drink with him in the Grange-pans.’ Two of the other accused women were said to have in like manner sworn themselves into the devil’s service and become his paramours, one eight years, the other thirty years ago. It was charged against Margaret Pringle, that ‘the devil took you by the right hand, whereby it was for eight years grievously pained, but [he] having touched it of new again, it immediately became haill;’ against Margaret Hamilton—‘the devil gave you ane five-merk piece of gold, whilk a little after becam ane sklaitt stane.’ And finally, ‘you and ilk ane of you was at ane meeting with the devil and other witches at the cross of Muirstane, above Kinneil, upon the thretteen of October last, where you all danced, and the devil acted the piper.’<sup>274</sup>

DEC. 19.

1679.

These poor people were solemnly tried by the commissioners before an assize of *fifty persons*, and, notwithstanding that the indictment charges scarcely any hurtful attempts against individuals, the whole were adjudged to be taken four days after to the west end of the town, and there worried at a stake and burnt.

Thomas Kirke, a Yorkshire squire, this year published a *Modern Account of Scotland*, containing an extraordinary effusion of bile against the country, but also preserving a few traits probably not far from the truth. He describes the gentlemen's houses as generally of a fortified character, 'with strong iron grates before the windows—the lower part whereof is only a wooden shutter, and the upper part glass—so that they look more like prisons than houses of reception. Some few houses there are of late erection, that are built in a better form, with good walks and gardens about them; but their fruit rarely comes to any perfection. The houses of the commonality are very mean, mud-wall and thatch the best. But the poorer sort live in such miserable huts as never eye beheld; men, women, and children pig together in a poor mouse-hole of mud, heath, and such-like matter.... The Lowland gentry go well enough habited, but the poorer sort almost naked, only an old cloak or part of their bed-clothes thrown over them. The Highlanders wear slashed doublets, commonly without breeches, only a plaid tied about their waists and thrown over one shoulder, with short stockings to the gartering-place, their knees and part of their thighs being naked. Others have breeches and stockings all of a piece of plaid ware, close to their thighs [trews]. In one side of their girdle sticks a durk or skene [knife], about a foot or half a yard long ... on the other side a brace at least of brass pistols: nor is this honour sufficient; if they can purchase more, they must have a long swinging sword.

1679.

'The highways in Scotland are tolerably good, which is the greatest comfort a traveller meets with amongst them. They have not inns, but *change-houses* [taverns], poor small cottages where you must be content to take what you find.... The Scotch gentry generally travel from one friend's house to another; so seldom require a change-house. Their way is to hire a horse and a man for twopence a mile;<sup>275</sup> they ride on the horse thirty or forty miles a day, and the man who is his guide foots it beside him and carries his luggage to boot.'



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In 1647, while the thoughts of men were engrossed by frightful civil broils, one quiet country gentleman, Sir Robert Bruce of Clackmannan, occupied himself in some measure with things of a practically useful nature.

1680. FEB. 26.

1680.

It was a most uncommon way of bestowing spare mental energy in those days, and perhaps was owing in a great degree to Sir Robert's situation in the midst of the fine coal-field still worked so industriously under the skirts of the Ochils. He was then found beseeching the attention of the Committee of Estates—amidst military arrangements, payments of public creditors, punishments of malignants, sharpening of the weapons of persecution against dissidents of all kinds—to a mechanical invention of his own—‘ane water-work, never invented, heard, nor seen heretofore, for drying of all water-heuchs [coal-mines] within the kingdom, how deep soever the sumptis and growth of the water-springs be within the samen, by the supplie of two men allenarly, going by *pace*,<sup>276</sup> *peise*, or *swey*.’<sup>277</sup> The laird, as usual, sought for his reward in an exclusive right to the use of this engine for nineteen years, which was granted.

What, if anything, came of this contrivance we do not learn. Most likely, it was never effectually tried, but fell asleep amongst the troubles of the time. Yet it would appear that the idea was somehow kept alive, for at the date noted in the margin, Peter Bruce<sup>278</sup> made application to the Privy Council for their favour towards an engine for drawing water out of coal-pits and quarries, which promised to do more work with a couple of men than six horses could effect by any other machine now in use; also towards a cutting-mill ‘for ane easy way of cutting all sorts of great goads and bars of iron in small lengths, stanchells, or strings, whereby smiths and other artificers in iron will be able to make nails and other iron works at least £2 Scots cheaper of every hundredweight of iron.’ He had spent much on these projects, and more was yet required, wherefore he thought himself entitled to some public encouragement. The Privy Council granted him an exclusive privilege of making the proposed machines for thirteen years.—*P. C. R.*

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A curious trait of the simplicity of Scotland in regard to some of the mechanical arts occurs in Fountainhall's *Decisions* under 1679, where he tells of plumbers that 'they cannot subsist in Scotland as a distinct trade, *there being so little to do; only our curiosity is daily increasing.*'

1680.

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Great efforts were made during this reign for the building of bridges and repairing of roads, but generally with little good effect. As an example of the actual condition of a road near the capital of the country at this time, we find the first four miles of that from Edinburgh to London—namely, from the Clockmill Bridge to Magdalen Bridge—are described as being in so ruinous a state, that passengers were in danger of their lives, 'either by their coaches overturning, their horse falling, their carts breaking, their loads casting, and horse stumbling, the poor people with the burdens on their backs sorely grieved and discouraged:' moreover, 'strangers do often exclaim thereat.' A toll of a halfpenny for a laden cart, and a sixth of a penny for a laden horse, was authorised in order to get this piece of road kept in repair.—*P. C. R.*

JUNE 15.

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In one week died Lady Kilbirnie and her husband of a pestilential fever. 'The death of thir spouses was much lamented by all sorts of people.... In the day of the sickening of the laird and lady, his dogs went into the close, and an unco dog coming amongst them, they all set up a barking, with their faces up to heaven, howling, yelling, and youphing; and when the laird called to them, they would not come to him as in former times.'—*Law.*

OCT.

The same author relates that, before the death of Colquhoun of Luss, 'the dogs went up to a chamber in the night-time, and made a hideous lamentable-like noise, and tore down the curtains of the bed, there being none in it.' At the sickening of Lord Ross, who died in May 1682, 'his dogs

came up the stair towards his chamber, howling lamentably; he caused shoot them all one after another.'

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The Duke of York paying a visit to the Castle of Edinburgh, the huge cannon called MONS MEG was fired in his honour. The charge, which was done by an English cannoneer, had probably been too large, for it caused the piece to burst. This 'some foolishly called a bad omen. The Scots resented it extremely, thinking the Englishman might of malice have done it purposely, they having no cannon in all England so big as she.'—*Foun*.

[Nov. ?]

Mons Meg, with a breach in her side, still adorns the ancient battlements of Edinburgh Castle, 'to the great admiration of people,' being upwards of thirteen feet long, and of twenty inches bore; formed of longitudinal bars of iron, hooped with rings fused into one mass. It is an example of a colossal kind of artillery which the sovereigns of Europe had a craze for making in the middle and latter half of the fifteenth century—this specimen being probably prepared at the command of James II. of Scotland.

1680.

An elephant which had been bought for £2000 sterling, and brought to England for exhibition, was shewn in Scotland, being the first of the species ever seen in the country. It was a male, eleven years old, 'a great beast, with a great body and a great head, small eyes and dull, lugs like two skats (?) lying close to its head; having a large trunk coming down from the nether end of the forehead, of length a yard and a half, in the undermost part small, with a nostril; by which trunk it breathed and drank, casting up its meat and drink in its mouth below it; having two large and long bones or teeth, of a yard length, coming from the upper jaw of it, and at the far end of it inclining one to another, by which it digs the earth for roots ... it was backed like a sow, the tail of it like a cow's: the legs were big, like pillars or great posts,

Nov.

and broad feet with toes like round lumps of flesh. When it drinks it sucks up the water with its trunk, which holds a great deal of water, and then putting the low end in its mouth, by winding it in, it jaws in the water in its mouth, as from a great spout. It was taught to flourish the colours with the trunk of it, and to shoot a gun, and to bow the knees of it, and to make reverence with its big head. They also rode upon it.... Let this great creature on earth and the whale at sea be compared with a midge or minnow, and behold what great wisdom and power is with the great God, the creator and preserver of both!—*Law*.

It appears that Alexander Deas and others farmed this elephant from its owners for several months at £400, in order to shew it through the country. They refused to pay in full, on the ground of several failures as to the terms of the contract, alleging, for instance, that the owners had not shewn all it might do—namely, its drinking, &c. It was replied, ‘it could not drink every time it was shewn.’ How the litigation ended does not appear.—*Foun*.

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A great comet, which had been observed in Germany a month earlier, was first seen in Scotland this evening, ‘the night being clear and frosty; between five and seven at night, it set in the west, and was seen in the south-east in the morning of the following days.<sup>279</sup> [It] had a great [tail] blazing frae the root of it, was pointed as it came from the star, and then spread itself; was of a broad and large ascent up to the heavens ... the stream of it all the night over is seen.... [It] had its recess from the west every night by degrees, as the moon has from the sun after her change, and being every night more elevate by degrees in its first after daylight was gone, then the stream of it mounted to our zenith, and beyond it, very wonderfully. No history ever made mention of the like comet ... and [it] is certainly prodigious of great alterations and of great judgments on these lands and nations for our sins; for never was the Lord more provoked by a people.... [It] continued till the 16th or 17th day of January, growing smaller and smaller to its end.’—*Law*.

DEC. 10.

1680.

‘When Mr M‘Ward, who was then a-dying, heard of it, he desired Mr Shields and other friends to carry him out, that he might see it. When he saw it, he blest the Lord that was now about to close his eyes, and was not to see the woful days that were coming upon Britain and Ireland, especially upon sinful Scotland.’—*P. Walker*.

Lord Fountainhall, in noting the appearance of a smaller comet for two weeks in August 1682, being the time when ‘semblances of joy’ were presented in Edinburgh for the accouchement of the Duchess of York of a daughter, adds: ‘I have seen a late French book, proving that comets prognosticate nothing that’s fatal or dangerous, but rather prosperous things; yet, at the time it shone, the Duke of Lauderdale, that great minister of state, died.’—*Hist. Ob.* This ‘yet’ is exceedingly amusing. He elsewhere states the opinions of those who believe in the ominousness of comets. According to them, ‘the effects’ do not always follow immediately: some indeed think a comet ‘takes as many years to *operate*, as it appears nights.’ He estimates the tail of the comet of 1680 at near [upwards of] 3000 miles in length, because it extends over 60 degrees, ‘and each degree is 60 miles!’ This learned judge, however, was himself of opinion that comets do not hold forth any prognostics of blood and desolation, further than by their natural effects in infecting the air, so as to occasion sterility, pestilential diseases, and famine.

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Lord Fountainhall probably deemed 3000 miles a considerable length for a comet’s tail. How must he have been surprised to learn that it was in reality nearly as long as the distance of the earth from the sun, or not much short of a hundred millions of miles. Equally great must have been his wonder to learn (as appears from Enke’s recent calculations) that this illustrious stranger only comes to our part of space once in 8814 years!

During this month, the public mind was in a highly excited state, owing to the terrific appearance of the comet overhead, in connection with the presence of the Duke of York in Edinburgh, and the news of the struggles in parliament for his exclusion from the throne. One Gray, a merchant in Edinburgh, gave out that, as he and a country friend called Yule were looking at the comet, ‘he saw a fire descend from the Castle down the city of Edinburgh to the Abbey’ [the duke’s residence], while Yule heard a voice saying: ‘This is the sword of the Lord!’ A man in a soldier’s apparel came up to Sir George

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Monro at mid-day in the street, and bade him go down and tell the Duke of York, if he did not counsel his brother the king to extirpate the Papists, both he and the king were dead men. Sir George turned about to call witnesses to what the man had said, and when he looked again, the man had mysteriously vanished. To crown all, 'a hypochondriac fellow' came out to the street, and proclaimed openly that the Day of Judgment would take place next day, offering himself to be hanged if it should prove otherwise. He was clapped up in the Canongate Tolbooth; rather a prosaic fate for a prophet. The two first circumstances are clearly to be referred to the hallucination which is apt to be engendered on occasions of great public excitement.

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The boys at the college in Edinburgh resolved to follow the example of the London apprentices in getting up a demonstration against the pope. What gave piquancy to the design was, that the Duke of York was now living in Edinburgh, under exile from London on account of his adherence to the Romish faith. They were very cunning and dexterous in making their arrangements, having first prepared their effigy of the pope, and then sent a small party with a portrait to the Castle Hill, in order to make the authorities think that they designed to have a procession from that place down the High Street to Holyrood Palace, where the duke lived. While this feint drew off the attention of the military, the youths brought out the true effigy to the High School Yard, and then marched with it up Blackfriars' Wynd to the High Street. It was a rude statue of timber, with a painted face; on the head, a gray periwig and triple crown; and in the hands a cross, a candle, and a piece of money. The figure was clothed in a calico gown, and sat in a chair. Having set it down on the street, they set fire to it, causing a quantity of powder within the body to explode and burst it all in pieces. Notwithstanding their expedition, they were attacked, while performing the ceremony, by the swords of the Earl of Linlithgow and a few other friends of the Duke of York; but they stood their ground, warning the assailants that they might hurt some they would not like to hurt. When all was over, they dispersed. Many regretted the act, as inhospitable towards

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the duke, and we may well believe, if General Dalzell had not been led with his troops on a false scent, he would have made the lads repent of their frolic. 'For a further testimony and bravado, the school-boys, apprentices, and many other people, mounted blue ribbons, inscribed with, "No Pope—no Priest—no Bishop—no Atheist;" which, again, caused the loyal to hoist the rival legend, "I am no fanatic."' "

One George Redpath, tutor to a gentleman's two sons, was brought before the Privy Council, and examined on the accusation of having drawn up a bond for the execution of this project. But after a few days' detention, he was set at liberty 'by the goodness of his royal highness, who was always too compassionate to that generation of vipers,' says Sir William Paterson.<sup>280</sup> This same Redpath lived to be an active Whig pamphleteer in London after the Revolution, and was the author of the *Answer to the Scots Presbyterian Eloquence*.

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The house of Priestfield, under the south front of Arthur's Seat, was burnt this evening between seven and eight o'clock. Political circumstances gave importance to what would otherwise have been a trivial occurrence. Sir James Dick, the owner, was provost of Edinburgh, and a friend of the Duke of York. His having adopted energetic measures with some college youths concerned in the Christmas anti-papal demonstration, was supposed to have excited a spirit of retaliation in their companions; and hence a suspicion arose that the fire was designed and executed by them. The Privy Council were so far convinced of this being the case, that they shut up the college, and banished the pupils fifteen miles, unless they could give caution for their good-behaviour. Sir James's house was rebuilt at the public expense, as it now exists in the possession of his descendant, Sir William Cunningham Keith Dick, Bart.

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Six women were hanged in Edinburgh. Two of them, Janet Alison from Perth, and Marion Harvey from Borrowstounness, 'were of Cameron's faction, bigot and sworn enemies to the king and bishops,' and, 'for all the pains taken, would not once acknowledge the king to be their lawful prince, but called him a perjured bloody man.' 'Some thought the threatening to drown them privately in the North Loch, without giving them the credit of a public suffering, would have more effectually reclaimed them nor any arguments which were used; and the bringing them to a scaffold but disseminates the infection.'—*Foun.*

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The other four women were hanged for murdering their own children, born out of wedlock. It would be hard to say which of the two cases reflects the most discredit upon the wisdom and humanity of the age.

On the ensuing 13th of April, another woman was hanged in the Grassmarket for murdering her child, declaring that she had committed the deed in order 'to shun the ignominy of the church pillory.' The frequency of such cases, and the declaration of this poor woman, attracted the attention of the Duke of York. He was surprised to hear of a custom used in no other Christian country, which 'rather made scandals than buried them.' The duke, we are told, 'was displeased, and thought it would be a more efficacious restraint, if the civil magistrate should punish them, either by a pecuniary mulct, or a corporal punishment.' Fountainhall, however, thought the practice justifiable, on the text, 'They who sin openly should be rebuked openly,' and from the penances imposed in the primitive church.

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A company of distracted people was this day brought into Edinburgh, under the guardianship of a troop of dragoons. They were commonly known as the *Sweet Singers of Borrowstounness*, from their noted habit of frequent chanting of psalms. The religious exasperations of the times, the execution of a Bo'ness man named Stewart, with two others, on the preceding 1st of December, and perhaps in addition to these causes, the terrors diffused by the comet, had now produced in that little town an epidemic mania of a type only too well known. These people felt as

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if all was wrong in church and state, and professed to deny all kinds of institutions, even the names of the days of the week; nay, the commonest social obligations, as that of working for one's own bread. They protested against taxes, confessions, and covenants; disowned the king and his government; and called for vengeance on the murderers of the two late martyrs, Stewart and Potter, whose blood they carried on a handkerchief. They ran up and down the town in a furious manner, sometimes uttering prayers which consisted chiefly of curses invoked against individuals, more frequently singing psalms of lamentation (74th, 79th, 80th, 83d, and 137th) for the sins of the land. Such of the females as were married deserted their homes and husbands, and if the husband, in his endeavours to win his wife back to rationality, took hold of any part of her dress, she indignantly washed the place, as to remove an impurity. They followed a gigantic fellow, commonly called Muckle John Gibb, but who passed among them under the name of King Solomon, and at length, 'leaving their homes and soft warm beds and covered tables,' six-and-twenty of them went forth from their native town, notwithstanding the entreaties of weeping husbands, fathers, and children, calling on them to stay; 'some women taking the sucking children in their arms to desert places, to be free of all snares and sins, and communion with all others, and mourn for their own sins, the land's tyranny and defections, and there to be safe from the land's utter ruin and desolation by judgments; some of them going to the Pentland Hills, with a resolution to sit there to see the smoke and utter ruin of the sinful, bloody city of Edinburgh.... Immediately after they came to these desert places, they kept a day of fasting and confessing of their sins one to another; yea, some of them confessed sins which the world had not heard of, and so not called to confess them to men.'—*Pat. Walker*.

Even the Whig clergymen who had gone to the wilderness rather than own an uncovenanted king, were surprised at the more extreme feelings of the Sweet Singers. Walker tells how he was with the Rev. Mr Cargill at Darnead Muirs, when the Gibbites were 'lying in the Deer Slunk, in the midst of a great flow-moss betwixt Clydesdale and Lothian about a mile distant.' Gibb and another man came armed, and held a conference with Mr Cargill in a barn, but it led to no good. After resting a while, the chief of the Sweet Singers rose in haste and went to the muir all night. 'I well remember,' says Walker, 'it was a cold easterly wet fog.' Cargill was shocked by the state of



mind he had found them in. They were afterwards all taken by a troop of dragoons at the Woolhill Craigs, betwixt Lothian and Tweeddale, a very desert place, and carried to Edinburgh, where the men were put into the Canongate Tolbooth, and the women into the Correction-house, where they were soundly scourged. After a little time, these poor people cooled down somewhat, and were one by one set at liberty. Walker says the most of them ultimately returned to their right mind, and he had had some edifying conversations with them since.

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Articles used in clothing in Scotland had hitherto been almost wholly of home manufacture. As in Sweden to this day, the great bulk of the people spun their own wool and flax, each family for itself, and had the yarn woven into cloth by the village webster. There were as yet but the merest attempts at a manufacture of cloths or hosen for general sale and use. We have seen a modest attempt made by certain foreigners in Edinburgh so early as 1609.<sup>281</sup> It is stated that in the reign of Charles I., there were cloth-works on a small scale at Newmills in Haddingtonshire, at Bonnington near Edinburgh, and at Ayr. That at Newmills was in a thriving condition till Dundee was stormed and sacked by Monk in 1651, when a store of its cloth was taken, and the troubles soon after closed the work.<sup>282</sup> Latterly, it could scarcely be said there was any general manufacture of articles of attire except at Aberdeen. There one George Pyper had a number of country-people engaged in working stockings with the needles, paying them at the rate of five groats (equal to 1-2/3d. sterling) a pair for the making; and he raised the working to such a fineness in some instances, 'that he hath given twenty shillings sterling and upward for the pair.'<sup>283</sup> In this province there was also a manufacture of *plaiden* stuffs and *fingrams*, which was the more meritorious as the wool was mostly brought by sea-carriage from the southern parts of the kingdom. It is related that a Mr Barnes, 'a substantious merchant in Edinburgh,' thought he might make a saving by getting the same stuffs made in his own neighbourhood, and have an advantage over the Aberdeen merchants in sending out his cloth to the Dutch market. But, on trying an experiment with 'ten sea-packs of plaiden,

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which might be worth £20,000,' he found that he had scarcely produced his cloth at as low a rate as that at which the Aberdeen merchants sold theirs. The explanation, which he obtained from Mr Alexander Farquhar, a merchant in Aberdeen, might be worthy of Mr Babbage's attention for a new edition of his *Economy of Manufactures*. It was, that the people who worked these cloths in the north 'had not by far such entertainment as his [Mr Barnes's] servants had—they oftener drank clear spring-water than ale.' When Mr Barnes heard this, he gave up his manufacture. Of late years, even this frugally conducted manufacture, which had in some years brought a hundred thousand rix-dollars into the country, and greatly facilitated the payment of rents, was much decayed—the goods reduced to half their wonted prices, and yet not the half exported that was—and all from a cause also of much significance in the philosophy of business—namely, 'deceitful mismanagement,' leading of course to loss of confidence, and a consequent checking of orders.

The faculties for business which the Duke of York possessed in so respectable a degree, seem to have now begun to tell upon the country in which he found a refuge. While joining in the unhappy severities dictated by the Privy Council against the poor Whigs, he gave attention to the solid interests of the nation at large, and had consultations with such men of mercantile spirit as the country then possessed, with a view to the planting of cloth-factories similar to those which had long been realising good results in England. It was pointed out that the making of the better kinds of cloth within the country was becoming a matter of most serious concernment, because, owing to the great drain of money which was occasioned by the importation of such cloths from the south, 'English money was not to be had under 6 or 7 per cent., scarce at any rate,' and exchange between Edinburgh and London had risen against the former place as high as 12 or 15 per cent. 'Our four-merk pieces,' it was added, 'the best coin of our kingdom, were almost wholly exported, and above £20,000 sterling in dollars left the country in the year 1680.'

The result of the duke's patriotic deliberations was the passing of acts of Council in March and April, and the passing of an act of parliament in September 1681, for the encouragement of trade and manufactories. Through his personal exertions, a body of men, including Mr Robert Blackwood and several other

merchants in Edinburgh, was induced to associate for the setting up of a new work at Newmills, the produce of which was to be disposed of by them under peculiar regulations. It was to be under the care of an enterprising Englishman named Sir James Stanfield, who for some time had been settled there. In August, six *sheermen* and a foreman having been brought down from England, this work commenced with two looms—soon increased to eight—soon after to twenty-five; and in 1683 it was still extending. ‘We began,’ says the pamphleteer formerly quoted, ‘to make the coarsest of white cloths first, wherein we continued till October 1682; then we turned part of our people to coarse mixed cloth, and so on gradually to finer, and *now we are upon superfine cloths*, and have brought the spinners and rest of the work-people that length, that we hope against May next to have superfine cloths as good as generally are made in England.’ There was also a manufacture of silk-stockings going on at Newmills. The whole work seems to have then been in a hopeful condition, albeit on the unsound footing of a monopoly, all English goods of the same kinds being prohibited under severe penalties.

The act was, indeed, too sweeping in its tendency, for it forbade the importing of a great number of stuffs—as silks, embroideries, gold lace, ribbons, silk fringes, cambrics, and damasks, which it was not in the power of any native manufacturer to supply, and which certain classes of the people were little inclined to dispense with. It was thought necessary by these means to save the money of the country. It led to a strange scene one day on the High Street of Edinburgh. George Fullerton, a merchant of that city, had committed a gross violation of the law, first in smuggling in some packs of English cloth, and afterwards, when they were seized by the authorities, repossessing himself of them by violence. The Privy Council ordered him to be declared fugitive, had the two ‘waiters’ of the West Port scourged for allowing the goods to be introduced, and ordained the cloth itself to be burnt at the Cross by the hand of the hangman. The common people beheld this last spectacle with feelings of their own, for they thought it might have been better to distribute the cloth among the poor: however, says Fountainhall in a whisper, it was only the worst bales that were burned: the best were ‘privily preserved.’

Absurd as all this procedure may appear, it precisely represents the existing policy of Sweden and some other

continental countries in respect of British manufactures.

One natural result of the act very soon appears, in the magistrates of Edinburgh being called before the Privy Council at the suggestion of the Duke of York, and recommended to call up the merchants, in order to discharge them from ‘extortioning the lieges, by taking exorbitant prices for the merchandises now prohibited ... on the pretence that there no more of that kind to be imported within the kingdom.’

In February 1683, General Dalyell, finding ‘that he cannot be provided in this kingdom with as much cloth of one colour as will be clothes to the regiment of dragoons,’ obtained a licence from the Privy Council permitting the cloth-manufacturing company at Newmills ‘to import 2536 ells of stone-gray cloth from England, for clothing the said regiment of dragoons,’ they finding caution under £500 sterling to limit the importation strictly to that quantity. About a month later, the Council made a change in this order, to the effect that the general might appoint a person to import the cloth—not exceeding five shillings sterling the ell—instead of the Newmills company.

In May 1683, Captain John Graham of Claverhouse was permitted by the Privy Council, on petition, to import from England, for the use of his troops, 150 ells of red cloth, 40 ells of white cloth, and 550 dozen of buttons; giving security that no advantage should be taken of this licence to bring in any other cloth.

Of a small cloth-work in Leith it was declared (December 1683) that the partners engaged ‘are excellently skilled in their trade, and can dye and mix wool and cloth, and takes in wool from the merchant or other person, and does dye and mix it; and when they get in yarn, does weave and dress it, and deliver it in broadcloth; and has already made good broadcloth to many of the merchants of Edinburgh.’ ‘Seeing that this is so good a work,’ the Privy Council, on petition, extended to it the privileges proposed in the act for encouraging manufactures.—*P. C. R.*

Still the Council itself does not seem to have been a consistent patron of such native works. The dress of the infantry of the royal army having hitherto been of a plain kind, it was reported as necessary to have coats for them ‘of such a dye as shall be thought fit to distinguish sojors from other skulking and vagrant

persons, who have hitherto imitated the livery of the king's sojors.' The Newmills Cloth Manufacturing Company offered (August 28, 1684) from their own work, to furnish a suitable cloth 'of what dye should be desired,' and as cheaply and expeditiously as it could be had from England. They would shew 'swatches' [samples] within a fortnight, and give security for the fulfilment of their undertaking. But the lords decided to use English cloth.

Patrick Graham, 'captain of his majesty's company of foot within the town of Edinburgh' (the Town Guard), was empowered (January 8, 1685) to import 'three hundred ells of English cloth of a scarlet colour, with wrappings and other necessars' for the clothing of his corps, this being 'in regard the manufactories are not able to furnish his majesty's forces with cloth and other necessars.' Several other commanders of troops got similar licences. The Newmills Company looked on with outraged feelings, and presented a petition desiring that a stop might be put to the importation of English cloth for the soldiery, as the needful article could be furnished as cheaply and of as good quality from the native factory. In order that they might not be 'utterly ruined and broke,' they begged that a committee might be appointed to ascertain that such was the case; and a committee was accordingly appointed, but with no result that appears. Meanwhile, we find the Newmills copartnery trying to protect their monopoly against infractions by private parties.

It made an attack in April 1684 upon five merchants of Edinburgh who continued, in defiance of the law, to deal in English cloth. It was complained of against Robert Cunningham that 'he sold a suit of clothes of English cloth to Daniel Lockhart; item, a suit to Boghall; item, a suit to Lord Forfar; item, a suit to William Lockhart; which clothes was made by William Cowan, tailor.' He had likewise 'sold ane coat of ... ells to the Laird of Blackadder, made by Hugh Galloway, tailor; to the Marquis of Athole, a suit, made by Lachlan M'Pherson, tailor; item to Mr Thomas Chalmers, two ells and a half English cloth; item to the Bishop of the Isles, two ells and a half English cloth ... item, a suit to the Marquis of Montrose.' It was alleged that he had imported and sold in all 'five hundred ells of prohibite cloth, ane thousand ells of prohibite stuffs and serges, and two hundred pair of English worsted and silk stockings less or more.' James Weir, Andrew Irving, William Fullerton,

and Thomas Smith had all committed delinquencies of the same kind, the enumeration of which would only tire the reader; and all this notwithstanding they had been kindly invited by the Newmills Company to join their concern. What made the matter the more insufferable, a complaint made against them in August last had been graciously superseded in their behalf by royal proclamation; and they, as if to shew 'their incorrigibleness and obstinacy,' 'sighting that so great mark of clemency,' imported more during the few months since elapsed than they did for two whole years before, 'in open contempt of his majesty's laws, *to the destruction of trade and commerce within the kingdom*, to the cheating, abusing, and oppressing of his majesty's lieges, and manifest endangering of the said manufactory and ruining of the persons therein concerned.'

The offenders, having been oft called before the Privy Council, and having failed to appear, were held as confessing their guilt, and accordingly decerned to deliver up the prohibited cloths and stockings to be burned, and at the same time to recompense his majesty's cashkeeper for them 'at twelve shillings sterling for the ell of cloth, two shillings sterling for the ell of stuff, and five pound sterling for ilk dozen of prohibite stockings.'—*P. C. R.*

While these strenuous measures were taken for preventing the free importation of English woollen cloth into Scotland, a petition came (December 2, 1684) from persons interested in the linen manufacture of Scotland, complaining of the usage which had lately been experienced by Scotsmen selling their linens in England. Hitherto there had been a free trade for Scotch linen-weavers in the south; and, as ten or twelve thousand persons were employed in such weaving, the results were important not merely to the workers, but to landlords, for the payment of their rents, and to the government, as each of a thousand or twelve hundred packs exported to England paid a custom of three pounds sterling. Latterly, however, the men selling Scotch linen in England had been taken up and whipped as malefactors, and many obliged to give bonds that they would discontinue their traffic.

The Council recommended the secretary of state to interpose with his majesty, that merchants and others might have liberty to sell linen in England as formerly; never once adverting to the fact that they had an act of

parliament conceived in the same illiberal spirit towards English woollen manufactures.

Such were the early struggles of an important branch of industry in Scotland. It was not, after all, to be in this age that good woollen cloth was to be produced in our northern clime. A writer in 1697 says: ‘We have tried to make several things, and particularly hats and broadcloth, and yet *we cannot make our ware so good as what we can have from abroad.*’ He adds, however, as a ground of hope: ‘Those who would propagate any new manufacture must lay their account to labour under several disadvantages at first. When soap-manufactures were first set up in this kingdom, the soap was not so good as what we had from abroad by far. These at Glasgow gave it over, as a thing they could not accomplish; these at Leith continued to work, and now they have acquired so much knowledge in that art, that their soap is better than that we have brought from abroad.’<sup>284</sup>

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Three men, named Gogar, Miller, and Sangster, were hanged in the Grassmarket ‘for disowning the king’s authority, and adhering to Cargill’s covenant, declaration, and excommunication, and thinking it lawful to kill the king and his judges.’—*Foun.* It is to make the rulers of that day somewhat worse than they were, to suppose that they ordered these horrible executions in a purely unfeeling manner, and without any hesitation. It is stated by Fountainhall, a Whig, that the Duke of York sent the Earl of Roscommon to see these men on the scaffold, and try to bring them to such a point as would have allowed of their lives being spared. Had they but pronounced the words, ‘God save the king,’ they would not have been executed. But they refused life on such terms—the more surprising, as there was no want of Scripture texts to warrant them in praying for the reigning sovereign, even supposing him a monster of wickedness. ‘Daniel,’ remarks Fountainhall, ‘wishes Nebuchadnezzar and Darius, heathen kings, to live for ever.’ It would be curious to know what the accomplished Roscommon felt regarding these singular examples of Scottish religious pertinacity.

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On the other hand, it is surprising that when the Duke of York went so far as to offer the poor men their lives on what appear such easy terms, he did not go a little further and see the absurdity of treating such tempers as treasonable. ‘It would have been better,’ says Fountainhall, ‘to have kept them in bonds as madmen, or to have employed physicians to use their skill upon them as on hypochondriac persons.’ One would have thought that the manifest and acknowledged maniacal condition of the Borrowstounness saints might have suggested the true theory as to the obduracy of such men as Gogar, Miller, and Sangster.

1681.

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A process stood at law between Alexander Robertson, laird of Struan, and the Marquis of Athole, arising from a service of Struan as heir to an ancestor who lived two hundred and fifty years before; and amongst the points debated was an alleged superiority of the marquis over some lands held by Struan. These were both Highland chiefs of some importance, but, dwelling near the Lowland Border, might be considered as of those who were most likely to exhibit a tinge of Lowland habits. The marquis was indeed a political character of some figure, holding the office of Lord Privy Seal and a place in the Council.

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The Highland laird of those days was acquainted with law, and had often enough occasion to resort to it; but there was an element in his nature which placed him more or less above law. Law-giver and law-executor in his own territory and over his own people, almost without control, it was difficult for him to accommodate himself to the idea of submitting to the formal, pedantic rules and awards of the Session or the Council. So much being premised, we must figure to ourselves the doughty Struan walking about in the Council-chamber on the day noted in the margin, not bearing his ordinary arms, pistol and durk, externally—for that was forbidden—but carrying them in his bosom under his clothes, and no doubt very wrathful at the arrogance of his proud neighbour, the marquis, in claiming any superiority over him.



His business being under consideration, he told the clerk that he was no vassal of the Marquis of Athole. One John Fleming, ‘servitor’ to the marquis—a kind of gentleman dependant—quietly contradicted him, saying that not only did his sasine of the lands of Tulloch clearly shew him as a vassal of the marquis, but there was a mutual contract between him and the marquis, obliging him to hold these lands in that manner, and on this a decret had been obtained from the Court of Session. The blood of the chief of the Clan Donochy could not brook such an opposition. He broke out upon Fleming with passionate violence, calling him rascal, knave, and villain. He would see the Marquis of Athole hanged before he would be his vassal. And as for the Court of Session, he cared not a snuff for its decret. Then thrusting his hand under the breast of his upper coat, ‘where his durk and pistol are secretly kept,’ he said he knew not what held his hand from writing his case on Fleming’s skin.

This conduct was of course sure to turn to the injury of Struan himself. In a very few days, Fleming had him up by petition before the Privy Council, who, finding the charge proved, sentenced Struan to imprisonment during pleasure in the Tolbooth, to crave pardon first of the Council, and then of the Marquis of Athole, ‘on his knees,’ and to give Fleming security for the expenses (limited to £100 Scots) incurred by the action and by the interruption it had given him in his business.—*P. C. R.*

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A case before the Privy Council reveals the treatment of the insane in this age. It was a complaint from Mr Alexander Burton against his brother John for putting him into Hopkirk the surgeon’s hands as a madman. It was alleged, on John Burton’s part, that Alexander was really melancholic and furious; so required restraint: also that he was misusing and dilapidating his fortune; hence a bill had been applied for to put his affairs under curators. Alexander answered that ‘he had only craved his annual rents, and to refuse him his own, and treat him as a fool, would raise pepper and passion in any man’s nose, and then they termed the acts fury.’ To settle the matter, the Duke of York, who was present, desired that the alleged fool might be permitted to

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speaking; whereupon he delivered himself so extravagantly, that the Council found it only right that he should be put under restraint, and his affairs placed in charge of his brother. Fountainhall adds: 'In Scotland, we, having no Bedlam, commit the better sort of mad people to the care and taming of surgeons, and the inferior to the scourge [or] the poor.'

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M'Gill of Rankeillour gave in a petition to the Privy Council, craving

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permission for his son, Sir James M'Gill, to come to see him, as he was about to depart from this life. The son

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had about eight years before been so unfortunate as to kill Sir Robert Balfour of Denmill, and the king had granted him a remission, on the condition that, in order to prevent further bloodshed, *he should never again be seen in Fife*. The father, being eighty years of age, anxious to take farewell of his son, begged the Council to relax this condition for a few days. The Council doubted if they had power to grant the petition; but the Duke of York 'affirming that he believed the king would not refuse this desire of an old dying gentleman, they granted it in thir terms, that he should go with a guard like a prisoner, and

stay but twenty-four hours, and then depart out of Fife, where the friends of him that was killed live.'—*Foun*.

Sir Robert Balfour was the only surviving son and successor of Sir James Balfour of Denmill, the well-known antiquary. He fell in a duel with Sir James M'Gill, at a spot closely adjacent to the M'Duff Cross in the parish of Newburgh in Fife. A cairn of stones raised in commemoration of the sad event, and called *Sir Robert's Prap*, was in existence a few years ago. This unfortunate gentleman must have fallen in the very morning of life, as he was born in 1652.

Encouraged by the liberality of the Council, Sir James M'Gill petitioned them anew in December for a removal of all restriction upon his remission, alleging that it was required on account of the decayed and infirm condition of his parents (he being their only son), and the ruin into

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which his affairs had fallen in consequence of his long exile. Against this petition, however, the friends of Sir Robert Balfour gave in answers, shewing how green such a family wound could then be kept for eight years. They urged that the slaughter of their kinsman, so far from being done as alleged by Sir James in self-defence, was in forethought felony, and it was only owing to an undeserved clemency on his majesty's part that he had not been brought to condign punishment. The pretexts regarding his parents and estate were frivolous, when the nature of his offence was considered. 'Though it is insinuate that the said Sir James desires only to live in the parish of Monimail, and not in the parish of Ebdie, where Sir Robert's nearest relations are, this is a very silly pretence, for this is the very next parish, and Sir Robert's nearest relations have their interests in this parish itself, and it may be easily considered that, if this be allowed, Sir Robert's friends will be punished for Sir James's crime, since they must, to shun his company, neither go to meetings of the shire, baptisms, nor marriages, burials or churches, nay, nor to see their friends nor neighbours, lest they should *fall in inconveniences with him*, which was the ground upon which the restriction was granted at first.' To prove how unworthy Sir James was even of the favour extended to him in May last, it was set forth that on that occasion 'he must ride insolently by the very gate of the gentleman whom he had murdered, with a great train of his friends, and in passing the road they did also very insolently boast and upbraid the poor people with whom they met.' If this, it was added, 'was done in the very first time, what may be expected when his confidence is increased by renewed favours, and when Denmill's friends see that the only satisfaction they got (which was not to see him at all) is taken from them.'

The pleading of Denmill's friends was too reasonable to be resisted, and M'Gill's petition was refused.—*P. C. R.*

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On a complaint from the master of the High School of Edinburgh to the Privy Council, two or three private teachers were imprisoned till they should give caution, not to teach Latin without a licence from the bishop, and even then to carry the boys no further than 'the rudiments and vocables;' after which it was

JUNE 2.

thought they might be of sufficient strength to go to the High School. What disposed the Council to support the complaint was that there were several private teachers now in Edinburgh, who were ‘outed ministers,’ and accordingly were suspected of poisoning their pupils with disloyal principles.—*P. C. R.*

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From March up to this date, there was a cold drought, which at length inspired so much dread of famine and consequent pestilence, that a fast was proclaimed throughout the kingdom ‘for deprecating God’s wrath and obtaining rain.’ The evil was generally regarded as an effect of the great comet of the past winter; ‘and certainly,’ says Fountainhall, ‘it may drain the moisture from the earth, and influence the weather; but there is a higher hand of Providence above all these signs, pointing out to us our luxury, abuse of plenty, and other crying sins.’ He adds: ‘God thought fit to prevent our applications and addresses, and on the 24th of June and following days, sent plentiful showers.’

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JUNE 24.

Died this evening in his lodgings in Holyrood Palace, the Duke of Rothes, Chancellor of the kingdom, an able and magnificent man, who, by his licentious life, was believed to have set a bad example to the Scottish nobility of his day. The cumbrous grandeur of his funeral excited much attention. The body was carried from St Giles’s Church to Holyrood Chapel, amidst a procession of soldiery, state officials, personal retinue, noblemen and gentlemen mourners, and heraldic personages, which fills six quarto pages in Arnot’s *History of Edininburgh*. It was next day conducted in a hearse to Leith, thence conveyed across the Forth to Burntisland, and ‘the next day after, it was met by the gentlemen of Fife, of which his grace was high-sheriff, and by them accompanied to the family burying-place at Leslie, being laid in the grave with sound of trumpets, and the honours placed above the grave.’

JULY 20.

1681.

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Leather stamped and gilded—believed to be originally a Spanish fashion—was a favourite cover for the walls of rooms in the better class of houses in Scotland as well as in England. Some examples of the style still survive, and speak so strongly in its favour, that we might justly wonder at its going out of fashion. Hitherto such ornamental leather was introduced from abroad; but now Alexander Brand, merchant in Edinburgh, by a considerable outlay, had brought workmen and materials into the kingdom, and for the first time was about to set up a work, in which he expected to produce the article ‘at as easy rates as it could be imported.’ On a favourable report from ‘the Committee of Trade,’ the Privy Council gave Brand a privilege of exclusive manufacture for nineteen years.—*P. C. R.*

SEP. 1.

Thomas Kennedy and John Trotter, merchants, were at the same time proposing to set up a manufacture of linen and woollen cloth stuffs and stockings in the place called Paul’s Work in Edinburgh, where, so long ago as 1609, there had been an attempt at a woollen work. And as an encouragement, the Council ordained them to have all the privileges offered to manufactories in Scotland by the twelfth act of the present parliament regarding manufactures.

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The ‘whole settled revenue’ of the king in Scotland was this day leased to Bailie Baird, Charles Murray, and Robert Milne, for seven years, at £90,000 per annum, they advancing £16,000 to pay the army. It appears that the pensions then paid out of the Scottish exchequer amounted to £25,000 a year. It is a curious consideration that at present the *Times* newspaper pays considerably more revenue than the whole taxation of Scotland in the latter part of the seventeenth century.

OCT. 1.

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Colonel Gage, commander of a regiment in the service of the King of Spain, proposed to the Duke of York to take a few of the *phanatiques* now in custody into his regiment, and so relieve the authorities of all further charge of them. The duke caused six, named Forman, Garnock, Lapsley, Stewart, Fairie, and Russell, ‘most of them young fellows,’ to be brought before the Council, with the design of sentencing them to be delivered to Colonel Gage. The men, however, ‘did so misbehave, in declining the king, duke, and Council, and speaking such notorious treason,’ that it was thought necessary to send them instead to the criminal court. There it was only too easy to prove the treasonable nature of their language. Forman had a knife, with a posy, ‘This is to cut the throat of tyrants.’ It appeared that Garnock had at the Council so railed at General Dalyell, calling him ‘a Muscovy beast who used to roast men,’ that the old soldier struck him with the pommel of his sword on the face till the blood sprung. One alone obtained mercy; the other five were doomed to death, Forman having the special sentence to lose his hand before hanging, on account of his knife. These men all died ‘obdurately,’ as their enemies called it, ‘heroically,’ according to their friends, ‘reviling and condemning their judges and all who differed from them,’ says Fountainhall. Patrick Walker adds some curious particulars. ‘The never-to-be forgotten Mr James Renwick told me that he was witness to this public murder at the Gallow-lee, betwixt Leith and Edinburgh, where he saw the hangman hash and hag off their five heads, with Patrick Forman’s right hand. Their bodies were all buried at the gallow’s foot; their heads, with Patrick’s hand, were brought and put on five pikes on the Pleasance Port.... Mr Renwick told me also, that it was the first public action that his hand was at, to convene friends and lift their murdered bodies, and carry them to the West Churchyard, and bury them there. Then they came about the city to the Nether-Bow Port, with a design to retake the heads, hands, and other parts of our martyrs down; but a woman, holding over a candle to let some people see the street, marred them. Then they took down these five heads and that hand, and the day being come, they went quickly up the Pleasance, and when they came to Lauriston yards, upon the south side of the city, they durst not venture, being so light, to go and bury their heads with their bodies, which they designed, it being present death if any of them had been found. Alexander Tweedie, a friend, being with them, who at that time was gardener in these

OCT. 1.

1681. OCT. 10.

yards, concluded to bury them in his yard, being in a box (wrapped in linen), where they lay forty-five years....' These relics were exhumed in 1726, with all manifestations of rejoicing.

The day after the five men had suffered at the Gallow-  
lee, the duke had other four called before the Council,  
with a view to their being sent away with Colonel Gage.

1681.

'When they were brought in, they began in the very same strain with their neighbours who were hanged the day before; but the duke caused hastily remove them, that they might not also hang themselves with their own tongue.'—*Foun.*

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Amongst the gaieties of this day at Holyroodhouse, in  
celebration of the queen's birthday, was 'the acting a  
comedy called *Mithridates, King of Pontus*, wherein

Nov. 15.

Lady Anne, the duke's daughter, and the ladies of honour, were the only actors.' Fountainhall, who states this occurrence, only adds the remark: 'Not only the canonists, both Protestant and Popish, but the very heathen Roman lawyers, declared all scenic and stage players infamous, and will scarce admit them to the sacrament of the Lord's Supper.' On this occasion, there was a prologue by the Earl of Roscommon, addressed specially to the duke, and conceived in a strain of extravagant flattery ludicrously in contrast with the feelings of a large body of the people:

'When wealthy neighbours strove with us for power,  
Let the sea tell how, in their fatal hour,  
Swift as an eagle our victorious prince,  
Great Britain's genius, flew to her defence.  
His name struck fear, his conduct won the day....  
O happy islands, if you knew your bliss!  
Strong by the sea's protection, safe by his!  
Express your gratitude the only way,  
And humbly own a debt too vast to pay,' &c.

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The test being a puzzle and a bewilderment to some of the sagest statesmen of the day, it is not surprising that it should have somewhat confounded the magistrates of a simple Scotch burgh. At this date, there was a petition to the Privy Council from William Plenderleith, provost;

Nov. 24.

1681.

John Hope, bailie; and John Givan, treasurer of Peebles, in name of the council of that burgh, setting forth that, ‘being desired to take the test, they were always willing;’ yet, ‘the town being very inconsiderable, and *the petitioners very illiterate and ignorant*, and living in a remote place where they could get no person to inform them of the difference betwixt the act of parliament and the act of Council, and not having the act of parliament in all the country, *nor yet the confession of faith*, to which it related, the petitioners humbly desired a time to advise as concerning the test.’ At their late election, they had contented themselves with taking the Declaration, ‘thinking that the first of January was sufficient to take the test.’ But now, understanding what was required of them, they protested their eager willingness to take the test, ‘having always been very loyal,’ as they had shewn by their conduct on the occasion of the Bothwell Bridge rebellion, for which they had received the thanks of the Council. The Lords seem to have looked leniently on the omission of this innocent little municipality, and now accepted their signatures in good part.

The magistrates of Peebles were, not long after, involved in a trouble of a different complexion, in consequence of an unpopular movement for the letting of a piece of commonty near the walls of the town, which they had found to be ‘a pretext for incomers to the said burgh, and the poor people, to eat up their neighbours’ corns.’ While they were engaged in their Tolbooth or court-house (March 1, 1682) in the administration of justice, a mob of irate burgesses, of whom thirty-seven are named, came to express their disapprobation of a late act of Council on that subject, and, if possible, frighten them from proceeding with it; ‘menacing the provost that if he did so, he should be stucked as Provost Dickison was.’<sup>285</sup> The magistrates put two of their assailants in jail; but these were soon liberated by force. Then the magistrates got the two burgesses and five of their liberators clapped up in prison; but, behold, next day, taking a leaf out of the history of the troubles of 1637, a mob of women assembled—namely, Marion Bennett, Marion Grieve, Margaret Wilson, Isobel Wilson, Isobel Robertson, Janet Ewmond, Isobel Ewmond, and Helen Steel—the names of such heroines



are worth preserving—and ‘did in a tumultuous and irregular way take out of prison the persons of William Porteous, Andrew Halden [the original prisoners], Thomas Stoddart, Alexander Jonkieson, John Tweedie, Thomas King, James Waldie, and William Leggat, and went to the Cross of Peebles with them, and there drank their good healths as protectors of the liberties of the poor, and the confusion of the said magistrates and council, and took up with them stones to stone to death such as should oppose them; and thereafter, they being about three hundred persons, divided themselves in several companies, and every company convoyed home a prisoner, and drank their good health, to the great astonishment of all honest and well-meaning people.’

This affair being brought as a gross riot before the Privy Council, five of the men liberated, including the two who had first been in prison, were deprived of their burgess privileges, and committed to the Tolbooth of Edinburgh during pleasure, while the magistrates were enjoined to ‘convene before them the haill rest of the inhabitants that were accessory to the tumult and riot libelled, and to proceed against them therefor, in fining, imprisonment, or ryving their burgess-tickets, as they shall find cause.’

1681.

On the same day in which this case was judged, a petition was presented from the five ex-burgesses, representing themselves as ‘poor and ignorant persons,’ who had not meant any harm—as most of them valetudinary and unable to bear confinement in jail—and, moreover, as required to be now engaged in the labours of the season; wherefore their liberation was craved. This was soon after acceded to, on their giving security to reappear if called upon, and that they would go and confess their fault, and crave pardon of the Peebles magistrates.—*P. C. R.*

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As an example of the benevolence of the Privy Council of this time, in cases where the reigning political prepossessions were not offended—we find, on the very same day with some strong proceedings against Presbyterian recusants, a representation from John Riddell, merchant in Edinburgh, setting forth some recent heavy losses of merchandise at sea, and certain obligations he

DEC. 22.

was under in the way of cautionry, whereby he had been reduced for eleven months past to the sad condition of a prisoner in the Tolbooth of Edinburgh, with ‘nothing left to maintain himself and three motherless children, unless that that the charitable supply of tender-hearted Christians doth support and help him.’ Though he had no claim on public benevolence beyond some sufferings long ago for the king at and before Worcester, the Council gave warrant to the Archbishop of St Andrews and the Bishop of Edinburgh for a voluntary contribution on Riddell’s behalf throughout these two dioceses, enjoining them to cause the ministers to ‘make due and lawful intimation thereof.’—*P. C. R.*

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Poor as Scotland was universally reputed to be, foreign adventurers in search of fortune would occasionally resort to it. Peter Bruce or de Bruis was one of these—a native of Flanders, and a Catholic. We have already (February 1680) seen him asking public favour for a water-pumping engine and an iron-cutting mill which he had invented. We hear of him in Fountainhall, about that time, as building a harbour at Cockenzie for the Earl of Winton, and having a long litigation about the payment. He seems to have been an active spirit. In December 1681, he succeeded in obtaining from the Privy Council a patent for the exclusive manufacture and sale of playing-cards, under the usual pretence that money would thus be retained within the country. Within a very few months, he had erected a work near Leith for this manufacture, and brought home from Holland and Flanders ‘expert masters’ for making the cards, and ‘carvers for making the patterns,’ all of whom he took bound to instruct native workmen. In a very short time, we find him at war with two merchants who were accustomed to import playing-cards, and not disposed to brook his monopoly. Perhaps Peter was too vehement in his proceedings for the Scotch people among whom he cast his lot; perhaps they were unduly jealous of this keen-witted stranger. How it came we cannot tell; but before the work had been long erected, the tacksman of Canonmills set upon it and did somewhat to demolish it, and, horrid to relate, threw Madame de Bruis into the dam, besides using opprobrious words; for which he was fined in

DEC.

1681.

£50, and imprisoned. Not long after, Peter gained a triumph over the two importers of cards, for they were ordered by the Council to compound with him at so much a pack before they could be allowed to sell them.<sup>286</sup>

In the ensuing February, Peter was again in trouble. Alexander Daes, owner of the paper-manufactory at Dalry Mills, complained that his privilege of making paper and playing-cards had been infringed by Peter Bruce and James Lithgow, who had clandestinely obtained a licence for a playing-card manufactory. They had likewise enticed away a workman named Nicolas de Champ, whom he had brought from France, and caused the abstraction from his work of some of his haircloths. The Council freed Peter and his associate from everything but the charge of taking away the haircloths, which they left to be dealt with by the ordinary judge.—*P. C. R.*

1682. FEB. 16.

Altogether, Peter seems to have found great difficulty in preventing a sale of foreign cards. It was difficult to detect the importation of such articles. A package containing a quantity of them had lately been brought by the ship of one Adam Watt; and even the custom-house officer winked at its being smuggled ashore. Peter craved the Council (June 7, 1682) for general letters against the contraveners of his privilege; but the Council, apparently warned by the complaints about the Messrs Fountain, would only, on that occasion, agree to give warrant for particular cases. Afterwards (July 5), they gave a more general warrant, but still declaring that Bruce, in the event of making a wrong charge, should be liable to a fine.

1681.

Finally, persecuted out of Edinburgh, Peter betook himself to Glasgow, and tried to set up a paper-mill at Woodside, near that city; but here, too, he encountered a variety of troubles and oppressions, designed for the purpose of neutralising his monopoly of the manufacture of playing-cards, his builders failing in their engagements, his men being seduced away from him, his mill-course defrauded of water, and so forth. He complained to the Privy Council (January 6, 1685), and got a decree against his two chief persecutors, John Campbell and James Peddie, for a thousand merks as compensation for the injuries he had suffered. When everything else failed, Peter seems to have turned his religious professions to some account, as he is last seen acting as printer to the Catholic chapel and college at Holyrood—where, doubtless, the Revolution gave him a disagreeable surprise.

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The college youths renewed the demonstration of last year. ‘Their preparations were so quiet, that none suspected it this year. They brought [the pope] to the Cross, and fixed his chair in that place where the gallows stands. He was tricked up in a red gown and a mitre, with two keys over his arm, a crucifix in one hand, and the oath of the Test in the other. Then they put fire to him, and it burnt lengthy till it came to the powder, at which he blew up in the air.

DEC. 26.

‘At this time, many things were done in mockery of the Test: one I shall tell. The children of Heriot’s Hospital, finding that the dog which kept the yards of that hospital had a public charge and office, ordained him to take the Test, and offered him a paper. But he, loving a bone better than it, absolutely refused it. They then rubbed it over with butter, which they called an Explication of the Test, in imitation of Argyle, and he licked off the butter, but did spit out the paper; for which they held a jury upon him, and, in derision of the sentence on Argyle, they found the dog guilty of treason, and actually hanged him.’—*Foun*.

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Alexander Cockburn, the hangman of Edinburgh, was tried before the magistrates as sheriffs, for the murder, in his own house, of one Adamson or Mackenzie, a blue-gown beggar. The proof was slender, and chiefly of the nature of presumption—as, that he had denied Adamson’s being in his house on the alleged day, the contrary being proved, groans having been heard, and bloody clothes found in the house; and this evidence, too, was chiefly from women. Yet he was condemned to be hanged within three suns. One Mackenzie, whom Cockburn had caused to lose his place of hangman at Stirling, performed the office.—*Foun*.

1682. JAN. 16.

1682.

Three men were drowned this day, by falling through the ice on the North Loch. 'We have a proverb that the fox will not set his foot on the ice after Candlemas, especially in the heat of the sun, as this was at two o'clock; and at any time the fox is so sagacious as to lay his ear to the ice, to see if it be frozen to the bottom, or if he hear the murmuring and current of the water.'—*Foun.*

FEB. 11.

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A strange story was circulated regarding a servant lass in the burgh of Irvine. Her mistress, the wife of the Honourable Major Montgomery, having had some silver articles stolen, blamed the lass, who, taking the accusation much amiss, and protesting her innocence, said she would learn who took those things, though she should raise the devil for it. The master and mistress let this pass as a rash speech; but the girl, being resolute, on a certain day 'goes down to a laigh cellar, takes a Bible with her, and draws a circle about her, and turns a riddle on end twice from south to north, or from the right hand to the left hand, having in her hand nine feathers, which she pulled out of the tail of a black cock, and having read the 21st [psalm] forward, she reads backward chap. ix., verse 19, of the book of Revelation; *he* appears in a seaman's clothing, with a blue cap, and asks what she would. She puts one question to him, and he answers it; and she casts three of the feathers at him, charging him to his place again; then he disappears. He seemed to her to rise out of the earth to the middle of his body. She reads the same verse backward the second time, and he appears the second time, rising out of the ground, with one leg above the ground; she asks him a second question, and she casts other three feathers at him, charging him to his place; he again disappears. She reads again the third time the verse backward, and he appears the third time with his body above ground (the last two times in the shape of a black grim man in black clothing, and the last time with a long tail); she asks a third question at him, and casts the three last feathers at him, charging him to his place; and he disappears. The major-general and his lady, being above stairs, though not knowing what was a-working, were sore afraid, and could give no reason of it; the dogs in the city making a hideous barking round

FEB.

1682.

about. This done, the woman, aghast, and pale as death, comes and tells her lady who had stolen the things she missed, and they were in such a chest in her house, belonging to some of the servants; which being searched, was found accordingly. Some of the servants, suspecting her to be about this work, tells the major of it, and tells him they saw her go down to the cellar; he lays her up in prison, and she confesses as is before related, telling them that she learned it in Dr Colvin's house in Ireland, who used to practise this.'—*Law*.

Fountainhall relates this story more briefly as 'a strange accident,' and remarks that the divination *per cribrum* (by the sieve) is very ancient, having been practised among the Greeks. He is puzzled about her confession, as it may be from frenzy and hatred of life; but if the fact of the consultation can be proved, he is clear that it infers death.

Divination by a sieve was performed in this manner: 'The sieve being suspended, after repeating a certain form of words, it is taken between the two fingers only, and the names of the parties suspected, repeated: he at whose name the sieve turns, trembles, or shakes, is reputed guilty of the evil in question.... It was sometimes practised by suspending the sieve by a thread, or fixing it to the points of a pair of scissors, giving it room to turn, and naming as before the parties suspected: in this manner Coscinomancy is still practised in some parts of England.'—*Demonologia*. By J. S. F. London, 1827; p. 146.

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'Strange apparitions were seen in and about Glasgow, and strange voices and wild cries [were heard], particularly one night about the Deanside well, was heard a cry, *Help, help!*'—*Law*. Many such occurrences are noted about this time and for four or five years before. In March 1679, for instance, a voice was heard at Paisley Abbey, crying: 'Wo, wo, wo—pray, pray, pray!' Such reports reveal the excited state of the public mind and a general sense of anxiety under the religious variances of the time.

Major Learmont, an old soldier of the Covenant, though only a tailor to his trade, was taken in his own house

FEB.

1682. MAR.

near Lanark, or rather in a vault connected with it which he had contrived for hiding. ‘It had its entry in his house, upon the side of a wall, and closed up with a whole stone, so close that none could have judged it but to be a stone of the building. It descended below the foundation of the house, and was in length about forty yards, and in the far end, the other mouth of it, was closed with feal [turf], having a feal dyke built upon it; so that with ease, when he went out, he shot out the feal and closed it again. Here he sheltered for the space of sixteen years, taking to it at every alarm, and many times hath his house been searched for him by the soldiers; but where he sheltered none was privy to it but his own domestics, and at length it is discovered by his own herdsman.’—*Law*.

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Thomas Barclay of Collierine in Fife was a youth of eighteen, in possession of ‘an opulent estate,’ and likewise of a considerable jurisdiction in his county. His predecessors were loyalists; but Thomas himself, by the remarriage of his mother to Mure of Rowallan in Ayrshire, was, according to the allegation of his uncle John Barclay, in the way of being ‘bred up in a family of fanatical and disloyal principles, not being permitted to visit or be acquainted with his nearest relations and friends, and denied all manner of education suitable to his quality ... not being sent to college’—he had, moreover, been influenced to choose ‘curators altogether strangers to his family, of known disaffected and disloyal principles.’ It seemed, in John Barclay’s judgment, unavoidable in these circumstances that a supporter would be lost to his majesty’s interests, unless a remedy were provided.

MAR. 9.

It seems so far creditable to a government which has a good many sins at its charge, that, when this case came before the Duke of York and the Privy Council, on John Barclay’s petition, and both sides had been heard—namely, the uncle on one side, and the Lady Rowallan, with the three curators, Montgomery younger of Skelmorley, the Laird of Dunlop, and Mr John Stirling, minister of Irvine, on the other—they decided that the young Barclay was of age to act and choose curators for himself, and that the defenders were not bound to produce him in court; thus frankly consenting

that the young man should rest in the danger of being perverted from the loyalty of his family.— *P. C. R.*

A severe murrain commenced amongst the cattle, thought to be owing to the deficient herbage of the preceding year, and the heavy rains of the intermediate season.<sup>[287](#)</sup> The support of cattle during winter was at all times a trying difficulty in those days of no turnip-husbandry; but on an occasion like this it was scarcely possible. It was remarked that the farmers had to cut heather for their beasts to lie upon, and pull the old straw out of the coverings of their houses to feed them with. The murrain lasted till May, when some tenants in the Highlands lost as many as forty cows by it.

1682. APR.

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A complaint presented to the Privy Council by Janet Stewart, servant to Mr William Dundas, advocate, set forth that James Aikenhead, apothecary in Edinburgh, took upon him ‘to compose and vent poisonous tablets,’ and ‘Mistress Elizabeth Edmonstoun, having got notice of these tablets, and that they would work strange wanton affections and humours in the bodies of women,’ sent James Chalmers for some of them, which she caused to be administered to the complainer, in presence of several persons, ‘as a sweetmeat tablet.’ Janet having innocently accepted of the tablet, ate of it, and in consequence ‘fell into a great fever, wherein she continued for twenty days, before anybody knew what was the cause of it; so that the poison has crept into her bones, and she is like never to recover.’

APR. 18.

Fountainhall tells us that Janet would not have recovered, ‘had not Doctor Irvine given her an antidote.’ The Council remitted the case to the College of Physicians, as being skilled in such matters (*periti in arte*), ‘who,’ says Fountainhall, ‘thought such medicaments not safe to be given *without first taking their own advice*.’<sup>[288](#)</sup>



A riot took place in the streets of Edinburgh, in consequence of an attempt to carry away, as soldiers to serve the Prince of Orange, some young men who had been imprisoned for a trivial offence. As the lads were marched down the street under a guard, to be put on board a ship in Leith Road, some women called out to them: ‘Pressed or not pressed?’ They answered: ‘Pressed,’ and so caused an excitement in the multitude. A woman who sat on the street selling pottery, threw a few sherds at the guard, and some other people, finding a supply of missiles at a house which was building, followed her example. ‘The king’s forces,’ says Fountainhall, ‘were exceedingly assaulted and abused.’ Under the order of their commander, Major Keith, they turned and fired upon the crowd, when, as usual, only innocent bystanders were injured. Seven men and two women were killed, and twenty-five wounded—a greater bloodshed than ‘has been at once these sixty years done in the streets of Edinburgh.’ One of the women being pregnant, the child was cut from her and baptised in the streets. Three of the most active individuals in this mob were seized and tried, but the assize would not find them guilty. The magistrates were severely blamed for their negligence and cowardice in this affair.

MAY 3.

1682.

It gave origin to the well-known *Town-guard* of Edinburgh, for, under the recommendation of the Privy Council, and with the sanction of the king, it was agreed to raise a body of a hundred and eight men, to serve as a protection to the city in all emergencies. The inhabitants were taxed to pay for it, ‘some a groat, some fivepence, and the highest at sixpence a week;’ but this being found oppressive, the support of the corps, which cost 22,000 merks a year, was soon after put upon the town’s common good.<sup>289</sup> Patrick Graham, a younger son of Graham of Inchbrakie, was appointed captain, at the dictation of the Duke of York, who, says Fountainhall, ‘would give a vast sum to have such a breach in London’s walls.’

Many who remember the Town-guard, with their rusty brown uniform, their Lochaber axes, and fierce Highland faces, as a curiosity of the streets of Edinburgh in their young days, will be perhaps unpleasingly surprised to learn that the corps was originally an engine of the government of the last Stuarts. Captain Graham, who was a sincere loyalist by blood, being descended from the Inchbrakie who sheltered Montrose on his commencing the insurrection of 1644, figured with his guards on various occasions

during the remainder of the Stuart reigns, particularly at the bringing in of the Earl of Argyle to be executed in 1685, when he and the hangman received the unhappy Maccallummore at the Watergate, and conducted him along the street to prison.

The Town-guard was disbanded in November 1817, by which time it had been reduced to twenty-five privates, two sergeants, two corporals, and two drummers.

1682.

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The *Gloucester* frigate, on her voyage from London to Edinburgh with the Duke of York and his friends, and attended by some smaller vessels, was by a blunder wrecked on Yarmouth Sands. A signal-gun brought boats from the other vessels to the rescue of the distressed party, and the duke and several other men of importance were taken from the vessel, just before she went to pieces. A hundred and fifty persons, of whom eighty were men of quality, including the Earl of Roxburgh, the Laird of Hopetoun, Sir Joseph Douglas of Pumpherston, and Lord O'Brian of the Irish peerage, were drowned. Sir George Gordon of Haddo, president of the Court of Session, and who had just received the high appointment of Chancellor of Scotland, escaped by leaping into the water, whence he was drawn by the hair of the head into a boat. The Earl of Roxburgh had been heard crying for a boat, and offering twenty thousand guineas for one. His servant in the water took him on his back, and was swimming with him to a boat, when a drowning person clutched at them, and the unfortunate earl fell off and perished, his servant barely escaping for the moment, and dying an hour after. The duke and the rest of the survivors arrived in Leith next day, without further accident.

MAY 6.

‘The pilot, one Aird, of Borrowstounness, was threatened with hanging for going to sleep and giving wrong directions ... he was condemned to perpetual imprisonment.’—*Foun*.

It is remarkable that the widow of the Earl of Roxburgh survived him *in widowhood* for seventy-one years, dying in 1753.

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Sir Alexander Lindsay of Evelick—an ancient castle on the high grounds overlooking the Carse of Gowrie—had married as a second wife the widow of Mr William Douglas, ‘the advocate and poet.’<sup>290</sup> Both had children approaching maturity, and William Douglas, the lady’s son, became very naturally the playfellow of Sir Alexander’s heir Thomas. Whether jealousy on account of the superior prospects of Thomas Lindsay had entered William Douglas’s heart, we cannot tell; but the two boys being out one day in the Den of Pitrodie, a romantic broomy dell near Evelick, Douglas was tempted to stab Lindsay with a clasp-knife, and so murder him.

JUNE 13.

1682.

The wretched boy gave a confession next day, fully admitting his guilt. It commences thus: ‘I have been over proud and rash all my life. I was never yet firmly convinced there was a God or a devil, a heaven or a hell, till now. To tell the way how I did the deed my heart doth quake [and] head ryves. As I was playing and kittling at the head of the brae, I stabbed him with the only knife which I have, and I tumbled down the brae with him to the burn; all the way he was struggling with me, while I fell upon him in the burn, and there he uttered one or two pitiful words. The Lord Omnipotent and all-seeing God learn my heart to repent.’ On this occasion, ‘he also produced the little knife called *Jock the leig*, with ane iron haft.’

Being on the ensuing day brought before the sheriff-court of Perth, it was there alleged against him that ‘he did conceive ane deadly hatred and evil [will] against Thomas Lindsay, son to Sir Alexander Lindsay of Evelick, with a settled resolution to bereave him of life; he did upon the thretteen day of this instant month, being Tuesday last, about seven hours in the afternoon or thereby, as he was coming along the Den of Pitrodie in company with the said Thomas Lindsay, fall upon the said Thomas, and with his knife did give him five several stabs and wounds in his body, whereof one about the mouth of his stomach, and thereafter dragged him down the brae of the den to the burn, and there with his feet did trample upon the said Thomas lying in the water, and as yet he not being satisfied with all that cruelty which he did to the said Thomas, he did with a stone dash him upon the head, so that immediately the said Thomas died.’

To the great concern of his friends, the boy now retracted his confession, alleging that he found Thomas

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Lindsay lying in the burn, and in trying to help him up had fallen upon him. The trial was consequently postponed to a future day. Meanwhile his friends exerted themselves to bring back the culprit to a sense of his guilt, and after a few days, they seem to have succeeded. On the 25th of June, his mother is found writing to the Laird of Balhaivie, a cousin of the murdered youth, relating how she had been witness to the power of God in changing the heart of the obstinate. 'In a very little,' says she, 'after you went to the door, he rose up in such a passion of grief and sorrow, crying out in such bitterness, rapping on the table, and cursing the hour it entered into his head to recant, and promised through the Lord's strength, nothing should persuade him to do it again, but that he should constantly affirm the truth of his first declaration. He took out the declaration the devil had belied him to write, and cried to cast it in the fire, with so much sorrow and tears, as he took his head in his hand and said he feared to distract [become distracted], and prayed that the Lord would help him in his right judgment, that he might still adhere to truth. This,' continues the wretched mother, 'was some consolation to my poor confounded mind; but when I consider that deceitful bow the heart, and his frequent distemper, my spirit fails.... I desire you and the rest of your worthy friends no to pit yourself to needless charges in the affair, for I, his nearest relation, being not only convinced justice should be satisfied, but am desirous nothing may occur to hinder. And as I know, though both he and I hath creditable friends, they will be ashamed to own me in this. The good God that best knows my pitiful case bear [me] up under this dismal lot, and give you and all Christians a heart to pray for him, and your poor afflicted servant, Rachel Kirkwood.'

The Laird of Balhaivie seems to have entered kindly into the lady's feelings. His answer contains a few traits highly characteristic of the time. 'Much honoured madam, as soon as Sir Pat[rick Threipland] gave me account yesternight of your son's second confession, I went alongs with Sir Patrick and saw him, and I swear to outward appearance he seemed very serious, and I pray God Almighty continue him so.... My cousin, young Evelick, and all his relations are very sensible of your ladyship's extraordinary and wonderful good carriage in ane affair so astounding as this has been, and ye renew it in your letter, wherein ye desire they should not be put to needless trouble and charges in the affair. The truth is, madam, there is none of us but are grieved to the bottom of our hearts that we should be obliged to pursue your son to death; but we keep evil consciences

if we suffer the murder of so near a relation to go unpunished; and his life for the taking away of the other's is the least atonement that credit and conscience can allow.... His dying by the hand of justice will be the only way to expiate so great a crime, and likewise be a means to take away all occasion of grudge which otherwise could not but continue in the family....'[291](#)

The youth was brought to trial in Edinburgh, and condemned to suffer death on the 4th of August. After the trial, he confessed that it was he who in the January preceding 'put fire in Henry Graham's writing-chamber, out of revenge, and that he had first stolen some books there.' He was subjected to a new trial for this crime, because, being treason, it would have inferred a forfeiture of his estate, worth upwards of £2000; but on this occasion he retracted his confession, nor could any thing prevail with him to renew it judicially. The jury, who were honest Edinburgh citizens, seeing that the design was to enrich certain courtiers at the expense of the sisters of the young homicide, acquitted him of the new charge, to the great irritation of the king's advocate, who 'swore that the next assizers he should choose should be Linlithgow's soldiers, to curb the phanaticks.'[292](#)

1682.

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The magistrates of Dumfries had a man called Richard Storie in their jail, on a charge of murder, and were put to great charges in keeping and guarding him, because several of his friends from the Borders daily *threatened to force the prison* and permit him to make his escape 'if he shall remain any longer there.'[293](#) It was therefore found necessary to order that Storie should be transferred by the sheriff under a sufficient guard to the next sheriff upon the road to Edinburgh, and so on to Edinburgh itself, where he should be placed in firmance in the Tolbooth.

JULY 5.

There was the more reason for the magistrates of Dumfries being anxious about the detention of Richard Storie, that George Storie, an associate in his crime, had already escaped. These two men were accused of having basely and cruelly

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murdered Francis Armstrong in Alisonbank, in the preceding month of June. The witnesses being Englishmen, it was necessary (December 7, 1682) to recommend to the sheriff of Cumberland to take measures for insuring their appearance before the Court of Justiciary at the approaching trial. This proving ineffectual, the widow and six children of Francis Armstrong petitioned in March for further and more effectual efforts; and the lords agreed to address the English secretary of state on the subject.

Not long after (April 30, 1684), the Council was informed that, ‘by the throng of prisoners in the Tolbooth of Dumfries, the same has been already broken, and is yet in the same hazard.’ Being at the same time made aware ‘that, within the castle of Dumfries, there are some strong vaults fit for the keeping of prisoners,’ they gave orders to have these prepared for the

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A poor Quaker, named Thomas Dunlop, had taken a house in Musselburgh, and was endeavouring by humble industry to support himself and his family, without being burdensome to any. But other Quakers came occasionally about him, to the annoyance of the magistrates of the town; and finding he broke a local law, in having no certificate of character from the minister of the parish in which he had last resided, they took advantage of the circumstance to get quit of him. Poor Thomas and his wife and little children were thrust out of their home into the fields, notwithstanding his entreaties for delay till he should get letters certifying his respectability from persons they knew. He had now been lodging for thirteen days and nights in the fields, the magistrates resisting all pleadings in his favour from charitable persons, and disregarding the misery which he was manifestly enduring. On his petition to that body which almost every week was sending recusant Whigs to the scaffold, they lent him a patient hearing, and summoned the Musselburgh magistrates before them; but all that the laws permitted them to do in the case, was to ordain that Thomas might have recourse to a legal action if the magistrates had not ‘removed him in ane orderly manner.’—*P. C. R.*

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JULY 7.

James Somerville, younger of Drum, riding home to that place from Edinburgh, found on the way two friends fighting with swords—namely, Thomas Learmont, son of Mr Thomas Learmont, an advocate, and Hew Paterson, younger of Bannockburn. These two young men had quarrelled over their cups. Young Somerville dismounted, and tried to separate them, but received a mortal wound from Paterson's sword, though inflicted by the hand of Learmont, the two combatants having perhaps, like Hamlet and Laertes, exchanged weapons. The wounded man lived two days, and expressed his forgiveness of Learmont, who, by his advice, fled. 'Some alleged his wounds were not mortal, but misguided.' Somerville was the progeny of the marriage described as having taken place at Corehouse in November 1650. He left an infant son, who carried on the line of the family.—*Foun.*

JULY 8.

1682.

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A comet began to appear in the north-west. 'The star was big, and the tail broad and long, at the appearance of four yards.' It continued visible for twenty days.—*Law.*

AUG. 17.

This was the celebrated *Halley's Comet*, so called in honour of the illustrious astronomer who first ascertained, by his calculations regarding it, the periodicity of comets. The same object had been observed by Kepler in 1607, and by Apian in 1531. 'The identity of these meteors seeming to Halley unquestionable, he ventured to predict that the same comet would reappear in 1758, and that it would be found to revolve in a very elongated ellipse in about seventy-six years. As the critical period approached, which was to decide so momentous a question regarding the system of the world, the greatest mathematicians endeavoured to track the comet's course with a minuteness which Halley's opportunities did not permit him to reach. The illustrious Clairhaut, feeling that a general prediction was not enough, undertook the most complex problem as to the disturbing effects of the planets through whose orbits it must pass.... He succeeded in predicting one of the positions for the comet for the middle of April; stating, however, that he might be in error by thirty days. The comet occupied the position

referred to on the 12th of March.’—*Nichol’s Contemplations on the Solar System*.

It is humiliating to have to remark, that the notices of comets which we derive from Scotch writers down to this time, contain nothing but accounts of the popular fancies regarding them. Practical astronomy seems to have then been unknown in our country; and hence, while in other lands men were carefully observing, computing, and approaching to just conclusions regarding these illustrious strangers of the sky, our diarists could only tell us how many *yards* long they seemed to be, what *effects* were apprehended from them in the way of war and pestilence, and how certain pious divines ‘improved’ them for spiritual edification. Early in this century, Scotland had produced one great philosopher—who had supplied his craft with the mathematical instrument by which complex problems, such as the movement of comets, were alone to be solved. It might have been expected that the country of Napier, seventy years after his time, would have had many sons capable of applying his key to such mysteries of nature. But not one had arisen—nor did any rise for fifty years onward, when at length Colin Maclaurin unfolded in the Edinburgh University the sublime philosophy of Newton. There could not be a more expressive signification of the character of the seventeenth century in Scotland. Our unhappy contentions about external religious matters had absorbed the whole genius of the people, rendering to us the age of Cowley, of Waller, and of Milton, as barren of elegant literature, as that of Horrocks, of Halley, and of Newton, was of science.

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John Corse, Andrew Armour, and Robert Burne, merchants in Glasgow, were now arranging for the setting up of a manufactory ‘for making of damaties, fustines, and stripped vermilionnes,’ expecting it would be ‘a great advantage to the country, and keep in much money therein which is sent out thereof for import of the same.’ Seeing ‘it undoubtedly will require a great stock and many servants, strangers, which are come and are to be sent for,’ the enterprisers deemed themselves entitled to have their work declared a

Nov. 23.



manufactory, so that it might enjoy the privileges accorded to such by act of parliament. This favour was granted by the Council for nine years, ‘but prejudice to any other persons to set up and work in the said work.’—*P. C. R.*

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Daniel Mure of Gledstanes,<sup>294</sup> out of health and mental vigour, and believed to be on his death-bed, was induced to make a disposition of his estate to Thomas Carmichael of Eastend. Such a disposition, however, could not be valid by the law of Scotland, unless the testator appeared afterwards ‘at kirk and market’—an arrangement designed to insure that natural heirs should not be cheated. By ‘a most devilish contrivance’ of William Chiesley, writer in Edinburgh, Thomas Bell, Carmichael’s servant, was dressed up to personate the sick man, and taken with all due form to the public places appointed by the law. The notary before whom the man presented himself was so doubtful of his being Daniel Mure, that he caused him to take his oath that he was truly that person. When Carmichael and his man afterwards retired to a tavern with the notary, the latter once more expressed his doubt, saying: ‘This person is certainly not like Daniel Mure;’ to which Carmichael answered, that he was really the man, but much altered by sickness. On the death of Daniel Mure soon after, Carmichael accordingly appeared as the inheritor of the estate of Gledstanes, to the exclusion of Francis Mure, merchant in Edinburgh, the brother of the deceased. The affair was the more wicked, as the estate was one which had been long in Mure’s family.

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On the whole matter being brought before the Privy Council by Francis Mure, the truth became clear, and Carmichael was punished by a fine of five thousand merks, whereof two thousand were assigned to Francis, as a compensation for the damage he had sustained; while Chiesley, the writer, was mulcted in three thousand merks for being accessory to the cheat. An obligation which Francis Mure had been induced to give to Carmichael, binding himself never to expose or pursue the forgery, was at the same time discharged. It is not unworthy of remark, that Chiesley, who had devised this forgery and

DEC. 21.

drawn up the iniquitous obligation aforesaid, was one of those members of the legal profession who had refused, from scruples of conscience, to take the Test.—*P. C. R.*

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Alexander Nisbet of Craigentenny and Macdougall of Makerston had gone abroad to fight a duel, attended by Sir William Scott of Harden and — Douglas, ‘ensign to Colonel Douglas,’ as seconds. The Privy Council hearing of it, ordered the four gentlemen to be confined in the Tolbooth in different rooms, until it should be inquired into. The principals were, on petition, set at liberty in a few days, after giving caution for reappearance.—*P. C. R.*

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DEC. 23.

The widow of Andrew Anderson at this time carried on business in Edinburgh as the king’s printer, by virtue of a royal gift debarring others from exercising the like art. The bibles produced by her are said by Fountainhall to have been wretchedly executed. One David Lindsay having now got a similar gift, Mrs Anderson endeavoured to keep him out of the trade, setting forth that she had been previously invested with the privilege, and ‘*one press is sufficiently able to serve all Scotland*, our printing being but inconsiderable.’<sup>295</sup> The Lords ordained that Mrs Anderson’s monopoly should be held as only including the printing of such things as had been specified in the gift to her husband’s predecessor Tyler.

1683. JAN. 5.

1683.

There were at this time printers in Glasgow and Aberdeen, but probably no other part of Scotland—though St Andrews had had a press before the Reformation. The business of the printer has been of slow growth in our country. Edinburgh contained in 1763 only six printing-offices; in 1790, sixteen;<sup>296</sup> there are, in 1858, sixty-two printing firms, besides several publishing offices, in which special printing work is executed.

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It was represented to the Privy Council by the Bishop of Aberdeen that the Quakers in his diocese were now proceeding to such insolency, as to erect meeting-houses for their worship and ‘schools for training up their children in their godless and heretical opinions;’ providing funds for the support of these establishments, and in some instances adding burial-grounds for their own special use. The Council issued orders to have proper investigations made amongst the leading Quakers concerned and the proprietors of the ground on which the said meeting-houses and schools had been built.—*P. C. R.*

FEB. 1.

At the funeral of the Duke of Lauderdale at Haddington, while the usual dole of money was distributing among the beggars, one, named Bell, stabbed another. ‘He was apprehended, and several stolen things found on him; and, he being made to touch the corpse, the wound bled afresh. The town of Haddington, who it seems have a sheriff’s power, judged him presently, and hanged him over the bridge next day.’—*Foun.*

APR. 5.

Alexander Robertson of Struan, whom we saw two years back breaking out with mortal fury against an agent of the Marquis of Athole in the chamber of the Privy Council, now comes before us in a more agreeable light—namely, as one seeking to cultivate an industrial economy in the midst of the vicious idleness and barbarism of the Highlands. Far up among the Perthshire alps, on the dreary shores of Loch Rannoch, there was then ‘a considerable wood,’ the property of Struan. This would have been useless to him and the country—being in so remote a wilderness—‘if he had not, with great expenses and trouble, caused erect *saw-mills*, in which, these divers years past, there has been made the number of 176,000 deals.’ This had redounded ‘to the great benefit and conveniency of the country adjacent, besides the keeping of many persons at work’ who would otherwise have been idle and in wretchedness. Struan,

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however, could not obtain a market for the great bulk of his timber, without sending it in floats along Loch Rannoch, and down the water of Tummel into the Tay; and in this long and tedious passage, it was sometimes driven by storms and spates [floods] on shore, or on the banks of the rivers, where it was made prey of by the country people, ‘thinking they would be no further liable than to a *dead spulyie*.’ Occasionally, ‘louss and broken men’ attacked his mills in the night-time, and helped themselves to such timber as they wanted. ‘So that his work was likely to be broken and ruined.’ The Privy Council, on Struan’s petition, issued a strong edict for the prevention of these spoliations, and further gave him power to make roads between his saw-mills in Carrie and Apnadull, and to take a charge of those from Rannoch to Perth, so that he might have the alternative of land-carriage for his timber.—*P. C. R.*

The chance of getting the spoliations put down must have been very small, for thieving raged like a very pestilence in the Highlands. The Earl of Perth, writing from Drummond in July 1682, says expressively: ‘We are so plagued with thieving here, it would pity any heart to see the condition the poor people are in.’<sup>297</sup>

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Sir Thomas Stewart of Coltness<sup>298</sup> was obliged to fly to Holland, in consequence of a vague threat held out by Sir George Mackenzie, supposed to have been designed to frighten the unfortunate gentleman away, that his estate might be seized. The subsequent circumstances, as related by his son, give a striking view of the troubles in which a Presbyterian family of rank might then be involved, even while making no active demonstrations against the government.

‘The day after he was gone, came one of the Lord Advocate’s emissaries, Irvine of Bonshaw, with a party of dragoons heated with fury and with liquor.... They demanded the family horses, though their warrant bore no more than to apprehend the person of Thomas Stewart of Coltness; and when Irvine was told by Mr James Stewart, Coltness’s second son, that he was acting beyond orders in offering to seize horses or goods, he swore and blasphemed

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against rebels and assassins, and that any treatment was warrantable against such. The child Robert made some childish noise, and he threw down the boy of eight years old from a high leaping-on stone. The lady, seven months gone with child, came down to reason with him, but he was so much the more enraged. He offered to shoot the groom [who] stood behind, for denying the keys of the stable, and at length carried off the young gentlemen David and James's horses.... There was a complaint given in at Edinburgh, and the horses were returned, jaded and abused by rambles. This Mr Irvine, some months after, in a drunken quarrel at Lanark, was stabbed to death on a dunghill by one of his own gang: a proper exit for such a blood-hound.'

The lady immediately displeased her house, and, notwithstanding the delicate state in which she was, prepared to follow her husband to Holland. Taking with her her step-son David, and a niece of three years, the child of Mr James Stewart, also an exile in Holland, she set sail from Borrowstounness in the beginning of June. The ship encountered a severe storm. 'The sea was so boisterous, the lady was in danger of being tossed from her bed, and her step-son was alarmed, and got up staggering in the hold, and bewailing; but she composedly said: "David, go to your cabin-bed, and be more quiet, for there is no back-door here to fly out by." In some days after, they got safe to harbour. They took the treck-scut from Rotterdam to Utrecht, and a surprising accident happened by the way, and in the scut close by her: a Dutch minister's wife, a fellow-traveller and with child, miscarried and died instantly. The husband was as one distracted, and would not be persuaded she was dead, but in a swoon. He made lamentable outcries, but all to no effect. This was alarming to the lady, and made her reflect and acknowledge the kind Providence had preserved her and the fruit of her womb, when in danger both in the journey and the stormy voyage. Coltness has a remark of thanksgiving on this in his diary, and concludes with this, "God makes our hymn sound both of mercy and judgment."

'Her husband, with Mr Pringle of Torwoodlee, came half-way on to Leyden, and met these recent fugitives, and conducted them to Utrecht, where trouble was in part forgot, and sorrow in some measure fled, upon the first transports of being safe and together. Here was the ingenuous, upright Archibald Earl of Argyle, too virtuous for so licentious a court as that of King Charles. Here

was the Earl of Loudon, who died anno 1684, and lies buried in the English church at Leyden. There was here the Lord Viscount Stair, and with him for education his son, Sir David Dalrymple, in better times Lord Advocate, and his grandson John, that great general under Queen Anne, and the ambassador of elegant figure in France, and a field-marshal under King George. Here was also Lord Melville, [who became] High Commissioner to the Restitution Parliament under King William, and secretary of state, and with him his son the Earl of Leven, who went to the king of Prussia's service, and after this was commander-in-chief in Scotland, and governor of Edinburgh Castle in Queen Anne's reign. But it were endless to name all the honest party of gentry and ministers, outlawed, banished, and forfaulted, for the cause of religion and civil liberty.'

In July, Lady Coltness brought into the world the person who relates the above particulars. 'The occasion was joyful to the parents; but the mother had not the blessing of the breasts, and there was hard procuring a nurse for a stranger. This gave a damp; but a Dutch lady was so kind as wean her daughter a little sooner, and so a careful and experienced nurse was procured.'

'... Coltness fell in straits ... for he soon spent the little he brought with him, and remittances were uncertain and but small. His friends at home were under a cloud.

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Alertoun, his brother-in-law, was imprisoned and fined; Sir John Maxwell, his other brother-in-law, was fined £10,000 and imprisoned; and his younger children had none to care for them, but their grandmother, Sir James Stewart's widow. She had a large jointure [that] was not affected, and acted the part of a kind parent.... In this present situation, the old widow lady could give little relief to those banished. It was chargeable supporting the expenses of a family in Holland, and all visible sources were stopped or withdrawn; yet a kind Providence raised up friends in a strange land. Of these the most sympathising was Mr Andrew Russell, merchant-factor at Rotterdam; he generously proffered money, and genteelly, as it were, forced it upon Coltness (and so he did to Sir Patrick Hume of Polwarth, Mr James Stewart, advocate, and others), though he could have no probable prospect of recovering it; and yet all was thankfully repaid after the Revolution.'

'In the end of 1684, Coltness removed to Rotterdam, and there he received many civilities and friendships from his countrymen, merchants, and others,

and had some remittances, and in part provisions, transmitted in Scotch ships. Here he had much society of fellow-sufferers, and they had select meetings for conference and intelligence. The badge of such select club was a seal in wax, upon a bit of rounded card, with a blue ribbon and a knot, all in a small spale-box. I have seen Coltness's ticket; the device was handsome, the motto *Omne tulit punctum*, the seal was upon a single spot of the heart suite card.'

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These severities against the Coltness family form a striking example of those now practised every day upon the known adherents of the more extreme Presbyterian views, and the whole would be quite unintelligible to a candid mind in our times, if we were not aware that, thirty years before, the party in which Sir Thomas Stewart's father was a leader, were subjecting *their* dissidents to precisely similar treatment:[300](#) see, for example, the case of the family of Menzies of Pitfoddels, fined, confiscated, driven from their native land and means of living, and the lady and one of her sons lost in a storm at sea;[301](#) see the case of Dr Forbes of Corse, thrust from his college and country because he scrupled to subscribe the Solemn League and Covenant; his very bones refused burial in his own ground! It happened that, in the very same month which saw Sir Thomas Stewart's family subjected to the harsh treatment above described, there was an application to the Privy Council regarding the sufferings of an Episcopalian family through two generations, in consequence of the rigours exercised partly under the dictation of Sir Thomas's father. It is in the form of a petition from Mr John Ross, minister of Foveran in Aberdeenshire, and Mr Alexander Ross, parson of Perth. Their grandfather, Mr John Ross, parson of Birse in Aberdeenshire, had been turned out of his ministry in 1647, merely for his 'opposition to the rebellious and seditious principles and practices which at that time had overspread the land.' He was likewise 'fined at several times in five thousand merks, and imprisoned in the Tolbooth of Edinburgh for the space of nine months together, and forced to lend the sum of four thousand merks on the public bands, as they were called, for carrying on that unnatural war.' He had 'his house frequently plundered by the rebellious armies then on foot, so that [he] was prejudged in at least the sum of twenty thousand pounds Scots.' Thus pillaged, and kept out of his ministry for thirteen years, he had been reduced to great

1683.

1683.

straits, and left his family in poverty. The claim of the sufferer and his family was acknowledged at the Restoration by an order of two hundred pounds out of the vacant stipends; but it had never been paid. His eldest son, parson of Monymusk, the father of the petitioners, and who had likewise suffered for his loyalty, was kept poor all his days through the losses of his father, and had lately died, leaving a widow and eight children alive, besides the petitioners, with no means of support but what the petitioners could contribute.<sup>302</sup> Here, in short, was a clerical family originally of some substance, reduced to poverty through the oppressions which had been exercised upon it by those now in their turn suffering, or their predecessors.<sup>303</sup> In such facts there is certainly no valid excuse for the severities of the present time; but they tell us how these severities came to be practised. The reaction, however, from the Presbyterian reign of terror in the middle of the century was now beginning to strain and crack, and a settlement of the political pendulum was not far distant.

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At the circuit court at Stirling, a man was tried for reviling a parson, ‘in causing the piper play *The Deil stick the Minister*. Sundry pipers were there present as witnesses, to declare it was the name of ane spring.’<sup>304</sup>—*Foun.*

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JUNE 5.

Captain Thomas Hamilton, merchant in Edinburgh, who had for some years carried on a considerable trade with the American plantations in the importation of beaver and racoon skins, craved and obtained privileges for a manufactory of *beaver hats* which he proposed to set up, being the first ever attempted in Scotland. He set forth his design as one which ‘will do no prejudice to any felt-makers,’ while it would benefit the kingdom by furnishing a particular class of articles ‘at easy rates.’ He expected also to be able to export his hats.—*P. C. R.*

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JULY 12.



Alexander Young, Bishop of Ross, ‘a moderate and learned man,’ being afflicted with stone, was obliged, like his predecessor in the like circumstances above a hundred years before,<sup>305</sup> to travel to Paris for the purpose of having a surgical operation performed for his relief. Like his predecessor, also, he sank under the consequences of the operation.—*Foun.*

SEP.

It was believed that much native copper existed in Scotland; yet all attempts at realising it by mining had failed. A German named Joachim Gonal, highly skilled in copper-mining, now proposed to the Privy Council to work a copper-mine in the parish of Currie with proper workmen brought from abroad, all at his own expense, provided only he got a present of the mine from the state. The Council, deeming such a work calculated to be useful to the public interest, recommended the government to comply with the request.—*P. C. R.*

SEP. 10.

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At this time began a frost which lasted with great severity till March, ‘with some storms and snow now and then.’ ‘The rivers at Dundee, Borrowstounness, and other places where the sea ebbs and flows, did freeze, which hath not been observed in the memory of man before; and thereby the cattle, especially the sheep, were reduced to great want ... the like not seen since the winter 1674.’—*Foun.*

Nov.

This frost prevailed equally in England and Ireland, producing ice on the Thames below Gravesend. One remarkable circumstance arising from it is noted by a gentleman residing in London, that printing was hindered for a quarter of a year (by the hardening of the ink).<sup>306</sup>

Patrick Walker speaks emphatically of this frost, and says: ‘Even before the snow fell, when the earth was as iron, how many graves were in the west of

Scotland in desert places, in ones, twos, threes, fours, fives together, which was no imaginary thing! Many yet alive, who measured them with their staves, [found them] exactly the deepness, breadth, and length of other graves, and the lump of earth lying whole together at their sides, which they set their feet upon and handled with their hands. Which many concluded afterwards did presage the two bloody slaughter years that followed, when eighty-two of the Lord's people were suddenly and cruelly murdered in desert places.'

'An old minister, Mr Bennet, records in his manuscripts, that, before our late troubles [the Civil War], there were a number of graves cast open in a moor in the south.'—*Law*.

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A scandal broke forth against Mr John M'Queen, one of the ministers of Edinburgh. It was alleged that, having fallen besottedly in love with Mrs Euphame Scott, who despised him, he contrived by a trick to obtain possession of one of her under-garments, out of which he made a waistcoat and pair of drawers, by wearing which he believed the lady would infallibly be induced to give him her affections. 'He was suspended for thir fooleries; but in the beginning of February 1684, the bishop reponed him.'—*Foun*.

DEC.

If the Presbyterian satirists are not altogether fable-mongers, the bishop (Paterson) must have had a strong fellow-feeling for M'Queen. 'He is said to have kissed his band-strings in the pulpit, in the midst of an eloquent discourse, which was the signal agreed upon betwixt him and a lady to whom he was suitor, to shew he could think upon her charms even while engaged in the most solemn duties of his profession. Hence he was nicknamed *Bishop Band-strings*.'<sup>307</sup>

1683.

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It appears there were now two sugar-works in the kingdom, and only two—being placed at Glasgow<sup>308</sup>—and one of them was in danger of being

stopped in consequence of the death of Peter Gemble, one of the four partners, his widow refusing to advance her share of what was necessary for carrying on of the work. Materials, utensils, and men, to the extent of £16 sterling of wages monthly, were thus thrown idle—a general calamity. The Privy Council (December 20) enjoined the magistrates of Glasgow to use their endeavours to get the difference composed and the work kept up.—*P. C. R.*

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A dismally tragical incident occurred at the Hirsell, the seat of the Earl of Home near Coldstream. The earl having been long detained in London, the countess, to beguile the time during the Christmas holidays, had a party of the neighbouring gentlemen invited to the house. Amongst these were Johnston of Hilton, Home of Ninewells, and the Hon. William Home, brother of the earl, and the sheriff of Berwickshire—three gentlemen who, like the countess, have all been before us lately in connection with the abduction of the young Lady Ayton. Cards and dice being resorted to, and William having lost a considerable sum, a quarrel took place among the gentlemen, and Johnston, who was of a haughty and hot temper, gave William a slap in the face. The affair seemed to have been amicably composed, and all had gone to bed, when William Home rose and went to Johnston's chamber, to call him to account for the affront he conceived himself to have suffered. What passed in the way of conversation between the two is not known; but certain it is that Home stabbed Johnston in his bed with nine severe wounds. Home of Ninewells, who slept near by, came to see what caused the disturbance, and, as he entered the room, received a sword-thrust from the sheriff, who was now retiring, and who immediately fled into England upon Johnston's horse.

DEC. 26.

1683.

The unfortunate Hilton died in a few days. Ninewells recovered. The sheriff—of whom it was shudderingly remarked that this bloody fact happened exactly a twelvemonth after the execution of a Presbyterian rebel whom he had apprehended—was never caught. He was supposed to have entered some foreign service, and died in battle. In advanced life, he is said to have made an experiment to ascertain if he could be allowed to spend the

remainder of his days in his native country. A son of the slaughtered Johnston, while at a public assembly, ‘was called out to speak with a person, who, it was said, brought him some particular news from abroad. The stranger met him at the head of the staircase, in a sort of lobby which led into the apartment where the company were dancing. He told young Johnston of Hilton, that the man who had slain his father was on his death-bed, and had sent him to request his forgiveness before he died. Before granting his request, Johnston asked the stranger one or two questions; and observing that he faltered in his answers, he suddenly exclaimed: “You yourself are my father’s murderer,” and drew his sword to stab him. Home—for it was the homicide himself—threw himself over the balustrade of the staircase, and made his escape.’<sup>309</sup>

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This year a great alarm was excited by a conjunction of the planets Saturn and Jupiter in the constellation of Leo. It was announced as an extraordinary conjunction, which had only happened twice before since the creation of the world; and ‘our prognosticators all spoke of it as very ominous,’ ‘portending great alterations in Europe.’ Mr George Sinclair, Professor of Natural Philosophy in Glasgow, considered it as nothing less than ‘terrible.’ To add to the general uneasiness, some one brought out a treatise on comets, promising a further one under the title of *Catastrophe Mundi*. Fountainhall was evidently puzzled, for from November 1682 to March 1683, the season had been ‘like a spring for mildness,’ and he really could not say whether such an event as this could be ascribed to the conjunction. Had he waited a little, he might have seen the matter in a clearer light, for in April there took place pestilential fevers, with other terrible and uncommon disorders. ‘In Montrose, several families were taken with an *unco disease*, like unto convulsion fits, their face thrawing about to their neck, their hands griping close together, so as the very nails of their fingers make holes in their *looves*; lose their senses, and have a devouring appetite, eat much, yet not satisfied.’—*Law*.

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1683.

We have already seen several instances of a considerable town burnt down by accidental fire, with the inevitable consequence to the inhabitants, of their being driven into the shelterless fields, in a state of utter desolation; all reminding us of a time when as yet no mechanical arrangements had been made for checking such conflagrations, and no process of assurance had been instituted for providing against the loss and penury following. We have now another and highly characteristic example, in the almost entire destruction of the town of Kelso. It will be observed that the town, being probably composed of thatched houses, in few instances exceeding two stories in height, was extremely inflammable, and therefore the fire was rapid.

1684. APR. 8.

The fire began, between three and four in the afternoon, in a malt-kiln, and quickly caused the destruction of several stacks of corn. Thence, under the influence of a violent wind, it spread over the whole town, and so quickly, 'that these<sup>310</sup> who were helping their neighbours did not know when their own houses were burning. Before nine o'clock at night, not only all the houses, but the most part of all the goods therein, and several merchants' shops of considerable value, and above four thousand bolls of victual lying in girnels, and all the corn-stacks in the town, were laid in ashes. The fury of the flame and rage of the smoke were so great in all places of the town, that with great difficulty sick and infirm persons and infant children could be carried away from the danger to the open fields. Three hundred and six families had their houses utterly burnt down, and of these not twenty will ever be able to rebuild upon their own means. The loss of merchants is so great that it cannot well be known, the particular loss of some of them being valued above twenty thousand pounds Scots, and of others, above ane thousand pounds sterling. The more indigent sort of people have lost the whole sustenance of their livelihood.' If we are to understand that the three hundred and six burnt-out families composed the whole population, we may estimate that this town, now so remarkable for its beauty, and which contains a population of 5000, was then a comparatively poor village of about 1400 inhabitants. It is remarkable, however, to find that it contained merchants' shops so well stocked with goods.

1684.

The usual and only resource of that age for such cases of public calamity was taken advantage of by the Privy Council, to whom the inhabitants

appealed for succour; namely, a collection at the parish churches on one Sunday throughout the kingdom. And till this collection could take place, it was ordered that some of the money now in the course of being raised for the relief of prisoners in the hands of the Turks, should be given to the distressed people of Kelso, to be afterwards replaced from the money collected on account of the fire. Some time afterwards, we find a petition from the magistrates of Glasgow, setting forth that a sum of money had been collected there for the unfortunate people at Kelso, but in the meantime Glasgow had had a conflagration of its own, resulting in the destitution of a number of people; so they had thought proper to ask for permission to apply the money for the relief of the distress in their own community—which was granted.

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Cornelius a-Tilbourne, a German mountebank, craved from the Privy Council licence to erect a stage in Edinburgh. It was granted, notwithstanding opposition from the College of Physicians. He had made a successful experiment on himself, in London, in presence of the king, for counteracting some poisons which the physicians there had prescribed to him, the secret consisting in drinking a considerable quantity of oil. But it appears that he expressly excluded mercury, aqua-fortis, and other corrosives from the trial. The king, who had a curiosity about chemical experiments, had granted Cornelius a medal and chain. He repeated the experiment in Edinburgh, on his man or servant, who died under it.

APR.

Men of this class appear to have also practised surgery. In March 1683, the Town Council of Glasgow disbursed five pounds to John Maxwell, to replace a like sum ‘whilk he payit to the mountebank for cutting off *umwhile* Archibald Bishop’s leg.’—*M. of G.*

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A petition from the Earl of Errol to the Privy Council set forth that it was the custom of the north country for ‘the

APR. 22.

seamen of fish-boats' to be 'tied and obliged to the same servitude and service that coal-hewers and salters are here in the south,' and 'it is not lawful for any man whatsoever to resett, harbour, or entertein the fishers and boatmen who belong to another.' His lordship complained of Alexander Brodie and Andrew Buchlay, who were fishermen in his service, having 'fled away from him without leave, to his damage and prejudice;' and he demanded warrants for reclaiming them. The petition was complied with.—*P. C. R.*

1684.

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A proclamation proceeding upon the recent sumptuary act, makes us aware that it had comparatively failed to accomplish its object. 'Several women, even [!] in our capital city of Edinburgh and elsewhere, have presumed to go abroad with clothes made of the prohibited stuffs, upon pretext that they are only night-gowns, undresses, or manteaux, whereas all manner of wearing of the said stuffs was discharged.' In like manner, to elude that part of the law forbidding mourning cloaks, or 'in downright mockery' of the same, 'several persons have presumed to wear mantle-cloaks (albeit more expensive than the cloaks formerly worn) at burials and other occasions upon the death of their relations.' 'Also several persons have lately run to that height of extravagancy, as to cause cover the coffins of persons to be buried with fine black cloth and fringes.' Others, since the passing of the act, 'have presumed to make penny-weddings, where great confluence of our subjects have resorted, which is a most extravagant expense to our lieges.'

APR. 24.

The public was now therefore forbidden by regular proclamation to wear the prohibited stuffs in any manner of way. Tailors were discharged from making or setting out, and gentlemen from wearing, the long black mantle-coats. All were prohibited from 'making use of any coffin covered with silk cloth or fringes,' or which bore any ornamental metal-work. Penny-weddings were denounced in the strongest terms. And all these prohibitions were enforced by the threat of a full exaction of the fines specified in the act.—*P. C. R.*

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A strong representation was made to the Privy Council against the Messrs Fountain, who have 'gone almost through all Scotland and charged every person both in town and country who keeps a change, who has in their house a pair of tables, cards, or kylles, and others of that nature for gentlemen's divertisement, upon pretence that they ought not to have any such plays in their house without licence from them as Masters of the Revels.' It was reckoned that they had forced six thousand people to compound with them, and had thus realised about £16,000 sterling, 'which is a most gross and manifest oppression.' The lords forbade the Fountains to take any further legal steps. *P. C. R.*

JULY 22.

1684.

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An instrument of torture, called the *Thumbikens*, was introduced into practice by the Privy Council, as a means of extorting confessions. This was done at the recommendation of Generals Dalyell and Drummond, who had seen the thumbikens used in Russia. One of the first persons, if not the first, subjected to this torture, was Mr William Spence, a servant of the Earl of Argyle, who for some weeks had been tortured in various less compulsory ways to make him confess what he knew of the rebellious designs of his master. He had maintained firmness under the *boots*, and contrived to endure without flinching the torture of being kept awake for five nights, though driven by it 'half distracted.' But after his thumbs had been crushed by the thumbikens, on the boots being again presented to him, his firmness gave way.<sup>[311](#)</sup>

AUG.

The thumbikens consists of a bar of iron, moving loose upon a vertical screw, and under which, by the use of a nut moving on the screw, provided with a handle, the thumbs of the victim can be squeezed so as to produce the most exquisite pain.

In September of this year, Mr William Carstairs, who had been concerned in some of the plots of the day, was tortured by the thumbikens before the



Privy Council. He bore the pain with firmness, though not without giving vent to his agony by cries, until the Dukes of Hamilton and Queensberry left the room, unable any longer to witness the revolting spectacle. He was at length induced by these means, to give some information regarding Baillie of Jerviswood and others.

After the Revolution, this remarkable man became, as is well known, Principal of the University of Edinburgh, and the confidential adviser of King William regarding the affairs of Scotland; he was familiarly recognised as *Cardinal Carstairs*. The identical thumbikens by which he had been tortured, was presented to him by the Privy Council, and it was long preserved by his family. An anecdote was handed down by his descendants respecting the horrible little instrument. ‘I have heard, Principal,’ said King William to him, ‘that you were tortured with something they call *thumbikens*; pray, what sort of instrument of torture is it?’ ‘I will shew it you,’ answered Carstairs, ‘the next time I have the honour to wait upon your majesty.’ Soon after, accordingly, the Principal brought the thumbikens to be shewn to the king. ‘I must try it,’ said the king; ‘I must put in my thumbs here—now, Principal, turn the screw. O not so gently—another turn—another. Stop, stop! no more! Another turn, I am afraid, would make me confess anything.’<sup>[312](#)</sup>

1684.

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Monro, the Edinburgh executioner, having beaten a beggar with undue severity, was deprived of his post, and moreover punished by being thrown into the Thieves’ Hole. One hears with surprise of such an interference for humanity, amidst the atrocious cruelties to which political and religious exasperations were provoking the government. The vacant post was conferred on one George Ormiston, whom Fountainhall describes as ‘a well-favoured discreet fellow.’ If we are to believe Milne’s Account of the Parish of Melrose, 1743, this man was a member, if not the representative, of the Ormistons of Westhouse, a family once of some account, possessing a tower on the Tweed, near Melrose, and having the custom of a bridge across the river at that place; ‘a memorandum to old families not to be

AUG. 15.

puffed up with pride, on account of their antiquity, for they know not what mean offices they or theirs may be obliged to stoop to.’

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Colonel Graham of Claverhouse, as constable of Dundee, represented to the Privy Council that he found several persons in prison there for petty thefts, ‘which will be fitter to be punished arbitrarily than by death.’ In compliance with his humane suggestion, he was empowered to restrict the treatment of these persons and any others that might hereafter commit the like offences, ‘to ane arbitrary punishment, such as whipping or banishment, as he shall find cause.’—*P. C. R.*

SEP. 10.

It will excite surprise to find the *Bloody Claverse* interposing for a gentler justice in behalf of ordinary criminals—he who coolly ordered the summary death of so many people in Clydesdale and Galloway, for merely sentimental offences. But, while the *nil admirari* is nowhere more applicable than in matters concerning human inconsistency, it were perhaps no more than justice to one who was at least a gallant soldier and a steadfast friend in adversity to the sovereign who had employed him, if we remembered how amiable in private life have been many modern statesmen noted for severity in public action. Claverhouse was a political enthusiast, who had made up his mind to the particular course—rather a rough one—by which the interests of his country were to be protected and advanced; and with the help of a strong will, and under the call of what came to him as duty, he scrupled not to walk in that path, though by no means inhumane or harsh in the matters of ordinary life. In a letter to the Earl of Aberdeen, written in June 1683, he reveals to us his principle of action in a sentence: ‘I am,’ says he, ‘as sorry to see a man die, even a Whig, as any of themselves; but when one dies justly for his own faults, and *may save a hundred to fall in the like*, I have no scruple.’<sup>313</sup>

1684.

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One Marion Purdie, dwelling at the West Port of Edinburgh, once a milk-wife, and now a beggar, was apprehended and imprisoned as a witch. She was accused of laying diseases and frenzies upon her neighbours. The king's advocate was now giving little heed to such cases, and so poor Marion 'dies of cold and poverty in prison about the Christmas.'—*Foun.*

OCT.

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It is remarked at this time that Colonel Douglas was training and exercising his regiment with extreme diligence. He studied to get his men all of one height, and would allow none to keep their beards long or have bad cravats or cravat-strings, being anxious that they should all look young and brisk. When they were deficient in these articles, he bought them new ones with their pay. He also 'caused them all tie their hair back with a ribbon, so it cannot blow in their eyes when they visy at their firing.' (Can this have been the origin of tied hair?) A more important regulation still of this commander—'*He discharges any of their officers to keep cellars, whereby they made their soldiers waste their pay in drinking.*'—*Foun.*

OCT.

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A tempest which took place at the end of this month, accompanied both by snow and thunder, caused the throwing ashore of 'a new kind of fish like a mackerel or herring, but with a long snout like a snipe's beak. Dr Sibbald says it is the *Acus marinus*, the Sea Needle, described by him in his *Naturalis Historia*. They have been seen before, but are not frequent, and therefore are looked upon by the vulgar as ominous.'—*Foun.*

OCT.

1684.

When Charles II. died three months after, Fountainhall remarked there having been few or no prognostics of the event, 'unless we recur to the comet, which is remote, or to the strange fishes mentioned above, or the

vision of blue bonnets ... in none of which is there anything for a rational man to fix his belief upon.'

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By an act of the second parliament of Charles II., fines were appointed for all who withdrew themselves from the regular parish churches; but as, because of the law which gives the husband exclusive power over the goods held by him and his wife in communion, it was impossible to exact any fine for the delinquency of a married woman, it had become necessary to make the husband answerable when his wife offended. Under this arrangement, some ladies of rank, addicted to attending conventicles, had brought no small trouble upon their partners. The Council, at length feeling it was a hard law where the husband was a conformist, requested power from the king to remit the fines in such cases. Soon after the following case occurred.

David Balcanquel of that Ilk, having been, in virtue of the act, amerced in three years of his valued rent or fifteen hundred pounds, 'upon the account of his wife not keeping the church,' represented the matter very pathetically to the Privy Council, setting forth how he himself had always kept his parish church, and, 'notwithstanding the distractions and disorders that have been in the country where he lives [Fife], has always demeaned himself as ane dutiful and loyal subject.' The Council took the case into favourable consideration, and, 'seeing it never was the intention of his majesty that his weel-affected subjects should be ruined by *the mad and wilful opinions of phanatick wives*, without any fault of their own'—seeing, moreover, that Balcanquel protested '*it is not in his power to persuade his wife to go to church*, notwithstanding of all the endeavours he has used for that effect, and *he is willing to deliver her up to the Council to be disposed of at their pleasure*'—they agreed to discharge his fine, taking him only bound 'to deliver up his wife to justice whenever required.'—*P. C. R.*

DEC. 4.

1684.

It was not always as in this case in regard to conventicle troubles. Wodrow had heard the following converse case 'very weel attested:'<sup>314</sup> About the time of the Circuit Court in 1685, there was an honest man in the parish of

Baldernock, who was sore bested with a graceless and imperious wife, a hater of all seriousness. When he performed family worship, she interrupted him; when he went to a conventicle, she cursed him; and when he came home, she threw stools at him. Scarce durst the poor man return from these meetings without a few neighbours to protect him from his wife's violence. Being denounced and cited to the court at Glasgow, he failed to appear; but *she* came forward, and, on his name being called, cried out: 'My lords, it's all true—he is a rebel; there is not a conventicle in all the country but he is at it. He deserves to be hanged. Hang him, my lords!' The lords asked who she was, and on being told, and hearing her go on further in the same strain, they ordered the man to be scored out of the roll, saying: 'That poor fellow suffers enough already from such a wife!'

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Amongst those now suffering under the severities of government, there was no one more remarkable than Sir Patrick Hume of Polwarth, a Berwickshire gentleman of large fortune, of vigorous character, and great zeal as a Presbyterian and Whig. Though only recognised by the government as 'a factious person,' he had been several times rather severely handled. Being now under suspicion of a concern in the Rye-house plot, he was denounced on the 13th of November as guilty of treason, and obliged to go out of the way. The harshness with which his friend Robert Baillie of Jerviswood was treated, was sufficient to shew that the more closely he concealed himself the better.

DEC.

Polwarth, who was a man of forty-three years of age, had a wife and ten children, all young, residing at his house of Redbraes in the Merse. Patrick, the eldest son, was taken up and put in prison; and on the 26th of December, there was a petition from him to the Privy Council, setting forth the piteous condition of the family now deprived of their father and threatened with the loss of their estate. He was but 'a poor afflicted young boy,' he said, who could do no harm to the state; he, moreover, cherished loyal principles and a hatred of plots. All he craved was liberty, that he might 'see to some livelihood for himself,' and 'be in some condition to help and serve his disconsolate mother and the rest of his father's ten starving children.' The boon was

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granted grudgingly, the young man being obliged first to obtain security for his good-behaviour to the extent of two thousand pounds sterling.—*P. C. R.*

The first concealment of Sir Patrick was the family burial vault, under the east end of the parish church of Polwarth, a place where he had no fire, and only during the day light from an open slit in the wall. With the comfort of a bed and bed-clothes, he endured life in this singular Patmos for a whole winter month, supplied nightly with food by his daughter Grizzel, and having no sort of entertainment to beguile the tedium of the day but his own reflections, and the repetition of Buchanan's Psalms, which had long been charged on his memory. Each night, the young Grizzel came with a packet of provisions, and stayed with him as long as she could, so as to get home before day. According to an interesting family memoir, written by her daughter, Lady Murray of Stanhope: 'In all this time, my grandfather shewed the same constant composure and cheerfulness of mind, that he continued to possess to his death, which was at the age of eighty-four; all which good qualities she inherited from him in a high degree. Often did they laugh heartily in that doleful habitation, at different accidents that happened. She at that time had a terror for a church-yard, especially in the dark, as is not uncommon at her age, by idle nursery stories; but when engaged by concern for her father, she stumbled over the graves every night alone, without fear of any kind entering her thoughts, but for soldiers and parties in search of him, which the least noise or motion of a leaf put her in terror for. The minister's house was near the church; the first night she went, his dogs kept such a barking, as put her in the utmost fear of a discovery; my grandmother sent for the minister the next day, and, under pretence of a mad dog, got him to hang all his dogs. There was also difficulty of getting victuals to carry him without the servants suspecting; the only way it was done, was by stealing it off her plate at dinner into her lap. Many a diverting story she has told about this, and other things of a like nature. Her father liked sheep's head, and while the children were eating their broth, she had conveyed most of one into her lap; when her brother Sandy (the late Lord Marchmont) had done, he looked up with astonishment, and said: "Mother, will ye look at Grizzel; while we have been eating our broth, she has ate up the whole sheep's head." This occasioned so much mirth among them, that her father at night was greatly entertained by it, and desired Sandy might have a share in the next.... As the

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gloomy habitation my grandfather was in, was not to be long endured but from necessity, they were contriving other places of safety for him; amongst others, particularly one under a bed which drew out, in a ground-floor, in a room of which my mother kept the key. She and the same man worked in the night, making a hole in the earth, after lifting the boards, which they did by scratching it up with their hands, not to make any noise, till she had left not a nail upon her fingers; she helping the man to carry the earth as they dug it, in a sheet on his back out at the window into the garden; he then made a box at his own house, large enough for her father to lie in, with bed and bed-clothes, and bored holes in the boards for air. When all this was finished, for it was long about, she thought herself the most secure happy creature alive. When it had stood the trial for a month of no water coming into it, which was feared from being so low, and every day examined by my mother, and the holes for air made clear, and kept clean picked, her father ventured home, having that to trust to. After being at home a week or two, the bed daily examined as usual, one day, in lifting the boards, the bed bounced to the top, the box being full of water; in her life she was never so struck, and had near dropt down, it being at that time their only refuge. Her father, with great composure, said to his wife and her, he saw they must tempt providence no longer, and that it was now fit and necessary for him to go off, and leave them; in which he was confirmed, by the carrier telling for news he had brought from Edinburgh, that the day before, Mr Baillie of Jerviswood had his life taken from him at the Cross, and that everybody was sorry, though they durst not shew it. As all intercourse by letters was dangerous, it was the first notice they had of it, and the more shocking, that it was not expected. They immediately set about preparing for my grandfather's going away. My mother worked night and day in making some alterations in his clothes for disguise; they were then obliged to trust John Allan, their grieve, who fainted away when he was told his master was in the house, and that he was to set out with him on horseback before day, and pretend to the rest of the servants that he had orders to sell some horses at Morpeth fair. Accordingly, my grandfather getting out at a window to the stables, they set out in the dark. Though, with good reason, it was a sorrowful parting, yet after he was fairly gone, they rejoiced, and thought themselves happy that he was in a way of being safe, though they were deprived of him, and little knew what was to be either his fate or their own.

‘My grandfather, whose thoughts were much employed, and went on as his horse carried him, without thinking of his way, found himself at Tweedside, out of his road, and at a place not fordable, and no servant. After pausing, and stopping a good while, he found means to get over, and get into the road on the other side, where, after some time, he met his servant, who shewed inexpressible joy at meeting him, and told him, as he rode first, he thought he was always following him, till upon a great noise of the galloping of horses, he looked about and missed him; this was a party sent to his house to take him up, where they searched very narrowly, and possibly hearing horses were gone from the house, suspected the truth and followed. They examined this man, who, to his great joy and astonishment, missed his master, and was too cunning for them, that they were gone back before my grandfather came up with him. He immediately quitted the high road, after a warning by so miraculous an escape, and in two days sent back his servant, which was the first notice they had at home of his not having fallen into their hands.’<sup>315</sup>

Sir Patrick escaped to Holland, whence he returned with the Prince of Orange to take a high place in the councils of his country under a happier *régime*.

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We have seen many instances of Catholics deprived, under acts of parliament, of the privilege of educating their own children. This statutory power was now applied by the government to gentlefolk of what were called fanatical principles. The Lady Colville was imprisoned in the Edinburgh Tolbooth for her irregularities of religious practice, and particularly for ‘breeding up her son Lord Colville in fanaticism and other disloyal principles.’—*Foun. Dec.*

DEC. 2.

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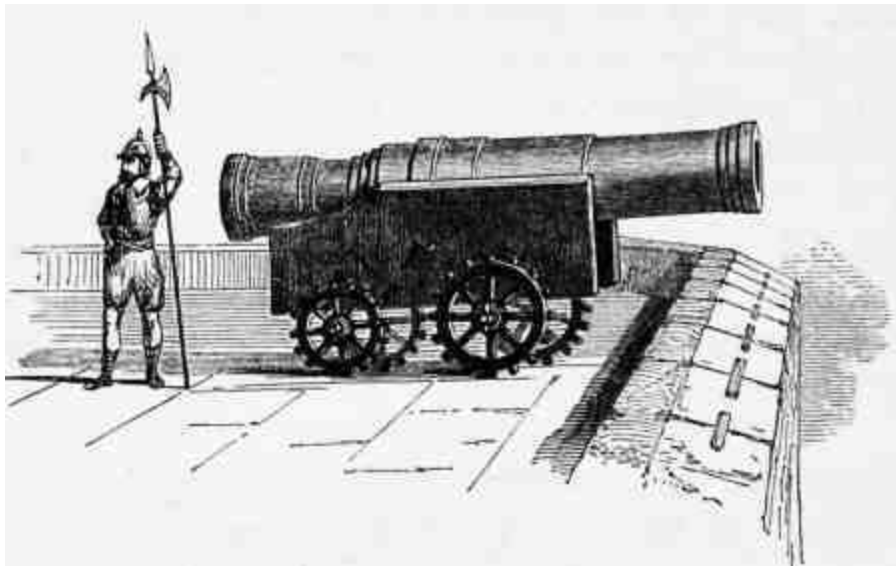
‘One James Cathcart, a pretended mathematician and astrologer, emitted a printed paper at Edinburgh, inviting any to come to him, and get resolutions of any difficult

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questions they had to ask, such as anent their death, their marriage, what husbands or wives they would get, and if they would prosper and succeed in such projects of love, or journeys, &c.; as also professed skill to cure diseases. This was a great impudence in a Christian commonwealth to avow such an art; for if he had it by magic, then he was a sorcerer; if not, he was an impostor and abuser of the people, which even is death.... In his paper, he cited some texts of Scripture, allowing an influence to the stars.’—*Foun.*

1685.



**Mons Meg.**

## **REIGN OF JAMES VII.: 1685-1688.**

James Duke of York succeeded his brother in the three kingdoms (February 6, 1685), at a mature period of life, being fifty-three years of age. While reckoning as James II. in England and Ireland, he was the seventh of the name in Scotland.

The transition from the one sovereign to the other was very much like that from James VI. to Charles I. It was in each case from a man of lax principle to one who carried principle to obstinacy. It was also in each case a change from that easy good-nature which gets through difficulties, to a certain severity of temper which does not so much subdue difficulties as it makes them. If James could have kept his religion out of sight, there was enough of loyalty in the nation to have carried him to the end of a prosperous reign; he might have even completed his brother's designs for rendering the English crown absolute. But he was too earnest a Catholic to give his subjects a pretext for forgetting the fact, or to allow of their winking at his assaults upon their liberties.

The Duke of Monmouth, who had set up some pretensions to the crown as a legitimate son of Charles II., now resided in exile at Brussels. He had ingratiated himself with the dissenters in England, and hoped by their assistance to dethrone the new monarch. He formed a design, in concert with the Earl of Argyle, for an invasion of the island. The latter nobleman set sail in May, and, after touching at the Orkneys, descended upon the west of Scotland, where he was joined by two thousand five hundred of his clan. A boat's crew whom he sent on shore at Orkney being taken prisoners, gave information of his design, and the bishop of that diocese immediately carried the intelligence to Edinburgh. The militia of the kingdom was called out. The gentlemen of Argyle's clan were seized and brought to the capital. The earl, finding all his prospects blighted, made a hesitating and timid advance towards Glasgow, where he hoped, but vainly, to be joined by the persecuted people of the west. The government forces advancing on every hand to meet him, his troops melted away; and after pursuing a solitary flight for a little way in disguise, he was taken prisoner at Inchinnan in

Renfrewshire, and transported to Edinburgh, where he was immediately executed upon his former sentence (June 30, 1685).

The expedition which Monmouth conducted to the west of England was equally unfortunate, and that nobleman being seized under similar circumstances, was also executed. The exasperations, terrors, and anxieties which the sovereign had endured, first from the endeavours of the Whig party to exclude him from the throne, and latterly from these two rebellions, revenged themselves in severities which have fixed an indelible stigma upon his name. Under the Chief-justice Jeffries, hundreds of Monmouth's followers, and even some wholly innocent, were summarily condemned and executed. It became a 'killing time' with the poor Presbyterians of the west of Scotland, many of whom were seized and shot dead in the fields. Everywhere men were reduced to silence; but at the same time, much of their respect and affection was lost.

From the commencement of his reign, James took no pains to conceal his religion. Encouraged by the suppressed rebellions and the stillness which everywhere prevailed, he now thought he might safely commence a series of measures for restoring the Catholic faith in his dominions. As the law stood, no papist could hold any office in the state. They were excluded, in both kingdoms, by a test oath, abjuring the errors of popery. Early in 1686, James endeavoured to get an act passed in both parliaments for dispensing with this oath, so that he might be enabled to introduce men of his own religion into all places of trust, which he judged to be the best way of proselytising the people at large. But to his surprise, the same parliaments which had already declared his temporal power to be nearly absolute, refused to yield to him on the subject of religion. Neither entreaties nor threats could prevail upon them to pass the necessary acts. In Scotland, the Duke of Queensberry, Sir George Mackenzie, and other statesmen, who had hitherto been the readiest to yield him obedience in all his most unpopular measures, submitted rather to be displaced than to surrender up the religion along with the liberties of the nation.

When he found that the parliaments would not yield to him, he dissolved them, and, pretending that he had only asked their consent out of courtesy, assumed to himself the right of dispensing with the test. This was establishing a power in the crown to subvert any act of parliament, and consequently no law could henceforth stand against the royal pleasure. If it

had been assumed upon a temporal point, it is not probable that any resistance would have been made; for the right of the king to do as he pleased, and the illegality of all opposition to his will on the part of the people, were principles now very generally conceded. But it concerned the existence of the Church of England, and the religious prepossessions of the great majority of the people. There was therefore an almost universal spirit of resistance.

In order to give his measures an appearance of fairness and put them on a sufficiently broad ground, he granted a toleration to all kinds of dissenters from the Established Church. Affecting to have long been convinced that ‘conscience ought not to be constrained nor people forced in matters in religion;’ that all attempts of the kind were detrimental to the social economy and the interests of government, leading only to ‘animosities, name-factions, and sometimes to sacrilege and treason;’ he, by proclamations in the first six months of 1687, discharged all existing laws against dissenters in both sections of Britain, with certain moderate reservations, making it practicable for Presbyterians in Scotland to set up chapels for their own worship. This was a most remarkable step for a British sovereign to take. First, it openly assumed a right of the monarch, by his ‘absolute power’—for such was the phrase he used—to overrule the acts of parliament. Next, it gave ‘a degree and amount of toleration, beyond what any class of religionists was quite prepared to sanction. Therefore it was at once unconstitutional and over-liberal. Obvious as the royal motives were, there was a general expression of satisfaction with the measure among the English dissenters, while a considerable meeting of Presbyterian clergy in Scotland sent an address of thanks, with a promise of ‘entire loyalty in doctrine and practice’ for the future. But everywhere, the established clergy and the great bulk of the respectable middle classes, adherents of episcopalian protestantism, were alarmed and alienated, judging the movement to be, as it undoubtedly was, designed as a step towards the return of popery.

In the height of his power, James had deprived the boroughs of both kingdoms of their charters, and granted new ones, in which he was left the power of nominating the magistracies. He took advantage of this liberty to put Catholics into every kind of burghal office. He also attempted to get men of the same religion introduced into the chief seats in the universities.

What rendered these events the more alarming to the nation was the revocation of the Edict of Nantes by the king of France, in consequence of which the Protestants of that kingdom were subjected to a cruel persecution at the hands of their Catholic brethren. The people of Great Britain received about fifty thousand of these innocent persons under their protection; and as they were scattered over the whole country, they everywhere served as living proofs of Romish intolerance and cruelty. The British saw that if the king were not resisted in his endeavours to introduce popery, they would soon be groaning in hopeless subjection to a small dominant party, if not driven, like the French Protestants, far from their homes and native seats of industry, to wander like beggars over the earth.

The king had commanded the clergy to read in their pulpits his edict of universal toleration. Several of the English bishops, after ascertaining that the whole body almost to a man would support them, presented a petition to the king, in which they respectfully excused themselves from obeying his command. For this they were thrown into the Tower, and brought to trial, but, to the great joy of the nation, acquitted.

At this time (June 1688), the birth of a son to the king threw the nation into a state of extreme anxiety for the ultimate interests of the Protestant religion. It is to be observed that, if this prince had not come into the world, the crown would have fallen, in the course of time, to the king's daughter Mary, who, for some years, had been married to the Prince of Orange. This lady being a Protestant, and the king being now advanced in life, the people had hitherto cherished a prospect of seeing the Protestant faith eventually secured under her sway. But now the Protestant line was excluded, and with it all hope was at an end. To add to the general dissatisfaction, there was some cause to suspect that the child was a spurious one, brought forward for the purpose of keeping up a popish line of succession.

The concurrence of all these circumstances brought the nation to such a uniformity of sentiment as had not been witnessed for fifty years. While the old enemies of the dynasty remained as they had always been, its best friends and supporters were now disaffected and thrown into alarm. Tories as well as Whigs, church zealots as well as dissenters, were become impressed with the idea that some extraordinary measure was necessary to save the nation from popery, if not from slavery.

The people of all orders turned their eyes to William Prince of Orange, who had long taken a lead in opposing the arrogant continental policy of the French monarch, and whose court had for some years been a resort of British malcontents. The prince himself was strongly inclined, for reasons of general policy as well as of personal ambition, to attempt a revolution in England. Being invited by a great number of influential persons, of both sides in politics, including some of the clergy, he no longer hesitated to make preparations for an invasion. In October he set sail with an army of about sixteen thousand men, and on the 5th of November cast anchor in Torbay, in Devonshire, while the king's fleet lay wind-bound at Harwich. James had surrounded himself with a standing army; but, as generally happens in such crises, it partook of the almost universal feeling of the people, and was not to be depended on. Even with the assistance of a less scrupulous force from Scotland, he could hardly venture to risk an engagement with the prince, to whose standard a great number of the nobility had already resorted. He therefore retired before the advancing army to London, and was immediately deserted by all his principal counsellors, and even by his younger daughter, the Princess Anne. Feeling no support around him, he first despatched the queen and her infant to France, and then prepared to follow. In the disguise of a servant, he escaped down the river to Feversham, but being there seized by the populace as a popish refugee, he was brought back to London. It was found, however, that the government could not be settled on a proper footing while he remained in the country; and he was therefore permitted once more to depart (December 23, 1688). He left the kingdom in the belief that the people could not do without him, and would call him back in triumph; but, in reality, nothing could have been more agreeable to them than his departure.

In Scotland, the Privy Council and Established Church were left by the departure of the king an isolated power in the midst of a people generally indisposed to give them support. There was an irrepressible popular eagerness to break out against such popish establishments as the king had set up—to attack and extrude the more obnoxious of the clergy, and to take some vengeance upon the more noted instruments of the late arbitrary power, as the Chancellor Perth and Graham of Claverhouse, whom James had lately created Viscount Dundee. The populace did lose no time in rising against the popishly furnished chapel-royal at Holyrood and a Catholic printing-office which had been placed in its neighbourhood; and after a

struggle with the armed guards, both places were pillaged and ruined. The Chancellor Perth, who had incurred peculiar odium from turning papist, was seized in the act of flight and thrown into a vile prison. In the west country, the populace rabbled out two hundred of the parochial clergy, not treating them over-gently, yet after all, using less roughness than might perhaps have been expected. In the other parts of Scotland, where prelacy had won some favour or been quietly endured, no particular movement took place.

In January 1689, about a hundred Scottish noblemen and gentlemen assembled at Whitehall, and, having previously ascertained the disposition of their countrymen, resolved to follow the example of England, by offering the supreme management of their affairs to the Prince of Orange. A Convention was consequently appointed by the prince to meet at Edinburgh on the 14th of March. This assembly, which was elected by the people at large, excluding only the Catholics, experienced at first some embarrassment from the adherents of King James. The Duke of Gordon still held the castle in that interest, and was able, if he pleased, to bombard the Parliament House with his cannon. The Viscount Dundee was also in Edinburgh with a number of his dragoons, and every day attended the assembly. On the other hand, an immense number of the westland Whigs, or Cameronians—as they were called from one of their ministers—had flocked to the city, where they were concealed in garrets and cellars. Dundee, when he saw that there was a majority of the Convention hostile to his old master, concerted with the Earl of Mar and Marquis of Athole a plan for holding a counter-Convention at Stirling, after the manner of the royalist parliament held at Oxford by Charles I. In the expectation that his friends would have been ready to accompany him, he brought out his troop of dragoons to the street; but finding their minds somewhat changed, he was obliged to take his departure by himself, as the parading of armed men so near the Parliament House would have subjected him to a charge of treason. He therefore rode out of the city with only a small squadron, and clambering up the Castle-rock, held a conference with the Duke of Gordon at a postern, where it was resolved upon between them that he should go to raise the Highland clans for King James, while his Grace should continue to hold out the Castle.

The liberal members of the Convention took advantage of this movement to summon the people to arms for their protection, and they were instantly surrounded by hundreds of armed Cameronians, who completely overawed the adherents of the late government. The Convention then declared King James to have forfeited the crown, by his attempts to overcome the religion and liberties of his subjects. The sovereignty of Scotland was settled, like that of England, upon the next Protestant heirs, the Prince and Princess of Orange, who were accordingly proclaimed at Edinburgh on the 11th of April.

It is not necessary here to detail the efforts made by King James to recover possession of Ireland—ending in his overthrow at the Boyne—or the gallant stand made for him in the spring of 1689 by the Duke of Gordon in Edinburgh Castle, and by Lord Dundee in the Highlands of Perthshire. By the death of the latter at the battle of Killiecrankie (July 27), all formidable opposition to the new settlement came to an end. It is understood that, if circumstances would have permitted, King William would have rather continued to maintain the Episcopal Church in Scotland than establish any other. Finding, however, that the bishops remained faithful to King James, he was compelled to take the Presbyterians under his protection. The Convention, changed by the royal mandate into a Parliament, proceeded in July to abolish prelacy in the Church, and to establish the moderate Presbyterianism which still exists. All the clergy formerly in possession of churches were permitted to retain them, if they felt disposed to accede to the new system, and take the oaths to government. The Solemn League and Covenant, though still supported by a party, was overlooked. The clergy were deprived of the power of inflicting a civil punishment by means of excommunication. General Assemblies and other Church courts were restored, with independent powers in ecclesiastical matters, and, the act of supremacy being abolished, Christ was understood to reign as formerly over the church. The clergy, however, tacitly admitted the king to be their patron and nursing father; and while the moderator of the assemblies convened and dissolved them in the name of Christ, the king's commissioner, or representative, was also allowed to do the same in the name of the sovereign. Thus at length, by one of those compromises which sometimes follow the exhaustion of passion, a sort of middle way was found, in which the religious prepossessions of the great bulk of the people could rest in peace, while still the reasonable powers of the state were not dangerously



interfered with. So did the great troubles of the seventeenth century come to an end, and allow the genius of the nation at length to give a due share of its energies to that material prosperity which had so long been repressed. The course of Scotland since, under its moderate church and zealous dissenting communions, its useful parish schools, and mild government; the advance of the country in population, in the culture of its soil, in every branch of honourable industry, and in the paths of science and literature; these might well form the subjects of another work equal in extent to the present.

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The curious book, entitled '*Satan's Invisible World Discovered*,' by Mr George Sinclair, late professor of philosophy at the college of Glasgow,' was endowed by the Lords of the Privy Council with a copyright of eleven years; all persons whatsoever being prohibited 'from printing, reprinting, or importing into this kingdom, any copies of the said book,' during that space of time. This little volume, which was often reprinted during the eighteenth century, and so lately as 1814, contains, in the language of its own title-page, a 'Choice Collection of Modern Relations, proving evidently *against the Atheists of this present age*, that there are Devils, Spirits, Witches, and Apparitions, from authentic records and attestations of witnesses of undoubted veracity.'

1685. FEB. 26.

To maintain the efficacy of witchcraft and the reality of spirits and apparitions was at that time a part of the external Christianity of the country, and it was a recognised part of 'atheism,' as all freedom of judgment was then called, to entertain a doubt about either. The work of Mr George Sinclair was an example of a series in which the popular beliefs on these subjects were defended as essential to orthodoxy. One of the most remarkable of these treatises was the *Antidote against Atheism*, published by Dr Henry More in 1655; in which we find, first, a most ingenious, and, for the age, well-informed exposition of the arguments for a God from the remarkable adaptations and provisions seen, throughout animated nature—next, and in close connection, a deduction of theism and providence from examples of bewitched persons, ghosts, vampires, guardian genii, &c. The heading of one of his chapters is: 'That the evasions of Atheists against Apparitions are

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so weak and silly, that it is an evident argument that they are convinced in their own judgment of the truth of these kinds of phenomena, which forces them to answer as well as they can, though they be so ill provided.' Not less remarkable was the *Saducismus Triumphatus* of Joseph Glanvil, printed in 1681; in which are presented many narratives regarding both witches and spirits, including the celebrated one of the Drummer of Tedworth, all evidently deemed as necessary by the author for the overthrow and refutation of one of the prevalent forms of infidelity. It is equally worthy of notice, that when John Webster, 'practitioner in physic,' ventured before the world in 1677 with his book, *The Displaying of Supposed Witchcraft*, in which he threw ridicule on the whole popular code of ideas regarding the doings of witches, his greatest solicitude was to guard himself against the imputation of being one who treated lightly anything of the nature of scriptural evidence.

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Robert Mean, of the Letter-office, had written a report to London, to the effect that the westland people were again in arms, and the king's forces marching against them. Lord Livingstone consequently posted down from London, to take command of the forces. When his lordship arrived and found the report false, he made a complaint against Robert, who was consequently imprisoned for his indiscretion, being not the first or second time he had been in trouble for similar offences. Colonel Worden, a friend of the new king, felt that it was hard to make Mean suffer where his intention was so good; so he procured a royal letter in favour of the postmaster. On a penitent petition, Robert was liberated, and allowed to resume his office, but with a warning 'that if he shall be found in any fault of his office hereafter, he shall be severely punished therefor.'—*Foun. P. C. R.*

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The Duke of Queensberry, the Earl of Perth, and the Archbishop of St Andrews, arrived in Edinburgh from

MAR. 3.

APR. 8.

London, ‘having been only eight days by the way.’—*Foun.*

This must have appeared as rapid travelling in those days, for, twelve years later, the stage-coach from York to London spent the whole lawful days of a week upon its journey. This fact we learn from a passage in the diary of George Home of Kimmerghame, in Berwickshire,<sup>316</sup> where the following statement is made: ‘Thursday, October 21 [1697], Sir John Home of Blackadder set out post for London, at two o’clock. It afterwards appears that he tired of posting [as slow], and [for expedition, doubtless] got into the stage-coach at York on Monday the 25th, and was expected to reach London in it on Saturday the 30th.’

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The equestrian statue of Charles II., which had cost £1000, though only formed of lead, was set up in the Parliament Close, Edinburgh. ‘The vulgar people, who had never seen the like before, were much amazed at it. Some compared it to Nebuchadnezzar’s image, which all fell down and worshipped, and others foolishly to the pale horse in the Revelations, and he that sat thereon was death.’—*Foun.*

APR. 16.

Sir Alexander Forbes of Tolquhoun, in Aberdeenshire, having entertained in his house Alexander Ogilvie of Forglen, Sir John Falconer, and Lord Pitmedden, missed immediately after two mazer cups on which he set great value. He wrote to Ogilvie, mentioning the fact of the cups being missed, and asking if he could tell anything about them. Ogilvie, though feeling that this was scarcely civil, returned a friendly answer, assuring Sir Alexander that he had never even seen the cups, and knew absolutely nothing directly or indirectly about them. Hereupon Sir Alexander replied apologetically, and for some years he conducted himself in the most friendly way towards Ogilvie, as if to make up for his former incivility.

APR.

Afterwards, on Ogilvie refusing to take part with him in some quarrels with a third party, Sir Alexander appeared to conceive a malicious feeling towards him. To wreak this out, he raised an action against him in the Court of Session, on the allegation that he had fraudulently abstracted the fore-mentioned cups. ‘And when the case was called, Tolquhoun had the confidence to appear personally at the bar and own and countenance the same, and crave [Ogilvie’s] oath of calumny anent that defamatory libel.’ After Ogilvie had thus acquitted himself, Tolquhoun craved permission to enter on a proof of the libel by witnesses; which the lords assented to. While the matter was pending, Tolquhoun frequently upbraided Ogilvie with the terms *cup-stealer* and *cup-cheater*: nor did he hesitate to resort to legal quirks for keeping the charge as long as possible over the head of the accused. At length, the case came on, and, being found wholly without sound evidence, was pronounced to be altogether founded in malice.

1685.

A subsequent process by Forglen against Tolquhoun for oppression and defamation was undefended by the latter, and ended in his being amerced in twenty thousand merks Scots, whereof one-half was adjudged to the aggrieved party.—*P. C. R.*

APR. 30.

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A dog being stolen out of the house of the Earl of Morton in Peebles, it chanced that the Earl’s son, the Hon. George Douglas, soon after observed the animal following the Laird of Chatto on the High Street of Edinburgh. On Douglas claiming it, the Laird of Chatto very civilly gave it up. Some days after, as Douglas was walking the street, followed by the dog, John Corsehill, a footman of Chatto, came up and attempted to take the animal into his possession, doubtless believing that it was his master’s property. Douglas bade him forbear, as the dog was his; but John Corsehill, not being satisfied, gave him some foul language, and when Douglas soon after returned along the street, Corsehill renewed his attempt; whereupon Douglas called him a rascal, to which the lackey responded in the same terms. ‘Which being such an indignity to any gentleman, [Douglas] did step back, and make to his

JUNE.

sword; but before he got it drawn, the footman did hit him twice with a cudgel over the head, and did continue violently to assault him, [Douglas] still retiring, and with his sword warding the blows; but the footman was so furious, that he run himself upon the point of the sword, and so was killed.'

The excuse of Douglas for this unhappy chance was, that Corsehill had been the first aggressor, and that 'no gentleman could endure publicly to be called a rascal without resentment.' He protested that he had only acted in self-defence.—*P. C. R.*

Another, though less fatal quarrel took place soon after, in consequence of a similar circumstance. Captain Scott, of the King's Guard, having lost his dog in the college of Edinburgh, adopted the belief that it had been appropriated by Mr Gregory, the professor of mathematics. On this notion he acted so far as to fall upon the learned gownsman and give him a hearty beating. The other professors took up the case, and on their complaint to the Chancellor, Scott was compelled to crave pardon.—*Foun. Dec.*

Sir John Cochrane of Ochiltree, an associate in Argyle's expedition, and a forfaulted traitor, was taken in a relative's house in Renfrewshire at the end of June, and was on the 3d July, with his son and another traitor, brought into Edinburgh, 'bound and bareheaded, by the hangman.' On the day noted in the margin, the English packet coming to Edinburgh was known to have been twice stopped and robbed near Alnwick. It was conjectured at the time that this might be done by some of Sir John Cochrane's friends, 'lest there should have been any warrant from the king by these packets to have execute him; that so the Earl of Arran might have leisure to inform the king what Sir John could discover, and so obtain a countermand.'—*Foun.* There were other conjectures on the subject; but no one could have surmised that the robber of the packet was Sir John's daughter Grizzel, disguised in men's clothes, as was long after ascertained to be the case. Sir John obtained a pardon from the king, and lived to be Earl of Dundonald. The heroine Grizzel was married to John Kerr of Morriston, in Berwickshire.

1685. JULY 7.

‘Sir George Drummond, provost of Edinburgh, breaks and runs to the Abbey for debt, the first provost that, during his office, has broke in Edinburgh.’—*Foun.* A

AUG.

week or two after, in consequence of some objectionable matters being thrown over the windows of Patrick Graham, captain of the Town-guard, whereby some gentlemen’s clothes were spoiled, a trivial riot took place at the guard-house. The Lord Chancellor, Earl of Perth, who of course was bound to do what he could for a Drummond, took advantage of this petty affair to get a protection to the bankrupt provost, to enable him to appear and defend the town. Thus he was ‘brought to the street again.’

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George Scott of Pitlochrie had some claims upon the public in compensation for certain manuscripts originally belonging to his father, Sir John Scott of Scotstarvet, which he had surrendered to the Court of Session. Sir John had written a curious book, entitled an

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*Account of the Staggering State of Scots Statesmen*, in which, with irrepressible marks of gusto, he detailed the misfortunes which had befallen the persons and families of most of those who had taken a lead in public affairs or borne office during the preceding century. Now the usual destiny had overtaken his own son, who was fallen into poverty, and somewhat at a shift for a living. For some time, he besieged the Privy Council for help or patronage, and was at length gratified with a very peculiar gift. About two hundred westland peasants had been taken up for various acts of recusancy, and, for safety on the approach of Argyle, they were gathered out of the prisons, driven off like a flock of sheep to the east side of the island, and huddled into a vault of Dunnottar Castle, where they lived for a few weeks in circumstances of privation, as to food, air, water, and general accommodation, truly piteous. Hearing of their sad state, and relenting somewhat, the Council caused these poor people to be brought to Leith. It was hoped, perhaps, that they would now make such submissions as might warrant their liberation; and some did thus work themselves free. But the greater number positively refused to take the oath of allegiance, ‘as

embodied with the supremacy,' as they would thus be rejecting Christ from 'the rule in his own house,' as well as over their own consciences.

Pitlochie, who was himself a vexed Presbyterian, being now in contemplation of a settlement in the colony of East Jersey, and in want of labourers or bondsmen for the culture of his lands, petitioned the Council for a consignment of these tender-conscienced men, and nearly a hundred, who had been condemned to banishment, were at once 'gifted' to him. He freighted a Newcastle ship to carry them, and the vessel sailed from Leith roads, carrying with her a number of 'dyvours and broken men' besides the Covenanters. It was a most disastrous voyage.

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Partly perhaps because of the reduced and sickly state of many of the prisoners at starting, but more through deficiency of healthful food, and the want of air and comfort, a violent fever broke out in the ship before she had cleared the Land's End. It soon assumed a malignant type, and scarcely any individual on board escaped. The whole crew excepting the captain and boatswain died; Pitlochie himself and his lady also sunk under the disease. Three or four dead were thrown overboard every day. 'Notwithstanding of this raging sickness, much severity was used towards the prisoners at sea by the master of the ship and others: those under deck were not allowed to go about worship by themselves, and when they essayed it, the captain would throw down great planks of timber upon them to disturb them, and sometimes to the danger of their lives.'

Fifteen long weeks were spent by this pest-ship before she arrived at her destination; and in that time seventy had perished! The remainder were so reduced in strength as to be scarcely able to go ashore. The people at the place where they landed, 'not having the gospel among them,' were indifferent to the fate of the Scottish Presbyterians. But at a place a few miles inland, where there was a minister and a congregation, they were received with great kindness. They then became the subject of a singular litigation, a Mr Johnston, the son-in-law and heir of Pitlochie, suing them for their value as bond-servants. A jury found that there was no indenture between Pitlochie and them, but that they were shipped against their will; therefore Mr Johnston had no control over them. A good many of them are said to have died within a short space of time in the plantations; the rest returned to their native

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country at the Revolution. Such was the sad story of Pitlochrie's voyage.—*P. C. R. Wod. Foun.*

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Robert Pringle of Clifton, a considerable gentleman of Roxburghshire, was lately dead, leaving one child, Jonet Pringle, now about twenty years of age, as heir to the bulk of his property, while his brother Andrew succeeded as heir of provision. It was obviously desirable for the general interest of the family, that the two branches should be re-united, and when any interest of this sort existed, objections of a natural and moral kind seldom stood long in the way. Andrew Pringle's eldest son was only thirteen; therefore, if suitable at all as a match for his fair cousin, he was certainly not suitable *yet*. But then there was a tribe of Murrays of Livingstone, the relations of Jonet's mother, who anxiously desired to have the disposal of her. Already Lieutenant George Murray, of the King's Guard, was alive to his prospective interests in the matter. How to countermine him? The young lady vanished from society; much reason to suppose it was by the prompting and assistance of her uncle Andrew. Lieutenant Murray obtained from the Privy Council an order against Andrew Pringle to produce his niece; but he cleared himself by oath of the charge of having been concerned in putting her away. Murray urged that she should be exhibited—as her relation he had an interest in seeing this done—and Andrew Pringle, who had not acted very well towards his deceased brother, was ill fitted to take a charge of the niece. Mr Pringle was ordered, on pain of a fine of ten thousand merks, to bring forward his niece before the 5th of November, and, to make sure of him, he was put into prison. It was, however, soon ascertained that the young lady had gone over the Border with her boy-cousin, and been married to him by a regular English clergyman!

OCT.

In these circumstances, it became needless for the lieutenant to go forward with his case against Mr Pringle. A contract was made between him and Pringle, whereby for seven thousand merks he agreed to withdraw all opposition. All offence to the laws of the country by so improper a marriage was soon

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after effaced by a fine of five hundred merks imposed on the young couple.  
—*Foun.*

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At a meeting of the synod of Edinburgh, there was a report from the presbytery of Haddington on the case of a poor man, the gardener of Sir John Seton of Garmilton, who, having turned Catholic, had become in their opinion liable to a sentence of excommunication. But such processes had now become a matter of some delicacy, as the king might thereby be offended. The bishop, in some terror, signed the warrant for going on with the process against the gardener, and, lest the act should appear a strong one, he tried to soften it by professing to his clergy to have little fear of popery, as the king had promised to protect the Protestant religion. A few weeks after, a letter came down from the king, forbidding the church authorities to go on with the excommunication of the gardener. With what grim smiles would the westland Whigs hear of this transaction!—*Foun.*

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OCT. 20.

In the course of our perquisitions into domestic matters in Scotland, the first trace that is found of any effort at a systematic education of young ladies in elegant accomplishments, occurs in a petition of Isobel Cumming to the Privy Council at this date. She was a widow and a stranger, who had been invited some years before to come to Edinburgh, ‘where she conceived the centre of virtue to be in this kingdom,’ in order to instruct young gentlewomen ‘in all sorts of needlework, playing, singing, and in several other excellent pieces of work, becoming ladies of honour.’ In this useful course of life, she had received much encouragement, and she was going on continually ‘improving herself for the advantage of young ladies of quality.’ Now, however, she was beset by a serious obstruction, in an order to quarter a certain number of soldiers in her house. She petitioned for an immunity from this branch of citizenly duty, and the lords—who, as oftener than once

DEC. 17.

remarked, seem never to have been deficient in Christian-like feeling in matters apart from Christianity—immediately granted her request.—*P. C. R.*

After what we have seen of the hardness of general feeling towards the Catholic religion during the last hundred years, it may be well understood that the fitting up of a popish chapel, college, and printing-office in Holyrood Palace would be regarded with no resigned feelings by the multitude, whatever might be the views of state-councillors, under a sense of delicacy or deference towards the king. At the ‘skailing’ of the chapel one day, some of the populace threw dirt and called names to the worshippers, and one of the offenders, ‘a baxter lad,’ was consequently whipped through the Canongate. On the youth being rescued by the mob, the guards were called in, and a woman and two men were shot. ‘Then all were commanded off the streets, and all ordained to hang out bowets [lanterns]; and some being apprehended, the next day a woman and two men were scourged ... guarded all the way betwixt two files of musketeers and pikemen, for fear of being deforced again.’ Afterwards, a drummer who said he could find it in his heart to run his sword through all papists, was shot; and one Keith, a fencing-master, who spoke some sentences in a jovial company approving of the tumult, saying, ‘if the trades lads would fall upon the Town-guard, he would secure Captain Patrick Graham,’ was tried, condemned, and hanged, ‘dying piously in much composure.’—*Foun.*

1686. JAN. 31.

Such were the symptoms of popular feeling which heralded the Revolution.

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The Archbishop of St Andrews and Bishop of Edinburgh departed for London, ‘in the *retour coach* which had, the week before, brought down the Marquis of Athole and Sir William Bruce from thence.’—*Foun.*

FEB. 16.

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‘Two charlatans came to Edinburgh, with recommendations from his majesty, called Doctor Reid

APR.

and Salvator Moscow, from Sicily.’ They ‘erected stages, and in their printed papers did brag of admirable cures, as sixty-four blind persons restored to sight, who had never seen from their birth, with many other extravagant undertakings.’—*Foun*.

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The parliament passed an act to encourage Mr John Adair to proceed with a design he had formed and in part executed, for producing serviceable maps of the counties of Scotland, and a hydrographical description of its sea-coasts for the use of mariners. It was arranged to remunerate Adair by a small tax on tonnage. He accordingly proceeded with his work, obtained mathematical instruments to the value of £100 from abroad, brought one Maxon an engraver from Holland at a cost of £70, and ‘did truly survey, navigate, and delineate the coast from Sunderland Point in England to Buchan-ness, in eight large maps, including the rivers and firths of Forth and Tay, likewise the Firth of Clyde on the west sea in one large map; upon which he bestowed (having ordinarily paid 20s. sterling *per diem* for boats) £200 sterling.’

JUNE 14.

1686.

At a time when, even in England, Flamstead’s salary of a hundred a year was often in arrears, it was not to be expected that any government patronage to science in Scotland should be effectively carried out. It appears that the tonnage-rate assigned to Adair proved, from one cause and another, unproductive, and he was left with the work on his hands, seriously embarrassed by his expenses, and unable to publish what he had executed. About 1691, an effort was made to get the maps engraved and published by a subscription at one pound per copy; but of seven hundred subscribers required, no more than a hundred could be procured—so few were then the individuals possessing the union of taste, public spirit, and means necessary to make them encourage such a project. At length, in 1694, on Adair’s petition, the Privy Council made some arrangements for supplying him with funds, and he was commissioned to go on with his labours. It was at the same time made an instruction to him that, while conducting his surveys, he should obtain information regarding the natural curiosities of the country, and also its antiquities. Among the former were mentioned, clays and marls

dug from the ground, and crystals, flints, and ‘figured stones, having the *shapes* of plants, shells, animals, &c.’—such being the conception of that age regarding those *fossils* in which the geologist now sees the actual remains of the organisms of the earlier epochs of creation! The funds, derived from a tonnage-rate, seem to have come in very slowly and in inadequate amount. Adair nevertheless, had a hired vessel for a succession of summers along the western coast, and in 1703 he was able to bring out a volume in folio, containing maps of the east coast, with letter-press descriptions. He described himself next year as having received £1800 sterling to account, while about £500 remained due. He adds that, even if that balance were paid, he would have no profit for his own trouble, or anything to reimburse him for what he had spent in the support of his numerous family while absent on his surveys.

Owing to the difficulty of obtaining the needful funds, the remainder of Adair’s work, though in a state of forwardness, was never presented to the world. It appears that he died in London towards the close of 1722, probably in reduced circumstances. His wife was next year honoured with a pension of £40.<sup>317</sup>

1686.

A man of kindred talents was endeavouring at the same time with Adair to produce a work which was calculated to reflect some honour on the country. We refer to John Slezer, a German or Dutchman, who had come to our northern land in 1669, and been patronised by several of the nobility, who by and by procured for him a commission as engineer in an artillery corps. He was afterwards encouraged by Charles II., the Duke of York, and other great personages, to undertake a work descriptive of Scotland; and the first result appeared in 1693, in a folio entitled *Theatrum Scotiæ*[], containing fifty-seven views of palaces and noblemen’s seats. The country was vain enough to desire to see such a work executed, but too poor to give it a remunerative sale. Yet Slezer struggled on to complete it by other volumes. The Scottish parliament, on his petition, made some arrangements to assist him with money, but they were attended with little good effect. Two volumes of additional drawings, therefore, remained for years unengraved, or at least unready for publication; and the poor author had to betake himself to the sanctuary of Holyroodhouse, where he and his talents lay useless for thirteen years, while his family lived miserably in the city. Here

he died in November 1717, leaving debts to the amount of £2249, and claims on the government to a nearly equal amount.<sup>318</sup>

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‘In the year 1686,’ says Patrick Walker, ‘especially in the months of June and July, about Crossford, two miles below Lanark, especially at the Mains on the water of Clyde, many people gathered together for several afternoons, where there were showers of bonnets, hats, guns, and swords, which covered the trees and ground; companies of men in arms marching along the water-side; companies meeting companies all through other, and then all falling to the ground, and disappearing, and other companies appearing the same way. I went there three afternoons together, and, as I could observe, there were two of the people that were together saw, and a *third that saw not*; and *though I could see nothing*, yet there was such a fright and trembling upon those that did see, that was discernible to all from those that saw not. There was a gentleman standing next to me who spoke as too many gentlemen and others speak. He said: “A pack of damned witches and warlocks that have the second-sight! De’il haet do I see!” And immediately there was a discernible change in his countenance, with as much fear and trembling as any woman I saw there; who cried out: “Oh, all ye that do not see, say nothing; for I persuade you it is matter of fact, and discernible to all that is not stone-blind!” Those that did see, told what works the guns had, and their length and wideness; and what handles the swords had, whether small, or three-barred, or Highland guards; and the closing knots of the bonnets, black and blue; and these who did see them there, wherever they went abroad, saw a bonnet and a sword drop by the way.’

JUNE and JULY.

1686.

The explanation of this kind of marvel has already been given under 1668. In the present instance, the subjective character of the phenomenon is borne out by what Walker tells of some, including himself, not being able to see anything, and of a gentleman suddenly becoming sensible of the vision.

Honest Patrick acknowledges having been afterwards much twitted and laughed at by ‘learned critics,’ and

1686.

even ‘young ministers and expectants,’ about his report of the Crossford visions, on the score of his having been himself present, without witnessing the alleged prodigy. He admits that he was there *three days, and saw nothing*, but goes on: ‘Will these wild-ass colts tell me what stopped the eyes of the long clear-sighted Balaam, that saw a star arise out of Jacob, ... yet saw not the angel standing with a drawn sword in his hand, and his dull ass saw him, and stopped three times? And what stopped the eyes of the men that were with Daniel, at the river Hiddekel, when he saw the vision, but they saw not, but greatly quaked? And what stopped the ears of Paul’s companions in wickedness, going the devil’s errand to Damascus, that saw the light and made them fall to the ground, but heard not the words of the voice that spake to him? And what stopped the ears and eyes of the captain of the Castle of Edinburgh, who was alarmed three times at night, while the sentinels were with him; but when they were sent off, he both saw and heard the different beating of drums, both English and Scots, in that strange apparition in the year 1650, before the English came to it?’

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‘This winter, there happened three fires at Edinburgh, and all on the Sabbath-day, to signify God’s displeasure at the profanation of his day.’ And yet ‘there is no certain conclusion can be drawn from these providential accidents, for a few would draw just the contrary conclusion—that God was dissatisfied with our worshipping him on that day: so these providences may be variously interpreted.’—*Foun.*

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One Reid, a mountebank, was at this time practising in Edinburgh. He was popishly inclined, and actually, four days after this date, was received into the Catholic church with one of his blackamoors; which, Fountainhall tells us, was ‘a great trophy’ to the popish party, now in the ascendancy. On the date here noted, Reid had Scott of Harden and his lady in court ‘for stealing away from him a little girl called the *Tumbling Lassie*, who danced upon his stage; she danced in all shapes, and, to make her supple, he daily oiled all

1687. JAN. 13.

her joints; and he claimed damages, and produced a contract, where he had bought her from her mother for £30 Scots. But,' adds Fountainhall, 'we have no slaves in Scotland, and mothers cannot sell their bairns; and physicians attested the employment of tumbling would bruise all her bowels and kill her; and her joints were now grown stiff, and she declined to return.' The mountebank, though favoured by the chancellor on account of his popery, lost his cause.—*Foun. Dec.*

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Being Sunday, a young woman of noted piety, Janet Fraser by name, the daughter of a weaver in the parish of Closeburn, Dumfriesshire, had gone out to the fields with a young female companion, and sat down to read the Bible not far from her father's house. Feeling thirsty, she went to the river-side (the Nith) to get a drink, leaving her Bible open at the place where she had been reading, which presented the verses of the 34th chapter of Isaiah, beginning—'My sword shall be bathed in heaven: behold, it shall come down upon Idumea, and upon the people of my curse, to judgment,' &c. On returning, she found a patch of something like blood covering this very text. In great surprise, she carried the book home, where a young man tasted the substance with his tongue, and found it of a saltless or insipid flavour. On the two succeeding Sundays, while the same girl was reading her Bible in the open air, similar blotches of matter, like blood, fell upon the leaves. She did not perceive it in the act of falling till it was about an inch from the book. 'It is not blood, for it is as tough as glue, and will not be scraped off by a knife, as blood will; but it is so like blood, as none can discern any difference by the colour.'

MAY 1.

1687.

Showers of blood are amongst the familiar prodigies by which mankind were alarmed in days of ignorance and superstition. A writer of our time remarks that it is most probable that these bloody waters were never *seen* falling, but that people, seeing the standing waters blood-coloured, were assured, from their not knowing how else it should happen, that it had rained blood into them. 'Swammerdam,' he goes on to say, 'relates that, one morning in 1670, great excitement was created in the Hague, by a report that the lakes and ditches about the city were found to be full of blood. A

certain physician went down to one of the canals, and taking home a quantity of this blood-coloured water, examined it with the microscope, and found that the water was water still, and had not at all changed its colour, but that it was full of prodigious swarms of small red animals, all alive, and very nimble in their motions, the colour and prodigious numbers of which gave a reddish tinge to the whole body of the water in which they lived.... The animals which thus colour the water of lakes and ponds are the *pulices arborescentes* of Swammerdam, or the water-fleas with branched horns. These creatures are of a reddish-yellow or flame-colour. They live about the sides of ditches, under weeds, and amongst the mud; and are therefore the less visible, except at a certain time, which is the beginning or end of June. It is at this time that these little animals leave their recesses to float about the water, and meet for the propagation of their species; and by this means they become visible in the colour which they give the water. The colour in question is visible, more or less, in one part or other of almost all standing waters at this season; and it is always at the same season that the bloody waters have alarmed the ignorant.’—*Encyc. Brit.*, 7th ed., xix. 59. If we can suppose some quantity of the water so discoloured to be carried up by a whirlwind, transported along, and afterwards allowed to fall, such a fact as the depositing of blood-like stains on Janet Fraser’s Bible might be accounted for.

Medieval history is full of stories of blood being found on or in the host, and of dismal misinterpretations of the phenomenon being accepted. Several massacres of Jews have arisen from this cause alone. Modern science sees the matter in its true light. In 1848, Dr Eckhard, of Berlin, when attending a case of cholera, found potatoes and bread within the house spotted with a red colouring matter, which, being forwarded to Ehrenberg, was found by him to be due to the presence of an animalcule, to which he gave the name of the *Monas Prodigiosa*. It was found that other pieces of bread could be inoculated with this matter. It is curious to reflect that, if Ehrenberg had been present to examine a certain spotted host in Frankfort in 1296, and supposing his rational explanations to be received, the lives of ten thousand unhappy descendants of Abraham might have been saved.



In compliance with ‘a general outcry and complaint’ from the public, the magistrates of Edinburgh called up the butchers and vintners, and fined them for extortion.

JULY 6.

It was in vain that these men set forth that there was no rule or law broken, and that when they bought dear they must sell dear. It was held as a sufficient answer to the butchers, that they did exact large profits, besides using sundry arts to pass off their meat as better than it was, and they *regrated the market* by taking all the parks and enclosures about Edinburgh, so as to prevent any from ‘furnishing’ but themselves. It was alleged of the vintners, that they exacted for a prepared fowl triple what it cost in the market; they sold bread purposely made small; they charged twenty-four pence for the pound of sugar, while the cost to themselves was eightpence, ‘and even so in the measure of tobacco.’—*Foun.*

Though the butchers formed one of the fourteen incorporated trades of Edinburgh, their business was of a limited description, and indeed continued so till a comparatively recent time, owing to the generally prevalent use of meat salted at Martinmas, a practice rendered unavoidable by the scarcity of winter fodder for cattle before the days of turnip husbandry. Of the animals used, cattle formed but a small proportion. John Strachan, a ‘flesh-cady’ or market-porter, who died in 1791 in the 105th year of his age, remembered the time—not long after that now under our attention—‘when no flesher would venture to kill any beast [that is, bullock] till all the different parts were bespoken.’<sup>319</sup> It may also be remarked that Pennant, in his *Tour in Scotland*, 1772, tells us that ‘the gentleman is now living who first introduced stall-fed beef into Perth.’ He adds, with strict truth: ‘Before that time the greater part of Scotland lived on salt meat throughout the winter, as the natives of the Hebrides do at present, and as the English did in the feudal times.’

1687.

A truer remedy for the alleged extortions of the butchers was soon after hit upon by the Privy Council, in allowing meat to be brought into town by ‘landward men’ not of the corporation. ‘Some,’ adds Fountainhall timidly, ‘think that all [should be] permitted to bring in bread every day,’ being the same case with that of the maltmen, who were forbidden to form a deaconry.

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The usual rule of the government in the two last reigns against unlicensed printing, was now very rigorously enforced, in order to prevent the issue of controversial pamphlets against the Catholic religion. James Glen, bookseller in Edinburgh, was imprisoned by an order from the Chancellor, for publishing a brochure called *The Root of Romish Ceremonies*, designed ‘to prove popery to be only paganism revived.’ It was a remarkable step for the government to take, while an uncontrolled popish printer was at constant work in the palace. Perhaps Lord Perth, who had become a Catholic (some say to please his wife, some to please the king, no one to please himself), felt sore at a *bon mot* of Glen, which Fountainhall has thought worthy of being preserved. The Council having (January 1686) issued an edict against the selling of books reflecting on popery, and their macer having brought this to Glen amongst others, he quietly remarked that ‘there was a book in his shop which condemned popery very directly—namely, the *Bible*—might he sell that?’

Nov. 24.

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At this time, so unpropitious to literature, an attempt was made to establish a periodical work of a kind which we only expect to see arising when the affairs of the learned republic are at a comparatively advanced stage. Mr John Cockburn, minister at Ormiston, in Haddingtonshire, printed the first number of a work containing ‘the monthly transactions and an account of books out of the Universal Bibliotheque and others.’ The Chancellor, finding in it some passages reflecting on the Roman Catholic Church, at once suppressed the publication.—*Foun. Dec.*

1688. JAN.

Copious periwigs, with curls flowing down to the shoulders, were now in vogue, both at home and abroad. There being an active exportation of hair for the foreign peruke-makers, the article was found to have become dear, and the native artists began to complain. On their petition, the Privy Council forbade the exporting of hair.—*Foun.*

1688. JAN. 19.

It may give some idea of circumstances attending this fashion, that at a date not long subsequent to the period under our attention, a female living in a town in the south of Scotland was accustomed to dispose of her crop of *yellow hair* to a travelling merchant at fixed intervals, and always got a guinea for it.

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Sir James Stanfield was one of the English manufacturers who had been induced to settle and practise their art at Newmills, in Haddingtonshire, in order that Scotch money should not need to be sent away for English-made goods. This respectable man was afflicted with a profligate eldest son, whom he at length saw fit to disinherit. He had become melancholy, probably in consequence of domestic troubles, and on a certain day in November, he was found drowned in a pool of water near his own house. It was debated whether he had been murdered or had drowned himself; and it was noted that the widow and son contended for the latter view of the case, and accordingly, without further ado, took measures for having the body immediately buried. A suspicion, however, arose that Sir James had met with foul play, and two surgeons were sent by the authorities in Edinburgh, to examine the body and report.

FEB.

The corpse was raised from the grave, after it had lain there two days; and the surgeons, having made an incision near the neck, became convinced that death had been induced by strangulation; so that the supposition of suicide was set aside. This inspection took place in the church. After the cut had been sewed up, and the body washed, and put into clean linen, James Row, a merchant of Edinburgh, and Philip Stanfield, eldest son of the deceased, took it up, one on each side, to deposit it in the coffin, when, behold, an effusion of blood was observed to take place on the side sustained by the son, so as to defile his hands. He instantly let the body fall, with the exclamation, 'Lord, have mercy on me!' and rushed, horror-struck, into the precentor's desk, where he lay for some time groaning and in great agitation, utterly refusing to touch the corpse again. This incident was at once accepted in the light of a revelation of the young man's guilt as his

1688.

father's murderer; and he was therefore taken into custody and brought to Edinburgh for trial.

The trial took place on the 7th of February, but brought out little evidence worthy of attention. Nevertheless, on the strength of the bleeding, and of his being known to have cursed his father, the unfortunate young man was found guilty, and sentenced to death, with sundry aggravations of punishment.

By pretending an inclination to turn papist, he got a brief respite, but, on the 24th of the month, was hanged, protesting his innocence to the last, and finally dying Protestant. By reason of a slip of the rope, he came down till his knees rested on the scaffold, and it was necessary to use more direct means of strangulation. Then his tongue was cut out, as a retribution for the cursing of his father, and his hand hacked off and sent to be put up on the east port of Haddington, as a memorial of the murder. The body was hung up in chains, but after a few days was stolen away, and found lying in a ditch among water. It was hung up again, but a second time taken down. Both in the strangulation on the scaffold and the being found in a ditch among water, the superstitious remarked something like a providential notice of the facts of the murder of which he was assumedly guilty.

It will be acknowledged that, in the circumstances related, there is not a particle of valid evidence against the young man. The surgeon's opinion as to the fact of strangulation is not entitled to much regard; but, granting its solidity, it does not prove the guilt of the accused. The horror of the young man on seeing his father's blood, might be referred to painful recollections of that profligate conduct which he knew had distressed his parent and brought his gray hairs with sorrow to the grave—especially when we reflect that Stanfield would himself be impressed with the superstitious feelings of the age, and might accept the hæmorrhage as an accusation by heaven on account of the concern his conduct had had in shortening the life of his father. The whole case seems to be a lively illustration of the effect of superstitious feelings in blinding justice.

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The Privy Council considered a legal case about a very small matter. The beautiful lake of Duddingston, under the southeast front of Arthur's Seat, and adjoining to the royal park of Holyrood, had been graced by the late Duke of Lauderdale with a few swans. His too clever duchess—who had for years been carrying on terrible legal wars with his heirs—deemed herself entitled to take out five of these birds at her own pleasure. Sir James Dick, the proprietor of the lake, determined to recover the swans; so he caught three of them, and broke a lockfast place in order to get the remaining two; and then placed them all once more upon the loch. Hereupon the duchess raised a process, which was now decided in her favour, on the ground that the birds had been brought to the loch by the late duke, and that Sir James's tolerance of them there did not make them his. The baronet, indignant at being thus balked, turned all the rest of the swans off his lake; but here he was met by the Duke of Hamilton, heritable keeper of the palace, alleging that, as the lake bounded the royal park, the wild animals upon it belonged to him. So he caused the swans to be once again restored to their haunt.—*Foun. Dec.*

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MAR. 6.

1688.

One Niven, a musician in Inverness, caused a girl of twelve years, his pupil, to marry him under basely deceptious pretences. To induce a minister to perform the ceremony, he suborned a youth to personate the girl's brother, and convey the consent of the father, who was himself a clergyman. For this 'abominable imposture and treachery,' he was condemned to stand with his ear nailed to the pillory, and then banished.—*Foun. Dec.*

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MAR.

For some time, we have heard little of witches; but now one appears. An old woman at Dunbar having threatened some people who refused to give her money, and 'some evil accidents befalling them shortly after,' she was seized and tried before a commission. She at first confessed, but afterwards retracted; nevertheless,

JULY.

the commission condemned her. Before proceeding to any greater extremity, they thought it well to bring her before the Council itself, who were at first inclined to ‘assoilzie’ her; but afterwards, ‘she was remitted back to Dunbar, *to be burnt there, if her judges pleased.*’—*Foun.*

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The *girdle*—a round iron plate used for baking oaten cakes over a fire—a household article once universal among the middle and humbler classes in Scotland—was invented and first made at the little burgh of Culross, in Fife. In 1599, King James gave the Culrossians an exclusive privilege to make girdles, and this had been confirmed by a gift from Charles II. in 1666. Nevertheless, a neighbouring gentleman, Preston of Valleyfield, had kept girdle-makers (*craticularum fabros*) on his barony, for which he was now challenged at law by the burghers of Culross. He defended himself on various grounds; and the lords, before decision, ‘recommended to Drumcairn to take trial if the girdle-makers of Culross have any other trade or craft than that of making girdles, and at what prices they sell the same; and likewise to try if the men at Valleyfield do make sufficient girdles, and at what prices they make the same, and if they have any other trade than making of girdles, &c.’ How the matter ended we do not learn.—*Foun. Dec.*

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1688. JULY 22.

About this time, an Englishman, apparently a military officer, described Scotland from personal observation, and so has preserved for us some general traits of the people.

‘Their drink,’ he says, ‘is beer, sometimes so new that it is scarce cold when brought to table. But their gentry are better provided, and give it age, yet think not so well of it as to let it go alone, and therefore add brandy, cherry brandy, or brandy and sugar, and [this] is the nectar of their country, at their feasts and entertainments, and carries with it a mark of great esteem and

affection. Sometimes they have wine—a thin-bodied claret, at tenpence the mutchkin, which answers our quart.’

It is evident from this that whisky as yet formed no conspicuous indulgence among the Scottish people. They had come, however, to be much given to another stimulant, which has ever since had a great fascination for them. ‘They are fond of tobacco, but more from the sneesh-box [snuff-box] than the pipe. And they have made it so necessary, that I have heard some of them say, that, should their bread come in competition with it, they would rather fast than their *sneesh* should be taken away. Yet mostly it consists of the coarsest tobacco, dried by the fire, and powdered in a little engine after the form of a *tap*, which they carry in their pockets, and is both a *mill* to grind, and a *box* to keep it in.’<sup>320</sup>

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The infatuated king had fled to France, the ministers of his will had dispersed in terror, and a convention was about to meet and settle the crown upon William and Mary, when a singular instance of private revenge, recalling the rougher days of a century earlier, took place in Edinburgh.

1689.

Sir George Lockhart, long the most eminent counsel at the Scottish bar—‘the most learned lawyer and the best pleader,’ says Burnet, ‘I have ever known of any nation’—and now President of the Court of Session, had had occasion, in the routine of judicial business, to give an award in favour of the unhappy wife and children of Chiesley of Dalry, near Edinburgh—a profligate man of violent passions, the descendant of a noted fanatic of the time of the Civil War. The sum assigned them from the husband and father’s estate was only ninety-three pounds a year. Chiesley openly avowed a resolution to be avenged on the judge; nay, he wrote to him, saying: ‘You have taken the government of my family from me—I desire a remedy at your hands; otherwise, I will not scruple to attack you at kirk or market;’ or using words to that effect.

1689.

On Sunday, the 31st of March—while the town was under the excitement of the siege of the Castle by the

1689.

troops of the new government—Sir George Lockhart attended worship, as usual, in the New Church, a portion of St Giles’s cathedral. Chiesley came armed, and endeavoured, by money offered to the *bedral*, to get into Lord Castlehill’s seat, which was just behind that of the President, being resolved there to wreak out his vengeance, although certain to lose his own life in consequence. Not succeeding in getting into this seat, he flitted restlessly about the church till the conclusion of the service, when he walked out, and preceded the Lord President to the head of the close near by,<sup>321</sup> in which the latter had his residence. The President came along, attended by Lord Castlehill and Mr Daniel Lockhart, and as he entered the close saluted Chiesley, who gloomily returned his greeting. To pursue the narrative of a contemporary: ‘My Lord Castlehill and Daniel Lockhart convoyed him a piece down the close, and talked a while with him, after which they both departed. The President called back the last, and whilst Daniel was returning, Dalry approached, to whom Daniel said: “I thought you had been at London,” without any other answer than that he was there [that is, here] now. Daniel offered to take him by the hand; but the other shuffled by him, and coming close to the President’s back, discharged his pistol before that any suspected his design. The bullet going in beneath the right shoulder and out at the left pap, was battered on the wall. The President immediately turned about, looked the murderer grievously in the face, and then finding himself beginning to fail, he leant to the wall, and said to Daniel: “Hold me, Daniel, hold me.” These were his last words. He was carried immediately to his own house, and was almost dead before he could reach it. Daniel and the President’s chaplain apprehended in the meanwhile Dalry, who owned the fact, and never offered to flee. He was carried to the guard, kept in the Weigh-house, and afterwards taken to prison. The President’s lady, hearing the shot and a cry in the close, got in her smock out of bed, and took the dead body in her arms; at which sight, swooning, she was taken to her chamber. The corpse were laid in the same room where he used to consult.’—*Father Hay*.

The murderer was tortured, but confessed nothing, and in three days he was hanging in chains at Drumsheuch; whence, however, his body was stolen away by his friends. Within the present century, on enlarging a cellar in Dalry house, a skeleton with some rusty irons about it was found in the earth, and concluded to be the remains of Chiesley.



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Here—for the present, at least—ends our record of domestic occurrences and things in Scotland. It brings the life of the nation from the rudeness of the middle of the sixteenth century down to the comparative civilisation of the close of the seventeenth, when the existing political system was nearly settled. A strange phantasmagoria, beginning with the half mail-clad baron and his band of followers in swords and pistols, and ending in the silken and embroidered gallant in full periwig and a rapier for show. We have seen in the earlier years of the period little regard for law amongst the people, and no power in the government to enforce it. But gentlemen have latterly rather fallen out of the custom of stabbing an enemy as he walked the High Street. They no longer go in force and in ‘effeir of weir’ to assail a neighbour in his house, or throw lighted brands into it, or drive off his horses and cattle, by way of making out a point of legal satisfaction from him. The maintenance of any form of peace in Aberdeenshire or Banffshire does not now wholly depend on the good-will of the head of the Gordon family, himself a constant offender against law in as far as he clung to the Romish religion. As regards the protection of life and property, a great improvement has evidently been effected. It is evident from many circumstances that, during the whole time, there was a pressing tendency to improvement—partly to be accounted for, doubtless, by the near neighbourhood of England. But it was impeded by the almost incessant civil strife that was kept up in consequence of the contention between two principles of ecclesiastical polity—an assertion of infallibility and independence in the church on the one hand, and an effort to bend this to supposed state necessities on the other: men, in trying to make each other Episcopalians and Presbyterians, almost ceasing to be Christians. Throughout this broil, some fine traits of earnestness and self-devotion were evoked; but so absorbing a concentration of the general mind on certain theological or *quasi*-theological doctrines could not be healthful, could not be favourable even to a sound spirit of religion, could not but check any enlightened desire for material improvements. Hence, the population was yet small and generally poor, and little had yet been done to advance the arts of life. There had never yet been beyond the most feeble attempts in any kind of manufactures: even such articles as paper and woollen cloth had to be imported. No movement had yet been even thought of for advancing

any branch of rural economy. Scotland had sent forth no voice in either literature or science; her universities could not train either the lawyer or the physician. She had not a bank, and there was not perhaps above half a million of coin in circulation. No news-sheet had yet taken root in the country. A post system had only existed on a small scale during the last twenty-five years. No stage-coaches were yet permanently established between our towns, or between Edinburgh and London. The most delicate lady, under noble rank, had to perform journeys on horseback, and if she had not strength or health to ride, she could not travel. No system of police existed in any city of the realm.

In certain intellectual and moral respects, the country was in no better state. The judge was understood to be accessible to private persuasions; and even direct bribes were suspected. The people believed as firmly in witchcraft as in the first principles of their religion, and we are not yet come within thirty years of the last example of a poor wretch burnt for mishaps that chanced to follow her evil wishes. Gentlemen of ancient family and good account were not above using the basest tricks or the grossest violence, in order to secure, by marriage, the fortune of some hapless young heiress of eleven years of age. Fallacies about markets and marketings were rife; monopolies and patents over-rode the people and kept them in poverty, no man being yet quite able to believe that there was room in the world for anybody but himself. Having concluded about any matter of opinion, men could bear with no dissent from that. It seemed to them the highest of earthly duties, that the thing each felt as a religious error should be rooted out, even though that could only be done by the extirpation of the persons entertaining it. This was to be doing God service and saving men from destruction; no one perceiving that the object aimed at was never attained, or that, if attainable, it was an immorality to attempt its attainment. Even the Claim of Rights, in which the sufferings of Presbytery since 1660 were enumerated, and its claims asserted, set forth among its demands that no popish book should henceforth be allowed to be printed.

Such was the Scotland of 1689—an improvement upon the Scotland of 1560, though to no great extent. Perhaps, after all, if we consider how surprisingly late are all the great discoveries, inventions, and social arrangements for convenience; how gaslight, steam-machinery, railways, and the electric-telegraph are of our own day; how lately it is that mankind

learned that air and water are gaseous compounds, that gravitation arranges the worlds, that our own little earth passed through a long and wonderful history before man came upon it; how it is but as yesterday that the British people led the way in universal liberation of industry, and unhappily have yet many obvious social evils to be cured; we shall not greatly wonder that this land of mountain and flood, seated far northward and off at a side, was no better than it was at the close of the reign of the last James. We may at least view congratulatingly one thing which has been made out—that the bulk of the people shall be allowed to have, under sanction of law, the style of external Christianity which they prefer; so that, anyhow, it shall not be the majority which is persecuted. That attained—and only smaller denominations treated with harshness—behold, the country begins to make a real, though at first slow advance. In five years from the settlement of its religious troubles, it has its first bank; in a few years more, it has native newspapers. Other troubles or chances of trouble being removed by a union with England, and the suppression of all hopes in favour of a discrowned dynasty, commerce becomes active; an improved agriculture commences; and nearly every kind of manufacture for which England is distinguished, takes hearty root with us. Scotsmen, frugally reared, and endowed with the elements of learning at their parish-schools, go forth into every realm to take leading positions. Literature and science are cultivated at home with the most brilliant success. And the short period of a century sees nearly every disadvantageous contrast between our country and her neighbours obliterated.

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#### ARTICLE OMITTED.

The break-down of King James's power in this month let loose a popular feeling which had been long under the restraint of terror. The proceedings of an Edinburgh mob on the 10th of December, when the Catholic chapel and college at Holyrood were rifled and destroyed, and the books, trinkets, and images burned in the court-yard, are detailed in Wodrow. At that time, according to the honest confession of Patrick Walker, the extreme Presbyterians, regarding the Revolution as a *surprising, unexpected, merciful dispensation*, 'thought it

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someway belonged to us to go to all the popish houses and destroy their monuments of idolatry, with their priests' robes, and put in prison [the priests] themselves.'

Such houses were not many, for the religion of Rome has never been able to get any footing worth speaking of in Scotland, and even the patronage of this unfortunate king had done little for it. The mansion of the Maxwells near Dumfries and Traquair House near Peebles, were the only ones in the south which challenged particular attention. In the latter case, the marriage of the second Earl of Traquair to a daughter of the Earl of Winton,<sup>322</sup> had been the means of introducing a form of faith which the family has never since changed. We have seen something of the difficulties which his countess had in rearing her son, the present Earl, in her own religion; but she had succeeded in her object, notwithstanding all that presbyteries and privy councils could do. We learn that he was a quiet inoffensive man, who had never accepted any office under King James;<sup>323</sup> but that did not avail to save his house from the zealous on this occasion.

Behold a resolute band leaving Edinburgh in December, and making their way 'through frost and snow' to that remote stately mansion on the Tweed, where the hated idolatry has for thirty years offended all well-disposed minds. The leader is Donald Ker of Kersland, a name suggestive of sufferings for presbytery in the past reign. They found at Traquair a great quantity of 'Romish wares,' but not all they came in search of, for a quantity had been carried off and secreted. Here, however, were an altar, a large crucifix of brass; several other crucifixes; 'a large brodd opening with two leaves [triptich], covered within with cloth of gold of Arras work, having a veil covering the middle part, wherein were sewed several superstitious pictures;' a eucharist cup of silver; an *Agnus Dei* of amber with a picture above; a box of relics, 'wherein were lying, amongst silk-cotton, several pieces of bone, tied with a red thread, having written upon them the saint they belonged to—namely, St Crescentius, St Marianus, St Angelus, &c.:' another 'box of relics of bones, tied with a string—namely, St Victoria, St Theodora, St Donatus, St Benedictus, St Laureata, St Venturiana;' 'a harden bag, near full of beads;' 'a timber box, with many wafers in it;' 'a pot full of holy oil;' 'the holy-water sponge;' 'Mary and the Babe in a case most curiously wrought in a kind of pearl;' several other examples of Mary and the Babe; about twelve

dozen of wax candles; many papers containing pictures; about one hundred and thirty books, some of them with silver clasps; and a considerable number of other articles of less importance.<sup>324</sup> All of these they seized without any resistance, for the earl and the priests had fled from the house on their approach.

According to the recital of Walker—Ker sent James Harkness and some other persons to the house of a neighbouring clergyman, ‘who had the name of a Presbyterian minister,’ one Mr Thomas Louis, with orders to search it narrowly for the missing articles, but to ‘behave themselves discreetly.’ ‘Mr Louis and his wife mocked them, without offering them either meat or drink, though they had much need of it [!] At last, they found two trunks locked, which they desired to have opened. Mr Louis then left them. They broke up the coffer, wherein they found a golden cradle, with Mary and the Babe in her bosom; in the other trunk, the priests’ robes.’

The whole of these articles, being brought together, were carried to Peebles (distance seven miles), and ‘all solemnly burned at the cross.’ The spoils of the Maxwells about the same time furnished the materials of a like *solemnity* at the cross of Dumfries.

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## **The Jugs—at Duddingston Church.**

### **FOOTNOTES:**

[1](#) Kennedy's *Annals of Aberdeen*, i. 176.

[2](#) A marble effigy of this Lord Belhaven, in a reclining posture, is to be seen over his tomb in Holyrood Chapel.

[3](#) The Hon. Sir William Hamilton. He was long after resident at Rome for Queen Henrietta Maria.

[4](#) Wodrow's *Life of Trochrig*, MS., quoted in *Paisley Magazine*, 1828.

[5](#) Stevenson's *Hist. of the Church of Scotland*, quoting *Historical Collections*, MS.

[6](#) *Spottiswoode Misc.*, ii. 379.

[7](#) Published in thin folio at London in 1637. 23d June 1637, 'appeared George Deuchar, agent, and in name of Colonel Monro presented one book entitled *Monro his Expeditions*, in token of his affection for the good town.'—*Edinburgh Coun. Register*.

[8](#) John Gordon, of the house of Gight, engaged himself on the other side; and while serving the emperor as governor of Egra in Bohemia, he performed the notable act of the assassination of Wallenstein, for which his imperial master liberally rewarded him.

[9](#) *Bannatyne Misc.*, iii. 221.

[10](#) Documents quoted in the *Transactions of the Antiquarian Society of Scotland*, iii. 251. *Black Book of Taymouth*, p. 437.

[11](#) The failure of the Duke of Buckingham's army to relieve Rochelle, and its shameful retreat from the Isle of Ré.

[12](#) Stevenson's *History of the Church of Scotland* quoting a contemporary history which he supposes to have been written by one who was minister of Carlawerock or Ruthwell.

[13](#) Sir John is described in other entries as keeping priests in his house of Caddell, and there setting the law at defiance.

[14](#) Row's *Hist. Church of Scot.*, p. 348.

[15](#) Stevenson, quoting *Historical Collections*.

[16](#) *Privy Council Record. Book of Adjournal*.

[17](#) In June 1569, the Regent Moray reported to the General Assembly of the church a case which had puzzled him on a justiciary visit to Elgin. It was that of one Nicol Sutherland in Forres, who was convicted by an assize of incest with a woman who had been the paramour of his mother's brother. The regent hesitated about considering this crime as rightly named, and wished the decision of the assembly on the point. The reverend assembly had no hesitation in pronouncing in the affirmative. Nicol would consequently be hanged.—*B. U. K.*

In August 1626, William Hamilton of Cultes was under discipline in the presbytery of Lanark for his incestuous marriage with his good dame's brother's wife—that is, we presume, the widow of his step-mother or step-grandmother's brother.—*R. P. L.*

[18](#) In the General Assembly of 1565, the church found that the marriage of cousins was not forbidden in Scripture; but seeing that it had been attended with inconveniences, desired that the matter should be settled by the civil magistrate.—*B. U. K.*

[19](#) Dalryell's *Darker Superstitions of Scotland*, p. 641.

[20](#) In the *Privy Council Record* is a list of a great number of persons dwelling in the eastern part of Berwickshire, who were summoned to give evidence on this trial, all their landlords being at the same time enjoined to see that they attended.

[21](#) Martine's *Gen. Collections, Macfarlane's MS.* (Adv. Lib.), vol. i., p. 168.

[22](#) The lands of Powes, Powmill, Carsebrook, and Woodside are mentioned as amongst those destroyed.

[23](#) From the original in the General Register House.

[24](#) The life here spoken of was written by Rinuccini, Archbishop of Fermo. From an abridgment of it in the *Scots Magazine* for March 1802, we derive the few particulars which follow.

[25](#) Kirkton's *Church History*, p. 19.

[26](#) Blair's *Memoirs*, MS. quoted in Notes to Kirkton.

[27](#) Wodrow's *Preface to Dickson's Truth's Victory over Error*, *apud* Gillies.

[28](#) Livingstone's *Characteristics*, quoted in Notes to Kirkton.

[29](#) *Analecta*, iii. 450.

[30](#) £2915.

[31](#) Father Blackhall's *Narrative* (Spalding Club), p. 125.

[32](#) December 16, 1630, the Privy Council granted commission to a portion of their number, amongst whom was a bishop (Dumblane), to assemble in the Laigh Council-house for the examination of Margaret Wood, 'and as they shall find occasion to cause put her to some *slight and spare torture* for the better trial and discovery of the truth of the matter.'

[33](#) See proceedings in Appendix to Spalding's *Troubles*, vol. i. (Spalding Club edition).

[34](#) *New Stat. Acc. of Scotland*—Banffshire, p. 131.

[35](#) The notes to this article are from another list in the *Spottiswoode Miscellany*, ii. 383.

[36](#) James Spence of Wormiston. He became Lord of Noreholm and Chancellor of Sweden.

[37](#) Subsequently Earl of Brentford in the English peerage.

[38](#) Created Lord Eythan by Charles I. in 1642.

[39](#) He died of his wounds, a captive, at Gortz.

[40](#) Betrayed and taken at Hanau, and died in prison.

[41](#) Killed before Bremen.

[42](#) Called Dear Sandie—he was subsequently employed in the artillery of the Scottish Covenanting army.

[43](#) He was assassinated by a lieutenant of his own regiment, whom he had been provoked to baton. A court-martial of Germans acquitted the lieutenant, on the ground that it was contrary to Swedish discipline to cudgel an officer. General Leslie, being then governor of Staten where the earl was buried, had the lieutenant immediately apprehended and shot at a post.

[44](#) Stevenson.

[45](#) Stevenson, quoting *Historical Collections*, MS.

[46](#) *Book of Adjournal*. P. C. R.

[47](#) *Black Book of Taymouth*, p. 75.

[48](#) *Black Book of Taymouth*, p. 440.

[49](#) *Black Book of Taymouth*, p. 77.

[50](#) See Cunningham's *Lives of British Painters*, &c., v. 22, art. George Jameson.

[51](#) Mixed with Spalding's quaint narration, are here inserted some special descriptions from the authorised account, published at the time, as abridged in Jackson's *History of the Scottish Stage*.

[52](#) *Muse's Threnodie*, ii. 118. Some specimens of the dress of the morris-dancers are still preserved at Perth.

[53](#) *Black Book of Taymouth*, p. 437.

[54](#) Another account states the number drowned at eight.



[55](#) From a manuscript of Sir James Balfour. *Ancient Heraldic and Antiquarian Tracts.*, Edinburgh. 1837.

[56](#) *Ed. Phil. Journal*, Apr. 1839.

[57](#) *View of Diocese of Aberdeen*, Spal. Club.

[58](#) Go-summer and go-har'st are terms applied in Scotland to the mild weather which sometimes occurs between autumn and winter. There is a proverb in Peeblesshire: 'If the deer lie down dry and rise dry on Rood-e'en (September 18), it's a sign we'll have a good go-har'st.'

[59](#) See Johnson's *Scots Mus. Museum*, new edition, notes.

[60](#) *Staggering State of Scots Statesmen*.

[61](#) Spalding. Balfour.

[62](#) Stevenson.

[63](#) *Rushworth's Collections. Southey's Commonplace-book, 3d Series*, p. 528.

[64](#) Oliver and Boyd's *Almanac* for 1839, p. 92.

[65](#) *Collections for the Hist. Aber. and Banff*, Spal. Club.

[66](#) The chancellor seems to have been involved in an unpleasant affair a short while before his death. He had procured the marriage of a young lady, named Inglis, with a good portion, to a nephew of his, named Butter, and thus disappointed the Earl of Traquair, who desired the 'morsel for a cousin of his awn, with whom he was to have divided the prey.' Traquair proceeded to 'raise all the furies of the court against the chancellor,' and procured a warrant for examination of some of his accounts—which, however, terminated in clearing his lordship of all suspicion. Traquair only shewed 'his awn base ingratitude towards him who first of all men brought him to have the king's favour and respect.'—*Bal.*

[67](#) Manuscript of Sir James Balfour, *Heral. and Ant. Tracts*, Edinburgh, 1837.

[68](#) Notes to Spalding Club edition of Spalding.

[69](#) *Spalding Club Miscellany*, ii. 73.

[70](#) For these authentic particulars of Gilderoy's fate, we are indebted to the extracts from the *Privy Council Record* printed in the Appendix to the Spalding Club edition of Spalding's *Troubles*.

[71](#) Act of Privy Council, quoted in *Blackwood's Magazine*, i. 66.

[72](#) '... many mouths were there opened to the bishop's disgrace. "False Antichristian!" "Wolf!" "Beastly belly-god!" and "Crafty fox!" were the best epithets and titles of dignity given him. The dean was mightily upbraided. Some cried: "He's a son of a witch's breeding and the de'il's get. Nae halesome water can come forth from such a polluted fountain!" Others cried: "Ill-hanged thief, if at that time thou went'st to court, thou had been well hanged, thou hadst not been here to be a pest to God's church this day!" One did cast a stool at him, intending to have given him a ticket of remembrance; but jouking became his safeguard at that time.'—*Brief and True Relation of the Broil, &c.*, printed in App. to *Roth's Relation*, 1830.

[73](#) See Vol. I. p. 545.

[74](#) Rothes's *Relation of Proceedings Concerning the Affairs of the Kirk*.

[75](#) Become fusty.

[76](#) Inundation.

[77](#) Clarendon's *Life*, ii. 333.

[78](#) Whitelock's *Memorials*, 485.

[79](#) Gordon of Rothiemay's *Hist. Scots Affairs from 1637 to 1641*. Spalding Club, vol. i. 57.

[80](#) Lady Mary Stewart, daughter of Esme, first Duke of Lennox.

[81](#) Some extracts from this book were printed by the late Charles Kirkpatrick Sharpe, Esq., 4to, without date.

[82](#) The moneys are Scots, being but a fraction of sterling money of the same denomination.

[83](#) The lady thus devoted her plate to the maintenance of the Covenanted cause.

[84](#) Cosmo Innes—preface to *Fasti Aberdonenses*, Spalding Club, 1854.

[85](#) Gordon's *Hist. Scots Affairs*.

[86](#) *Maitland Club Misc.*, i. 476.

[87](#) Turners made by gipsies (cairds).

[88](#) The reader cannot fail to have perceived that John Dhu Ger has been twice killed already. How he contrived to outlive so many deaths, I am unable to explain.

[89](#) Guthry's *Memoirs*.

[90](#) *Edinburgh Magazine*, March 1819.

[91](#) Balfour's *Annals of Scotland*, iii. 128.

[92](#) *Archæologia Scotica*, i. 503, *note*.

[93](#) Wodrow's *Analecta*, ii. 209, 280.

[94](#) The battle of Edgehill, fought on the 24th of October 1642.

[95](#) According to Burnet, Sir Archibald Johnston of Warriston did the same thing. 'He would often pray in his family two hours at a time, and had an unexhausted copiousness that way. What thought soever struck his fancy during those effusions, he looked on as an answer to prayer, and was wholly determined by it.'

[96](#) This whimsical association actually occurs in the dittay of a witch of this period.

[97](#) Stevenson's *History of the Church of Scotland*.

[98](#) Willis's *Current Notes*, April 1857.

[99](#) See Thorpe's *Northern Mythology*; also article on Sandsting in *New Stat. Acc. Scotland*.

[100](#) On the 8th of June 1643, a case came before the Privy Council, at the instance of Lawrence Mercer and others, students at St Andrews, who complained of a scandalous charge got up against them by James Stewart of Ardvourlich and his two sons, Robert and Harry, to the effect that umwhile Alexander Stewart, son of the first party, and brother of the two others, had received deadly injuries from them in a college tumult, and died in consequence. It was shewn that Alexander had provoked a tumult by his insolent speeches, and afterwards lay for a day or two in bed, but was found on inspection to be quite well, and he had lived in good health for nine months after. The lords accordingly declared the complainers to be innocent of what was laid to their charge.

[101](#) Notes to the Waverley Novels.

[102](#) In a curious and rare pamphlet, by William Lithgow, descriptive of the siege of Newcastle (*Edinburgh, printed by Robert Bryson, 1645*), we get some idea of the wretched state to which the place was reduced in consequence of its investiture of several months. 'We found great penury and scarcity of victuals, ammunition, and other necessities within that dejected town; so that they could not have held out ten days longer, unless the one half had devoured the other. The plague was raging in Gateside, Sandside, Sunderland, and many country villages about.' For this reason, Tynemouth was obliged to surrender also; 'the pestilence having been five weeks there with a great mortality, they were glad to yield and to scatter themselves abroad, but to the great undoing and infecting of the country about.'

Lithgow, by the way, was dissatisfied with the treatment of Newcastle by his countrymen. 'As they abused their victory,' says he, 'in storming the town, with too much undeserved mercy, so they as unwisely and imprudently overreached themselves, in plundering the town with an *ignorant negligence and careless omission....* And as they thus defrauded themselves with a whistle in their mouths, so they pitifully prejudged, by this their inveigled course, the common soldiers of their just due and dear-bought advantages.'

[103](#) 'At Botarie, 25th October 1648, the brethren ordained to intimat out of their several pulpits, that whosoever receipts and converses with excommunicat persons, should be processed before the presbytery.'—*Strathbogie Presbytery Record*.

[104](#) Producing a fire by the friction of two sticks against each other.

[105](#) Daughter-in-law of the Lady Frendraught formerly noticed.

[106](#) *Records of the Kirk of Scotland*, 1838, p. 446.

[107](#) Peterkin's *Records of the Kirk of Scotland*, p. 427.

[108](#) *Maitland Miscell.*, i. 436.

[109](#) *Maitland Miscel.*, i. 433.

[110](#) *Caldwell Papers*, i. 91.

[111](#) Wood's *Parish of Cramond*, p. 77.

[112](#) *Coltness Collections* (Maitland Club), p. 58.

[113](#) *Archæologia Scotica*, ii. 108.

[114](#) Lyndoch lies about seven miles north-west from Perth.

[115](#) It is certain that Perth was visited by the plague in 1646. See *Memorabilia of Perth*, p. 179.

[116](#) In a popular publication quoted below<sup>[117](#)</sup> occurs the following notice of a well-known land mollusk, in connection with a traditionary story of the plague, which has long had general currency in Scotland:

‘In the woodlands, the more formidable black nude slug, the *Arion* or *Limax ater*, will also be often encountered. It is a huge voracious creature, herbivorous, feeding, to Barbara’s astonishment, on tender plants; fruits, as strawberries, apples; and even turnips and mushrooms; appearing morning and evening, or after rain; suffering severely in its concealment in long droughts, and remaining torpid in winter. The gray field slug (*Limax agrestis*) is actually recommended to be swallowed by consumptive patients! In the town of Dundee there exists a strange traditionary story of the plague, connected with the conversion, from dire necessity, of the *Arion ater*, or black slug, to a use similar to that which the luxurious Romans are said to have made of the great apple-snail. Two young and blooming maidens lived together at that dread time, like Bessie Bell and Mary Gray, in a remote cottage on the steep (indeed almost perpendicular) ascent of the Bonnetmaker’s Hill. Deprived of friends or support by the pestilence that walked at noonday, they still retained their good looks and healthful aspect, even when the famine had succeeded to the plague. The jaundiced eyes of the famine-wasted wretches around them were instantly turned towards the poor girls, who appeared to thrive so well whilst others were famishing. They were unhesitatingly accused of witchcraft, and had nearly fallen prey to that terrible charge; for betwixt themselves they had sworn never to tell in words by what means they were supported, ashamed as they felt of the resource to which they had been driven; and resolved, if possible, to escape the anticipated derision of their neighbours on its disclosure. It was only when about to be dragged before their stern inquisitors, that one of the girls, drawing aside the covering of a great barrel which stood in a corner of their domicile, discovered, without violating her oath, that the youthful pair had been driven to the desperate necessity of collecting and preserving for food large quantities of these *Limacinæ*, which they ultimately acknowledged to have proved to them generous and even agreeable sustenance. To the credit of the times of George Wishart—a glimpse of pre-reforming enlightenment—the explanation sufficed; the young women escaped with their lives, and were even applauded for their prudence.’

[117](#) *Summer Life on Land and Water*. By William W. Fyfe. 1851.

[118](#) *Remarkable Passages of the Lord’s Providence towards Mr John Spreull, Town-clerk of Glasgow, 1635-54*. T. Stevenson, Edinburgh, 1832.

[119](#) *Arbroath Guide*, Oct. 2, 1847.

[120](#) Executed in the Palace-yard, Westminster, 9th March 1649.

[121](#) 6th October 1648—‘appoints the four bailies, the old provost [Archibald Tod], the deacon of the chirurgeons, and their clerk, to go down to the Canongate in the afternoon, and in the Council’s name salute the Lord Cromwell, lieutenant-general of the English forces, and thir presents sall be their warrand.’—*Ed. Council Register*.

[122](#) Defoe's *Review of the Brit. Nation*, 1709.

[123](#) *Life of Cameron of Lochiel*.

[124](#) Balfour's *Annals. Britain's Distemper*, by Patrick Gordon.

[125](#) Excerpts from Fraser of Wardlaw's *Memoirs. Inverness Courier*.

[126](#) Rescinded Acts. *Records of Kirk of Scotland*.

[127](#) Balfour's *Annals*, iii. 427.

[128](#) Son to umquhile John Stewart, usher to his majesty.

[129](#) *Acts of Estates, MS. Gen. Reg. House*.

[130](#) This narration is taken from Fergusson's *Diary*, as quoted in *Satan's Invisible World*. We are obliged, however, for the name of the minister to Wodrow, *Analecta*, i. 65.

[131](#) *Maitland Miscel.*, i. 439.

[132](#) From tradition.

[133](#) On the 18th of March 1647, finding that 'the pride and insolency of excommunicate persons doeth exceedingly increase, and that the dreadful censure of excommunication is much slighted and vilipended, whereby God is much dishonoured,' the Estates passed an act renewing the force of all previous acts against such persons, and ordaining that, after forty days, letters of horning and caption should be issued against them, to be of full force unless they can shew that they have given 'full obedience and satisfaction to the kirk.' The acts against papists were at the same time renewed; none such to be capable of public employment, husbands to be 'countable for their wives' if the ladies should reset priests, and no person to take a servant unprovided with 'a testimonial of the soundness of their religion from the minister where they dwelt.'

[134](#) *Register of the Presbytery of Lanark. Acts of the Scottish Parliament, MS.*

[135](#) *Records of Kirk of Scotland*, p. 473.

[136](#) Nicoll's *Diary*.

[137](#) Kirkton's *Hist. Church Scot.*, p. 64.

[138](#) Nicoll's *Diary*, p. 8.

[139](#) Dr Wilde, in *Census of Ireland for 1851*; part V., vol. i., p. 110.

[140](#) Baillie's *Letters*, iii. pp. 97, 550.

[141](#) See an interesting narration on this subject in Mr Mark Napier's *Montrose and the Covenanters*, 1838.

[142](#) The formula used on the occasion is given in the following terms by a writer of the seventeenth century: 'When any one dies, the bellman goes about ringing the passing bell, and acquaints the people therewith in the following form: "Beloved brethren and sisters, I let you to wit, that there is ane faithful brother lately departed out of this present world, at the pleasure of Almichty God (and then he veils his bonnet); his name is Wully Woodcock, third son to Jemmy Woodcock, a cordinger; he ligs at the sixt door within the Norgate, close on the Nether Wynd, and I would you gang to his burying on Thursday before twa

o'clock, &c." The time appointed for his burying being come, the bellman calls the company together, and he is carried to the burying-place, and thrown into the grave as dog Lion was, and there is an end of Wully.'—*A Modern Account of Scotland*, 1670. *Harleian Miscellany*, vi. 121.

[143](#) The mansion of the Earl of Moray in the Canongate, the same house that Cromwell occupied on his brief visit in 1648. It is now the Normal School of the Education Committee of the Free Church of Scotland.

[144](#) These anecdotes appear in *A Short Abridgment of Britain's Distemper from 1639 to 1649*. By Patrick Gordon of Ruthven. Spalding Club. 1844. They are placed by the author in connection with Cromwell's comparatively peaceful visit to Edinburgh in 1648, but must, beyond a doubt, refer to the crisis of 1650.

[145](#) See under date December 18, 1649.

[146](#) The small county of Kinross was included.

[147](#) The annual valued rent of Fife and Kinross in 1674 amounted to £383,379 Scots.

[148](#) It appears from factory accounts in the Caldwell papers as if oats fluctuated in the period 1645-54 between 6s. 1d. and 17s. 8d. sterling per boll. But probably the highest prices do not chance to occur in these accounts.

[149](#) Shew themselves.

[150](#) Nicoll, p. 67.

[151](#) *Spalding Miscellany*, iii. 205.

[152](#) From a copy of the petition in possession of the present Irvine of Drum.

[153](#) See under July 18, 1649.

[154](#) *Illust. Shires of Aber. and Banff*. Spal. Club. Vol. i. p. 285.

[155](#) Apparently a tax imposed on houses—equivalent to hearth-money.

[156](#) A small sect who held that families were the only proper congregations.

[157](#) *Register of the Committee of Estates* (Gen. Reg. House), Sept. 28, 1660.

[158](#) *Account of the Regalia*, by Sir Walter Scott.

[159](#) Burgh Record of Peebles.

[160](#) Strang's *Glasgow and its Clubs*, p. 7.

[161](#) Whitelocke's *Memorials*, 514, 515.

[162](#) Quoted in *Spottiswoode Miscellany*, ii. 91.

[163](#) Whitelock, 520.

[164](#) See the *Court of Session Garland* (Stevenson, Edinburgh, 1839), p. 4.

[165](#) Heath's *Chronicle*, p. 356.

[166](#) *Mil. Memoirs of the Great Civil War*, 4to, p. 220.

[167](#) *Memoirs of Locheil*, p. 129.

[168](#) Clarendon.

[169](#) Wogan lay at Weem during his illness, and might therefore have been expected to lie interred in the churchyard of that parish; but Heath gives Kenmore as his last resting-place.

[170](#) *Abbreviate of Justiciary Register*, by Lord Fountainhall, quoted in notes to Law's *Memorials*, p. 91.

[171](#) *Caldwell Papers*, i. 92.

[172](#) *Satan's Invisible World Discovered*.

[173](#) Nicoll's *Diary*.

[174](#) Baillie's *Letters*, iii. 323.

[175](#) About July 1655, a woman in Suffolk was taken possession of by a devil at a Quaker meeting, and carried home, where she soon after died. A circumstance which figures in the diagnosis of many cases of alleged possession, is related regarding her. 'Something ran up and down in her body under the skin, that bellowed in her like a calf.'—*Nic*.

[176](#) In an act of the Estates, March 22, 1647, it is acknowledged that, at Martinmas of the preceding year, the debt owing to Sir William Dick by the public was £533,971, 6s. 9d. Scots. In a supplication, he set forth 'his hard and distress condition for want thereof.'

[177](#) The English parliament, March 3, 1660, granted a protection to Sir Andrew Dick, and *continued* to him a pension of £5 a week which had been for some time in arrears, recommending him at the same time to the Council of State for such preferment in Scotland as he is capable of.—*Mercurius Politicus*: March 15, 1660.

[178](#) *Mercurius Politicus*, May 20, 1658.

[179](#) Baillie's *Letters*, iii. 387.

[180](#) *Lives of the Lyndsays*, i. 296.

[181](#) *Parliamentary Diary*, iv. 168. Desborough, along with one Downing, represented Edinburgh in the parliament which Cromwell assembled at Westminster in 1654.

[182](#) Baillie. *Letters*, iii. 438. The countess is said by Baillie to have been the medium through which the Scottish nobility acted on General Monk, in prompting him to go to London, just before the Restoration.

[183](#) *A Journey through Scotland, in Familiar Letters*, &c. 8vo. London, 1723.

[184](#) In August 1657, his son, Lord Linton, was cited before the presbytery of Peebles for certain scandalous miscarriages—as, frequent absence from church, drinking, and swearing. He submitted, and was rebuked. On the 3d of December of the same year, 'the presbytery, taking into their consideration a letter of complaint formerly sent unto them by the Lord Linton, complaining of his father as slandering him of unnatural dealing towards his parents,' appointed a



committee to speak with them both, and report. Lord Linton was afterwards asked to give in particulars of his complaint, but he does not appear to have complied with the request.

[185](#) *Inverness Courier*, January 1851.

[186](#) *Stirk*, a young ox. *Hawkit*, white-faced.

[187](#) John Mean had assisted Montrose and the Engagement, and incurred losses on these accounts. *Acts of S. Parl.*, vii., *App.* 93.

[188](#) We only know of this act from its being alluded to in the Privy Council Record.

[189](#) Cosmo Innes's Preface to the Acts of the Parliament of Scotland, 1844.

[190](#) Thomson's *Scottish Acts*, xi., *App.* p. 139.

[191](#) See under March 1652.

[192](#) In the parish of Aberdour, on the north coast of Aberdeenshire, is the house of Auchmedden, once belonging to a family named Baird. A local writer in 1724 reports that, among some high rocks near the Auchmedden millstone quarry, 'there is an eagle's nest; and the pair which breed there have continued in that place time out of mind, sending away their young ones every year, so that there is never more stays but the old pair.'[193](#) 'At one period,' says a writer of our own day, 'there was a pair of eagles that regularly nestled and brought forth their young in the rocks of Pennan; but, according to the tradition of the country, when the late Earl of Aberdeen purchased the estate from the Bairds, the former proprietors, the eagles disappeared, in fulfilment of a prophecy of Thomas the Rhymer, "that there should be an eagle in the crags while there was a Baird in Auchmedden." But the most remarkable circumstance, and what certainly appears incredible, is, that when Lord Haddo, eldest son of the Earl of Aberdeen, married Miss Christian Baird of New Byth, the eagles returned to the rocks, and remained until the estate passed into the hands of the Hon. William Gordon, when they again fled, and have never since been seen in the country. These facts, marvellous as they may appear, are attested by a cloud of famous witnesses.'[194](#)

[193](#) *View of Dio. of Aberdeen*, Spal. Club, p. 447.

[194](#) *New Stat. Acc. of Scot.*

[195](#) See under May 21, 1650.

[196](#) See *Spottiswoode Miscellany*, vol. ii., for a series of extracts.

[197](#) *Life of Thomas Ruddiman*, 117.

[198](#) Wodrow's *Analecta*, i. 301.

[199](#) *Analecta*, i. 106.

[200](#) *Law's Memorials*. By C. K. Sharpe, p. lxxviii.

[201](#) Contemporary with Kincaid flourished, in the north country, a pricker named John Dick. One named John Hay, a messenger in Tain, who had reached sixty without any discredit attaching to his name, was denounced by a distracted woman as a wizard, and immediately seems to have fallen into the hands of Dick, who, without any authority, pricked him all over his body, having first



shaved his head to ascertain that there were no insensible parts in that region. He was then transferred to Edinburgh, a journey of nearly two hundred miles, and locked up in the Tolbooth. On a petition from Hay, and the exhibition of certificates of character, he was ordered by the Lords of Council to be liberated.

[202](#) Kincaid lay nine weeks in jail, and then petitioned for his liberty, representing that, being an old man, he had suffered much in health by his confinement, and, if longer confined, might be brought to mortal sickness; whereupon the Lords liberated him, on condition of his giving security that he would prick no more without warrant.

[203](#) The full confessions of Isobel Gowdie and Janet Braidhead, being perhaps the two most remarkable witch-cases on record in Scotland, are given in Mr Pitcairn's *Criminal Trials*, iii. 600. From these confessions, the following narration is made up.

[204](#) The hiatus here supplied are a consequence of mutilation of the manuscript.

[205](#) Stubble.

[206](#) *A Dismal Account of the Burning of our Solemn League and National Covenant ... at Linlithgow, May 29, 1662*. Reprinted by Stevenson, Edinburgh, 1832.

[207](#) Wood's *Peerage*, quoting Morison's *Decisions*, 5626.

[208](#) In those days, there being as yet no *habeas corpus* act, it was quite common for persons suspected of crimes to lie several years untried in prison. On the 15th of February 1666, William Drew petitioned for trial or liberation, after having been *five years* confined in Glasgow jail, on a charge of murder exhibited against him by the Laird of Keir.

[209](#) In Richard Baxter's treatise on the *Divine Life* are some consolatory remarks which he addressed on this occasion to the bereaved mother of the young earl.

[210](#) *View of Diocese of Aberdeen*, Spal. Club.

[211](#) Pepys's *Diary*, 3d ed., ii. 408, 437.

[212](#) In compliance with his petition, Leslie was relieved from the duty of the collection.

[213](#) Men near akin to the chief.

[214](#) Introduction to the *Heart of Midlothian*.

[215](#) M'Ure's *Hist. of Glasgow* (reprint), p. 166.

[216](#) *London Gazette*, Feb. 18, 1667.

[217](#) *London Gazette*, May 6, 1667.

[218](#) *Abbotsford Miscellany*. Mungo Murray seems to have been a lieutenant of the king's guard, and to have enjoyed a pension of £200. See *Maitland Misc.*, iii. 154.

[219](#) See a letter from Sir Robert Dalrymple Horn Elphinstone to Sir James Stewart Denham, inserted in the Abbotsford edition of the Waverley Novels.

[220](#) About the time of his marriage, there are several entries regarding him in the Privy Council Record, as having contravened the law in the introduction and

keeping of Irish cattle and horses.

[221](#) The editor of Lamont's Diary gives the following note on George Wood's funeral: 'The revolting practice of attaching the corpse of a debtor seems from this entry to have been known in Scotland, even at this late period; while there does not appear to have been any legal authority for its adoption. The notion of its legality, however, still prevails among the vulgar in England; and although the late Lord Ellenborough held it to be contrary to the law of England, it was observed by the unfeeling creditors of Weivitzer the actor, and of the celebrated Richard Brinsley Sheridan. How absurd soever this notion may seem, a still more glaring error is known in the north of Scotland. It is there believed by the common people, that a widow is relieved of her husband's debts, if she follow his corpse to the door, and, in the presence of the assembled mourners, openly call upon him to return and pay his debts, as she is unable! Strange and unfeeling as this ceremony may be, the editor recollects an instance in which it was practised by the widow of a man in good society.'<sup>[325](#)</sup>

[222](#) Sir George Mackenzie's *Mem. Affairs Scot.*, 4to, p. 183.

[223](#) Mackenzie's *Mem. Affairs Scot.*, p. 244.

[224](#) Weir had been an officer on the popular side in the Civil War. In the registers of Estates, under March 3, 1647, reference is made to a supplication of Major Thomas Weir, in which he craved payment of 600 merks due to him by an act of the Committee of Estates of date the 17th of December 1644, and also payment of what might be due to him 'for his service as major in the Earl of Lanark's regiment by the space of twell months, and his service in Ireland as ane captain-lieutenant in Colonel Robert Home his regiment by the space of nineteen months;' further asking 'that the parliament wald ordain John Acheson, keeper of the magazine, to re-deliver to the supplicant the band given by him to the said John upon the receipt of ane thousand pound weight of poulder, twa thousand weight of match, and ane thousand pound weight of ball, sent with the supplicant to Dumfries for furnishing that part of the country.' The matter was given over to a committee.

[225](#) *Ravallac Redivivus*, p. 64.

[226](#) *Mem. Affairs Scotland*, p. 62.

[227](#) See under August 1660.

[228](#) *Memorials*, p. 43.

[229](#) *Analecta Scotica*, ii. 167.

[230](#) Sir George Mackenzie, *Memoirs of Affairs of Scot.*, p. 217.

[231](#) Mackenzie's *Mem. Scot. Affairs*, p. 226.

[232](#) A tight body-coat, from Fr. *just-au corps*.

[233](#) See vol. i., p. 427.

[234](#) See vol. ii., p. 318.

[235](#) Edin. Council Record.

[236](#) Arnot's *Hist. Edinburgh*, 1779, p. 598.

[237](#) It is usually stated that the first coffee-house in England was set up in 1654 in a shed in the church-yard of St Michael, Cornhill, by one Pasqua, a Greek, servant of Mr Daniel Edwards, a Smyrna merchant.

[238](#) A tall house of several stories so called in Edinburgh.

[239](#) Crookshanks's *Hist. Ch. of Scot.*, ii. 127.

[240](#) *Sketches of Perthshire* (1812), quoted in *Letters on Demonology*.

[241](#) Sir George Mackenzie's *Hist. Affairs of Scot.*, p. 7.

[242](#) See Wodrow's *Analecta*, i. 84.

[243](#) Balbegno is the name of a small estate in that county, near Middleton's patrimonial property. It was bought in 1690 by Middleton's brother.—*Wood's Peerage*.

[244](#) Law cites the following couplet, apparently as the last words of the apparition:

'Plumashes above, and gramashes below,  
It's no wonder to see how the world doth go.'

Plumashes are plumages; gramashes, coarse hose used as gaiters. The words seem to be used allegorically to express the two opposite conditions of life—that of the gay cavalier and the plain hard-working man.

[245](#) 'Lord Middleton used to assert that a certain palmister, whom he met in his youth, had predicted his elevation to the supreme command of his country; but the end of this prediction he always concealed, which made his companions suspect it was tragical, as afterwards it did indeed prove.'—*Kirkton's Church History*.

[246](#) *Blackwood's Magazine*, v. 75. Mr Hogg mis-states the year as 1620.

[247](#) Rec. of Justiciary, Arnot's *Crim. Trials*, p. 138.

[248](#) *Answer to Scots Presbyterian Eloquence*.

[249](#) A copy of this document, extracted from the Record of the Privy Council, is printed in full in the appendix to Pennant's *Tour*. It recites that Lachlan Maclean of Broloies, Hector Og Maclean his brother, and others, had been denounced rebels for refusing to answer to the Earl of Argyle, justiciar of Argyle, for having in the preceding April assembled three or four hundred men by the fire-process (*the fiery cross*) in Mull, Moveran, and other places, and taken warlike possession of the lands of Knockersmartin, &c. It grants commission to Lord Niel Campbell, and nine other gentlemen, to raise forces and proceed in warlike manner against the rebels, assuring them that no slaughter or fire-raising they may commit will be imputed to them as a crime, provided only they give an account of their proceedings before next New-year's Day.

[250](#) A daughter of Hamilton of Bardowie, in Baldernoch parish, designed to pay a visit to her sister-in-law at Hamilton, when a deaf and dumb woman, who had a year before given a remarkable warning, came to the house, and, with many signs, endeavoured to dissuade the young lady from her journey. 'She takes her down to the yard, and cuts at the root of a tree, making signs that it would fall and kill her. That not being understood by her nor any of them, she takes her journey, the dumb lass holding her to stay. When the young gentle-woman is at

Hamilton, her sister-in-law and she go forth to walk in the park; and in their walking they both come under a tree that is cut through at the root, and leaning by the top upon another tree. In that very instant, they hear it shaking and coming down; her sister-in-law turns to the right hand, and she herself flees to the left, that way that the tree fell, and so it crushed her and wounded her sore, so that she dies in two or three days' sickness.'—*Law*.

[251](#) *Satan's Invisible World Discovered*, p. 4-10.

[252](#) The idea of familiar spirits was entertained in this age by persons of the most dignified character. In October 1675, the bishop and synod of Aberdeen were engaged in considering 'divers complaints that some, under pretence of trances and familiarity with spirits, by going with these spirits commonly called the fairies, hath spoken reproachfully of some persons, whereof some are dead, and some living.' The synod threatened both the *seducers* and the *consulters* with censure, 'if, after admonition publicly given, they forbear not such practices, or to vent and spread such reproachful speeches, whereof the seducers are the authors.'—A. S. R.

[253](#) *Analecta Scotica*, i. 117.

[254](#) See under July 25, 1661, and April 1, 1662.

[255](#) Several of the inhabitants of Mull told me, that they had conversed with their relatives that were living at the harbour when the ship was blown up, and they gave an account of a remarkable providence that appeared, in the preservation of one Dr Beaton (the famous physician of Mull), who was on board the ship when she blew up, and was then sitting on the upper deck, which was blown up entire, and thrown a good way off; yet the doctor was saved, and lived several years after.—*Martin's Descrip. West. Isles*, 1703. See of the present work, vol. i. p. 189.

[256](#) *Ars Nova et Magna Gravitatis et Levitatis*. In a subsequent work, entitled *Hydrostatical Experiments*, Sinclair described a kind of diving-bell of his own invention, which he called an *Ark*.

[257](#) *Archæologia Scot.*, iv. 437.

[258](#) Works of Dr Alexander Pennecuik, p. 178.

[259](#) The grandfather of the celebrated David Hume.

[260](#) The distance is seventeen miles.

[261](#) *A Short Account of Scotland*. Published in London in 1702.

[262](#) Sir Walter Scott, *Letters on Demonology*, p. 323. Sir Walter attributes the anecdote to a generation too late.

[263](#) See under November 1665.

[264](#) See under February 1589-90.

[265](#) Fountainhall's *Decisions*, i. 113.

[266](#) Fountainhall's *Decisions*, i. 157.

[267](#) Fountainhall.

- [268](#) This is the traditionary account, from Sharpe's *Notes to Kirkton's History*, p. 182.
- [269](#) Fountainhall.
- [270](#) *Archæologia Scotica*, i. 499.
- [271](#) *Historical Observes*, p. 49.
- [272](#) See Fountainhall's *Decisions*, *passim*.
- [273](#) Fountainhall's *Historical Observes*, p. 62.
- [274](#) The documents connected with this curious witch-trial are printed in the *Scots Magazine* for 1772, and again in the same work in 1814.
- [275](#) Vide Fynes Moryson on Scottish travelling, *sub anno* 1598.
- [276](#) *Pace*, the weight of a clock, from Fr. *le poids*.
- [277](#) Swey, a kind of crane moving on a hinge against a wall.
- [278](#) It might have been supposed that this was a descendant of Sir Robert Bruce; but the account of the Clackmannan family in Douglas's *Baronage* takes no notice of such a person; and it was beyond doubt Peter de Bruis, 'a Flandrian,' who is mentioned several times in Fountainhall's *Decisions* as building a harbour at Cockenzie, and obtaining a privilege for making playing-cards.
- [279](#) It was at its perihelion on the 17th of December, when it was only 128,000 geographical miles from the sun.
- [280](#) *Abbotsford Miscellany*, i. 356.
- [281](#) See vol. i. p. 421.
- [282](#) Pamphlet on Woollen Manufactories, printed at Edinburgh in 1683.
- [283](#) *Memorials for the Gov. of Royal Burghs in Scotland*. By Philopoliteios [Bailie Skene of Aberdeen]. Aberdeen, 1685.
- [284](#) *Husbandry Anatomised, or an Inquiry into the Present Manner of Tilling the Ground in Scotland, &c.* By Ja. Donaldson. Edinburgh, 1697.
- [285](#) Provost Dickison was assassinated in 1572. See vol. i. p. 81.
- [286](#) Fount. *Decisions*, i. 189, 193.
- [287](#) This epizootic raged also in England and other countries. It was a disease styled *Angina Maligna* (probably *pneumonia*); a blue mist was seen on the pastures.—*Short's Chron. Hist. of Air Meteors, &c.*, 1748.
- [288](#) This curious case is stated more briefly in the present volume, p. 227.
- [289](#) The common men were paid at the rate of 6d. a day; drummers, 1s.; sergeants, 1s. 6d.
- [290](#) Fountainhall's *Decisions*, i. 187.
- [291](#) From original documents.
- [292](#) Fountainhall's *Decisions*, i. 188. In January 1686, the widow of Patrick Cunningham, apothecary, successfully pursued Lady Evelick for two hundred merks, being a sum the lady had promised in writing 'for the skaith the said

Patrick suffered when her son James Douglas put fire in Harry Graham's chamber.'—*Foun. Dec.*

[293](#) The jail of Dumfries seems to have then been either insecure or ill-conducted. In May 1683 there was a complaint before the Privy Council from Sir Patrick Maxwell of Springkell, regarding a notorious robber named Ludovick Irving, whom he had caused to be followed to Ireland, there apprehended, and then brought to Dumfries at an expense to himself of two hundred pounds sterling. The man was first put into 'a sure vault,' but was removed by the magistrates into 'ane utter room, which had no sure posts nor doors;' so he had no difficulty in escaping. Sir Patrick claimed his expenses from the magistrates, and demanded their punishment.—*P. C. R.*

[294](#) Strictly Wester Gledstones, situated in the barony of Carnwath and county of Lanark.

[295](#) From a petition of the workmen employed in the king's printing-office in 1678, craving exemption from watching and warding, it appears they were *fifteen* in number.—*P. C. R.*

[296](#) Creech's *Fugitive Pieces*, p. 82.

[297](#) Letters to Earl Aberdeen (Spal. Club), p. 36.

[298](#) The same with Mr Thomas Stewart noticed at p. 245 of this volume.

[299](#) *Coltness Collections*.

[300](#) Sir Thomas's father, Sir James Stewart of Coltness, presided as provost of Edinburgh at the execution of Montrose. He suffered imprisonment after the Restoration, and is said to have been only rescued from something worse by the intercession of a cavalier gentleman whose son's life he had saved by his humane intercession some years before.

[301](#) Adverted to in this volume, p. 211.

[302](#) The Council (April 23) ordered three hundred pounds to the Rosses out of vacant stipends; but it is most unlikely that the money or any part of it was ever realised.

[303](#) In April 1684, Mrs Jean Barron, relict of the minister of Birse, craved charity of the Privy Council as the daughter of Mr Robert Barron, professor of divinity at Aberdeen, who 'having had the honour to be the first who opposed the Covenant,' was pursued for his life and banished on that account, finally dying in exile, in such poverty that any means he might have had for the maintenance of his family was lost; nor had any benefit ever been derived from his nomination to the bishopric of Orkney, by which King Charles I. had endeavoured to recompense his sufferings. Mrs Jean was now with three fatherless children reduced to great misery, in which she humbly hoped that the Council would not allow the daughter of so great a sufferer to remain. The Council recommended her case to the Lord Treasurer.

Anna Morton represented herself to the Council (July 20, 1685) as the daughter of Mr William Morton, formerly minister of South Leith, who, in 1640, for his refusal of the Covenant, was 'not only thrust out of his church, and plundered of all his goods and gear, but, from the violent malice of these bloody persecutors, the Covenanters, was necessitat for shelter of his life to leave his native country

and fly to England, where, thereafter, through their cruel malice, he was most pitifully used, being apprehended and incarcerated within the prison of York, and continued there in a most miserable and penurious condition, to the utter ruin of himself, his family, his fortune, and estate;’ all of which was fully testified by competent witnesses. The petitioner was now a widow with a charge of children, in helpless poverty and wretchedness, all traceable to the impoverishment of her father. The Council ordered her two thousand merks out of the vacant stipends of the diocese of Argyle.

[304](#) The death of the old Laird of Dumbiedykes in Scott’s tale of the *Heart of Mid-Lothian*, involves an allusion to this piece of national music: ‘He drank three bumpers of brandy continuously, and “soughed awa’,” as Jenny expressed it, in an attempt to sing *Deil stick the Minister*.’

[305](#) See vol. i. p. 24.

[306](#) MS. quoted in Wilde’s Table, Census of Ireland, 1851.

[307](#) *Notes to Fountainhall’s Chronological Notes of Scottish Affairs*, p. 5.

[308](#) A sugar-house was first set up in Glasgow in 1667.—*Gibson’s Hist. Glasgow*.

[309](#) Sir Walter Scott relates this anecdote on the authority of Mrs Murray Keith.—*Notes to Fountainhall’s Chron. Notes, &c.*, p. 33.

[310](#) ‘These’ is always used for ‘those’ in Scottish documents of this age.

[311](#) Fountainhall’s *Decisions*. Burnet’s History.

[312](#) *Statistical Account of Scotland*, vol. v.

[313](#) Letters to George Earl of Aberdeen (Spal. Club), p. 122.

[314](#) *Analecta*, i. 114.

[315](#) *Memoirs of Lady Grizzel Baillie*.

[316](#) MS. in possession of Sir Hugh Purves Hume Campbell, Bart., Marchmont House.

[317](#) *Papers Relating to the Geographical Description, Maps, and Charts of Scotland*, by John Adair. *Bann. Club Misc.*, ii. 345.

[318](#) *Papers Relating to Slezer’s Theatrum Scotiæ*, in *Bann. Club Misc.*, ii. 307.

[319](#) *Scots Magazine*, Obituary, 1791.

[320](#) *A Short Account of Scotland*, &c. London, 1702.

[321](#) Called the Old Bank Close, in the Lawnmarket, where Melbourne Place now is.

[322](#) The earl’s first marriage to a daughter of the Marquis of Huntly—who, however, was not the mother of his children—is noticed in this volume under 1649.

[323](#) [Mackie’s] *Journey through Scotland*, 1723, p. 18.

[324](#) From an original inventory of the articles, read before the Society of the Antiquaries of Scotland by Sir David Laing, in 1857.

[325](#)Lamont's *Diary* (Edinburgh, 1830), p. 212, *foot-note*.



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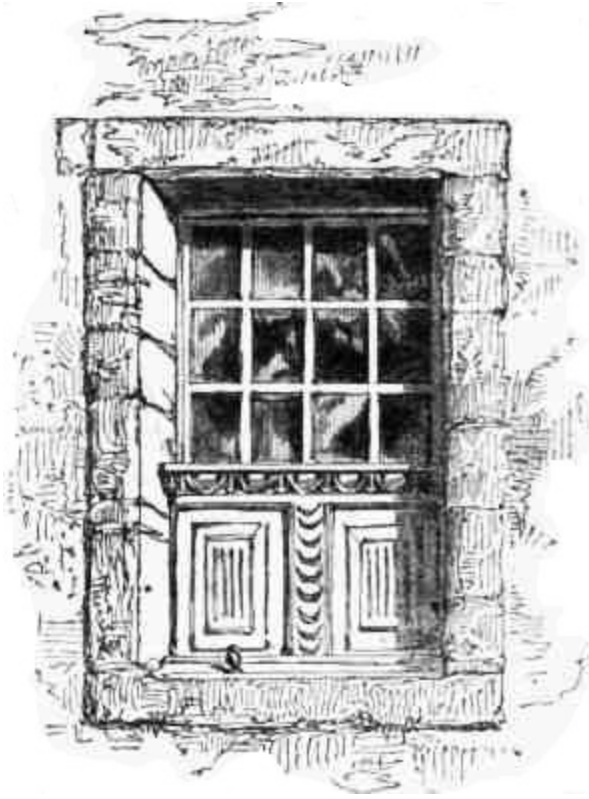
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**Half-glazed Window of  
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